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FOREWORD

At last, after waiting for well over seven years since the previous volume, the 1998 Tanzania Law Report is out. It is the first volume of the Tanzania Law Reports produced after the incorporation of the Registered Trustees of the Tanzania Law Reports in March 2001. But the amount of work that has gone into the production of this volume started well before that incorporation and much of that work was done by dedicated members who are not part of the present Board and their contribution deserves to be recorded.

Before the incorporation of this Board as a Trust there was in place the Editorial Board of the Tanzania Law Reports. It was first set up in the early 1980s by the Chief Justice, the late Francis L. Nyalali, and he chaired it. After he had retired his successor, Justice Barnabas A. Samatta, continued to chair that Board.

Before his retirement, Chief Justice Nyalali had initiated efforts to set up a Trust to be responsible for the Law Reports. When he assumed office, Chief Justice Samatta, himself a member of the former Editorial Board, continued those efforts until the present Board was incorporated and he, as the Settlor, appointed the first Trustees under the late Justice K.S.K. Lugakingira, Justice of Appeal, as chairperson. Following the demise of Justice Lugakingira, the Settlor appointed Justice Harold R. Nsekela, Justice of Appeal, to the chair of the Board whose membership appears on page *v* of this volume. This Board continued and completed the work on this volume, which had been started by the former editorial board.

We think it is appropriate to pay a deserving tribute to all those whose efforts contributed to the outcome that we now see in this volume.

SCOPE OF THE SERIES

These Reports cover cases decided in the Court of Appeal of Tanzania and in the High Courts of Tanzania and Zanzibar

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r.28(2)....512
r.9(2)(b) 530
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r.89(1)(k)....512
r.100 175
Urban Authorities (Rating) Act 1983, Act No. 2 of 1983:
ss.26, 43 and 44....541
s.29 541

MUSA MWALUGALA v. NDESHE HOTA

HIGH COURT OF TANZANIA
AT MBEYA
(Samatta, J.)

(PC) CIVIL APPEAL No. 19 OF 1979

(From the decision of the District Court of Mbeya at Mbeya
(P.M. Mushi, SM), in Civil Appeal No. 51 of 1976)

Family Law - Adultery – Sexual intercourse with a woman who has re-married after dissolution of her marriage to the Appellant – Whether the fact that she had been the Appellant's wife in the past is a defence to liability for adultery – Section 72(2) of the Law of Marriage Act 1971

Damages – Adultery – Assessment of damages for adultery – Principles to be applied in assessing damages for adultery – Section 74 of the Law of Marriage Act 1971

The appellant was ordered by the primary court to pay Shs.900/= as damages for adultery. His appeal to the district court was unsuccessful. He appealed further to the High Court.

Held:

i) A man's right to have sexual intercourse with a woman who had been his wife in the past ends with the dissolution of his marriage to her; by having sexual intercourse with the woman after the dissolution of his marriage with her, and after she had re-married the respondent, the appellant committed adultery;

ii) Damages for adultery are always compensatory only, not exemplary or punitive, and the grounds upon which they may be awarded are the actual value of the wife lost, compensation to the husband for the injury to his feelings, to his honour and hurt to his family life;

iii) The conduct of the adulterer, as well as the character and conduct of the husband and that of the wife are all relevant in assessing damages for adultery.

Appeal dismissed

Cases referred to:

(1) *Butterworth v. Butterworth and Englefield* [1920] P.126

(2) *Davies v. Powell Duffryn Associated Collieries* [1942] A.C. 601

JUDGMENT

(Dated 5 September 1979)

Samatta, J.: This is a second appeal. On September 24, 1976, the appellant was ordered by the primary court of Ruiwa to pay Shs. 900/= to the respondent as damages for adultery. On June 1, 1979, the district court of Mbeya dismissed the appellant's appeal against that decision. This appeal is against the district court's decision.

It would require the labours of Sisyphus to persuade me to agree with the appellant that the district court did not come to a right and just decision. The respondent's case against the appellant was supported by the woman in question, her father, and one Chai Sitavari, a leader of the ten cell. In his testimony the appellant came fairly close to admitting the allegation made against him. The appellant appeared to suggest that because the woman had been his wife in the past, he could not, in law, commit adultery with her. That suggestion has no foundation in law. His right to have sexual-inter-course with the woman came to an end when his marriage with her was dissolved. After the dissolution of the marriage the woman got married to the respondent. The respondent was perfectly entitled to treat the appellant's act of having sexual-intercourse with the woman as a violation of his marital rights.

Judging by the secret way he took away the woman from the respondent's village, and taking into consideration his evidence at the

trial, it seems plain that the appellant knew, or had reason to know, that the woman was married to the respondent. The provisions of s. 72(2) of the Law of Marriage Act, 1971, could not, therefore, be invoked in the appellant's favour.

I entertain no doubt that the learned senior magistrate was right in holding, as he did, that the primary court had not robbed the appellant of any justice in finding that he had committed adultery with the respondent's partner in marriage.

I turn now to the question of the quantum of damages. What are the principles which ought to be applied in assessing damages against an adulterer? I find the principles referred to by McCardie, J., in *Butterworth v. Butterworth and Englefield* (1) very just. Those principles are accurately summarized in the headnote as follows:

> The damages, if any, have always been compensatory only, and not exemplary or punitive. The grounds on which damages are given are:
>
> i) the actual value of the wife lost; ii) compensation to the husband for the injury to his feelings, the blow to his honour and hurt to his family life. The value of the wife has two aspects, (i) pecuniary, and (ii) what may be called the consortium aspect: (i) depends on her fortune and her ability and assistance in the home or business; and (ii) depends upon her character and abilities as wife or mother. The conduct of the adulterer has little bearing on (i), but may be very relevant as (ii), as an aid to estimating the value of the wife, e.g., the ease with which he effected his purpose may show that the wife was of small value. His conduct may also be relevant in estimating the injury to the husband's feelings. The husband's own character and conduct are, on a claim for damages, as fully in issue as that of his wife. The amount of compensation cannot depend on the wealth or poverty of the co-respondent, but the way in which he has used his wealth in gaining his end may be relevant in the same way as his conduct generally. Both the rank and fortune of the co-respondent are relevant for consideration in so far as either may give assistance in ascertaining the value of the wife, or

measuring the extent of the injury inflicted on the husband.

I find no conflict between these principles and the provisions of s. 74 of the Law of Marriage Act, 1971. Applying those principles to the present case, can it rightly be said that the assessment made by the primary court is unsupportable in law or in fact? Sitting as an appellate court, this court is entitled to interfere with a trial court's assessment of damages only if one or more of the conditions stated by LORD WRIGHT in *Davies v. Powell Duffryn Associated Collieries* (2), at p. 617, exist:

> In effect the court, before it interferes with an award of damages, should be satisfied that the judge has acted on a wrong principle of law, or has misapprehended the facts, or has for these or other reasons made a wholly erroneous estimate of the damage suffered. It is not enough that there is a balance of opinion or preference. The scale must go down heavily against the figure attacked if the appellate court is to interfere, whether on the ground of excess or insufficiency.

Even with the best will in the world, I cannot see how I can rightly fault the primary court's assessment of damages in this case. According to the evidence on record, the appellant stayed with the respondent's wife at his (the appellant's) home for a fairly long time. Leaving pecuniary loss aside, it must be true to say that the injury to the respondent's feelings inflicted by the appellant must have been fairly considerable. The assessment of damages by the primary court was, on the whole, fair and just.

ALLY LINUS AND ELEVEN OTHERS *v.* TANZANIA HARBOURS AUTHORITY & THE LABOUR CONCILIATION BOARD OF TEMEKE DISTRICT

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Nyalali, C.J., Mwakasendo and Kisanga, JJ.A.)

CIVIL APPEAL No. 2 OF 1983

(From the decision of the High Court of Tanzania at Dar es Salaam, N.S. Mnzavas, J.K., dated 9th September 1982, in Civil Cause No. 5 of 1981)

Administrative Law – Prerogative Remedies – Certiorari – Grounds for granting certiorari – Whether absence or lack of jurisdiction are the only grounds for granting certiorari

Administrative Law – Natural Justice – Duty to act judicially – Failure by the Labour Conciliation Board to allow party to proceedings to call material witnesses – A breach of natural justice

Precedent – Judicial precedent and duty to act judicially – High Court judge dissenting from decision of another High Court judge – Duty to act judicially requires judges not to lightly dissent from considered opinions of their brethren

Administrative Law – Certiorari – Grounds for award of certiorari – Error of Law as a ground for awarding certiorari

Administrative Law - Error of Law – Administrative Tribunal equating acceptance of terminal benefits with consent to the termination of employment – An error of law

High Court – Jurisdiction - Supervisory jurisdiction of the High Court – Whether granting certiorari on grounds of error of law amounts to hearing an appeal

from an administrative tribunal – Appeal and judicial review distinguished

The appellants were aggrieved by the 1st Respondent's decision to terminate their employment. They accepted payment of their terminal benefits but at the same time referred their grievances to the Labour Conciliation Board, the 2nd Respondent. The Board decided against them and they applied to the High Court for orders of certiorari and mandamus. The High Court dismissed their application on grounds, *inter alia,* that the High Court could not grant certiorari upon any grounds other than absence or excess of jurisdiction, and that granting certiorari in the matter would amount to hearing an appeal from the Labour Conciliation Board. On appeal to the Court of Appeal:

Held:

(i) Certiorari should have been granted by the High Court on the grounds of breach of natural justice by the Labour Conciliation Board; as a quasi-judicial body, the Board was duty bound to call those officials of the 1st Respondent whom the appellants wanted to give evidence before it;

(ii) It is not a matter of courtesy but a matter of duty to act judicially that requires a judge not lightly to dissent from the considered opinions of his brethren;

(iii) Certiorari should have been granted also upon the finding that the Board had erred in law to equate payment of terminal benefits to the appellants with consent by them to the termination of their employment;

(iv) Granting an order of certiorari in this case would not amount to hearing an appeal from the Board; while an appeal requires the appellate court to re-hear the case decided by the Board either generally or on particular issues, in an application for certiorari the High Court merely exercises its supervisory function to ensure that the Board acts in accordance with the law;

(v) The function of interpreting the law is a judicial function and the judiciary has the final word about the meaning of the laws.

Appeal allowed

Cases referred to:

(1) *Amri Juma and 15 Others v. Tanzania Harbours Authority and Another,* High Court of Tanzania at Dar es Salaam, Miscellaneous Civil Cause No.37/1980 (unreported).

(2) *R v. Northumberland Compensation Appeals Tribunal*, [1952] 1 All E.R. 122

Professor Shivji, for the Appellants
Mr. Rweyemamu of the Tanzania Legal Corporation, for the 1st Respondent

JUDGMENT OF THE COURT

(Delivered on 13 May 1983)

Nyalali, C.J.: According to the proceedings in this court and the court below, it is indisputable that the appellants, that is Ally Linus and eleven others, applied in the High Court at Dar es Salaam for orders of *Certiorari* and *Mandamus* in respect of proceedings conducted before the Labour Conciliation Board at Temeke. The grounds upon which the application is based can be summarized as being firstly, the failure of the Board to observe principles of natural justice, secondly, the failure to act judicially and thirdly, the failure to act according to law.

The High Court, Mnzavas, J.K., dismissed the application but made no order as to costs. The appellants were aggrieved by the decision hence this appeal to this court. Professor Shivji, of the Legal Aid Committee of the Faculty of Law of the University of Dar es Salaam appeared for the appellants, while Mr. Rweyemamu from the Tanzania Legal Corporation, represented the first Respondent. The second Respondent, that is, the Labour Conciliation Board, has apparently been unwilling to be made a party to the proceedings ever since they commenced in the High Court.

It is indisputable that on the 5th April, 1980, sixteen employees of the

First Respondent (the Tanzania Habours Authority) had their employment terminated. There followed a general stoppage of work about four days later, that is, on the 8th and 9th of April, 1983. Next day, on the 10th of April, identical letters were written to the appellants by the First Respondent, terminating their employment. It is common ground that the First Respondent, offered to pay terminal benefits to the Appellants. There is no dispute that the appellants complained to the local branch of their workers' organization, that is, JUWATA. They were advised to accept the payment but press on with their complaints to higher authorities. Furthermore, it is common ground that the appellants accepted payment of terminal benefits and referred their grievances to the Labour Conciliation Board under the Security of Employment Act, Cap. 574. The Board made its decision against the appellants. That decision gave rise to the proceedings in the High Court.

For reasons which will be apparent later on in this judgment, it is relevant to mention here that similar action was taken by the other sixteen employees whose employment had been terminated by the First Respondent earlier, on the 5th of April, 1980. In their case, the High Court, Mapigano J., decided the application in their favour. This was the case of *Amri Juma and 15 Others v. Tanzania Harbours Authority and Another (1).*

In the case now before us, the learned Jaji Kiongozi stated the general question and guiding principle as follows:

> Now the question this court is required to decide is whether this is a fit case for the issue of a writ of certiorari. In law I can only do so if the court is satisfied that the Conciliation Board acted without or in excess of jurisdiction.

With regard to the specific points raised in the application the learned Jaji Kiongozi stated:

> .... There can be no argument that two of the workers were not present when the Tribunal heard and determined their petition. But with due respect to the learned counsel for the applicants such irregularity by the tribunal did not deprive it of its jurisdiction to hear the dispute. Nor can it, by any stretch of imagination, be said that by hearing the petition in the absence of the two workers the tribunal exceeded its jurisdiction. By doing so the Labour Conciliation Board clearly acted contrary to principles of natural justice but that is far from saying that the Board had no jurisdiction to entertain the matter. That being the position I fail to understand how I can grant the application for a writ of certiorari. To do so would amount to hearing an appeal from the decision of the Labour Conciliation Board, which power, as the law amply shows, this court does not possess.
>
> There were, I agree other procedural irregularities such as the tribunal not allowing some of the workers to call their witnesses but, as the learned counsel will no doubt agree with me, a writ of certiorari will only lie where an error of law is revealed on the face of an order or decision or absence of or excess of jurisdiction is shown.

Furthermore, the learned Jaji Kongozi stated:

> The Board's remark that the taking of terminal benefits by the workers prejudiced their appeal may have been wrong and entitled the applicants to appeal to the Minister against the decision of the Board. But that is far from saying that such error entitles this court to interfere with the decision of the Board by way of granting the writ of certiorari.

The appellants are challenging these views and findings of the learned Jaji Kiongozi. In their first ground of appeal, they challenge the view that certiorari lies only where there is absence or lack of jurisdiction. We are satisfied that such a view is wrong. There is plenty of authority to show that the absence or lack of jurisdiction are not the only grounds for certiorari to issue. Paragraph 147 of *Halsbury's Laws of England* states that certiorari:

> ... will issue to quash a determination for excess or lack of jurisdiction or error of law on the face of the record or breach of the rules of natural justice, or where the determination was procured by fraud, collusion or perjury.

The appellants contend that Certiorari ought to have been issued by the High Court upon the finding by the learned Jaji Kiongozi that there was a breach of the principles of natural justice in deciding the case against Salum Madundo and Mustafa Juma who did not appear. We are satisfied that the appellants' contention is correct. For the future guidance of the Labour Conciliation Board we have to point out that the rules of natural justice would not have been violated if the Board had dismissed the reference of the two persons on the ground of their failure to appear instead of deciding their case on merits.

In another ground of appeal and through the submissions made before this court by Professor Shivji, the appellants argue that certiorari should have been issued upon the finding of the learned Jaji Kiongozi that the Board failed to allow some of the workers to call witnesses. We agree that the appellants' argument is correct. We concur with the views of Mapigano, J., in the earlier mentioned case of *Amri Juma and 15 Others (1)* where he stated:

> It is beyond question that the discharge by a Board of its functions under the provisions of the Security of Employment Act, 1964, as amended by Act No. 1 of 1975, constitutes an activity of a quasi-judicial character ....

We are satisfied that the Board as a quasi-judicial body has a duty to act judicially. This judicial duty includes the duty to make reasonable inquiries. From the testimony given and the questions raised by the appellants in the course of the proceedings before the Board, it was apparent that the appellants wished the Board to hear relevant evidence from certain officials employed by the 1st Respondent, such as the doctor who examined those employees who claim to have been sick on the material day, and the supervisors who were in-charge of some of the appellants who claim to have been on duty at the material time. The Board was duty bound to call those officials to give evidence on the issues before it, unless there was good reason shown for not doing so.

Finally, the appellants contend that certiorari ought to have been issued

by the High Court upon the finding of the learned Jaji Kiongozi that the Board erred in equating payment of terminal benefits with consent by the appellants to their termination of employment. It is important to note here that in the earlier case of *Amri Juma and 15 Others*, the High Court, Mapigano, J., ordered certiorari and Mandamus to issue upon the finding that the Board had, *inter alia*, made "an error of law when it held that the taking of the terminal benefits by the applicants fatally prejudiced their case."

The learned Jaji Kiongozi in considering the decision by Mapigano, J. stated:

> I have carefully read the decision by my brother Mapigano, J., (quoted above) and I agree that where all things are equal, judicial courtesy requires that Judges should not lightly dissent from the considered opinions of their brethren but I would also like to mention to the learned counsel for the applicants that individual judges are not bound by each other's decisions. On the facts of this case, as I see them, this was a proper case for the applicants to refer their grievances to the Minister as provided under Section 26 of the Security of Employment Act.

With due respect to the learned Jaji Kiongozi, it is not a matter of judicial courtesy but a matter of duty to act judicially which requires a judge not lightly to dissent from the considered opinions of his brethren.

The learned Jaji Kiongozi appears to hold the view that to allow the application in the present case would amount to usurping the powers of hearing an appeal by the Minister responsible for labour affairs. Since the same court, presided over by Mapigano, J., in the earlier case originating from the same place and involving the same Respondents had granted a similar application, one expects sufficient reasons to be given for the results in the present case being different from those in the earlier case. This is necessary to avoid giving the parties and the general public a false impression that results of cases in courts of law perhaps depend more on the personalities of judges than on the law of this Land.

We are satisfied on our part that the High Court should also have granted an order of certiorari in this case upon the finding that the Board had erred to equate payment of terminal benefits with consent by the appellants to termination of their employment. We accept the appellants' contention that under the circumstances of this case, as in Amri Juma's case, which show that the workers had complained to their local branch of their Union about their termination and had been advised by the branch to accept payment and pursue their complaint, there can be no reasonable inference that the workers in question had consented to termination of their employment.

Furthermore, it is a misdirection in law to hold the view that granting the order of certiorari in the a present case amounts to hearing an appeal from the Board. The proceedings for certiorari are quite different from proceedings by way of appeal. In the latter instance, that is in an appeal, the appellate court or tribunal is required to re-hear the case either generally or on particular issues raised in the appeal. The High Court has no jurisdiction to do so in matters originating from Labour Conciliation Boards. Only the Minister responsible for labour affairs is vested with such appellate jurisdiction.

The position is different in proceedings for certiorari where the High Court is required to exercise its supervisory function to ensure that a tribunal or such body below acts in accordance with the Rule of Law. Apart from the historical origin of certiorari, which we need not go into in this case, it is clear that the basic structure of the Constitution of this country vests the judicial power of the state in the Judicature, that is, the judicial arm of the Government. The function of interpreting the laws of the state is a judicial function and for that reason the judicial arm of the Government has the final word about the meaning of the laws of this country. That is the objective basis of the supervisory function of the High Court, which it exercises by certiorari, mandamus and the like.

One last point before we conclude. We are informed by Professor Shivji from the Bar that the Labour Conciliation Board has been unwilling to be associated with these proceedings ever since they started in the

High Court. We do not know the reasons for that behaviour. However, we need to point out that since the Labour Conciliation Board is an Organ of the Government, the proper procedure should have been for the court to notify the Attorney General to appear in the High Court on behalf of the Board as it was done in England in the case of *R. v. Northumberland Compensation Appeals Tribunal* (2). This procedure should be followed in the future in similar cases.

In the final analysis, therefore, we allow the appeal with costs, set aside the ruling of the Court below and grant the application for orders of certiorari and Mandamus whereby we quash the proceedings before the Labour Conciliation Board and direct the reference of the appellants to be heard in accordance with the laws of this country by the Board which, for this purpose, should be differently constituted.

ARUSHA MUNICIPAL COUNCIL
v.
LYAMUYA CONSTRUCTION COMPANY LTD

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Nyalali, C.J., Kisanga and Ramadhani, JJ.A.)

CIVIL APPEAL No. 25 OF 1989

(From the decision of the High Court of Tanzania at Arusha (Mwakibete, J.), dated 29th March 1988, in Civil Cases No. 23 and 46 of 1986)

Civil Practice and Procedure - Jurisdiction of the Courts – Civil proceedings in respect of immovable property held under customary law – Whether High Court has jurisdiction – Section 2(1) of the Judicature and Application of Laws Ordinance and s. 63(1) of the Magistrates' Courts Act 1984

Courts – Jurisdiction of the High Court – Power of the High Court to grant leave for proceedings to commence in a court other than the primary court – Whether High Court may order proceedings to commence in itself – Section 63(1) of the Magistrates' Courts Act 1984

Civil Practice and Procedure – Local Government - Suits against local government authorities – Statutory requirement of one month's notice before suing an urban authority – Effect of non compliance – Section 97(1) of the Local Government (Urban Authorities) Act 1982

The respondent instituted, in the High Court, civil proceedings concerning immovable property not held under a granted right of occupancy or a Government lease. Section 63(1) of the Magistrates' Courts Act 1984 requires such a suit to be commenced in a primary court, but the High Court may grant leave for the suit to be commenced in some other court. The appellant (who was the defendant in the High Court) was an urban local government authority but no written notice was served upon it, as provided for under s.97(1) of the Local Government (Urban Authorities) Act 1982, prior to the institution of the suit. The appellant raised preliminary objections against the suit but was overruled, and then appealed.

Held:

(i) Under s.63(1) of the Magistrates's Courts Act 1984 there is no power to allow proceedings that have commenced in a wrong forum to continue therein;

(ii) The power of the High Court under s.63(1) of the Magistrates' Courts Act 1984 to grant leave for proceedings to commence in some other court, other than the primary court, does not include power for the High Court to grant leave for such proceedings to commence in itself;

(iii) Non-compliance with s. 97(1) of the Local Government (Urban Authorities) Act 1982, which requires a one month's written notice to an urban local authority before instituting a suit against it, renders a suit unmaintainable.

Appeal allowed

Cases referred to:

(1) *Frank M. Marealle v. Paul Kyauka Njau,* [1982] T.L.R. 32

(2) *Machiby Mahambi and Others v. Sheikh Mohamed Haidri,* [1957] E.A. 778

Mr. Ben Lobulu, for the Appellant
Messrs Shayo and *Jonathan,* for the Respondent

ORDER OF THE COURT

(Dated 30 July 1990)

Nyalali, C.J.: Before this appeal came on for hearing as listed on the 27th February 1990, Mr. B. Lobulu, learned counsel for the appellant, gave notice of intention to request the court to consider first two of his twelve grounds of appeal which concern the jurisdiction of the High Court to entertain the suit which is the subject of the appeal. When the appeal came on for hearing on the 27th February 1990, we agreed to proceed as requested under the provisions of Rule 3(2)(a) and (b) of the Rules of this court, after being satisfied that a decision in favour of the appellant on the two grounds in question, would make it no longer necessary to consider the remaining ten grounds of appeal and would thus expedite the appeal and save costs to the parties. The two grounds of appeal in question constitute ground 1 and 3 of the memorandum of appeal and they read as follows:

1. The Honourable Judge erred in entertaining an action which was legally misconceived for want of jurisdiction.

   ALTERNATIVELY, the Honourable judge erred in giving, leave under section 63 of the Magistrates' Courts Act, 1984, after commencement of the action.

3. The Honourable Judge erred in entertaining Civil Case No. 23 of 1986 which was clearly in violation of section 97 of the Local Government (Urban Authorities) Act, 1982.

The thrust of Mr. Lobulu's submission on the first ground is to the effect that the High Court had no jurisdiction to entertain the suit which concerned immovable property which is not land held on a Government lease or a right of occupancy granted under the Land Ordinance. He based this submission on the provisions of section 63(1) of the Magistrates' Courts Act, 1984 which reads:

> Subject to the provisions of any law for the time being in force where jurisdiction in respect of the same proceedings is conferred on different courts, each court shall have concurrent jurisdiction therein;
>
> Provided that no civil proceedings in respect of marriage, guardianship or inheritance under customary law, or the incidents thereof, and no civil proceedings in respect of immovable property, other than proceedings relating to land held on a government lease, or a right of occupancy granted under the Land Ordinance or proceedings under section 22 or 23 of the Land Ordinance shall be commenced in any court other than a primary court unless the Republic is a party thereto, or unless the High Court gives leave for such proceedings to be commenced in some other court.

With regard to the third ground, the thrust of Mr. Lobulu's submission is to the effect that the suit was prematurely commenced since the required one month's notice was not given to the appellant as required under section 97(1) of the Local Government (Urban Authorities) Act, 1982, Act No. 8 of 1982. That section reads:

> (1) No suit shall be commenced against an Urban authority until one month at least after written notice of intention to commence the suit has been served upon the authority by the intending plaintiff or his agent
>
> (2) The notice served under this section shall state the cause of action, the name and place of abode of the intending plaintiff and the relief sought.

The record of appeal before us which is in two volumes and two supplementary records, shows that these objections were raised as preliminary objections in the trial court by Mr. Lobulu who argued the objections at length and cited a number of authorities to back up his position. It is baffling however that the learned trial judge overruled the objections without even attempting to interpret the relevant statutory provisions. Concerning the first objection, the learned judge stated in his ruling:

> If the plaint is anything to go by, Mr. Lobulu appears to have made a valid point. He is clearly on firm ground because the subject matter is said to be a piece of unsurveyed land apparently not alleged to be held under a government lease or right of occupancy – and the Republic is not a party to the proceedings. As such by virtue of section 63(1) the proceedings ought to commence in the primary court. Such proceedings may commence in a court other than the primary court only by leave of the High Court.
>
> It is against this background that Mr. Shayo purported to make an oral application for the proceedings to continue in this court instead of the same being transferred to the primary court.
>
> I propose to adopt a practical approach on this issue. Both parties in this case are represented by Advocates and advocates are denied appearance in primary courts. Not only that, the pleadings generally require that the case be heard by the High Court. As such I would be prepared to accommodate Mr. Shayo's oral application under Order 43 rule 2 of the Civil Procedure Code and order that the proceedings continue in the High Court as filed instead of the same being transferred to the primary court.

> After all, even if they were to be transferred to the primary court, it is virtually certain that they would be re-transferred back to this court – on application.

With regard to the second ground of objection, the learned judge stated:

> I agree with Mr. Lobulu that the suit was filed before the stipulated period of 30 days. But this is different from saying that there was total absence of the required notice. The notice was admittedly given – only the duration of the notice was not fully complied with, for reasons explained by Mr. Shayo. Mr. Shayo had explained that their property was in danger of being demolished when they decided to rush to court – to preserve the status quo. I would not say the reasons given by Mr. Shayo are without substance. They are in my view reasonable – and warranted the filing of the suit before the expiry of the stipulated period of 30 days ... I would accordingly decline to strike out the plaint on a mere procedural technicality as to the plaint having been filed before the expiry of the stipulated period.

The record before us also shows that after the objections were overruled, Mr. Lobulu, made strenuous efforts to arrest the effect of the ruling by giving notice to appeal to this court and by seeking the requisite leave of the High Court to so appeal as required by law. He also applied for stay of the proceedings in the High Court, pending the intended appeal. However each of these efforts was strongly resisted by Mr. Shayo for the plaintiff, and the High Court ruled in favour of Mr. Shayo's position, and after the suit was consolidated with civil case No. 46 of 1986, which the appellant had filed against the respondent respecting the same piece of land, the trial proceeded to the end.

So, the first important issue for resolution in this appeal is whether the trial court was correct in granting leave and ordering the suit to continue in the High Court under the provisions of section 63(1) of the Magistrates' Courts Act, 1984. As already mentioned, the learned trial judge did not attempt to interpret the relevant provisions of the law.

We must now do what the court below failed to do. It is quite clear from the plain language of the proviso to section 63(1), and Messrs Shayo and Jonathan, learned counsel for the respondent, concede, that the leave to which the High Court is empowered to give is for "such proceedings to be commenced in some other court." There is no power under the relevant provisions of the law to grant leave for proceedings which have already commenced in a wrong forum to continue therein. It follows therefore that in the present case, the trial judge was wrong in ordering the proceedings which had already commenced in the High Court to continue therein. Since the learned trial judge seems to have been of the view that had he acted otherwise, it would have been futile as the suit would have been transferred back to the High Court, we have to consider whether the High Court has original jurisdiction to entertain "civil proceedings in respect of immovable property, other than proceedings relating to land held on a government lease or a right of occupancy granted under the Land Ordinance or proceedings under section 22 or 23 of the Land Ordinance."

Undoubtedly, under the previsions of section 2(1) of the Judicature and Application of Laws Ordinance, Cap 453, the High Court has unlimited civil and criminal jurisdiction, except as otherwise expressly provided by law. That subsection states:

> Save as hereinafter or in any other written law expressed, the High Court shall have full jurisdiction, civil and criminal.

The question which arises at this point is whether the proviso to section 63(1) of the Magistrates' Courts Act 1984, expressly limits the jurisdiction of the High Court in the matters involving customary law started therein. We think the answer depends on whether the expression "some other court" to which the High Court may grant leave for proceedings to commence includes the High Court itself. We have closely examined the Magistrates' Courts Act 1984, and it seems to us apparent that the Act deals primarily with magistrates' courts, and that under the scheme of the

Act where there are provisions relating to the High Court, it is so specifically mentioned. Thus under the provisions of section 47(1)(c) concerning transfer from primary courts, there is a provision for "the High Court to order the transfer of the proceedings to **itself** or to some magistrate's court." (emphasis supplied).

It is evident that the formula used under the proviso to section 63(1) is different from the one used under section 47(1)(c). We think this difference in formulation is significant and is in keeping with the scheme of the Act. Had the Legislature intended to empower the High Court to order proceedings also to commence in itself in addition to other courts, it would have specifically said so, as it does under section 47(1)(c). For these reasons we hold that the High Court has no original jurisdiction in the matters mentioned above and cannot therefore order such proceedings to commence in itself. Our conclusion on this point is supported by the view expressed by this court in the case of *Frank M. Marealle v. Paul Kyauka Njau* (1).

We think the rationale or policy behind the provisions of section 63(1) which deprive the High Court of original jurisdiction in these matters is that these matters so deeply concern and involve the community at the grass roots level that the matters are better dealt with first by courts which are closer to the people than the High Court.

The second important issue for resolution in this appeal is whether the trial judge was correct in holding that non-compliance with the provisions of section 97 of the Local governments (Urban Authorities) Act 1982, Act No. 8 of 1982 is simply a procedural or technical error which does not invalidate the suit.

The problem here seems to us to be very easy to solve. The language of the statute quoted earlier in our judgment is very clear. It contains a definite and peremptory prohibition for suits to be instituted against an Urban authority, like the appellant in this case, before the expiration of one month's notice.

The question that arises is: what are the legal consequences of such non-compliance? A similar situation was considered in the case of

Machibya Mahambi and Others v. Sheik Mohamed Haidri (2). That case turned on the provisions of section 60 of the Civil Procedure Decree, Cap 4, (now chapter 8) of Zanzibar which stated:

> No suit shall be instituted against the Zanzibar Government, or against a public officer in respect of any act, purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered to, or left at the office of, the Chief Secretary to the Zanzibar Government; or the District Commissioner of the district, stating the cause of action, the name, description and place of residence of the plaintiff and the relief which he claims: and the plaint shall contain a statement that such notice has been so delivered.

There was a suit filed in a magistrate's court without compliance with the provisions of section 60. The defendant's objection to the suit was overruled by the trial magistrate. In a successful appeal to the Zanzibar High Court, Windham, C.J., stated:

> ... I must hold that the learned trial magistrate erred in overruling the appellant's objection, raised at the outset of the hearing, that section 60 of the Civil Procedure Decree applied and that by reason of the respondent's admitted non-compliance with it, the action was not maintainable. The appeal is allowed with costs, the ruling of the learned magistrate is set aside, and I hold that by reason of the non-compliance the suit was wrongly instituted and is not maintainable and must be dismissed with costs.

The position in Mahambi's case is essentially at par with our present appeal. We are satisfied that since the provisions of section 97 of the Local Government (Urban Authorities) Act, 1982 apply to the suit in question, non-compliance with it renders the suit unmaintainable. The court below ought therefore to have dismissed the suit with costs.

In the final analysis therefore, we are bound to allow this appeal on the preliminary points raised at the commencement of the appeal. But

since the appellant is also to blame for instituting civil case No. 46 of 1986 in a wrong forum, he is not entitled to recover the full costs of this case. However, bearing in mind the appellant's strenuous efforts to appeal against the preliminary ruling of the court below, efforts which would have undoubtedly saved costs if not resisted by the respondents, we think it is just that the appellant be entitled to be paid by the respondent ¾ of the costs of the case both in this court and the court below.

The appeal is hereby allowed with costs on the terms stated above. We order accordingly.

CONRAD BEREGE *v.* REGISTRAR OF COOPERATIVE SOCIETIES AND THE ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Lugakingira, J.)

MISCELLANEOUS CIVIL CAUSE No. 35 OF 1990

Civil Practice and Procedure – Proceedings against a corporate body – Court action against the decision of a meeting of an organ of a cooperative union – Whether proceedings may be instituted against that particular organ

Civil Practice and Procedure – Non-joinder of parties – Whether an essential party not joined to an action may be joined at the stage of formulating the judgment – Order I rule 10(2) of the Civil Procedure Code 1966

Administrative Law – Jurisdiction of an administrative body – Requirement of quorum – Special General Meeting of Cooperative Union transacting business and making decision without having the prescribed quorum – Whether the meeting had jurisdiction to make valid decisions

Natural Justice – Right to be heard – Committee served with notice of intention to dissolve it fails to deliver its defence to the Registrar as directed – Whether that failure amounts to forfeiture of the Committee's right to be heard – Section 106 of the Cooperative Societies Act 1982

Administrative Law – Prerogative Remedies – Certiorari – Whether certiorari is available automatically upon proof of grounds for judicial review – Factors to be considered by court in deciding to grant certiorari or not

Administrative Law – Prerogative Remedies – Certiorari – Practical effect of certiorari – Order of certiorari sought by a party no longer capable of benefiting from it – Whether the court may grant certiorari

Administrative Law – Prerogative Remedies – Certiorari – Practical effect of certiorari – Order of certiorari protecting abstract legality without any tangible benefits – Order of certiorari likely to lead to prolonged dispute and endless litigation – Whether the order will serve public interest and the court should grant it

The applicant was the chairman of the Managing Committee of the Morogoro Region Cooperative Union (1984) Ltd (hereinafter "**the Union.**") In October 1989 the 1st respondent suspended the committee and appointed a caretaker committee in its place. This decision was *ultra vires* and was quashed by the High Court in March 1990, following a successful application by the applicant, who then resumed office along with his committee. Almost immediately, however, the 1st respondent served them with a notice to dissolve the committee, and required them to show cause why they should not be dissolved by submitting their defence in writing to him, the 1st respondent, within 7 days; the notice contained a list of allegations against the committee.

The committee did not submit their defence to the 1st respondent within the 7 days given but instead wrote a letter indicating that they would submit their defence at the special general meeting of the Union summoned by the 1st respondent specifically to consider the accusations against them. The applicant and his committee turned up at the special general meeting and their written defence was delivered to the chairperson of the meeting. Their written

defence was, however, not considered because the special general meeting was advised by the 1st respondent that since the defence had not been delivered to him, it would be contrary to law and procedure for it to be delivered at the meeting. A suggestion to allow the committee to defend themselves orally at the meeting was rejected. The meeting then voted to dissolve the committee, and instituted a new caretaker committee.

The applicant then brought this application for certiorari, on the grounds of want of jurisdiction and breach of natural justice. Among matters that transpired at the commencement of the hearing there were arguments regarding whether the Registrar of Cooperative Societies and the Attorney General, the 1st and 2nd respondents respectively, were properly joined as the respondents, and whether the special general meeting of the Union was not the one that should have been cited as the respondent.

Held:

(i) The role of the 1st respondent at the special general meeting that dissolved the applicant's committee was so pervasive and critical that it was decisive in the deliberations and decisions of that meeting; there was, therefore, justification to join him, and the Attorney General along with him, as respondents;

(ii) The special general meeting was, just like the managing committee, an organ of the Union, a body corporate with power to institute and defend legal proceedings; the decision of that meeting was the decision of the Union and it is the Union, therefore, that should have been joined as a party to the proceedings;

(iii) As the law, order I rule 10(2) of the Civil Procedure Code 1966, allows the court at any stage of the proceedings to add as a party a person who ought to have been joined but was not joined, it is open to the court to add the Union as the 3rd respondent at the stage of formulating the judgment;

(iv) As the special general meeting of the Union did not realize the quorum prescribed by the Union by-laws, the said meeting had no jurisdiction to transact business and its decision to dissolve the applicant's committee was void;

(v) As there was no provision under any law requiring the appellant's committee to deliver its defence or objections to the 1st respondent, there was nothing improper for the committee to deliver its defence to the special general meeting itself;

(vi) In the circumstances of this case, in which the relationship between the appellant's committee and the 1st respondent was clearly hostile and confrontational, and the committee informed the 1st respondent of their intention to present their defence not to him but to the special general meeting, and they actually delivered it to the meeting's chairperson, and also presented themselves at the said meeting ready to defend themselves, there can be no justification to say that they had no intention to defend themselves simply because they did not deliver their written defence to the 1st respondent; therefore, the proceedings of the special general meeting were also void for breach of natural justice;

(vii) Although a decision made without jurisdiction or in breach of natural justice is void, it does not always follow that certiorari shall issue to quash it; in deciding whether to issue certiorari or not, the court will consider a number of factors including the conduct of the applicant, the possibility of implementing the decision, whether any useful purpose will be served by it, and even the practical consequences of the order;

(viii) The applicant, while the case was pending in court, lost the qualification for him to continue holding office as chairman of the Union's managing committee; if certiorari is granted he cannot resume office as chairman due to lack of qualification, and there will be a vacuum in the Union's management;

(ix) An order of certiorari would not be in the public interest in this case as it would only prolong the dispute that already has adversely affected the functioning of the Union and its 422 member societies and, on the other hand, it will not give any tangible benefits to the applicant.

Application for certiorari refused

Cases referred to:

(1) *Jetindra Tagore v. Bejoy Chand Mahatap* (1905) 32 Cal. 483

(2) *The Duke of Bucclouch* [1972] P. 201

(3) *R., v. Nicholson* [1899] 2 Q.B. 455

Mr. Mchora and *Mr Semgalawe,* for the Applicant

Mr. Werema and *Mr Salula,* for the Respondents

RULING

(Delivered 10 January 1991)

Lugakingira, J.: This was an application for certiorari brought by Clement Conrad Berege (hereafter **the applicant**.) The applicant was chairman of the Managing Committee of the Morogoro Region Cooperative Union (1984) Ltd., but this committee was dissolved on 12 April, 1990 by a decision of the Union's Special General Meeting summoned by the Registrar of Cooperative Societies, the first respondent to this application. The Attorney General was joined as second respondent in his capacity as Legal Advisor to the Government and its departments. In summary, the applicant, who was represented by Mr. Mchora and Mr. Semgalawe, contended that the Special General Meeting acted without jurisdiction and/or wrongly exercised jurisdiction, and that the procedure followed violated the rules of natural justice. He sought to have the decision

quashed. The respondents, represented by Mr. Werema and Mr. Salula, resisted the application. At the commencement of the hearing they also raised a preliminary objection centering on joinder which I promised to dispose of in the course of this ruling. I desire to do so at this stage.

In arguing the objection Mr. Salula contended that neither of the respondents was connected with the decision to dissolve the applicant's committee, it having been made by the Special General Meeting.

He submitted, therefore, that the Special General Meeting, rather than the present respondents, should have been joined in the application. He argued further that the order of certiorari, if granted, could not be effected against the respondents since they were not a party to the decision complained of. I understood him to mean that the order could not be enforced against the Special General Meeting since it was not a party to the application. In reply Mr. Mchora argued that the Special General Meeting was contrived, summoned and controlled by the first respondent so much so that it was his meeting. He seemed to suggest but without saying so, that the decision of the meeting was the decision of the first respondent. In general, he submitted that the two respondents were the legal custodians of the affairs of the Union and the most effective parties, even if there could be others who could have been joined.

I found all these arguments very much entertaining; but I intend to keep my response brief. First of all, as stated in the applicant's chamber summons and later confirmed by evidence, the decision to dissolve the applicant's committee was indeed made by the Special General Meeting although, initially, the first respondent proceeded under powers vested in him by s.106 of the Cooperative Societies Act, 1982. But it must be said in fairness to the applicant's side, and I will subsequently show, that the role of the first respondent at the meeting was so pervasive and critical as to be decisive in the deliberations and decisions of the meeting. In the peculiar

circumstances of this case, therefore, I think there was justification for joining the first respondent. It would not have been enough merely to have him as a witness; there are certain matters to which his personal accountability demand his being joined. Once this position is taken, the joinder of the Attorney-General cannot be seriously questioned and I need say nothing on the matter. On the other hand, however, I find it difficult to agree that the Special General Meeting, although responsible for the contentious decision, was the body properly to be joined either alone or jointly with others. The Special General Meeting is an organ of the Union in the same way as the Managing Committee or the individual officers of the Union. Upon registration a union becomes a body corporate with power to institute and defend suits and other legal proceeding and, by the nature of things, those suits and legal proceedings can only be such as are prompted by the actions and omissions of the Union organs and individual officers. In my view therefore where the decision of a union's special general meeting is in question, the proper party to join in action is the union itself rather than the meeting.

In the instant case I have already said that the first respondent was properly joined considering the role he played. But I have also said that of the decision to dissolve the applicant's committee was in fact that of the Special General Meeting. It follows in my view that Mr. Salula was correct in insisting that there was a non-joinder. But it also follows from what has gone by that the party to join is not the Special General Meeting but the Morogoro Region Cooperative Union (1984) Ltd. It is not too late at this stage to remedy the situation although there was no application for joinder offered by either side. In accordance with the provisions of 0.1, r.10(2) of the Civil Procedure Code, 1966, the Court may, at any stage of the proceedings, either upon or without the application of either party, order that the name of any person who ought to have been joined, be added. In the Indian case of *Jetindra Tagore v. Bejoy Chand Mahatap* (1), it was held that the expression at any stage of the

proceedings meant at any time during the pendency of the suit and that there was a pending litigation until the Court signed the final decree. Similarly, in construing a similar English rule, Fry, L.J. said in *The Duke of Bucclouch* (2) at 212:

> I base my decision upon the words 'at any stage of the proceedings.' It has been argued that the rules do not apply after final judgment. They apply, in my opinion, as long as anything remains to be done in the case.

In that case judgment was already passed and there remained only the assessment of damages. The Court upheld the addition of the right plaintiffs. I have no doubt that the law in this country reflects the same position. In the matter before me a decision on the application has not even been reached but is in the course of formulation. It is therefore available to add the name of the party responsible for the contentious decision and I accordingly add the Morogoro Region Cooperative Union (1984) Ltd. As the third respondent to the application. I am particularly encouraged to do so because the evidence adduced for the defence was substantially in defence of the Union's Special General Meting. To that extent, therefore, Mr. Salula's objection succeeds in part.

I now turn to consider the substance of the application. It was stated at the beginning that the action alleges want of jurisdiction or abuse of it, and failure of natural justice. That is just a summary. To appreciate the dimensions of the dispute it is necessary to recount the events at some length.

On 23 October, 1989 the applicant's same committee was suspended by the first respondent purporting to act under s. 106 of the Cooperative Societies Act, who also appointed a care-taker committee. For the purpose of this ruling it is sufficient to set out the provisions of sub-section (1), and it states:

106. (1) if the Registrar is of the opinion that the committee of any registered society is not performing its duties properly he may, after giving an opportunity to the committee to state its objections, if any, to its dissolution, and after considering such objections at a general meeting of the society summoned by the same or subsequent order –

(a) direct the society, within such time as may be specified in the order, to elect a new committee in accordance with the by laws of the society, or

(b) appoint a fit and proper person or two or more of such persons to assume all the functions of the committee and to manage and administer the affairs of the society and may from time to time remove or replace any person so appointed:

Provided that in the exercise of his powers under this paragraph he shall consult the Secretary General.

It turned out that the first respondent acted *ultra vires* the provisions cited for he had power to dissolve, but not to suspend, a committee. It also turned out that he appointed the caretaker committee without consultation with the Secretary General of what is called the "apex organization," indeed there was no such organisation. Accordingly, the present applicant applied to this Court for certiorari to quash the decision of the first respondent and the application was allowed and the order granted on 17 March, 1990 in Miscellaneous Civil Application No. 174 of 1989.

Two days later, on 19, March, the first respondent served or sought to serve a number of documents upon the applicant and his committee, but I need specifically refer to two only: a letter Ref No. SMU/C/C.90 of 19 March (part of Exh. P8) in which he informed them that following the Court's decision they could resume their duties; and a letter of even reference and date (Exh. P2) in which he informed

them that he intended to dissolve their committee pursuant to s.106 and required them to show cause within seven days why their committee should not be dissolved. The letter also set out in five pages a litany of allegations against them. It was common ground that they resisted service upon them of Exh. P.2 until 30 March after the intervention of the Attorney-General and their advocate Mr. Mchora. Meanwhile, on 28 March, the first respondent summoned a special general meeting of the Union to be held on 12 April, the business of which was, per Exh. P5, to consider the accusations against the applicant's committee and their defence thereto. On 30 March the applicant wrote to the Assistant Registrar of Cooperative Societies at Morogoro praying for the postponement of the meeting to a later date to enable his committee to meet and discuss the issues before them, and on 2 April he wrote to the Registrar indicating that his committee would deliver a joint defence at the meeting. Although the former Registrar, Mr. Flavian Tuniga denied receiving any of these communications, he conceded to hearing of their existence from members of his staff. The special General Meeting took place as planned on 12 April. The applicant and his committee were all in attendance and a copy of their written defence was duly delivered to the chairperson. What transpired from the very start to the finish of the meeting are the matters giving rise to the present application and I prefer to bring them out in direct juxtaposition to the grounds of complaint.

As already stated one of the grounds of complaint was that the Special General Meeting acted without jurisdiction. In arguing this issue, however, Mr. Mchora appears to have inclined more, if not exclusively, to the view that the meeting had no power to dissolve the applicant's committee since, in Mr. Mchora's understanding, this was a meeting summoned under s. 106 of the Cooperative Societies Act. It will now be recalled that under s. 106(1) the power to dissolve a committee is actually vested in the registrar. I think, however, that Mr. Mchora's impressions of the provision appear to be narrow for

the Registrar is not obliged to dissolve a committee if he summons a meeting under s. 106, but he may do so after considering the committee's objections, if any, at such a meeting. This provision should hence not be read in isolation but should be read in conjuction with rule 24(4) of the Cooperative Societion Rules, 1982, which provides, *inter alia*, that the Registrar may direct what matters shall be discussed at a meeting summoned by him; further, that such meeting shall have all the powers and be subject to the same rules as a meeting called in accordance with the by-laws of the society.

I can find no legal justification, and none was cited to me, for the proposition that the Registrar cannot proceed as provided by rule 24(3) where he summons a meeting under s. 106. But, what is more, the Registrar did not in this case summon the meeting pursuant to s. 106. This provision was cited by him only in connection with the allegations (Exh. P2) served on the applicant's committee. As regards summoning of the meeting as such (Exh. P5), the Registrar actually cited rule 24(3) and the by laws of the Union. I am of the view that the fact of serving written allegations upon the committee under s. 106 did not preclude the Registrar from summoning the meeting pursuant to rule 24(3). On the other hand, this rule does not provide for the manner in which the Registrar may direct what matters to be discussed at the meeting. I think that the notice of the meeting in which was also se t out the agenda to be discussed was sufficient and effective direction for the purpose of the rule. I am therefore unable to agree with Mr. Mchora that, from this point of view, the meeting usurped jurisdiction.

I think, however, that the issue of jurisdiction may be considered from a different standpoint – the attendance at the meeting. In that regard a different picture emerges. A tribunal may have jurisdiction to dispose of the subject matter but this jurisdiction may be conditioned upon the existence of a state of things, e.g. the realization of a quorum. Where the tribunal embarks upon its business without such a quorum, its decisions would be void. In this case, rule 23 of the Union by laws

provides for the presence at a general or special general meeting of the delegates or their substitutes of at least two thirds of the affiliated societies in order for any business to be transacted. Before the meeting under consideration was officially opened Mr. Tuniga spoke on the required quorum and I will, for ease of reference, quote from the minute (Exh. P29).

> *Akiendelea alisema ili Mkutano Mkuu maalum uwe halali ni lazima kuwepo na mahudhurio yasiyopungua theluthi mbili (?) kutoka kwa Wajumbe au wawakilishi wa vyama wanachama wa Chama Kikuu kama ilivyo kifungu 23 cha masharti ya MRCU (1984) Ltd. Idadi ya wananchama wa Chama Kikuu ni 422. Ili mkutano uwe halali Tunahitaji idadi ya wananchama 281. Mrajisi aliwatangazia wajumbe kwamba idadi ya mahudhurio imefikia wajumbe 345 kwa hali hiyo Mkutano ni halali kuanza.*

It is at once clear from the last sentence that the Registrar misdirected the meeting when, instead of referring to *wanachama* (members) he referred to *wajumbe* (delegates). Indeed the number of delegates actually attending was variably put at 349 or 352. Each member society is required to be represented by two delegates, but in this case some societies sent three or more delegates. When one counts the number of societies represented, rather than the delegates attending, one comes up with a figure of 183. But the by law stipulates two-thirds of the society membership in the Union, that is 281 societies, as the quorum. It follows that there was no quorum at the meeting and no jurisdiction to transact any business. From that stand point I agree with Mr. Mchora that the meeting acted without jurisdiction and its decisions were *ipso facto* void. A related argument was that there was wrong exercise of jurisdiction and this referred to the way the caretaker committee was appointed. Having found that the meeting had no jurisdiction at all, I do not have to go into that matter. I will move on to the issue of natural justice.

The rules of natural justice require, *inter alia*, that a person should not be condemned unheard. We have already seen that the applicant and his committee failed to deliver their objections to the Registrar and undertook to deliver them at the meeting. However, the meeting voted to reject the committee the right of defence and this came about this way. After the opening of the meeting the Registrar read out the charges against the committee and claimed that they had committed a criminal offence under s. 169 of the Cooperative Societies Act by refusing (initially) to accept his letters. At this juncture the chairperson, Mrs. Mtoro Katele, asked the applicant to explain why they had not delivered their defence to the Registrar. The applicant gave five reasons including the fact that the time given them (seven days) was too short considering that they had been out of office for five months and the charges leveled against them required research in the Union's records. He explained that the defence was now ready and they were ready to deliver the same. The chairperson then turned to the Registrar to appraise the meeting on the legal position. The Registrar replied that since the defence had not been delivered to him it would be contrary to law, procedure and the by-laws of the Union for the defence to be delivered at the meeting. The chairperson, apparently unsatisfied, still wanted to know whether the committee could nevertheless defend themselves (probably orally) at the meeting. The Registrar replied that he had no objection but it was essential to get the opinion of the delegates to the meeting. A debate hence ensued whether the committee should be permitted to defend themselves or not. The matter was put to the vote and the majority voted not to entertain any defence. I was given to understand that this decision was taken as a "punishment" for the committee's "breach" of the law. Having thus refused them a defence the meeting proceeded to vote the committee out of office and to institute a caretaker committee by acclamation.

In accordance with the rules of natural justice the defendant should, first, be notified of the charges against him. This was done in the instant case. Next, he should be given a fair opportunity to answer

these charges. That is the centre of argument in this case. It was submitted by Mr. Werema that the applicant was bound to submit his defence to the Registrar and that his failure to do so was a flagrant disobedience of a lawful directive. Further on he argued that the failure to submit the defence to the Registrar actually meant that there was no intention to defend. I think that these arguments may be disposed of quickly. First of all, there is no provision anywhere, either in the Cooperative Societies Act, the Cooperative Societies Rules, or the by-laws of the Morogoro Union which obliges the committee to deliver its defence or objections to the Registrar. This requirement may, of course, be implied and might make administrative sense, but it is not a requirement of law. What s.106 expressly provides for is for the Registrar to give an opportunity to the committee to state its objections and to consider these objections, if any, at a general meeting. That being the position, I see nothing improper for the committee to deliver its objections to the meeting. Besides, it does not appear to me to be a breach of any kind for the committee not to deliver any defence, be it to the Registrar or to the meeting. The wording s.106(1) leaves no doubt that it is entirely discretionary to furnish a defence or to furnish none; indeed, none can be forced to defend themselves. I therefore find strange the proposition that failure to deliver a defence can amount to a flagrant disobedience or that it could have criminal connotations as understood at the meeting.

Finally, I think that in the circumstances of this case it cannot be properly said that the committee's conduct amounted to an intention not to reply to the charges. It is apparent that following Misc. Civil Application No. 114 of 1989, which was decided in the registrar's disfavour, a hostile atmosphere came to characterize the relationship between the Registrar's office and the committee. To that end, the committee would not be permitted back into office after the High Court's ruling unless they at the same time accepted the letter announcing the intention to dissolve them again. The situation was thus confrontational and provided fertile ground for a degree of

irrationality. Nevertheless, when the committee finally accepted the letter, which they did at the same time as they were permitted into office, they immediately informed the Registrar of their intention to present their defence at the meeting. Finally, they did in fact deliver a written defence to the chairperson through the Registrar on the meeting day and they did present themselves at the meeting ready to defend. I cannot in the circumstances see justification for the notion that the committee had no intention to defend themselves and for the decision by the meeting to bar their defence. In the final analysis the proceedings of the meeting were not merely void for want of jurisdiction but also for violating a fundamental rule of natural justice. It is perhaps not irrelevant to add that according to Mrs. Mtoro Katele the meeting would have entertained the committee's defence had the registrar directed so.

It now remains to consider one fundamental question, and that is whether certiorari should issue in the light of the above conclusions. The remedy of certiorari is discretionary, in other words, it does not accrue automatically upon successful challenge to the decision of an inferior tribunal. Although a decision made without jurisdiction or in violation of the rules of natural justice is void, it does not always follow that a party adversely affected thereby will be able to have it set aside. In deciding whether certiorari should issue the Court will invariably take into account a number of factors, e.g. the conduct of the applicant in relation to the proceeding, the possibility of implementing the decision, whether any useful purpose would be served, and even the practical consequences of the decision in the light of the peculiar circumstances of each case. In the case before me I understood from the trend of evidence for the respondents and the submissions by Mr. Werema that the applicant's qualification for the grant of certiorari was doubted and there was a remote but discernible reference to the practical consequences of certiorari in the circumstances of this case. I will consider these matters in turn.

The first issue touches on the applicant's position and or status in

the Morogoro Region Cooperative Union (1984) Ltd. The Chairman of the Managing Committee and the other members of the committee are, by virtue of rule 30 of the Union's by-laws, elected from amongst the delegates to the general meeting. The applicant was a member of two primary societies, the Morogoro Region Civil Servants Saving and Credit Cooperative Society Ltd, and the Ujamaa Cooperative Society Ltd. He became a member of the latter society beginning March 1988. It is not known when he acquired membership in the former society. In his evidence the applicant stated that he was appointed into the Managing Committee by virtue of being a delegate of the Ujamaa Cooperative Society Ltd, and that this appointment took place in April 1988. His is not merely amusing; it is additionally confusing. According to the documents tendered as Exh. P.12, the applicant became a member of Ujamaa Cooperative Society Ltd in March 1988 but he was elected a delegate of the society two years later, on 19 April 1990 according to the minutes. However the covering letter of congratulations actually gives 14 April, 1990 as the date of his appointment. Now, if he was appointed a delegate on 19 or 14 April he could not have been in the committee that was dissolved on 12 April, 1990. I must be frank, indeed, that I doubt the genuineness of the "minutes" comprised in Exh. P.12.

One thing I am bound to accept, in the absence of evidence to the contrary, is that the applicant became a member of Ujamaa Cooperative Society Ltd since 1988 and remains such a member. How then did he find his way into the Managing Committee which he actually headed even before 1988? The irresistible answer is that he was a delegate of the Savings and Credit Society of which he was also chairman. Membership to that society is open to civil servants only and the applicant was an accountant in the office of the Regional Development Director. It may be asked why the applicant preferred to claim that he was a delegate of Ujamaa Cooperative Society when he ought to have been a delegate of the Savings and Credit Society. The answer is that he was dismissed from the civil service from 19

October, 1990 and the dismissal automatically terminated his membership in the Savings and Credit Society. According to rule 131(1)(g) and (h) of the Cooperative Societies Rules, a member of a committee ceases to hold office if he ceases to be a member of the society or if he ceases to be a member of the primary society which he represents in the secondary society. Hence following the applicant's dismissal from the civil service not only did he cease to be member and chairman of the Savings and Credit Society, but he also ceased to be a member of the Managing Committee of the Morogoro Region Cooperative Union (1984) Ltd.

From the foregoing analysis the question that arises is whether the applicant has anything to gain from the grant of certiorari. If the order is granted it will not enable him to resume office as chairman and member of the Managing Committee because he has, since 19 October, 1990, been disqualified to hold that office. He can of course later find his way back through the Ujamaa Cooperative Society, but that is for the unknown future and has nothing to do with the stark realities of the present. In short, the applicant's interest in the application is presently no more than that of any other ordinary member of a primary society in Morogoro Region. But a court is in practice unlikely to allow an application for certiorari unless it has been made by someone whom it regards as a person aggrieved, and persons aggrieved have been defined as those who have a peculiar grievance of their own beyond some grievance suffered by them in common with the rest of the public. See *R. v. Nicholson* (3). I concede that at the time the applicant filed the application he had a grievance of his own beyond the grievance, if any, suffered by the thousands other Morogoro cooperators. Presently, however, he has no such grievance and is thus disabled from moving the court to exercise its discretion in his favour.

Secondly, there are the practical consequences to consider if the prayer for certiorari were granted in this case. This issue has two sides to it. The first is interconnected with what has just been discussed

and may be stated briefly. If certiorari is granted it would result in an awkward situation, a vacuum in the Union's management, for the applicant is no longer to resume his office. Considerable difficulties would thus be created in addition to the inevitable exercise to normalize the position. Secondly, to grant certiorari in this case would only assuage the conscience and pride of a single person, the applicant, perhaps also his fifteen colleagues, at the expense of the thousands of cooperators in Morogoro Region. I believe I am correct in saying that the cobbler on the pavements of Morogoro, the tailor in the winds and dusts of Gairo, and the peasant in the valleys of Kilombero – all those and others who account for the 422 primary societies in the region – have absolutely nothing to gain from the dramas and orders in these proceedings. On the contrary, I dare say that they stand to lose and have already lost greatly thereby.

It was impressed upon me that the decision to dissolve the applicant's committee was taken because it had mismanaged the Union's affairs. In this application I am not called upon to say whether that is true or untrue. But what is undisputed is that following the ouster of the applicant's committee in October 1989, its reinstatement on 30 March, 1990, its ouster again on 12 April, and its re-instatement again by this Court's interim order of 19 May, have adversely affected the functioning of the Union and disrupted economic activity in the region. If certiorari is granted a new exercise to dislodge the committee appears inevitable, and there is no guarantee that still another application might not result. In organized human society the rights of the community take precedence over the rights of the individual member, and this is the more so where the rights of the individual derive from abstract legality bereft of tangible benefits. There should also be an end to litigation. It is the duty of the Court to ensure that disputes are brought to finality but not to permit the risk for endless litigation. It is hence apparent that certiorari would in the circumstances of this case be against the broader interests of the public.

For all I have endeavored to state, and despite holding that the

decision of the Special General Meeting was void, I refuse to grant certiorari. It follows that the interim order made on 19 May 1990 is discharged and the caretaker committee led by Mr. Onasia Kisanga are authorised forthwith and peacefully to assume the duties of the Managing Committee until one is instituted according to the Union's by-laws.

BENSON KIBASO NYANKONDA @ OLEMBE PATROBA APIYO *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MWANZA
(Makame, Ramadhani, JJ.A., and Mapigano, Ag.J.)

CRIMINAL APPEAL No. 159 OF 1990

(From the decision of the High Court of Tanzania at Mwanza, Sekule, J., dated 26th October 1990, in Criminal Sessions Case No. 28 of 1990)

Evidence – Identification Parade – Identification of accused person by way of identification parade – Value of identification parade proceedings where the identifying witness is not called to testify in court – Sections 164(c) and 166 of the Evidence Act 1967

The appellant was convicted of murder. The conviction depended largely on the evidence of PW.8 who identified the appellant at an identification parade conducted more than twenty months after the witness had seen him for the first (and only) time. The witness said he had seen the appellant in the company of two other men, one of whom was a relative of the witness. It was at night but

they had sat for quite a while in conversation around a table in the glean of a lantern and a meal was served to them. Another witness who had been present at the conversation was also called to the identification parade but died before he could testify in court. The main contention at the hearing of the appeal concerned the propriety of the identification parade.

Held:

(i) Identification parade proceedings are merely investigatory and extra-judicial in nature; their outcome has no independent probative value but can only corroborate the evidence given in court by the identifying witness;

(ii) If a witness at an identification parade is not called to testify in court there is nothing to corroborate or contradict, and no occasion for introducing the parade proceedings into evidence; therefore, in relation to the witness who died before he could testify in court, the identification proceedings were inadmissible.

Appeal dismissed

Mr. *Nasimire,* for the Appellant
Mr. *Mapunda,* State Attorney, for the Respondent

JUDGMENT OF THE COURT

(Dated 14 June 1991)

Mapigano, Ag. J.A.: Benson Kibaso Nyankonda, also known as OLEMBE PATROBA APIYO, has appealed from the judgment of the High Court at Mwanza, dated 26/10/90, in which the learned judge, Sekule, J., convicted him of the murder of ARNOLD SWAI and condemned him to death. On his behalf, Mr. Nasimire, learned advocate, filed two grounds of appeal but dropped one in the course of his address before us. The ground argued pertained exclusively to the proceedings

that took place at an identification parade held at the Mwanza Central Police Station on 3/8/88. Mr. Mapunda, learned state attorney, appeared fore the respondent Republic and he vigorously supported the judgment of the High Court and urged the dismissal of the appeal.

ARNOLD SWAI died on or about 1/9/85 most probably in the environs of the Mwanza Municipality, and his was a planned brutal death. The deceased resided at Nyamanoro in the Municipality and he owned a Peugeot car which he operated as a cab. His base was at the New Mwanza Hotel where he was last seen alive on Sunday 1/9/85 in the afternoon. He went missing until 4/9/85 when his corpse was discovered at Kisesa, lying in a trench. His limbs were bound up and his car was missing and is yet to be recovered.

It is an irresistible inference that the deceased was robbed of the car by bandits and that he died at their hands in the course of the robbery. If the testimony of PW 8 Nungu Mugweta Nungu was true, as the High Court believed it was, the bandits drove off the car to Kenya via Musoma.

The appellant was a suspect in the crime. So was one Daudi Samweli Nungu and one George Ogwalo. He was traced and arrested at Bugando in the Municipality on 4/5/87 i.e. twenty months after the killing of the deceased. P.W.5 Inspector Madema who effected his arrest said he had done so upon a tip from his informer. Mr. Nasimire who also defended the appellant at the trial would have had the High Court compel P.W.5 to expose his source, but the trial judge refused to do so. Before us Mr. Nasimire tried to fault the judge's refusal but he later came round to concede that the interests of justice demanded that the identity of such an informer be protected.

The prosecution started, methodically, by calling four witnesses who deposed, *inter alia*, to matters did not form part of the subject transaction but which were relevant under sections 9 and 10 of the Evidence Act, 1967. Those witnesses were the deceased's fellow cabsmen. Two of them stated that they had been hired by three suspicious strangers and they described the features of those people. One, P.W.4 Elilota Daniel Kweka, related how on 31/8/85 he took those strangers to Kisesa and

back to town, how they wanted him to stop the car at a solitary valley on the way back and how and why he refused to stop. The other, P.W.3 Gabriel Shaftael, claimed that one of those three people was in the court, but in anticipation or presentment of an impending fingering at the man in the dock, Mr. Nasimire raised an objection which was sustained by the trial judge.

With that the case against the appellant depended wholly on the correctness of his identification by P.W. 8, which the defence alleged to be mistaken.

P.W.8 was a resident of Busongwe in Musoma District and, if believed, his evidence fully tied the appellant to the murder of the deceased. He deposed to the suspect Daudi Samweli Nungu being his relation, to the said Daudi being an experienced driver and to being a resident of Mabatini in the Mwanza Municipality. He also deposed to Daudi having passed at his home in Busegwe in the first week of September, 1985, at midnight accompanied by the appellant and another man. He started that the three men came in a car, and from his description of that car it is beyond doubt that it was the deceased's stolen cab. He stated that the appellant and the other men were complete strangers to him and that the two exchanged words in the Luo vernacular. He recalled that the appellant was sporting bushy side burns. He and his neighbour James Kirario held a conversation with them around a table in the gleam of a lantern in the course of which a meal was served. He learned from Daudi that the two strangers had hired him to drive them from Mwanza to Nairobi. He said they left at 6 a.m.

The appellant denied any involvement in the murder of the deceased, as he denied each and every allegation of P.W.8 that touched him. He lodged an alibi, albeit belatedly, claiming that he was in Ukerewe, where he had lived with his wife for a number of years, at the time the murder was committed. He described himself as a businessman and a man of consequence in Ukerewe, but we cannot but get the impression that he was one with an adamantine puffed, but pretentious, sense of his own self. He maintained that in Ukerewe he was a member of the District

Defence and Security Committee, which story only the credulous and ill-informed could buy. He boldly told the court that his colleagues in that committee could vouch for his alibi. But he added that he saw no point to call any of them as witness, even while his life was palpably at stake.

P.W.8 identified the appellant at the identification parade on which the appellant stood sporting bushy side burns. His neighbour James Kirario was the only other witness called onto that parade, but unfortunately he died before he could testify. It is by no means clear why P.W.3 and P.W.4 were not called as witnesses at the parade. The appellant admitted that P.W.8 identified him without a moment's hesitation, but he contended that justice was not done in the identification proceedings.

The trial judge and the assessors were satisfied that P.W.8 had sufficient opportunity to identify the appellant at Busagwe, considering the time he had the appellant under observation at close distance under a lantern illumination. They were also satisfied that the identification parade was conducted properly. As mentioned above, James Kirario did not give evidence. The learned trial judge nevertheless stated, more than once, that "the identification of the accused by P.W.8 and James Kirario at the parade as having been one of three people who passed at P.W.8's home with a taxi, pugeout 504, with taxi side number "100" was reliable and could in my view be safely acted upon." We respectfully agree with Mr. Nasimire that in relation to James Kirario the judge's finding was unfortunate and clearly erroneous.

It is needful to underscore the point that identification parade proceedings are basically testing or investigatory and extra-judicial in nature. The outcome of such a parade has by itself no independent probative value. At the highest it can only corroborate the evidence given by the identifying witness in court under section 166 of the Evidence Act, or contradict the statement of the witness in court under section 164(c) of that Act. If a witness is not called there is thus nothing to corroborate or contradict and, accordingly, there is no occasion for introducing the parade proceedings into evidence, let alone considering them. So in relation to James Kirario the parade proceedings were inadmissible and should

not have been taken into account at all. We are satisfied however that the flaw was just a speck in an otherwise well-reasoned judgment.

As we have observed at the outset, the appeal is wholly directed at the identification parade, that is, the manner in which the parade was conducted, and Mr. Nasimire has pointed out a number of shortcomings or circumstances which he said threw suspicion on the conduct of the police and the memory of P.W.8. Mr. Nasimire accordingly submitted that the identification of the appellant was not satisfactory and that the conviction was unsafe.

The propriety of the parade was also urged forcefully before the High Court and from the nature of the criticisms which were raised we pause to wonder why Mr. Nasimire did not move the court to view the locus. We have to keep in mind, however, that it is always obligatory on a court to subject the evidence relating to such parades to close and careful scrutiny.

That parade, memorandum or "register" of which was tendered as exhibit P.1, was composed of ten persons including the suspect, i.e. the appellant. It was conducted by P.W.6 Inspector Azuberi Elias, and P.W.7 Corporal Shaban was in charge of the two witnesses before they were called onto the parade. P.W.8 was the first witness to be called and by all accounts the parade was held at the back of the Central Police Station.

The first criticism made by Mr. Nasimire was in respect of the memory of P.W.8; Mr. Nasimire wants us to consider whether an intervening period of thirty-five months had not dimmed the memory of this witness, and properly so. Indeed in our view the memory of the witness should also be considered in relation to his evidence before the High Court.

In support, Mr. Nasimire referred to P.W.8's admission that he had told the police that he was not certain if he could identify the two strangers who came to his home with Daudi. Learned counsel had raised the same matter in his submissions in the High Court, but the judge appears to have accepted P.W.8's explanation that he was then "in fear of police." This is what the judge stated:

> I am aware, the identification parade was held after a long time from the time P.W.8 hosted these guests. But having stayed with these guests for that long, and the unusual time they arrived at this home, i.e. very late at night and the taxi as well as the presence of this relative David Samwel, I am of the considered opinion that these factors must have continued to facilitate their recollection of this event and those people i.e. the accused and his two colleagues. P.W.8's identification of the accused as well as that of James Kirario was therefore not guess work but it was certain.

These words carry some weight, except to the extent that they referred to James Kirario. There is no question that P.W.8 was a witness with a retentive memory, just as there was no question about his honesty. His recall to details was generally good and we think that it was reasonably open to the trial judge to rely on his memory and identification.

The second criticism was in relation to the conflict that obtained in the prosecution case in regard to the place where the two identifying witnesses were located before they were called into the parade. P.W.6 said it was in the office of the R.C.O., P.W.8 said it was outside that office; while P.W.7 said it was in the frauds Office.

The trial judge preferred the testimony of P.W.6 on this point. The judge was of the opinion that while P.W.7 was not a liar it was likely that time had taken its toll on his memory and that his recollection was at fault. But as aforementioned, P.W.7 was the officer in charge of the two witnesses before the parade and he actually escorted them to the parade, and we therefore find some difficulty in concurring in the learned judge's preference of P.W.6's testimony over that of P.W.7. However all the three witnesses testified that there was a road and a building between that place and the parade ground and emphatically denied the suggestion that the identifying witnesses could see the parade from where they were positioned, which was the paramount consideration in the matter of location of the witnesses.

The third criticism was about the evidence of P.W.7 that P.W.6 had hinted to P.W.8 that "there was a person who was suspected to have committed murder" among the ten people lined up. This was not in harmony with the evidence of P.W.6, which the trial judge accepted, namely that all that he did was to ask the witnesses "to see whether there were any of the three people including one Daudi who passed at their home with a vehicle and had some food." This is what he stated:

> The officer conducting the parade told me that I was to walk along the parade from left to right, looking at the people in the parade and if I were to see the people who came at my house I was to touch him at the shoulder. He did not tell me these people were in the parade. He told me to look and see whether they were there.

The witness then made a brief description of the people who were paraded.

Again we think, with respect, that the trial judge, who saw and heard the witnesses, was entitled to accept the word of P.W.6. What's more, it seems to us that even if we were to go by P.W.7's allegation we would say that P.W.6 was telling P.W.8 the obvious, because the idea and spectacle of holding such a parade without a suspect come across to us as pointless and indeed absurd. We would, therefore, hold that the hint in question did not occasion a failure of justice.

The fourth and last criticism was that the nine men who were lined up along with the appellant were markedly different in appearance and outlook. This criticism was founded on the appellant's allegation that he was literally set for an easy picking as he was the only person who was filthy, disheveled and wearing side burns. The appellant thus attacks the trial judge's acceptance of the evidence of P.W.6 and P.W.8 that the nine people were similar to the appellant "in height and general appearance and condition."

P.W.6 stated that it had taken him about fifteen minutes to search for and get the nine people. Mr. Nasimire's incredulity was about the time factor. He argued that it was highly unlikely that P.W.6 could have been able to get nine such people in a matter of fifteen minutes. Against that argument Mr. Mapunda made reference to the evidence of P.W.6 that

many people pass by the police station on their way to and from the port, and this evidence was not contraverted.

In the evaluation of the trial judge P.W.6 and P.W.8 were objective, impressive and reliable witnesses. Given that consideration, along with the facts that the cross-examination of these witnesses in regard to this aspect of the parade was almost floating, and that the suggestion that the appellant was dirty, disheveled and the only man with side burns was not put at all to the two witnesses, the judge dismissed the criticism. We have given the matter a careful and serious consideration and in principle we see no good reason for differing with the learned judge.

This appeal therefore fails and is dismissed.

SEIF SHARIF HAMAD *v.* SERIKALI YA MAPINDUZI ZANZIBAR ("S.M.Z.")

COURT OF APPEAL OF TANZANIA
AT ZANZIBAR
(Nyalali, C.J., Kisanga and Ramadhani, JJ.A.)

CRIMINAL APPEAL No. 171 OF 1992

(From the Ruling of the High Court of Zanzibar, at Zanzibar (Mmilla, R.M., Extended Jurisdiction), dated 28th August 1992, in Criminal Sessions Case No. 1 of 1991)

Constitutional Law – Constitution of the United Republic of Tanzania – Union Matters – Application of Laws enacted by the Union Parliament in Zanzibar – Whether the National Security Act 1970 automatically extended to Zanzibar after "security" became a Union Matter in 1984- Article 64(4) of the Constitution of the United Republic of Tanzania and s.5(1) of the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984

Criminal Practice and Procedure – Director of Public Prosecutions – Powers of the Director of Public Prosecutions in relation to criminal proceedings in the High Court of Zanzibar – Whether the Director of Public Prosecutions, an officer in the public service of the United Republic of Tanzania whose functions are not Union Matters, has ***locus standi*** *in the High Court of Zanzibar – Ss. 89 and 90(1) of the Criminal Procedure Decree 1985*

Criminal Practice and Procedure – Director of Public Prosecutions – Exercise of the powers of the Director of Public Prosecutions in Zanzibar under an Act of the Union Parliament that applies to Zanzibar – Powers of the Director of Public Prosecutions are exercisable by the Attorney General of Zanzibar – Article 54(2) of the Constitution of Zanzibar 1984, s.16 of the National Security Act 1970, s.90(1) of the Criminal Procedure Act 1985, and s.3(4) of the Appellate Jurisdiction Act 1979

Constitutional Law – President – Powers and functions of the President of the United Republic – Discharge of the functions of the President through public officers – Whether the Director of Public Prosecutions as such public officer has authority to act for the Union President before the High Court of Zanzibar – Article 34(3) of the Constitution of the United Republic of Tanzania 1977

Criminal Practice and Procedure – Appeals – Appeals against interlocutory orders in criminal proceedings – Appeal brought under s.7 of the Appellate Jurisdiction Act 1979 is competent

The appellant was charged, before the High Court of Zanzibar, with failure to return classified documents to the relevant authority and withholding and retaining classified documents under s.4(1)(d) of the National Security Act 1970. When hearing started, three preliminary issues were raised: whether the National Security Act 1970, being an Act of the Union Parliament, extended in its application to Zanzibar; whether the said Act was operative in Zanzibar although it had never been tabled before the Zanzibar House of Representatives as provided for under article 131(2) of the Constitution of Zanzibar 1984; and

whether the Director of Public Prosecutions ("DPP") of the United Republic was the proper officer to give consent to the prosecution of the appellant, and to file information, in the High Court of Zanzibar. The High Court resolved all three issues in the affirmative. The appellant appealed against that decision.

Held:

(i) "Security" became a union matter in 1984 when the Fifth Constitutional Amendment Act 1984 amended item 3 of the 1st Schedule to the Constitution of the United Republic of Tanzania by extending its content from "Defence" to "Defence and Security;" by that amendment the National Security Act 1970 was extended to Zanzibar by virtue of s.5(1) of the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984 which provides that after the said constitutional amendment all laws shall be construed with such modifications and adaptations as may be necessary to bring them into conformity with the said amendment;

(ii) Although the National Security Act 1970 has not been tabled before the House of Representatives as provided under article 131(2) of the Constitution of Zanzibar 1984, it nevertheless extends to Zanzibar by way of construction as mandated by s.5(1) of the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984;

(iii) The High Court and courts subordinate thereto, and the procedure and processes in those courts, are not union matters; the functions of the DPP, which are provided in s.90 of the Criminal Procedure Act 1985, are all procedural and are not be union matters;

(iv) Where legislation of the Union Parliament that also applies to Zanzibar is silent about the procedure to be followed in case of litigation or prosecution in the High Court of Zanzibar, then the procedure and officials of that court shall operate;

(v) The Attorney General of Zanzibar, whose functions are articulated in article

54(2) of the Constitution of Zanzibar 1984, is the officer of the High Court of Zanzibar competent to consent to and to institute prosecutions under the National Security Act 1970 in the High Court of Zanzibar; the DPP was not competent to consent to the prosecution of the appellant and to file information in the High Court of Zanzibar;

(vi) The DPP, though indeed a public officer who acts for the President of the United Republic as provided for under article 34 of the Constitution of the United Republic of Tanzania 1977, has a mandate limited to non-union matters relating to Tanzania Mainland and he does not have authority to represent the President of the United Republic before the High Court of Zanzibar;

(vii) While there cannot be criminal appeals to the Court of Appeal on interlocutory matters, this appeal is nevertheless competent as it relates to the interpretation of the Constitution and was brought under s.7 of the Appellate Jurisdiction Act 1979.

Appeal allowed

Cases referred to:

(1) *Himid Mbaye v. The Brigade Commander of Nyuki Brigade,* [1984] T.L.R. 294

(2) *Shabani Khamis v. Samson Goa and the Commissioner of Police,* High Court of Zanzibar at Zanzibar, Civil Case No. 18 of 1983 (unreported)

(3) *Khalfan Abeid Hamad v. Director of Civil Aviation,* High Court of Zanzibar at Zanzibar, Civil Case No. 20 of 1986 (unreported)

(4) *Alois Kula and Another v. Republic,* CAT – Criminal Appeal No. 121 of 1991 (unreported)

(5) *Seif Sharif Hamad v. S.M.Z.*, [1992] T.L.R. 43

Mr. Mchora and *Dr Lamwai,* for the Appellant
Mr. Shaidi and *Mr Malaba,* for the Respondent

JUDGMENT OF THE COURT

(Dated 24 February 1993)

Ramadhani, J.A.: The appellant, Seif Sharif Hamad, stands charged under the National Security Act, No. 3 of 1990 (hereinafter referred to as **the Act**) in sessions case No. 1 of 1991. Two counts have been preferred against him under section 4(1)(d): failure to return classified documents to relevant authority: and the second court is withholding and retaining classified documents.

It is one of the most protracted proceeding. The appellant was searched and presumably arrested on 10th May, 1989. After a preliminary inquiry the case was committed to the High Court of Zanzibar and the case file came before His lordship the chief justice on 26th July, 1991. The appellant has had a total of about six defence counsel because of the withdrawals of the advocates for one reason or another. Eventually on 2nd June, 1992, the trial took place without defence counsel before Mr. Mmilla, learned Regional Magistrate (extended jurisdiction). When the case re-opened on 17th June the appellant had two new advocates, Mr. Mchora and Dr. Lamwai, who made an application under Section 233 of the Criminal Procedure Decree (Cap. 14). There were three basic issues raised. First, whether or not the Act extends in its application to Zanzibar. Second, whether the Act is operative in Zanzibar in view of the provisions of Article 131(2) of the Constitution of Zanzibar of 1984 (hereinafter referred to as the **Zanzibar Constitution**). Lastly, whether or not the Director of Public Prosecutions of the United Republic (hereinafter referred to as **the D.P.P.**) was the proper authority to give consent to prosecution and to file information in the High Court of Zanzibar.

On 28th August all the three issues were decided positively that is the Act extends to Zanzibar and is operative not with standing Article 131(2) of the Zanzibar Constitution and that the D.P.P. was the proper person. That ruling is the subject matter of this appeal.

The same two learned advocates, Mr. Mchora and Dr. Lamwai

have appeared before us on behalf of the appellant with a memorandum of appeal containing four grounds, which we have treated as five, and five prayers which were vehemently opposed by Mr. Shaidi, learned Principal State Attorney and Mr. Malaba, learned State Attorney, on behalf of the D.P.P.

In the first ground of appeal it was argued that the learned Regional Magistrate had no jurisdiction to declare Act. 131(2) of the Zanzibar Constitution void for being in conflict with Article 64(5) of the Constitution of the United Republic of Tanzania (hereinafter referred to as the Union Constitution).

Dr. Lamwai, who addressed us because his senior, Mr. Mchora, was not feeling well, quoted the learned Regional Magistrate thus:

> On this reasoning, the provisions of section 131(2) of the Zanzibar Constitution, 1984 as well as section 17 (2) of the Interpretation of laws and General Provisions Act, No. 7 of 1984, cannot prevail vis-a-vis the Union Constitution in as much as they are attempting to bar what it has authorized to be applicable to Tanzania Zanzibar, it being for a Union Matter. Since section 64(3) of the Union constitution is to the affect, in part, that if any law enacted by the House of Representatives relates to any matter in Tanzania Zanzibar which is within the jurisdiction of the National Assembly, that law shall be null and void, then the state counsel's submission was quite proper ....

Dr. Lamwai then made two submissions with respect to this first ground. First, he conceded that the learned Regional Magistrate had jurisdiction to interpret Art. 131 or any article of the Zanzibar Constitution since he had extended powers of the High Court but, he warned, the learned Regional Magistrate did not have the jurisdiction to declare any article void. This is because, Dr. Lamwai submitted as his second point, the High Court of Zanzibar has not been clothed with that authority. He pointed out that under Art. 80 of the Zanzibar Constitution only the House of Representatives has the jurisdiction to amend the Zanzibar Constitution.

Mr. Shaidi agreed with Dr. Lamwai that the learned Regional Magistrate had jurisdiction to interpret the Zanzibar constitution. However, he argued that Mr. Mmilla did not declare Art. 131(2) null and void but that the learned Regional Magistrate merely remarked that the state counsel's submission was quite proper."

The second ground of appeal was in the alternative to the first and that was that the learned Regional Magistrate erred in holding that Art. 131(2) of the Zanzibar Constitution is in conflict with Art. 64(5) of the Union Constitution. Dr. Lamwai pointed out that Art. 64(5) of the Union Constitution provides that "*Sheria nyingine yeyote*" that is "any other law" which is inconsistent with the Union Constitution is void to the extent of the inconsistency. He submitted that the Zanzibar Constitution is not such a law as envisaged by that Article and that is because that article is very explicit when it makes a reference to the Zanzibar Constitution apart from the clear fact that a constitution, any constitution, is totally different form an ordinary law. So, Dr. Lamwai contented, Art. 64(5) cannot apply to the provisions of the Zanzibar Constitution, Art. 131(2) of the Zanzibar Constitution included. So, he submitted, the two articles are not inconsistent.

Mr. Shaidi agreed with Dr. Lamwai that there is no inconsistency between the two articles of the two constitutions. However, Mr. Shaidi had a different reasoning from that of Dr. Lamwai which we shall deal with in the fourth ground of appeal.

Dr. Lamwai agreed with the learned Regional Magistrate that the Act was never enacted as of general application to both Tanzania Mainland and Zanzibar. Nevertheless, and as his third ground of appeal, Dr. Lamwai contended that the learned Regional Magistrate erred in holding that the Act was saved by the Constitutional (Consequential, Transitional and Temporary Provisions) Act, 1984, (Act No. 16 of 1984 (hereinafter referred to as Act No. 16). Under this ground Dr. Lamwai advanced two limbs.

In his first line of approach Dr.Lamwai pointed out that the Act was enacted by the Union Parliament in 1970 at which time security was not a Union matter and that remained so until 1984. All that time,

Dr. Lamwai said, Zanzibar first had the Official Secrets Decree, Cap. 18, which was then repealed and replaced by the National Security and Official Secrets Act, 1983 (Act No. 5 of 1983). Dr. Lamwai went further to submit that Art. 64(4) of the Union Constitution provides for three situation in which legislation on a Union Matter will extend to Zanzibar. That article provides:

> (4) No law enacted by parliament in relation to any matter shall apply to Tanzania Zanzibar save in accordance with the following provision:
>
> (a) It is expressly stated in the law that it shall apply to Tanzania Mainland as well as to Tanzania Zanzibar or it is repealing, emending, modifying or replacing a law which is in operation in Tanzania Zanzibar, or
>
> (b) That law is repealing, modifying, emending or replacing a law which was previously in force in Tanzania Zanzibar as well as Mainland Tanzania in accordance with the Acts of Union of Tanganyika and Zanzibar, 1964, or in accordance with a law which expressly stated that it would apply to mainland Tanzania as well as Tanzania Zanzibar, or
>
> (c) The law relates to Union Matters.

Dr. Lamwai argued that Art. 64(4) (a) and (b) are glaringly inapplicable here. This is because the Act does not expressly say that it applies to both parts of the Union, neither does it repeal, amend, modify or replace a law already in operation in Zanzibar, nor a law which was in force in both parts of the Union. Dr. Lamwai said that even Art. 64(4) (c) does not apply in this case. He said that as security was not a Union Matter when the Act was enacted the fact that security was made a Union Matter in 1984 did not automatically extend the Act to Zanzibar in its application. Dr. Lamwai

argued that Parliament had to extend the application of the Act to Zanzibar expressly and, he remarked, that was not done. The learned advocate submitted that this situation was not saved by the provisions of Act No.16.

The reply of Mr. Shaidi was very simple. He said that Art. 64(4) of the Union Constitution provides for three ways in which a law of parliament would extend to Zanzibar in its application. He observed that every one of the three modes was independent of other two and hence the use of the conjunction "or." In the case of the Act, Mr. Shaidi maintained that the provisions of Art. 64(4) (c) of the Union Constitution apply and extend the Act to Zanzibar in its application without any further and other step to be taken. In any case it was his contention that Act No.16 applies and saves the situation.

The fourth ground, in our view, should have been in the alternative to the third ground and should have been as follows: If we hold that the Act applies to Zanzibar either by the operation of Art. 64(4) (c) of the Union Constitution or because it has been saved by Act No. 16, then, it was submitted, it is not operative in Zanzibar since it has not been tabled in the House of Representatives as required by Art. 131(2) of the Zanzibar Constitution.

Dr. Lamwai argued that the tabling of Legislation in the House of Representatives is a condition precedent to its operation in Zanzibar. To fully appreciate Art. 131(2) it is imperative to quote also Art. 131(1) of the Zanzibar Constitution.

> (1) *Hakuna sheria ye yote itakayopitishwa na Bunge la Muungano ambaye itatumika Zanzibar mpaka sheria hiyo iwe ni kwa ajili ya mambo ya Muungano tu na ipitishwe kulingana na malekezo yaliyo chini ya vifungu vya katiba ya Jamhuri ya muungano.*
>
> (2) *Sheria kama hiyo lazima ipelekwe mbele ya Baraza la wawakilishi na Waziri anayehusika.*

Mr. Shaidi, on the other hand, was of the firm opinion that it is inconceivable that the Zanzibar Constitution would dictate terms to the Union Constitution. Mr. Shaidi was of the thought that the former is derivative from the latter. But that was countered by Dr. Lamwai in his reply that the genesis of the Zanzibar Constitution is neither the Union Constitution nor its fore–runner, the Interim Constitution of the United Republic of Tanzania of 1965 but The Constitutional Government and the Rule of Law Decree 1964 (Decree No. 5 of 1964) which was passed on 25th February, 1964, before the Union on 26th April, 1964, and which provides for the enactment of constitutional decrees and eventually the holding of a Constituent Assembly not later than 11th January, 1965 to adopt the Constitution of Zanzibar. However, that Assembly was called on 5th October, 1979.

To return to Mr. Shaidi, he maintained that the tabling of such legislation in the House of Representatives is purely an internal arrangement but should not be taken to be something like 'ratification' of the law enacted by parliament on a Union matter. The learned Principal State Attorney would not venture to suggest the function of such tabling because by doing so, he said, he would be going behind the text of the constitution which Dr. Lamwai had already warned against.

Mr. Shaidi emphasized that Art. 131 (2) does not say that failure to table an enactment renders it inoperative. He distinguished Art. 131 (2) from Art. 131 (3) which clearly stipulates that such a failure has such a result. Art. 131 (3) provides:

> (3) *Pale sheria ndogo inapoundwa kwa muujibu wa uwezo uliowekwa chini ya kifungu cha (1) na (2) cha sheria hii itatumika tu pale itakapotimiza shuruti zote zilizowekwa kwa matumizi ya sheria mama kama ilivyoainishwa katika kifungu hiki.*

Mr. Shaidi said that Art. 131(3) provides that subsidiary legislation

under such an Act will not operate in Zanzibar unless the parent Act was so tabled. But he submitted there is no such express or even implied requirement in Art. 131(2).

It is for this reason that Mr. Shaidi agreed with Dr. Lamwai that there is no inconsistency between Art. 64(5) of the Union Constitution and Art. 131(2) of the Zanzibar Constitution because the latter does not provide an additional requirement over and above these given by Art. 64(4) of the Union Constitution.

The last ground of appeal was that the learned Regional Magistrate erred in law in holding that the D.P.P. could commence criminal prosecution in the Courts of Zanzibar. Dr. Lamwai said that the office of the D.P.P. is a creature of s. 89 of the Criminal Procedure Act 1985 (Act No. 5 of 1985 (hereinafter referred to as the C.P.A)). But, he argued, the C.P.A. does not extend to Zanzibar.

He then posed a question: if the Act is held to extend to and operate in Zanzibar, then who is the proper officer to step into the shoes of the D.P.P.? Dr. Lamwai, true to his profession as a lecturer of law, went ahead to answer himself. He said that s. 3(4) of the Appellate Jurisdiction Act, 1979, as amended by Act No. 16, provides that references to the D.P.P are to be construed as references to a public officer of the Revolutionary Government of Zanzibar who exercises or discharges power of functions in relation to Zanzibar corresponding to those exercisable or discharged by the D.P.P. Dr. Lamwai submitted that the Attorney General of Zanzibar is such a public officer.

Dr. Lamwai went further to challenge the *locus standi* of Mr. Shaidi and Mr. Malaba in opposing this appeal in this Court Holden in Zanzibar.

Mr. Shaidi conceded that the D.P.P is appointed under the C.P.A., which does not extend to Zanzibar. However, he argued that the D.P.P. is a public officer of the United Republic of Tanzania who acts for the President of the United Republic under the provisions of Art. 34(4) of the Union Constitution which provides.

> (4) Subject to the provisions of this constitution, the executive power of the United Republic shall be exercised by the president either directly or through delegation of such power to other persons holding office in the services of the United Republic.

Mr. Shaidi also pointed out that the President of the United Republic is vested with all authority on Union Matters by Art. 34(3) of the Union Constitution which says.

> (3) All executive power of the United Republic with respect to all Union Matters in and for the United Republic and with respect to all other matters in and for Mainland Tanzania is vested in the President of the United Republic.

As an additional argument Mr. Shaidi pointed out that s.19 of the Act requires the D.P.P., and no one else, to give consent to prosecution and to sign a charge sheet. He submitted that that was all that the D.P.P. did and that the conduct of the prosecution was by the Revolutionary Government of Zanzibar.

As for his *locus standi* in this Court when held in Zanzibar, Mr. Shaidi said that it is founded on Rule 31 of the Tanzania Court of Appeal Rules, 1979 (hereinafter referred to as the Rules). He argued that rule 31(1) of the Rules gives an automatic right of appearance to the D.P.P. and that together with his junior they were representing the D.P.P. Then, he continued, under Rule 31(2) as "other legal officers of the state" they have a "right of audience before the Court in all proceedings within the scope of their official duties." Finally, Mr. Shaidi said that under Rule 31(3) every advocate entitled to practice before the High Court has a right of audience. He submitted that the two of them were such advocates as the term advocate is defined in rule (1) to mean "a person who, under Rule 31, has a right of audience before the Court."

For the disposal of this appeal we are of the firm opinion that only

three of the five issues we have set out are decisively necessary. The first is whether or not the Act, after security had become a Union matter, extends to Zanzibar. The second is what is the effect of the non-tabling of the Act in the House of Representatives as provided by Art. 131(2) of the Zanzibar Constitution. Lastly, comes the issue of the authority of the D.P.P. in the High Court of Zanzibar. However, we shall comment on the other issues at the end of this judgment.

As for the first issue there is no dispute that security became a Union Matter in 1984 when item 3 of the First Schedule to the Union Constitution was extended from just "Defence" to "Defence and Security." It is equally settled that nothing was done to the Act after security became a Union Matter. It is abundantly clear then, therefore, that Art. 64(4)(a) and (b) are inapplicable as the authority for the extension of the Act to Zanzibar. We agree with the submissions of Dr. Lamwai on the point, just as Mr. Shaidi did.

The Argument of Mr. Shaidi as to Art. 62 (4)(c) is very attractive but that is as far as we allow ourselves to go. We do not deem it necessary to make a determination on that paragraph because we are of the decided opinion that the Act has been saved by s. 5(1) of Act No. 16. That subsection provides:

> (1) Without prejudices to the repeal, revocation or amendment of any existing law, with effect from the commencement of this Act, the existing law shall continue to be the law of Tanzania after the commencement of the Act except in so far as it is amended, modified, repealed, revoked by competent authority or any provision of it expires after the commencement of the Act. However, **the existing law shall be construed with such modification, adaptations qualifications and exception as may be necessary to bring it into conformity with the provisions of the Act** or as provided in this Act: .... (emphasis added).

It is necessary here to clarify the things. First, "the Act" referred to in

the excerpt quoted above is the Fifth Constitutional Amendment Act, 1984. Second, "this Act" has been used to refer to Act No. 16.

Now, since security has been made a Union Matter by the Fifth Constitutional Amendment Act, 1984, then the national Security Act, 1970, has to be "construed with such adaptations..." as necessary to bring it into conformity with the Fifth Constitutional Amendment Act, 1984, that is to make security a Union matter, and hence extend its application to Zanzibar. So we answer the first issue in the affirmative, that the National Security Act, 1970, extends to Zanzibar by virtue of Act No. 16.

With the approach we have taken the second ground, that of the relevancy of Art. 131(2) of the Zanzibar Constitution, becomes a non-issue. The National Security Act, 1970, extends to Zanzibar because of construction done with such necessary adaptations. Such process of construing or interpreting a statute was not envisaged by Art. 131 of the Zanzibar Constitution. That article deals with enactments which can be tabled in the House of Representatives but not a construction or an interpretation of the kind stipulated under Section 5(1) or Act No. 16.

We now come to the last issue of the *locus standi* of the D.P.P. In the United Republic of Tanzania there are two High Courts: there is the High Court of Tanzania and the High Court of Zanzibar each with its own jurisdiction. In fact the continued existence of the High Court of Zanzibar has been safe guarded under item 6 of the Second list of the Second Schedule to the Union Constitution. Not only that but the High Court of Zanzibar has concurrent jurisdiction with the High Court of Tanzania over legislation which applies to both parts of the United Republic. That is provided by Art. 115(2) of the Union Constitution. That is why the trial of the appellant has been conducted in the High Court of Zanzibar.

The High Court and the courts subordinate thereto are not Union Matters. It obviously follows, therefore, that procedure and processes in those courts cannot be Union Matters.

Now, as already pointed out and not contested, the D.P.P. is established under section 89 of the C.P.A. That legislation, according to the long title, is "to make better provisions for the procedure to be followed in the

investigation of crimes and the conduct of criminal trials." In fact section 89 is in part IV of the C.P.A which deals with "Control of Criminal Proceedings." The functions of the D.P.P are provided in section 90(1) (a) to (c) which are all procedural and hence, as already established, cannot be a Union Matter.

So the question then comes: who in Zanzibar is to perform functions under section 16 of the Act which have been assigned to the D.P.P. The answer is: a pubic officer in Zanzibar who has the same functions as the D.P.P. This is because the National Security Act, as already said, has to be "construed with such modifications, adaptations.... as may be necessary to bring it into conformity with the provisions of the Act" which has emended the Union Constitution and so, in other words, to conform to the Union Constitution. That public officer is the Attorney-General of Zanzibar whose functions, particularly these articulated in Art.54(2) (a) to (c) of the Zanzibar Constitution, are in *peri materia* with the functions of the D.P.P. in section 90(1) (a) to (c) of the C.P.A.

In addition to the foregoing there is the analogy adapted by Dr. Lamwai to s. 3(4) of the Appellate Jurisdiction Act, 1979, where reference to the D.P.P. are required to be construed as references to a public officer discharging similar functions in Zanzibar.

The High Court of Zanzibar had already decided, as far back as 1982, that the conduct of suits in Zanzibar will follow the civil procedure of Zanzibar even where a department or an official of the United Republic is sued. In *Himid Mbayo v. The Brigade Commander of Nyuki Brigade (1),* the defendant was an officer of the Union Government in Zanzibar and one of the issues was whether or not the suit required the consent of the Minister for Justice of the United Republic as provided for under the Government Proceedings Act, 1967. The consent of the Minister was decided not necessary and, instead, a two months notice was served on the Attorney-General as required by the Civil Procedure Decree (Cap. 8). That decision was followed in *Shaban Khamis v. Samson Goa and The Commissioner of Police*

*(2)*and *Khalfan Abeid Hamad v. The Director of Civil Aviation (3).*

We are of the opinion that though those decisions dealt with civil and not criminal procedure, the principle applies equally in criminal matters. Since the High Court of Zanzibar is not a Union Matter then its procedures and officers too are not Union matters. So if legislation of the Union Parliament which applies to both parts of the Union is silent as to the procedure to be followed in case of litigation or persecution in the High Court of Zanzibar for purposes either of consent or instituting or conducting prosecution is the Attorney-General of Zanzibar or such officers appointed by him. The D.P.P. is not such on officer and, therefore, he could not give his consent nor file information in the High Court of Zanzibar. So the proceedings were and are hereby declared to be a nullity.

We do not think it necessary to make a finding on whether or not Mr. Shaidi and his colleague were properly before this Court when sitting in Zanzibar on a matter originating from the High Court of Zanzibar. The determination of this appeal does not depend on that as it has been amply demonstrated above.

Very quickly we would like to dispose of the submissions of Mr. Shaidi that the D.P.P. as a public officer has delegated powers from the President of the United Republic. The President of the Union has, under Art. 34(3) of the Union Constitution, two hats; that of the United Republic for Union Matters and that of Mainland Tanzania for non-Union matters. Under both hats there are public officers with delegated authority. The crux of the matter is under as that hat is any public officer operating. The D.P.P. in this case was operating under the hat of Mainland Tanzania on procedural matters which are non-Union matters and so should not have authority to represent the President of the United Republic before the High Court of Zanzibar.

There are two other matters in which to briefly coal with before we conclude. First, This appeal has deal with an interlocutory matter in criminal proceedings, we had already decided in *Alois Kula and Another v. R. (4),* and we followed that in *Sherif Hamad v. S.M.Z.*

(5) that there cannot be an appeal to this Court on an interlocutory order in criminal proceedings. We have heard and determined this appeal because it is distinguishable from those previous ones. Whereas it could not be seen under what Section of the Appellate Jurisdiction Act, 1979, those two appeals were brought before this Court, this appeal, as it relates to the interpretation of the Constitution, has been brought under section 7 thereof and is therefore competent. We have deemed it necessary to make this observation to clear up any doubts.

The second matter is that a number of very serious issues of law, and constitutional law at that, have been raised and we have articulated them in this judgment. We did not make any decision with respect to them because that was not necessary for the determination of this appeal. But that does not mean or even suggest that the issues raised should be swept under the carpet and be forgotten. That should hot be so and hence this observation, though at the end, is of utmost importance because the points raised could be explosive.

Both Dr. Lamwai and Mr. Shaidi have pointed out textual and contextual undesirable and unhealthy situations in which our two constitutions are. We shall just highlight a few of the points raised: First, Mr. Shaidi pointed out that Art. 98(2)(a) of the Zanzibar Constitution prohibits this Court to hear any appeal concerning the interpretation of the Zanzibar Constitution. We just wonder whether that is in line with Art. 17(1) and (4) of the Union Constitution. Then, what is the import of Art. 131(2) of the Zanzibar Constitution and how does it correspond with Art. 64(4) of the Union Constitution. Lastly, if there is any inconsistency between the two Constitutions, which body has authority to reconcile the two provisions or declare one inappropriate? We may as well point out that the Special Constitutional Court established under Art. 125 of the Union Constitution is not meant for such a role but to give reconciliatory decisions in respect of disputes submitted before it relating to the interpretation or implementation of the Union Constitution (See Art. 126).

We suggest that the appropriate authorities on both sides of the Union should take appropriate measures to harmonize these and other provisions of actual and potential conflicts between the two Constitutions.

The appeal is allowed. The proceedings were a nullity as the D.P.P. does not have authority to act in the High Court of Zanzibar. We order the immediate discharge of the Appellant.

ALFRED ADOLF SHIRIMA *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT ARUSHA
(Nchalla, J.)

CRIMINAL APPEAL No. 36 OF 1993

(From the decision of the District Court of Rombo at Rombo, in Criminal Case No. 44 of 1991)

Criminal Practice and Procedure – Bail – Forfeiture of bail bond – Trial court ordering forfeiture of bail bond without first ascertaining genuineness of the reasons given for the failure of the accused to attend court – Whether proper

The appellant's father was the accused person in the district court. The appellant stood surety to secure his father's release on bail. While out on bail, the accused defaulted appearance in court one day but his surety, the appellant, attended and informed the court that the accused could not attend court because he was sick. Thereupon the trial court magistrate made an order forfeiting the surety bond executed by the appellant in the sum of Shs. 100,000/=. The appellant paid the amount and then appealed against the order of forfeiture.

Held:

The trial court magistrate acted rashly and prejudicially in forfeiting the appellant's surety bond without first ascertaining whether the reason given for the accused's default of appearance was genuine or not. The magistrate ought to have adjourned the proceedings and required the accused to provide evidence of his being sick on the day of default. The order of forfeiture was, therefore, unlawful.

Appeal allowed

Mr. Maruma, for the Appellant

JUDGMENT

(Dated 23 May 1993)

Nchalla, J.: The appellant, one ALFRED ADOLF SHIRIMA, is the son of ADOLF NERINYO SHIRIMA, who was an accused person before Rombo District Court in original Criminal Case No.44 of 1991. During the proceedings in the said original criminal case, the appellant stood surety for his father, the accused, who was then released on bail. It then transpired that on 22/2/1991 the accused, who was still out on bail, defaulted his appearance to the court, but sent his son, the appellant, to inform the trial court that he (accused) was not able to come to court on account of sickness. The appellant truly went to the trial court and informed the trial magistrate in the court about his father's inability to come to court on that day because he was sick.

On hearing the report from the appellant about his father's inability to come to court due to sickness, the presiding magistrate acted with tampers and, indeed, rashly, whereby he immediately made an order forfeiting the surety bond which the appellant had executed in the sum of shs. 100,000/= on account of his father's bail. The trial magistrate made reference to irrelevant considerations to the effect that he had defaulted appearance simply because he had engaged an advocate who had written to the court asking for an adjournment of the same. The

trial magistrate did not act judiciously by adjourning the case and requiring the accused to produce evidence supporting his alleged sickness. The appellant duly paid the amount of shs. 100,000/= which was forfeited from his bond. He paid that amount vide ERV No.516629 of 23/2/1991. A Photostat copy of the said receipt was tendered at the hearing of this appeal, and the same was marked Exhibit P.I. The appellant was aggrieved by the forfeiture order of the trial court, hence this appeal.

Mr. Maruma, learned advocate, represented the appellant in this appeal. Mr. Maruma argued that the forfeiture order of the trial court was premature and, therefore, unlawful. Mr. Maruma submitted that it was incumbent for the trial magistrate in the circumstances to adjourn the proceedings till on a later date, and require the accused to produce evidence to support his sickness on 22/2/1991, when he defaulted his appearance. The trial magistrate acted rashly, without first ascertaining the truth or otherwise of accused's sickness on 22/2/1991. For if it was true that the accused was sick on 22/2/1991, and therefore could not come to court, then neither the accused now nor his surety, the appellant, would be held liable for the default. Consequently, the forfeiture of the appellant's bond would be unlawful. Mr. Maruma called upon this court to quash the said forfeiture order, and order the refund of the forfeited amount of shs. 100,000/= to the appellant.

I quite agree with and uphold Mr. Maruma's submissions that the trial magistrate acted rashly, and therefore prejudicially, in forfeiting the appellant's surety bond without first ascertaining whether or not the appellant's father's default on 22/2/1991 was genuine and justified or not. The trial magistrate ought to have adjourned the proceedings, and should have first required the accused to provide evidence of his sickness which disabled him to appear in court on 22/2/1991. It is only then if no evidence was available to support accused's sickness on 22/2/1991, that the trial court would have been entitled to forfeit both the accused's and appellant's bonds. Since the trial magistrate failed to comply with this just course, it is my finding that the order he made on 22/2/1991, forfeiting the amount of 100,000/= value of the bail bond which the appellant had

executed to bail out his father, the accused, was rash, premature and prejudicial, hence unlawful. That order is hereby quashed and set aside. It is hereby ordered that the said amount of shs. 100,000/= which the appellant ALFRED ADOLF SHIRIMA paid to the court vide ERV No.516629 dated 23/2/1991 value of the forfeited bond, be refunded to him by the Judiciary Department forthwith.

It was on the foregoing reasons that I allowed this appeal on 20/5/1993.

RAMADHANI KISUDA & MDILU UJAMAA VILLAGE *v.* ADAMU NYALANDU, RAJABU NGHOLO, SAIDI NG'UI & SHAABAN SAIDI

HIGH COURT OF TANZANIA
AT DODOMA
(Mwalusanya, J.)

CIVIL APPEAL No. 4 OF 1990

(From the decision of the District Court of Singida at Singida, in Civil Case No. 4 of 1988)

Civil Practice and Procedure – Parties to a suit – Party joined to a suit by trial court acting suo motu – Whether proper

Civil Practice and Procedure – Misjoinder of parties – Party irregularly joined by trial court order and not objected throughout the trial – Consequences thereof – Order I rule 13 of the Civil Procedure Code 1966

Land Law – Customary land rights – District Commissioner sets village boundaries and excludes from the village boundary land held by some village residents under customary law – Whether their right to that land is thereby extinguished – Land Ordinance, Cap 113

Civil Practice and Procedure – Liability of village chairman – Village chairman ordering his villagers to implement decision of village meeting – Whether the village chairman is personally liable

In resolving a boundary dispute between two villages the District Commissioner fixed the boundaries in such a way that land held by the respondents under deemed rights of occupancy became located outside their village. When they went to plant crops in that land they were told that they were trespassers, and their crops were destroyed. They successfully sued the appellants who then appealed to the High Court.

Held:

(i) It was irregular for the trial court magistrate to order, *suo motu*, for the second appellant to be joined as a party but the irregularity is curable as it occasioned no miscarriage of justice;

(ii) An objection to a misjoinder of parties should be taken at the earliest opportunity otherwise the right to object shall be deemed to have been waived;

(iii) The right to hold land under the deemed right of occupancy cannot be extinguished by fixing village boundaries that locate land outside the village in which the holder of the land resides, and a citizen is not prohibited from holding land in a village he or she does not reside;

(iv) The first appellant was, and acted as, the village chairman at the village meeting that resolved to cultivate the land in dispute and when he ordered the villagers to implement the decision of the village meeting; he is not personally liable for what the villagers did.

Appeal by 1st appellant allowed; appeal by 2nd appellant dismissed

Case referred to:

(1) *Selemani Twalibu v. Masawi Village*, High Court at Dodoma, (PC) Civil Appeal No. 26 of 1992 (unreported)

Mr. D. Mbezi, for the Appellants
Mr. Rweyongeza, for the Respondents

JUDGMENT

(Delivered 10 August 1993)

Mwalusanya, J.: The four respondents, Adam s/o Nyalandu, Rajabu Ngholo, Said s/o Ng'ui and Shabani s/o Saidi, successfully sued the two appellants, Mr. Ramadhani s/o Kisuda (1st appellant) and Mdiku Ujamaa Village (2nd appellant) at Singida District Court in a claim of damages for destruction of crops of shs. 146,000/=. That decision aggrieved the two appellants and hence the appeal to this court. Mr. Mbezi advocated for the appellants, while Mr. Rweyongeza represented the respondents.

The first issue taken at the hearing of the appeal was as to whether the 2nd appellant, Mdulu *Ujamaa* Village, was properly joined in the suit as a party to the suit. There was no application to join the said village as a party. It was the trial magistrate who joined the village as a party *suo motu,* i.e. on the court's own motion. Counsel for the respondents concedes that the exercise was an irregularity but submits that the same is curable. I agree with counsel for the respondents that the irregularity is curable, as it did not occasion a miscarriage of justice. And it is provided under Order 1 rule 13 of the Civil Procedure Code Act 1966 that objection for misjoinder of the parties shall be taken at the earliest possible opportunity, otherwise the objection shall be deemed to have been waived. In the case at hand the misjoinder occurred before the issues in the suit were settled and no protest was ever lodged with the court. In the event I hold that the irregularity was curable.

Counsel for the appellants, Mr. Mbezi, has argued that the respondents had no right of claim to the land in dispute since the border dispute was resolved on 5/10/1987. So it was alleged when the respondents planted crops in early 1988, they were trespassers on the land in dispute. I don't share the views of Mr. Mbezi. I subscribe to the views of Mr. Rweyongeza

that the setting of the boundary by the District Commissioner on 5/10/1987 between the villages of Mdilu and Gata, could not unilaterally extinguish the right of the villagers who were holding land in Mdilu village before the boundary was fixed. Although the four respondents were told to be belonging to Gata village, after the boundary was fixed, yet their right to occupy land in Mdilu village was still intact. They occupy that land by virtue of the *deemed right of occupancy* under the *Land Ordinance.* That right cannot be extinguished by the village forcefully confiscating somebody's land or by the District Commissioner making a new boundary of the village. And a citizen is not prohibited to hold land in a village where he does not reside – see the case of *Selemani Twalibu v. Masawi Village* (1). It is my conclusion, therefore, that the respondents were not trespassers on the land in dispute.

Was there destruction of the respondent's crops? After perusing the evidence on record I have no doubt that the crops were destroyed. There was independent evidence of two Ward Secretaries, Mr. Hosea s/o Mnyambi (PW. 7) and Mr. Selemani s/o Mohamedi Lundi (DW. 4) as well as of two other witnesses, namely Juma s/o Salum (PW. 5) and Habibu s/o Mpandi (PW. 6). They testified that there was a village meeting at Mdilu on 25th January 1988 and they resolved to go to cultivate in the land in dispute, which was already planted crops by the respondents. The maize shamba was cultivated and destroyed on 26/4/1988; it is on record.

Is the first appellant, as village chairman, personally liable for what happened? I am of the view that he is not personally liable. In paragraph two of his Written Statement of Defence he pointed out that he was acting in his capacity as the village chairman when he ordered the villagers to implement the decisions of the village meeting. There can be no doubt that the 1st appellant was just executing the duties of a village chairman.

He chaired the village meeting of 25/1/1988, which ordered that the land in dispute be cultivated despite the fact that the four respondents had already planted crops. And the village chairman had just communicated to the villagers about the boundary which the District

Commissioner had fixed, putting the land in dispute on the side of Mdilu village. It is clear that the 1st appellant was not acting in his personal capacity, and so he cannot be held liable for the sins of his master.

The damages of Shs. 146,000/= were reasonable in the circumstances as about 20 acres of maize were destroyed. I am not inclined to interfere with that figure.

In the event the appeal filed by the 1st appellant is allowed with costs. However the appeal by the 2nd appellant is dismissed with costs.

LAMECK A. MASSAWE *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT ARUSHA
(Nchalla, J.)

CRIMINAL APPEAL No. 84 OF 1993

(From the decision of the District Court of Babati at Babati
(L. Raphael, DM) in Criminal Case No. 14 of 1993)

Criminal Practice and Procedure – Sentencing – Orders of compensation in criminal cases – Court orders payment of compensation for values not proved – Whether proper

Evidence – Proof of guilt in criminal cases – Appellant convicted upon uncorroborated evidence that was not water tight and was tendered by accomplices and persons with particular interests of their own – Whether the case was proved beyond reasonable doubt

The appellant was convicted of receiving a stolen cow and sentenced to a fine of Shs. 12,000/= or one year's imprisonment. The trial court also ordered him to pay Shs. 35,000/= as compensation for the cow and "all other costs incurred by the complainant" looking for the stolen animal. On appeal it was contended that the case against the appellant was not proved beyond reasonable doubt.

Held:

(i) The value of the cow alleged to have been stolen, and the value of the costs, for which the trial court ordered the appellant to pay compensation were not proved or even disclosed at the trial; such value could only be established in an independent civil case that the complainant could institute later;

(ii) On the evidence the animal skin that was tendered in evidence was not proved to be that of the cow that had been stolen and it was not proved that the appellant was the person who was in possession of the cow whose skin was tendered in evidence;

(iii) The evidence of PW.4 who was an accomplice or a person with an interest of his own to serve in the matter required corroboration as a matter of law;

(iv) The case against the appellant was not proved beyond reasonable doubt.

Appeal allowed

Mr. Mlambo, State Attorney, for the Republic

JUDGMENT

(Delivered 30 August 1993)

Nchalla, J.: Lameck A. Masawe, the appellant, was charged before Babati District Court with cattle theft c/ss 265 and 268 of the Penal Code, Cap. 16. At the end of the trial, the trial court found that the appellant was not proved to be the actual thief of the cattle in issue, but was proved to be a guilty receiver of the said cow, so, the trial court convicted the appellant as a guilty receiver under section 311 of the Penal Code, and

sentenced him to pay a fine of Shs. 12,000/= or one year imprisonment in default. He was further subjected to somewhat an arbitrary order of compensation which was in the following terms:

> Accused to pay compensation value of the ox he slaughtered Shs. 35,000/= and all other costs incurred by the complainant looking for his ox."

Indeed, the trial court was not justified in ordering the appellant to pay for *all other costs incurred by the complainant looking for his ox.* Such costs were not disclosed by the complainant and therefore the same were not proved. Such costs, if any, could be the subject of an independent civil case to be filed later by the complainant. Also, in my considered view, the value of the alleged stolen cow was not proved to be 35,000/=. That value ought as well to be proved in a civil suit. For these reasons I quash the order for compensation that was imposed on the appellant by the trial subordinate court. Should the appellant have paid that amount of compensation to the complainant, the same be refunded to him, failing which I hereby order distress to be executed on the property of the complainant to recover that amount.

Now going to the substance of the case and the appeal itself, the appellant paid the fine of 12,000/= vide ERV No. 868085 of 26/5/93. Nevertheless, the appellant was aggrieved by the decision of the trial court; he appealed to this court against the whole of that decision. He did not indicate his wish to appear at the hearing of his appeal. So, the appeal was heard in his absence, as he had not engaged any counsel to represent him.

In his memorandum of appeal, the appellant argued that the skin which was found at the abattoir which P.W.1 and P.W.2 alleged to belong to their stolen ox, was not properly identified to belong to their ox which was stolen. There were no special marks which provided water tight evidence on that fact. Moreover, the appellant argued that it is only P.W.4 who alleged that the skin (Exh. P.1) was that of a cow which the

appellant had taken to the abattoir and had slaughtered there. No other witness corroborated the evidence of P.W.4 whose evidence was not reliable. The appellant further argued that it was not proved beyond reasonable doubt that the skin (Exh. P.1..) was actually found at the abattoir because the Police who are alleged to have found that skin at the abattoir and seized if for exhibit did not testify in this case.

I have considered these grounds of appeal raised by the appellant. I quite agree with the appellant that the skin (Exh. P.1) was not proved beyond reasonable doubt to belong to the ox the subject of the charge. This is so because there were no specific marks on that skin to prove that the said skin could not belong to another cow other than the stolen ox. Identification by colour of the skin that is, black colour, is not sufficient. Also identification by a swelling *(tezi)* on the neck of shoulder area of the cow is also not sufficient.

Going by the record, one finds that even Stephen Meliari (P.W.2) could not point out on the said skin (Exh. P.1) identifying marks which he and his son Saitori Sukurieti alleged there were on that skin. This is borne out from the record where P.W.2 stated at page 2 of the typed proceedings.

> Observations: Here is the place the testicle were castrated (skin). The other marks are not seen, I do not see them. The said (sic) that skin was traced from Emanuel Masawe.

So, it is clear from the evidence of P.W.2 that the identification marks were not seen on the skin which was alleged to belong to the ox that was stolen from P.W.1 and P.W.2. Further P.W.2 said the said skin was found not in appellant's possession but in the possession of one Emanuel Massawe, probably appellant's relative who did not testify in this case. Even if the skin (Exh. P.1) was proved to belong to the ox that was stolen was the appellant who was in possession of the cow whose skin is Exh. P.1, and that it is him who had given it to Emanuel Masawe.

It is either Emanuel Masawe or P.W.4 who are the first suspects in

this case. Under these circumstances, the evidence of P.W.4 required corroboration as a matter of law as he is either an accomplice or a person with an interest of his own to serve in the matter. The same is true in relation to P.W.1 and P.W.2 who are persons with an interest in the matter as they are the owners of the stolen ox.

The skin (Exh. P.1) is said to have been seized by policemen from P.W.4 who was, at the material time, a watchman at the abattoir. This happened when the said policemen went to the said abattoir in the company of P.W.1 who had earlier seen that skin at the said abattoir. None of the policemen testified in this case to support the identification marks on the skin in question which P.W.1 and P.W.2 claimed there were. Also none of the two persons namely Kikusu and Saruni whom P.W.1 said in his evidence to have gone with them on 6/1/93 to the abattoir where they met Emanuel Lameck (P.W.3) the son of the appellant in possession of the skin (Exh. P.1). P.W.1 and testified that P.W.3 had showed them the head and tail of the cow whose skin was tendered as Exh. P1, and that there were specific marks on that tail and the head of the said cow. Surprisingly, the said tail and head of the cow were not seized nor were they tendered in this case to enable the court to see the marks on that tail and the head.

On the whole I am not satisfied that the prosecution were able to prove the charge against the appellant beyond reasonable doubt to entitle the court to convict the appellant as a guilty receiver. A lot of reasonabts double abound in the prosecution case for which the appellant was entitled to be accorded the benefit of doubt. This view was shared by Mr. Mlambo, learned State Attorney, who totally conceded to the appeal.

In the circumstances, the appeal has merit, the same is allowed. The conviction is quashed and the sentence and orders passed by the trial subordinate court are set aside. It is ordered that the 12,000/= fine which was paid by the appellant be refunded to him by the Judiciary Department. It is ordered accordingly.

TIMOTHY KAARE v. MARA COOPERATIVE UNION (1984) LTD.

COURT OF APPEAL OF TANZANIA
AT MWANZA
(Kisanga, Mnzavas and Mfalila, JJ.A.)

CIVIL APPEAL No. 42 OF 1992

(From the judgment of the High Court of Tanzania at Mwanza (Moshi, J.), dated 22nd May 1992, in Civil Case No. 47 of 1998)

Subsidiary legislation – Staff Regulations for Cooperative Unions – Staff Regulations to apply for all cooperative unions in the country not yet made by the competent authority – Respondent union makes own staff regulations for itself – Whether the regulations made are valid – Sections 20(2)(c) and 165(2)(h) of the Cooperative Societies Act 1982

Human Rights – Basic rights and duties under the Constitution – The right to work – Whether the right to work imposes a duty to employ or to continue employing a person – Article 22 of the Constitution of the United Republic of Tanzania 1977

The appellant was compulsorily retired from employment on the grounds that he had already exceeded the retirement age of 55 years fixed by the respondent's staff regulations. His claim for reinstatement or general damages and arrears of salary against his employer, the respondent union, was dismissed by the High Court. On appeal he contended that the staff regulations used to retire him were invalid because they were made by the respondent union itself and not by the relevant authority empowered by the Cooperative Societies Act 1982 to enact such regulations. He also contended that by retiring him the respondent interfered with his constitutional right to work.

Held:

(i) At the time the respondent made its staff regulations the relevant authority was yet to draft regulations for country-wide application as provided for under the Cooperative Societies Act 1982; in the absence of such regulations the respondent, as an employing authority, had a right to formulate its own local staff regulations to apply pending formulation of the regulations under the Act;

(ii) The right to work is not an absolute right but is always subject to the regulations of the employing authority and availability of work; it does not impose a duty on any employer to employ, or to continue employing, any person demanding to be employed.

Appeal dismissed

JUDGMENT OF THE COURT

(Dated 30 August 1993)

Mfalila, J.A.: The appellant Timothy Kaare lodged this appeal against the decision of the High Court of Tanzania at Mwanza (Moshi, J.) in which his claim against the respondent union for specific performance, general damages and areas of salary was dismissed.

In that case, the appellant had alleged that as a lawful employee of the respondent union, he had been unlawfully retired by the respondent on 1/3/88 on the pretext that at 60 years of age he exceeded the compulsory retirement age of 55 in concordance with the respondent's staff Regulations which were produced at the trial as Ex. P. 1. Giving the background to this case, the appellant told the trial court that in an earlier case in the same court, Civil case No. 30/86, he had been declared a lawful employee of the respondent and the latter had been ordered to reinstate him. He added that the respondent paid him his monthly salary regularly as ordered by the court, but that the respondent did not give him any work up to the time he received the letter compulsorily retiring him. In his view, the regulations which were used to retire him, were invalid as the respondent had no power to make them. In the circumstances he asked the High Court to order his reinstatement or award him general damages in the sum of Shs. 500,000/= and areas of salary.

In a well reasoned judgment, Moshi, J., dismissed the appellant's claim for specific performance noting that it was undesirable, if not impossible to order unwilling parties to maintain a continuous personal relationship in the form of provision of services. The learned judge also rejected the appellant's contention that his compulsory retirement was unlawful because the regulations which were applied to retire him were invalid as the respondent had no power to make them. The learned judge agreed that the respondent union had no power to make staff Regulations under section 85 of the Co-operative Societies Act 1982 but he held that the respondent, in the absence of any other regulations made by the relevant authorities under sections 20(2)(c) and 165 (2) (h) of the same Act, was entitled to formulate its own internal regulations to govern its relationship with its employees as it could not be expected to conduct its affairs in a vacuum. On thin formulation, he found that the respondent's staff Regulations were validly made and that therefore the appellant was validly retired under its terms. Accordingly he dismissed the claim.

The appellant lodged this appeal challenging these findings in seven grounds but in substance they are only two. The sum total of the complaints in grounds 1,2,3,4,6 and 7, challenge the correctness of the judge's finding that the Staff Regulations under which the appellant was compulsorily retired were validly made. In ground 5 the appellant alleged that his compulsory retirement by the respondent union was unconstitutional because it interfered with his right to work, the right stipulated under Article 22 if the Constitution of the United Republic of Tanzania.

With regard to the validity of the Staff Regulations, the arguments by the appellant against them were rightly rejected by the learned judge. Indeed if accepted, they would render the respondent union completely helpless. In Civil case No. 30/88, the respondent union was condemned for retiring the appellant at the age of 55 because it had no regulation stipulating that condition and the court in that case specifically advised the respondent

union to make its own Staff Regulations in the absence of these applicable countrywide to all unions. At the time the respondent made these regulations, the national regulations are yet to be drafted by the relevant authorities under the Co-operative Societies Act 1982. There was thus a vacuum which the respondent filled by making its own Staff Regulations to be used until the same were made under the Act. Every employing authority has a right to formulate regulations to govern its relationship with its employees and in formulating these regulations, the respondent was exercising his right. The Staff Regulations in themselves are not only reasonable but almost universal in their content. Indeed they follow as nearly as possible those in force for parastatal organizations formulated by Scopo.

The appellant complained in ground 5 that these regulations are invalid because they were not approved by the Standing Committee on Parastatal Organizations (Scopo). The short answer to this can be found in the finding of Mwalusanya, J., in Civil Case No. 30/88, that co-operative unions are not parastatal organisations hence Scopo approval is not a necessary requirement. The Respondent's regulations are approved by its management committee, the committee charged with powers to supervise or oversee the affairs of the Union.

With regard to the complaint in ground 6 that by retiring him, the respondent interfered with the appellant's constitutional right to work, we can only say that this right by its very nature cannot be absolute. First, it must be subject to the regulations of the employing authority and secondly it must be subject of the availability of work suitable to the person involved. It certainly does not mean that one can walk into an office, factory or worksite and demand to be given work under Article 22, nor doss it mean that under this Article one can demand to be employed even when old and senile. The appellant certainly has a right and even a duty to work, but not necessarily with the respondent Union.

For these reasons we agree with the judgment of the Hight Court which rightly dismissed the appellant's claims. Accordingly we dismiss this appeal with costs.

ELIBARIKI ASSERI NNKO *v.* SHIFAYA MUSHI & LEWANGA KINANDO

HIGH COURT OF TANZANIA
AT ARUSHA
(Nchalla, J.)

MISCELLANEOUS CIVIL APPLICATION No. 91 OF 1992

Civil Practice and Procedure – Limitation of time – Power of the High Court to extend time to file appeal – Civil Appeal from the District Court filed in time but erroneously filed in the High Court instead of the District Court as required under the law – Whether High Court may extend time to file the appeal in the proper court – Sections 25(1) and (3) of the Magistrates' Courts Act 1984 and 21(1) of the Law of Limitation Act 1971

The applicant had filed in the High Court an appeal against the decision of the District Court in a matter that had originated from the primary court. The appeal was filed in time but s.25(3) of the Magistrates' Courts Act 1984 required all such appeals to be lodged in the district court, not in the High Court. Realising this, applicant withdrew the appeal lodged in the High Court so as to lodge it in the district court as required. But by then the 30-day period for lodging such appeals had run out. So the applicant filed this application for extension of time to file the appeal in the proper forum.

Held:
As the applicant had all the time been acting with diligence to ensure that his appeal is prosecuted but had run out of time because he, in his diligence, had lodged his appeal in the wrong court, the delay in lodging the appeal fell under the ambit of s.21 of the Law of Limitation Act 1971, and there was good and sufficient cause for extending time to file the appeal in the proper court.

Application granted

Cases referred to:

(1) *Maulid Hussain v. Abdalla Juma,* CAT – Civil Application No. 20 of 1988 (unreported)

(2) *Martin Pauli v. Gerald Valery,* High Court of Tanzania at Arusha, Misc. Civil Application No. 97 of 1992 (unreported)

Mr. Mahatane, for the Appellant

Mr. Sang'ka, for the Respondent

RULING

(Delivered 9 September 1993)

Nchalla, J.: This is an application for extension of time to file an appeal. The application is brought under section 25(3) of the Magistrates' Courts Act 1984 and G.N. 311/1964 Rule 3(4). With due respect to Mr. Mahatane, learned counsel for the applicant, it is my considered view that the provisions of law, cited purporting to enable this application are not relevant. The relevant provision under the circumstances is section 25 25(1) of the Magistrates' Courts Act 1984 which provides:

> 25 (1) Save as hereinafter provided – (a) not relevant (b) in any other proceedings any party. If aggrieved by the decision or order of a district court in the exercise of its appellate or revisional jurisdiction may. Within thirty days after the date of the decision or order, appeal there from to the High Court:
>
> Provided that the High Court may extend the time for filing an appeal either before or after such period of thirty days has expired.

I am of the considered view, however, that the error in omitting to cite subsection 1 of section 25 of the Magistrates' Courts Act 1984 is curable as the same did not occasion a failure of justice.

Turning to the substance of this application, Mr. Mahatane submitted that the applicant was originally represented by Mr. Kinabo, learned

advocate, who filed Civil Appeal No. 17/89 in the High Court on behalf of the applicant. The said appeal was filed quite in time on 30/3/89 after the copy of judgment appealed against was supplied to him on 4/3/89. The said appeal was filed straight in the High Court contrary to the mandatory provisions of section 25(3) of the Magistrates' Courts Act 1984 for that reason Mr. Mahatane, who had taken over from Mr. Kinabo in representing the applicant in processing and prosecuting his appeal, applied on 5/3/92 to withdraw the appeal for contravening section 25(3) of the Magistrates' Courts Act 1984

Mr. Mahatane argued that there was no negligence on the part of Mr. Kinabo in proceeding with the applicant's appeal. It only turned out that the appeal was filed in the wrong court. Mr. Mahatane submitted that for time immemorial appeals of this nature were being filed straight in the High Court and the same were determined without any query from the High Court. The decisions of the High Court in such cases went on appeal to the Court of Appeal which decided them without questioning the competency of such appeals. It is only in 1991 when the judge in charge for this zone issued a directive that appeals for cases originating in the primary court should be filed in the district court in compliance with section 25(3) of the Magistrates' Courts Act 1984. Mr Mahatane referred this court to section 21(3) of the Magistrates' Courts Act, Cap. 537, which was repealed, which was in *parimateria* with section 25(3) of the Magistrates' Courts Act 1984. Mr. Mahatane cautioned that it will be quite unfair and unjust to penalize the applicant for an error which was discovered just in 1991 when all along the said error had not been noticed, and appeals of this nature were filed in the High Court and were decided therein without any impediment. I quite agree with Mr. Mahatane's submissions on that point.

In reply, Mr. Sang'ka learned counsel for the respondent, strongly opposed the application. He argued that the applicant was represented by an advocate who ought to know the dictates of section 25(3) of the Magistrates' Courts Act 1984. Failure by Mr. Kinabo to comply with section 25(3) of the Magistrates' Courts Act 1984 in filing the applicant's

appeal is sheer negligence which cannot be good or sufficient cause for this court to extend the time to the applicant to file his appeal. Mr Sang'ka submitted that the only remedy for the applicant is to sue Mr. Kinabo for professional negligence. Mr. Sang'ka cited the following decisions in support of his contention *Maulid Hussein v. Abdalla Juma (1); Martina Pauli v. Gerald Valtery (2).*

In reply, Mr. Mahatane argued that the decision of the Court of Appeal cited by Mr. Sang'ka is distinguished from the circumstances and facts of this case. In the case before the Court of Appeal, the appellant's advocate was required by law to take specific steps towards the prosecution of the appeal. In the instant case the appellant's advocate had taken all the necessary steps in processing the appeal, but in advertently filed the same in the wrong court. Such an error should be looked at in the light of section 21(1) of the Law of Limitation Act, No. 10/1971, which provides as follows:

> 21(1) in computing the period of limitation prescribed for any suit, the time during which the plaintiff has been prosecuting, with due diligence, another civil proceeding, whether in a court of first instance or in a court of appeal, against the defendant, shall be excluded, where the proceeding is founded upon the same cause of action and is prosecuted in good faith in a court which, form defect of jurisdiction or other cause of a like nature, is incompetent to entertain it.

I have had occasion of reading thoroughly the decision of the court of Appeal of Tanzania in *Maulid Hussein's* case (supra) which is binding on this court. Also I have with diligence read the decision of my learned brother Justice Mushi in *Pauli's* case (supra). Indeed, my learned brother Justice Mushi considered the decision of the Court of Appeal in *Maulid Hussein's* case plus other decisions from other jurisdictions and based his decision on all those cases. Now going by the decision of the Court of Appeal in *Mauldi Hussein's* case, I note that the advocate in that case had failed to take the subsequent steps of lodging

the appeal until six months later after he had lodged the notice of appeal well in time. The Court of Appeal found that the appellant's counsel was negligent for non-action or inaction. That situation is quite different from the situation in the instant case where the counsel was not inactive or negligent but rather he acted with inadvertence by filing the appeal in a wrong court but quite timely.

Under the circumstances, I am inclined to agree with Mr. Mahatane, learned counsel for the respondent, that the situation in this matter comes squarely under the ambit of section 21(1) or the Law of Limitation Act 1971 quoted above. I believe my learned brother Hon. Justice Mushi would have come up with a different decision in *Martina Pauli's* application (supra), had this section been cited to him during the hearing of that application. On the foregoing observations, I find that good and sufficient cause exists for extending the time to the applicant to file his appeal to this court. In the circumstances, I grant this application. The applicant is given thirty days from the date of this ruling to file his appeal to this court under the provisions of section 25(3) of the Magistrates' Courts Act 1984. The application is granted with costs.

Order accordingly

JAMES MASHALA *v.* JEREMIAH WEGORO, MASHAKA MACHILU & JOSEPH KIDIGA

HIGH COURT OF TANZANIA
AT TABORA
(Katiti, J.)

CIVIL APPEAL No. 26 OF 1992

Torts – Tort and customary law – Cattle trespass – Whether cattle trespass and crop destruction is a tort known to customary law

The respondents sued the appellant in the primary court and were awarded compensation for crops destroyed by the appellant's cattle that had trespassed into their shambas. The appellant's appeal to the district court was dismissed, hence this appeal. Before the High Court it was contended that cattle trespass or crop destruction was a common law tort and therefore the primary court had no jurisdiction over the matter. It was also argued that there was no evidence that the appellant's cattle had trespassed into the respondents' shambas and destroyed crops therein.

Held:

(i) While cattle trespass and crop destruction is indeed a common law tort, it is also a tort known under customary law and, therefore, within the jurisdiction of primary courts;

(ii) There was overwhelming evidence that the appellant's cattle, not less than 62 in number, had trespassed into the respondents' shambas and destroyed crops.

Appeal dismissed

Case referred to:

(1) Kuzebe Sweya v. Jacobo Kitale [1968] H.C.D., n.407

Mr. Kwikima, for the Appellant

JUDGMENT

(Delivered 13 December 1993)

Katiti, J.: Before Bubiki Primary Court, were JEREMIAH WEGORO MASHAKA, MACHILU and JOSEPH KIDIGA as plaintiffs (1), (2) and (3), suing JAMES MASHALA, the appellant, for compensation shs. 117,600/=, Shs. 146,400/=, and shs. 146,400/= respectively, being compassion, for their respective areas, that were claimed to have been destroyed by the appellant's cattle, that were claimed to have been negligently let loose into the said shamba. The said claim, was successful, and the appellant's appeal to the District Court did not meet better fate, the appeal was dismissed, and hence this appeal.

This appeal was, on behalf the appellant, prosecuted by Mr. Kwikima, a Tabora based advocate, who argued two areas: (1) that as cattle trespass and or crop destruction was a common law tort, the Primary Court had no jurisdiction; and (2) that there was no evidence that the appellant's cattle the respondents, argued strongly in favour of their respective cases countering seriously, the submissions by the defence counsel.

Whether the Primary Court has jurisdiction to entertained a tort of cattle trespass and resultant consequences like crop destruction, is an issue that was both in the Primary and District Courts not raised but the said courts preceded with the view that cattle trespass and/or cattle crop destruction was a customary law tort, and that under the provisions of section 18(1) of the Magistrates' Courts Act 1984, the primary court has jurisdiction to entertain the same. While it is to be conceded that cattle trespass is a common law tort, that does not exclude it from being a customary law tort at all, in the place the case hails from. If the senior learned Counsel, had any doubts on this issue, perhaps instructive in that area and in the direction, that cattle trespass and cattle crop destruction is also a customary law tort, is the case of, *Kuzebe Sweya v. Jacob Kitale (1),* in watch the cattle grazed and destroyed the cassava crop, the holding was as follows:

Held:

The Primary Court has Jurisdiction in this type of tortius liability, since it comes within the phrase "customary law: under section 14 Magistrate Courts Act Cap. (3) (citing All Kindoli *v.* Tuzili two Pandamani No. 220 Vol. IX Digest of Appeals from local courts (1962) P.7, a case of compensation for damage to crops, and civil case No. 27 of 1968 in the Nyamwisungu Court (P.C. Civil Appeal No. 148 of 1968 unreported in watch Mustafa, J. uphold an award of compensation for destruction of crops and plants under customary law of North Mwanza District.

Damostrably, there should not be any beating about the bush nor is it professionally useful to avoid being truthful to the applicable law, it is clear from the above case that cattle tress pass and/or cattle crop damage or destruction is a tort known to oustomary law. Mr. Kwikima's submission on this aspect has failed therefore.

Mr Kiwikima's other submission was that there was no evidence that the appellant's cattle had trespassed into the respondents' shambas, and destroyed their crops. With respect to Mr. Kwikima, professional straight forwardness should be jealously upheld and if calling a spade, would enhance the interest of justice, that should be it. The evidence by PW1, PW2 and PW4 that the appellants cattle, not less than sixty two, tresspassed into the respondents' shambas and destroyed the crops is so overwhelming that even the doubting Thomases would feel shy and reticent to challenge the same. And the vindication of this is ably demonstrated by the appellant's seriously mean cross-examination of the said witnesses, and not even challenging the quantum of damages. In the circumstance, I am unable to find fault in the assessment of witnesses' positive credibility by the two lower courts. The two lower courts' concurrent conclusion that it was the appellant's cattle that trespassed into the shambas and destroyed the crops cannot be faulted and, as the quantum of damages is not even challenged, the appeal is dismissed in its totality.

TRANSPORT EQUIPMENT LIMITED

v.

DEVRAM P. VALAMBHIA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Nyalali, C.J., Makame, Kisanga, Ramadhani, Mnzavas, Mfalila and Lubuva, JJ.A.)

CIVIL APPLICATION No. 18 OF 1993

Court of Appeal – Jurisdiction – Review powers – Whether the Court of Appeal has jurisdiction to review its own decisions

Jurisdiction – Inherent jurisdiction – Whether the Court of Appeal has inherent jurisdiction – Inherent jurisdiction defined

The applicant sought to move the Court of Appeal, constituted by three justices of appeal, to review their previous decision. The respondent raised a preliminary objection to the motion on the grounds that the court had no jurisdiction to review its own decisions. As there appeared to be conflicting decisions of the Court on the issue, the bench of three justices referred the matter to the full bench of the Court.

Held:

(i) The full bench of the Court of Appeal is the proper forum for resolving any issue about which there are conflicting decisions of the Court;

(ii) There is nothing under s.117 or any other provision of the Constitution that empowers the Court of Appeal to review or alter its own decisions after such decisions have been delivered; all the same, because s.117 of the Constitution says the Court of Appeal shall have and exercise jurisdiction conferred upon it by the Constitution or "by any other law," the source of such jurisdiction could be found in other legislation, or in case law;

(iii) There are no conflicting decisions of the Court of Appeal on the issue of the jurisdiction of the Court to review its own decisions; the two cases that were said to be in conflict are not in conflict but are distinguishable;

(iv) The inherent jurisdiction of a court is not a creature of statute, although it may be embodied or re-stated in a statute; inherent jurisdiction is the inherent power of a court that is necessary for the proper and complete administration of justice and it is vested in all courts of superior jurisdiction and is essential to their existence;

(v) The Court of Appeal of Tanzania has limited inherent jurisdiction to review its decisions when such decisions are a nullity, or where a party is wrongly deprived of opportunity to be heard; and there is also inherent jurisdiction in the Court to review its own decisions whenever such decisions are based on manifest error on the face of the record resulting in a miscarriage of justice.

Objection overruled

Cases referred to:

(1) *Poole v. R,* [1960] E.A. 62

(2) *Felix Bwogi t/a Eximpo Promotion Services v. Registrar of Buildings,* CAT – Civil Appeal No. 26 of 1989 (unreported)

(3) *Alois Kula and Another v. Republic,* CAT – Criminal Appeal No. 121 of 1991 (unreported)

(4) *Somani's v. Shirinkhanu (No.2),* [1971] E.A. 79

(5) *Livingstone M. Sewanyama v. Martin Aliekr,* Supreme Court of Uganda, Civil Application No. 4 of 1991 (unreported)

Sir Nicholas Fairbairn, Q.C., Mr E.H. Mbuya, and *Dr. Michael Forde,* for the Applicant

Mr. Maira and *Mr Marando,* for the Respondent

RULING OF THE COURT

(Delivered 23 May 1994)

Nyalali, C.J.: This is a preliminary matter of law which has come before the full bench of this Court upon recommendation by a bench of three justices of this court in Civil Application No. 18 of 1993, currently pending decision by the court. Under section 118 (1) of the Constitution of the United Republic of Tanzania, "... the full bench of the Court of Appeal shall consist of not less than five Justices of Appeal." In Civil Application No. 18 of 1993 the Applicants, namely, Transport Equipment Ltd., are requesting a bench of three justices of this court to review their previous decision in Civil Reference No. 7 of 1992. When that application came up for hearing the Respondent, namely, Devram P. Valambhia, through his Counsel, raised a preliminary objection to the hearing of the application on the ground that the court has no jurisdiction to review its own decisions.

The bench of three justices however could not decide the preliminary issue as they were of the view that there were conflicting decisions of the Court on the issue. On the authority of various cases, including *Poole v. R. (1),* the full bench is the proper forum for resolving such conflicting decisions. Hence these proceedings before us.

The applicants are represented by Sir Nicholas Fairbairn, Q.C., Mr. E.H. Mbuya and Dr. Michael Forde, after the first and third counsel, of the Scottish and Irish Bar respectively, had obtained special admission to practice as advocates in the matter before the court. The respondent is represented by Mr. Maira and Mr. Marando.

The issue before the full bench is whether the Court of Appeal of the United Republic of Tanzania has inherent jurisdiction to review its own decisions. Counsel on the Respondent's side have argued at length to the effect that the court has no such jurisdiction. On the other hand, Counsel for the Applicant have also argued at length to the contrary. There is common ground, and we accept it as correct, that the Court of

Appeal is a creature of the Constitution and that its jurisdiction is derived from the Constitution, that is, specifically from section 117 of the Constitution of the United Republic of Tanzania. For purposes of certainty we have been guided by the original version of the Constitution, which is the Swahili version. Previous experience has shown that the English version, which is a translation of the original, contains some errors in some parts. A similar error appears in the provisions of sub-section (1) of section 117 where the word 'legislation' is used at the end of the sentence, instead of the word 'law.' In our considered opinion, the Swahili expression, "*sheria nyingine*" appearing in sub-section (1) of section 117 does not translate into English as "other legislation" but as "other law." According to the scheme of the Constitution, wherever the term "legislation" is envisaged, the expression, "*sheria iliyotungwa na Bunge*" (meaning law enacted by Parliament) is invariably used in the Swahili version of the Constitution such as in sections 42 (5), 49, 56, 58, 61(4) 73 and 111. Sub-section (1) of section 117 should thus read:

> There shall be a Court of Appeal of the United Republic (to be referred to as "the Court of Appeal") which shall have and exercise jurisdiction conferred upon it by this Constitution or by any other law.

Sub-section (2) excludes from the jurisdiction of the Court matters "relating to disputes between the Government of the United Republic and the Revolutionary Government of Zanzibar" which are dealt with separately under the provisions of section 126 of the Constitution. Sub-section 3 vests in the Court of Appeal "jurisdiction to hear and determine every appeal brought before it arising from the judgment or other decision of the High Court or of a subordinate court with extended jurisdiction." Sub-section (4) provides for enactment by the National Assembly, or the House of Representatives, of legislation "prescribing the procedure for lodging appeals in the Court of Appeal, the procedure, circumstances and reason for lodging appeals, the conditions upon which and the manner in which those appeals shall be dealt with."

It is accepted by both sides, and we find it to be correct, that there is nothing either under section 117 or any other provision of the Constitution which expressly empowers the Court of Appeal to review or alter its own decisions after such decisions have been delivered. The question then arises whether such jurisdiction exists under "any other law" as envisaged under sub-section (1) of section 117 of the Constitution. Of all the laws applicable in this country, the only other law where such jurisdiction could possibly be found is legislation or case law. The only legislation relevant to the case at hand is the Appellate Jurisdiction Act, 1979, as amended from time to time.

Counsel for the Applicants have contended in effect that the Court of Appeal has, under sub-section (2) of section 4 of the Appellate Jurisdiction Act, 1979, the jurisdiction to review its own decisions where it is in the interests of justice so to do, on the basis that such exercise is incidental to the hearing and determination of an appeal in which the court already has jurisdiction. With due respect to learned Counsel, we think that such contention is misconceived. We say so because the provisions of section 4 of the Appellate Jurisdiction Act, 1979, deal only with legal process originating from decisions of the courts below and do not cover legal process originating from the decisions of the court itself. Sub-section (2) states:

> for all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this Act, have the power of revision and the power, authority and jurisdiction vested in the court from which the appeal is brought.

With regard to case law, we are grateful to Counsel on both sides for the wide ranging and informative research they have done on the issue both within and beyond our country. We must begin by stating the

collective view of this full bench regarding the case of *Felix Bwogi t/a Eximpo Promotion Services v. Registrar of Buildings* (2), and the case of *Alois Kula and Another v. Republic* (3), which have been construed earlier by three of us as being conflicting decisions of this court on the issue of inherent jurisdiction of the court. After giving these two cases a fresh look, we are satisfied that these cases are not in conflict but are distinguishable. *Bwogi's* case concerned an application to rectify a judgment of the Court of Appeal which had aggrieved the applicant in that it was based on a manifest error on the face of the record, that is, a document which had been withdrawn at the trial in the court below, but was wrongly included in the record of appeal. The Court of Appeal granted the application and reversed its earlier judgment which had been based on the non-existing document. In *Alois Kula's* case, however, the applicants had been aggrieved by the decision not of the Court of Appeal, but of the High Court given in interlocutory criminal proceedings, and they sought a remedy by purporting to appeal to the Court of Appeal by inviting the Court to exercise an inherent appellate jurisdiction. The Court declined the invitation on the ground that it had no such inherent appellate jurisdiction.

There is another point that we wish to state at this juncture in respect of *Bwogi's* case. Although the Court appears to have dealt with the matter as one falling within the scope of Rule 40 of the Tanzania Court of Appeals Rules, 1979, which concerns correction of accidental errors in judgments and other decisions of the court, we are satisfied that the error involved in that case, the rectification of which resulted in a complete reversal of the court's judgment, lay beyond the scope of Rule 40. Undoubtedly as we endeavour to show below, the court could not allow such error to stand. It had, as we show herein after, inherent jurisdiction to remedy such manifest error on the face of the record which had resulted in a miscarriage of justice.

It is of course agreed by both sides, and we think rightly so, that the inherent jurisdiction of a court is by its nature not a creature of statute, though it may be embodied or re-stated in a statute. As stated in *Black's*

Law Dictionary of Definitions of the Terms and Phrases of American and English Jurisprudence, Ancient and Modern, "the inherent power of a court is that which is necessary for the proper and complete administration of justice and such power is resident in all courts of superior jurisdiction and essential to their existence ...." In many Common Law countries, the superior courts recognize the existence of an inherent jurisdiction or power to change a judgment or decision of their own in limited circumstances. In practically all the jurisdictions that we are aware of, it is recognized that the courts have inherent power under what is commonly known as the Slip Rule, to make changes in their own judgments or decisions to correct accidental errors or omissions. In a number of Common Law countries, including Tanzania, the Slip Rule has been embodied or restated in legislation, such as Rule 40 of the Tanzania Court of Appeal Rules, 1979, which reads:

> A clerical or arithmetical mistake in any judgment of the Court or any error in it from an accidental slip or omission may at any time, whether before or after judgment has been embodied in an order, be corrected by the Court, either of its own motion or on the application of any interested person so as to give effect to what the intention of the Court was when judgment was given.

Furthermore, in a number of countries, the existence of an inherent jurisdiction beyond that arising under the Slip Rule is recognized under limited circumstances. In Zimbabwe and South Africa, according to the material graciously availed to us by the Chief Justice of Zimbabwe, the position is stated in the leading textbook by Herbstein and Van Wanes, *The Civil Practice of the Superior Courts in South Africa* ,3rd Edition. The learned authors state at page 469 to 470 concerning 'Setting Aside of Judgments and Orders' that:

> A final judgment being *res judicata* is not easily set aside, but the court will do so on various grounds, such as fraud, discovery of new documents, error and irregularities in procedure.

A Fraud:

A judgment procured by fraud of one of the parties either by forgery, perjury or in any other way such as fraudulently withholding documents cannot be allowed to stand. It must, however, be shown that the successful litigant was a party to the fraud or perjury on the ground of which it is sought to set aside the judgment.

The person seeking relief must be able to show that because of the fraud of the other party the Court was misled into pronouncing a judgement which, but for the fraud, it would not have done. Thus assuming the fraud to have taken the form of perjured evidence, the applicant for relief must show that if the Court had known the true facts the judgment would have been different.

We are of course aware that Zimbabwe and South Africa apply Roman-Dutch Law, but it would seem that as far as setting aside or modification of judgments is concerned, there is hardly any difference of substance between the position in Zimbabwe or South Africa, and the position in a number of Common Law countries. Thus in England, the only difference is that a judgment obtained by fraud cannot be impeached except by a separate action. It is stated under *Halsbury's Laws of England*, 4th Edition, Vol. 26 in paragraphs 556 and 560:

Para 556:

As a general rule, except by way of appeal, no court, judge or master has power to rehear, review, alter or vary any judgment or order after it has been entered either in an application made in the original action or matter or in a fresh action brought to review the judgment or order. The object of the rule is to bring litigation to finality, but it is subject to a number of exceptions.

The court will treat as a nullity and set aside, of its own motion if necessary, a judgment entered against a person who was in fact dead or a non-existent company where there has been some procedural irregularity in the proceedings leading up to the judgment or order which is so serious

that the judgment or order ought to be treated as a nullity, the court will set it aside...

Para 560:

A judgment which has been obtained by fraud either in the court or of one or more of the parties may be impeached by means of an action, which may be brought without leave, and is analogous to the former Chancery suit to set aside a decree obtained by fraud.

Both Sir Nicholas and Dr. Forde have informed us from the Bar that in England, the criminal division of the Court of Appeal does exercise a jurisdiction of review of its own decisions in cases of wrongful convictions, as illustrated recently in the case notoriously referred to as 'the Birmingham Six.' Unfortunately, the judgment of the English Court of Appeal in that case is not available to us. We propose therefore to say no more on it.

The case law position in East Africa has been stated by the Court of Appeal of East Africa in a number of cases including the case of *Somani v. Shirinkhanu* (No. 2) (4), to the effect that the Court of Appeal does not have inherent jurisdiction to review its own judgments or orders except in limited circumstances. This is so stated by Spry, Ag. P., at page 80 where he says:

On the more general ground, this court is not a court of unlimited jurisdiction. It is a creature of statute and enjoys only such jurisdiction as is conferred on it by statute. It has no inherent jurisdiction. Mr. Gautama, who has argued most persuasively and put forward every possible argument, has referred to various authorities, in particular to *In re Appa Rao*. As I understand that decision, the jurisdiction therein referred to exists only where, for some reason, such as failure to hear a party, proceedings are a nullity. That is not the case here.

That view is supported by Law, Ag. V.P. on the same page where he states:

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That view is supported by Law, Ag. V.P. on the same page where he states:

> .... The cases cited by Gautama seem to me to illustrate the proposition that where a party has been deprived of the opportunity of being heard then the proceedings are to that extent a nullity and the omission will be rectified, a position which does not arise in this case, where the appeal was decided on the basis chosen by the parties who were not deprived of the opportunity of putting any matter they chose before the Court. This court has always refused invitations to review its own decisions except so as to give effect to its intention at the time the judgment was written. To depart from this rule would in my opinion be to adopt a most dangerous course. The only exception I can envisage is where the applicant has been wrongly deprived of the opportunity of presenting his argument on any particular point, which might lead to the proceedings being held to be null and void, a consideration which is absent in this case ....

It is apparent from *Somani's* case that the Court of Appeal for East Africa recognized that it had limited inherent jurisdiction to review its own decisions where a party is wrongly deprived of opportunity to be heard. It is also apparent, particularly from the statement of Spry, Ag. P. that failure to hear a party, is not the only ground upon which the Court of Appeal could review its own decision. The Court could do so in every case where, for one reason or other, its decision is a nullity.

We accept that this statement of the law by the Court of Appeal for East Africa covers the ground of fraud upon which courts in other common law countries do invoke an inherent jurisdiction to review their own decisions. A judgment or decision obtained by fraud is a nullity and therefore within the exception stated in *Somani's* case. Furthermore, we are of the opinion that the proposition in *Somani's* case in so far as it confines the inherent jurisdiction of the Court of Appeal to review its own decisions only to decisions that are a nullity, needs reconsideration. We are not alone in so thinking. The Supreme Court of Uganda, in a recent judgment which has just been received here from the Chief Justice of Uganda, has expressed the same view in the case of *Livingstone M. Sewanyama v. Martin Aliekr*, Civil Application No. 4 of 1991 (not yet reported), where it states:

> We would note in passing that *Somani's* judgement was given ex tempore. A more careful analysis might well have revealed that as the Court followed an obsolete law, it had acted *pro tanto* without jurisdiction. The Constitutional scope of the Court is to declare the law as Parliament has directed by statute at the time. It would be dangerous for the court to allow a judgment to stand upon laws which Parliament has directed shall not be followed; and certainly the issues between the parties could not have been fairly and properly tried between them. It may be Somani's case should be reviewed at an appropriate time.

We subscribe to the sentiments expressed by the Supreme Court of Uganda. While accepting the proposition that the Court of Appeal of Tanzania, as was the Court of Appeal for East Africa, has limited inherent jurisdiction within the exceptions stated in *Somani's* case, we are satisfied that there is also inherent jurisdiction to review its decisions whenever such decisions are based on manifest error on the face of the record resulting in miscarriage of justice as was the situation in *Bwogi's* case.

In the matter before us, this full bench of the Court is not dealing with the merits of the application brought before the bench of three justices. We are dealing with the narrow issue of whether the Court of Appeal of Tanzania has inherent jurisdiction to review its own decisions. We have found that it has inherent jurisdiction to the limited extent outlined above. Whether or not the particular application brought before the bench of three justices of this court falls within the scope outlined above is for the bench of three justices to decide. In the final analysis therefore, we overrule the objection and remit the remaining matters to the bench of three justices for decision and any other action relating to the application.

ATTORNEY GENERAL
v.
REV. CHRISTOPHER MTIKILA

COURT OF APPEAL OF TANZANIA
AT DODOMA
(Kisanga, Ag.C.J., Ramadhani and Mfalila, JJ.A.)

CIVIL APPEAL No. 3 OF 1995

(From the decision of the High Court of Tanzania at Dodoma (Lugakingira, J.), dated 24th October 1994, in Civil Case No. 5 of 1993: [1995] T.L.R. 34.)

Constitutional Law and Practice – Separation of Powers and Smooth Administration of Justice – Government pursuing a remedy through the courts and pursuing the same remedy through legislative process at the same time – Improper and contrary to good governance

Civil Practice and Procedure – Court's power to make a decision – Court makes a finding that petitioner has not shown the grounds for seeking a remedy and then declines to make decision refusing the remedy – Whether proper

Constitutional Law and Practice – President of the United Republic and non-union matters – Powers of the President to appoint Zanzibaris to head Tanzania Mainland's establishments that deal with non-union matters – Whether constitutional – Articles 4(3), 34(1), 36(2) and 55(1) of the Constitution of the United Republic of Tanzania 1977

The respondent had petitioned the High Court asking for, *inter alia*, a declaration that it was lawful for independent candidates to contest in presidential, parliamentary and local government elections, and that the laws

restricting the right to contest in elections to members of political parties only was unconstitutional. After hearing the petition the High Court reserved its ruling. While the ruling was being awaited the Government presented in Parliament a Bill to amend the Constitution so as to deny the right of independent candidates to contest in elections. A week later, and before Parliament could pass the proposed amendment, the High Court delivered its ruling declaring it lawful for independent candidates to contest in elections. The Government appealed against that decision. Before the appeal could be heard, Parliament passed the Bill to amend the Constitution and deny private candidates the right to stand for elections. At the hearing of the appeal the Senior State Attorney appearing for the Attorney General applied to withdraw the appeal. There was also a cross appeal by the respondent.

Held:

(i) *obiter:* As the appellant had, through the constitutional amendment, got what he wanted to get from the court, proceeding with the appeal would be purely academic and of no practical purpose, and it would amount to an abuse of the court process;

(ii) *obiter:* The Government drew the Judiciary into conflict with Parliament by asking the two organs to deal with the same matter simultaneously, ending into two conflicting results: the court upholding the right of private candidates and Parliament barring that right; such a state is regrettable and undesirable, and is incompatible with the smooth administration of justice;

(iii) *obiter:* Once the Government decides to pursue a remedy through the courts of law, it should desist from pursuing another line of remedy in respect of the same matter until the court process comes to an end;

(iv) Consistent with his pleadings, it was upon the respondent to show how he was affected or likely to be affected by s.13 of the Newspapers Act 1976 which empowered the Minister to require bonds from publishers; on the record, there was no evidence to support the respondent's claim;

(v) Once the respondent had failed to substantiate his claim, the court should not have declined to make a pronouncement on the issue but should have

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(v) Once the respondent had failed to substantiate his claim, the court should not have declined to make a pronouncement on the issue but should have

proceeded to conclude the matter by refusing to grant the declaration sought and dismissing that part of the claim;

(vi) The power of the President of the United Republic of Tanzania to appoint persons to any office in the public service of the United Republic, which includes Mainland Tanzania, is virtually unfettered; by appointing Zanzibaris to positions in the public service of the United Republic the President has not failed to comply with any provision of the Constitution or of any written law.

Appeal marked withdrawn; cross-appeal dismissed

Mr. K.M. Mussa, for the Appellant
Mr. D.C. Mbezi, for the Respondent

JUDGMENT OF THE COURT

(Dated 23 May 1995)

Kisanga, Ag. C.J.: On 24.10.94 the High Court (Lugakingira, J.) sitting at Dodoma handed down a ruling on a Petition which had raised a variety of issues relating to fundamental human rights. The Attorney General who was a party to the proceedings appealed against part of that Ruling, and Rev. Christopher Mtikila who had instituted the proceedings cross-appealed.

When the matter came on for hearing before us, Mr. K.M. Mussa, learned Senior State Attorney appearing for the Republic, gave a brief account of what had happened leading to the Eleventh Amendment to the Constitution which, he said, had had an impact on the appeal. The said amendment introduced a clarification to Article 21(1) of the Constitution making it clear that no one shall stand as a private candidate for presidential, parliamentary or local councils elections. A person may do so only through membership of and sponsorship by a political party. Counsel went on to say that this, in effect, rendered ineffective or nullified the Ruling of the High Court in which, following

the interpretation of the relevant provisions of the Constitution, it was declared lawful for independent candidates to contest presidential, parliamentary and local coucils elections. Mr. Mussa, therefore, applied to abandon grounds 2 and 3 of his memorandum of appeal raising this issue which has now been overtaken by the event. Upon further reflection the learned counsel conceded that the remaining grounds 1 and 4 could not be argued independently of the issues raised in ground 2 and 3 which he had abandoned; therefore he decided to apply to withdraw the whole appeal. Mr. D.C. Mbezi, learned advocate for the respondent raised no objection to the application but asked for costs. We granted the application extempore but promised to have the order embodied in our final decision disposing of this matter.

We entirely agree that the course adopted by the learned Senior State Attorney is the correct one in the circumstances. The appellant, through a constitutional amendment, has already get what he wanted. To proceed with the appeal now would be a purely academic exercise and would serve no practical purpose. Indeed it would amount to abuse of the court process. It is for that reason that we granted the application by the learned Senior State Attorney and, in terms of rule 3(2) (a) and (c) of the Court of Appeal Rules, accordingly had the appeal marked withdrawn, with costs to the respondent.

Having done that, however, we are constrained to have to point out some aspects in the handling of this matter by the appellant which cause great concern. At the conclusion of hearing the respondent's petition by the High Court, that court reserved its ruling on the matter. Among the issues on which ruling had been reserved was the right of independent candidates' to stand for presidential, parliamentary and local councils elections on which the respondent had specifically petitioned the High Court for a declaration. While the Ruling was thus being awaited, the Government on 16.10.94 presented a Bill in Parliament seeking to amend the Constitution so as to deny the existence of that right, thus pre-empting the court Ruling should it go

against the Government. This is where things started going wrong. The Government was now adopting parallel courses of action towards the same end by asking Parliament to deal with the matter simultaneously with the High Court. That was totally wrong for reasons which will be apparent presently.

The High Court on 24.10.94 gave its Ruling granting the declaration sought. This dissatisfied the Government and, therefore, the appellant on behalf of the Government filed a notice of appeal to this Court dated 31.10.94, again knowing fully well that he had on 16.10.94 presented in parliament a Bill which, if passed, would render ineffective or nullify the High Court Ruling. Parliament duly passed the Bill on 2.12.94 denying the right of private candidate to stand for presidential, parliamentary or local councils elections.

Thus the Government consciously and deliberately drew the Judiciary into a direct clash with Parliament by asking the two organs to deal with the same matter simultaneously. For, as it turned out, that exercise ended up producing two conflicting results, the court upholding the right of private candidates to stand for Presidential, Parliamentary and local Councils elections on the one hand, and Parliament barring such right on the other. Such a state of affairs was both regrettable and most undesirable. It was wholly incompatible with the smooth administration of justice in the society, and every effort ought to be made to discourage it. Once the Government decides to pursue or to have a matter pursued through the courts of law, it should desist from pursuing another line of remedy in respect of the same matter until the court process has come to finality. In the instant case, had the amendment been initiated and passed after the court process had come to finality, that in law would have been all right procedurally, the soundness of the amendment itself, of course, being entirely a different matter. Then the clash would have been avoided. Indeed that would be in keeping with good governance which today constitutes one of the attributes of a democratic society.

Turning now to the cross-appeal Mr. Mbezi had listed four grounds

in his notice of cross-appeal. At the hearing, however, he argued only two grounds and abandoned the rest. The two grounds which he argued alleged that:

1. The learned trial judge erred in law in failing to make a finding on the constitutionality of section 13 of the Newspapers Act 1976.

2. The learned trial judge erred in holding that the act of the Union President appointing Zanzibaris to head strictly Tanganyikan non- Union matters was not unconstitutional.

On the first ground the respondent had alleged in his petition that his right of freedom of expression through newspapers had been restricted or denied by section 13 of the Newspapers Act, No. 3 of 1976, which gives arbitrary powers to the Minister to require bonds from publishers. That section provides:

> 13 – (1) The Minister may by notice in writing require any publisher of a newspaper to execute and register in the office of the Registrar a bond in the prescribed form in such sum as may be specified in the notice with one or more sureties as may be required and approved by the Minister.
>
> (2) Every bond required under subsection (1) shall be conditioned.
>
> (a) For the payment of any monetary penalty that may at any time be imposed or adjudged against the publisher or any person acting for him in his absence upon his conviction for any offences, under this Act or under any other written law, committed after the execution of the bond, relating to the printing or publication of the newspaper or of any matter therein and all costs incidental thereto; and
>
> (b) For the payment of all such damages and costs as may be

awarded to the plaintiff in any action or proceeding brought at any time after the execution of the bond in respect of any matter printed or published in the newspaper.

(3) Where the person required to execute a bond under this section is a company, the bond shall be executed under its title of incorporation and under the hand of the secretary and any two directors and under the common or corporate seal of such company, and by such sureties as the minister may require and approve

(4) Every bond required by this Act shall be executed in the presence of a magistrate, and of one witness not being a party thereto, each of whom shall subscribe his name, with the addition of his place of residence or business, and his office, profession or occupation.

(5) A bond entered into under this section may be enforced before any magistrate in the same manner as a bond under the Criminal Procedure Code.

The trial judge considered the matter at some length and came to the conclusion that there was no evidence to show that the provisions of this section had affected, were effecting or were likely to affect the rights of the respondent or, for that matter, the right of the society or any section of the society.

Mr. Mbezi in his submission before us contended that the provisions of the section have criminal undertones such as the executing of bonds, the payment of penalties and enforcement of bonds through criminal process. Such undertones, he said violated the right of presumption of innocence in favour of the publishers.

First of all it is necessary to be clear what the respondent's claim at the trial was. In paragraph 12 of his amended Petition, the respondent had made it very clear that the complaint was about his own right of freedom of expression by use of newspapers having been

restricted or denied by section 13 as reproduced above.

In Tanzania the right to institute proceedings to protect fundamental rights or to ensure preservation of the Constitution and other laws of the country is conferred by Articles 26(2) and 30 (3) of the Constitution, but relevant to the respondent's case was Articles 30(3) which provides that:

> 30 – (3) Where any person alleges that any provision of this part of this chapter or any law involving a basic right or duty has been, is being or is likely to be contravened in relation to him in any part of the United Republic, he may, without prejudice to any other action or remedy lawfully available to him in respect of the same matter, institute proceedings for relief in the High Court.

Section 13 of the Newspapers Act complained of empowers the Minister to require any publisher of a newspaper to execute and registrar a bond in the office of the Registrar of Newspapers. Consistent with his pleadings in paragraph 12 of the petition, it was incumbent on the respondent to show how section 13 of the Newspapers Act, empowering the Minister to require bonds from publishers has affected, is affecting or is likely to affect his right of freedom of expression by use of newspapers. In other words since the respondent personalized the complaint, he was expected to show, consistent with the pleadings, how he personally was the victim or the likely victim of the offending provision of the law. Upon our reading of the record we could find no such evidence. Like the trial judge, therefore, we find that there was no material before the court to substantiate the respondent's claim.

The trial judge having come to that conclusion, stated that he declined to make any pronouncement on the issues, and Mr. Mbezi complained of such omission in the course of arguing this appeal. We think that there is merit in this complaint. The respondent had petitioned the court for a declaration that s.13 of the Newspapers Act was

unconstitutional. He was entitled to a decision one way or the other, and the court was not justified to merely say that it declined to make a pronouncement on the issue, thus leaving the matter hanging in the air. We think that once the respondent had filed to substantiate his claim then the court should have proceeded to conclude the matter by refusing to grant the declaration sought and accordingly dismiss that part of the claim, which we now do.

The issue involved in the second ground of appeal is that the trial judge erred in holding that it was not unconstitutional for Zanzibaris to be appointed to non-Union positions on the Mainland. The trial judge came to that conclusion because he found no provision in the Constitution which prevented the President from appointing Zanzibaris to non- Union positions on the Mainland.

Mr. Mbezi's contention, both in this Court and in the High Court, was that the Constitution deliberately draws a distinction between Union and non-Union matters (Article 4 (3)), and confers on the Union Government authority over Union matters in and for the United Republic on the one hand and, on the other, authority over non Union matters in and for Mainland Tanzania (Article 31 (1)). The provisions of these Articles are set out herein below for ease of reference:

> 4 – (3) For the purposes of the more efficient discharge of public affairs in the United Republic, and for the effective division of functions in relation to these affairs amongst the organs specified in this section, there shall be the union matters specified in the First Schedule to this constitution, and non-union matters which are all other matters which are not union matters.
>
> 34- (1) The shall be a Government of the United Republic which shall have authority with respect to all Union Matters in and for the United Republic and with respect to all other matters in and for Mainland Tanzania.

In his view this distinction was not simply for fun; it was for a purpose.

Therefore in order to make it meaningful and to promote the contemplated purpose, learned counsel went on, the view must be taken that non-Union matters on the mainland Tanzania have to be managed or run by mainlanders and consequently the appointment of people to run such non-Union matters in and for Mainland Tanzania must be restricted to mainlanders only.

But, as the learned trial judge said, the Union President has wide powers under the constitution to appoint persons to offices in the public service of the United Republic. Article 36 (2) of the Constitution provides that:

> 36 – (2) Subject to the provisions of this constitution and of any relevant written law, the power to appoint persons to offices in the public service of the United Republic, and the power of promotion, termination of appointment, dismissal and disciplinary control of persons appointed to those offices shall be exercised by the President, the Service Commissions and such other authorities as may be specified in respect orany office of category of offices by this Constitution or any relevant written law.

Again Article 55 (1) of the Constitution says:

> 55 – (1) All Ministers who are members of the cabinet by virtue of section 54 shall be appointed by the President after consultation with the Prime Minister, and they shall be responsible for such offices as the President may from time to time by writing under his hand and the Public seal, establish.

The power of the Union President to appoint persons to any office in the public service of the United Republic, which includes Mainland Tanzania, is virtually unfettered; it is made subject only to his compliance with the provision we were not able to find , and counsel did not refer us to any provision of the Constitution or of any written

law which the President can be said to have failed to comply with in his appointment of Zanzibaris to positions in the Public service of the United Republic. We could find nothing in the Constitution or in any written law which places any restriction on the President's power to appoint Zanzibaris to any position in the pubic service of the United Republic.

The view that the appointment of persons to run non Union matters in and for Mainland Tanzania should be restricted to mainlanders only is, therefore, untenable on the law as it stands at the moment. Indeed that view may well represent what is considered to be the desirable thing to do, but as a matter of law it would be over stretching the construction of Articles 4 (3) and 34 (1) of the Constitution, reproduced above, in order to accommodate such view. If such is the general view of the society on this matter, then the President through practice should take cognizance of the same in making the relevant appointments, else appropriate steps should be taken to make clear provisions for it in the country's Constitution. The learned judge was therefore, in our view, justified to refuse, as he did, to grant the declaration sought.

In the result, for the reasons set out hereinbefore the cross appeal fails and it is accordingly dismissed with costs.

DISCILE NG'ONJA, OLIPA NG'ONJA, EPIMARK MWEGOMA, GLORIA NG'ONJA & RAHEL NG'ONJA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Omar and Lubuva, JJ.A.)

CRIMINAL APPEAL No. 139 OF 1993

(From the decision of the High Court of Tanzania at Morogoro (Kyando, J.), dated 10th April 1992, in Criminal Sessions Case No. 21 of 1991)

Evidence – Corroboration – Evidence needing corroboration – In a trial for murder: evidence for the prosecution given by a brother of the deceased – Whether needing corroboration

Criminal Practice and Procedure – Final submissions in criminal trials – Right of reply by the prosecution – Sections 296 and 201 of the Criminal Procedure Act 1985

Criminal Law – Murder – Malice aforethought – Death from injuries inflicted in the course of a squabble at the end of a drinking session and in which no lethal weapon is used – Whether malice aforethought is established

The five appellants, members of the same family, assaulted the deceased, inflicting on him injuries that led to his death shortly after. The assault occurred at the appellants' home towards the end of a pombe drinking session where the deceased also participated. The appellants were then charged with and convicted of murder. The case for the prosecution had rested solely on the evidence of PW.1, a brother of the deceased who was an eye witness to the incident. On appeal:

Held:

(i) PW.1 was not a suspect in the homicide and the fact that he was a brother of

the deceased did not, by itself, make him a person with an interest of his own to serve in the matter and his evidence required no corroboration; it only required to be approached with caution, which the trial judge did;

(ii) As the defence in this case adduced no evidence other than that of the accused persons, and neither the Attorney General nor the Deputy Attorney General nor the Director of Public Prosecutions appeared in person, the prosecution had no right of reply in making the parties' respective final submissions; therefore, the prosecution wrongly exercised the right of reply and this contravened ss.296 and 201 of the Criminal Procedure Act 1985;

(iii) Malice aforethought and common intention were issues that the defence ought to have dealt with whether or not the prosecution raised them in its reply; failure by the defence to deal with those issues had nothing to do with the prosecution being wrongly allowed to exercise the right of reply;

(iv) As the injuries leading to the death of the deceased were inflicted in the course of a squabble at the end of a day's drinking session with no lethal weapon used, malice aforethought cannot be said to have been established beyond reasonable doubt.

Appeal partly allowed

Case referred to:

(1) *Mbushuu @ Dominic Mnyaroje and Another v. Republic,* [1995] T.L.R. 97

Mr. *Malolo,* for the Appellants
Mr. *Naali,* for the Republic

JUDGMENT OF THE COURT

(Dated 3 July 1995)

Kisanga, J.A.: The five appellants were jointly charged with and convicted of murder contrary to section 196 of the Penal Code. The appellants

Discile Ng'onja, Olipa Ng'onja and Epimark Mwegoma were each sentenced to death, while Gloria Ng'onja and Rahel Ng'onja aged 15 and 13 years respectively were each sentenced to be detained during the President's pleasure. They have now appealed.

Essentially the case for the prosecution was that the appellants, who are members of the same family, jointly and together assaulted the deceased, inflicting on him injuries which led to his death only shortly afterwards. The assault was by way of revenge on the deceased for tearing or damaging a dress belonging to the appellant Rahel about one week before the day of the incident. The case for the prosecution rested solely on the evidence of Harold (P.W. 1), a brother of the deceased who eyewitnessed the incident. He testified that on the material day he and the deceased were at the home of the appellants drinking pombe. Towards the end of the drinking session the appellant Discile, who is the head of the family, for no apparent reason assaulted the deceased and threw him to the ground. As he continued to assault him on the ground each of the other appellants participated in the assault. P.W. 1 intervened and managed to separate the deceased from the assailants. The deceased walked away after that but died only shortly afterwards before reaching home. According to the post mortem report death was due to internal haemorrhage following a rupture of the spleen and the liver.

All the appellants denied any involvement in the assault occasioning the death of the deceased. The trial judge rejected the defence and, accepting the evidence of P.W. 1, convicted the appellants as charged.

In this appeal the appellants were represented by Mr. Malolo, learned advocate, while Mr. Naali, learned State Attorney, appeared for the respondent Republic. The joint memorandum of appeal raised four grounds of appeal. The first ground criticises the trial judge for rejecting the appellants' defences and accepting the uncorroborated evidence of the prosecution witnesses who, being relatives, had an interest of their own to serve. As stated earlier the prosecution case rested solely on the evidence of P.W. 1, a brother of the deceased, who eyewitnessed the incident. P.W.2 was also a brother of the deceased but his evidence was

only peripheral because he was not at the scene or even in the neighbourhood of the scene of the incident; indeed he only came across the deceased as he was returning home when the deceased had collapsed on the way and was in a critical condition. P.W.2 did not claim to have witnessed the assault or to have any knowledge of what had happened rendering the deceased in the critical condition he found him.

The true position, therefore, is that P.W. 1 is the only brother of the deceased who gave damning evidence against the appellants. But the witness had no interest of his own to serve in the matter as claimed on behalf of the appellants in this appeal. For, it was not alleged and there is nothing to suggest that P.W. 1 was a suspect or that should the appellants be acquitted he would be the next suspect. The fact that he was a brother of the deceased by itself did not make him a person with an interest of his own to serve. As such, therefore, P.W. 1's evidence although being the evidence of a relative, required no corroboration either in law or as a matter of practice. It only required to be approached with caution because of the possibility that the witness might have been tempted to exaggerate his story in an attempt to ensure that someone is held responsible for the death of his relative. This the trial judge did when, after finding that P.W. 1 was a witness of truth, he went on to say,

> Of course the deceased was his brother and one has to always guard oneself against the possibility of his trying to pin the responsibility for his brother's death on anyone. In this case I am satisfied that he testified truthfully.

There was evidence that P.W. 1 knew all the accused persons well before the incident as they were his co-villagers. The incident took place in the evening when there was still day light, and the witness spent some time with the accused persons when he intervened and rescued the deceased from their joint attack. Like the trial judge, we are satisfied that in those circumstances P.W. I correctly identified the appellants as the assaillants of the deceased.

The complaint in the second ground is that the trial judge wrongly allowed the prosecution to exercise the right of reply in contravention of sections 296 and 201 of the Criminal Procedure Act. Those sections provide in effect that at the conclusion of the evidence for both sides, if the defence called no witnesses then in their final submissions the prosecution starts and the defence has the right of reply, the only exception being where the Attorney General, Deputy Attorney General or the Director of Public Prosecutions appears in person. In this case admittedly the defence adduced no evidence other than that of the accused persons and neither the Attorney General, Deputy Attorney General nor the Director of Public Prosecutions appeared in person. Therefore the prosecution should not have exercised the right of reply as it did.

It was alleged for the appellants that such irregularity was prejudicial to the defence because the defence was precluded from commenting on the issues of malice aforethought and common intention introduced by the prosecution in its reply. It must be pointed out at once that malice aforethought and common intention were issues which in this case the defence ought to have dealt with whether or not the prosecution raised them in its reply. Therefore the defence itself was to blame for not dealing with such obvious matters when it had the opportunity to do so in its submission. In other words the defence failed to deal with the issues of malice aforethought and common intention out of its own indiligence and not because the prosecution was allowed to exercise the right of reply.

This brings us to the third ground of appeal which urges that the evidence did not support conviction for murder. We think there is merit in this submission. The injuries leading to the death were inflicted in the course of a squabble at the end of a day's drinking session which might well be described as a drunken squabble in which no lethal weapon was used. It seems that the appellants jointly assaulted the deceased as an expression of their anger and displeasure arising from the decease tearing or damaging the dress of the appellant Rahel, and that in the

course of demonstrating such displeasure, and without using any lethal weapon, they inflicted the fatal injury or injuries. In the totality of all those circumstances we think that malice aforethought cannot be said to have been established beyond reasonable doubt. In our view therefore the evidence could only support conviction for the lesser charge of manslaughter.

The fourth ground alleges that the death penalty passed on the appellants Discile Ng'onja, Olipa Ng'onja and Epimark Mwegoma contravened the provisions of Article 13(6)(e) of the country's Constitution. On this point we wish to say no more than that in the recent case of *Mbushuu @ Dominic Mnyaroje and Another v. Republic (1)*, this Court held that in Tanzania the death penalty is not unconstitutional.

In the result, the appeal is partly allowed. The conviction for murder is quashed and for the reasons above stated we substitute therefore conviction for manslaughter contrary to section 195 of the Penal Code. We set aside the sentence of death passed on the appellants Discile Ng'onja, Olipa Ng'onja and Epimark Mwegoma and substitute therefore the sentence of 7 years' imprisonment for each of them. And lastly the sentence of detention during the President's pleasure passed on the appellants Gloria Ng'onja and Rahel Ng'onja is also set aside. We sentence each of these to such a prison term as will result in their immediate release from prison unless they be held on some other lawful ground.

MATHIAS BUCYANA *v.* REGISTRAR OF BUILDINGS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Mfalila and Lubuva, JJ.A.)

CIVIL REFERENCE NO.10 OF 1994

(From the order of a single judge of the Court of Appeal of Tanzania at Dar es Salaam (Omar, J.A.), dated 9th November 1994, in Civil Application No. 41 of 1992)

Civil Practice and Procedure – Execution – Stay of execution pending appeal – Application for stay of execution where there are no prospects of the intended appeal taking off

Civil Practice and Procedure – Execution – Stay of execution pending appeal – Stay of execution sought 8 years after judgment was entered and time to take essential steps to prosecute the appeal has expired – Whether grant of stay of execution fair and just

Each time his application for stay of execution came up for hearing the Applicant sought an adjournment to enable him to engage an advocate; but he never managed to get one, even after hearing had delayed for several months. The judgment whose execution he sought to stay was 8 years old. Some essential steps for prosecuting the appeal had not been taken and the time prescribed for taking them had already expired.

Held:

(i) The intended appeal has no prospects of taking off as the applicant has no intention of appealing but is merely employing delaying tactics;

(ii) It would be neither fair nor just to continue denying the respondent the fruits of the judgment that accrued 8 years ago.

Application dismissed

Mr. *D. Kesaria,* for the Respondent

RULING OF THE COURT

(Dated 3 July 1995)

Kisanga, J.A.: This is a second time this matter is coming to us by way of a reference. The first time it did so was at the instance of the Respondent, the Registrar of Buildings, on the ground that upon an application by the applicant for a stay of execution, the Single Judge had wrongly granted an adjournment for one month to enable the applicant to engage the services of Counsel. On 13.6.94 we disallowed the reference and remitted the matter back to the learned Single Judge for the hearing of the application for a stay of execution which was before him. The matter came before the Single Judge on 31.10.94; that was about 16 months after his order for adjournment. The applicant was still without counsel and so he asked for another one month's adjournment during which to find one. The request was refused and the learned single judge proceeded to hear the application for a stay of execution which he dismissed with costs. It is from that ruling that this reference now arises.

When the matter came up for hearing before un the applicant who was without Counsel stated that he was coming from prison where he was serving a jail tern. He claimed that he had duly instructed his advocate, Mr. Dominic Kashumbugu, to represent him, but as he came from prison that morning his brother told him he went to Mr. Kashumbugu's place where he did not find Mr. Kashumbugu because he (Mr. Kashumbugu) had been bereaved. The applicant therefore asked for adjournment to enable him to communicate with his Counsel. Mr. D. Kesaria, learned advocate for the respondent, vehemently opposed the application on the ground that there was no truth in the allegation and that this was merely a continuation of the applicant's delaying tactics. We refused the application for adjournment because that application was based on hearsay in that the person who allegedly informed the applicant's brother

that Mr. Kashumbugu was bereaved did not appear to support that assertion. Even if, for the sake of argument, Mr. Kashumbugu had appeared, we could see no chances whatsoever of his application succeeding. We therefore proceeded with the hearing, and the applicant argued the reference in person.

The learned single Judge had refused the application for a stay of execution essentially on the ground that the purported appeal would really not take place. The ruling from which the whole matter arises was given by the Housing Appeals Tribunal about 8 years prior to the hearing of the application. An appeal from such a ruling entails taking a number of essential steps, such as, seeking leave to appeal, application for a copy of proceedings and the lodging of the appeal. The learned Judge upheld the submissions by the respondent's counsel that all these essential steps had not been taken in this case, and that the time prescribed for them by the Rules of the Court of Appeal had long expired. He therefore took the view that such inordinate delay of 8 years in taking the essential steps demonstrated that the applicant had no genuine intention of prosecuting the purported appeal. He also found that the applicant had little or no financial means to prosecute the appeal because he had informed the learned Judge that he had spent all his money in conducting his defence in the criminal case in respect of which he is currently in prison.

In arguing the reference before us the applicant asserted that he had already taken all the essential steps in the intended appeal. However, that is not borne out by the affidavit filed in support of his notice of motion seeking for stay of execution. To that affidavit the only averment made is that he had filed a notice of appeal; we can find nothing on the record to support his assertion that he has already taken all the essential steps, and therefore we can find no ground for faulting the single Judge's finding on that issue.

Like the learned Single Judge we are satisfied that there are no prospects of the purported appeal taking off. The applicant has no genuine intention of pursuing the matter; he is merely employing delaying

tactics. It would be neither fair nor just to continue to deny the respondent the fruits of the judgment/ruling which accrued some 8 or so years ago. We think that execution should proceed. If the applicant decides to genuinely pursue the appeal, which will obviously involve further delays by reason of asking for extensions of time to take necessary steps, and if eventually he wins the appeal, then he can claim to be compensated for any damages of inconveniences that he might have suffered. We increasingly think that this better meets the ends of justice than to grant a stay of execution in the circumstances of this case.

In the result the reference fails and it is accordingly dismissed with costs.

MELITA NAIKIMINJAL & LOISHILAARI NAKIMINJAL *v.* SAILEVO LOIBANGUTI

COURT OF APPEAL OF TANZANIA
AT ARUSHA
(Nyalali, C.J., Makame and Kisanga, JJ.A.)

CIVIL APPEAL NO. 8 OF 1994

(Appeal from the Judgment and Decree of the High Court of Tanzania at Arusha (Munuo, J.), dated 18th June 1992, in Civil Appeal No. 23 of 1991)

Appeal – Second Appeal – Issues for determination on a second appeal – Whether issue not raised on a first appeal may be raised for the first time on a second appeal

Evidence – Record of previous proceedings – Record of previous court proceedings tendered as exhibit in present proceedings – No witness called to explain contents of the exhibit – Whether court may search for contradictions or corroborations therein after hearing is concluded

Appeal – Consideration and determination of case on appeal – Whether appellate court must consider separately each ground of appeal raised

This is a second appeal from a suit in which the appellants sought orders of declaration that the land in dispute was lawfully theirs, and for damages for trespass. The respondent counter claimed damages for trespass. The suit was dismissed and the counter claim was granted. The appellants appealed to the High Court and succeeded only to set aside the order for damages on the counter claim; they lost the issue of ownership of the land in dispute. They appealed further to the Court of Appeal.

Held:

(i) An issue not raised before the first appellate court cannot for the first time be raised before and entertained by the second appellate court;

(ii) Where a record of previous court proceedings is tendered as an exhibit in current proceedings but no opportunity is given to any witness to explain any alleged contradictions or inconsistencies therein, the court cannot, after conclusion of the hearing, embark on a secret search for contradictions, inconsistencies or corroborations therein;

(iii) As long as it has a full grasp of the case, an appellate court has discretion to summarize the case and the grounds of appeal in its judgment and need not separately deal with them seriatim;

(iv) The appellants, being the plaintiffs, failed to discharge their burden of proving the case on a balance of probabilities.

Appeal dismissed

Cases referred to:
(1)*Alwi A Saggaf v. Abed A Algeredi* [1961] E.A. 777
(2)*Peters v. Sunday Post Ltd* [1958] E.A. 424

(3)*Damodar Jinaghai & Co Ltd and Another v. Eustace Sisal Estates Ltd* [1967] E.A. 153

Mr. *Lobulu*, for the Appellants
Mr. *Mwale*, for the Respondent

JUDGMENT OF THE COURT

(Dated 3 August 1995)

Nyalali, C.J.: This is a second appeal by the two appellants, namely, Melita Naikiminjal and Loshilaari Naikiminjal, hereinafter called the appellants. Their first appeal was to the High Court of Tanzania at Arusha. The appellants' father, namely Naikininjal Loibanguti, instituted a suit in the court of the Resident Magistrate for Arusha Region in July 1988 against the respondent Sailevo Loibanguti in respect of a piece of land situated in Losikito Village, Mwandet Ward, in Arusha District. Subsequently the plaint was amended in November 1988 substituting the appellants for their father. The amendments were made consequent upon appellants' father giving the piece of land in dispute to the appellants. The suit sought a declaration to the effect that the piece of land in dispute lawfully belonged to the appellants, and payment of damages by the respondent for trespass. The respondent in his defence counterclaimed for payment of damages for trespass by the appellants. At the conclusion of the trial, the court dismissed the appellants' claims and granted the counterclaim by the respondent with interest and costs.

The appellants were aggrieved by the decision of the trial court and they appealed to the High Court. The appeal was partly successful and partly unsuccessful in that the first appellate court, Munuo, J., allowed the appeal in respect of the counterclaim but otherwise dismissed the appeal. The appellants were further aggrieved by the decision of the High Court and they sought leave to appeal to this court according to law. The High Court, Mushi, J. rejected the application. The appellants then successfully sought such leave from a single judge of this Court,

Ramadhani, J.A. Mr. Lobulu learned advocate, and Mr. Mwale, learned advocate, represented the appellants and respondent respectively throughout these proceedings in this Court and the two courts below. Mr. Sang'ka appeared for the respondent for part of the proceedings at the trial.

It is apparent from the proceedings in this court and the two courts below that the appellants and the respondent are closely related. The appellants are brothers and the respondent is their uncle by virtue of being a brother of their late father Naikiminjal Loibanguti. It is common ground that the piece of land in dispute was once part of land belonging to one Loibanguti Londurot, the father of both the respondent and appellants' late father, and thus the grandfather of the appellants. The said Loibanguti Londurot died a long time ago but was survived by many sons and daughters, including the respondent and the late father of the appellants.

It is common ground also that before the said Loibanguti Londurort died, he distributed some of his land between his sons, including the respondent and the late father of the appellants. There is common ground also that prior to the present dispute, appellants' father was involved in another dispute concerning ownership of land in his locality. That case was tried and decided by Emaoi Primary Court as Civil Case No. 107 of 1968. It went on appeal to the District Court of Arusha District as Civil Appeal No. 12 of 1969 and to the High Court at Arusha as (PC) Civil Appeal No. 22 of 1970. The judgments of the Primary Court and High Court were produced at the trial collectively as exhibits Pl. It is not in dispute between the parties that besides the present case, Melita Naikiminjal, (the first appellant in this case) has been involved in a criminal case, that is , Criminal Case No. 135 of 1989, for which he was convicted and fined. The record of the case was produced at the trial as exhibit P2. There is also no dispute between the parties to this case that the present dispute has given rise to proceedings before the Arusha Land Tribunal which were still pending between the respondent and the late father of the appellants at the time

of hearing of this case. The record of proceedings was produced as exhibit P3 at the trial.

It is apparent from the proceedings both in the court and the two Courts below that the appellants contend that the piece of land in dispute belonged to their late father, who subsequently gave it to the appellants after the commencement of this case. It is part of the appellants' case that their father's title to that land was confirmed by courts of law in the civil case referred to in exhibit Pl. The appellants further contend that the respondent has, on several occasions, trespassed into the appellants' land and cut down appellants' trees and banana plants.

On the other hand, the respondent's case according to the proceedings in this court and the two courts below is that the piece of land in dispute does not belong to the appellants, but belongs in common to the sons of appellants' grandfather, namely, Loibanguti Londurot, who had set it aside as common pasture or grazing land for cattle of his many sons. It is part of respondent's case that the late father of the appellants was so troublesome that Loibanguti Longurot gave him his separate pasture land as part of his patrimony, and excluded him form the common posture land. Furthermore, it is respondent's case that the Civil Case adjudicated in exhibit P1 concerned land which is different from the land in dispute in the precent case. In conclusion, respondent contends that the late father of the appellants has, on divers occasions, trespassed into the land in dispute and wrongfully planted trees therein.

The first important point for consideration and decision, and which is the subject of ground number one in the Memorandum of appeal filed for the appellants, is whether the trial court delivered its judgment, and if not, what are the legal consequences of the failure. Unfortunately, this issue was not raised by the appellants in the first appeal in the High Court. The issue is being raised for the first time before us in ground number one thus:

> The Honourable judge erred in law in not holding that as it is self – evident from the record that the trial court did not pronounce the judgment and did not give due notice of day of judgment to parties and their Advocates there is no judgment in law.

Obviously, the appellants cannot be heard to complain against the first appellate judge, as that judge was not bound to decide the appeal on issues or matters not raised by the appellants. After all, both appellants were represented by experienced counsel and the judge was entitled to assume that any apparent error which has been omitted by counsel has been omitted for good reason. As it was stated in a slightly different context by the Court of Appeal for Eastern Africa in the case of *Alwi A. Saggaf v. Abed A. Algeredi (1):*

> It may be that there is substance in Mr. Chaddah's contention, but, in my opinion, to allow the point to be taken for the first time on second appeal could be grossly unfair to the appellant.
>
> The point was never pleaded, was never in issue at the trial, and the relevant facts were never investigated. The Written statement of defence was drawn by, and the respondent was represented at the trial by, a counsel of known experience and ability. It is difficult to supposes that he would not have raised so obvious a matter unless he was satisfied there was a good defence to it...

We think that, although the above cited statement was made in a slightly different context, the principle is the same. In the present case, counsel for appellants was involved in the preparation of the memorandum of appeal to the High Court. It must be remembered that the same counsel represented the appellants at the trial. He also submitted a lengthy written submission in the first appeal. Counsel for the appellants had therefore every opportunity to raise the issue concerning the judgment of the trial court not being delivered, if in fact it was not. Bearing in mind the experience and ability of counsel for the appellants, we think it would be most unfair to the respondent to decide this case on this issue, when it was not raised in the first appeal.

The second issue for consideration and decision is really the central issue in this case: and it is whether the land in dispute belonged exclusively to the appellants' late father, namely Naikiminjal Loibanguti. The trial court found in affect that the land in dispute did not belong to the appellants' father, but was posture or grazing land belonging in common usage to the 17 sons of Loibanguti Londurot. The High Court generally concurred with the findings of the trial court. The appellants want us to interfere with the findings of the two courts below. Should we do so?

The law regarding the powers of an appellate court to interfere with findings of a trial court on matters of fact has long been established in East Africa as stated by the Court of Appeal for Eastern Africa in the case of *Peters v. Sunday Post Ltd. (2)*. The law, which is adopted from England, is summarized as:

> whilst an appellate court has jurisdiction to review the evidence to determine whether the conclusions of the trial judge should stand, this jurisdiction is exercised with caution: if there is no evidence to support a particular conclusion, or if it is shown that the trial court has failed to appreciate the weight or bearing of circumstances admitted or proved, or has plainly gone wrong, the appellate court will not hesitate so to decide.

The question that arises here is whether the first appellate court ought to have interfered with the finding of the trial court on the issue of ownership of the piece of land in dispute. The trial court in resolving the issue of ownership relied on the evidence given on both sides concerning the boundaries and size of the land in question. The trial court was of the view that the evidence on the side of the appellants was conflicting as to boundaries, size and use. It was on the basis of these contradictions or inconsistencies in the evidence on the side of the appellants, who were then the plaintiffs, that the trial court made its findings.

The first appellate Court, approaching the evidence differently, also came to the same conclusion. The learned first appellate judge discounted the evidence given in support of the appellants on the basis

that the late father of the appellants had taken no action to assert his rights against the respondent' until he died; and that the primary court magistrate (PW.3) who claimed to have once dealt with another dispute concerning the land in dispute, cannot be relied upon to identify the land which is the subject of the present case. Furthermore, the first appellate judge on the evidence of the clan elder (DW.3) who testified in favour of the respondent's case. Like the trial court, the first appellate judge discounted the relevancy of previous criminal proceedings referred to in exhibit P.2. Also, like the trial court, the first appellate judge was of the view that the land which was the subject of adjudication in exhibit P1 is not the same as the piece of land in dispute in this case.

The appellants' complaint, as reflected in the Memorandum of Appeal and the submissions made by learned counsel against the decision of the first appellate court, may be summed up as follows. First, the reasons used by the first appellate court in confirming the decision of the trial court are erroneous. Second, the first appellate judge wrongly concurred with the decision of the trial court without considering the entire record of the trial court.

With regard to the first point, we agree that the first appellate judge misconceived the evidence concerning the conduct of the late father of the appellants in asserting his claim to the land in dispute. As pointed out earlier, this suit was commenced by appellant's father in July 1988, before the appellants entered the case in November 1988. It is thus not correct to say, as the first appellate judge says in a part of her judgment that:

> if it were the same piece of land, the late Naikiminjal Leibanguti would have sued for title against the respondent/defendant when he allegedly trespassed on the land in dispute in 1987 because at that time the land owner was still alive.... The fact that the late Naikiminjal had not instituted any action for recovery of land from the defendant indicates that apart from Nadcoye, the defendant in exhibit P1, nobody else trespassed on the land of Naikiminjal until he died in 1989 in February."

We however think that the learned first appellate judge would have come to the same conclusion if she had properly directed herself on the evidence. We say so because, the mere fact of Naikiminjal instituting the present suit before he died, does not necessarily mean that the land currently in dispute, is the same as the one adjudicated in exhibit P1. After all the parties are not the same in the two cases. In other words, there is no nexus between the land in exhibit P1 and the piece of land which is the subject of the present case.

At to the second point, counsel for the appellants submit that since the record of the trial court included exhibits P2 and P3 (that is the record of the criminal case against the late Naikiminjal Loibanguti and the proceedings before the Land Tribunal) it was incumbent upon the first appellate judge, like the learned trial Resident Magistrate, to examine the contents of those exhibits before deciding the appeal. With due respect to learned counsel for the appellants, we do not think that it would have been proper for the first appellate judge to do so. We say so because the exhibits, though admitted at the trial, do not appear to have been used for any purpose permitted by law. This is apparent from the record of the trial proceedings. On 13.03.90, Mr. Lobulu, Counsel for the appellants, who were the plaintiffs then, is recorded to have told the court:

> Your Honour, I was to close my case but just for the record – I requested that criminal case No. 135/89 be produced by a clerk and also Regional Customary Tribunal Case No. 11/87. Unfortunately the dispatch clerk was away. I request she be given time to trace the files, otherwise I have no more witness to call.

The record further shows that the two case records were produced by Pw.7 and PW.8 on 8.08.90 respectively. The contents of those records were however not subsequently put to any of the witnesses called for the defence and no opportunity was given to any witness to explain any alleged contradiction or inconsistency, if any. As stated by

Sir Charles Newbold, President of the Court of Appeal for Eastern Africa in the case of *Damodar Jinabhai & Co. Ltd. and Another v. Eustage Sisal Estates Ltd. (3):*

> While it is not clear from the appeal record why the record of the previous case was put in .... I consider that counsel would be entitled to refer to the evidence of a witness in these proceedings for the purpose, but the sole purpose, of contradicting or corroborating the evidence of the same witness given in these proceedings.... He would not however, be entitled to refer to evidence of any such witness in those prior proceedings as being evidence of the truth of the statement made in those prior proceedings.

Under the circumstances of the case before us, we are of the considered opinion that it would be improper, not only for the first appellate court, but for the trial court as well, to go on a secret search for contradictions, inconsistencies or corroborations in exhibits P2 and P3, after the conclusion of the hearing, without giving the witness or witnesses concerned opportunity to give explanation.

The other aspect of appellants' complaint concerning the first appellate judge's failure to consider the material presented at the trial, arises specifically from ground number 3 of the Memorandum of Appeal which reads:

> The Honourable Judge ought to have given some indication as to her reasons for not subjecting the evidence of the Respondent or his witnesses to analysis, scrutiny assessment and evaluation and for preferring the evidence of the Respondent and his witnesses to that of the Appellants and for overlooking all the evidence that is in favour of the Appellants.

We think with due respect to learned Counsel for the appellants, that this complaint is baseless. It is apparent that the learned Judge essentially had a full grasp of the case on both sides. This means, in our view, that

she must have considered all the relevant evidence and submission on each side. As a matter of fact, she even reproduced at length some of the submissions made by counsel on both sides. Admittedly, the learned first appellate Judge did not deal separately with each of the eight grounds of appeal contained in the Memorandum of Appeal filed in the High Court. We are, however, of the considered opinion that an appellate court, so long as it grasps the essence of the case before it, has discretion to summarize the case and the grounds of appeal for purposes of conciseness and clarity. This is what the learned first appellate judge did.

She stated in her judgment, "This issue is whether the appellants plaintiffs established their case on a balance of probabilities." We think she was correct. This case really turns on the weight of evidence on both sides. Bearing in mind the discrepancies pointed out by the trial Court in the evidence adduced on the appellants' side, the appellants as plaintiffs cannot be said to have discharged their burden of proving their case on a balance of probabilities, it follows therefore that this appeal must fall in its entirety with costs and we order accordingly.

RETURNING OFFICER OF BUSANDA CONSTITUENCY AND THE ATTORNEY GENERAL

v.

FRENCH MUSIBHA MANONI

HIGH COURT OF TANZANIA
AT MWANZA
(Lugakingira, J.)

CIVIL REVISION No. 27 OF 1995

(From the decision of the Resident Magistrate's Court of Mwanza at Mwanza (S.N. Mafuru, RM), in Miscellaneous Civil Case No. 54 of 1995)

Elections – Election petitions – Meaning of election petition – Elections Act 1985

Elections – Election petitions – Jurisdiction to hear election petitions under the Elections Act 1985 – Whether resident magistrate's court has jurisdiction

The respondent wanted to contest for the Busanda seat in parliamentary elections but he was refused nomination papers by the 1st applicant. The respondent then filed a petition in the resident magistrate's court praying for an order to compel the 1st applicant to give him nomination papers. The petition was heard *ex-parte* and he got the order. The applicants applied to the High Court for revision.

Held:

(i) In matters of election petitions, jurisdiction is solely vested in the High Court as per s.110 of the Elections Act 1985;

(ii) The Elections Act 1985 does not define an "election petition" but it is a petition that seeks to avoid an election; as the petition in this case does not seek to avoid an election, it is not an election petition;

she must have considered all the relevant evidence and submission on each side. As a matter of fact, she even reproduced at length some of the submissions made by counsel on both sides. Admittedly, the learned first appellate Judge did not deal separately with each of the eight grounds of appeal contained in the Memorandum of Appeal filed in the High Court. We are, however, of the considered opinion that an appellate court, so long as it grasps the essence of the case before it, has discretion to summarize the case and the grounds of appeal for purposes of conciseness and clarity. This is what the learned first appellate judge did.

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(ii) The Elections Act 1985 does not define an "election petition" but it is a petition that seeks to avoid an election; as the petition in this case does not seek to avoid an election, it is not an election petition;

(iii) The resident magistrate's court is a creature of statute and has no inherent jurisdiction; it has no jurisdiction to hear election petitions under the Elections Act 1984;

(iv) *Obiter*: The order sought in this case was one in the nature of the prerogative order of mandamus which only the High Court has jurisdiction to grant.

Proceedings and orders of the resident magistrate's court quashed

Mr. Lyimo, Principal State Attorney, for the Applicants
Mr. Nasimire, for the Respondent

ORDER

(Dated 17 October 1995)

Lugakingira, J.: This matter, which arose out of the implementation of the provisions of the Elections Act, No. 1 of 1985, was admitted to revision to determine the competence of the Resident Magistrate's Court to entertain the same.

The respondent was desirous of contesting a parliamentary seat on a *Chama cha Demokrasia na Maendeleo* (CHADEMA) ticket for the Busanda Constituency, Geita District, in the general elections due next week. To that end he presented himself to the Returning Officer, the first applicant herein, to be supplied with nomination papers, but the first applicant declined to supply any. The respondent then wrote to the Chairman of the National Electoral Commission complaining about the conduct of the first applicant and appealing for the Commission's intervention, but there was no reply from the Commission. He therefore turned to the Courts and filed a petition in the Resident Magistrate's Court, Mwanza, praying for, among other things, an order to compel the first applicant to issue him with the nomination papers. He joined both applicants. The applicants were well aware of the proceeding but virtually ignored it, thus allowing it to proceed exparte, but they came

to life and got enthusiastic when a judgment was delivered in the respondent's favour. They accordingly applied to this Court for revision of the proceeding on the ground that the Resident Magistrate's Court had no jurisdiction in the matter. I invited arguments from both sides in order to be assisted in reaching a just decision.

Mr. Lyimo, Principal State Attorney, appeared for the applicants and argued that under Act No. 1 of 1985 as amended by Act No. 6 of 1992, election petitions are triable by the High Court only. As to what the respondent should have done in the circumstances he found himself, Mr. Lyimo said that he should have complained to the Electoral Commission and, if he was aggrieved by the Commission's decision, he could then present a petition to the High Court after the election results. In reply, learned counsel for the respondent, Mr. Nasimire, observed that this was a peculiar case; it was not an election petition in the strict sense and it did not appear to be catered for under Act No. 1 of 1985. In his view there was a lacuna in the law. In rejoinder Mr. Lyimo submitted that there was no lacuna, but all jurisdiction under the Act was vested in the High Court, and if there was any then the proceeding should even for that reason have been presented in the High Court.

It seems to me from the foregoing that the area of disagreement is narrow. I think I am correct in saying that, in a way, Mr. Nasimire concedes that the jurisdiction of the Resident Magistrate's Court is not easily perceived under the Act. I will, indeed, say at once that in matters of election petitions jurisdiction is solely vested in the High Court as per s. 110 thereof. Unfortunately, the Act does not define what is meant by "election petition" but, in my view, it is a petition the intendment of which is to avoid an election. The petition which constitutes the subject of this proceeding was not intended to avoid an election, for no election has been held as yet, but to compel the first applicant to supply nomination papers. I would therefore agree with Mr. Nasimire that this proceeding was not an election petition as such.

Does it mean that this proceeding could be filed in the Resident

Magistrate's Court because it was not an election petition? I do not think so. The Resident Magistrate's Court is a creature of statute and its jurisdiction derives from statute only. It has no inherent jurisdiction. As such, it cannot sit in judgment over matters that are not expressly vested in it by law. It is noted that previously, under the erstwhile s. 118 of Act No. 1 of 1985 the Chief Justice could invest any resident magistrate with jurisdiction to try any election petition, offence or application under the Act, but the provision was swept away in a spate of far reaching amendments vide Act No. 13 of 1990 and, if my investigations serve me right, it has never been revived.

Moreover, the very nature of the main prayer puts one at one's inquiry as to the competence of the Resident Magistrate's Court. To the extent that the respondent prayed for an order to compel the first applicant to supply him with nomination papers, he was praying for the prerogative order of mandamus. Such orders are grantable only by the High Court and, in contemplating this, I cannot, with respect, accept the submission that there is a lacuna in the law. It is not for me to say what steps the respondent should have taken in the predicament he found himself but that should await a more opportune moment.

I find in the final analysis that the Resident Magistrate's Court had no jurisdiction to entertain the proceeding and I quash the same along with all the orders resulting therefrom.

GUEST & CHRIMES LIMITED

v.

NATIONAL URBAN WATER AUTHORITY

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Omar, Mnzavas and Lubuva, JJ.A.)

CIVIL APPEAL No. 15 OF 1995

(From the decision of the High Court of Tanzania at Dar es Salaam (Mackanja, J.) dated 8th July 1994, in Civil Case No. 221 of 1993)

Civil Practice and Procedure – Arbitration – Reference to arbitration – Claim for money admitted but the party admitting refuses to pay – Whether there is a dispute to refer to arbitration

Civil Practice and Procedure – Reference to arbitration – High Court dismisses suit and refers parties to arbitration without establishing that the party opting for arbitration is ready and willing to arbitrate – Whether proper – Section 6 of the Arbitration Ordinance, Cap 15

A contract of sale of goods between the appellant and the respondent contained a clause binding the parties to refer disputes to international arbitration. The appellant filed a suit claiming a sum of money under the contract. The respondent admitted being indebted but refused to pay on account of the appellant presenting defective documents to the paying bank that failed to effect payment in time. But those defects were then rectified. The High Court dismissed the suit and referred the parties to arbitration. The appellant appealed to the Court of Appeal.

Held:

(i) It was not proper for the High Court to refer the parties to arbitration without satisfying itself, as required by s.6 of the Arbitration Ordinance, that the

party opting for arbitration was "ready and willing to do all things necessary" to arbitrate;

(ii) Admission in the written statement of defence that the errors for which the respondent had refused to pay the amount claimed were rectified put an end to the dispute between the parties that would have necessitated recourse to arbitration and dismissal of the suit.

High court judgment set aside

Mr. *Uzanda,* for the Appellant
Miss *Bayona,* for the Respondent

JUDGMENT OF THE COURT

(Dated 8 December 1995)

Omar, J.A.: The appellant, Guest and Chrimes Limited, a company incorporated in the United Kingdom and doing business at Rotherham, England, entered on 14/12/88 into a contract of sale of goods with the respondent, the National Urban Water Authority of Tanzania (NUWA). This contract of sale of goods has two important clauses relevant to this case. There is a resolution of disputes clause and the clause on the applicable law of contract. The former is to be governed by international arbitration and the latter by the contract laws of Tanzania.

The suit was filed at the High Court by the applicant/appellant who claimed against the respondent, NUWA, the sum of $ 70,397.90 and 30%, interest on $ 31,999.90 from the date of the suit till full payment. After considering the requirements of the contract the High Court (Mackanja, J.) dismissed the suit and referred the parties to arbitration according to clause 28 of their contract. The High Court in its ruling was satisfied that here was a dispute between the parties in the following words.:

If there is refusal to pay and no agreement to pay can be proved the case must be treated as one which a "difference" or "dispute" has arisen which must therefore be determined by an arbitrator and not by an action. I fully subscribe to that proposition of law.

Mr. Uzanda learned Counsel for the appellant said categorically that there is no dispute between the parties because the respondent admitted to be indebted to the appellant up to £30,350.42, and the total amount the appellant is claiming is £30.349.92, which is 50 pence less than what is admitted. We have noticed in the wording of s. 6 of the Arbitration Ordinance that the interested party may apply for arbitration after the filing of the suit in Court but before the written statement is filed. Failure to do so does not vitiate the claim as Mr. Uzanda argued because the wording used is may and not shall. So it is not mandatory to make one's application within this interval. The application can be made at any time after the filing of the suit. But there is the last provision of section 6 which requires the presiding judge to be satisfied that whoever opts for arbitration "was at the time when proceedings were commenced, and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration." This requirement of the section would appear to be more pertinent in this case where its contract has chosen foreign arbitration for the parties – an arbitration more involved and distant and calls for competence and capability by the applicant. This, the Court did not appear to have done, that is to say, it did not satisfy itself that NUWA the respondent was ready and willing to do all things necessary to the proper conduct of arbitration before making an order for staying the proceedings.

For clarity s.6 of the Arbitration Ordinance Cap 15 is hereby reproduced:

6. Where any party to a submission to which this Part applies, or any person claiming under him commences any legal proceedings against any other party to the submission or any person claiming under him, in

> respect of any matter agreed to be referred, any party to such legal proceedings may at any time after appearance, and before filing written statement, or taking any other steps in the proceedings, apply to the court to stay the proceeding; and the court, if satisfied that there is no sufficient reason why the matter should not be referred in accordance with the submission, and that the applicant was, at the time when the proceedings were commenced, and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration, may make an order staying the proceedings.

On the question of the alleged dispute between the parties, there is the admission of the respondent that the refusal by them to pay the debt was due to the acts of negligence by the appellant which acts of negligence concerned the presentation of defective documents to the LC negotiating bank which failed to effect payment in time. But these errors the respondent admitted in its Written Statement of Defence that they were later rectified. Clause 3 (d) of the written statement of Defence states:

> That by the time the plaintiff rectified the errors and submitted the document for payments, Credit Not No. 1312 TA was closed.

We are not concerned with the closure of the Credit Note; we are concerned with the refusal by NUWA to pay the existing debt and reasons given for this refusal between the parties. This admission in the Written Statement of Defence that errors were rectified puts an end to the dispute, so whatever was owed by the respondent to the appellant must be paid back.

Miss Bayona, learned Counsel for the respondent, in answer to Mr. Uzanda's submission, stated as follows:

> That the judge was right in dismissing the suit. Rightly he made a finding that there was a dispute: There has never been an agreement on the part of the respondent to pay express or otherwise. Defendant/respondent under part of Written Statement of Defence said that plaintiff/ appellant could not be paid because he was negligent.

She then prayed for dismissal of the suit with costs.

Mr. Uzanda for the appellant in reply said that miss Bayona's submissions were not an answer to his submissions and if specific admissions of respondent were added up we would find as stated earlier that there is no dispute regarding liability between the parties. Respondent admitted 50 pence more than what the appellant was demanding.

In conclusion we agree that there was no dispute between the parties which necessitated recourse to arbitration and dismissal of the suit. In the event the High Court Judgment is hereby set aside. The hearing of the suit to proceed before another judge. Costs to the appellant.

JUMA TUMBILIJA & TWO OTHERS v. REPUBLIC

HIGH COURT OF TANZANIA
AT MWANZA
(Mrema, J.)

CRIMINAL APPEALS No. 8, 9, & 10 OF 1994

(From the decision of the District Court of Mwanza at Mwanza (K.H.J. Utamwa, RM), in Criminal Case No. 243 of 1993)

Criminal Practice and Procedure – Appeal – Appeal against conviction and sentence upon a plea of guilty – Whether appeal is competent – Section 360 (1) of the Criminal Procedure Act 1985

Criminal Practice and Procedure – Pleas – Plea of guilty – Extra judicial statements tended in court as exhibits without their contents being read out to the accused persons – Accused persons not objecting to tendering them – Whether it amounts to unequivocal admission of the contents of the exhibits

Criminal Practice and Procedure – Pleas – Plea of guilty – Recording of plea of guilty – Three accused persons recorded as collectively having no objection to the tendering of exhibits – Whether it amounts to admission of the exhibits as evidence against them

The three appellants were convicted on their own plea of guilty to the charge of armed robbery and were sentenced to 30 years' imprisonment. According to the trial court record, when the facts were presented before the court a gun and 16 rounds of ammunition, which the prosecution said were used in committing the offence charged, were tendered as exhibits. The appellants were simply recorded as, collectively, having "no objection" to the tendering of those exhibits. Their extra judicial statements in which, according to the prosecution, the appellants admitted the offence were also tendered and the appellants were similarly recorded as having had "no objection" to tendering them; but the record did not indicate whether those statements were read out to them in court when they were tendered. On appeal the appellants contended that their pleas were not unequivocal pleas of guilty.

Held:

(i) According to s.360 of the Criminal Procedure Act 1985 an appeal against conviction upon a plea of guilty can only be competent after determining that the plea of guilty was not unequivocal;

(ii) As the record in this case does not indicate that the contents of the extra judicial statements of the appellants were read out in the appellants' presence in the trial court before admitting them as exhibits, it cannot be taken for granted that those contents were unequivocally admitted by the appellants;

(iii) To record generally the words: "All accused persons – no objection" as meaning that the accused persons had no objection to the tendering of the extra-judicial statements leaves doubt as to whether each accused person made a plea in his own words and from his own mouth;

(iv) To record simply an indication that all the accused persons did not have any objection to the production of the gun and rounds of ammunition claimed to have been used in the armed robbery the subject of the charge does not, by itself, mean that the accused persons pleaded unequivocally that they were found in possession of those weapons;

(v) When a plea of guilty is entered it must be recorded, as nearly as possible, in the words used by the accused person admitting the truth of the charge;

(vi) Considering the seriousness of the offence, which attracts a minimum sentence of 30 years' imprisonment, before convicting on a plea of guilty the trial court should have satisfied itself that every constituent of the charge was explained to each of the accused and that each of them did in fact admit it;

(vii) It cannot be said in this case that each of the accused persons fully understood the charge and pleaded guilty to every element of it unequivocally.

Appeal allowed

Cases referred to:

(1) *Hando s/o Akunay v. R.*, (1951) 18 E.A.C.A. 307
(2) *R., v. Yonasani Egali & Others*, (1942) 9 E.A.C.A. 65
(3) *Wachira s/o Wambogo v. R.*, (1954) 21 E.A.C.A. 396

Mr. Mwambegele, State Attorney, for the Republic

JUDGMENT

(Dated 8 December 1995)

Mrema, J.: The three appellants, Juma s/o Tumbilija, Charles Bakari and John Samwel Kabaka were jointly and together arraigned before the District Court, at Mwanza, for the offence of armed robbery c/s 285 and 286 of the Penal Code, as amended by Act No. 10 of 1989. They are recorded to have pleaded guilty on both the charge and facts and in consequence the learned trial Resident Magistrate, Mr. Utamwa, convicted them on their own plea of guilty. He then sentenced them to thirty (30) years imprisonment under statutory minimum sentence as provided by Act No. 10 of 1989. They have now appealed against the sentence, but each filing a separate appeal: Juma Tumbilija has his appeal as HC Cr. Appeal No. 8/1994; John Samwel Kabaka as HC Cr. Appeal No. 9/1994 and Charles Bakari as HC. Cr. Appeal No. 10/1994. As the three memoranda of appeals raise substantially the same grounds it has been-decided for convenience sake, that the three appeals be consolidated, now to read as H.C. Criminal Appeal No. 8/1994.

At the hearing of the appeal, Mr. Mwambegele, learned State Attorney, for the Respondent-Republic, appeared and argued the appeal on the respondent's behalf, whereas the appellants appeared in person and reiterated on their written grounds of appeal. Of the five grounds of appeal, there is only one ground which, in my view, appears reasonably contentious, and that is that the appellants made equivocal pleas of guilty due to prior undue circumstances under police custody from 11/7/93 to 15/7/93 ..." Before me, the appellant Juma claimed that he admitted the offence in court owing to previous tortures he incurred whilst in the custody of the prison authority.

The appellant Charles claimed that he confessed to the offence under duress and torture by the police. He further stated that the police threatened him that if he did not plead guilty before the Court he would be returned under police custody for further torture. That, as it was his first time to appear before a court of law, he has no experience as to

what he was to tell the Magistrate when the charge was read out to him. He is also of the view that, though the plea is invariably equivocal, the sentence passed against him was manifestly excessive. In the circumstances, therefore, he prays that the conviction and sentence be declared null and void and an order be made to the effect that the case starts afresh.

The third appellant John Samwel claimed that on 14/7/93 he was from his in-laws. The 1st and second appellants were also present and were walking at different paces and distances, together with many other persons. They were from Shinyanga Region coming to Mwanza. At about 200 metres in front of them they saw a police van. Suddenly he heard gun shots. The appellant did not know what was happening. When the police reached them the appellants were ordered to sit down and they heeded the order. Then they were ordered to board the police van and as they travelled while in the vehicle the police told them they stole a motor-vehicle during the day time (it was now after 4.00 p.m.).

The appellant Samwel denied and resisted the allegation. He was then heavily assaulted. Eventually they were brought to a scene, in Mwanza Region, where a motor-vehicle had had an accident and overturned. The police told them that there was a machine gun in the ill-fated motor-vehicle allegedly abandoned in there by the fleeing bandits. That the police assaulted them very gravely asserting to the appellants that they were responsible for those criminal activities. In the course of being assaulted the appellant sustained severe injuries on his left rib and left arm. Later they were sent to Kwimba District and at the police station the tortures were resumed, ordering them to mention all the crimes committed.

After three days they were sent to Ngudu District Court where, following the tortures, he pleaded guilty to the charges. He was jailed thirty (30) years. It is the complainant's further submission, in support of his reasons of appeal, that a group of C.I.D. officers went to Ngudu from Mwanza for further interrogations. The appellant was further assaulted in order to pin him down to tell the police about all the criminal

activities the appellant and his colleagues had committed. They were then brought to Mwanza. The ordeal, he said, had now lasted five days during which he had not eaten anything nor taken any water. They were then threatened that if they did not plead guilty to the charges they were bringing to court against them, the torture against them (appellants) would be enhanced until they would succumb to admitting the offences framed against them. Following the tortures and threats, the appellant stated that he remained with no option but to simply tell the court that he committed the alleged offence. In the circumstances, he said, the plea was not a voluntary one, hence not unequivocal one. For the reasons stated above, he urged the court to reverse the order of conviction and consequently the sentence passed against him.

I also heard the learned State Attorney, Mr. Mwambegele. He started by saying that in the event that the court is of the view that the pleas were unequivocal, then that is the end of the matter. On this point I straight away agree with the learned Counsel because in terms of section 360 (1) of Act No. 1 of 1985, it is expressly stated that "No appeal shall be allowed in the case of any accused person who has pleaded guilty and has been convicted on such plea by a subordinate court except as to the extent or legality of the sentence." In the language of this sub-section, the present appeal can only be seen to be competent before this court after it has been considered and determined as to whether the pleas entered by the appellants at the trial court were *equivocal*, that is that there was no clear or express pleas by the appellants.

It is Mr. Mwambegele's view that he, personally, is not satisfied with the way and manner the pleas were taken and recorded. For example, he said, it is prickling to observe that the appellants' extra judicial statements, exhibit P. 3, were simply tendered before the trial court, and it is not on record to indicate whether or not the statements were first read out in their presence in court. In the absence of such evidence, he said, in his view, it is unsafe for this appellate court to take for granted that the pleas were unequivocal admissions of the statements by the appellants as part of the evidence against them. In other words,

the record being silent as to whether the appellants were informed of the content of exhibit P.3 it is doubtful if the accused, now appellants, pleaded *unequivocally* to the contents therein (exh. P. 3). In my view, this is a valid and reasonable contention and therefore, no doubt, I believe, this court will be going out of the *four corners of the law* if it takes for granted that the contents of exhibit P.3 were unequivocally pleaded by the appellants without any evident proof thereof.

The second limb of contention by the learned State Attorney is that the pleas which, as per the evident record, read: "it is true," do not seem in his view to have been pleaded fully to each and every constituent of the facts embracing the offence with which the appellants stood charged. I have had the chance to read the authority cited to me by Mr. Mwambegele, and indeed I am very grateful for that, which is *Hando s/o Akunay v. R.* (1), the decision therein however not being new, it having adopted the guidance enunciated almost ten years earlier in the case of *R. v. Yonasani Egali & Others* (2). It is still good authority and I refrain from not adopting the same principle in the instant case, and to be on the safe side, I borrow the very words used by the justices of the Appeal Court for Eastern Africa which say:

> Finally, we would observe that in view of the nature of the charge, and the paucity of particulars given in the information, we regard the pleas of the second, third and fourth appellants as being somewhat scantily recorded. In any case in which a conviction is likely to proceed on a plea of guilty (in otherwise, when an admission by the accused is to be allowed to take place of the otherwise necessary strict proof of the charge beyond reasonable doubt by the prosecution) it is most desirable not only that every constituent of the charge should be explained to the accused but that he should be required to admit or deny every element of it unequivocally. In the present instance no particulars at all were given in the information as to how the accused had made themselves accessories. Eriazali pleaded: "It is true that I helped to dispose of the body and the stolen bicycle." The pleas of the other appellants as recorded: "I also

admit it," "Ditto; 'Ditto'" are therefore hardly satisfactory, seeing that it is doubtful whether they are admitting the somewhat vague charge, or are expressing their agreement with what has been said by one or other of the first two accused, but having regard to the fact that the appellants had already stood a lengthy trial on the capital charge, to which the second one of being accessories was subsidiary, they may be regarded as not having been unduly prejudiced by this defiency.

And in *Hando's* case (cited above), it was reiterated that what the accused says should be recorded in a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally. Applying the stated principle in the instant case, I must go to what is in the trial court's record and see if the pleas taken, and the facts adduced, are adoptive of the cited authority. I now tell, and I reproduce what is contained in the trial court's record hereunder:

Charge read over and explained to the accused who are asked to plead thereto:

1st accused - It is true
2nd accused - It is true
3rd accused - It is true

Court: Entered as plea of guilty in respect of all accused persons. Sgd. K.H.J. Utamwa, RM, 15/7/93.

Prosecution: On the Facts:

That, the complainant in this case is a businessman, owns a shop business at Pasiansi; on 17/6/93 at about 7:30 p.m., the complainant, while at the shop, he was invaded by three accused persons and one had a gun, and the one with the gun, shot in the air to threaten, then he (complainant)

ran away and hid himself; when he came back, he found that Tshs. 4,000/= were stolen and the robbers run away. On 18/6/93 at about 11.00 a.m. the complainant reported the matter at Kirumba police station. On 11/7/93 at Kwimba District the said robbers who are the accused for robbery of a car, and when interrogated by police they admitted to have committed that particular offence of robbing 4,000/= T.shs. and were taken to a master of peace (sic) and admitted the same to have committed this same offence and hence this case. This is the gun used on committing the offence, it is SMG. No. 18-4, 229. I tender it as exhibit. I also tender 16 bullets found in the gun as exhibits.

All Accused Persons – No objection.
Court: Admitted exh. P.1 and 2 collectively.

Sgd. K.H.J. Utamwa,
RM, 15/7/93

I also tender the extra judicial statements in which the accused persons admitted before the master of peace as exhibit.
All Accused Persons – No objection
Court: Admitted them as exhibit P. 3 collectively.

Sgd. K.H.J. Utamwa,
RM, 15/7/93

1st accused - It is true
2nd accused - It is true
3rd accused - It is true

Court: Entered as plea of guilty in respect of all accused persons.

Sgd. K.H.J. Utamwa,
RM, 15/7/93

Findings

Having read the charge and heard the accused persons' own plea of guilty to the charge and facts as read by the prosecutor, and having considered the exhibits tendered by the prosecutor, I find all the three accused persons guilty of the offence of armed robbery as charged and convict them accordingly.

Sgd. K.H.J. Utamwa,
RM, 15/7/92

As it has already been found and conceded to above, it was unsafe to admit the accuseds' extra judicial statements (exh. P. 3) without first reading out each and every content contained in each of the statement to ascertain whether or not each respective accused would *admit* all or part of the statement, or would deny. Again, with respect, to record generally the words: "All accused persons – no objection," meaning that each accused person had no objection to the tendering of the extra-judicial statement, would put the appellate court in *darkness* as to whether each accused made a plea in his own words and from his own mouth. And, again, it can possibly be contended that as long as the accused did not know the contents of exhibits P.3 (no evidence that they were read out), and whether the same incriminated them, or some or one of them and to what extent, they had no reason to object to their being tendered in court. It cannot also be ascertained from the facts of the case as to whether the appellants did concede, to the production of the said gun and rounds of ammunition to mean that they were found in their possession. The facts do not reveal whether exhibits P.1 and P.2 were found with the accused persons when arrested, and if it was, then under what circumstances the same were found. In my view, to simply indicate that the accused did not have any objection to the production of the exhibits P.1 and P.2 did not by itself mean that the appellants pleaded unequivocally that they were found in possession of the weapons. We

find further guidance or illustration on this aspect of *plea – taking* in the case of *Wachira s/o Wambogo v. R.* (3) – where it was held:

> if the court decides to enter a plea of not guilty, the better course is to record the plea in those words and not to record the prisoner's actual words. *It is only when a plea of guilty is entered that there is an obligation to record, as nearly as possible, the words used by the accused person when admitting the truth of the charge* (emphasis is mine).

Wachira's plea was as follows:

> It has been read out to me that I acted or that I had acted contrary to public order. That is not so. I was lucky because the security forces found me. I always wanted to escape.

From those words a plea of "Not guilty" was entered. Although the matter had gone on appeal to the Court of Appeal for Eastern Africa on a different issue, however the Lord Justices found it necessary, as a future guidance, to comment on the appellant's plea before the Trial Court (HC). Their Lordships commented at page 394, inter alias, as follows:

> We recognize that "it is important that there should be no ambiguity in the plea, and that where the accused makes some other answer than "Not guilty" or "Guilty," as the case may be, care should be taken to make sure that he understands the charge and to ascertain to what the plea amounts:" Archbold, 33rd Ed., p. 144. But having ascertained that it amounts to a plea of "Not guilty," and entered it as such, the Court must bear in mind that this pleads the general issue and that it is then incumbent upon the prosecution to prove every fact and circumstances constituting the offences charged in the indictment or information. It is for this reason that an inculpatory statement made by an accused person in answer to a charge cannot be used against him if a plea of "Not guilty" is entered: *R. v. Pirmin*, (1934) 2 EACA 64.

In the light of the above quoted authorities I am not therefore satisfied that the pleas entered in the present case were unequivocal pleas of guilt. It is apparent from the trial court's record that the learned trial resident magistrate did not only omit to explain every constituent of the charge to the appellants but also faulted to require the appellants to *admit* or *deny* every constituent. And, indeed, the trial magistrate ought to have recorded the pleas in "a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally." Considering the seriousness of the offence which attracts a statutory minimum sentence of thirty (30) years imprisonment the trial court ought to have satisfied itself that every constituent of the charge was explained to each appellant (accused), and further ensure that each one of them did in fact admit or deny every such constituent. From the foregoing reasons it cannot, therefore, legitimately or safely be said, in my view, that each of the appellants fully understood the charge and pleaded guilty to every element of it unequivocally (including the extra-judicial statements). Thus, I allow the appeals, not on the grounds set out in the appellants' memoranda of appeals, but for the foregoing stated reasons. In the result, the appellants' pleas at the trial are set aside and consequently the sentences passed against them. Fresh pleas should be taken by the trial court. Accordingly, it is so ordered.

DIRECTOR OF PUBLIC PROSECUTIONS

v.

OMARI JABILI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Mfalila and Lubuva, JJ.A.)

CRIMINAL APPEAL No. 210 OF 1992

(From the decision of the High Court of Tanzania at Morogoro, Mkwawa, J., dated 4 November 1992, in Criminal Sessions Case No. 52 of 1990)

Criminal Law – Murder – Defence of Insanity – Medical evidence of insanity – Utility of doctor's evidence of insanity

Criminal Law – Insanity – Test of the defence of insanity

Criminal Law – Murder – Diminished responsibility – Whether diminished responsibility is recognized as a defence under the law of Tanzania

The appellant was convicted of manslaughter and sentenced to 15 years' imprisonment. He had slashed to death his own 6 year old son without any apparent reason or motive. His defence at the trial was that he was an epileptic patient, though not insane, and that he killed the deceased at a time when he was under an epileptic fit. On appeal it was argued by the appellant that once the trial judge rejected the defence of insanity it was not open to him to record a conviction for manslaughter but a conviction for murder. The Court of Appeal considered the issue whether the accused was sane at the time of committing the offence.

Held:

Majority Judgment –

(i) On the issue of insanity, the court is not bound to accept the doctor's opinion if there is good reason for not accepting it; however, the doctor's

evidence, being expert evidence, must be considered very carefully and the court should not dismiss or reject it lightly;

(ii) The mental defect or disease which the respondent was suffering from at the material time was such as would bring him within the ambit of diminished responsibility. However, diminished responsibility is not recognized as a defence in our law as it stands today, although repeated calls have been made for the amendment of the law in that area.

Dissenting Judgment –

(iii) The construction that, over the years, has been put on the provision on insanity, i.e. section 13 of the Penal Code, is completely out of date; with the advance of medical knowledge in psychiatry, the McNaughten rules on which that provision is based are not free from difficulty and progressive opinion has been prepared to include actions done in situations of irresistible impulse within the framework of the McNaughten rules;

(iv) There is nothing under section 13 of the Penal Code which expressly excludes the defence of insane impulses, and a sound legal basis for not recognizing irresistible impulse as a defence cannot be found to have been laid anywhere;

(v) This court can change the situation by adopting a more progressive interpretation of the relevant provisions so that the law does not lag behind current advances in medical science;

(iv) On the evidence on record the defence of insanity was available to the respondent because at the time when he did the act which resulted in the killing of his son, he appears to have been acting under an irresistible impulse.

Appeal allowed

Cases referred to:

(1)Nyinge Suwatu v. R [1959] E.A. 974
(2)R. v. Agnes Doris Liundi [1980] T.L.R. 38
(3)Ebrahim Weraga Wamala v. R (1943) 10 E.A.C.A. 48
(4)Agnes Doris Liundi v. R [1980] T.L.R. 46

(5)Davis Case [1881] 14 Cox 563
(6)R v. Magata Kachehakana [1957] E.A. 330

Mr. *Mwengela*, for the Republic
Mr. *Mkongwa*, for the Respondent

JUDGMENT OF THE COURT

(Dated 30 May 1996)

Kisanga, J.A.: This is an appeal by the Director of Public Prosecutions against the judgment of the High Court in which Mkwawa, J., convicted the respondent of manslaughter and sentenced him to 15 years' imprisonment.

The facts of the case may be summarized briefly as follows. The respondent is the father of the deceased, a boy of about 6 years of age. The deceased was born out of wedlock, and his mother never married the respondent. Neither did the respondent take care of the deceased. The deceased was being taken care of by his grandmother, i.e. the respondent's mother who was living separately from the respondent. On the day of the incident the deceased was playing with other children not far from the respondent's house. Then the respondent came round and promised the children to buy them sweets. However, he bought sweets for the deceased only. He then took the children to his house where he promised to make toy cars for them. He asked the deceased to fetch a panga for him, which he did, after which he took the deceased and went away carrying the panga with him and leaving the other children there. Shortly afterwards he returned to the place and threw bricks to the children chasing them away.

As the deceased went missing that day, a search was mounted by the villagers which went on until the small hours, but the deceased could not be found. On the first day of the search the respondent looked unconcerned and did not take part in the search; however, he told the searchers that it was quite probable that the deceased had been

kidnapped. When the search was resumed on the following morning the respondent led the search party to a spot in the banana plantation where the dead body of the deceased was hidden. The respondent stated that he had accidentally slashed the deceased with a panga and produced the panga. The panga had no blood stains on it, but the respondent stated that he had cleaned it after the incident.

The respondent's defence at the trial was two pronged. First, he denied killing the deceased. He claimed that it is his own relatives who had killed the deceased and that the charge against him was a mere fabrication. In the alternative, he asserted that he is an epileptic patient, though not insane, so that if he killed the deceased at all he did so at a time when he was under an epileptic fit. The trial judge, sitting with his two assessors, rejected the respondent's defence. However, while the assessors found the respondent guilty of murder, the presiding judge, as stated before, convicted him of manslaughter and sentenced him to 15 years' imprisonment.

In this appeal the Republic is represented by Mr. Mwengela, learned State Attorney and the respondent is advocated by Mr Mkongwa. Mr. Mwengela filed four grounds of appeal altogether. In these grounds Counsel essentially contends that once the trial judge found the respondent to be not insane at the time of killing the deceased, it was not open to him to record a conviction for manslaughter; he had to convict for murder.

In response to that submission Mr. Mkongwa sought to dispute the trial court's finding that the respondent was sane at the time of committing the offence. But when it was pointed out to him that he could not properly do so, as he had not appealed against that finding, he invited us to deal with the matter under the revisionary powers of this Court, and we agreed to do so.

First of all, Mr. Mkongwa rightly conceded that the trial judge, having rejected the respondent's defence of insanity, wrongly proceeded to find the respondent guilty of manslaughter. As clearly intimated, we agree entirely with Counsel for both sides on this point. In the

circumstances of this case the correct verdict, after rejecting the defence of insanity, was either murder or acquittal; there was no half way house. However, Mr. Mkongwa submitted that the defence of insanity was available on the basis that the respondent has a history of epilepsy, and that at the material time he might have been under an epileptic fit which might have made him unable to know that what he was doing was wrong. It was contended that the respondent came to know that what he did was wrong only after the killing, but that at the time of the killing he did not. In support of this proposition, Counsel pointed out that the deceased was the respondent's own child and that the killing was unprovoked, without motive and indeed senseless. Learned Counsel contended that such factors go to show that it was more likely than not that the respondent did not know what he was doing or that what he was doing was wrong. This submission was also advanced at the trial where, as already stated, the trial judge and his assessors rejected it.

In rejecting that defence the learned judge specifically considered the respondent's claim that he is an epileptic patient. That defence was duly supported by the respondent's mother (PW.1) who testified that the respondent was not insane but had a history of epilepsy, and that he used to complain of dizziness. It is further supported by the respondent's brother (PW.5) who said that at times the respondent behaved abnormally. On one occasion, for instance, the respondent, without any provocation, violently attacked his sister. The evidence that the respondent is given to violence at times is again supported by the respondent's uncle (DW.2) who said that on one occasion the respondent assaulted one Jamu and broke his jaw. As against that set of evidence, however, the learned judge also considered the documentary and oral evidence of the psychiatrist specialist who had attended the respondent at Isanga Institution where the respondent was committed for observation. Both in his written report (Exh. P.4) and in his oral testimony court the specialist (PW.6) testified that the respondent was never insane at any time. In fact according to the witness, the respondent denied to have any mental history. The witness

said that the respondent was under his observation for a period of a little over five months but the respondent showed no signs of any mental illness. On the basis of the witnesses' statements, and on the basis of the respondent's own statement including the doctor's own observation of the respondent, the doctor found no trace of insanity in the respondent, and he equally ruled out the possibility of epilepsy.

There is no dispute on the issue of insanity as such because even the respondent himself denied having any history of insanity. However, a controversy appears to arise in relation to the issue of epilepsy. For, the respondent claims that he is an epileptic patient while the doctor ruled it out. The issue is one depending largely on the credibility of the respondent. The respondent raised the issue of epilepsy for the first time in his defence at the trial. He made no mention of it at all in his cautioned statement to the Police (Exh. P.3), nor did he disclose it to the specialist doctor (PW.6) to whom he had been committed for mental observation. If there is any grain of truth in the allegation that the respondent was an epileptic patient, would the respondent have failed to disclose this important defence on these crucial or strategic occasions? Secondly, the respondent was in the custody of the doctor specialist (PW.6) for a period of a little over five months during the observation as to his mental condition, but the doctor noticed no epileptic fits in him. If the respondent is an epileptic patient, as he claimed in Court, what prevented such fits from recurring during that period? Not only that. The respondent was in remand from the time he was arrested following the commission of the offence in January 1989 until October 1992 when he gave evidence in his defence at the trial. That was a period of over three and half years. Now, if the respondent claims that he is an epileptic patient, why did he not call any of his inmates to support that claim? More so, especially, as the burden of proving insanity, though on a balance of probability, was on him.

In these circumstances, it is increasingly apparent that the respondent's claim that he is an epileptic patient was an afterthought on his part, while his mother and brother who supported that allegation did

so out of their desire to save a relative from trouble. The learned trial judge, therefore, was perfectly entitled to accept the doctor's evidence which ruled out any possibility of the respondent being an epileptic patient.

According to the doctor the respondent's account of the incident shows that at the material time the respondent had some mental abnormality. He was irritable and impulsive and he had lost social inhibitions. The trial judge duly considered this aspect of the evidence but took the view that such mental defect as the respondent was suffering from did not amount to legal insanity. This view is amply demonstrated by that part of his summing to the assessors where he said:

> I have to explain to you what in law amounts to insanity, ... In law, for a person to be held to be insane he does not have to be raving mad. On the other hand not every person who has some mental trouble is necessarily legally insane. A person is insane if, as a result of the disease of the mind, at the time he does something he does not know that what he is doing is wrong.

And later on, in his judgment, he said:

> The evidence of these witnesses substantially was to the effect that the accused had a history of ... some mental trouble.... I must say that I believe the evidence of the accused's mother (PW.1) which was amply corroborated by PW.5 and DW.2 that the accused had suffered mental bouts which was (*sic*) characterized by violence and aggressiveness and giddiness. It is in the evidence of these witnesses that they sent the accused to the traditional healer who treated him with traditional medicine.
>
> The main question is whether such ailments described by the afore stated witnesses amount to legal insanity. Dr Farahani was of the view that they do not amount to insanity. I am also of the same view. The lucid account given by the accused after the event now in question show (*sic*) clearly that he had a full understanding of what he did and that it was wrong. I would therefore dismiss the defence of insanity.

In accepting the doctor's opinion on the matter the trial judge properly directed himself in terms of the rule in *Nyinge Suwatu v. R* (1) followed in the case of *R v. Agnes Doris Liundi* (2) that the Court is not bound to accept the doctor's opinion if there is good reason for not doing so. For the sake of completeness, we should add to this that the doctor's evidence, being expert evidence, must be considered very carefully and the Court should not dismiss or reject it lightly. Guided by these principles the trial judge decided to accept the doctor's opinion ruling out insanity, and we are unable to say that he erred in so doing.

The respondent's account of the incident immediately before and after the killing, as contained in his cautioned statement (Exh. P.3), clearly shows that he knew what he was doing. For instance, he clearly said that he slashed the deceased, mentioning the instrument, i.e. the panga, which he used, and the part or parts of the body which he slashed. His conduct immediately after the killing, for example, hiding the dead body in the banana plantation and cleaning the panga to remove blood on it were designed to avoid detection, which clearly go to show that he knew that what he had done was wrong. His attempt to avoid detection is further demonstrated by his misleading statement made to the search party that the deceased had most probably been kidnapped. He knew this to be untrue because he was aware that the deceased was dead and, indeed, he showed witnesses the place where the dead body was hidden. Such conduct clearly shows that the respondent knew that he had don wrong and was now trying to prevent detection of his crime.

Like the learned trial judge we are satisfied that the respondent was at the time of the killing suffering from some mental defect which, however, was not epilepsy and was not of the magnitude which amounted to legal insanity within the meaning of section 13 of the Penal Code. For instance, although in the doctor's opinion the respondent was impulsive, this does not avail the respondent because in *Ebrahim Weraga v. R.* (3) the Court of Appeal for Eastern Africa held that the prisoner's irresistible impulse is no defence. It seems that the mental defect or disease which the respondent was suffering from at the material

time was such as would bring him within the ambit of diminished responsibility. However, diminished responsibility is not recognized as a defence in our law as it stands today, although repeated calls have been made for the amendment of the law in that area.

Once we hold, as we do, that the defence of insanity was not available to the respondent, we could find no other defences or circumstances which would reduce the offence to manslaughter. In the final analysis, therefore, we are satisfied that the learned trial judge, having rightly rejected the respondent's defence of insanity, erred in failing to convict the respondent for murder as charged and to sentence him to suffer death by hanging which we hereby do, setting aside the conviction for manslaughter and the sentence of 15 years' imprisonment. The appeal by the Republic is, therefore, allowed although we should point out that in our view this is a fit case to recommend to the Executive for the exercise of Presidential clemency.

DISSENTING JUDGMENT

(Dated 22 July 1996)

Mfalila, J.A.: I have read in draft the judgment of the Court prepared by my brother Kisanga, J.A. Having done so, I found myself unable to reach the same conclusion on the respondent's criminal responsibility in the circumstances of this case. I am clearly of the view that on the evidence on record and on the finding of the learned trial judge, the respondent was, at the time of the commission of the offence, suffering from a mental disease which resulted in his being propelled to act irresistibly in a certain way, and that apart from the interpretation of section 13 of the Penal Code by the courts over the years, there is nothing in the section itself which says that this defence is not available to accused persons in relevant circumstances. I also do not intend to restate the facts, as they have been fully set out in the Court judgment.

The respondent Omari Jabili was charged with murder but at the end of the trial the learned trial judge found that, due to what he called

the mental ailment from which the respondent was suffering, he was incapable of forming any specific intent; therefore, he found him guilty of the lesser offence of manslaughter and sentenced him to 15 years imprisonment. Against this decision the Director of Public Prosecutions appealed, complaining that the learned trial judge misdirected himself by not finding the respondent guilty of murder as charged against his own finding that the respondent was sane when he committed the offence, and also that the learned trial judge grossly misdirected himself when he based his decision on the mental history of the respondent instead of the mental aspect of the respondent at the time of the commission of the offence. The Director of Public Prosecutions also complained against the sentence that it is highly and manifestly inadequate.

In the course of his judgement, the learned trial judge made two fundamental findings of fact with which I entirely agree. Firstly, that the respondent voluntarily made the cautioned statement contained in Exh. P3 and that its contents are true. Secondly, that it is the appellant who killed the deceased. On these findings, therefore, the trial court rightly rejected the respondent's denials that he killed his son. The only remaining question for resolution was the respondent's criminal responsibility raised on his behalf as an alternative defence. Learned Counsel for the defence argued at the trial that the defence of insanity was available to the accused on the following grounds:

(a) That the burden on the balance of probability had been discharged.

(b) That the conduct of the accused after the killing was not consistent with a sane mind, i.e. that he did not run away (to indicate guilt and knowledge).

(c) That the evidence of PW.1, PW.5 and DW 2 clearly showed that the accused had a history of mental illness; this, he said, explains why nobody thought of involving the accused in the hunt for the deceased.

(d) That there is evidence to the effect that the killing took place soon after the accused was discharged from his treatment for mental disorder by a local medicineman.

On these grounds, learned defence Counsel urged the trial Court to reject the doctor's opinion (PW. 6) that the accused was sane at the time of the commission of the offence, and that therefore it should acquit him. This prayer was, of course, misguided because nobody can be acquitted on the ground of insanity. But it is the main and the only question of dispute in this appeal, namely, the criminal responsibility of the respondent who, apparently without any reason or motive, brutally killed his own son the deceased boy, Chenga Omari, aged about seven years at the time of his death. According to the available evidence, the respondent killed his son by hacking him with a panga on the head, spilling out the brain matter. However, at the trial, it was argued on behalf of the republic that the defence of insanity under S.13 of the Penal Code was not available to the accused because:

(a) The actions of the accused subsequent to the killing were consistent with a sane mind.

(b) It cannot be concluded from the evidence of P.W.1 and P.W.5 that the accused was suffering from insanity when it was decided to send him to a local medicineman for treatment.

(c) The evidence of the accused's uncle, D.W.2, on the accused's alleged insanity is unreliable because it contradicts that of PW.1, PW.3 and PW.5 in that the evidence of P.W.1 and P.W.5, did not give details of the accused's acts of violence; in his submission, the evidence of DW.2 must have been tutored to help the accused out of his predicament, and that in any case irresistible impulse is not a defence recognized by our law.

As indicated earlier, the learned trial judge failed completely to resolve the question of the respondent's insanity because he gave conflicting

decisions. In an earlier part of his judgment, the judge said that he agreed with the doctor that the appellant was sane when he committed the act and dismissed the defence of insanity in the following words:

> ...the lucid account given by the accused after the event now in question showed clearly that he had a full understanding of what he did and that it was wrong, *I would therefore dismiss the defence of insanity.*

At the end of the judgment, the learned judge arrived at the opposite decision on the question of the respondent's mental capacity and his criminal responsibility. He concluded his judgment in the following words:

> I now turn to the question whether at the time of the killing the accused had malice aforethought. Here the mental state of mind of the accused is relevant. The evidence showed that the accused had no previous ill will against the deceased. There was nothing in the deceased's conduct to provoke him that day. There was no motive for the killing .... Why then did the accused behave in such recklessness (sic) and senseless manner? The Accused's behaviour subsequent to the killing justifies me in my view that *he was not all aware of the act he had done.*
>
> Having regard to the foregoing, buttressed with a chain of evidence of mental ill health and history of bhang smoking, I am inclined to believe that the accused was not, at the material moment, capable of forming the necessary intent to kill within the meaning of Section 200 of the Penal Code.

Thus, with this conclusion, the learned judge fell into the obvious error of confusing and mistaking one for the other, the defences under Section 12 and 200 of the Penal Code. These two sections provide for two different situations which should not, and indeed cannot, be mistaken one for the other. Section 13 provides for criminal responsibility of insane persons whereas Section 200 is a specific provision defining malice aforethought in homicide cases. But the learned trial judge is

not entirely to blame for falling into such confusion. The real culprit is the present state of the law on insanity. The construction that has been put over the years on the relevant provision in the Penal Code, i.e. Section 13, is completely out of date. As every student of Criminal Law knows, Section 13 of the Penal Code is based on the answer to the third question supplied by the High Court Judges to the House of Lords in the M'Naghten Case, the answers to which came to be known as the M'Naghten *Rules*. With the advance of medical knowledge in Psychiatry, these rules are currently not free from difficulty and it is on this basis that this Court lamented in *Agnes Doris Liundi v. Republic* (4) at page 50:

> It is possible, indeed likely that our law on the issue of insanity is antiquated and out of date. Dr. Haule in evidence said that in modern psychiatry, the distinction between insanity and diminished responsibility is under controversy because it is imprecise. Parliament in its wisdom may wish to amend this particular branch of the law and bring it into line with modern medical knowledge on the subject. Other jurisdictions including one at least in East Africa have done so. But as the law now stands, we are of the opinion that the trial judge has come at the right conclusion.

I have asked myself whether it is necessary to wait for parliament to bring our law into line with modern medical knowledge. Is there anything specific in Section 13 which prevents us from recognizing as a valid defence irresistible impulse as a species or variation of insanity? This Section provides as follows:

> s. 13. A Person is not criminally responsible for an act or ommission if at the time of doing the act or making the omission he is through any disease affecting his mind incapable of understanding what he is doing, or of knowing that he ought not to do the act or make the omission;
>
> But a person may be criminally responsible for an act or omission

> although his mind is attacked by disease, if such disease does not in fact produce upon his mind one or other of the effects above mentioned in reference to that act or omission.

Over the years, the East African Courts have interpreted this and other similar provisions in the region, within the framework of the M'Naghten rules, which as I have indicated, are not free from difficulty in the light of current knowledge produced by the advance in the medical field since they were promulgated over 150 years ago. Writing on insane impulse in his book *"History of Criminal Law"* – 2nd Edition, Stephen states:

> The McNaughten rules do not provide for such volitional and emotional factors in mental disorders. They are concerned solely with defects of cognition or intelligence and do not expressly consider defects of emotion or of commotion (or will). By **implication,** however, since they purport to state exhaustively the rules relating to insanity as a defence, they deny the relevance of insane impulse. This is in fact the position adopted by English Courts and by most Courts in the Commonwealth and the United States ...."
>
> The line between insane automatism (which creates irresponsibility) and insane impulse (which does not) is this: if the accused has totally forgotten the mischievous act, there will be a tendency to say that it was committed in a dream state, and he will be excused on the ground of insanity. If he remembers it (and tries to cover it up) it will be accounted insane impulse and he will probably be convicted. Yet the amnesia in the first case might be due to repression and not to the fact that the act left no trace in the memory. In any event the question of memory afterwards seems to be irrelevant to the question whether the accused could help his conduct at the time.

Although this was the trend, i.e. to deny or to put outside the ambit of the M'Naghten rules insane automatism and impulse, yet hardly forty years after their promulgation, legal opinion began to emerge which

favoured the recognition of these conditions as defence within the frame work of the rules. Lord Hewert probably broke the ice when he declared:

> It seems true to say that in cases where there is evidence of real mental disease antecedent to the commission of the alleged crime, and there is no evidence of a motive which might influence a sane person, juries have no difficulty in finding either that the prisoner did not appreciate the nature of his act or that he did not know that it was wrong.

By 1881 some English judges manifested or went to extreme lengths to justify and follow this point of view as in the *Davis Case* (5), Stephen J. held:

> Even though the accused knew his act to be legally wrong, as shown by the fact that he surrendered himself to the police [in the present case he hid the body and cleaned the weapon], he may be held not to have appreciated the wrongness sufficiently to satisfy the word "know."

And in 1925 Lord Atkin concluded:

> The illustration of the law is very much more generally liberal than would be the case if it were carried out in strict accordance with the letter. In practice, the judge, the counsel, the jury, the witnesses and all concerned are desirous in cases of ***uncontrollable impulse*** to acquit the accused on the ground of insanity – (1925) 159 ..T. Newsp 436.

Another author, McNiven, in *"Mental Abnormality and the Crime,"* states at page 66:

> An act done in a blind frenzy will come within the McNaughten rules for every mental expert would unhesitatingly say that the accused in such cases did not know the nature of his act or that it was wrong. *Motiveless*

attacks by schizophrenics are regularly held to be covered by the insanity defence.

The same author suggests that current literature provides some evidence of a practice in England whereby Crown Prosecutors did not argue that the accused fell outside the M'Naghten rules if there was substantial evidence of an insane *irresistible impulse* even before the change in the law was effected. He suggests further that the problem started with the decision in the M'Naghten *Case* itself because M'Naghten's own acquittal seems to have been not in accord with the answer to the third question. M'Naghten who put up the defence of insanity in the case in which he was charged with the offence of murdering the Private Secretary to Sir Robert Peel, the Prime Minister, his delusion that he was being persecuted was not "as to a fact that, if true would have been a defence;" consequently, it appears that his acquittal on the ground of insanity cannot be reconciled with the judge's answer to the third question.

In the light of these progressive attitudes in interpreting the law within the framework of the M'Naghten rules, what has been the attitude of the East African Courts? In a case in which the killing clearly amounted to murder as it was carried out either to punish or to revenge, the Uganda High Court nevertheless seemed by implication to recognize the defence of sudden irresistible impulse because of the suddenness of the action. The Ugandan provision on insanity contained in Section 12 of the Penal Code, is exactly worded as the Tanzanian provision in Section 13. In that case *R. v. Magata Kachehakana* (6) the accused killed his father as they were returning home from a funeral. The killing was brutal and sudden, carried out with a panga. The accused explained before the local Chief as well as in his cautioned statement that he killed his father because he had bewitched his entire family. At the trial, he pleaded insanity in the alternative. After stating that Section 12 must be read and construed together with the rules in the M'Naghten case and decisions following that case, the learned judge continued:

> This case is not free from difficulty. I have considered the words "disease of the mind" in Section 12 of the Penal Code, I am of the opinion an African living far away in the bush may become so obsessed with the idea that he is being bewitched that the balance of his mind may be disturbed to such an extent that it may be described as a disease of the mind. Here the killing is unexplained and, in my opinion, inexplicable except upon the basis that the accused did not know what he was doing.

After discussing the burden of proof in such cases the learned judge concluded:

> I have come to the conclusion, mainly upon the evidence adduced by the prosecution but also upon the accused's statement to the police that when this accused killed his father, *he did not know what he was doing* and he did not know *that he ought not to have done* the act. In my opinion the evidence as a whole had established the reasonable probability that this was the accused's state of mind at the relevant time, and on this finding I am in agreement with the second assessor.
>
> For all these reasons I find the accused guilty of the act charged but insane at the time.

It should be recalled that just as in the present case, the doctor who examined the accused's mental state, stated that the accused was sane at the time of committing the offence.

I have already quoted the lamentations of this Court with regard to the outdatedness of our Section 13 and the law of insanity generally.

As I have tried to show by tracing the history surrounding the application and interpretation of the M'Naghten rules for the last 100 years, progressive opinion has been prepared to include actions done in situations of irresistible impulse within the framework of the M'Naghten rules. This attitude has been reinforced by advances in modern medicine which have discredited the old notion on which the M'Naghten rules were based, that the human mind is made up of independent compartments such that one part can be diseased while

the other compartments are healthy and sound. In the Ugandan case already quoted, although there was a clear explanation of the killing, i.e. punishment or revenge for the deceased having killed the accused's children and wife by witchcraft, the trial judge, albeit for racially derogatory reasons, was willing to find the accused afflicted with a disease of the mind because the act was so sudden that the killing was "unexplained" and in his opinion "inexplicable except upon the basis that the accused did not know what he was doing." Since, as I have tried to show, there was a motive and the reason for the killing given by no less a person than the accused himself, the basis of the judge's finding and excusing the accused, must have been irresistible impulse which seized the accused at the time when he committed the offence.

There is nothing in Section 13 of the Penal Code which expressly excludes the defence of insane impulses except by the attitudes of mind fashioned by the interpretations of the M'Naghten rules on which it is based. If the Court in the *Magata Kachehakana* case was prepared to extend the principle to a person who killed for known motives, what rational reason would there be to deny the defence to a helpless father who without any reason and suddenly hacks his son to death and declares later than he did not know what he had done for two days?

Professor Glanville Williams in his book *Criminal Law*, 2nd Edition, at page 507, paragraph 162, states:

> Most Psychiatrists recognize the existence of morbid impulses that are almost or quite uncontrollable. These are found for example in epilepsy and maniac – depressive pychoses. The paranoiac may kill in the hope of obtaining relief from his fear and worry. Sometimes the impulse is of the "provocation" type where the sufferer is moved to anger by circumstances that would not affect the normal person.

Throughout the decided cases, it cannot be found anywhere where a sound legal basis is laid why irresistible impulse should not be recognized as a defence. As the author of *History of Criminal Law,* referred to earlier, observes:

> Usually judges make no effort to justify the exclusion of the defence, they simply affirm that it is not recognized by law.

Since there is nothing express in the statutory law against the adoption of the defence, the current state of the law excluding the defence is only based on the judicial interpretation of the relevant statutory provisions, interpretations which are themselves based on the outdated M'Naghten rules. There is therefore no reason for the Courts to wait for Parliamentary intervention as suggested by this Court in the *Agnes Doris Liundi* case (4). The Courts, particularly this Court, can change the situation by adopting a more progressive interpretation of the relevant provisions so that the law does not lag behind current advances in medical science.

Awaiting Parliamentary intervention in a situation of our own making, would continue to place in jeopardy the rights of accused persons like the one in the present case who are denied the right to the defence of insanity for acts they committed in circumstances which are beyond their control. Indeed the predicament in which the learned trial judge in the present case found himself would not arise.

I will now turn to the case in hand. As stated by the learned trial judge, the act of the respondent so brutally killing his own son was, to borrow the words of the judge in the *Magata Kachehakana* case (6), "unexplained and wholly in-explicable." It is therefore necessary, as did the learned trial judge, to examine the evidence to see whether it points or reveals anything which can show that this killing is unexplained and inexplicable except upon the basis that at the time, the respondent did not know what he was doing. What was the respondent's mental condition before and after the killing? Three witnesses gave evidence on the respondent's mental history before the killing. These were his mother, Sinawema PW.1, his elder brother, Hassan (PW.5), and his uncle, Kindamba (DW.2). The mother (PW.1) said that the respondent is her son, and that although he is not insane, he has a history of epilepsy, that she had him under treatment for two years. In this state, she added,

he once fell into a well and then she sent him to undergo treatment by a local medicineman. In the light of this evidence, C.9041 D/C Wangwa (PW.2) could not have been telling the truth when he said in his evidence:

> I interrogated her (the mother of the respondent); she told me that the accused was a habitual bhang smoker. She did not tell me his (sic) son was bewitched nor did she tell me that the accused was attending clinics of a local medicineman.

There is no reason in the world why a mother should disclose criminal conduct by her son already in trouble with the law. Unfortunately this was the statement on which the Psychiatrist based his opinion on the respondent's bhang smoking and its effect on him. The learned trial judge also fell into the same error.

Hassan (PW.5) had this to say on the respondent's mental history:

> I know that in 1984 the accused was ill. He was taken to the aforementioned medicineman, I mean to say Lundelundelu's home. He had shown signs of sadness. I have even heard that at times he would defacate and play with his faeces. I also recall an incident when he unprovekedly (sic) violently attacked our sister. That was in 1988. The matter was reported to the police.

Lastly the uncle, Kindamba Saidi (DW.2), had the following to say on the respondent's mental history:

> He started to exhibit signs of unsoundness of mind when his son the deceased was three years old. He developed very aggressive behaviour. The family advised his concubine, the deceased's child's mother to leave the accused and return to her parents.
>
> His violent behaviour continued to the extent that he started assaulting people. In the course of one such assault, he broke Jamu's jaw. He also assaulted his sister. He earned himself the nick-name "Peter Botha" for his aggressive behaviour.
>
> The family meeting decided to send him to a local medicineman for treatment. The respondent did not improve. He would strip naked and play with his faeces. After his violent assault on his sister, he was convicted and sent to Kidete Prison as a Criminal Lunatic.

As to the respondent's mental state during and after the killing, the following evidence introduced at the trial by the prosecution is relevant. The first was given by the deceased's playmate Farashani Nyange (PW.3). This boy stated in the relevant part of his evidence.

> After being given the panga by the deceased and leaving with him, the accused returned shortly afterwards and started driving us away by hurling stones at us.

This behaviour is hardly consistent with the sane mind of a person who had, only a short while ago, promised the children to buy them sweets and make them toy cars.

Then there is the cautioned statement of the respondent himself, the statement which was accepted by the Court to be true. In the relevant part the respondent stated:

> *Niliingia ndani, nikachukua upanga kwa madhumuni ya kukata miti ya Mikuyu; nilitoka ndani na mwanangu Chenga Omari ambaye ni marehemu; tulienda hadi kwenye mwembe kuokota embe sindano na kuanza kula, kasha tulienda kwenye mwembe dodo, hapo nilishtukia namkata panga mtoto wangu sehemu za shingoni na kasha kichwani, alianguka, hakuwahi hata kupiga kelele....*
>
> *...sikuwa na ugomvi wowote na mwanangu kwa muda wote wa maisha yake, tangu mdogo hadi alipokufa akiwa na umri wa miaka saba. Wala mimi sijawahi kuugua ugonjwa wa akili. Tangu nilimpiga panga sikuwa na fahamu hadi siku ya pili ndipo nilijisikia huzuni ya kuua mtoto wangu.*

All this evidence on the respondent's mental state, before, during and after the killing remained uncontroverted. The evidence of the Psychiatrist is therefore the more surprising. In his evidence the Specialist Psychiatrist, Dr. Farahani, to whom the respondent was referred for observation stated:

> I have personally observed the accused. I spent several hours talking to him in each session. He did not show any sign of mental illness. He denied having a mental history. Patients do admit if they have had any mental history. The accused did not have any degree of mental insanity. In my report I have mentioned that one of his brothers had stated in his statement that the accused did not have a mental history. I found that in his statement. I did not interview any of the accused's relatives. I cannot rule out a possibility of any of his relatives stating the contrary.
>
> The cautioned statement of the accused does not appear to be consistent with a sane mind. The conduct of the accused subsequent to the death of the deceased namely, being indifferent, can be explained by labouring under the influence of alcohol or bhang. What the accused did is consistent with the mind of a habitual bhang smoker. The accused told me that he killed the child accidentally. He did not tell me that he had punished the deceased. I admit that it takes time to know whether a person is insane or not.
>
> I observed the accused and ruled out other ailments. I did not examine the accused subsequent to the killing incident. I cannot therefore say that he was labouring under the influence of drugs or alcohol.
>
> The statement made by the accused to the police shows that he was at the moment impulsive. The accused must have lost social inhibitions, I mean he was impulsive, not normal, and irritable. He denied having smoked bhang. I had read the statement of the accused's mother. I rule out the possibility of epilepsy. A person who smokes bhang can retain the state of drug effect for more than three days.

I do not think any Court should take the evidence of this doctor with any degree of seriousness. For one thing it is full of contradictions and inaccuracies. For instance the doctor says that after examining the respondent he found him to have no signs of mental illness and that he did not have any degree of mental insanity. He goes on to state that in his report he mentioned that one of the respondent's brothers had stated in his statement that the accused did not have any mental history. No doubt he formed his opinion that the respondent was sane at the time he committed this offence on this basis. This view contradicts the evidence of the respondent's own brother (PW.5) who narrated the respondent's troubled mental history. Indeed the doctor admits that he did not interview any of the respondent's relatives and that therefore he cannot rule out the possibility of any of them stating the contrary. The question then is whether the doctor would have given or arrived at the same conclusion if he had interviewed the respondent's relatives such as PW.1, PW.5 and DW.2, who indeed stated the contrary that the respondent has a mental history.

With regard to the respondent's alleged habit of bhang smoking, I am surprised this information, based on hearsay statement, found favour with both the doctor and the trial judge. There is absolutely no substance in this allegation. The doctor then made a startling remark in his evidence to the effect that after reading the statement by the respondent's mother, he ruled out the possibility of epilepsy. It is startling because there is absolutely no basis to reject PW.1's evidence that her son, the respondent, suffers from epilepsy. It is also startling because whereas the doctor was prepared to accept PW.2's unsubstantiated statement that the respondent was a habitual bhang smoker, he was not prepared to accept the evidence of a witness who directly testified on the question of epilepsy.

I am therefore satisfied that since there is no other rational explanation for the respondent's callous act of hacking his own son to death, and taking into account his mental history whereby during these seizures he *would suddenly become violent* and attack people as is evidenced by his violent attack on his sister for which, according to DW.2, he was

imprisoned as a criminal lunatic, the respondent must have attacked his son when in such a condition, whereby he had no ability to control his actions. In his police statement the respondent stated that he did not realize what he had done until two days later when he became extremely remorseful for having killed his own son. The respondent was prone to the bouts of insane irresistible impulse due to mental disease after which he would become as normal as anyone. This is why Dr. Farashani was misled into believing that the respondent was sane and rational at all material times although he admitted, in contradiction to his earlier statement, that the respondent's police statement does not appear to be consistent with a sane mind. Indeed I believe this is what the learned trial judge intended to say although, unwittingly, he became caught up in the web of the M'Naghten rules.

In the circumstances, and on the evidence in the record, the defence of insanity was available to the respondent because at the time when he did the act which resulted in the killing of his son, he appears to have been acting under an irresistible impulse, and this would explain his attempts to cover up the crime. But he never actually attempted any escape.

I would for these reasons dismiss the appeal and, using the revisional jurisdiction of this Court, I would set aside the order of the High Court and enter a special finding under Section 219(2) of the Criminal Procedure Act that the respondent committed the offence charged but, by reason of his insanity, he is not guilty of the offence. I would also order that the record of these proceedings or a certified copy thereof be submitted to the Minister of Justice and Constitutional Affairs, and would further order that the respondent be kept in custody as a criminal lunatic.

However, as mine is a lone voice, the order of the Court shall be in terms contained in the majority judgment.

UNIVERSITY OF DAR ES SALAAM
v.
SILVESTER CYPRIAN AND 210 OTHERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Nyalali, C.J., Makame and Mfalila, JJ.A.)

CIVIL APPLICATION No. 5 OF 1995

(From the Judgment of the Court of Appeal of Tanzania at Dar es Salaam, Omar, Mnzavas and Mfalila, JJ.A., dated 14 October 1994 in Civil Appeal No. 9 of 1994)

Civil Practice and Procedure – Interlocutory Proceedings – Meaning of interlocutory proceeding – "Interlocutory proceedings defined"

Civil Practice and Procedure – Preliminary Objection – Preliminary Objections under the Court of Appeal Rules – Preliminary Objections to Applications – Rule 100 not applicable

The applicants in this application sought, *inter alia*, a review of the Court of Appeal decision in Civil Appeal No. 9 of 1994 between Tanzania Harbours Authority and Mvita Construction Company Ltd, and for stay of hearing of Civil Appeal No. 2 of 1995 between the Applicants and the Respondents as Appellants and Respondents respectively. Before this application came for hearing, Civil Appeal No. 2 of 1995 came up before the Full Bench of the Court for hearing of a preliminary objection on *locus standi*, in which the Applicants (being appellants therein) asked the Full Bench to depart from an earlier precedent set by the Court of Appeal in Civil Appeal No. 9 of 1994. The Full Bench refused to depart from the precedent on the grounds that it did not decide any issue of *locus standi* and that it was within the competence of the ordinary bench of 3 judges to decide the issue of *locus standi*. Counsel for Applicants then informed the Court that the Applicants intended to pursue this application before the Court, i.e. before a bench of 3 justices. Before the application could be heard, Civil Appeal No. 2 of

1995 came up for hearing and judgment was reserved. Finally, this application came up for hearing.

Held:

(i) "Interlocutory proceedings" are proceedings that do not decide the rights of parties but seek to keep things in *status quo* pending determination of those rights, or enable the court to give directions as to how the cause is to be conducted or what is to be done in the progress of the cause so as to enable the court ultimately to decide on the rights of the parties;

(ii) A preliminary objection to an application is procedurally similar to a preliminary objection to an appeal and should be made before the hearing of the application begins; however, r.100 of the Tanzania Court of Appeal Rules 1979 which is used to lodge notice of preliminary objections is inapplicable to applications but applies to appeals only;

(iii) The application is incompetent as it is interlocutory to Civil Appeal No. 2 of 1995 which has already been heard by another panel of justices of the Court;

(iv) The prayer for review of this Court's decision in Civil Appeal No. 9 of 1994 cannot be granted because firstly, the matter is already *res judicata;* secondly, only a Full Bench could grant the prayer; and thirdly, the parties in the present case are different from those in Civil Case No. 9 of 1994;

(v) The prayer to stay hearing of Civil Appeal No. 2 of 1995 cannot be granted because the appeal has already been heard and also because one panel or bench of this Court has no power to intervene in proceedings commenced and pending before another panel or bench of the same court;

(vi) Upon the decision of the Full Bench of the Court on the preliminary objection raised in Civil Appeal No. 2 of 1995, counsel for the Applicants ought to have withdrawn the present application so as to avoid unnecessary costs but he did not do so; this is, therefore, a fit case to order costs against counsel personally.

Objection upheld; application struck out
Costs against the Applicants' counsel personally

Case referred to:
(1)*Abood Saleh Abood v. Maryam Mbarak Saleh,* Court of Appeal – Civil Application No. 19 of 1992 (unreported)

Mr. W.N. Mnzava, for the Applicants
Mr. Ndyanabo, for the Respondents
Mr. Lukwaro, appearing as *Amicus Curiae*

RULING OF THE COURT

(Dated 30 July 1996)

Nyalali, C.J.: This is an application by the University of Dar es Salaam, hereinafter referred to as the Applicant, for, *inter alia*, a review of this Court's decision in Civil Appeal No. 9 of 1994 between Tanzania Harbours Authority and Mvita Construction Company Ltd. and for a stay of hearing of Civil Appeal No. 2 of 1995 between the Applicant and Sylvester Cyprian and 210 others. Before this application came up for first hearing on 9th July 1996 and was adjourned to 15th July 1996, Civil Appeal No. 2 of 1995 came up for hearing on 17th November, 1995 before the Full Bench of this Court on a preliminary objection on *locus standi* of the respondents. The Full Bench sat, at the request of the Applicants, who are the appellants in that appeal. The applicants sought to ask the Full Bench, in adjudicating on their objection, to depart from an earlier precedent set by the Court in Civil Appeal No. 9 of 1994 above mentioned. However, the Full Bench, after hearing both sides, was of the view that there was no occasion for any departure from the Court's decision in Civil Appeal No. 9 of 1994 as that case did not decide any issue of *locus standi.* Furthermore, the Full Bench clearly stated to the effect that the issue of *locus standi* of the respondents raised in the pending appeal No. 2 of 1995 was within the competency of an ordinary bench of three justices of the Court. Thus the Full Bench refused to adjudicate on the objection, with costs, and left the matter to the ordinary court.

Thereafter, the Deputy Registrar of the Court wrote to the Chief

Corporation Counsel of the Tanzania Legal Corporation, who are advocates of the Applicants, as follows:

> Refer to the above Civil Application for review filed on 1st February, 1995. Following the Preliminary Ruling given by the Court in Civil Appeal No. 2 of 1995, I will be grateful to know your views or actions you would intend to take in respect of the above mentioned application, i.e. Civil Application No. 5 of 1995.

In a letter Ref. No. TLC/30/UNIV/100 dated 20th February 1996. signed by Mr. W.N. Mnzava for the Chief Corporation Counsel, the Registrar was informed, *inter alia,* to the effect that the applicants intended to pursue this application before an ordinary bench of justices of this court. Thereafter, Civil Appeal No. 2 of 1995 came up for hearing in March 1996 and Judgment was reserved. Subsequently, this application also came up for hearing before us. Mr. W.N. Mnzava appeared and advocated for the Applicants, whereas Mr. J. Ndyanabo appeared and advocated for the respondents, namely, Sylvester Cyprian and 210 others. Mr. Lukwaro, learned advocate, appeared as *Amicus Curiae.* Prior to the hearing of the application, Mr. Ndyanabo, Counsel for the respondents, filed a Notice of Preliminary objection under the provisions of rule 100 of the Tanzania Court of Appeal Rules, 1979, in which be stated that:

> ... the application is incompetent and bad in law, it being interlocutory to Civil Appeal No. 2 of 1995 which has already been argued, *inter-partes* and the judgment thereof has been reserved. The Counsel for the respondents will therefore pray that this application be struck out with costs.

In the course of hearing this objection, incidental questions arose as to the meaning of the expressions "preliminary objection" and "interlocutory" as used in the Respondents' Notice of preliminary

objection. It seems to us that the expression "interlocutory" has already been judicially considered under English law. According to John B. Saudner's *Words and Phrases Legally Defined,* Second Edition, Vol. 3 page 82:

> These applications only are considered interlocutory which is not decide the rights of parties, but are made for the purpose of keeping things in status quo till the rights can be decided, or for the purpose of obtaining some direction of the court as to how the cause is to be conducted, as to what is to be done in the progress of the cause for the purpose of enabling the court ultimately to decide upon the rights of the parties.

We do accept that this is the correct meaning of the expression "interlocutory" and the same applies to judicial proceedings in this country, and we thus agree that this application is interlocutory to Civil Appeal No. 2 of 1995 which has already been heard by another panel of justices of this court.

As to the meaning of the expression "preliminary objection," we must point out first that rule 100 which is relied upon as the basis for the notice of preliminary objection, is inapplicable to applications. That rule states:

> Where a respondent intends to take a preliminary objection to any appeal or any part of it, he shall, as soon as practicable before the hearing begins, give reasonable notice to the Court and to the other parties to the appeal of that objections, and if that notice is not given the court may adjourn the hearing and make such order as to costs as it may deem just.

It is apparent that rule 100 applies to appeals only. It is also apparent that there is no specific rule concerning preliminary objections to applications filed in the court. We are, however, satisfied that in the absence of such specific rule, the general provisions of rule 3 apply. We are also satisfied that a preliminary objection to an application is,

procedurally, similar to a preliminary objection to an appeal, and must therefore be made before the hearing of the application begins.

We now come to the merits of the Notice of Objection. Essentially, the Respondents are saying that this interlocutory application by the Applicants is misconceived because what the applicants are asking from the court can no longer be granted at this stage. As already mentioned, the main thrust of the application is a "review of the Court's ruling in Civil Appeal 9 of 1994 between Tanzania Harbours Authority and Mvita Construction Company Limited ...." And that "... the hearing of the pending Civil Appeal No. 2 of 1995....be stayed until the Court determines the said Review as the Ruling in Civil Appeal No. 9 of 1994 affects the Appellants in the pending appeal."

We have asked ourselves whether this court can grant the applicants' prayer if what they seek is the same as that which they sought from and was refused by the Full Bench in the preliminary objection in Civil Appeal No. 2 of 1995. The answer must be in the negative because firstly, that matter is already *res judicata* and secondly, only a Full Bench can grant what the applicants seek. Also we have asked ourselves whether we can grant the prayer if what they really seek is an alteration of the decision in Civil Appeal No. 9 of 1994. The answer again must be in he negative because the present case and the present parties are not the same as in Civil Appeal No. 9 of 1994. The law on this point is settled by this court in a number of decisions including the case cited to us by the Applicants, that is, the case of *Abood Saleh Abood v. Maryam Mbarak Saleh (1).*

As to the Applicants' prayer to this court to order a stay of the hearing of Civil Appeal No. 2 of 1995, we cannot grant it because the appeal has already been heard and secondly, because one panel or bench of this Court is not empowered to intervene in proceedings commenced and pending before another panel or bench of the same court. This is because all panels or benches of the court are of the same status and none is subordinate to another.

We are of the considered opinion that in view of the decision of the

Full Bench given of 247th November 1995, counsel for the Applicants, ought to have realized that the present application stood no chance of success and deserved to be withdrawn, to avoid incurring unnecessary costs. Under these circumstances, we have asked ourselves whether this is not a proper case to invoke the provisions of rule 116 of the Tanzania Court of Appeal Rules.1979 which states:

> "If it appears to the court that costs have been incurred improperly or without reasonable cause, or by reason of any undue delay in proceeding under any judgment or order, or of any misconduct or default of the advocate, any costs properly incurred have nevertheless proved fruitless to the person incurring them, the court may call upon the advocate by whom such costs have been so incurred to show cause why those costs should not be borne by the advocate personally, and thereupon may make such order as the justice of the case may require."

We asked Mr. Mnzava, learned counsel, to show cause why costs should not be ordered to be personally paid by him. His response is to the effect that such an order would be unjust to him, since he had spent so much of his energy fighting his client's case in the Court of Appeal. With due respect, we do not think that there was good cause for spending valuable energy pursuing this application after the decision of the Full Bench was given and after the hearing of Civil Appeal No. 2 of 1995 was concluded.

In the final analysis therefore we uphold the objection made by the respondents and order that the application be struck out. We further order that the costs of this application be paid personally by Mr. Mnzava, learned counsel for the applicants.

LAMSHORE LIMITED (J.S.KINYANJUI)
v.
BIZANJE K.U.D.K.

HIGH COURT OF ZANZIBAR
AT VUGA
(Kannonyele, J.)

MISCELLANEIOUS APPLICATION No. 39 OF 1996
(From Civil Case No. 13/1995)

Civil Practice and Procedure – Legal Representation – Attorney General and law officers there under – Whether state attorneys may appear in court to represent a parastatal corporation that is not a government department – Legal Practitioners Decree and rr. 4 and 2 of the Legal Practitioners Rules (Z)

The Respondent was a public corporation wholly owned by the Government of Zanzibar. State attorneys from the Attorney General's Chambers had been appearing in court for that corporation from the beginning of the proceedings. An objection was raised against state attorneys appearing for the corporation, a legal person distinct from the government.

Held:
If the Government wishes to extend its services to private persons and lets or directs its counsel to represent an individual at its charge, nobody has the right to prevent it from doing so; accordingly, law officers from the Attorney General's Chambers duly instructed by their superiors can appear before the courts in Zanzibar within the scope of their employment as long as they continue to hold such office subject to legal requirements other than enrollment as advocates.

Preliminary objection overruled

Cases referred to:
1) *Nehemia Gatonga v. Stephen Kinyanjui* [1959] E.A. 1096
2) *R. v. Archbishop of Canterbury I* [1903] 1 K.B. 289

Dr. Lamwai, for the Applicant
Ms. Safia, for the Respondent

RULING
(Dated 26 August 1996)

Kannonyele, J.: This is a ruling on a preliminary objection on a point of law. The subject matter for the current proceedings is an application for leave to restore the main suit which was earlier stayed pending reference to an arbiter as provided for under the terms of the agreement between the parties. The respondent who is the defendant in the main suit is a public corporation, wholly owned by the Government of Zanzibar. It is therefore a legal person created by statute. In the eyes of the law it is an individual, separate and distinct from a Government department and capable of suing and being sued in its own capacity as such an individual legal person.

It is law officers from the Attorney General's Chambers, hitherto styled as State Attorneys and occasionally as Crown Counsel, who have always represented the defendant/respondent from inception of these proceedings. It is against this representation of the defendant/respondent, which Dr. Lamwai for the plaintiff/applicant has objected to as a preliminary point of law. He had earlier intimated his desire to do so on the occasion when we met to set a date for hearing the application. Indeed he has done so.

Dr. Lamwai argues that since crown counsel are not among persons enrolled in the roll of advocates for Zanzibar nor are they among the persons whose appearance before courts is provided for under r. 4 and 2 of the Legal Practitioners Rules (and this is not disputed) they are, therefore, not qualified to appear and represent a private individual in court even if the government is interested in the matter. He says there is

no provision under the law so providing and that, therefore, they are not entitled so to appear for and on behalf of an individual person other than a government department.

Dr. Lamwai submitted that it is not acting in the course of his employment for a state attorney to represent an individual in court even in those cases where the government is interested in the subject matter unless the same falls directly under a certain government department which Bizanje (the defendant/applicant in this case) is not.

In reply, Ms. Safia, learned counsel for the respondent stated that she has been assigned by her superiors in the Chambers of the Attorney General to come and represent the public corporation. She added that this has been a common practice and order of the day in Zanzibar for State Attorneys to represent public Corporations owned by the government be it wholly or partially so. The state attorney argued that since it is her superiors who sent her to appear in the matter, she was therefore in the course of her employment and, further, that she has *locus standi* to appear for and on behalf of the corporation as directed by her superiors. The learned crown counsel relied on rule 2 of the Rules (supra) to support her contention.

The way I see it, the question is one on whether a state attorney (or crown counsel as are sometimes called) duly sent (by his/her superiors) to represent an individual (whether natural or a legal person) in a court of law (legally) does so in the course of his or her employment. I say this because there is no dispute that a state attorney has audience to appear before the courts in Zanzibar (other than primary courts or Kadhi's courts). Rule 2 is very clear in that regard. So long as the officer continues to hold office either as Attorney General or one of the law officers there under with the necessary legal qualifications, such officer shall be entitled to practice in the High Court and subordinate courts thereto other than those excepted above. There is no question that "to practice" means and includes the right to appear in court. On the other hand, it is not legally defined anywhere in the statutes as to what it means for one to be in the course of his or her employment. Nor is it provided anywhere in the statutes to give

limitations as to how far the Government can or cannot send its Attorney General or his subordinates to represent its interests in a court of law whether such interests accrue directly or indirectly through a third person, be he natural or a mere legal person. The law does not give any limitations in that regard. It is merely provided that so long as he continues to hold such office he shall be entitled to practice in this courts (supra). Hence the question is, really, one as to where one draws the line and be able to say that his is acting in the course of one's employment and this is not. Frankly speaking, I must confess that I have had some anxious moments trying to find what the correct answer to the question is. However, my personal view has always been that if the Government is willing to extend its services to private persons and thereby let or direct one of its counsel to represent an individual at its charge, no one has the right to say that this should not be so.

The Government should not be fettered in rendering its services to the public whether it has an interest in the matter or as a mere gesture of public duty. In any case, where again does one draw the line and say the government has an interest this far and does not go beyond where it comes to affairs affecting any one of its subjects, more so to one of its public corporations? Luckily enough, I am not alone in viewing things the way as I see them in this matter.

In *Nehemia Gatonga v. Stephen Kinyanjui* (1), the respondent sued the appellant, a chief who had hired the respondent's vehicles and used them several times in an emergency. The respondent claimed that appellant used threats in getting the vehicles but the chief claimed vehicle owners provided their vehicles for use by the chief during the emergency. The chief lost the case in the court of first instance and appealed to the Court of Appeal. He was represented by a crown counsel on appeal and this was the subject of a preliminary objection at the hearing of appeal. Counsel for the respondent argued on appeal that crown counsel was not entitled to conduct the appeal since he is neither enrolled on the roll of advocates nor was he appearing within the scope of his official duties. The court held (at p. 1100) that:

> ... it is entirely within the administrative discretion of the attorney-general to decide whether it is in the interest of the Crown that it should provide legal representation for a particular litigant. That decision having been taken and (the crown counsel) instructed to appear, he is clearly acting in a cause or matter within the scope of his official duties and has the right of audience.

Earlier on the learned judge had observed that the legislation did not create crown counsel an advocate but it entitles him to practice in connection with the duties of his office in any court. He was citing another English case, *R. v. Archbishop of Canterbury* (2), where it was held that a treasury solicitor was entitled to act, by direction of the Crown, for a subject, in any matter in which the Crown has an interest; that it was provided as to those persons who otherwise might not be solicitors in all the courts. If the Crown thought or felt that it was for public advantage that is should intervene by appointing a solicitor, the Crown should be free to give mandate to one of its counsel to appear and represent any litigant provided he had the other legal qualifications so to appear, other than the requirement to be enrolled as an advocate. The learned Judge of Appeal further observed in that case:

> That position of the treasury solicitor in England is, of course, governed by different legislation but that does not alter the fact that it is open to the Crown to decide that it is in its interests to undertake the defence of nay individual. If the Crown so decides, it is not for this court ... to query that decision ....

Not only do I firmly support these views by the learned judge of appeal, I feel also gratified and fortified in my views which I always have held from the beginning. I would for that reason respectfully dismiss Dr. Lamwai's preliminary objection as to representation of an individual or private person by crown counsel. It is held in lieu that law officers from the Attorney General's Chambers duly instructed by the Crown can and

are entitled to have audience in the Courts in Zanzibar within the scope of their employment for as long as they continue to hold such office subject to the other legal qualifications other than enrolment as an advocate as required by the Legal Practitioners Decree. It follows, therefore, that State Attorneys duly instructed by the Attorney General can represent the defendant/respondent in this case in their capacities as State Attorneys. It is so ordered.

SIMON KAKALA v. PATRICIA LWEKAMWA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Makame, J.A.)

CIVIL APPLICATION No. 66 OF 1995

(From the Judgment of the High Court of Tanzania at Dar es Salaam, Maina, J., dated 22 October 1995 in (PC) Civil Appeal No. 122 of 1994)

Civil Practice and Procedure – Appeals – Appeals to the Court of Appeal – Appeals originating from primary courts – Need for Certificate that appeal involves a point of law – Time frame in which to apply for the certificate – Section 5 of the Appellate Jurisdiction Act 1979

The applicant sought leave to appeal to the Court of Appeal in a matter originating from a primary court. The parties were in agreement that it was necessary to have a certificate that there was a point of law involved in the intended appeal. But they differed about the time in which to apply for such certificate, the respondent contending that it was 14 days while the applicant contended that there was no time limit.

Held:

Leave to appeal has to be sought under s.5(1) of the Appellate Jurisdiction Act 1979 within 14 days but because the matter originates from the primary court, the application for leave cannot be made without there being an application under s.5(2)(c) of the same Act for a certificate that a point of law is involved in the intended appeal; therefore, an application for that certificate is subject to the same time frame as an application for leave to appeal.

Application dismissed

Mr. Maira, for the Applicant
Dr. Lamwai, for the Respondent

RULING

(Dated 10 October 1996)

Makame, J.A.: In the Kigamboni Primary Court the present respondent was adjudged the owner of a path between her piece of land and an adjacent piece of land the present appellant bought some ten years after the respondent had acquired her piece of land. That decision was reversed by the Temeke District Court and re-instated by Maina, J. in the High Court. The applicant now wishes to come to the Court of Appeal and he is represented on this application by Mr. Maira, learned advocate. The respondent is advocated for by Dr. Lamwai, learned Counsel.

Dr. Lamwai raised the point and Mr. Maira conceded as much, that because the matter originated from the Primary Court a Certificate that a point of law is involved was necessary. It is also common ground that there is neither such a certificate nor an assertion in the filed documents in support of the present application that it had been applied for. However, Counsel parted ways in one respect, and it is this. Whereas Dr. Lamwai contended that the necessary application for a certificate is

time barred, it having the same time limit of fourteen days after the High Court decision as an application for leave to appeal, Mr. Maira submitted that applying for a Certificate that a point of law is involved has no time frame.

I discern come confusion. Leave to appeal is indeed under Section 5(1) of the Appellate Jurisdiction Act 1979 as Mr. Maira contends – for which the time limit is fourteen days; but, because the matter originates from the Primary Court, such application for leave, *within fourteen days as aforesaid*, and the underlining is mine for emphasis, cannot be made without there being an application under section 5(2)(c) of the same Act for a certificate that a point of law is involved. My view is therefore that Dr. Lamwai is right that the application under Section 5 (2)(c) is subject to the same time scale as an application for leave to appeal. It must therefore follow that where such application has not been made within fourteen days one of the pre-requisites for stay of Execution is missing, and therefore the application for stay cannot be granted. An application for extension of time within which to make the application, so as to be able to say in the Chamber Summons that such application has been made, would therefore be necessary.

I accordingly dismiss the present application with costs.

GEOFREY ELIAWONY AND THREE OTHERS
v.
REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mapigano, Bubeshi and Kaji, JJ.)

ECONOMIC CRIMINAL APPLICATION No. 3 OF 1996

(From the Resident Magistrate's Court of Dar es Salaam at Kisutu, in Economic Criminal Case No. 6 of 1996)

Criminal Practice and Procedure – Bail – Denial of Bail – Whether denial of bail amounts to treating an accused person like a convicted person

Criminal Practice and Procedure – Bail – Statutory provision prohibiting the grant of bail to accused persons – Whether the prohibition is constitutional – Section 35(3)(g) of the Economic and Organised Crime Control Act 1984

The accused persons were charged in the resident magistrate's court with unlawful exportation of 6.3 tons of dangerous drugs valued at 4 billion shillings. They were charged under sections 13(5) and 23(1)(a) and (d), and (2)(b) of the Dangerous Drugs Ordinance, read together with section 59 of the Economic and Organised Crime Control Act 1984 (**"the Act"**). In accordance with the law, no pleas were taken and their application for bail was not pursued since section 35(3)(g) of the Act prohibited the court from granting bail. The accused persons then petitioned the High Court under sections 4 and 5 of the Basic Rights and Duties Enforcement Act 1984, challenging the validity of section 35(3)(g) of the Act under Articles 13(1) & (2), 13(6)(a) & (b) and 15(2)(a) of the Constitution of the United Republic.

Held:

(i) Denying bail to an accused person does not necessarily amount to treating such person like a convicted person;

(ii) Section 35(3)(g) of the Economic and Organised Crime Control Act 1984 is not arbitrary; it would be a clear contradiction and an extreme absurdity for a statute to forbid the grant of bail and then make provision for challenging the withholding of the same;

(iii) It cannot be said that the impugned provision, i.e. section 35(3)(g) of the Economic and Organised Crime Control Act does not meet the principle of proportionality.

Application dismissed

Cases referred to:

(1) *Director of Public Prosecutions v. Daudi Pete* [1993] T.L.R. 22
(2) *Kukutia Ole Pumbun and Another v. Attorney General* [1993] T.L.R. 159
(3) *Republic v. Peregrin Y. Mrope:* High Court at Dar es Salaam, Misc. Criminal Cause No. 43 of 1989 (unreported)

RULING OF THE COURT

(Dated 4 November 1996)

The four petitioners were brought to the court of resident magistrate at Kisutu in February 1996 charged with unlawful exportation of 6.3 tons of dangerous drugs known as cannabis resin whose value was put at four billion shillings. The charge was laid down under section 13(5) and 23(1) (a) (d) and 2(b) of the Dangerous Drugs Ordinance, read together with section 59 of the Economic and Organized Crime Control Act of 1984, as amended, and paragraph 20 of the first schedule thereto.

The charge was read over to the petitioners but in accordance with the law no pleas were taken. An application for their admission to bail pending trial was made to the magistrate, but it was not pursued upon a realization that section 35(3)(g) of the Economic and Organized Crime

Control Act prohibited the court to grant bail. The petitioner have however, come to this court to challenge the validity of section 35(3) (g), herein after referred to as "the impugned provision." And their petition is brought under the provisions of sections 4 and 5 of the Basic Rights and Duties Enforcement Act of 1994.

It is contended on behalf of the petitioners, first, that the impugned provision is discriminatory either of itself or in its effect and thus violative of the provisions of Articles 13 (1) and (2) of the Constitution of the United Republic. Secondly, it is contended that the impugned provision offends Article 13(6) (a) (b) which is said to guarantee the right to a fair hearing and to enshrine the principle that a person charged with a criminal offence must be presumed to be innocent and should not be treated like a convict until his guilt is established. And thirdly, it is contended that the impugned provision infringes Articles 15(2) (a) which imperatively requires a procedure prescribed by law for a person's detention or deprivation of his liberty.

The relief sought is (a) a declaration that the impugned provision is unconstitutional, and a nullification of the same: and (b) an order granting bail to the petitioners on such terms and conditions as may be deemed appropriate.

It is a great relief to us that the law on some of the points posed have already been laid down by the Court of Appeal in the case of *D.P.P. v. Daudi Pete (1)*, in which section 140 (5) (e) of the Criminal Procedure Act, 1985, a pari materia provision, was considered; and in the case of *Kukutia Ole Pumbun and Another v. A.G. and Another (2)*. We need hardly add that we are bound by those decisions. We are indeed surprised that counsel for the petitioners should have canvassed the points before us when they appeared to be familiar with those two decisions. We consider it reasonable in the circumstances to attribute their efforts in that respect to a hurried or careless reading of those Judgments.

On the question of the impugned provision being discriminatory, the submission for the petitioners is that the provision in question "draws a line between offences under the same law, some of them are bailable

while others are not, which runs against the letter and spirit of Article 13 (1) which provides for equal entitlement and opportunity before the law, as well as Article 13 (2) which forbids the legislature to enact any provision that is discriminatory."

We have to say that we cannot sustain this submission. As the Court of Appeal virtually pointed out in the first case cited above, those two sub-articles must be read in conjunction with sub article (5) under which the term "discrimination" is defined. After setting out that sub article, the court concluded thus:

> Bearing in mind, as we must, this interpretation, we are satisfied that the selective prohibition against ball contained under section 148 (5)(c) cannot be said to be discriminatory in terms of the Constitution. *This is because the accused persons who are denied ball are so denied on the basis of their actions or conduct?*

We do not doubt for one moment that every word underlined in that passage is applicable to the impugned provision.

Counsel for the petitioners have stressed the obvious, to wit, that every person is by virtue of Article 13(6) (a) entitled to a fair hearing when his rights and obligations are being determined. If we understood her correctly, counsel for the respondent seems to concede, we think wrongly, that the impugned provision is inconsistent with that constitutional prescription, which is exactly the view taken by the trail judge, the Hon. Mr. Justice Mwalusanya, in one of the cases cited, in regard to section 148 (5) (c) of the Criminal Procedure Act. Incidentally the learned judge's tremendous judicial and extrajudicial exertions in the field of human rights have been perceived in some quarters as an attempt to make this branch of the law his own. The judge had held that an accused person is not afforded any proper opportunity of being heard before he is denied bail under that provision. As just shown, the court of Appeal disagreed. The court held that that constitutional prescription was not applicable to section 148 (5) (e), as it was confined

to situations where rights and obligations are being determined and did not extend to situations like those envisaged by section 148 (5) (e) where the court must make a particular order without discretion.

The Court observed in the same case that what Article 13 (6) (b) actually says in that "no one charged with on offence shall be treated like a convict until his guilt is proved". And that the rendition of that provision which obtains in the official English version of the constitution is faulty. It is nevertheless perfectly arguable that what is implied in that provision is that a person charged with a criminal offence must be presumed innocent until his guilt is proved. Just like the right to fair hearing, this is a fundamental and established common law rule which has been accorded a constitutional footing.

Again, as already mentioned, it is submitted that the impugned provision runs counter this constitutional prescription, and Mwalusanya, J. expressed the same view in *Daudi Pete's* case. But the Court of Appeal declined to take that view, it went with Msumi, J. in *Republic v. Peregrin Y. Mrope (3)* where he held that "denying bail to an accused person does not necessarily amount to treating such person like a convicted criminal." We have to take that to be the correct state of the law. Indeed, we respectfully think that no reasonable man can seriously quarrel with that interpretation.

We turn to Article 15(2) (a) of the Constitution which is in the following terms:

> For the purposes of protecting the right to personal freedom, no person shall be subject to arrest, restriction, detention, exile or deprivation of his liberty in any other manner save in certain circumstances, and subject to procedure, prescribed by law.

Counsel for the petitioners contend that the impugned provision is in conflict with this sub article in that there is no procedure which has been legally prescribed for subjecting an accused person to remand detention. We take the same view, but at the same time we cannot

forbear from wondering what sort of procedure could possibly be prescribed in that regard in a situation where the court in bidden to deny an accused person bail in such absolute terms. Counsel for the respondent concedes that the impugned provision does not satisfy the requirement of the sub article. She contends, however, that it is validated or saved by the provision of Article 30 (2) (b) which reads as follows:

> It is hereby declared that no provision contained in this part of this Constitution, which stipulates the basic human rights, freedoms and duties, shall be construed as invalidating any existing law or prohibiting the enactment of any law or prohibiting the enactment of any law or the doing of any lawful act under such law, making provision for ensuring the interests of public health, etc.

It seems to us that there is substance in this submission. We think that counsel could as well have relied on paragraphs (a) and (f) of that sub article which are, inter alia, about the enhancement and protection of the public and national interests.

The Sub article is a typical claw-back provision. In *Daudi Pete's* case (1) the Court of Appeal deemed it opportune and meet to point out the *raison d'etre* for such derogation, namely, the reality and recognition of the co-existence between the rights and duties of the individual on the one hand, and the collective rights and duties of society on the other. It goes without saying, so we think, that a constitutional recognition of this co-existence inevitably leads to the circumscription of the rights and liberties of the individual. And, to be sure, this is not something new or odd. The old Swahili saying is that "*Kila mnofu una mfupa wake.*"

Accordingly, the Court of Appeal observed, and again we think no rational person would disagree, that the duty of the court in construing provision of that nature is essentially to balance the two often conflicting principles, the one that rights and freedoms of the individual must be secured, the other that those rights and freedoms should not be exercised

A or enjoyed by the individual in such a manner as would prejudice the interests of the public.

But the matter does not end there. The rule articulated by the Court of Appeal in the two cases cited in that a law which seeks to so limit the
B basic rights of the individual will not be saved by the sub article unless it satisfies two essential requirement, i.e.:

> First, such a law must be lawful in the sense that it is not arbitrary. It
> C should make adequate safeguards against arbitrary decisions, and provide effective controls against abuse by those in authority when using the law. Secondly, the limitation imposed by such law must not be more than is reasonably necessary to achieve the legitimate object. This is what is
> D also known as the principle of proportionality. The principle requires that such law must not be drafted too widely so as to net everyone including even the untargeted members of the society.

E Counsel for the petitioners have urged upon us the point that the impugned provision is not arbitrary. The provisions of sections 25 and 26 of the statute are, in our opinion, relevant and materials. We are clearly of the opinion that these provisions accord the D.P.P. (as therein
F defined) sufficient opportunity to keep track of such cases, and provide a mechanism for his control of the proceedings and checking possible abuses.

But it is said, as we understand the argument, that the impugned
G provision is unlawful because, first, there is no procedure laid down for challenging the denial of bail and secondly, because no time limit has been stipulated for holding an accused person in remand custody. We regret to say that we have failed to see the point of this submission.

H We think that it would be a clear contradiction and an extreme absurdity for a statute to forbid a grant of bail and then to make provision for challenging the withholding of the same. And it is trite to observe that in general when a court orders an outright refusal of bail the order
I subsists during the pendency of the trial.

We have also been unable to accept the proposition that the impugned provision does not meet the principle of proportionality. We are quite certain in our minds that the terms of that provision are not too broad, and it is pertinent to mention that the petitioners have not demonstrated otherwise. We are satisfied that the impugned provision corresponds squarely and perfectly with the end intended, which is the protection of public health and national interests.

In the final event, for what we have stated, this petition fails, and so we dismiss it.

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In the final event, for what we have stated, this petition fails, and so we dismiss it.

JOHN PETER SHAYO AND TWO OTHERS
v.
REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mapigano, J.)

ECONOMIC CRIMINAL APPEAL No. 4 OF 1996

(From the conviction of the District Court of Ilala at Kisutu, in Economic Criminal Case No. 26 of 1994)

Evidence – Confessions – Confession made to a Police Officer – Whether admissible – Section 31 of the Evidence Act 1967

Criminal Practice and Procedure – Interrogation of suspects – Suspect detained for interrogation going on beyond a period of 4 hours – Whether permissible – Section 50 of the Criminal Procedure Act 1985

Criminal Practice and Procedure – Trial within a trial – Obtaining practice

Criminal Practice and Procedure – Sentencing – Concurrent sentences – Whether concurrent sentence can be ordered to run with any other term a person is undergoing for related offences – Section 36 of the Penal Code

The appellants were charged in the resident magistrate's court and convicted of unauthorized possession of firearms and ammunition, contrary to s.13(1) of the Arms and Ammunition Ordinance, read together with s.59 of the Economic and Organised Crime Control Act 1984 and paragraph 21 of the First Schedule thereto. During the trial a cautioned statement made by one of the appellants to a police officer was admitted in evidence; and it was explicit about his full complicity in the offences charged, although he repudiated the confession at the trial, alleging that police brutality was used to make him sign it. The information in that statement led to the discovery of two pistols. Upon these findings the trial court magistrate concluded that the confession was admissible under s.31 of the Evidence Act 1967. On appeal it was also argued that the statement was recorded in breach of s.50 of the Criminal Procedure Act 1985, in that the interrogations went on beyond the four hours prescribed thereunder. It was further argued that evidence should have been taken by the trial court on the *voir dire* to determine the admissibility of the confession. The appeal against sentence was also directed at the refusal by the trial court magistrate to order the prison term of the 1st appellant to run concurrently with another prison term he was serving for related offences.

Held:

(i) Confessions that are otherwise inadmissible are allowed to be given in evidence under s.31 of the Evidence Act 1967 if, and only if, they lead to the discovery of material objects connected with the crime, the rational being that such discovery supplies a guarantee of the truth of that portion of the confession which led to it;

(ii) As a general rule, oral confessions of guilt are admissible though they are to be received with great caution, and ss. 27(1) and 31 of the Evidence Act 1967 contemplate such confessions;

(iii) While it is true that s.50 of the Criminal Procedure Act 1985 prescribes four hours as the basic period for interrogating a person under restraint, a process described in that Act rather euphemistically as interview, s.51(c) permits extension of such interview for a period of 8 hours where circumstances reasonably demand it, and regard must also be had to the provisions of s.50(2) by which certain periods are to be excluded from the computation of the basic period;

(iv) Even if there was any breach of the law in regard to interrogations, the fault would amount to a mere irregularity and the issue would be the weight to be attached to the statement rather than the admissibility of the document;

(v) A trial within a trial is a practice which only obtains in criminal trials held by the High Court, where a judge sits with assessors;

(vi) Section 36 of the Penal Code empowers a court to make a prison term meted out to a person to run concurrently with any other prison term the person is undergoing, and the practice has been to make sentences imposed at two distinct trials concurrent provided that the offences are related.

Appeals by 1st and 2nd appellants dismissed
Appeal by 3rd appellant allowed

A Case referred to:
(1) *Francis Chilemba v. R* [1968] H.C.D., n.510

Mr. Kashumbugu, for the Appellants
B *Miss Korosso*, for the Respondent

JUDGMENT

(Delivered 5 November 1996)

C

Mapigano, J.: John Peter Shayo, Saidi Seif and Hamza Juma, the appellants herein, were brought to the Resident Magistrate's Court at Kisutu together with two other persons charged with unauthorized possession of firearms
D and ammunition, contrary to section 13(1) of the Arms and Ammunition Ordinance, as read together with section 59 of the Economic and Organized Crime Control Act, 1984 and paragraph 21 of the first schedule thereto. The charges related to two pistols and seventeen rounds of ammunition
E which were said to have been discovered on 23/5/94 hidden in a room rented and occupied by Saidi Seif in a house situated at Tandale in the Kinondoni District. The house belongs to Noah William who was one of the two other co-accused and who dwelt elsewhere. The appellants were
F convicted of the offences, and the learned magistrate passed a sentence of imprisonment for fifteen years on each count upon each, directing that the sentences should be executed concurrently. Noah William and the other co-accused person were cleared of the charges, and I think properly so.

G The appellants are dissatisfied with the judgment of the learned magistrate and have come to this court to fault the validity of the convictions and the sentences. The appeals are consolidated and Mr. Kashumbugu, learned
H counsel who advocated for John Peter Shayo at the trial, has been retained to argue the appeal.

According to the trial record, John Peter Shayo was a resident of Mwananyamala of the Kinondoni District. Before the incident which gave
I rise to this case he had been arraigned before the district court on two serious criminal charges. He was admitted to bail, which he jumped. But as

it came to pass detectives who knew him ran upon him at the Moshi Bus A
Stand on 21/5/94. He was apprehended and brought back to Dar es Salaam straight. He was subjected to interrogations at the Central Police Station shortly after arrival. It was around midnight. It was in dispute at the trial whether he made material disclosures during the interrogations, namely, B
that he possessed the two pistols jointly with Noah William and whether the weapons were being held by Saidi Seif and Hamza Juma.

A search was consequently conducted in the room rented by Saidi Seif, who was found sleeping herein. Also found inside the room was Hamza C
Juma. The search was fruitful. There was evidence that the truth of what John Peter Shayo had told the police was verified: two pistols were dug out of the floor of that room. Also discovered in the room were the seventeen rounds of ammunition. On their part the appellants denied that these articles D
were found in the room, Saidi Seif claiming that the articles were brought into the room by the police and planted on him.

There was also evidence that John Peter Shayo made a cautioned statement to a police officer on the following day. This statement was E
admitted into evidence and described as exhibit P4 and it is explicit about his full complicity in the offences charged and his active involvements in five previous incidents of hold up banditry in the city. But it is highly questionable whether there is anything material in it which implicated Said Seif and Hamza F
Juma, and the learned magistrate seems to have realized that.

John Peter Shayo repudiated the confession at the trial, alleging that police brutality had caused him to sign it. Objection was taken by Mr. Kashumbugu to its admission and at the conclusion of the arguments the magistrate G
overruled the objection and promised to recur to it and state the reasons for doing so in his judgment. But as will be demonstrated later he more or less reneged on his word when he came to write the judgment.

In sum the common allegation of the appellants was that the evidence H
against them was fabricated by the police. In his judgment the trial magistrate dismissed this allegation. He found that John Peter Shayo was the maker of exhibit P4, that he, Shayo, had made the statement voluntarily, and that the I
detailed information provided in that statement had led to the discovery of

the two pistols. Upon these findings the magistrate concluded that the confession was admissible. The magistrate went farther and held that the confession was by itself sufficient to support the conviction of John Peter Shayo. It is thus clear that the learned magistrate accepted the view urged by the presecution that the provision of section 31 of the Evidence Act, 1967, was applicable. Confessions which are otherwise inadmissible are allowed to be given in evidence under that section if, and only if, they lead to the discovery of material objects connected with the crime, the rationale being that such discovery supplies a guarantee of the truth of that portion of the confession which led to it.

The trial magistrate also found that two civilians, PW1 Salum Mbegu and PW2 Ally Shomari, were summoned to witness the search, and that PW1 was present throughout while PW2 came towards the end of the proceedings at a point when the articles had been unearthed. He found it true that the pistols and the ammunition were discovered in the room, and so he dismissed the allegation that the articles were brought by the detective officers into the room and planted on Saidi Seif. He considered the discovery of the articles as grave evidence against Saidi Seif and conclusive of his guilt. He accepted the evidence of the detective officers that John Peter Shayo was kept under guard outside the house when the search was being conducted, and he said that that explains why PW1 and PW2 did not see Shayo inside the house.

With regard to Hamza Juma, the magistrate found that it was not the first time for him to sleep in that room, and with that he held that Juma must be deemed to have been in culpable possession of the articles.

On behalf of John Peter Shayo, Mr. Kashumbugu has urged three substantive grounds of appeal, one being in respect of the sentence. The first ground is that the trial magistrate "erred in accepting the confessional statement exhibit P4 when the same was illegally taken and when there was no trial within a trial held." Mr. Kashumbugu has submitted that this statement was about the only piece of evidence which incriminated John Peter Shayo, and that there would thus be nothing material to sustain the convictions if the statement were to be disregarded.

Mr. Kashumbugu has maintained that the statement was recorded in breach of section 50 of the Criminal Procedure Act, in that the interrogations went on beyond the period stipulated under that provision. This is one of the grounds he advanced in support of his objection to the admission of the statement in the trial court, but it was not given any consideration by the learned magistrate in his judgment. For myself I think Mr. Kashumbugu is mistaken. While it is true that section 50 prescribed a space of four hours as the basic period for interrogating a person under restraint, a process described in that Act rather euphemistically as interview, section 51(1) (c) permits extension of such interview for a period of eight hours where circumstances reasonably demand it. Regard must also be had to the provisions of sub-section (2) of that section by which certain periods are to be excluded from the computation of the basic period.

Relatedly it is right to say that there is no evidence which firmly establishes that the period for the interrogations were extended for more than eight hours. I have also to add that there is nothing in the evidence which shows or suggests that the basic period was frivolously or vexatiously extended. I therefore hold that there was no breach of the law in regard to the interrogations. Besides, it is in my opinion perfectly arguable that if there were any such breach in procedure the fault would amount to a mere irregularity, and the issue would be the weight to be attached to the statement rather than the admissibility of one document.

As regards the proposition that evidence should have been taken by the trial court on the *voir dire* to determine the admissibility of the confession, I hold that Mr. Nyangarika is also wrong. That practice is unknown to the law and no wonder that Mr. Nyangarika has failed to site any authority to support his argument. A trial within a trial is a practice which only obtains in criminal trials held by the High Court where a judge sits with assessors. In this case the learned magistrate considered the statement to have been made by John Peter Shayo voluntarily, and I need not point out that voluntariness is the test of admissibility of such statement. I am unable to fault the magistrate's opinion. The allegation of police torture was made in very general terms. The particulars as to the nature of the torture, the time and

place it was inflicted, and the police officer who perpetrated it, were not gone into.

The second ground of the appeal of John Peter Shayo is that the trial magistrate erred in holding that the confession exhibit P.4 led to the discovery of the subject matters of the charges. This ground must be sustained. It is patent in the evidence that the statement exhibit P4 was recorded after the discovery of the articles. It is essential to the applicability of section 31 of the Evidence Act that such statement must precede and lead to the discovery, and not follow it. However, in view of the correct finding of the learned magistrate that the statement was given voluntarily, I think that the magistrate could and should nevertheless have relied upon it, if he felt, as I do, that it carried the truth.

I have also to point our that John Peter Shayo, besides the formal recorded confession, made an oral confession to PW6 Detective Senior Sergeant Yahane. And in actual fact the discovery of the pistols and ammunition was made directly in consequence of the oral confession. As a general rule, oral confessions of guilt are admissible though they are to be received with great caution, and it seems to me that sections 27 (1) and 31 of the Evidence Act also contemplates such confessions.

I am satisfied that in its totality the evidence established the guilt of John Peter Shayo beyond all reasonable doubt, and his appeal against the convictions should, therefore, be dismissed.

The appeal against the sentence is directed at the refusal by the learned magistrate to order the prison term so be served concurrently with the thirty year terms which had been passed by the same court on John Peter Shayo in two previous related cases.. There is substance in the appeal. Section 36 of the Panel Code empowers a court to make a prison term meted out to a person to run concurrently with any other prison term the person is undergoing, and the practice has been to make sentences imposed at two distinct trials concurrent provided that the offences are related, and with respect to the learned magistrate, there is nothing in the provision of section 59 of the Economic and Organized Crime Control Act which is to the contrary. What's more, in what has been described as a controversial but equitable decision,

this Court (Biron, J.) held in *Francis Chilemba v. R. (1)*, that a sentence may be ordered to run concurrently with a previous one as from the date the previous one is imposed. I think that John Peter Shayo should have been treated in such manner. Accordingly, it is ordered that the sentence passed on him in this case is to run concurrently with the one imposed in the previous case from the date of the previous one.

I come to the appeal of Saidi Seif. He too has submitted four substantive grounds. The first ground is about the legality of the search. His contention is that the police did not comply with section 22 (3) (ii) of the Economic and organized Crime control Act, as amended, which is true. Under that provision, the police officer who seized the articles was required to issue an official receipt evidencing the seizure and bearing, *inter alia*, the signature of the owner of the premises searched and that of at least one independent person who witnessed the search.

This point was also raised at the trial, but it was never considered by the learned magistrate. My view is that the failure to comply with the sub section cannot *per se* vitiate the search. It is also a mere irregularity.

The second ground is that the trial magistrate erred in fact when he found that the pistols and ammunition were discovered in the room. This ground must be dismissed. There is simply no way one can reasonably get around the prosecution evidence that the articles were detected in that room. The evidence was plentiful and compelling. Apart from the detective officers on the search detail, the civilian witness PW1 also testified to that effect. There was nothing in principle which possibly have justified the trial magistrate to disbelieve or doubt his testimony. He was apparently a witness who had no motive for living. His evidence put to rest what little reservation one might still had about the discovery. I need hardly say that the discovery of the articles pointed strongly to Self's guilt.

The third ground relates to a reliance which the magistrate is **alleged** to have placed on the statement exhibit P.4. I have used and underscored the word "alleged" because the fact of the matter is that the judgment of the learned magistrate has been grossly misunderstood by the person who drew the petition of appeal. If he had read the judgment a bit more carefully he

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The third ground relates to a reliance which the magistrate is **alleged** to have placed on the statement exhibit P.4. I have used and underscored the word "alleged" because the fact of the matter is that the judgment of the learned magistrate has been grossly misunderstood by the person who drew the petition of appeal. If he had read the judgment a bit more carefully he

would have apprehended that the convictions of Saidi Seif were entirely had on the findings that the articles were actually discovered in his room and that he was possessed of the same. As I have already said, the learned magistrate was entitled to make those findings.

The last ground of appeal is a complaint that the sentence awarded by the magistrate was unduly severe. I regret to say that the sentence was warranted. The maximum penalty for the offence is imprisonment for fifteen years. There were hardly any mitigating circumstances, and the magistrate was thus bound to apply the provision of section 59(3) (a) which lays down the principle that a proved offence which is in the nature of an organized crime, deserves, in the absence of mitigating circumstances, the maximum penalty. This ground is accordingly dismissed.

I finally turn to the appeal of Hamza Juma, who has also submitted three grounds. In the first ground he has also complained about the trial magistrate having used exhibit P.4 against him. What I have said about this statement in connection with the appeal of Saidi Seif is also relevant here. The objection apparently stems from a perfunctory reading of the trial judgment. It is just not true that the statement was so used.

The second ground of appeal is that there was no sufficient evidence to support the convictions. I must agree. About the only material evidence given against Hamza Juma was that he was found sleeping in the room in which the articles were discovered. The learned magistrate came to the finding that it was not the first time he had done so, and so far as I am able to discern that is the only ground I can deduce from the judgment of the magistrate for his decision that Hamza Juma was also possessed of the articles. I must hold that the conclusion reached by the learned magistrate was against the weight of evidence and perverse.

There was indeed a serious non direction on the part of the magistrate as to what possession connotes in law. Possession to be punishable under the criminal law must be possession with knowledge of the existence of the thing and control over it, and I think the application of common sense shows that it should be so. Suppose Hamza Juma was, as the magistrate found, sleeping in that room sometimes. If he was ignorant of the fact

that the articles were hidden in there and/or if he did not exercise any control over the things, he cannot be said to have committed the offences, and in my considered opinion there was no tangible and constraining evidence that he had such knowledge and control. His appeal against the convictions should therefore succeed. In the circumstances it is not necessary for me to consider his third ground of appeal, which is in respect of the sentence.

In the final event the appeal of Juma is allowed, the convictions are quashed and the sentence set aside. He is to be set free forthwith unless he is otherwise lawfully held. The appeals by John Peter Shayo and Saidi Seif are wholly dismissed, save for what I have directed in regard to the execution of the sentence passed upon the former.

G.F. KASSAM v. AMIRALI H.M. WALJI AND RUKIYA AMIRALI WALJI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Ramadhani, Mnzavas and Lubuva, JJ.A.)

CIVIL APPEAL No. 45 OF 1995

(From the Judgment and Decree of the High Court of Tanzania at Dar es Salaam, Mwaikasu, J., dated 6 November 1994, in Misc. Civil Appeal No. 15 of 1993)

Landlord and Tenant – Power to evict tenant – Whether a tenant can seek to evict another tenant

Landlord and Tenant – Right to collect and use rent from tenant – Respondent allowed for the duration of her lifetime to collect and use rent paid by

appellant but the house remains that of the National Housing Corporation – Whether respondent is a tenant or a licensee

Landlord and Tenant – Licensee – Whether a licensee may be deemed a landlord for purposes of evicting a tenant

Originally, the house in dispute belonged to the deceased mother of the 2nd respondent, and mother in law of the 1st respondent, and the appellant was a tenant therein. The house was nationalized in 1971 but the appellant continued as tenant. Some 20 years after nationalization the 2nd respondent petitioned the President of the United Republic for de-nationalization of the said house and its eventual return to her as heiress. In response to the petition she was allowed to collect and use the tents paid by the tenant in that house for the duration of her life and that of her husband, the 1st respondent, but the house continued to be the National Housing Corporation's. The respondents then filed a suit in the Regional Housing Tribunal seeking to evict the appellant from the house; they succeeded, the Tribunal found them to be life landlords of the house by implication. That decision was reversed by the Housing Appeals Tribunal, holding that the National Housing Corporation was the landlord and that the concept of a junior landlord was unknown to the law of Tanzania. On further appeal to the High Court the ruling of the Regional Housing Tribunal was restored. Dissatisfied, the appellant brought this appeal.

Held:

(i) Only a landlord can sue to evict a tenant and one tenant cannot seek to evict another tenant;

(ii) The respondents are not tenants but are licensees falling in the second category, that is, licensees coupled with an interest; they have the assurance of enjoying the fruits of the suit premises for their life time, so long as they abide by the terms of the licensee;

(iii) The respondents, as licensees, are landlords under section 3 of the Rent Restriction Act 1984, and they could seek the eviction of the appellant.

Appeal dismissed

Cases referred to:

(1) *Registrar of Buildings v. Felix Bwogi,* t/a *Eximpo Promotion Services,* Court of Appeal of Tanzania – Civil Appeal No. 19 of 1988 (unreported)

(2) *Registrar of Buildings v. Dr Ali H. Kombe* [1982] T.L.R. 61

Mr. Majithia, for the Appellant

Mr. Chandoo, for the Respondents

JUDGMENT OF THE COURT

(Dated 14 November 1996)

Ramadhani, J.A.: The house on Plot No. 1307/148 on Kitumbini Street, Dar es Salaam, originally belonged to one Mrs. Ramatbai Alibhai, deceased, who was the mother of the second respondent, Rukiya Amrali Walji, and the mother in law of the first respondent, Amirali H.M. Walji. The appellant, Gulamabhas F. Kassam, was the tenant. That house was nationalized in 1971 under the Acquisition of Buildings Act, 1971, and was put under the Registrar of Buildings. The appellant continued to be the tenant.

The second respondent, that is the daughter of the original owner of the house, petitioned the President of the United Republic of Tanzania for the denationalization of the house and its eventual return to her as the heiress. By a letter SHC/A.70/2 of 26 May, 1992, signed by the Principal Secretary to the President (hereinafter referred to as the letter from *Ikulu*) the second respondent was allowed to collect and use the rents paid by the tenant in that house for the duration of her life and that of the first respondent. It was categorically said in that letter that the house will continue to be in the name of the National Housing Corporation (NHC). Incidentally, to digress a bit, in 1990 the office of the Registrar of Buildings was merged with NHC and its property and activities passed on to the latter.

The respondents filed a suit before the Regional Housing Tribunal of Dar es Salaam seeking to evict the appellant from the said house. Mr. Majithia, learned counsel, who advocated for the appellant, raised a preliminary objection that the respondents were not the landlords but were mere tenants and as such they could not effect eviction of a fellow tenant. He cited our decision in the *Registrar of Buildings v. Felix Bwogi t/a Eximpo Promotion and Services (1).*

The Tribunal agreed with the submissions of Mr. Chandoo, learned advocate for the respondents, that the respondents were, by implication, the life landlords of the suit premises. The reasons were that the respondents were entrusted, in their life time, with the responsibilities of collecting rents, repairing the house and paying land rates.

The appellant was aggrieved by that decision and he successfully appealed to the Housing Appeals Tribunal. It was held that NHC was the landlord and that the concept of a junior landlord is unknown in the land law of Tanzania. The respondents were found to be tenants and therefore they could not evict another tenant unless they did so as agents of the landlord and that in that case the plaint had, under 0. III R. 1 and 2, to say so explicitly. So the preliminary objection was upheld and the suit was dismissed.

The present respondents appealed to the High Court of Tanzania where **Mwaikasu, J.** held that the respondents were clothed with the status of the Landlord and as such they could evict a tenant. Thus the learned judge restored the ruling of the Regional Housing Tribunal. **Mwaikasu, J.** reviewed the land law of England and saw that the right to receive rents as an owner, and not as a mere collector, is one of the incidents of being a landlord.

This is now an appeal from that decision of **Mwaikasu, J.** The main issue, as Mr. Majithia, learned counsel for the appellant, said is whether or not the respondents can evict the appellant.

Mr. Majithia pointed out that this Court has decided in *The Registrar of Buildings v. Dr. Ali H. Kombe, (2)* that a former owner of a nationalized building is a licensee and not a landlord when that building

is returned to him or her for the duration of his or her life time. So, the learned advocate submitted, the respondents here are also licensees and that, as under *Bwogi's* case, they cannot evict a tenant.

Mr. Chandoo, for the respondents, first argued that if the respondents, by the authority of *Dr. Kombe*, are licensees and not tenants, then *Bwogi* is inapplicable because it is about tenants. The learned advocate argued further that as respondents were given a right of occupancy for life, they were then trustees of the reversionary interest of NHC. He submitted that seeking eviction was in the exercise of the protection of that reversionary right. Thirdly, the learned advocate submitted that to be a landlord one does not have to be an owner of a premises. He pointed out that all the land in Tanzania belongs to the President who grants rights of occupancy. Mr. Chandoo argued that the holders of the rights of occupancy are regarded as landlords and do evict their tenants. Finally, the learned advocate submitted that if the premises fall vacant the respondents would either enter into occupation themselves or they would look for another tenant. He argued that the respondents are, therefore, landlords.

Mr. Majithia in reply said that a licensee cannot be a landlord. He pointed out that under *Bwogi* only the landlord can evict. The learned advocate said that if the premises become vacant then the respondents will have to consult NHC and cannot just enter into occupation themselves or get another tenant.

There is not a slightest doubt in our minds that *Bwogi* is categoric that only a landlord can sue to evict a tenant and that one tenant cannot seek to evict another tenant. Similarly, according to *Dr. Kombe* the respondents are not tenants but are licensees. In the latter case a former owner of a house nationalised under the Acquisition of Buildings Act, 1971, had her house returned to her for the duration of her life. She sold it to Dr. Kombe. This court held that the lady was a licensee as such she had no title to pass on to a buyer. This court had this to say, at p. 65:

> In our view what the Government really intended to do, and what it in

fact did, was to create a lesser or limited interest in favour of Mrs. Kaur while it (the Government) itself retained the legal title to the property. The interest so created was to all intent and purposes a license to enjoy the fruits of the suit premises; it amounted to no more than that.

Now, we have to determine what was not decided in Dr. Kombe and that is whether a licensee can evict a tenant in order to "enjoy the fruits of the suit premises." In other words, can a licensee be deemed to be a landlord for the purposes of eviction? Landlord is defined in section 3 of the Rent Restriction Act, 1984, as follows:

> Includes, in relation to any premises, any person, other than the tenant, who is or would be, but for the provisions of this Act entitled to possession of the premises and any person from time to time deriving title under the original landlord, and any person deemed to be a landlord under section 4 or section 5.

We may as well say it here that sections 4 and 5 are inapplicable in this case. Two things are obvious to us; one, a tenant, which title dose not apply to the respondents, can never be a landlord and two, for the suit premises the title landlord is not confined to NHC only. The question is whether the respondents are "entitled to possession of the premises" and hence are landlords.

It is quite in order to revisit briefly the law regarding license first, and then to look at the terms of the license of the respondents. A license is a permission given by an occupier of land which allows a licensee to do some act which would otherwise be trespass. Since licenses are almost purely personal transactions, it is difficult to put limits to their possible varieties. However, there are generally three different classes distinguishable.

First, there is a bare license which is granted otherwise than for valuable consideration, e.g. gratuitous permission to enter a house or field. This can be revoked at any time on reasonable notice. Then there is a license coupled wit an interest, that is, proprietary interest in other property. For example, a licensee is allowed to enter a premises

and to hunt or cut trees and then to take the animal killed or the wood cut. Under common law such a License is irrevocable and is assignable. However, the interest must be validly created. Lastly, there is a contractual license. This is where, for instance, one has a ticket for a sports match or for traveling. The Licensor contracts not to revoke the license.

The respondents fall in the second category, that is license coupled with an interest. They have been allowed to take rents for their life time. As already seen such license under common law is irrevocable. However, we are quick to add that where the terms of the license are abused, as was the case in *Dr. Kombe*, then the license can be revoked. Here the interest was validly created because, as properly pointed out in *Dr. Kombe* at p. 64, the Registrar of buildings, now NHC, under s. 4 (2) of the Acquisition of Buildings Act, 1971, acquire property subject to the directions of the President. The letter from *Ikulu* constitutes such directions of the President. So, the respondents have the assurance of enjoying the fruits of the suit premises for their life time so long as they abide by the terms of the license. Now, what are these terms? The letter from Ikulu says, in the relevant parts, as follows:

> *.... Rais ameagiza kuwa badala yakurudishiwa kabisa nyumba hiyo, ndigu Rukia Amarshi Walji achukue kodi ya upangaji wa nyumba hiyo kwa kipindi cha uhai wake na wa mumewe.*
>
> *Kwa kuwa utekelezaji wa uamuzi huu ni sawa na kurudishwa kwa nyumba hii kwa kipindi cha maisha yake yote nay a mumewe, masharti yafuatayo yazingatiwe....*

That can be translated as

> .... The President has directed that instead of restoring that house completely, Mrs. Rukia Amarshi Walji to collect rents from the house for the duration of her life and that of her husband. As the implementation of this decision is tantamount to the restoration of the house for the

duration of her life and that of her husband, the following conditions have to observed ....

It is clear that the house was returned to the respondents for their life time and because of that some conditions had to be observed. So, the conditions were imposed because 'Life ownership' of the house was granted. The conditions did not create the life ownership. However, only one of the conditions underscored the fact that the arrangement was for their life time. That was the requirement that the house continues to be in the name of NHC. The other two conditions are typical incidents of being a landlord; to repair the house and to pay land rates.

Admittedly, another condition was that rents could only be altered after consultation with NHC. We think there was a good reason for that condition. Under the Rent Restriction Act, 1984, the Regional Rent Tribunals fixed the standard rents for every building. All landlords, including NHC, were required to observe the standard rents. Any change of rents required the approval of the Regional Rent Tribunal. However, the situation was changed by the Rent Restriction (Exemption) (Specified Parastatals) Order, 1992, GN 41/1992 of 20/3/1992. Seven specified parastatals, including NHC, were exempted from "all the provisions of the Rent Restriction Act, 1984, relating to the restriction on the amount of rent that may be charged or collected by the specified parastatals as the landlord." So, rents charged on the suit premises were not controlled by the Rent Restriction Act, 1984. Since the suit premises remained in the name of NHC, then the respondents could cash in on that exemption and charge rents above the standard rents. We think that it was absolutely necessary to require the respondents to consult NHC, the real beneficiary of the exemption, before altering the rents. For the sake of record, we have to point out here that GN 41/1992 was published on 20 March, 1992, and that it was already in force when the letter from *Ikulu* was signed on 26 May, 1992.

So we are satisfied that the respondents were *de facto* landlords. The condition that they should consult NHC before altering rents was

only necessary to ensure that they do not abuse a statutory privilege which is not theirs. It was that condition which made Mr. Majithia take the view that the respondents could not occupy the premises themselves or look for a new tenant if the premises become vacant. But because of the rationale we have stated for that condition, we see nothing which can stop the respondents from being entitled to possession of the premises. In fact the respondents could either take the rents and use them or they could reside in the premises themselves. So, we find that the respondents are entitled to possession but for the Act which restricts possession except in certain circumstances and as such we are of the opinion that the respondents, as licensees, are landlords under section 3 of the Rent Restriction Act, 1984, and that they could seek the eviction of the appellant.

BASHIRI ALLY (a Minor)
Suing by his Next Friend FATUMA ZABRON
v.
1. CLEMENSIA FALIMA
2. REGIONAL MEDICAL OFFICER
3. ATTORNERY GENERAL

HIGH COURT OF TANZANIA
AT TABORA
(Mackanja, J.)

CIVIL CASE No. 5 OF 1994

Tort – Plaintiff born to suffer from serious cerebral palsy due to foetal distress caused by prolonged labour at the time of his birth – Whether defendants owed a duty of care to the plaintiff and his mother

Tort – Right of the unborn child – Injuries caused to the plaintiff at a time

when he had no life of his own – Whether the plaintiff has capacity to sue for those injuries

Damages – Object of award of general damages – Damages to recompense a loss or damage that cannot be restored or remedied – Considerations that should apply in awarding damages

Government Proceedings – Parties to suits against the Government – Regional Medical Officer joined as a co-defendant in proceedings against the Government – Whether the Regional Medical Officer is a proper or necessary party

The Plaintiff, a minor, sued through his mother as his next friend. He suffers from serious cerebral palsy which he claimed to be due to negligent handling of his mother at the time of his birth at the Kigoma Regional Hospital, and that the medical personnel who attended to the mother then did not discharge their duties in accordance with good medical practice. It is claimed that, as a result, the plaintiff was rendered invalid mentally, physically and socially for his entire life. The plaintiff therefore claimed general and special damages in the sum of Shs 25,000,000/= and Shs 464,000/= respectively for the bodily and mental injuries he suffered at the time of his birth.

Held:

(i) The plaintiff's ill mind was caused by foetal distress which was due to the negligent management of his mother when she was in labour;

(ii) Although the plaintiff was *in utero*, case law grants him capacity to sue in respect of damage that was caused to him during the period his mother was in labour;

(iii) The hospital, as a Government institution, cannot escape from liability for the negligent actions of its servants;

(iv) The general object of an award of damages is to compensate the plaintiff, to put him in the same position in which he would be had it not been for the tort committed on him but different considerations apply to cases like the instant one in that the *restitutio integram* objective cannot be applied literally because damages cannot restore a lost limb or damaged brain;

(v) In terms of the Government Proceedings Act 1967, as amended, the Regional Medical Officer is not a proper or necessary party to these proceedings; only the Attorney General is the proper party in suits against the Government.

Judgment for the Plaintiff

Cases referred to:

(1) *Theodolina Alphaxad (minor) v. Medical Officer-in-Charge of Nkinga Hospital,* High Court at Tabora, Civil Case No. 14 of 1991 (unreported)
(2) *Cassidy v. Ministry of Health* [1951] 2 K.B. 343
(3) *Rose v. Ministry of Health* [1954] 2 W.L.R. 915
(4) *Medical Officer-in-Charge of Nkinga Hospital v. Theodelina Alphaxad,* Court of Appeal, Civil Appeal No. 49 of 1992 (unreported)
(5) *Burton v. Islington Health Authority* [1993] Q.B. 204
(6) *H. West and Son v. Shephard* [1964] A.C. 326
(7) *Parry v. Cleaver* [1970] A.C. 1
(8) *Povey v. Governors of Rydal School* [1970] 1 All E.R. 841
(9) *Cook v. J. L. Kier & Co. Ltd* [1970] 2 All E.R. 513
(10) *James v. Woodall Duckhan Construction Co. Ltd.* [1969] 2 All E.R. 794

Mr. *Mtaki,* Advocate, for the Plaintiff
Mr. *Kaduri,* Principal State Attorney, for the Defendants

JUDGMENT

(Delivered on 27 January 1997)

Mackanja, J.: The Plaintiff is a minor, he sues through his mother as his next friend. He suffers from serious cerebral palsy and the alleged cause of this mental impairment is the genesis of these proceedings.

It is common ground that the Plaintiff's mother called at the Kigoma Regional Hospital, Maweni Hospital, at about 7.00 p.m. on 15th July 1990. She was at that time heavily expectant, it is also common ground that she was already experiencing labour pains when she was admitted to hospital. She was subsequently taken to the Maternity Ward, call it Labour Ward if you may, where she was received by Clemensia Falima, a nurse-midwife who was in-charge of that ward. Events which are alleged to have taken place thereafter laid the foundation stone of these proceedings. For it is alleged in the Plaint that the handling of the Plaintiff's mother at that hospital was negligent and that medical personnel who attended to her did not discharge their duties in accordance with good medical practice. The particulars of negligence are listed in paragraph 7 of the Plaint in which it is averred as hereunder, that is to say, that:

(i) The first Defendant left the Plaintiff's mother unattended for seven hours from the time she reported at the hospital.
(ii) The first Defendant ignored repeated pleas from the Plaintiff's mother to call a Doctor to attend to her.
(iii) The second Defendant had not assigned a doctor to the Maternity Ward where the Plaintiff's friend was admitted.
(iv) The Caesarian section to which the Plaintiff's next friend was ultimately subjected was not done in time.

So due to the medical negligence which is alleged, and which is categorically denied by the defence, the Plaintiff has been rendered invalid mentally, physically and socially throughout his life. He claims general damages in the sum of Tshs. 25,000,000.00 as recompense for bodily and mental injuries he suffered at the time of his birth. There is a further claim by the Plaintiff's next friend for special damages amounting to Tshs. 464,000/= as particularized in paragraph 9 of the Plaint. In addition, the prays for various rates of interest together with the costs of this case.

As I have said the Defendants have denied the claim against them in the most unambiguous and categorical manner, putting the Plaintiff to strict proof of his claims. It is opportune now to recount what was said in the evidence of the various witnesses following which I will make my findings of fact and of law on all matters which have raised controversy as contained in the first two issues which were framed at the commencement of the trial, namely, whether the first two Defendants were guilty of negligence as alleged, if so, whether the Plaintiff suffered the mental and physical injuries by reason of, or through such negligence and through no other cause.

There is a fairly detailed account of what is alleged to have happened, which is denied by the Defendants, soon before the Plaintiff was born. At the risk of repetition, there is evidence that the Plaintiff's mother, one Fatuma Zablon (PW1), reported at the Maweni Hospital at between 7.00 and 7.30 p.m. on 15th July 1990. She was experiencing severe labour pains and as a result, she was admitted to hospital. Clemensia Falima, the first Defendant (DW1), is on record as saying in her evidence that she, indeed, received PW1 and examined her like any other maternity case. She recorded her findings in a document called the Labour Chart which was tendered as Exh. P.1. According to her observations the foetal heart rate was normal and that his mother's cervix had not dilated enough as cervix was only 2cm wide. So DW1 directed PW1 to lie on her side to enable sufficient dilation of the cervix. Fatuma Zablon admits all this as she obeyed the Nurse's instruction to lie in bed.

Fatuma Zablon goes on to testify that her condition worsened at 12.00 midnight, she approached the first Defendant who examined the former's cervical membranes and found that they had already ruptured. PWI was ordered back in bed but could not stay there long. She approached the first Defendant again at 3.00 a.m. asking the latter to send for a doctor but it is alleged that the request was rejected and PW1 was ordered back in bed as the cervix had not dilated sufficiently; it was still 2cm wide. The second request for a doctor was made at

9.00 a.m. on 16th July 1990; it was not until 11.30 a.m. on that day that a doctor saw her who prescribed an intravenous infusion to be administered on her. It would appear that the intravenous infusion did not solve the expectant mother's ordeal, so she went back to the nurse at 9.00 p.m. only to be met with a sharp rebuke, if true, in these words:

"wewe mama umekuja, njia imefunguka?

Literally this would be said in English:

"You have come back, you woman. Is the cervix sufficiently dilated?"

PW1 claimed that she was undaunted by the rebuke and insisted to be seen by a doctor. This request is alleged to have been met by the following rude retort, if at all:

"mama umekuja kunifundisha kazi? Kama ungekuwa mtaalam ungezalia nyumbani kwako."

Literally this would be said in English;

"You woman, have you come to teach me how to do my job (or how to work)? You should have delivered the child at home if you were an expert."

PW1 was ordered back to her bed but, she could not do so, she alleged, as she was now shivering; that at 2.00 a.m. PW1 and another nurse found that the foetal heart was progressively becoming weak and inaudible. So Dr. Msevu who was on call had to be sent for. He arrived promptly and had the Plaintiff's mother undergo Caesarian section by 3.30 a.m. The defence alleged that the operation was successful as a result of which the Plaintiff was extracted alive from his mother's uterus. The Plaintiff and his mother were ultimately discharged from the hospital on 27th July, 1996. At that time PW1 had not discovered any abnormalities in her son.

She at first believed that the child was well. But she came to discover that the child could not behave as he grew. She noticed that he could not see and thought he had problems with his eyes. She went back to Maweni Hospital from where she was referred to the Muhimbili Medical Centre. In the end the child was seen by a specialist pediatrician who made the report that is contained in Exh. P2. The report contains an expert opinion on the mental health of the Plaintiff. It states:

RE: BASHIRI ALLY DO 17/7/90 MALE
1P NO. 655055

Please refer to your letter Ref. No. 01/1/Vol. II/73 of March 1996. There is history of prolonged labour, delivery by Caesarian Section with subsequent gross delay in milestones and L-sided seizures.

Physical examination - GC - Moderate
Vision - Impaired
L-sided hemiplegia with spasticity
EEG - shows Paroxysmal Bursts of generalized Spike and wave Complexes with Diffuse that waves

Diagnosis - L- sided moderate/severe hemiplegic Spastic cerebral-palsy.

Associated features
Cortical blindness
L-sided partial seizure
Disorder

This report was prepared by Dr. M.R. Fataki, Specialist Pediatrician. The Plaintiff's mother has thrown all the blame on the first Defendant, alleging that the brain damage was caused by her negligence and refusal to send for a doctor in time. Due to the alleged negligence on the part of the first Defendant the Plaintiff cannot talk, cannot walk, he is mentally

abnormal and cannot therefore tend to himself. His mother has to attend to him throughout her free time. Her elder son appears to get tired of the job and he has to get to school anyway, she said in her evidence.

There is no dispute whatever concerning the Plaintiff's mental condition. The Defendants do not deny it; what they deny is its cause and the exact time for its onset. For Clemensia Falima (DW1) says in her evidence that a child could develop cerebral palsy due to a fall or to administration of local herbs or to meningitis or to accident. In her opinion if this malady was caused at birth the child's condition could have been detected before he was discharged from hospital and that a doctor could have attended to it immediately. It is her opinion that if the child has cerebral palsy at birth it cannot respond to movements around it such as falling objects; it will not cry normally either. So that in this case the palsy was post-natal for were it not so, PW1, as an experienced mother could have noticed it before being discharged from the hospital.

Indeed, PWI is an experienced mother for the Plaintiff is her sixth child. She also admitted that she did not discover her son was mentally abnormal at birth. She has testified that she came to discover the abnormality as the child grew. As the medical professions have put it, he did not respond to milestones. This condition is confirmed by Exh. P2. Dr. Godfrey Mbaruku (DW1), when shown Exh. P2 said this:

> Milestone is how the child grows, e.g. when it begins to suck its fingers, when it begins to walk, to sit on its own without support .... A history of prolonged labour could cause brain damage resulting in milestone and seizures.

Dr. Mbaruku did not dispute the authenticity of Exh. P2. From the above medical evidence I now hold that, at least at the time he was examined by the Specialist Pediatrician at the Muhimbili Medical Centre, the Plaintiff was suffering from cerebral palsy. According to the defence the Plaintiff's ill mind is due to unknown causes, although Dr. Mbaruku admitted that one of such causes could be prolonged difficult labour.

What is at issue really is not whether the Plaintiff does not suffer from the disease of the mind. What is disputed is the cause of that mental condition and who is responsible for it.

Clemensia Falima has vigorously denied any wrongdoing. She does not deny that she admitted the Plaintiff's mother in the Maternity Ward. What she denies is that she, through palpable negligence, caused the Plaintiff's woes. She has sworn that on admission to hospital the Plaintiff's heart rate was normal but his mother's cervix was still at a dilation of two centimeters. All these findings, she swears, were recorded on the Labour chart. According to her testimony, as confirmed by that of Dr. Godfrey Mbaruku, the Regional Medical Officer (DW2), who is the second Defendant, with a dilation of only two centimeters of the cervix when PW1 was admitted to hospital, labour was still at an early stage to which the medical profession refer as "false labour." "True labour" through which a mother can be expected to deliver a baby starts when the cervical dilation has reached three centimeters and above. Dr. Mbaruku admitted during cross-examination, however, that the Plaintiff's mother had reached true labour at 1.00 a.m. on 16th July 1990 when Dr. Msevu examined her because the membranes had already ruptured. According to Dr. Mbaruku it would have been advisable to record the exact time when the cervical membranes ruptured.

Although both the first and second defendants deny liability, they are agreed that cerebral palsy of the nature that the Plaintiff suffers may be caused by what is medically referred to as foetal distress. In the present case foetal distress, testified Dr. Mbaruku, began at 3.00 a.m. on 1 July 1990 when the foetal heart beat developed changes. It is also in incontrovertible evidence that foetal distress means that the foetus does not get enough oxygen and as a result, gets exhausted. Caesarian section is necessary if foetal distress is detected.

Evidence from the Plaintiff's case and from the defence shows that "foetal distress" can be caused by prolonged labour or if the umbilical cord finds itself around the foetus neck. DW2 rules out the possibility

of "foetal distress" being caused by the rupture of the membranes because when Dr. Msevu noticed the rupture at 11.00 a.m. the foetal heart rate was normal. In short the defence disputes the allegation that the cerebral palsy was caused by foetal distress at the time of delivery, suggesting other causes instead. DW2 testified that cerebral palsy could have been caused by congenital causes while the foetus was still developing. Secondly, it could have been due to intrauterine infections, i.e. infection in the uterus, such as toxoplasmosis, which is caused by domesticated animals such as dogs, cats, etc. Thirdly it could be due to a kind of chicken pox called rubella which affects adult mothers.

Fourthly, it could be due to intrauterine asphyxia during labour as a result of loss of oxygen while the foetus is still in the uterus. Fifthly, after birth due to cerebral malaria, meningitis or convulsions caused by high fevers, pneumonia. All those causes, except asphyxia, may be present at birth. Brain damage can, however, be caused by asphyxia if there is foetal distress and Caesarian section is not done in time. When re-examined by Mr. Kaduri, learned Principal State Attorney who represents the defence, Dr Mbaruku readily admitted that he could not know the cause of the Plaintiff's ailments. The first defendant suggested as I have pointed out already, however, that such a condition could also be caused by a fall, headlong.

Learned Counsel from both sides raised very strong points in their written submissions. Mr. Mtaki, learned Advocate for the Plaintiff, has contended that in spite of her denial, the first defendant is guilty of negligence. He has pointed out several instances as evidence of this negligence. He contends that the Plaintiff's mother spent two nights in the hospital without being seen by a doctor, and the Plaintiff's mother was emphatic that the first Defendant turned her away everytime she looked for assistance to be seen by a doctor. It is his submission, if I understand him well, which I believe I do, that the refusal to call a doctor was willful because DW1 who was then the hospital gynecologist was living in a house only twenty five paces away from the maternity ward. Dr. Mbaruku, as the record shows, denied to have been informed

of any situation which needed his attention. In other words there was no justification for the delayed caesarian section.

Another element of negligence, according to learned Counsel, is the manner in which medical records relating to the Plaintiff's birth were recorded. Mr. Mtaki contends that the records do not conform to standard medical practice. Specifically, the patient's discharge card was misrecorded to read that the Plaintiff's mother was admitted to hospital on 17th July, 1990, instead of the actual date of 15th July, 1990. That the first Defendant failed to record vital information on the Labour Chart (Exh. P1), e.g. the time when the cervical membranes raptured. Also portions of *"Rekodi ya Uchungu, Hatua ya Tatu"* (Record of labour, third stage) was not completed.

The third element is that the Defendants failed to determine the right treatment for the Plaintiff's mother. Mr. Mtaki cites page 17 of Volume 26 of *Haisbury's Laws of England*; he does not say from which edition of those works he makes the quotation. In short, it is Mr. Mtaki's contention that the Defendants owed a duty of care to the Plaintiff when they admitted his mother to hospital, a duty of care to the Plaintiff deciding what treatment to give her and a duty of care in the administration of that treatment. He concludes the quotation underscoring the following words:

> .... A breach of any of these duties will support an action for negligence by the patient.

There is yet another element on which Mr. Mtaki relies for the negligence his Silent complains of. He contends that according to the diagnosis of the Plaintiff's malady, as can be read from his discharge hospital card the problem was foetal distress, which was discovered very late. Well, may be Mr. Mtaki is right, for the discharge card reads thus:

> Diagnosis: LS CS due to FOETAL DISTRESS, poor cervical dilation.

He goes on to argue that the established foetal distress developed as a

result of the first Defendant's arrogant refusal to call a doctor despite the patient's persistent plea for help. This conduct, according to learned Counsel, was inconsistent with the normal conduct expected of a certified midwife who must call in to her aid a duly qualified medical practitioner if the situation threatens immediate danger to the life of the patient or of an infant. On the contrary, he submitted, the first Defendant dismissed the patient every time she sought the help of a medical practitioner on the wrong presumption that her patient was not yet through the false labour stage. The alleged neglect to call a doctor in time, it seems would constitute yet another element of blamable negligence. Mr. Mtaki concluded his address by saying that since Exh. P2 was neither disputed nor was it contradicted and palsy as outlined by DW1 and DW2 were not established, it is his contentf that the Plaintiff's physical and mental injuries were due to the prolonged and difficult labour, delayed Caesarian section and neglect in post delivery attention to the Plaintiff. He has called in aid to his submission the decision of this Court in the case of *Theodolina Alphaxad (minor) v. The Medical Officer in-charge of Nkinga Hospital (1)*. Should his client's case succeed, it is Mr. Mtaki's prayer that this court be pleased to award the damages prayed for in the plaint.

Mr. Kaduri, learned Principal State Attorney, has responded with equal force of argument. He has directed his arguments mainly on the content and quality of the evidence. According to the evidence, he submits, at the time the Plaintiff's next friend was admitted to hospital her cervical dilation was 2 cm wide which, according to medical practice, was evidence of false labour as true labour begins when cervical dilation is 3cm wide onwards. That it was on account of this condition that the Plaintiff's next friend was advised to lie on her side to allow dilation to improve. So, in these particular circumstances the first Defendant exercised a degree of skill and care required by law.

It is the submission of the learned Principal State Attorney that the claim that the first Defendant bears the blame, if any, is not borne out by the record. I agree entirely with him, for she was on night shift. So

whatever happened during daytime when she was off-duty was beyond her control. That when she reported for duty at 7.30 p.m. on 16th July 1990 she examined the Plaintiff's mother and found that dilation of the cervix was still 2 cm. There is evidence that she sent for the doctor on call that night, and Dr. Msevu who was on call, attended to PW1 at 11.30 p.m. At the end of it the doctor directed that he should be called back if PW1 developed into complications. It would appear that PW1's labour developed into complications because DW1 sent for) Dr. Msevu at 3.00 a.m. who, on arrival, decided to operate on PW1, an operation which was completed at 6.00 a.m. on 17th July 1997. According to Mr. Kaduri the operation was successful and the Plaintiff was extracted in good health. He has invited me to accept the evidence of DW1 and that of DW2 as being more credible than that of PWI because the formers' evidence is supported by the Labour Chart (Exh. P3).

Mr. Kaduri has dismissed Exh. P2 as having no probative value because it is not a medical report which is based on the examination of the Plaintiff. In view of what I have said of Exh. P2, however, Mr. Kaduri's argument is, with respect, untenable. In any case, he went on, foetal distress which could be caused by a myriad of factors. He, however, rules out the causal relationship between the Plaintiff's ill mind and foetal disfres made it necessary to perform the caesarian section which saved the Plaintiff's life. As I said earlier, DWI attributed the cause of the palsy to one of several factors, excluding her alleged negligence. What is important, however, is Dr. Mbaruku's authoritative statement in re-examination to the effect that he, as a gyneacologist, could not know the cause of the plaintiffs malady. Of course it would be outrageous to reason to give more weight to a nurse's opinion than to that of a doctor. So, to Mr. Kaduri the cause of the Plaintiff's misfortunes reside elsewhere and the claim should be dismissed with costs.

These were the arguments. I will now separate the grain from the chaff. In this connection it is common ground that the Plaintiff's next friend was admitted at Maweni Hospital while she was in labour. It is

also undisputed that this was not her first delivery, the Plaintiff's mother had five normal births before. The Plaintiff is therefore her sixth child. There is also no dispute that at the time of her admission to hospital she had dilation of 2cm of the cervix, a stage which in normal circumstances is referred to as false labour. The first defendant has admitted that she was the nurse-in-charge of the Maternity Ward in which PW1 was sent and that she was the one who attended to PW1 during the first night of her labour in hospital. Some other para-medical personnel were on duty during daytime on 16th July 1990 when Dr. Msevu visited the Maternity Ward at 11.00 a.m. and prescribed some infusion to be administered to PW1. What remains of the case is controversial.

The first fact which is controversial is PW1's condition at 11.00 am on 16th July 1990. According to his observations which form part of Exh. P3, Dr. Msevu made the following findings:

"FATUMA ZABLON

16.7.90- Called to see patient at 11.00 am.
With moderate labour pains.
- Gravida 6 para 5 ....

PVE - CX effaced
- Membrane ruptured
- 5cm dilation"

According to DW2, "PVE" is the short form for "per vaginal examination." There is a curious feature on the figure "5" which indicates that the dilation of the cervix was 5 cm. For, over the figure "5" there is superimposed on it figure "2" in completely different ink. This creates suspicion that there is an element of forgery.

Another curious feature is that although Dr. Msevu recorded that the cervical membranes were already ruptured when he made the PVE, the nurse's Labour Chart shows that the membranes ruptured at 3.00 p.m. From the above observations I am satisfied, and I find as a fact that PW1's cervical membranes had ruptured by 11.00 a.m. According

to Dr. Msevu's observations I find that the Nurse's record of PW1's condition is not a true account of what happened. The different ink and the thickness of figure "2" which is superimposed on figure '5' which was recorded by Dr. Msevu is, on a balance of probability, evidence of forgery which was intended to conceal the truth. I am therefore satisfied, and Dr. Mbaruku admitted this in his evidence that PW1 was in full labour when Dr. Msevu attended to her at 11.00 a.m. on 16th July 1990. Let me say at this juncture that the first Defendant was not on duty when all this was happening. But surely some other nurse, an agent of the hospital, is responsible for all that happened before DW1 reported for night duty on 16th July 1990. Since there is no evidence that the cervix once dilate to 5 cm could contract to 3cm, DW1's report at 7.30 p.m. on 16th July 1990, that PW1 cervix had a dilation of 3cm cannot be explained.

PW1's labour history has been compounded by Dr. Msevu's observations in Exh. P3 soon before he performed the caesarian section on PW1. His observation of events reads thus:

"17.7.90 - called to see at 3. 30 a.m.
- D - foetal distress Plan -for C/S

17.7.90 OPN - LSCS

Reason - FOETAL DISTRESS
- POOR CERVICAL DILATION.

He does not say how far the cervix had dilated. In my view, the various medical and para-medical personnel who attended to the Plaintiff's next friend acted negligently which resulted in the delay to operate on PWI due to foetal distress. In this regard, and by reason of the above curious events, I would agree with Mr. Mtaki that, in the absence of medical proof for the cause of the foetal distress other than prolonged labour to which PWI was subjected, the foetal distress in this case was due to PW1's prolonged labour.

The question which now arises is whether the hospital management

and its members of staff owed a duty of care to the Plaintiff and his mother. Mr. Mtaki would have me determine this issue in the affirmative. Before I do that I will have to see what the law says on a question like this one where the Plaintiff had no life of his own when injuries were caused on him. The most readily available local authority on a matter when the plaintiff, though a minor, suffered injuries while living its own life is the case of *Theodelina Aiphaxad (Minor)* (supra) which was cited by Mr. Mtaki.

In the *Theodelina Aiphaxad (minor)*, the plaintiff was a six-year-old child. The court was therefore not dealing with the rights of a foetus. What is important is that this Court held in that case that the Hospital owed the plaintiff a duty of care in treating her fractured limb. Katiti, J., citing the English case of *Cassidy v. Ministry of Health (2)* at page 359, per Lord Denning, held that if a man goes to a doctor because he is ill, no one doubts that the doctor must exercise reasonable care and skill in his treatment of him. It was held further in that case that if the staff of such hospital are negligent in giving the treatment, they are just as liable for that negligence as anyone else who employs others to do his duties for him. Similar views were expressed in another English decision which was also cited by this Court, that is *Rose v. Ministry of Health (3)*. Basically the findings of this Court regarding the negligence of the Nkinga Hospital staff, and Nkinga Hospital's vicarious liability were upheld by the Court of Appeal in the *Medical Officer -in- charge Nkinga Hospital v. Theodelina Alphaxad (4)*.

The decisions I have referred to relate to rights of a person already born and living a separate life from the mother. In the instant case the claim is based on injuries that were caused at a time when the plaintiff's life was part and parcel of his mother's. So the question is whether similar considerations apply.

Available scholarly literature on the rights of a foetus has become certain in recent years. The learned authors of *Clerk & Lindsell on Torts,* Seventeenth Edition, published by Sweet & Maxwell in 1995, observe in paragraph 7 - 19 of their work that for many years it was

uncertain in England whether a foetus had sufficient status to be owed a duty of care. It would appear that the law in England on this subject was not settled until 1976 when the Congenital Disabilities (Civil Liability) Act was enacted. This legislation grants a right of action to a child who is born alive but disabled because of an occurrence which affected either parent's ability to have a normal child or affected the mother during pregnancy. In addition to, and in concomitance with that legislation, the House of Lords decided *Burton v. Islington Health Authority (5)*. This decision settled the common law position on the subject. After a survey of Commonwealth and United States decisions, the above-named learned authors observe thus in paragraph 7 - 19:

> ...Dillon, L.J. held that there was a duty to take care not to cause damage to a newly-born child through injuries inflicted whilst the child was *en ventre sa mere.*

Now, the Congenital Disabilities (Civil Liability) Act, 1976, of England enables children to sue in respect of pre-natal injuries in the following circumstances:

1. The child must be born alive and disabled. The word "alive" is defined in the said Act "as having a life separate from its mother" and the word "disabled" means "born with any deformity, disease or abnormality instantly including a predisposition to physical or mental defect in future."

2. The disability must result from an occurrence occasioned by the Defendant which (a) affected either parent's capacity to have normal health children or (b) affected the mother in pregnancy, or mother in or baby in labour causing the child to be born with disabilities which it would otherwise not have suffered.

So in England, at least, a child can sue for injuries inflicted on it when it

was *in utero*. No doubt these are sound principles, I propose to apply them in the determination of this case.

Now on the evidence on record there is no doubt in my mind and as I have held, that the Plaintiff's ill mind was caused by foetal distress which was due to the negligent management of his next fried when she was in labour. Although he was *in utero*, case law grants him capacity to sue in respect of damage which was caused to him during the period his mother was in labour. I would from the above observations and considerations determine the first and the second issues in the affirmative.

Next in line is the quantum of damages. I will here restrict myself to damages for non-pecuniary loss, pain and suffering and loss of faculty and amenities.

The general object of an award of damages is to compensate the Plaintiff to put him in the same position in which he would be had it not been for the tort which was committed on him. The recompense would therefore be for losses, either pecuniary or non-pecuniary, sustained by the Plaintiff as a result of the Plaintiffs tort. Generally, therefore, damages aim at *restitutio integram* especially where pecuniary loss is pleaded. Different considerations apply to cases like the instant one in that the *restitutio integram* objective cannot he applied literally because damages cannot restore a lost limb or damaged brain: *H. West and Son. v. Shephard (6)* and *Parry v. Cleaver (7)*. The two cases deal with damages for loss of happiness of accident victims but which had some way of enjoying life. Cases of brain injury are given different consideration. The example is *Povey v. Governors of Rydal School (8)*. The Plaintiff suffered very grave injuries which left him a cripple and had to be taken care of in all spheres of life by his mother. In awarding damages the court was of the view that such cases were different from victims of brain damage since they could find some other form of real happiness. As to victims of brain damage Crichton, J. had this question to ponder over at page 846 when deciding deciding *Povey v. Governors of Rydal School (8)*:

> Here there is a real issue of principle. Counsel for the defendants argue it in his way: first of all, the Plaintiff is still truly alive; he can communicate, Unlike the cases where there is a brain injury and the victim of an accident becomes what has been described as a "vegetable," in the sense that he is inert, he is barely existing, he is incapable of communicating or helping himself but also has to some extent what has been described as the blessing of being oblivious to his state and is therefore not conscious of his condition and helplessness....

In all these cases very high damages were awarded by reason of the serious neural injury the Plaintiffs suffered. For example in *Cook v. J.L. Kier & Co. Ltd. (9)* at page 515 the Court raised the quantum of damages saying:

> It seems to me that the figure of 3,000 pounds was much too low. I think it should be increased to a total sum of 7,000 pounds....

So in assessing damages I have to take into account the fact that the Plaintiff was rendered a "vegetable" by the antenatal brain injury that he suffered. Injury in the sense used here includes disease and physical or mental illness: *James v. Woodall Duckhan Construction Co. Ltd. (10)*.

We may now ask ourselves what quantum of damages to which the Plaintiff is entitled vis-à-vis both Defendants severally and jointly. There is no doubt that the first Defendant was not alone in acting negligently. She attended to the Plaintiff's mother on the night she was admitted and on the night she underwent surgical operation. I have considered the testimony of PW1 and that of DWI and I have formed the impression that there is no reason why PW1 should lie against the latter. It is thus evident that the arrogant and unprofessional conduct on the part of the first defendant during the last nine hours before the Caesarian section was done greatly contributed to the foetal distress which caused the Plaintiff's brain injury. At any rate the doctor on call and other medical

staff who handled PW 1's case are also to blame. The hospital, as a Government institution, cannot therefore escape from liability for the negligent actions of its servants. As the law now stands in terms of the Government Proceedings Act, as amended, the Regional Medical Officer is not a proper or necessary party to these proceedings. Only the Attorney General is the proper party. I accordingly find him not liable. I would thus assess the first Defendant's negligence at 25% and that of the Government, who are variously liable for the actions of its officers, at 75%.

The Plaintiff is suing to recover general damages amounting to Shs. 25,000,000.00. Although a fixed figure has been stated in the pleadings, such damages should be considered as unspecified general damages. In view of the fact that the antenatal brain injury has left the Plaintiff a "vegetable" who has to be attended to in all spheres of life during his mortal life, a fairly higher degree of damages than in other personal injury cases should be awarded. I would award him general damages in the sum of Shs. 15,000,000.00.

This brings me to a claim for special damages. As a rule damages under this hand require strict proof, albeit by preponderant evidence. I have no doubt PW1 took the Plaintiff to Muhimbili Medical Centre. However she gave no evidence whatever to establish this claim.

The Plaintiff cannot therefore be entitled to more than nominal damages under this head. Considering that PW1 had to travel all the way from Kigoma to Dar es Salaam and back and the fact that she had to incur unnecessary expenses for transport, food and accommodation, I would allow a sum of Tshs. 150,000.00 as nominal damages. Under both heads the first and third Defendants are severally and jointly liable.

I enter judgement for the Plaintiff in the sum of Tshs. 15,000,000 as general damages under the first head and in a further sum of Tshs. 150,000 as nominal damages under the second head. There shall be an interest rate of 8% on the decretal amount as prayed. The Plaintiff shall have his costs.

MASUMBUKO BENEZETI v. REPUBLIC

HIGH COURT OF TANZANIA
AT TANGA
(Rutakangwa, J.)

CRIMINAL APPEAL No. 62 OF 1996

(From the decision of the District Court of Tanga at Tanga, in Criminal Case No. 232 of 1995)

Criminal Practice and Procedure – Juvenile – Juvenile of 15 years old tried in by an adult court – Whether proper and conviction sustainable – Children and Young Persons Ordinance, Cap 13

Criminal Practice and Procedure – Juveniles – Conviction of a juvenile of 15 years old by an adult quashed by appellate court when the juvenile is already over 16 years old – Whether retrial should be ordered

The appellant was charged with defilement in the district court. He was found guilty as charged and sentenced to 20 years' imprisonment. On appeal against conviction the court considered whether there was an incurable procedural irregularity in trying the appellant, who was then aged only 15 years, in an ordinary court.

Held:

(i) Trying a young person of 15 years in an adult court is an incurable irregularity under s.3 of the Children and Young Persons Ordinance that requires such persons to be tried in a juvenile court, and a conviction in such a case cannot be sustained;

(ii) Retrial of the appellant, who is now over 16 years and therefore qualifying to be tried by an adult court should be at the discretion of the Director of Public Prosecutions.

Appeal allowed

A Cases referred to:
(1) *Mukama Mbogo v. R* [1971] H.C.D., n.63
(2) *R. v. Ally Mohamedi* [1968] H.C.D., n.146

B *Mr. Msakamari*, for the Appellant
Mr. Rutagwelera, Senior State Attorney, for the Republic

JUDGMENT

C (Dated 4 February 1997)

Rutakangwa, J.: The appellant, Masumbuko Benezeti, was alone charged with the offence of defilement of a girl under 14 years of age c/ D s 136(1) of the Penal Code before the District Court of Tanga at Tanga. He did deny the charge at the commencement of trial. He was however, found guilty as charged and was sentenced to twenty years imprisonment. Being aggrieved by the conviction and sentence he is E now appealing against both. In this appeal he is being represented by Mr. Msakamari, learned advocate.

The appellant has come before this court with five grounds of appeal. But after going through the record of proceedings of the trial court and F hearing the arguments of Mr. Msakamari, counsel for the appellant, and Mr. Rutagwelera, learned Senior State Attorney, for the Respondent Republic, I am satisfied as both counsel were, that this appeal can effectively be disposed of on the basis of the first ground of appeal. G That same reads as follows:

> 1. That the learned trial Resident Magistrate erred on a point of fact and law in failing to find that because the accused was a juvenile, as she H had reason to believe so, the accused was not subject to be tried, as he was, as an adult which factor was a contravention of the law relating to trial of juveniles thus making the trial a nullity.

I Expounding on this ground Mr. Msakamari submitted before this court that the appellant was born in 1980 and he so told the learned

District Magistrate who first took his plea on 5/8/95. However inspite A of being so told, the District Court proceeded to try him as if he was an adult and subsequently to convict him as charged.

Mr. Rutagwelera, for his part, informed this court in submission that the Trial District Court committed a procedural irregularity during the B trial of the appellant. Elaborating on this he submitted that the appellant having told the court that he was only 15 years old, the trial Resident Magistrate ought to have directed her mind on the provisions of Cap. 13 (that is the Children and Young Persons C Ordinance). By trying the appellant in a District Court, the whole trial was vitiated, he concluded.

It is now an undisputed fact that at the time of his trial the appellant was aged about 15 years old. It goes without saying, therefore, that he D was a young person in terms of section 2 of Cap. 13 of our laws. That being the case the appellant ought to have been tried by a juvenile court and not a District Court as such, as is mandatorily required by section 2(1) of the said Ordinance (Cap. 13). The same reads as E follows:

> 30 (1) A District Court when hearing charges against children or young persons shall, if practicable, unless the child or young person is F charged jointly with any other person not being a child or young person, sit in a different building or room from that in which the ordinary sittings of the court are held.
>
> (2) If in the course of any proceedings in a District Court it appears G to the Court that the person charged or to whom the proceedings relate is under the age of sixteen years the court shall continue with the hearing and determination of the case in accordance with H the provisions of this Ordinance, but nothing herein shall be deemed to make it necessary for such court to adjourn the case in order to comply with the provisions of this section, and a court so sitting shall be a juvenile court for the purposes of this I Ordinance.

Having gone through the entire proceedings in the trial court, it has become evident to me that in trying the appellant the Tanga District Court totally ignored the mandatory provisions of the two sub-sections above quoted. In spite of being aware that the accused before it was a young person it ignored the plain provisions of the law and tried the appellant as an adult. The said court did not at any stage of the entire proceedings constitute itself as a juvenile court. By so doing the Trial District Court violated the mandatory provisions of the positive law and denied the appellant, as a consequence, of his statutory right of being tried by a juvenile court.

Of course being tried by a Juvenile Court has its own obvious advantages to an accused child or young person. Apart from avoiding being exposed to and confounded by an unusual and sometimes terrorizing atmosphere of an open court, the other advantage is provided by section 12 of the Ordinance. This section lays an unavoidable duty upon the trial juvenile court to cross-examine each witness for the prosecution at the close of his/her evident for the purpose of establishing the truth or otherwise of the facts alleged or to test their credibility. It is therefore a fundamental truth recognized by our law, that an accused child or young person cannot effectively cross-examine a witness against him. The duty is then cast on the trial court to do the cross-examination on behalf of the accused for the ends of justice.

In the instant case the appellant was denied this statutory right by the Trial District Court. It not only failed to cross-examine any of the prosecution witnesses as by law compelled to do but left the task of cross-examining them to the accused and it indeed never put a single question to any of the prosecution witnesses. This failure in my considered opinion, led to a failure of justice.

When confronted by an identical situation, **Kisanga, Ag. J.** (as he then was) in the case of *Mukama Mbogo v. R. (1)*, having found that the trial court had violated the *mandatory* provision of S. 3(1) of the Ordinance, quashed the entire proceedings and remitted back the case for a retrial before a properly constituted juvenile court.

This court did quash the conviction of the appellant in yet another case of *R. v. Ally Mohamedi (2)*. All things being equal I would have readily and gladly adopted the course followed by Justice Kisanga. Unfortunately, however, there is one difficulty which the learned judge in Mukama Mbago's case never faced. It is of course an obvious fact that the trial of the appellant by the District Court in flagrant violation of the mandatory provisions of Cap. 13 was a nullity and ought to be quashed. However, although the appellant was a young person by the time he was tried, convicted and sent to prison contrary to the provisions of section 22(2) of Cap. 13, the appellant is now slightly over 16 years of age and by virtue of the provisions of S. 17 of the Ordinance he is no longer a young person. In case of a retrial he will no longer benefit from the provisions of S. 12 and, more regrettably so, of S. 22(2) in case of conviction. He might end up getting the now minimum twenty year jail sentence for the offence which he could not have received had the lower court tried him under the provisions of Cap. 13.

In the light of the above, I hereby nullify, quash and set aside, the entire proceedings in the Trial District Court as well as the conviction and sentence imposed on the appellant. But in view of my observations in the immediately preceding paragraph, I will refrain from directly ordering a re-trial. The D.P.P., I am confident will wisely decide if it will be in the interests of justice to re-prosecute the appellant having regard to the seriousness and indeed heinousness of the alleged offence. As the appellant has been out on bail, after staying in jail for over six months, I will make no order for his immediate release from prison.

PHOENIX BUREAU DE CHANGE
v.
BANK OF TANZANIA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kyando, J.)

MISCELLANEOUS CIVIL CAUSE No. 7 OF 1995

Licence – Revocation of Licence – Notice to revoke Bureau de Change licence – Letter demanding explanation why a cheque has not been paid – Whether constituting a Notice to Revoke – Regulation 11(3) of the Foreign Exchange (Bureau de Change) Regulations 1992, GN 51/1992

Civil Practice and Procedure – Proceeding for prerogative remedies – Giving evidence in proceedings for prerogative remedies – Evidence given through affidavits

Evidence – Evidence in proceedings for prerogative remedies – Facts given in submissions by counsel but not contained in affidavits – Whether the facts amount to evidence

Licence – Revocation of Licence – Reasons for revocation of licence – Regulations requiring notice of revocation to be given before revocation – Whether it is necessary to give reasons for revoking licence

The applicant was a holder of a Bureau de Change licence issued by the respondent. On 2 November 1994 the respondent wrote a letter to the applicant demanding an explanation for a cheque issued by the latter being dishonoured and the beneficiary remaining unpaid for over a year. Getting no reply the respondent sent a reminder on 18 November 1994. On 24 November 1994 the respondent revoked the applicant's licence. The applicant then filed this application for certiorari, mandamus and prohibition, on the grounds that the revocation was done without prior notice to the applicant, and that no reasons

were given for the revocation. In the course of hearing, which was by written submissions, counsel for the respondent submitted a number of grounds to justify the revocation but the same were not given in the affidavits.

Held:

(i) According to regulation 11(3) of the Foreign Exchange (Bureau de Change) Regulations 1992 (GN 51 of 1992), before revoking a licence a notice should be given to the licence holder to show cause why his licence should not be revoked; the two letters sent to the applicant by the respondent merely demanded an explanation about a dishonoured cheque drawn by the applicant and did not constitute a notice and, therefore, no notice was given to the applicant before revoking the licence;

(ii) In proceedings for prerogative remedies the evidence is given in affidavits and the grounds contained in the submissions of counsel for revoking the licence ought to have been stated in the respondent's counter affidavit, enabling the applicant to controvert them by another affidavit; they should not be contained only in the submissions of counsel where they remain mere unproven assertions;

(iii) The duty to give reasons for revoking the licence was implied in the requirement of the regulations to give notice of revocation before actually revoking the licence, it was incumbent upon the respondent to state in the notice the reasons for the intended revocation; if no reasons for the intended revocation are given then the affected licence holder, i.e. the applicant, would not be able to show cause why the licence should not be revoked;

(iv) As no grounds were given to the applicant for revoking the licence, the revocation was without cause, and unlawful;

(v) As an order of certiorari effectively erases the revocation and renders it non-existent and non-operative, only the order of certiorari is granted by the Court.

Orders accordingly

Mr. Ukwonga, for the Applicant
Tanzania Legal Corporation, for the Respondent

RULING

(Dated 25 February 1997)

Kyando, J.: This is an application for relief by way of certiorari, mandamus and prohibition, to the end that the revocation by the respondent, of the applicant's Bureau de Change Licence, should be quashed and that the Governor of the respondent Bank be required to restore the revoked licence and extend the same for a further term and to prohibit the said Governor from permanently revoking the said licence.

The applicant is represented by Mr. Ukwonga, learned advocate and the respondent is represented by the Tanzania Legal Corporation. Counsel have filed written submissions. Needless to say, the application is by Chamber Summous, supported by an affidavit and accompanied by a Statement. The respondent has filed a counter – affidavit, sworn by Babu Msami, a Bureaux de Change Manager in the respondent Bank, and the applicant has filed an affidavit in reply to the counter – affidavit.

According to the filed papers, the applicant was a holder of a Bureau de Change Licence as from 21/4/94. On 24/11/94 the respondent issued a letter, Ref. ECU/F/1/35 of 24th November, 1994, revoking the licence. The licence, according to the Bureau de Change Registration Certificate (Annex "A" to the applicant's affidavit) issued to the applicant by respondent was to have expired on 20/4/95. The applicant contends here that the revocation was without notice, and no reasons were given for carrying it out and that it (the revocation) was "in total contravention of the laid down procedure." It prays therefore that it be quashed.

In reply the respondent contends that the revocation was carried out in accordance with the law, after due notice was given to the

applicant. In paragraph 3 of the counter – affidavit it is stated that the applicant "was served a notice within the time required under the law but neglected/refused purposely to show reasonable cause within the period stipulated as per hereto letters dated 2nd day of November, 1994 and 18th day of November, 1994, respectively and collectively marked D.1" In the submission of the respondent's Counsel it is alleged that after the applicant was issued with the licence, it, the respondent, received several complaints from the public "on the unethical behaviour of the operations of the applicant." Five examples of the complaints have been listed in the submissions. They are that (1) Father Joseph Mzambo, on 18/6/93 made deposit of USD. 10,000/= with the applicant but was not paid up to 3/11/94; (2) KLM Royal Dutch Airlines – on 27/9/93, applicant issued KLM with cheque for USD 2,414 drawn on NBC Twiga Branch, but was dishonoured upon presentation. Up to November 2, 1994, the sum remained unpaid; (3) M/S Auto Equipment (T) Ltd. – on 16/2/93 it paid Shs. 7,004,800/= to the applicant for suppliers of goods in India, up to 26/5/93 the applicant had failed to transmit that sum to India, (4) Printpak Tanzania Ltd. complains of applicants cheques to Printpak suppliers, United Link Ltd., being dishonoured; and (5) Abdulhussein M.A. Bhaloof Co. Ltd, "in December 1992 it paid money to the applicant for purchase of foreign draft for USD. 48,050. No draft issued till May, 1993."

In his submissions in reply Mr. Ukwonga has attacked the method adopted by the respondent of making the above allegations in the submission of counsel. He says that these allegations have not been pleaded and "are non-issue subject and the respondent never brought them at the early stage of this case to give the applicant chance to answer them on oath."

The procedure for revoking Bureau de Change Licences is provided for in the Foreign Exchange (Bureaux de Change) Regulations, 1992 (GN 51 of 1992). Under regulation 11(1) of these Regulations, a Bureau de Change Licence "shall not be revoked except as provided for in these Regulations." Under regulation 11(3) it is provided that where a

Bureau de Change is in breach of any provision of the Regulations mentioned above, the Bank (Bank of Tanzania) "shall give written notice to that Bureau requiring it to show cause within seven working days **as to why the Licence of the Bureau should not be revoked.**" (My underlining). Then regulation 11(4) provides that if a Bureau de Change fails to comply with a notice given under regulation 11(3) or the Bank is not satisfied with the cause shown, it, the Bank, may revoke the Licence. Regulation 11(5) provides for finality of the action of the Bank to revoke a Licence and says such an action shall not be subject to any appeal.

The two letters which the respondent says were the notices served on the applicant, i.e. those of 2nd and 18th November 1994, are these reproduced below:

"BUU/P/1 2nd November, 1994

The Director,
Phoenix Bureau de Change,
P.O. Box 19966,
Dar es Salaam.

Dear Sir,

RE: CHEQUE NO. G 05220179 FOR $2414

We have been informed that on 27th September, 1993, your bureau de change drew the above quoted cheque in favour of KLM Royal Dutch Airlines.

However, when the said cheque was presented to your bankers, NBC Twiga Branch, the same was returned unpaid. The beneficiary claims to have reminded you several times on the non-realization of the proceeds of the cheque but futile.

It is now over one year the amount is remaining outstanding and without explanation.

The Bank would like you to explain the circumstances before we contemplate further action. In this respect you are given fourteen days from date of this letter in which to provide the explanation.

You are urged to urgently expedite.

Yours faithfully,
Bank of Tanzania

Sgd: Bureaux Supervision Department
Directorate of Bank Supervision

cc: General Manager for Tanzania,
KLM Royal Dutch Airlines,
P.O. Box 3804,
Dar es Salaam.

Bank of Tanzania,
P.O. Box 2939,
Dar es Salaam,
Tanzania.
Phone: 21291
Cable: "BENKUU"

Kumbukumbu) BCU/F/1 18th November, 1994
Ref. No.)

The Director,
Phoenix Bureau de Change,
P.O. Box 19966,
Dar es Salaam.

RE: CHEQUE NO. G 05220179 FOR $ 2,414

We wish to refer you to our letter of even reference dated 2nd November, 1994, regarding the above unpaid cheque presented to Ms. KLM Royal Dutch Airlines.

In the quoted letter we requested you to explain circumstances which led to non-payment of the cheque. Todate we are yet to get this explanation from you.

We once again request you to heed to our request by ensuring the sought explanation is submitted to the Bank within one week from the date of the letter.

Yours sincerely,

Sgd: B.N. Msami
Manager Bureau de Change

In paragraph 3 of the affidavit in reply to the counter – affidavit it is stated that the two letters above were mere letters in the course of normal transaction between the Bureau de Change and the Bank of Tanzania "and they do not amount to notice as is required mandatorily by the Regulations." The question then is whether the letters were notices in terms of the Regulations in GN 51 of 1992. As seen above, Regulation 11(2) (supra) requires that a notice under the Foreign Exchange (Bureaux de Change) Regulations be directed to the issue as to why the licence of the Bureau should not be revoked. In the instant case, the letters which are contended by the respondent to have been the *notices* within the Regulations are letters about a cheque, cheque No. G. 05220179 for 52414, and are so headed. These letters do not even purport to be notices issued under the Foreign Exchange (Bureaux de Change) Regulations. I am of the view that these letters, the so called notices, have nothing to do with the question as to why the applicant's licence should not be revoked. They only relate to an incident involving a cheque drawn by the applicant in favour of KLM Royal Dutch Airlines which was dishonoured by the National Bank of Commerce (NBC) upon presentation. They are, in other words and as contended by the applicant, mere letters in the course of normal transactions between the parties hereto and do not constitute a notice at all in terms of the Foreign Exchange (Bureaux de Change) Regulations. No other notice has been

shown to have been issued by the respondent to the applicant of its intention to revoke the applicant's licence. I hold therefore that no notice was given in this case for revoking the licence of the applicant and this was in contravention of the clear provisions of the regulations requiring such notice to be given.

As for the grounds for revoking the licence, there is, first, no evidence that these were given to the applicant. Secondly, none at all have been stated, as the applicants counsel rightly contends in his submissions, in the counter – affidavit. The respondent has instead decided, as has already been shown, to state the reasons in the submissions of its counsel. Now, in proceedings for prerogative remedies, the evidence is given on affidavits. Submission of counsel are not evidence and they cannot be a substitute for affidavits. They are only arguments on evidence and the law. That is why it is possible to decide a case without them. The grounds contained in the submissions of counsel for revoking the applicant's affidavit ought, in this case, to have been stated in the counter – affidavit, to enable the applicant to, *inter alia*, answer or controvert them by another affidavit – as the applicant's counsel now contends in his submissions. In as much as, therefore, the statement about unethical behaviour on the applicant's part in its operations is contained only in the counsel's submissions the statement remains a mere, unproven, assertion. No evidence has been given to prove the allegations in that statement.

Was it necessary to give reasons for revoking the licence? I think that it was. This is implied in the requirement of the regulations to give notice of a revocation before it is done. Such notice cannot simply hang in the air, unsupported. There have to be reasons upon which it is based. In other words, it is incumbent on the respondent Bank to state why it is thinking of revoking a Bureau de Change Licence. Otherwise the decision to revoke would be considered to have been founded on *caprice or whim*. Further, the Bureau de Change affected would not be able to show cause why the licence should not be revoked; i.e. if no reasons for the intended revocation are given. In the present case

no grounds/reasons were, as stated, given to the applicant for revoking its licence. None have been given in the counter – affidavit in this case. I have to hold therefore that the revocation was without cause and was unlawful.

In conclusion, for the reasons that the revocation of the applicant's licence was without notice as the regulations stipulate and that the said revocation was unlawful for having been done without any cause, I have, as I hereby do, to grant the relief of certiorari sought in this application. By this order, of certiorari, I quash the revocation of the applicant's licence by the respondent. I do not deem it necessary to consider mandamus and prohibition as the award of certiorari which I have made effectively erases the decision revoking the licence and such revocation therefore ceases to exist or to be operative. The applicant is awarded the costs of the application.

MARWA MAHENDE *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT MWANZA
(Nyalali, C.J., Makame and Kisanga, JJ.A.)

CRIMINAL APPEAL No. 133 OF 1994
(From the decision of the High Court of Tanzania at Mwanza, Masanche, J., dated 2 May 1994, in Criminal Appeal No. 17 of 1994)

Criminal Practice and Procedure – Conviction in Absentia – Procedure of handling convict after conviction and sentence in absentia – Section 226 of Criminal Procedure Act 1985

The appellant and three others were jointly charged with robbery with violence c/ss 285 and 286 of the Penal Code. The other three were acquitted but the appellant, who had apparently jumped bail, was convicted and sentenced to 30 years imprisonment in absentia. It appeared that after the conviction and sentence the appellant was apprehended and taken straight to prison to start serving the sentence. On appeal to the High Court he succeeded only to reduce the prison sentence from 30 to 15 years. On further appeal the Court of Appeal raised the issue of the correct procedure to be followed when a trial court convicts an accused person in absentia.

Held:

(i) Section 226(2) of the Criminal Procedure Act 1985 provides that a court that convicts an accused person in absentia "may set aside such conviction upon being satisfied that his absence was from causes over which he had no control and that he had a probable defence on merit;" a proper construction of that provision is that upon apprehension of a person convicted and sentenced in absentia, he should not be taken straight to serve his sentence but should be brought before the trial court to enable the court to exercise the discretion to set aside the conviction or not;

(ii) The failure to take the appellant before the trial court to exercise its discretion under s. 226(2) of the Act denied the appellant his fundamental right to be heard and vitiated the proceedings subsequent thereto.

Proceedings of the High Court set aside; case remitted to the trial court.

Case referred to:
(1) *Olonyo Lemuna and Another v. Republic* [1994] T.L.R. 54

Mr. Nasimire, for the Appellant
Mr. Mwambegele, for the Republic

JUDGMENT OF THE COURT

(Dated 12 March 1997)

Kisanga, J.A.: The appellant and three other persons were jointly charged in the District Court at Tarime with the offence of robbery with violence contrary to sections 285 and 286 of the Penal Code. The appellant alone was convicted as charged and sentenced to 30 years' imprisonment plus 12 strokes of the cane. The appellant, who had apparently jumped hail, was so convicted and sentenced in absentia. The other three persons were acquitted. The appellant's appeal to the High Court was partly successful to the extent that his sentence was reduced to one of 15 years' imprisonment. He has now appealed further to this Court where he is represented by Mr. Nasimire, learned advocate while Mr. Mwambegele, learned State Attorney, appears for the respondent Republic.

Mr. Nasimire filed three grounds of appeal but at the hearing he abandoned grounds 2 and 3 and argued the first ground only. That ground alleges:

That the learned appellate judge erred in failing to address his mind to the fact that the doctrine of *autrefois acquit* applied to the circumstances of the present case.

Elaborating on this ground Mr. Nasimire referred us to the appellant's memorandum of appeal to the High Court. In ground one of that memorandum the appellant strongly criticized the trial magistrate for convicting him in absentia on the basis that he had jumped bail. He asserted that he did not attend the court because the court had discharged him on the present charge and therefore he no longer had cause to attend the court. He filed an order made under Tarime District Court Criminal Case No. 224 of 1992 which shows that the appellant was discharged.

Mr. Mwambegele submitted, and Mr. Nasimire conceded, that even if the appellant's allegations are accepted as true, they do not disclose an acquittal which would entitle the appellant to the defence of autrefois acquit. The point could not be pursued further, however, because the record of the alleged Criminal Case No. 224 of 1992 of Tarime District Court was not available for examination; all that was available was what appeared to be an extracted court order discharging the appellant.

In the course of the hearing, however, the Court raised the issue of the correct procedure applicable when the court convicts an accused person in absentia. The record of the proceedings of the trial court shows that the appellant was convicted and sentenced in absentia. Nothing further is shown after that, and the inference to be drawn is that the appellant was apprehended and taken straight to prison to start serving his sentence. The question is whether this was in accordance with the procedure laid down by law. The relevant provision is Section 226(1) and (2) of the Criminal Procedure Act which says:

> 226 (1) If at the time or place to which the hearing or further hearing shall be adjourned the accused person shall not appear before the court which shall have made the order of adjournment it shall be lawful for such court to proceed with the hearing or further hearing as if the accused were present and if the complainant shall not appear, the court may dismiss the charge and acquit the accused with or without costs as the court shall think fit.

(2) If the court convicts the accused person in his absence it may set aside such conviction upon being satisfied that this absence was from causes over which he had no control and that he had a probable defence on the merit.

The appellant was absent when the case came up for hearing on 16/9/92 and he continued to be so absent right through the time all the prosecution evidence was received to the time of his conviction and sentence in absentia. This was, therefore, a fit case which called for the exercise of the magistrate's discretion under Sub-section (2) of Section 226 quoted above.

It is noted that the sub-section is silent on the procedure of how to handle an accused person who is arrested following his conviction and sentence in absentia. On the face of it the sub-section is capable of being understood to mean that upon his arrest, the accused person is taken straight to prison to start serving his jail term. However, we think that on a true construction of the sub-section it does not mean that. Such construction would defeat the whole purpose of the sub-section.

In our view the sub-section is to be construed to mean that an accused person who is arrested following his conviction and sentence in absentia should be brought before the trial court first, and not to be taken straight to prison. For, if he is taken straight to prison the trial magistrate can no longer exercise his discretion under the sub-section. In other words once the convict goes into prison and starts serving the sentence, the magistrate is *functus officio* and he can no longer re-open the case in order to secure the purpose for which the sub-section is designed.

A similar situation arose in the case of *Olonyo Lemuna and Another v. R. (1)* involving somewhat similar facts. In that case this Court held that when a court convicts and sentences an accused person in absentia the Court should exercise the discretion under Section 226(2) of the Criminal Procedure Act in order to afford the accused person the opportunity to be heard on why he was absent and on whether he had probable defence on the merit. The need to observe this procedure assumes even greater importance bearing in mind that by and large

accused persons of our community are laymen not learned in the law, and are often not represented by Counsel. They are not aware of the right to be heard which they have under the sub-section. It is, therefore, imperative that the law enforcement agencies make it possible for the accused person to exercise this right by ensuring that the accused, upon his arrest, is brought before the Court, which convicted and sentenced him, to be dealt with under the sub-section.

As stated before, the issue of the trial magistrate not exercising his discretion under the sub-section was not a ground of appeal but was only raised by the Court in the course of the hearing. Doubt was expressed as to the propriety of this move by the Court. We think, however, that there is nothing improper about this. The duty of the courts is to apply and interpret the laws of the country. The superior courts have the additional duty of ensuring proper application of the laws by the Courts below. In the instant case this Court is pointing out that the correct procedure as sanctioned by law i.e. Section 226(2), as construed hereinbefore, was not followed, and that this should be put right. We think that it was not only proper for this Court to adopt such a course, but that the Court had a duty to do so, provided that in carrying out that duty it affords adequate opportunity to both parties or their counsel to be heard on the matter as indeed was done in this case.

Again the view was expressed that since it was conceded that on the appellant's own assertion the defence of *autrefois acquit* was not available, then even if the trial magistrate were to exercise his discretion under the sub-section there was nothing to satisfy him that the appellant's absence was from causes over which he had no control. But as stated earlier, the extent of the appellant's assertion could not be pursued or investigated adequately or at all by this Court because the relevant court case file was not available. If it were available it might show that the appellant had reasonable grounds for believing that he was not obliged to attend the Court. Furthermore, during the hearing before us it was not possible to be satisfied, in terms of the sub-section, whether or not the appellant had a probable defence on the merit; that could only be done by the trial Court.

In the final analysis we hold that failure to take the appellant before the trial magistrate to exercise his discretion under the sub-section was fatal in as much as it thereby denied the appellant his fundamental right to be heard. Such failure vitiated the proceedings subsequent thereto. In order to put the matter right, therefore, we set aside the proceedings and judgment of the High Court, and remit the case to the trial Court with the direction that the appellant be brought before the magistrate to be dealt with in accordance with the provisions of Section 226(2) of the Criminal Procedure Act. The appeal is therefore allowed to this limited extent.

ASHA SHEMZIGWA *v.* HALIMA A. SHEKIGENDA

HIGH COURT OF TANZANIA
AT TANGA
(Mwaikasu, J.)

(PC) CIVIL APPEAL No. 26 OF 1996

Customary Law – Sambaa customary law – Wills – Requirements for validity of an oral will under customary law – Local Customary Law (Declaration) Order 1963, GN 436/1963

Islamic Law – Wills under Islamic Law – Whether special formalities required in making a will under Islamic Law

The appellant successfully sued the respondent in the primary court for recovery of a piece of farmland. The district court reversed that decision, hence this appeal. The appellant challenged the validity of the oral will by which her deceased husband was said to have given the land in dispute to his daughter,

the respondent, born out of wedlock by another woman whom he never married, saying it offended both Sambaa customary law and Islamic law on wills. She contended that the respondent could only have been given the piece of land that was being used by the deceased himself, not land used by either of his wives.

Held:

(i) Were the parties invoking Sambaa customary law only to question the validity of the will for want of witnesses, the contention of the appellant that such deceased's will was invalid for want of her presence and other requisite witnesses would have found support by this court as per the requirements of rules 5 and 11 of the Local Customary Law (Declaration) Order 1963 (GN 436/1963), Second Schedule;

(ii) The rules of Islamic Law are said to be immutable and they require no special formality in making a will; therefore, the appellant's contention challenging the oral will of her deceased husband for want of a proper witness cannot be supported by the court;

(iii) It is a standing principle of customary law that in a household it is the head of the family, in this case the husband, who owns land, and members of his family, being wife or wives and dependent children who may work on the farms, do hold usufructuary rights only over such farms;

(iv) The deceased husband, having been the legal owner of all the farms allocated to his wives, was entitled to parcel off any piece of such lands and allocate it as he did, by way of bequest to the respondent.

Appeal dismissed

JUDGMENT

(Delivered 13 March 1997)

Mwaikasu, J.: This is a second appeal arising from the decision of Gare Primary Court within the District of Lushoto. Before Gare Primary Court the appellant, one Asha Shemzigwa, sued the Respondent, one

Halima A. Shekigenda, claiming recovery of one acre/of a piece of farm land. In the Primary Court the appellant obtained judgment in her favour but on appeal by the Respondent to the lower appellate court, the judgment of the Trial Court was reversed. Hence this appeal by the appellant.

From the appellant's memorandum of appeal, two out of her ten grounds of appeal stand out of sufficient importance warranting consideration and determination by this court. They are the 2nd and 7th ground off appeal. In her 2nd ground of appeal, the appellant challenges the oral will that is said to have been pronounced by her husband, the late Ali Shekigenda, before his death, to have the piece of land in dispute allocated to the Respondent his daughter, begotten out of wedlock with another woman who he did not marry. On this point, it is the appellant's contention that such will, said to have been communicated to the deceased's eldest and senior most son, one Rajabu Abdallah Shekigenda, to be valid, ought to have been witnessed by her as well, as deceased's wife, or alternatively that it ought to have been witnessed by either at least two men/or one man and two women, as required under both Sambaa customary law and Islamic rules of wills. On the 7th ground it is the contention of the appellant that the respondent ought to have been bequeathed by the deceased the piece of land that was being used by himself and not one used by either of his wives. The lower appellate court found for the respondent on the ground that the respondent's brothers had consented to such bequest and therefore the appellant had no right to challenge the same as she was not a member of the deceased's clan. Apparently none of the above major grounds of appeal were ever raised before the lower courts.

The appellant's appeal before this court has been presented by her daughter, one Mrs. Halima Shemahonge, begotten with another man other than her deceased husband, to whom she had granted power of attorney, while the respondent has appeared in person.

As to the facts of the case, they come out clearly from the record of the Trial Court. Going by such facts, it is common ground that the late

Ali Shekigenda was married to two wives, the appellant being the second wife. It also appears that at the time of his death the first wife of the late Ali Shekigenda had already pre-deceased him. When the late Ali Shekigenda died he was survival by two sons, namely Rajabu Abdallah Shekigenda (DW.1) and Abasi Shekigenda (PW.2) begotten with the second wife, the appellant, and one daughter, being respondent, begotten with another woman outside wedlock. During his life time the late Ali Shekigenda allocated farm lands to each of his two wives, for production of food crops. According to the DW.1 and DW.2 the piece of land in dispute planted with bananas and coffee trees, was the one that was in the hands of the deceased, Ali Shekigenda. It was however, being used by the son of the appellant for growing food crops only, and not given to such son as such. On the other hand, it was the case for the appellant that the disputed piece of land was part of her five one-acre plots that had been cleared and used by her after the land had been allocated to her by her late husband the said Ali Shekigenda. And it has been the claim of the appellant before this court that the deceased Ali Shekigenda had no plot or farmland of his own though he had over-all control over all the farmlands allocated to each of his two wives. That, however, sounds quite untenable.

It was then the evidence of the eldest and senior most son of the late Ali Shekigenda, (DW.1), one Rajabu Abdallah Shekigenda as fully supported by other brothers namely Abasi Shekigenda (DW.2) and one Said Abdallah Shekigenda, that before his death the late Ali Shekigenda, made an oral will before the said Rajabu Abdallah Shekigenda, which was of three parts: first, that upon his death the disputed piece of land should be given to and inherited by the respondent his daughter, begotten out of wedlock, while the rest farmlands used by his two wives would vest in the hands of the children of the respective two wives; second, that he (DW.1) should pay dowry for the other son, one Rajabu Ally Shekigenda, born of the second wife, the appellant as he (deceased) had not provided for the same, and third that he (DW.1) should give a blanket to the deceased's second wife, the

appellant, which DW.1 fulfilled after the death of his father. Then, following the death of their deceased father, DW.1 convened a clan meeting that was attended by himself, DW.2, DW.3, PW.2 and the respondent, whereby it was communicated to and agreed by the other brothers that according to the deceased father's oral will given to DW.1 before his death, the respondent was to inherit the piece of land in dispute which had to be handed to her. As by then the disputed piece of land was in the hands of DW.2, who had temporarily been allowed to grow food crops therein, and he had already cultivated it, the respondent allowed him to plant seasonal crops, after which she would take over such farm. It is also clear from the evidence of DW.1 that the oral will said to have been made by the said Ali Shekigenda to DW.1 was not witnessed by any other person.

The whole family professes Islamic religion. As contended by the appellant, it is said that such a will cannot be said to have been valid under Islamic rules of wills. I entertain no doubt that were the parties invoking Sambaa customary law only to question the validity of the will for want of witnesses, the contention of the appellant that such deceased's will was invalid for want of her presence and other requisite witnesses would have found support by this court. For that is the requirement under Rules 5 and 11 of the Local Customary Law (Declaration) Order as per G.N. 436/63, 2nd Schedule. But Islamic Rules of Wills have also been invoked in support of such argument invalidating the will in question. As both parties and the deceased are Moslems, and have been professing Islam, it follows that Islamic Rules of wills can rightly be invoked in determining this dispute. What is the guiding rule on this point?

In a book "*Principles of Muhammadan Law in British India*" by Fais Badrudin Tyabji, 2nd Edn., Butterworths & Co. 1919, at p. 806, para 593, the learned author has this to say:

> A Muslim is not obliged to observe any special formality in making his will, and his intentions with respect to his property which he desires to be carried out after his death in whatever form they are declared, may operate as a will, provided that they are declared with sufficient clearness to be capable of being ascertained. In particular, the will need not be framed or worded in any technical form or language; it need not be in writing, if in writing, it need not be signed by the testator, or attested by witnesses; and if oral, no specific number or class of witnesses need be present at the time of the declaration." (Emphasis supplied).

That appears to be a principle that cuts across all sects or schools of Islam. Should that be the case, which I have no reason to doubt and rules of Islam are said to be immutable, then the appellant's contention challenging the oral will of the deceased husband for want of a witness, cannot be supported by this court.

Then there is a further contention that were the deceased to bequeath the disputed piece of land to the respondent he ought to have done so in respect of land owned and used by himself and not one that had been allocated to any of his wives.

Yet according to the evidence of DW.1, DW.2 and DW.3, the disputed piece of land is said to have been the one principally held and used by the deceased. I am unable to accept the claim by the appellant that the deceased husband had no plot of farmland which was held and used by him but simply stood by and kept begging from his wives. Even if that were to be accepted, it is a standing principle of customary law that in a house hold it is the head of the family, in this case the husband, who owns land, and members of his/her family, being the wife or wives and dependent children who may work the farms, do hold usufructuary right only over such farms. As such the deceased husband of the appellant, having been the local owner of all the farms allocated to his wives, was entitled to parcel off any piece of such lands and allocate it, as he did, by way of bequest to the respondent. For the above reasons I dismiss the appeal with costs.

HARUNA CHACHA GIMONGE

v.

EXECUTIVE DIRECTOR, TARIME DISTRICT COUNCIL

HIGH COURT OF TANZANIA
AT MWANZA
(Lugakingira, J.)

CIVIL CASE No. 34 OF 1989

Local Government – Suits against local government authorities – Notice of intention to sue local government authority – Whether requirement of notice to sue seeks to exempt local government authorities from suits – Section 183(1) of the Local Government (District Authorities) Act 1982

Local Government – Suits against local government authorities – Requirement of notice to sue local government authority – Whether non-compliance with the requirement of notice deprives court the power to entertain the suit

Local Government – Suits against local government authorities – Suit instituted without prior notice under s.183(1) of the Local Government (District Authorities) Act 1982 – Hearing of the suit proceeds with local government authority's acquiescence – Effect thereof

In July 1989 this suit was instituted against the defendant council without first serving on the council one month's notice of intention to sue as required by s.183(1) of the Local Government (District Authorities) Act 1982. The defendant was duly served and filed its written statement of defence in late September 1989. Two years later, in September 1991, the suit was dismissed for want of prosecution; but it was re-instated in April 1993. Hearing of the case then commenced, with the settlement of issues, in August 1993 and proceeded up to the conclusion of the Plaintiff's case. Then, at the commencement of the Defence case the defendant raised objections seeking, *inter alia*, that the suit be struck out because no notice under s.183(1) had been served on the defendant before instituting it.

Held:

(i) Non service of the notice of intention to sue a local government authority is an issue of law which, as per order xiv rule 2 of the Civil Procedure Code, should have been raised far much earlier so as to dispose of the case;

(ii) Section 183(1) of the Local Government (District Authorities) Act 1982 requiring notice of intention to sue a local government authority does not seek to exempt local government authorities from suits but is simply a procedural requirement aimed at affording local government authorities an opportunity to minimize costs where a case against them is likely to succeed; non-compliance with that procedural requirement does not take away the power of the court to entertain the suit;

(iii) The court is not deprived of power in a matter over which it has inherent jurisdiction merely because of an irregularity in the institution of the matter in court, like the absence of notice to sue in this case;

(iv) Absence of notice to sue is a procedural irregularity whose consequence can be waived by acquiescence; the defendant in this case acquiesced to the irregularity for years and allowed the case to proceed to the conclusion of the Plaintiff's case;

(v) The holding that the defendant acquiesced to the irregularity does not offend against the principle that there is no estoppel against a statute. Where a statute imposes a duty of a positive kind and the power to perform it, the person charged with the performance of that duty cannot be prevented from exercising his statutory powers on account of a contrary previous conduct; but where a statute gives any right or benefit to a person, that person can always waive that right or benefit as he thinks fit. In this case the defendant waived its right to a notice, and could lawfully do so.

Objections overruled

Cases referred to:

(1) *Ledgard v. Bull* (1887) 13 I.A. 134

(2) *Saleh bin Ahmed Bujra v. Sheikh Dahman bin Abdulla* (1954) 27 K.L.R. 116

(3) *Lucas Matafu v. M.M. Songambele* [1977] L.R.T., n.10

(4) *Graham Ingleby* [1841] 1 Ex. 651

RULING

(Dated 16 April 1997)

Lugakingira, J.: When this suit came on for defence learned counsel for the defendant, Mr. Byabusha, raised objections thereto and prayed that it be struck out. He put forward three grounds to support his surprise move, i.e. (a) that the defendant was not served with notice of intention to sue as required by s. 183(1) of the Local Government (District Authorities) Act, No. 7 of 1982; (b) that the plaint was not accompanied with a certificate of tax clearance as required by s. 11(3) of the Business Licensing Act, 1972 as amended; and (c) that the plaintiff was not entitled to be represented by a holder of a power of attorney since he is alive and well. Mr. Enock Chacha who holds the plaintiff's power of attorney generally wondered in reply why these objections had come so late in the day. On the specific issues he pointed out that the defendant had notice of the suit because it arose from Miscellaneous Civil Cause No. 5/88 between the same parties in which the defendant was the loser; that evidence of tax payment was tendered in the said cause; and that the plaintiff, who is his father, is too old and sickly to personally attend to the suit.

Briefly, in Miscellaneous Civil Case No. 5/88 the plaintiff applied for an order of mandamus to compel the defendant to issue him with a business licence after the defendant had refused to do so in 1987 and 1988 despite receiving the necessary fees from the plaintiff. The application was successful and the order was granted. The plaintiff then commenced the instant suit to recover compensation for loss of income

during the period he was denied licences. From early on to the conclusion of the plaintiff's case, the defendant was represented by learned counsel, Mr. Matata. Mr. Byabusha took over as the suit moved into defence.

I think Mr. Byabusha's intervention is indeed surprising in view of what transpired since the inception of the proceeding. The suit was filed on July 3, 1989 by the usual presentation of a plaint. A copy of the plaint was served on the defendant on September 14 and the defendant filed a written statement of defence on September 29. The defence raised no objection to the suit but only hinted that "the defendant would require the plaintiff to produce his income tax payments for the period in issue." It appears that Mr. Matata was engaged by the defendant shortly after the defence was filed and he immediately made two applications – an application for leave to deliver interrogatories in relation to income tax payment and an application for leave to amend the defence in order "to raise substantial matters and real questions in controversy in the case." The former application was rejected by the Court on June 28, 1990 and the latter fell into obscurity following the dismissal of the suit for want of prosecution on September 19, 1991. The suit was subsequently re-instated on April 6, 1993. When it finally came on for settlement of issues and trial on August 19, Mr. Matata informed the Court that the only matter at issue was the quantum of compensation payable to the plaintiff and that the application to amend the defence was being abandoned. It had been proposed in the abandoned amendment to aver that the defendant could not renew the plaintiff's licence "without the plaintiff furnishing the defendant with an income tax clearance (etc)." In other words even the abandoned amendment was not aimed at challenging the competence of the suit as such. It seems that Mr. Byabusha was unaware of all these events because prior to taking his objections he had even filed a notice to produce income tax assessment forms and payment receipts for the financial years 1986/87, 1987/88 and 1988/89.

The crucial issue now is whether Mr. Byabusha's objections are

available, first, at this stage, and, second, in the circumstances outlined. Taking the first limb first, I think it is too late at this stage to take these objections. The maintainability of a suit is a fundamental factor which ought to be raised and disposed of at the very beginning. It is an issue of law capable in itself of disposing of the suit and, in the present state of our law, it cannot be postponed until after the suit has gone into trial. I take this to be the correct construction of 0.14, r.2 of the Civil Procedure Code, 1966 which states:

> 2. Where issues both of law and of fact arise in the same suit, and the court is of opinion that the case or any part thereof may be disposed of on the issues of law only, *it shall try those issues first,* and for that purpose may, if it thinks fit, postpone the settlement of the issues of fact until after the issues of law have been determined.

The clause I have duly emphasized is mandatory in character. As the law presently stands, once the court is of opinion that the case or any part thereof is disposable on issues of law only, it has no discretion but to try those issues first. Conversely, those issues ought to be raised before the trial commences and, according to established practice, this has to be in the course of pleading. In the instant case Mr. Byabusha seeks to say that the suit is incompetent for, among other things, absence of notice to the defendant. Indeed s. 183(1) of Act No. 7 of 1982 states:

> 1) No suit shall be commenced against a local government authority until one month at least after written notice of intention to commence the suit has been served upon the authority by the intending plaintiff or his agent.

The effect of the absence of notice is thus an issue of law, namely, whether the suit was competently commenced, and this issue should have been raised and determined at the very beginning as by law

provided. Since it was not, it cannot be raised at this stage after the suit has been allowed to go into trial and the plaintiff has concluded his case.

This brings me to the second limb of the question posed earlier and to a complex subject, the subject of estoppel by waiver and acquiescence. As a general rule it is inequitable and unjust to permit a person to deny the effect of his representation or conduct whereby another person is induced to act on that representation or conduct whereby another person is induced to act on that representation or cannot to his detriment. In the case before me, the defendant raised no objection to the maintainability of the suit at the filing of the defence. Even in subsequent attempts to amend the defence, the competence of the suit was never an issue. We have also seen how at the settlement of issues the Court was assured on the defendant's behalf that the only matter at issue was the amount of compensation. The defendant, unlike the plaintiff, has all along been represented by learned counsel and is reasonably presumed to have been aware of the rights and privileges accruing under the law. And since liability under the suit is not denied but only a just assessment by the Court is sought for, it is logical to say that the defendant waived the right to notice and acquiesced in the trial. The plaintiff acted on this conduct of the defendant's by maintaining the suit since 1989, calling evidence from Tarime and incurring costs. In these circumstances, Mr. Byabusha's objections cannot be available.

Perhaps it should be stated for the avoidance of doubts that s. 183(1) does not seek to exempt local authorities from suit; it is a procedural provision the purpose of which is to afford these authorities the opportunity to minimise their costs by settling out of court in those cases where the plaintiff is likely to succeed. Since it is a procedural requirement, the absence of notice does not take away the power of the court to entertain the suit where the court has jurisdiction in the subject-matter. Absence of notice amounts to an irregularity in procedure and an irregularity may be waived by acquiescence. In the Indian case of *Ledgard v. Bull (1)* the Privy Council said:

> ... when the judge has no inherent jurisdiction over the subject-matter of a suit, the parties cannot, by their mutual consent, convert it into a proper judicial process ....

But there are numerous authorities which establish that when in a cause which the judge is competent to try, the parties without objection join issue, and go to trial upon merits, the defendant cannot subsequently dispute this jurisdiction upon the grounds that there were irregularities in the initial procedure, which, if objected to at the time, would have led to the dismissal of the suit.

Similarly in the Kenyan case of *Saleh bin Ahmed v. Sheikh Dahman bin Abdulls (2),* Windham J. (as he then was) said (at p. 118):

> ... since the inherent jurisdiction of the Liwali's Court is not in issue but rather the irregularity of its assumption of jurisdiction, the appellant is now precluded ... from taking the point since he consented to jurisdiction below.

These decisions were pronounced on appeal and dealt respectively with the Indian and Kenyan equivalents of s. 19 of our Civil Procedure Code, 1966. I think, however, that they express the correct position even in the context of the case before me and I have no hesitation in adopting the reasoning therein. There is certainly a distinction between want of jurisdiction and irregular assumption of jurisdiction; a court is not deprived of power to make a binding decision in a proceeding in which it has inherent jurisdiction in the subject-matter merely because of an irregularity. One, therefore, cannot accept the apparent generality in the remarks by **Mfalila J.** in *Lucas Matafu v. M.M. Songambele (3)*, where he said:

> The procedure for getting civil remedies against the Government is provided in the Government Suits Ordinance, and this must be complied with before this Court can assume jurisdiction. Since this was not done, this Court has no power to make any order against the Government.

These remarks must be confined to the facts of that case and there is no cause to believe that the learned judge would have stated what he did were he faced with the situation of the instant case. It is also not irrelevant to point out that there have been conflicting decisions in India on the consequences of absence of notice where a notice is required to be served on the State. The predominant view, however, is that the requirement for notice is only a condition on a plaintiff's right to maintain the suit but is not a prohibition on the court to entertain the suit where the notice has not been served. The notice is for the protection of the State and if in a particular case it does not require that protection, it can lawfully waive its right (MULLA, 14th ed. pp. 493-94).

It is also said that there is no estoppel against a statute, but this means that a person is not estopped by his previous conduct as to the existence or construction of a statutory provision from contending that the converse is the statutory provision. Similarly where a statute imposes a duty of a positive kind, the person charged with the performance of this duty cannot be prevented from exercising his statutory powers on account of a contrary conduct previously. But this, I think, is the position in the context of duties as contrasted with rights and benefits.

As a general rule, where the statute is solely for the benefit of an individual, the individual may waive the benefit as he thinks fit, but he cannot waive a benefit conferred by statute for the benefit of the public: *Graham v. Ingleby (4).* I think, however, there is authority for the proposition that the position is different where the guardian of the public interest like a local authority decides to waive the benefit, because it usually does so after weighing the position and may deem it of greater benefit to the public to waive the benefit. I am entitled to believe from the circumstances of this case that the defendant waived the right to a notice and could lawfully do so. The consequences of that decision cannot be denied now.

The remaining matters require brief attention only. It is incorrect to say, as Mr. Byabusha did, that s.11(3) of the Business Licencing Act

1972 as amended by Act No. 9 or 1980 requires a plaint to be accompanied by a tax clearance certificate. Evidence of income tax payment or exemption from payment is required in an application for a business licence. And Mr. Byabusha's contention about the plaintiff's health was a bare statement from the bar which does not attract serious, if any, attention.

I am satisfied on the whole that the objections are untenable and I overrule them in their entirety.

AHAMADA MUSA NTIMBA AND MOHAMED KASHANGAKI *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT BUKOBA
(Lugakingira, J.)

CRIMINAL APPEAL No. 21 OF 1995
(From the decision of the Bukoba District Court at Bukoba, P.R.K. Rugaimukamu, PRM, in Criminal Case No. 8 of 1994)

Criminal Practice and Procedure – Charges – Duplicity – Charge alleging conspiracy and stealing in the count – Charge bad for duplicity

Criminal Practice and Procedure – Charges – Defective charges – Charge of conspiracy and stealing but neither setting out the particulars of conspiracy nor alleging stealing – Whether the defects are curable

Criminal Practice and Procedure - Plea of guilty - Accused person pleading guilty after the trial has commenced - charges should be read over again before recording plea

Criminal Practice and Procedure – Bias – Trial court magistrate introducing and admitting documents and calling witness to support the prosecution case without the prosecution having sought to do so – Magistrate biased and proceedings a nullity

The two appellants, along with a third person, were charged under several counts with the offences of conspiracy, fraud, stealing, forgery, and stealing by servant. They were convicted by the district court. On appeal the High Court saw serious defects in the way the charges were framed and in the conduct of the trial court magistrate who recorded a plea of guilty where none was made and, at the preliminary hearing, brought in and admitted documents incriminating the accused persons without the prosecution seeking to introduce any such documents. Also the trial court magistrate called what he described as an "independent" witness, but who was actually an accomplice, so as to "corroborate" some statements of the first accused.

Held:

(i) The charge in the first count was bad for duplicity as it combined two offences, conspiracy and stealing;

(ii) The charge was also bad as it did not set out the particulars of conspiracy or state what the accused persons conspired to do and, besides alleging that they obtained money, it did not allege stealing as such;

(iii) The defects in the charge were incurable, and confounding and embarrassing to the defence of the accused persons;

(iv) By recording in the "Memorandum of Facts not in Dispute" that the first accused admitted to have conspired with another and stolen money while the said accused had made no such admission, and by introducing and admitting documents incriminating the accused persons while the prosecution had not sought to introduce them, and by calling an accomplice and labeling him "independent witness" to come and corroborate some statements implicating one of the accused persons, the trial court magistrate became prosecutor and was clearly biased against the accused persons;

the proceedings, therefore, and the resulting conviction were a nullity;

(v) It is for the prosecution to adduce all evidence necessary to establish their case and not for the court to fill in gaps in the prosecution case.

Appeals allowed and trial court proceedings quashed

Case referred to:
(1) *Rex v. Sussex JJ., ex parte MaCarthy* [1924] 1 K.B. 256

Mr. Mwambegele, for the Republic

JUDGMENT

(Dated 21 April 1997)

Lugakingira, J.: I had considerable difficulties making my way through the mess of a trial from which these appeals arose. I took time figuring out what course to take.

The appellants, Ahmada Mussa Ntimba (second accused at the trial), and Mohamed Kashangaki (third accused), along with Abdul Rushura (first accused), were before the District Court of Bukoba jointly charged on a count of conspiracy to defraud. The first and third accused were convicted on this count, the second accused being acquitted, and were sentenced to five years' imprisonment each. In the second, third, fourth and fifth counts, all three were charged with forgery and were all convicted and sentenced to three years on each count. The first and second accused were employees of the Katoro Rural Primary Co-operative Society in Bukoba Rural District which deals in the purchase of peasants' coffee. The two were in the sixth count charged with stealing by servant, it being alleged that during the 1992/93 crop season they stole 1,619,445/= the property of their employer. The first accused was a resident of Katoro area and a member of the Society. In the seventh count he was alone charged with stealing the same sum but was acquitted for reasons we shall again see later. The eighth and ninth

counts concerned the first and second accused and alleged forgery and stealing by servant respectively.

They were convicted and awarded three years on each. All the sentences for all the accused were ordered to run concurrently. The first accused has not appealed because, it is claimed, he pleaded guilty to all counts in the course of his defence. Before this Court the second accused was represented by Mr. Kahangwa and the third accused was represented by Mr. Magongo while Mr. Kabonde appeared for the Republic.

The first difficulty is with the charge. In the fist count of conspiracy it was alleged that the accused persons *"did conspire one another to deceit or fraudulently means to defraud Katoro RPC to wit obtained Tshs. 1,619,445/= the property of Katoro RPC's."* That this count was a muddle is all too clear. It does not state what the accused persons conspired to do, instead we are told that they obtained 1,619,445/=. On a generous interpretation, the count combined two offences, i.e., conspiracy and stealing. It was duplex. I have no doubt in my mind that the accused must have been confounded and embarrassed in their defences, more so as they were in the sixth and seventh counts again charged with stealing that same sum of 1,619,445/=. The confusion and embarrassment is even more apparent with the Trial Magistrate himself. While considering the sixth count he said: "It appears to me that the said stolen money is the same mentioned in the 1st count," and when he turned to the seventh count, he again said: "It appears to me that this count has a bearing with the first count." And generally he said:

> I tend to think that because the first and third accused have already been convicted for having defrauded and obtained the same sum in the first count, I fail to see how the same amount was stolen more than once, at one time by the 1st and 2nd accused, at another by the 1st, 2nd and 3rd accused, and at another time by the 3rd accused alone.

It was for this reason that he acquitted the second accused on the sixth

count and the third accused on the seventh count. What the magistrate failed to see was the duplicity in the first count, and if a learned man could be so confused, what with these semi-literate peasants. This duplicity is incapable of cure. The count neither sets out the full particulars of conspiracy nor does it allege stealing as such, the words "to wit obtained Tshs. 1,619,445/=" being imprecise to me. In a word, the count said nothing. It ought to be quashed.

The second difficulty arises form the preliminary hearing. The purpose of a preliminary hearing is to enable the court to identify areas of agreement by reference to the reaction of the accused. It seems, unfortunately, that in this case the Trial Magistrate had already made up his mind on certain questions, and even the outcome of the trial as a whole, and did not wish to be distracted in his mission. He therefore introduced into the exercise matters he considered "obvious" and drew up a memorandum to serve his own whim rather than to reflect the accused persons' reactions. I will for the avoidance of doubts reproduce the entire exercise. It also gives us the substance of the charges.

Prosecutor:

I am ready for the preliminary hearing. Your Honour, the first and second accused were employed by the RPCS Katoro, the first accused being a secretary and the second accused assistant secretary. The third accused person was a peasant and businessman in the same area Katoro.

The first and second were responsible for writing of the cash book, weight notes, control sheets, pay lists, and were responsible for withdrawing of money from the Bank on behalf of the Katoro RPCS and they were also signatory of the said RPCS.

The same three accused persons conspired together to steal Shs. 1,619,445/= the property of the Katoro RPCS for the 1992/93 crop season.

Investigations were done and the following were discovered:

In the 1992/93 crop season, the accused persons forged weight No. 145737 KW so as to read that the 3rd accused had been given back 4270kg of unprocessed Robusta coffee which the 3rd accused had sent for sale at the RPCS on the ground that the 3rd accused had not been paid the price of that coffee because the RPCS had no sufficient money to purchase the same coffee while in fact the coffee was purchased and a sum of 213,500/= was paid to the 3rd accused.

The same accused persons did forge weight note No. 148738 KW so as to show that the 3rd accused was given back his coffee which he had sent at the RPCS for sale, and that he was not paid because the RPCS had no money, while in fact the same coffee was purchased and the 3rd accused was paid shs. 130,250/=.

Again, the same accused persons forged weight note No. 146744 KW so as to show that the 3rd accused was given back his coffee, weighing 6012 kg worth shs. 300,600/= which coffee, the 3rd accused had sent for sale but the RPCS had money (sic) to purchase the same coffee.

The same three accused persons forged weight note No. 148745 so as to show that the 3rd accused person was given back his coffee weighing 4572 KW (sic) worth shs. 228,600/= which he had sent for sale at the RPCS but the later (sic) had no sufficient fund to purchase the same, a fact which was not true.

The 1st and 2nd accused being employees of the RPCS, and because of the foregoing trick did steal shs. 1,619,445/= the property of their RPCS.

These facts related to the first to sixth counts. By oversight, so it appears to me, the meticulous prosecutor did not state the facts pertaining to the seventh count in which the third accused was charged alone.

He continued:

1st and 2nd accused persons during the same crop season, did forge weight note No. 14725 by removing the name of one *Mada Mukasa* so as to show that he had his coffee weighing 6095 kg worth shs. 304,750/= returned to him for lack of funds, a fact which was not true.

Again the 1st and 2nd accused, during the same crop season, did steal coffee weighing 6095 kg worth shs. 304, 750/= the property of the RPCS.

With these facts stated, the accused were invited to state the matters they admitted and the following ensued.

First Accused:
The transactions were proper. We did return the coffee after writing the weight notes upon discovering that they were not worth purchasing.

Second Accused:
We did not conspire to forge or steal. During the 1992/93 crop season, our RPCS was audited at the end of the crop buying season. A report was made by the auditor, where it was indicated that there was a shortage of Shs. 1,300,000/=. Upon that report, the first accused wrote to the Katoro RPCS to acknowledge the loss, and that he had taken out the funds in corroboration (sic) with the third accused, and purchased coffee. The letter is available and was read to the general meeting 12/9/93 or about that. Later on the first accused made an agreement with the KCU on how to refund the same money. I am not sure whether the third accused also signed the same agreement.

All peasants were paid for their crops, and if the discovered loss whose money were to be found in the safe, it would have been returned to KCU.

Mr. Katabalwa for 3rd Accused:
The third accused does not admit the facts which have been given. He does not admit that he was given back the coffee which he had sent to sell at RPCS, or that he conspired with the first and the second accused to forge and steal the alleged sum.

It is apparent from the foregoing that none of the accused admitted anything incriminating him. The first accused stated that the transactions were proper, meaning thereby that he had committed no offence. The second accused made a categorical denial but went on to narrate matters unrelated to him. The third accused's position is clear from Mr. Katabalwa's statement. And in his statement the prosecutor did not seek to introduce any document. But then came the magistrate's memorandum which took the following form.

Court: Memorandum to the Facts not in Dispute

1. It is not in dispute that the first and second accused persons were employed by the Katoro RPCS, and that the third accused is/was a peasant and businessman.
2. That the audit was made for the buying crop season for 1992/93 (Audit Report seen and circulated, marked as "A").
3. A letter written by the first accused addressed to the Katoro RPCS Chairman admitting that he conspired with the third accused, and withdrew money belonging to the Katoro RPCS, and promising to refund the same money. (Letter seen and circulated. First accused admits that he wrote it himself. Marked as Exh. "B".
4. There is no dispute that the first accused and the second accused were the persons who were weighing coffee for the crop buying season for 1992/93, and they were the persons who were writing all the books and effecting payments. They were also the keepers of the RPCS books of all types. Both accused were signatories in the Bank.

The following books and documents are shown to the accused persons and Mr. Katabalwa for third accused:

1. Cash Book (Exh. "C")
2. Pay List books (3 in all Exh."D")
   a) No. 37901 to 38000
   b) No. 96351 to 96400
   c) No. 26802 to 26900

3. Wight Note Book (Exh. "E")
   Nos. 148701 to 148800
4. General Receipt Books (two)
   Nos. 139615 – 1397000
   139701 – 139750 (Exh. "F")
5. Control Sheets Ledger (Exh. No. "G")

Signatures
1st Accused: (Sgd)
2nd Accused: (Sgd)
3rd Accused: (Sgd)
4th Prosecutor: (Sgd)
5th Mr. Katabalwa for 3rd Accused: (Sgd)

Sgd. P.R.K. Rugaimukamu, PRM - 18/4/94

This exercise left me confounded. The learned magistrate was apparently unhappy with the accused persons' denials or inability to refer to certain matters and sought to assist them, emulating the prosecutor in the process. In other words, he went out of his way to prosecute the case, which, to my mind, meant that he was biased and prejudiced from the start. Our criminal process does not contemplate of a prosecutor – magistrate, and even in inquisitorial systems it is not done with this crudity. The question of bias in judicial proceedings has come from discussion since many years ago. In *Rex v. Sussex JJ. Exp. McCarthy, (1) at p. 259*, Lord Hewart said:

> "Nothing is to be done which creates even a suspicion that there has been an improper interference with the course of justice."

In the case before me the Trial Magistrate did everything to justify the contention that there was an improper interference with the course of justice. I dare say that it must have been because of the terror instilled in the accused persons that the first accused, who does not appear

particularly intelligent, broke down at the conclusion of his defence and purported to admit all the charges. Indeed it came with express prodding by the magistrate. He saw no hope for himself, given the magistrate's attitude. It should also be pointed out that when an accused pleads guilty after the trial has commenced, the charges have to be read over again and he should then be required to register his plea in each count. This was not done in this case but the first accused was promptly convicted.

When a court takes it upon itself to prosecute the accused, there is no trial in the eyes of the law and the resulting conviction cannot be allowed to stand. The entire proceeding is simply a nullity and must be quashed.

The learned magistrate did not stop there. Purporting to act under s. 195(1) of the Criminal Procedure Act, 1985, he called an accomplice, one Peter Bitamale, to "corroborate" certain statements by the first accused in which he implicated the third accused. This man came to say that he was present, at the invitation of the third accused, when the first accused and the third accused discussed stealing from the society. He did not report the alleged discussion to anyone, although he was an accountant of the society. But the magistrate described him as an "independent" witness. It seems he had no idea what an accomplice is. The evidence of an accomplice itself requires corroboration and cannot corroborate the evidence of another accomplice. Moreover s. 195(1) may be used by the court to summon a witness whose evidence appears to it essential to the just decision of the case and this, in my view, does not include nailing the accused. It is for the prosecution to adduce all evidence necessary to establish their case but not for the court to fill in gaps in the prosecution case. It was in the character of the Trial Magistrate to think otherwise and his aberration was further evidence of bias in the trial.

There are other misdirections in the trial and the judgment to which I need not specifically refer. I think I have sufficiently demonstrated that this was not a trial; it was a farce. I cannot order a retrial either as,

among other factors, learned counsel for the Republic observed that the so-called forgeries should have been charged as fraudulent false accounting. To order a retrial would be prejudicial to the accused as the prosecution would naturally improve on their case. I allow the two appeals and quash the proceeding in its entirety. This means that all the accused, including the first accused, are to be set at liberty unless further lawfully held.

FRANK SAFARI MCHUMA *v.* SHAIBU ALLY SHEMNDOLWA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Lugakingira, J.)

CIVIL CASE No. 240 OF 1988

Land Law – Acquisition of Title to Land – Offer of a right of occupancy accepted within the prescribed time – Description of the land in the accepted offer being different from description of the same land in the certificate of occupancy – Whether the title is valid

Judicial Notice - Explanatory Notes to subsidiary legislation - whether court should take judicial notice of such notes

Land Law – Possession of land – Owner of land situated in Dar es Salaam being away in Moshi – Whether that owner is in possession

Trespass – Trespass to land – Entry into land whose owner is away – Whether it is intrusion upon land in the possession of another

Trespass – Trespass to land – Entry into land not knowing that it is another person's land – Whether the entry constitutes trespass

Damages – Damages for trespass – Damages payable without proof of actual loss or damage

The plaintiff was offered, and he accepted, a right of occupancy over a piece of land at Kawe Beach, in Dar es Salaam. After that he went to live in Moshi, coming to Dar es Salaam only on occasions. Subsequently, the defendant was also given an offer of right of occupancy over the same land and he started to develop it. The plaintiff sued for trespass, claiming lawful ownership of the land. The defendant counter claimed the same.

Held:

(i) Acquisition of title to land is signified by an offer followed by an acceptance; as in this case an offer was made to and accepted by the plaintiff in respect of a parcel of land physically known to both the offeror and the offeree, the two were ad-idem on the subject matter notwithstanding the difference in the description of that land between the offer and the certificate of occupancy;

(ii) An offer made subsequent to the acceptance of a previous offer is invalid and cannot give rise to a title; as the offer to the plaintiff was accepted long before the subsequent offer to the defendant, this subsequent offer was incapable of acceptance giving rise to a valid title;

(iii) Trespass means intrusion upon land in the possession of another and the defendant did intrude upon the land of the plaintiff who, under common law, was in possession of the land in Dar es Salaam even though he was in Moshi most of the time; at common law there is a presumption that possession is always attendant to title and, as the plaintiff had title to the land, it is presumed that he was in possession;

(iv) According to the common law doctrine of trespass by relation a person with the right to immediate possession may delay to exercise that right and, when he enters into possession in exercise of that right, he is deemed to have been in possession right from the moment his right of possession first accrued;

(v) The plaintiff's right of possession first accrued the moment he was offered

a right of occupancy and he signed his acceptance of it; the acts of possession that he proceeded to do later are, under the doctrine of trespass by relation, related back to the time when his right of possession first accrued;

(vi) As the defendant moved into the land and started developments thereon ***after*** the accrual of the right of the plaintiff over that land, the defendant was a trespasser thereon;

(vii) Although in entering upon the land in question the defendant acted in the honest belief that he was not trespassing on any other person's right, he was a trespasser all the same; intentional entry upon another person's land is actionable even if done under a mistake of law or fact, or under an honest belief that the land is yours, or that you have the right to enter, and any notions that a person is not a trespasser unless he knows that he is a trespasser are wrong;

(viii) Trespass is actionable *per se*, without proof of actual loss or damage; in this case, therefore, the plaintiff is entitled to general damages

(ix) The defendant, being an innocent trespasser who made improvements on the land, is entitled to compensation for their value.

Cases referred to:

(1) Hamisi Sinahela v. Assan Mbwele [1974] L.R.T., 28
(2) Ellis v. Loftus Iron Co (1874) L.R. 10 C.P. 10
(3) Jones v. Chapman (1847) 2 Exh. 803
(4) Basely v. Clarkson (1682) 8 Lev. 27
(5) Conway v. Wimpey & Co [1951] 2 K.B. 266

Dr. Lamwai, for the Plaintiff
Mr. Mchora, for the Defendant

JUDGMENT

(Dated 19 May 1997)

Lugakingira, J.: This is an old proceeding. It is so battered by time that at the time of writing this judgment I cannot trace the first page of the

plaint. I am not, however, disadvantaged thereby; I have ascertained that the available two pages, the rest of the pleadings, the issues framed and the evidence adduced are more than sufficient to facilitate this exercise. The suit was instituted in September 1988 but was initially bogged down by the usual preliminaries, including a challenge to the jurisdiction of the Court. The trial finally took off in June 1990 and was concluded in June 1995 but two years later hence, I have not received submissions from Dr. Lamwai, learned counsel for the plaintiff. And our own departure from Dar es Salaam in early 1992 contributed in no mean measure to the checkered history of this litigation.

The dispute is over the ownership of a piece or parcel of land known as Plot No. 389/1 Kawe Beach in the City of Dar es Salaam. The plaintiff, Frank Safari Mchuma, claims to be the lawful grantee thereof and avers that the defendant, Shaibu Ally Shemndolwa, has committed a trespass by constructing a foundation thereon. He seeks a declaration of his ownership, ejectment of the defendant, damages and costs. The defendant counter-claims the plot and prays for similar remedies. It is necessary to review the evidence in some detail in order to appreciate the contending claims, and this is no easy task.

On 18/5/79 the plaintiff purchase a shamba from one James Mtira who is said to have died in 1982. The shamba was reached as one drives out of the city along Old Bagamoyo Road after crossing the Mlalakuwa River and a short distance off the road on the right hand side. On the left side of the road is the National Service site, part of which was also previously Mtira's. A rough sketch indicating the position of the shamba is appended to the sale agreement, Exh. P1. It seems that the area was then unsurveyed but there is evidence from which to infer that a survey was already under contemplation and by or in the course of 1980, preliminary measures had been taken which resulted in the creation of what came to be known as Plot No. 389 Kawe Beach. Hence on 14/12/80 the Kinondoni District Land Officer issued survey instructions (now termed "requests") to the City Surveyor stating that he had received an application for Plot No. 389B and requesting "A subdivision of Plot No.

1/521/369 (Exh. D9A). There was no action on that request and a reminder was sent on 4/9/81 with a similar request and another extract of the TP Drawing (Exh. D9B). The survey was eventually carried out by DW5 Rasmus Kapene who confirmed to the Court to have found James Mtira and one Simon Morris residing in the area, and even made a point of noting their names at the back of the extract in Exh. D9B.

On 5/3/82 the plaintiff applied to the Kinondoni District Land Officer for a grant of a right of occupancy over "Plot No. 389A Mlalakuwa" and stated (Folio 1 in Exh. D6):

> I had bought the piece of land in what is now Plot No. 389 in 1979 for development (as per attached testimonials). When the area was surveyed originally, the land I had bought was named Plot 389. Recently the same plot was surveyed split into Plot No. 389A and 389B, and the latter was given approval for another applicant.

He attached to the application a sketch indicating the plot applied for and shown to be copied from TP Drawing No. 1/521/369. An offer of a right of occupancy over the plot was made to him on 11/3/82 on file D/KN/A/21040 (Exh. D6) and he accepted the same by paying the necessary fees as per Exhs. P2, P3 and P4. The next process was preparation of the certificate of occupancy.

The offer was not immediately followed with the preparation of the certificate of occupancy and this seems to have been occasioned by the inability of the office of the Director of Land Development Services to obtain deed plans from the Surveys and Mapping Department despite a request made on 24/1/83 (Folio 2 in Exh. P16). A peremptory reminder was sent on 27/10/86 (Folio 3 of same). Meantime, the defendant was out looking for a plot. He went to City Hall and met DW5 who informed him that "Plot 389A Kawe Beach" was free. Next he saw the Kinondoni District Land Officer who confirmed that position. He was accordingly offered the plot on 15/1/85 on another File D/KN/A/24373 (Exh. D5) and paid the necessary fees as per Exh. D1. Another process for preparation of a certificate of occupancy got underway.

For reasons not readily found in the evidence a decision was meanwhile taken to resurvey Plot No. 389 and adjoining plots. The resurvey (otherwise termed an amendment) was executed in or about November 1986 by one K. Tumaini Kibika and resulted in what is represented on Survey Plan Number E1 254/29 (Exh. P13). The plan is titled: "Survey of Plot No. 389/1 and 389/2 Kawe Beach." On 28.11.86 the Director of Surveys and Mapping wrote to the Director of Land Development Services stating (Folio 69 in Exh. P14 and Folio 4 in Exh. P16):

> *Pamoja na barua hii nakuambatanishia Ramani ya Upimaji wa eneo hilo. Utaona kuwa ramani inajieleza yenyewe kuwa eneo hilo ni Kawe Beach wala siyo Mlalakuwa.*
>
> *Jambo moja ambalo napenda kukuarifu ni juu ya badiliko la nambari za viwanja katika eneo hilo. Kiwanja kilichokuwa Na. 389A kijulikane kama Na. 389/1 kilichokuwa Na. 389B kijulikane kama Na. 389/2.*

Following this notification, the Land Office went ahead and prepared a certificate of occupancy for the plaintiff over Plot No. 389/1 Kawe Beach, rather than Plot No. 389A Mlalakuwa, and the certificate was registered on 16/2/87 as Certificate of Title No. 32207 (Exh. P5). As might be expected, the parallel process for the defendant's certificate hit a snag. A draft was in fact approved on 23/7/87 for Plot No. 389/1 Kawe Beach, rather than Plot No. 389A Kawe Beach, and the certificate was duly typed, but on 30/11/87 a "CLO" (presumably "City Land Officer") addressed a land officer on Exh. P12 thus:

> *Kagua kiwanja hiki, mwenye kiwanja akupeleke, kwani Nd. Frank Safari Mchuma, hati yake inahusu kiwanja hiki hiki – tazama DSM/LD/19375. (Exh. P11).*

The defendant's certificate was never to be registered.

But soon after the defendant got the offer he went ahead with building preparations. By July 1986 work had started on the foundation. The

plaintiff was at the time resident at Moshi. In November 1986 he received information that someone was building on his plot. He proceeded to Dar es Salaam and verified the report. In response he built a wall along the southern boundary, effectively blocking off access to the plot. The Court visited the site on 14/6/95. There is an old foundation and three courses of brickwork, turned black and mouldy by the elements. A greater part of the plot is swamp and the foundation is uneasily ensconced near the southern boundary. In sum, the plaintiff's case is that Plot No. 389A Mlalakuwa, the subject of his offer, comprised part of the shamba he purchased in 1979, and this was later renamed Plot No. 389/1 Kawe Beach. And the defendant contends that Plot No. 389A Mlalakuwa has never existed; further that he was offered Plot No. 389A Kawe Beach which became Plot No. 389/1 Kawe Beach.

Various issues were framed at the commencement of the trial, the first being whether Plot No. 389/1 Kawe Beach and Plot No. 389A Mlalakuwa were one and the same, and this, indeed, is the decisive issue in the case. Allied to this issue is whether, in fact, there ever existed a plot described as Plot No. 389A Mlalakuwa. This question arises because Advocate Mchora argues for the defendant that, "... except for the offer (to the plaintiff) there are no records proving existence of a plot called 389/A Mlalakuwa." With respect, I disagree. To begin with, there is what I have conveniently marked as Folio 2 in Exh. D6. It would appear that when the plaintiff's application for a right of occupancy was received, a request was made to the City Valuer to assess the annual land rent for Plot No. 389A Mlalakuwa. The folio just referred to is the City Valuer's response, dated 11/3/82, and it states:

> **RE: PLOT NO. 389A MLALAKUWA (ETC)**
>
> *Kodi ya kiwanja hicho imekadiriwa kuwa Shilingi Elfu moja mia Tisa na Sitini (Shs. 1,960/=) kwa mwaka.*

Attached thereto is a survey site plan showing the plot in question edged yellow, with numbered beacons, and at the bottom right hand corner are

printed the words and figures: "Plot No. 389A Mlalakuwa Dar es Salaam." A similar plan is annexed to Folio 1 in Exh. P16, and this was put to the defendant in cross-examination. Finally, a similar site plan appears as Folio 8 in Exh. P11, the disputed plot being defaced with drawings by someone who seems to have become aware of the dispute. Incidentally, the plot as represented on these site plans then measured 5,833 sq.m. but after the resurvey referred to earlier it was enlarged to 6,288 sq.m. I stand to be corrected but I suspect that the site plans in question were the result of the survey carried out by DW5 in 1981. The plaintiff was not the author of these site plans but they were official documents and they show the existence of Plot No. 389A Mlalakuwa (or Mlalakua).

It is curious that Mr. Mchora was unaware of at least the site plan in Exh. D6 which came from the defence, and it is doubtful whether he would have pressed the issue were he aware of it. Above all, the site plan in Exh. P16 was put to the defendant in cross – examination and contrasted in material detail with the site plan on the defendant's building plans.

Mr. Mchora's curiosity does not end there; he goes further to suggest that there is no locality known as Mlalakuwa in the City of Dar es Salaam and refers the Court to Government Notice No. 171 of 1966, i.e., the Dar es Salaam Planning Area Amendment Order, 1966. This Order carries an Explanatory Note in which are listed the localities involved, and these include Kawe, Mbezi, Mikocheni, etc., but there is no mention of Mlalakuwa. Mr. Mchora urges the Court to take judicial notice of the order. I think, with respect, the submission is untenable. First of all, the list occurs in the Explanatory Note and is, for that reason, not part of the Order. Judicial notice cannot be taken of a matter which does not constitute part of subsidiary legislation. Secondly, the list does not purport to be exhaustive as it is prefaced with the words "*inter alia*." These words, which mean "among others," necessarily imply that there are other localities, not listed in the Explanatory Note, to which the order applies. Why should these other localities not include areas which are locally

known by different names. To be precise, there is no assurance that Kawe does not include Mlalakuwa. I say this because Exh. P14 alone, the Surveys & Mapping Department's file labelled "KAWE", contains not less than six folios which refer to various parcels of land at "Mbezi-Kawe." There is no reason why there should not be another area of the name "Kawe-Mlalakuwa," indeed Mtira's widow, PW4 Pili Mohamed, told the Court that the disputed land is at Kawe-Mlalakuwa. I am thus of the view that for the purpose of proper and adequate information on the localities to which G.N. No. 171/1966 applies, recourse should be had not to the Explanatory Note but to Drawing No. 1/452/566 cited in the schedule thereto. It might also be of interest to observe in passing that Mr. Mchora treads on unsure ground by relying on G.N. No. 171/1966 in the absence of evidence that it was valid beyond 1969. Under the provisions of s.14 of the Town and Country Planning Ordinance, Cap. 378, an Order ceases to have effect three years after its publication if no planning scheme is approved or if its validity is not extended by the Minister. I find, if it is really necessary to do so, that Mlalakuwa as a geographical area has existed in the City of Dar es Salaam.

To recapitulate, the main question is whether Plot No. 389/1 Kawe Beach and Plot No. 389A Mlalakuwa are one and the same. The answer is undoubtedly yes. A glance at the plaintiff's sketch annexed to Exh. P1, his other sketch annexed to Folio 1 in Exh. D6, the extracts annexed to Exhs. D9A and D9B and the Court's observations at the site, leave no doubt that one and the same piece of land is under reference. The existence of a swamp on the land is a common feature to all. Additionally, PW3 Samiu Mbegu was present at the sale and described to the Court the boundaries of the land sold, not leaving out the swamp. There was also Mtira's widow already mentioned and Mtira's stepson, PW5 Mbegu Mintanga both of whom maintained that the defendant's foundation is right in the land sold to the plaintiff. I believe these witnesses to have testified to the truth. In the upshot I am satisfied, not merely on a balance of probability, but beyond peradventure, that Plot No. 389/1 Kawe Beach and Plot No. 389A Mlalakuwa are one and the same piece of land, save of course that the former is an enlargement on the latter.

The next issue was who was the rightful owner of Plot No. 389/1 Kawe Beach. In the light of what has transpired, this question presents no difficulty. Generally speaking the same principles of contract apply in transactions to do with land, the essential features being an offer and an acceptance. Although the doctrine of offer and acceptance is not to be applied as a talisman, revealing, by a species of esoteric art, the presence of a contract, it is to the credit of the Land Office in this country that the alienation of land involves no more than a simple process of offer and acceptance, the former being signified by a formal letter embodying the essential terms and conditions of the grant and the latter being signified by payment of the required fees and taxes within the stipulated period. There are no questions of detail calling for adjustment but an intention to be bound is unequivocally expressed in the written offer.

In the instant case an offer was made to the plaintiff on 11/3/82 and was expressed to be open for acceptance within thirty days. The plaintiff accepted the offer and paid the fees and taxes on 15/3/82. I am of the view that a binding agreement than came into existence which, in the absence of fraud or misrepresentation, could only be repudiated with dire consequences. The subsequent offer to the defendant was made on 15/1/85 and accepted on 28/1/85. It is evident, therefore, that the plaintiff's offer was prior in time and was accepted long before the subsequent offer to the defendant. Under the rules of contract the transaction with the defendant was incapable of sustaining a valid contract, it having come at a time when the subject-matter had already been given away. This is not the first time that this Court has had to deal with a similar situation, and I need only cite the decision in *Hamisi Sinahela v. Assan Mbwele (1),* where it was similarly held that a grant of a right of occupancy over a piece of land when a prior right of occupancy over the same land still subsists is irregular, and the prior grantee is entitled to the land. I hold this position to obtain in the instant case and I do so despite the difference in the description of the land between the offer and the certificate of occupancy. The offeror and the offeree were *ad idem* on the subject-matter, i.e. a parcel of land physically known to both, and in

circumstances like these the description or label of the land was not a material factor.

In this context, too, Mr. Mchora takes issue with a discrepancy on the certificate of occupancy. Whereas the plaintiff paid stamp duty on and was issued with a revenue receipt of the same number but whose date is recorded as 15/3/83. In Mr. Mchora's view this indicates that another offer and acceptance took place in 1983 and the Court is invited to find that the 1982 offer and the certificate based thereon were invalid. I cannot accede to this invitation and I think, with respect, that it is unduly pedantic. It cannot escape any serious mind that the discrepancy was a clerical error and this was voiced by PW6 Lucy Bundala. There cannot be two revenue receipts of the same number in the same department or even in different departments. I have no doubt that the office of the Registrar of Titles set out to record the receipt of 15/3/82 which is comprised in Exh. P3. It may also be observed that the error was perpetrated on the certificate but not in the Land Register; it is therefore inconsequential. The entries in the Land Register are as per Exh. P6, the Official Searches, and no error or defect is disclosed in these. I see no merit in the entirety of Mr. Mchora's challenges to the validity of the plaintiff's title.

In the third issue the Court was invited to rule as to who, if at all, had committed a trespass. By definition trespass to land is any unjustifiable intrusion by one person upon the land in the possession of another. It has therefore been stated with a light touch that: "If the defendant place a part of his foot on the plaintiff's land unlawfully, it is in law as much a trespass as if he had walked half a mile on it" (*Ellis v. Loftus Iron Co. (2),* per **Coleridge C.J.** at p.12). There is no dispute about the defendant's entry on the plaintiff's land, in fact he did more than enter for he constructed a foundation thereon. But as just stated the tort of trespass consists in an intrusion which is unjustifiable and on land in the possession of another. It may therefore be enquired, first, whether the plaintiff was in possession of the land. I have no doubt that the common law of England applies to this question, the Trespass Ordinance, Cap. 290, being

concerned only with criminalizing certain trespasses. At common law possession is derived from at least two sources: the presumption of possession attendant to title and the doctrine of trespass by relation. The former is best illustrated by the words of Maule J. in *Jones v. Chapman (3)* at p. 821:

> If there are two persons in a field, each asserting that the field is his, and each doing some act in the assertion of the right of possession, and if the question is which of those two is in actual possession, I answer, the person who has the title is in actual possession and the other person is a trespasser.

It has been established in the instant case that the plaintiff has the title to the disputed land; a presumption therefore arises that he is in possession of the land. The doctrine of trespass by relation, on the other hand, is thus expressed in SALMOND ON THE LAW OF TORTS, 13th Ed., pp. 173-174:

> He who has a right to the immediate possession, and enters in exercise of that right, is then deemed by a legal fiction to have been in possession ever since the accrual of his right of entry, and may accordingly sue for any trespass committed since that time. It is known as the doctrine of trespass by relation, because the plaintiff's possession relates back to the time when he first acquired a right to the possession.

In accordance with this doctrine a person wrongfully disseized of his land may after re-entry sue for any trespass during the period of his dispossession. Hence a lessee may sue for a trespass done between the granting of the lease and his entry in pursuance of it. These common law principles are properly applicable to the system of the right of occupancy, not only for certain common features between that system and the English lease, but also because a right of occupancy is in its intendment a title to the use and occupation of land and this implies a covenant for peaceful

enjoyment of that land. In this case evidence shows that for most of the time since the plaintiff acquired the suit land he was resident at Moshi. However, there is also evidence of acts by him in assertion of his right of possession which include bringing building materials on the land, bringing sand and planting trees in an effort to dry up the swamp and building a fence along the southern boundary. In law these acts of possession relate back to the time he first acquired the land and entitle him to sue for any trespass committed since that time.

It is argued by Mr. Mchora, however, that the defendant's entry upon the land cannot be classified as wilful and unjustifiable since he went through the procedures of acquiring a right of occupancy, had building plans approved by the City Council and a building permit issued and even paid compensation to Simon Morris, that contemporary of Mtira, who claimed to be the owner of the land. A brief word is necessary on this Morris affair. It is true that in 1989, according to the defendant, or as late as February 1992, according to DW8 Kennedy Missana, when the trial of this case was well advanced, the defendant permitted himself to part with 7,000/= as compensation to Simon Morris. The preponderance of evidence shows, however, that Morris was an invitee of Mtira's on land Mtira had reserved to himself, and owned no more than a hut and a single cashewnut tree on that land.

Be that as it may, this and other processes listed by learned counsel do not alter the legal position, namely, that where entry upon the land of another is intentional, it is actionable even though made under a mistake of law or fact and even though the defendant honestly believes that the land is his own or that he has a right of entry on it: *Basely v. Clarkson (4).* There is no foundation for the presumption that a man cannot be a trespasser unless he knows he is one: *Conway v. Winpey & Co. (5),* at p. 273. It is on this footing that an action for trespass lies to determine a disputed title to land. I am satisfied from all considerations that the defendant is a trespasser.

I finally come to the question of damages. Despite the absence of argument for the plaintiff, this question has to be addressed since trespass

is actionable *per se* without proof of actual loss. The rationale for this is that acts of direct inteference with another's possession are likely to lead to a breach of the peace and the policy of the law therefore demands that the plaintiff be relieved from the requirement of proving damage. It nearly happened in this case. When the plaintiff found the defendant's workers digging the foundation, he went off to bring an earth mover to level up the place but on his return, he found an armed policeman on guard. That took off the heat. The plaintiff is therefore entitled to general damages, even of a nominal kind, for having been deprived the use of his land. He is also entitled to special damages to the extent proven in evidence. Unfortunately, the evidence on this category was not satisfactory. Neither the quantities nor the value of the building materials, sand and trees brought or planted on the land was made known to the Court. Once again one can only think of a consolatory award. Against this the defendant is entitled to set off the value of his improvements for they were made in good faith. Although absence of *malafide* is no defence to an allegation of trespass, it is, I think, a mitigating factor especially where someone else shares responsibility for the wrong.

In this case, perhaps no dispute would have arisen but for the public officers who were less than attentive in the discharge of their duties, and it would, in the circumstances, be inequitable to deny the defendant the benefit of his investment. Mr. Mchora values the defendant's investment at 235,000/=. I think that is not unreasonable having regard to the state of the foundation as observed by the Court and I think it is adequate compensation to the plaintiff.

Accordingly, judgment is entered for the plaintiff and the counter-claim is dismissed. The plaintiff is compensated as stated above but each party will bear its costs in view of administrative responsibility for this litigation.

PEOPLE'S BANK OF ZANZIBAR LTD.

v.

ABDUL-HALIM M. SURURU & HUSSEIN M. SAID

HIGH COURT OF ZANZIBAR AT VUGA
(Kannonyele, J.)

CIVIL CASE No. 7 OF 1997

Civil Practice and Procedure – Summary Procedure – Limitation of time to institute summary proceedings

Civil Practice and Procedure – Summary Procedure – Limitation of time to institute summary proceedings – Whether an admission in the Written Statement of Defence waives the limitation period to institute summary proceedings – Order XLII rule 9 of the Civil Procedure Decree

Law of Limitation – Summary Procedure – Whether limitation is waived by an admission in the Written Statement of Defence – Order XLII rule 9 of the Civil Procedure Decree

On 11 January 1993 the defendants deposited a cheque with the plaintiff bank. Upon presentation the cheque was dishonoured. Notice of dishonour was served on the defendants on 22 February 1993. On 30 January 1997 the plaintiff filed a suit against the defendants under summary procedure. The defendants were given leave to defend and in their Written Statement of Defence they admitted the debt but raised a preliminary objection that the suit was time-barred.

Held:

(i) Order XLII rule 9 provides that subject to the provisions of ss. 91 to 108 of the Civil Procedure Decree, every suit instituted under summary procedure prescribed by the order after the expiry of one year from the time the debt or liquidated demand became payable shall be dismissed although limitation is not set up as a defence;

(ii) Admission of indebtedness in the Written Statement of Defence does not render the mandatory provisions of order XLII rule 9 inoperative.

Preliminary objection sustained

Mr. Toufiq, Senior State Attorney, for the Plaintiff
Mr. Mulamula, for the 1st Defendant
Mr. Mkonje, for the 2nd Defendant

RULING

(Dated 17 July 1997)

Kannonyele, J.: The plaintiff, the People's Bank of Zanzibar, through their Attorney in the Attorney General's Chambers, filed the suit under summary procedure in accordance with the provisions of O. XLII of the Civil Procedure Decree, Cap 8 of the Laws of Zanzibar. There are two defendants in the matter, Abdulhalim M. Sururu (1st Defendant) and Hussein M. Said (2nd Defendant), advocated by Messers Mulamula and Mnkonje, advocates, respectively.

The defendants applied for leave to defend the suit and this was granted to them. In their written statements of defence, both defendants raised preliminary objections giving one common ground and an additional second ground by the 2nd defendant.

In their common ground of objection the defendants argue that the suit is time barred to come under summary procedure given the provisions of O. XLII r. 9 of the Civil Procedure Decree. Mr. Mulamula for the 1st defendant submitted that the debt or incident given rise to this suit was incurred or accessioned, as the case may be, on 11th January, 1993, by the defendants depositing a cheque with the plaintiff's bank. That cheque bounced upon presentation to a foreign bank where it was sent for clearance. The defendants were notified of this fact on 22nd February, 1993. It is common ground that the suit was filed in court on 30th January, 1997. No payment has ever been made by the defendants to service the debt since 1994, the defendants counsel

further submitted, referring the court to annex C of the plaint as evidence of this. Hence their contention and submission that the suit is time-barred according to O. XLII r. 9 of the Civil Procedure Decree.

Mr. Mnkonje sided with his senior defence counsel pointing out more clearly that the suit ought to have been brought within a year of the incident giving rise to the suit for it to be sustainable under summary procedure. This suit only coming on 30th January, 1997, however, it was too far beyond the permissible time under summary procedure, the defence counsel further pointed out, counting back from January or February 1994 when the permissible period of one year lapsed. Hence the time bar, he also argued.

In his additional ground of the preliminary objection, Mr. Mnkonje cited non-compliance with paragraphs (c) (the percentum per annum of interest chargeable); (d) (i.e. date as to when the contract for respondent was made between the parties); (e) (i.e. fact of a note or memorandum of the contract having been made and signed by the defendants); (f) (i.e. delivery to defendants of the note or memorandum of the contract as per para (e) above); (g) (i.e. amount duly repaid (if any); (h) (i.e. amount due but not paid); (i) (i.e. date of breach of payment of sum due) and (j) (i.e. amount of interest accrued and unpaid on the sums due) of sub-rule (3) of rule 2 Order XLII of the Civil Procedure Decree (Cap. 8). Mr. Mnkonje wondered if non-compliance with Or. XLII r. 2 (3) was not deliberately done in order to circumvent the requirement of the law of limitation as provided under r. 9 of the Order. As did counsel for the 1st defendant, he also prayed that the suit be struck off the register for non observance of essentials of the law.

Mr. Toufiq, the Senior State Attorney appearing for state owned PBZ (the plaintiff), while conceding that the incidents giving rise to this suit took place in 1993, thought, however, that limitation could not apply in this case because of the defendant's acknowledgement of the dept in their respective written statements of defence. Mr. Toufiq referred the court to a passage in a book *Rustomji: the Law of Limitation* (4th Edn) (1927) at app 212 to 214 inclusive as an authority to support his

view on this. As regards to Or. XLII r. 2 (3), Mr. Toufiq argued that more of the requirements were provided for in the plaint except for the requisites in paragraphs (e) and (f) of that rule (supra). Nevertheless Counsel would not say why the failure to comply with those two paragraphs, or what he thought would be the effect thereof, and the remedy therefore. Instead, he only gave a historical background as to how the debt was incurred, the bankers banking on the reliability of their customers as it seems. He requested the court to maintain the suit, the conceded defects not withstanding.

Now, r. 9 of Or. XII of the Civil Procedure Decree provides thus:

> Subject to the provisions contained in sections 91 to 108 of the Decree (both inclusive) every suit which is instituted under the summary procedure prescribed by this Order after the period of one year from the time when the debt or liquidated demand become payable shall be dismissed although limitation has not been set up as a defence.

It is not disputed as we have seen that the incidents giving rise to the debt and this suit are transactions backdated as far back as February 1993 at the latest. Also it is not disputed that the suit was only instituted in January 1997, pertinently on 30/1/1997. It is further conceded the defendants have never serviced the debt effective from January 1994 up to the time the suit was instituted in January this year (1997). The only contention in the opinion of the plaintiff's counsel to bring summary procedure into operation is the defendant's admission of the fact that their cheque was dishonoured consequent to which there is now an outstanding Tshs. 23,261,842/45 payable by the defendants in favour of the plaintiff.

With due respect to the learned state attorney, I see nothing in the entirety of the pleadings and submission to render the mandatory provisions of Or. XLII r. 9 inoperative in this case. Yes, I am aware of the 1st defendant's admission in para 5 of his written statement of

defence. However, this is not an admission of the applicability of the summary procedure on which he accosts the court in his preliminary objection to the suit. In my considered opinion, whatever is admitted to in para 5 of the 1st defendant's written statement is subject to what he says in paragraph 6 thereof. In para 6 of his statement, the 1st defendant says he has always acknowledged the debt and made payments according to the overdraft conditions. These overdraft conditions are not given anywhere in the proceedings and up to this point in time, this court is still in the dark as to what those conditions may be. Indeed it is my considered opinion, further, that to accept the view that para 5 of the 1st defendant's statement renders inoperative the mandatory provisions of rule 9 of the Order (42) is tantamount to placing the cart before the horse and to expect the horse to push the cart. She cannot. Using this analogy, the position and view held by the plaintiff's attorney should be declared redundant first in order to accommodate para 5 of the 1st defendant's statement. That is un-procedural and irregular. We ought first to determine whether the suit is or is not maintainable by operation of the law of limitation and subject to that, we can then proceed further to consider the effect of para 5 of the 1st defendant's statement, *vis-á-vis* the plaintiff's claim. At least the plaintiff should with good reasons have applied to be exempted with the force of the law of limitation. He did not do so. We cannot allow him to go without it on his own. The law is double-edged for all its subjects.

Which is when I can conveniently consider the validity of the 2nd defendant's second ground of objection. Yes, it is overt an flaw of another mandatory statutory provision:

> (3) ... the plaint shall state the following in addition to any other particulars....

Even accepting that the plaint provided most of what is mandatory required under r. 2 (3) of the Order, which however, it does not, the plaintiff's counsel conceded with qualification that the plaint does

not comply with the requirements in paragraphs (e) and (f) of sub-rule (3) of rule (2) of the Order. We simply do not render statutes redundant without justification. The more so in a case of mandatory provisions as it is in this case.

I allow the preliminary objections brought by the defendants in this case. The suit should have been rejected *ab initio* upon operation of the law of limitation as ably cited by the defendants' attorneys. The matter is now to be struck off the register. Plaintiff to seek redress by normal litigation other than by summary procedure, subject to any other enabling (statutory) provisions. Defendants to have their costs. Order accordingly.

ALI ABDALLA DUCHI *v.* MOH'D SALEH FARSY (BY HIS ATTORNEY, SALIM ZAGAR)

HIGH COURT OF ZANZIBAR AT VUGA
(Kannonyele, J.)

CIVIL APPEAL No. 5 OF 1997

Civil Practice and Procedure – Appeals – Appeal against decision overruling preliminary objection – When maintainable

Landlord and Tenant – Vacant possession and public interest – Granting vacant possession in order to accommodate a public library – Whether in the public interest

The appellant was a tenant in a house that initially belonged to the respondent but was confiscated by the Government and the appellant continued living in it. In the 1990's the respondent applied to the Government for de-confiscation of the house on the ground that he wanted to convert it to a public library. The

Government granted the application and gave notice to the appellant to vacate the premises; he resisted and filed a suit in the Rent Restriction Board. He lost the suit and was ordered to vacate. He appealed to the High Court. In the appeal the appellant also challenged the Board's decision that overruled, before going into the trial on merit, a preliminary objection he had raised.

Held:

(i) The decision on the preliminary objection was not appellable as it did not constitute a conclusive preliminary decree on the issues to be determined in the matter nor was there a preliminary decree drawn to support the petition or memorandum of appeal;

(ii) Omission to appeal from a preliminary decree within the period of limitation precludes a party from disputing its correctness or raising objections to it in appeal from the final decree;

(iii) An appeal against the final decree is inevitably limited to the points arising from the proceedings taken subsequent to the preliminary decree;

(iv) It is in the public interest for the community in Zanzibar to open a public library equipped with, and having an orientation in, Islamic books and an Islamic name provided it is open to all members of the society who would need its services subject to the discipline befitting such a library as it would with any other library.

Appeal dismissed

Mr. Patel, for the Appellant
Mr. Mkonje, for the Respondent

JUDGMENT

(Dated 28 July 1997)

Kannonyele, J.: The respondent, through his agent, petitioned for vacant possession and mesne profits in respect of premises belonging to the respondent who resides in Oman. His interests in Zanzibar are represented

by one Mohammed Salim Zagar. The property was first confiscated by the Government by Legal Notice No. 5 of 1974. The confiscation was later revoked by yet another Legal Notice, No. 7 of 1993, thereby reverting ownership of the property to the respondent. The appellant was leased the property for his residence and according to him he has lived in the house since 1973. The respondent has demanded possession of the property so that he may convert and use it as a public library. Following the deconfiscation order the Government gave notice in writing requiring the appellant to vacate the house in three months-vide letter dated 28/5/1993 produced as EXH.C during the trial. The respondent renewed the notice verbally but the appellant never heeded to either of those notices. There is evidence that the respondent through his (first) counsel refused a cheque sent and received in settlement of rents on grounds that the amount (rental fee) was inadequate and, therefore, unacceptable. The respondent thus went to the Rent Restriction Board (hereinafter to be referred to simply as "the Board") seeking for an order to evict the appellant and payment of mesne profits at Shs. 30,000/= per month for three years during which the appellant has not paid rents.

It is the appellant who appraised the Board that he has been occupying the premises since August, 1973, initially using it as a clinic and now partly as residence and partly (one room) as a clinic. He acknowledged paying rents regularly until deconfiscation when the rents paid were refused by the new owner. He said he cannot get alternative accommodation and was willing to raise the rents up to Shs. 5,000/= per month than the Shs. 345/= he was paying to the government hitherto. He prayed for extension of the tenancy and, therefore, refusal of the prayer for eviction.

The defendant, through his advocate, raised a preliminary objection arguing:

1) That the applicant had not sought permission to sue in a representative capacity.
2) That the Rent Restriction Decree did not provide for eviction on the grounds given by the applicant.
3) That since the applicant was resident in Oman and since the application

was based on unsustainable grounds, it should not be maintained; and

4) That the application was ill-conceived and, therefore, it should be dismissed.

What was otherwise the second preliminary ground for objecting the petition, namely that a claim of confiscated property was unsustainable, was apparently later withdrawn when the present respondent produced the confiscation revocation order to prove the deconfiscation.

The Board overruled the preliminary objections preferring to go into full trial and determine the matter on merits relying on the provisions of sections 9 (3), (10) and 11 (1) of the Decree.

After hearing the evidence from the respondent's agent and the appellant and also upon hearing submissions from the parties' advocates at the trial, the Board held for the petitioner and ordered the appellant to vacate from the premises within a month of the order, and mesne profits to the total sum of Shs. 205,000/= at the rate of Shs. 5,000/= per month with effect from October 1993 up to the date of judgment (on 29/4/1997), plus costs of litigation. Ali Abdalla Duchi who was the defendant has appealed to the High Court against that decision of the Board.

The first ground of appeal is to the effect that "the... Board misdirected itself in law and ought to have dismissed the application by upholding the appellant's points of law." This was again met with a preliminary objection by the respondent's counsel who at the hearing of the appeal argued that an appeal against the Board's decision to overrule the appellant's preliminary objection on point of law was time-barred. Mr. Mnkonje, learned advocate for the respondent, submitted that the decision of the Board disallowing the appellant's preliminary points of law having been made on 7/11/1996 and there having been brought no appeal against it within the legally stipulated time, the same was now time-barred and unmaintainable when and as it came together with an appeal against the final decision of the Board. Mr. Patel for the appellant on the other hand submitted that appeals on interlocutory matters are best stayed and or

deferred to be appealed together with the final decree so as to save time and avoid delays by on and off callings of the record at and by different levels of the court hierarchy. I reserved my ruling on this preliminary objection to be consolidated and determined together with my final judgment and this is it now.

The first ground of appeal is bound to collapse for two main grounds. Firstly, the order by the Board to overrule the preliminary objection on points of law is not appealable in this matter because the same did not constitute a conclusive preliminary decree of the issues to be determined in the matter nor was any preliminary decree drawn to support the petition or memorandum of appeal in that regard:

> ... The memorandum shall be accompanied (unless the appellate court otherwise directs) by copy of the decree and written judgment (if any) from which it is desired to appeal" – Or. XLVI, r. 1 (2) of the Civil Procedure Decree and 2. The rules of Order XLVI shall apply, so far as may be, to appeals from orders" – Or. XLVII r.2 Cap 8.

Moreover

> "The right of appeal only arises when a preliminary decree is drawn up" – Sarkar: *Law of Civil Procedure*, 14th Edn (1994 Reprint), Vol. 1 p.350 commenting on s. 97 of the Indian Civil Procedure in pari material with our own s.73 of the Civil Procedure Decree (Cap. 8).

Secondly, it is true that ground of appeal, even if it was appealable on its own, could not be sustained when and as it came in this matter because the same was indeed time-barred (See item 1 of the 1st Sch. to Cap 8):

> ...omission to appeal from a preliminary decree within the period of limitation precludes a party from disputing its correctness or raising any objection to it in appeal from the final decree .... The object is questions decided by the court at stage of preliminary decree will not be open for registration at the

> time of final decree, - if no appeal had been preferred against the preliminary decree ... if any aggrieved party fails to appeal against a preliminary decree, its correctness cannot be challenged by appeal against the final decree. So an appeal against the final decree would inevitably be limited to the points arising from proceedings taken subsequent to the preliminary decree." *Sarkar*: loc.cit.

I quite understand and appreciate the fact that these are extracts from a treatise commenting on a foreign law. I have already noted earlier that the provision of the foreign law being commented on is in *pari materia* to our own relevant provision here. I can now only add that the same has not only been tested but also applied by most (if not all) other jurisdictions in the Commonwealth to which we also belong. I hold it is also sound law in our own jurisdiction here. On the premises, I reject the first ground of appeal as legally unsustainable.

In the second ground of appeal the Board is impugned as having erred in law and fact in granting vacant possession of the premises for housing a public library. The Board was of the view that it was in the public interest to house a public library in the premises as sought by the respondent. On the other hand, Mr. Patel, learned advocate for the appellant has vehemently argued that only a local authority or statutory institution with statutory duties could claim vacant possession of a premise on the basis of public interest.

It was further argued that the proposed library for Islamic Religious Studies would be segregational, favouring one section only of the public while denying or refusing others the right of use of the facility and, therefore, making it not wholly in the public interest. It was submitted that at least the evidence adduced before the Board did not show that the proposed library, when operational, would be open to all members of society including people confessing religions other than the Islamic faith.

Now, in so far as public interest is concerned, one is obliged to quote section 19(1) (f) of the Rent Restriction Decree and, for the sake of clarity, to quote in extenso. The section states as follows:

> 19-(1) No order for the recovery of possession of any premise to which the Decree applies, or for the ejectment of a tenant therefrom, shall be made by court or any Board, and no permission to bring proceedings therefore shall be granted by any Board unless:
>
> (f) the premises are reasonably required for the purposes of the execution of statutory duties or powers of a local authority or statutory undertaking or for any purpose which, in the opinion of a Board or the court, as the case may be, is in the public interest.

In its decision the Board specifically quoted section 19(1) (f) of the Decree as empowering them to hold that the proposed library would be in the public interest and open to all communities and or members of society. In the statute, however, other than the specifications as to required use of a premise by a local authority or statutory undertaking, it is not indicated or even suggested what considerations should be taken account in determining whether an activity or undertaking, other than by a local authority or statutory institution, is in the public interest or not. It is only if the Board or court so opines that the undertaking is one of public interest – of course, reasonably so, within the standards of a reasonable man in the community concerned, but on what criterion exactly, it is not indicated in the statute.

Back to our own case here, it is not unreasonable to think of or, at any rate, out of place to enhance religious studies, with moral decay and deschooled or deculturised societies of our days, less still Islamic studies in Zanzibar for that matter. The Board held the view that it is in the public interest to open a public library in Zanzibar which would be (adequately) supplied not only with Islamic books but others as well and which library would be open to all members of the public without segregation. I see no just reason to differ with the Board in this view. I am settled in my mind that it is in the public interest to community in Zanzibar to open a public library equipped with and having an orientation in Islamic books and an Islamic name provided it is open to all members of society who would need its services subject to the discipline befitting such a library as it

would with any other library. And it is for this purpose that the respondent applied to the government to deconfiscate the premises and the Government accepted and revoked the earlier confiscation order. This is borne out in the very opening remark of the respondent's evidence at the trial and supported by the letter exhibit/annexe A to the petition which was produced at the trial. The bottom p.1 and top p.2 of that letter is very pertinent as to the purposes for which deconfiscation of the premise was sought and subsequently accepted by the Government. In line with the pre-going, therefore, I refuse to accept the notion that "public interest" as used in section 19(1) (f) of the Decree confines the term to undertakings by local authorities and or statutory institutions alone. And as did the first ground of appeal, the second one also collapses for the reasons sufficiently demonstrated here.

The third ground alleges a lack of evidence to back the decision reached by the Board. It is nothing but a mere elaboration of the second ground dealt with hereinbefore. This also collapses and for the same reasons as did its forerunner.

In the fourth ground the Board is held to err for having held that there was no contract of tenancy and for having granted mesne profits at the rate of Shs. 5,000/= per month. This complaint is also devoid of merit. There is evidence that the government as the former landlord and with whom the appellant had entered on contract of tenancy had given notice to him, the appellant, to terminate the contract when confiscation of the premises was revoked. The letter annexe/exhibit C dated 28/5/1993 is a case in point here. There is also the evidence that following deconfiscation of the premises the agent for the respondent has persistently demanded for possession of the property albeit verbally only. Although the appellant denies having received any such notice from the respondent's agent, he concedes that his rents have always been refused since the confiscation was revoked. The notice by the former landlord, i.e. the government who leased the house to him, and the refusal of the rents by the new landlord who had replaced the government, should have served as a sufficient warning, at least by such conduct to communicate to him (appellant) that a tenancy agreement with the new landlord was not wanted.

In any case with the kind of notice given by the outgoing landlord, the appellant would be denied to allege that he had no notice of termination of the contract with the outgoing landlord; and with refusal of his rents by the new landlord, the Board was entitled to hold that there was no contract of tenancy between the parties. After all the appellant is guilty of breach of terms of the agreement of tenancy for turning the property into a business premise (the clinic) whereas by his own word of month, the premises was leased to him for use as residence. He cannot claim innocence in keeping terms of the tenancy agreement even with the former landlord who, however, had since given him notice to quit even before she (the government) terminated her ownership of the property. I reject the fourth ground of appeal as well as I did the others. She 5th ground in the series was withdrawn and not argued.

As to quantum of mesne profits awarded, the respondent had claimed the rate of Shs. 30,000/= per month but the Board awarded Shs. 5,000/= only which is what the appellant said he could manage and within his means. And while deconfiscation of the premises dates back from April, 1993, and the notice to quit dates 28/5/93, mesne profits are awarded effective from October, 1993 only. He has no just reason to complain the amount awarded against him.

This appeal is therefore dismissed with costs in this court and those before the Board.

BOARD OF INTERNAL TRADE *v.* YONAH MAPENZI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Mfalila and Lubuva, JJ.A.)

CIVIL APPEAL No. 3 OF 1996

(From the Judgment of the High Court of Tanzania at Tanga, Msumi, J., dated 15 September 1995 in Civil Case No. 20 of 1992)

Labour Law – Disciplinary authorites – Employees on secondment – Disciplinary authority in respect of seconded employee

Natural Justice – Right to be heard – Employee given right of hearing by institution to which he is seconded and not heard by the employer seconding the employee – Whether employee denied the right to be heard

Tort – Defamation – Defences – Qualified privilege – Communication of statement to a professional body of the employee at the request of such body – Whether defence of qualified privilege is sustainable

The respondent was employed by the appellant Board and seconded to the Tanga Regional Trading Company Ltd (RTC). While working at Tanga RTC the respondent's employment was terminated on the grounds of misconduct and financial mismanagement. The respondent successfully challenged his termination in the High Court, on grounds that it was unlawful, that he had been denied his right to be heard, and that he had been defamed by his employer communicating to his (the respondent's) professional body information that suggested he was a dishonest and unprofessional person. On appeal by the appellant Board the Court of Appeal considered who/what was the disciplinary authority for the respondent employee, whether or not he had been given the right to be heard, and whether the communication by the appellant to the

employee's professional body, the National Board of Accountants and Auditors ("**NBAA**") was privileged.

Held:

(i) Parastatal Service Regulations state that the disciplinary authority in respect of the employees of the Board is the Board; this cannot mean that other bodies or institutions to which Board employees are seconded cannot assume disciplinary powers over them;

(ii) The company, Tanga RTC, to which the respondent was posted had full disciplinary authority over him and the steps they took against him were fully in accord with their powers;

(iii) The appellant Board retained the final authority over the respondent in such serious matters as dismissal and termination, but even in those matters, the appellant Board could generally act only on the recommendation of the companies concerned, because it is the companies that were dealing with the employees on a daily basis;

(iv) It was proper for Tanga RTC, to which the respondent was posted by the appellant Board, to institute disciplinary proceedings against the respondent, invite him to defend himself, deliberate on the matter and send the record of proceedings and recommendations to the appellant employer;

(v) The appellant's Board of Directors was, therefore, perfectly entitled not to summon the respondent afresh and only consider what had been written and said in defence before the Tanga RTC, him immediate disciplinary authority;

(vi) The learned trial court judge erred in law and in fact in holding that the respondent was not afforded an opportunity of being heard;

(vii) The appellant Board as the respondent's highest authority had unearthed, through an internal audit, what they believed was gross professional misconduct on the part of the respondent and, on request, they reported this to the NBAA, the respondent's professional controlling body; the

appellant never published this information to anyone else outside this controlling professional body and the appellant's own system;

(viii) The NBAA as a professional controlling body had an interest in the matter; therefore, the learned trial court judge erred in law in holding that the defence of privilege was not available to the appellant Board in the circumstance of the case.

Appeal allowed

Cases referred to:

(1) Clark v. Holyneux [1877] 3 Q.B.D. 237

(2) Perera v. Perris [1949] A.C. 1

(3) Toogood v. Sprying 1834 1 Cr. M & R 181

(4) Chimala Stores v. Zambia-Tanzania Road Services Ltd [1970] H.C.D. 232

(5) Hunt v. Great Northern Railway Company [1891] 2 Q.B. 189

Dr. Lamwai, for the Respondent

JUDGMENT OF THE COURT

(Dated 9 September 1997)

Mfalila, J.A.: In the High Court at Tanga, the respondent Yona O.K. Mapenzi, sued the appellant, his erstwhile employer, claiming damages amounting to Sh. 48,000,000/= for wrongful termination of his employment and defamation. The High Court (Msumi, J. as he then was) allowed the claim and awarded damages as claimed, i.e. Sh. 18,000,000/= for wrongful termination of employment and Sh. 30,000,000/= for damages. The appellant filed this appeal contesting both its liability and the quantum of damages awarded.

According to the respondent's case in the High Court, his claims arose as follows: The respondent was at all material times employed by the appellant Board as an Accountant and was seconded to one of its Group Companies; the Tanga Regional Trading Company Ltd, where he rose through the ranks until he reached the post of Chief Accountant. That in November 1992 the appellant, without any reasonable cause, wrote the respondent a letter terminating his employment on the allegation that he had grossly mismanaged the Tanga RTC Account No. 1205 with the Cooperative and Rural Development Bank (CRDB). That subsequent to this termination the appellant wrote a letter to the respondent' s professional body; the National Board of Accountants and Auditors, in which the following allegations against the respondent were made:

(a) That the respondent had demonstrated gross negligence and misrepresentations of facts leading to the Tanga RTC losing its purchasing power.

(b) That the respondent had deliberately and in an organised systematic manner concealed mismanagement of the Tanga RTC finances leading to a loss of Sh. 3.3 million.

(c) That the respondent had colluded with parties outside the company to defraud the said company, i.e. Tanga RTC, the said amount of Sh. 3.3 million.

The respondent alleged that by the said allegations, the appellant was saying that the respondent is a dishonest person and an unprofessional man who was prepared to undermine his employer for the sake of stealing from his employer, and that the publication of these allegations seriously injured his credit as an Accountant and exposed him to disciplinary action by his professional body, and that for that reason the appellant was liable to pay punitive damages in the sum of Sh. 30 million. For the wrongful termination of his employment, the respondent claimed Sh. 10 million. At the trial, the respondent gave evidence in support of his claims stating that the termination of his employment was

wrongful because he was never given any opportunity to defend himself, in other words he was condemned and punished without being given a hearing. He added that the only time he was given an opportunity to defend himself was when he appeared before the management committee of Tanga RTC which recommended his dismissal to the appellant. The appellant, he said, wrongly acted on this recommendation because as his employer and disciplinary authority, the appellant should have launched its own independent investigation in which he should have been heard.

As to the allegation of misconduct and financial mismanagement, the respondent denied them all, saying that what are referred to as concealments and apparent financial management shortcomings, were caused by the failure of the bankers (CRDB) to supply his office with vital statistics in the form of monthly bank statements which could have enabled him to prepare the bank reconciliations. He said that he had constantly complained to the CRDB management but to no avail.

At the end of the trial, the learned trial judge found that the respondent's claim for wrongful termination of his employment had been proved, because, the appellant effected this termination without giving the respondent a hearing, and also that the respondent had proved his claim for defamation, because, even if the appellant had a duty to the respondent's professional body, it did not act fairly and honestly. It made the report to the National Board of Accountants and Auditors without sufficient enquiry into the allegations. Accordingly, he awarded the respondent a total of Sh. 48,000,000/= as damages for wrongful termination of employment and defamation.

The appellant Board lodged this appeal in a memorandum of appeal containing six grounds. We shall deal with the grounds seriatim.

In *ground 1*, the appellant complained that the learned trial judge erred in law and in fact in holding that the respondent was an employee of the appellant Board and/or that the respondent was on secondment to the Tanga Regional Trading Company Ltd. We are satisfied that this complaint has no substance. In the plaint, the respondent stated in paragraph 5 as follows:

> That the plaintiff (present respondent) was at all material times the employee of the defendant (appellant) as the Chief Accountant to the Tanga Regional Trading Company. A copy of his letter of appointment is annexed hereto an Annexure "AI," and the plaintiff craves leave to refer to it as part of this plaint.

In its own written statement of defence, the appellant Board admitted in paragraph 5, the truthfulness and correctness of the above claim by the respondent, accordingly this was not made an issue and the case proceeded on that basis. In their respective evidence, both the General Manager of RTC, Mr. Jacob Bushiri (DW.1), and Sylvanus Hyera (DW.3) confirmed this position that Senior Personnel in the Group Companies are appointed by the Board and then posted to the Group Companies. The Chief Accountant is one of such officers. Both these witnesses gave evidence on behalf of the appellant at the trial. The appellant Board cannot therefore be allowed to change the nature of its case at this stage. The complaint in this ground therefore fails and it is dismissed.

In *ground 2,* the appellant Board complained that the learned trial judge erred in law, and in fact in holding that the respondent was not afforded an opportunity of a hearing. In resolving this complaint, we feel we should start from the beginning and restate the position we have taken on the evidence in the record that the respondent was at all material times an employee of the appellant but posted for duties to the Tanga Regional Trading Company Limited, where he was assigned the duties of an Accountant. He rose through the ranks to become the Chief Accountant of that company. It appears that the respondent performed well in his duties as Accountant for the time he was employed in 1979 to 1990. His promotion to the level of Chief Accountant during this period is testimony to this. However in 1990 an internal audit of books of account of Tanga RTC was carried out. The audit was carried out by auditors from the appellant Board. Following this audit gross mismanagement of Tanga RTC Account No. 1205 with CRDB was

unearthed. The General Manager of Tanga RTC thought the audit report revealed such serious professional misconduct on the part of the respondent that he decided to interdict him pending a full scale hearing by the Management Committee and a decision by the appellant Board. The letter of interdiction also asked the respondent to explain himself on the allegations against him in the audit report. The respondent reacted to this letter by sending to the RTC Management his written explanations on the allegations. Later on, the Management Committee of Tanga RTC was convened to deliberate on the respondent's affair. The respondent was called before the committee to give his explanation.

After hearing the account given by the General Manager as well as the respondent on the matter, the committee resolved that the allegations of financial mismanagement against the respondent as revealed in the audit report were fully justified and that therefore he was not fit to continue in the employment of Tanga RTC, that the appellant Board should take steps to have him dismissed and also that a written report be sent to the National Board of Accountants and Auditors which would then order that he be struck off from the register. When the appellant Board received this recommendation from the Management Committee of RTC Tanga, they considered it along with the respondent's explanation of the allegations against him. Having done so, the appellant's Board of Directors decided to summarily dismiss the respondent. This is the sequence of events leading to the respondent's dismissal. On this scenario, the respondent's contention at the trial was that as his disciplinary authority, the appellant Board terminated his services without first giving him the opportunity of being heard and that therefore his dismissal was unlawful. This contention seems to have found favour with the trial judge who accepted it in the following words:

> It is the plaintiff's contention that as his disciplinary authority, defendant terminated his service without first giving a right of hearing (sic). With respect there is substance in this complaint. The available evidence shows that at no time had the defendant required the plaintiff to defend himself against the alleged misconduct before it took the complained disciplinary action. The only time when defendant communicated with the plaintiff is when it wrote to him Exh. P3 terminating his service. Admittedly in the said letter defendant claimed to have considered plaintiff's statements of defence vis-a-viz the charges. This claim, however, is negated by the evidence of what actually transpired prior to the said letter.
>
> In the first place there had been no disciplinary charge preferred against the plaintiff against which he would have defended himself. The only allegations against him and which were communicated to him were those contained in the interdiction letter written by the then General Manager of Tanga RTC. The General Manager imputed gross professional negligence against the plaintiff to justify the interdiction. As directed, plaintiff submitted to the General Manager his written reply to those allegations. Being not the appropriate disciplinary authority neither the General Manager nor the Executive Committee of Tanga RTC could have legally instituted a formal charge against the plaintiff. As initial stage in the disciplinary process, institution of a charge can only appropriately be done by the disciplinary authority unless accepted in the relevant machinery.

In this paragraph the learned judge rejected the appellant's contention that it considered the respondent's written defence on the basis that there was no disciplinary charge laid against the respondent against which he could have defended himself, and that the charges by the Tanga RTC were irrelevant because Tanga RTC was not the respondent's disciplinary authority. In this the learned judge seems to have accepted the contention of counsel for the respondent in his final submission, in which he said that from the evidence produced, disciplinary proceedings against the respondent were initiated by the Tanga Regional Trading Company, but that since the company did not have any disciplinary powers over the respondent, any purported exercise of disciplinary authority by the company over the respondent

was null and void. On this reasoning, any defence put up by the respondent before the Tanga RTC could not validly be used by the appellant Board. Hence in dismissing the respondent, the appellant Board neither considered the respondent's defence nor gave him a hearing. Dr. Lamwai learned Counsel for the respondent reiterated the same arguments. Dr. Lamwai had stated in his submission that according to the evidence of Sylvanus Hyera, the appellant's acting Director of Manpower and Administration, there was no evidence that the appellant's Board of Directors sat to discuss the respondent, therefore in his view the Director General of the appellant Board acted unilaterally and on his own when he wrote the dismissal letter to the respondent. It is along this line of reasoning that the learned judge proceeded to make the following remarks and findings:

> But even if the said interdiction letter had the effect of sufficiently notifying the plaintiff of the charges against him the validity of the contention that the termination in question is wrongful remains strong. May be it is tolerable for a disciplinary authority to commission a separate organ to conduct investigation on allegations levelled against a worker. However it is mandatory that a worker should be given opportunity to defend himself before the respective disciplinary authority. This could be done either by the worker appearing before the authority or by submission of a written defence. Short of this, will amount to condemning the worker unheard. This is what happened in the present case. Plaintiff was never given opportunity to present his defence.

We would like at this stage to state that we are in agreement with both Counsel for the respondent and the learned judge that the appellant Board did not physically hear the respondent's defence. The respondent never appeared before its Board of Directors to make his case against the accusations levelled at him. But the appellant Board said that it considered the entire case against the respondent as presented to it by the Management Committee of Tanga RTC including his defences both

verbal and written. This procedure is attacked on the grounds that the appellant Board was the only disciplinary authority for the respondent and therefore the only competent authority to charge him. In our view this argument is flawed as it ignores the reality on the ground. It is true that the appellant Board was the respondent's employer, but this does not necessarily mean that it was his disciplinary authority or even the only one. According to the evidence, the appellant Board is the controlling and unifying authority for all Regional Trading Companies. To ensure the effectiveness of its controlling and unifying role, all Senior Personnel for all Regional Trading Companies were appointed by the appellant Board and then after consultations with the relevant Management Boards of the Trading Companies, posted them to the Trading Company concerned. Thus from that stage, the employee came under the control of the company to which he was posted and according to Mr. Hyera (DW.3), it was the duty of the Regional Trading Companies to interdict and take disciplinary measures against employees seconded to them, and that this is what happened in this case.

We think that this arrangement makes sense for it would be contrary to good management practice if the Regional Trading Companies were rendered powerless in controlling all employees working for them. If Parastatal Service Regulations state that the disciplinary authority in respect of Board employees is the Board, this cannot mean that other bodies or institutions to which Board employees are seconded cannot assume disciplinary powers over them. Therefore the Tanga RTC to which the respondent was posted, had full disciplinary authority over him and the steps which they took against him were fully in accord with their powers. The appellant Board of course retained the final authority over the respondent in such serious matters as dismissals and terminations, but even in these matters, the appellant Board could generally act only on the recommendation of the companies concerned, because it is the companies who would be dealing with the employee on a daily basis. What happened then was that the Tanga RTC to which the respondent was posted by the appellant Board, instituted disciplinary

proceedings against the respondent, he was invited to make representations in his own defence which he did both in writing and verbally before the Management Committee. The respondent may have doubted the effectiveness of his defence thinking that it was only cosmetic, but this is far from saying that he was not given a hearing. On receipt of the record of proceedings and the recommendations from the Tanga RTC, the respondent's immediate disciplinary authority, it would have been pointless, indeed a waste of time, to reopen the proceedings afresh by summoning the respondent. We do not see what such an exercise could have achieved, because the respondent could only have repeated what he had stated in writing and before the Management Committee of Tanga RTC, unless of course he decided to come up with after thoughts. The appellant Board of Directors was therefore perfectly entitled not to summon the respondent afresh and only considered what he had written and said in his defence before the Tanga RTC, his immediate disciplinary authority.

Dr. Lamwai attacked the appellant Board in another respect that its Board of Directors did not meet to consider the recommendations of the Tanga RTC, and that therefore its Director - General acted unilaterally. This contention is however not borne out by the record which indicates at page 70 that the appellant's Board of Directors did meet on Thursday 24th October 1991 and among other things deliberated and approved the summary dismissal of the respondent.

But perhaps without realising the contradiction, the learned judge made a finding that the respondent was heard in his own defence, only that the appellant did not give sufficient weight to it. The learned judge stated:

> And it appears that defendant did not seriously consider plaintiff's written defence (Exh. P2) though it claims to have done so. Otherwise defendant would not have decided as it did. I am saying this because the alleged accusation of gross professional negligence and misrepresentations of facts is based on the revelation that plaintiff was not preparing bank reconciliation reports in respect of CRDB, account No. 1205. Plaintiff gave sufficient explanation to this anomaly. He blamed CRDB for failure to submit monthly statements in respect of the said account. And attached to his defence were a number of annexure being copies of letters which he writes to the Branch Manager complaining on this issue. Had the defendant considered this defence it would not have agreed with the finding of the meeting of the Executive Committee of Tanga RTC that plaintiff conspired with some employees of CRDB Tanga Branch to conceal some financial transactions on the account. It is a fact that it is not possible to prepare bank reconciliation without getting the relevant bank statements. In his testimony before this Court, plaintiff claimed that during the material time there had been general complaint from customers of CRDB Tanga branch on non availability of their respective monthly bank statements. No effort was done (sic) by the defendant to refute this claim.

It is obvious from this statement that the learned judge had completely changed the nature of the respondent's claim from one of unlawful termination because of breach of the rules of natural justice, i.e. failure to give him a hearing and therefore condemning him unheard to one based on the merits of the case i.e. misdirection on the respondent's defence. The two defences are for obvious reasons mutually exclusive. If as in this case the claim is that the termination is wrongful for non compliance with rules of natural justice i.e. denying the respondent the right of being heard, the complaint is merely on the procedure adopted not on substance, hence the remedy cannot be an award of damages as claimed by the respondent, the proper remedy is to order a fresh inquiry in which the proper procedure would be followed. If the complaint is based on substance i.e. inadequate consideration or misapprehension of the defence case, the remedy is to order reinstatement or damages if the employer failed to reinstate the worker. To award damages in the former case as the learned judge did in this case, amounts to awarding possible misconduct. But as we have already

found on the evidence, the respondent's defence was heard by his immediate disciplinary authority on which a recommendation to dismiss him was made. The appellant Board as the ultimate authority properly considered the proceedings before the Executive Committee of Tanga RTC and acted on its recommendations.

For these reasons, we accept the complaint in ground 2 of the memorandum and hold that the learned trial judge erred in law and in fact in holding that the respondent was not afforded an opportunity of being heard.

Our findings on *grounds 1 and 2* make it unnecessary for us to consider the complaints in *ground 3*. In ground 4 the appellant Board complained that the learned trial judge misdirected himself on the law in holding that the defence of privilege was not available to the appellant in the circumstances of this case.

The alleged defamatory letter was written by the appellant Board to the National Board of Accountants and Auditors, the respondent's controlling body after the Board had dismissed the respondent from its employment. The letter was in the following terms:

"BIT/CA/CONF.PF/523 30th March 1992

The Registrar,
NBAA,
P.O. Box 5128,
DAR ES SALAAM (Attention: Mr. F.S. Kutolie)

Dear Sir,

RE: EMPLOYMENT OF ACCOUNTANTS AND AUDITORS
IN THIS COUNTRY

We refer to your letter dated 15th October 1991 under Ref. NBAA/CF/EDC.1/1 addressed to the General Manager, Tanga RTC and Tanga RTC's letter Ref. RTC. GM/30/126/91, dated 23rd October 1991 addressed to you.

We wish to confirm that Ndugu Mapenzi D.K. Yonah who was Chief Accountant of Tanga RTC and earlier interdicted was summarily dismissed in November 1991. Ndugu Mapenzi was dismissed on the following charges.

a) Demonstrating gross professional negligence and misrepresentation of facts leading to Tanga RTC's loss of purchasing power.

b) Deliberately, and in an organized and systematic manner, concealing mismanagement of the company's finances thereby leading to a pecuniary loss of shs. 3.3m. property of Tanga RTC.

c) Colluding with parties outside the company to defraud the company of the said shs. 3.3m.

The above deeds, which are unbearable to our group of companies, were unearthed through an investigation into the management of Tanga RTC's CRDB Account and the Transport Wing. A photocopy of the Report is herewith attached for your ease of reference.

Assuring you of our highest cooperation in regulating the conduct of Accountants and Auditors in this country.

Yours faithfully,

M.R. Mfikirwa
for DIRECTOR GENERAL

The respondent stated that by publishing the above words, the appellant was stating that he, respondent, was a dishonest unprofessional man who is prepared to undermine his employer for the sake of stealing from such employer and that the publication of such words seriously

injured his credit as an accountant and exposed him to disciplinary action by his professional body, the National Board of Accountants and Auditors.

At the trial, the appellant's Director of Administration and Manpower Development, Mr. Sylvanus Hyera, told the trial Court in connection with this allegation that they wrote the letter to the NBAA in response to an enquiry which it made on the respondent's conduct. The NBAA wanted to be furnished with a report on the respondent after hearing of some allegations of professional misconduct by the respondent and that for this reason they communicated to the NBAA on their decision against him. Mr. Hyera could therefore see nothing wrong with this. But the learned trial judge rejected this defence, saying that even if the appellant had a duty to report to the NBAA, it did not act fairly and honestly because it was made without sufficient enquiry into the allegations. For instance, the learned judge went on, the allegation about the loss of sh. 3.3m was a wild allegation, "a clear demonstration that the defendant was all out to make sure that plaintiff was struck from the register of Accountants and Auditors."

We wish at this stage to trace the history of the alleged defamatory letter quoted above. Sometime in 1990, the appellant Board initiated an internal audit of Tanga RTC Account No. 1205 with the then Cooperative and Rural Development Bank (CRDB) Tanga branch. Following this audit, serious discrepancies in the form of concealments and falsification of documents concerning this account were unearthed. The respondent as Chief Accountant of Tanga RTC was held accountable and the Executive Committee of Tanga RTC interdicted him pending the completion of a full scale investigation. The Tanga RTC notified the appellant Board of this interdiction. But it appears that after interdicting the respondent on 18th June 1991 and this interdiction reported to the appellant Board, neither the Tanga RTC nor the appellant Board reported the incident to the respondent's professional controlling body, the NBAA. But according to the record, the NBAA itself heard of the respondent's suspension through it own

sources and wrote the General Manager of Tanga RTC the following letter on 15/10/91:

NATIONAL BOARD OF ACCOUNTANTS AND AUDITORS
TANZANIA
NIC INVESTMENT HOUSE 4TH FLOOR INDEPENDENCE AVENUE
P.O. BOX 5128
TELEGS: NBAA DAR ES SALAAM
TELEPHONE: 31466/7/8

Our Ref. No. NBAA/CF/EDC.1/1 Date: 15th October, 1991

The General Manager,
Tanga RTC,
Box 116,
TANGA

Dear Sir,

RE: EMPLOYMENT OF ACCOUNTANTS AND AUDITORS IN THIS COUNTRY

The above subject refers.

The National Board of Accountants and Auditors has learnt through a reliable source that Mr. Mapenzi D.K. Yonah who according to our records is employed by your Company as a Chief Accountant has been suspended/terminated from your employment.

The NBAA through its establishing Act of 1972, has been charged with the responsibility of regulating the conduct of Accountants and Auditors in this Country. We would therefore appreciate if you could confirm whether the allegations are correct and if it is true what are the charges against him to enable us determine whether there was any professional

misconduct, negligence or violation of the NBAA's Code of Conduct. Your early response will highly be appreciated.

Yours faithfully,

F.S. Kutolie
for Registrar.

On receipt of this letter, the General Manager Tanga RTC responded by informing the NBAA by his letter of 31/10/91 as to what had happened and the action taken against the respondent. This letter is not part of this record, but it appears that it was copied to the appellant Board, because the letter had its details. At this stage (31/10/91) when RTC wrote this letter to NBAA, the respondent's affair had not been finalised, he was still on interdiction. Therefore when this affair was finalised by the respondent's dismissal, the appellant Board as the respondent's highest authority, informed the NBAA of the respondent' s fate in their letter quoted above in full. This is the letter which is being complained against, that it is defamatory and that it was written with malice and that therefore the defence of privilege was not available to the appellant Board. When the NBAA received this letter from the appellant Board, they wrote the respondent a letter which is in the following terms:

NATIONAL BOARD OF ACCOUNTANTS AND AUDITORS
TANZANIA
NIC INVESTMENT HOUSE 4TH FLOOR
INDEPENDENCE AVENUE
P.O. Box 5128
TELEGS: NBAA DAR ES SALAAM TELEPHONE: 31466/7/0

Our Ref. No.NBAA/CF/EDC.1/II Date: 7th May, 1992

Mr. Yonah Mapenzi,
c/o Mrs. O. Mapenzi,
Box 178,
TANGA.

Dear Mr. Mapenzi

RE: YOUR EMPLOYMENT WITH RTC – TANGA AS CHIEF ACCOUNTANT

We have learnt through BIT's letter to us with Ref. No. BIT/CA/ CONF./ PF.523 of 30th March, 1992 that you were first interdicted and then summarily dismissed from BIT's employment in November, 1991.
We have been informed that the charges against you were as follows:

1. Demonstrating gross professional negligence and misrepresentation of facts leading to Tanga RTCs loss of purchasing power.
2. Deliberating, and in an organised and systematic manner, concealing mismanagement of the company's finances thereby leading to a pecuniary loss of shs. 3.3 million property of Tanga RTC.
3. Colluding with parties outside the company to defraud the company of the said shs. 3.3 million.

The charges levelled against you are indeed serious and very unethical to professional accountant like yourself.

The Board therefore seeks a plausible explanation from you as to why your issue should not be deliberated by it and appropriate disciplinary punishment metted against you.

We expect to receive your written explanation within 3 weeks from the date of this letter.

Yours faithfully,

L.S.L. Utouch
REGISTRAR

c.c: 1. Director General,
Board of Internal Trade,
P. O. Box 883,
DAR ES SALAAM - (Att. Mr. M.R. Mfikirwa)

2. The General Manager,
Tanga RTC,
Box 116,
TANGA

As indicated, the learned judge agreed with the respondent because, in his view, the appellant was actuated by malice when it wrote the alleged defamatory letter to the NBAA concerning the respondent. What then is the law which is applicable in such circumstances? The General rule is that in certain circumstances, it is thought desirable that reflections on the reputation of another although untrue, should not give rise to tortuous liability, provided that they were not published with malice. This is what is known in law as the defence of qualified privilege and this malice can be proved by the plaintiff by showing either that the defendant did not believe in the truth of his statement or that he was recklessly careless whether the statement was true or not. But even here, there is an exception to the rule that a person who does not believe in the truth of his statement forfeits the privilege, for instance in circumstances where the obligation to communicate the defamatory matter is so pressing that the defendant should be free to do in the public interest where such information as the defendant has, is properly requested by another concerned in the matter. In the case of *Clark v. Holyneux (1)* at page 244 Lord Bramwell stated this exception in the following words:

> A person may honestly make on a particular occasion a defamatory statement without believing it to be true; because the statement may be of such a character that on that occasion it may be proper to communicate it to a particular person who ought to be informed of it.

Other instances which can demonstrate malice and therefore destroy the privilege include the introduction of extraneous matter to the subject in hand, unreasonable publication of the defamatory statement to persons outside the scope of the privilege and exceeding the limits of the privilege, for instance where statements unconnected with the main statement are introduced. But the general principle governing the defence of qualified privilege was neatly put by Lord Uthwart in *Perera v. Perris (2)* at page 20 as "they, (the defences of qualified privilege) exist for the common good of Society" and PARKER B. had more than a hundred years earlier described the nature of this defence in *Toogood v. Sprying (3)* at page 193 in the following words:

> The defendant is liable for a defamatory publication unless it is fairly made by a person in the discharge of some public or private duty, whether legal or moral in the conduct of his own affairs, in matters where his interest is concerned. If fairly warranted by any reason, occasion or exigency and honestly made, such communications are protected for the common convenience and welfare of society; and the law has not restricted the right to make them within any narrow limits.

It is on this principle that instances of qualified privilege include fair and accurate reports meant to provide for or safeguard the interests of any trade, business, industry, or profession of persons engaged in them.

On this analysis of the law, we are satisfied that if the learned judge had correctly directed his mind on the law applicable, he would have found that the appellant's letter to the NBAA came squarely within the remarks of Lord Bramwell in *Clark v. Holyneux* (1), the general principle laid down by Lord Uthwart in *Perera v. Perris* (2), the statement

of Parker J. in *Toogood v. Sprying* (3) and, nearer home and time, within the statement of the law by Georges C.J. in *Chimala Stores v. Zambia Tanzania Road Services Ltd.* (4) He would also have found that the appellant Board did not lose the defence of qualified privilege because there were no extraneous matters in the letter, it was not published to any body outside the scope of the privilege, and the privilege was not exceeded. The learned judge would have found that the letter was a fair and accurate report on matters the appellant Board had been requested to furnish information on for the purpose of safeguarding the interests of the profession of accountancy. As the learned judge will no doubt realise on reflection, there are many classes of statement which can be held to be protected by the defence of qualified privilege as set out in *Gatley on Libel and Slander*, 5th Ed. p. 190, where we think the present case falls in Class 2, - that "statements made on a subject matter in which both the defendant and the person to whom the statements are made had a legitimate common interest." Lord Fisher in the case of *Hunt v. Great North Railway Company (5)* at page 191, expressed the general principle as follows:

> A privileged occasion - arises if the communication is of such a nature that it could be fairly said those who made it had an interest in making such a communication, and those to whom it was made had a corresponding interest in having it made to them - when these two things co exist, the occasion is a privileged one - In other words, there must be a reciprocity of interest.

This case is such a privileged one; the appellant Board as the respondent's highest authority, had unearthed through an internal audit what they believed to be gross professional misconduct on the part of the respondent, on request, they reported this to the NBAA the respondent's professional controlling body. They never published this information to anyone else outside this controlling professional body and the BIT system. The NBAA as a controlling professional body

had an interest in the matter. The reciprocity of interests between the appellant Board and the NBAA was thus complete.

We think we must add that if in the face of this enquiry from the respondent's controlling professional body, the Tanga RTC and the appellant Board had remained silent without providing the information requested, the two bodies would have been very irresponsible. Indeed, even without any enquiry from the respondent's professional body, they were still duty bound to report to it both the incident and the respondent's fate. The publication of the letter to NBAA would still have been privileged.

Accordingly, we agree with the complaint in ground 4 that the learned trial judge erred in law in holding that the defence of privilege was not available to the appellant Board in the circumstances of this case. With these findings on grounds 2 and 4 we are not called upon to consider the complaints in grounds 5 and 6.

For all these reasons, we allow the appeal by setting aside the whole of the judgment and decree of the High Court and award the appellant Board the costs of this appeal and in the Court below.

MIYOMBO SAHANI *v.* NKANDI MAKUNE

HIGH COURT OF TANZANIA
AT MWANZA
(Lugakingira, J.)

CIVIL APPEAL No. 5 OF 1991

(Appeal from the District Court of Kwimba at Ngudu, M.R. Mlawa, Esq., DM, in Civil Case No. 8 of 1990)

Contract – Failure of Performance – Contract to supply a bull to do farm work – Bull supplied not capable of farm work and storms back to supplier – Whether contract performed and consideration furnished

Civil Practice and Procedure – Adjournment – Trial court refusing an adjournment and proceeding with trial in the absence of defendant's advocate – Whether proper

Contract – Damages for breach of contract – Damages awarded for loss of expected harvests without evidence of the extent of such loss – Whether properly awarded

This case arose from a contract for the sale of a bull that would do farm work. The bull supplied turned out to be wild, not capable of doing farm work, and it stormed back to the seller, and he kept it. The buyer sued for breach of contract and was awarded the purchase price and damages for inconvenience and for loss of expected harvests. At the trial the hearing of the case had proceeded in the absence of the appellant's advocate and on appeal it was argued, *inter alia*, that there was no failure of performance as a bull was actually delivered for the money paid.

Held:

(i) The trial court was justified in refusing an adjournment and proceeding in the absence of the appellant's advocate because there was no information whether the advocate was still on the case and when, if at all, he would be available;

(ii) The agreement was for sale of a bull capable of pulling a plough, not just any bull; as the bull supplied was wild and unable to do the work for which it was purchased, and it went back to the owner who then kept it, this was fundamental failure in the terms of the agreement;

(iii) As the animal supplied was not the one bargained for, it amounted to a failure of consideration.

Appeal allowed in part

JUDGMENT

(Dated 15 September 1997)

Lugakingira, J.: This appeal arises from the decision of the District Court of Kwimba in a suit founded on contract. On 10/11/89 the respondent purchased a bull from the appellant for 15,000/= for farm work, but when the animal was put to work it balked, behaved wildly and even sauntered back to its former owner, the appellant. The respondent demanded a replacement or a refund of his money but the appellant ignored, neglected or refused to comply. The respondent therefore instituted this proceeding claiming: (i) 15,000/=, the bull's purchase price, (ii) 40,000/= for 20 bags of maize he had expected to harvest, (iii) 40,000/= for 20 bags of yellow gram he had also expected to harvest, (iv) 5,000/= for inconvenience, (v) costs and (vi) any other relief. The claims were allowed almost in full, that is, to the extent of 100,000/= plus costs.

The decision aggrieved the appellant who came to this court with a six-point memorandum of appeal. I think, however, that only three points merit attention, namely, that the suit was tried in the absence of the appellant's advocate, that there was no failure of performance as a bull was delivered for the money paid, and that the assessment of damages was unscientific. I will consider these points seriatim.

It is true, in the first place, that the suit was tried in the absence of the appellant's advocated, then Mr. Rugarabamu. But it is equally clear that the decision to proceed without him was not whimsical but a judicious mind was brought to bear upon it. On 15/11/90 Mr. Rugarabamu appeared for the hearing, as did the respondent, but the appellant did not appear. This forced Mr. Rugarabamu to pray for an adjournment to 15/1/91. On that date, though, Mr. Rugarabamu did not turn up and did not communicate to the court his inability to appear. The appellant himself appeared but compounded the matter by stating that he had not communicated with Mr. Rugarabamu for a long time. It was in these circumstances that the Trial Magistrate decided to proceed with the trial in the absence of the advocate. I think he was justified in doing so. To allow or to refuse an adjournment is an exercise of discretionary power and so long as this power is exercised judiciously, an appellate court will not interfere. The Trial Court was in this case placed in a dilemma; it had no information whether the advocate was still on the case – since the appellant's own utterances suggested a severance of communication – and it did not know when, if at all, he would be available. In these circumstances the decision to proceed without the advocate was justly made.

The second point is equally without substance. The agreement between the parties was for the supply of a bull capable of pulling a plough, but not any bull, leave alone a mad one. The appellant supplied a bull which was apparently wild or a stranger to draught work and it capped its intractability by storming back to the appellant who received and kept it. Since this animal was incapable of the work for which it was intended, there was a fundamental failure in the terms of the agreement which entitled the respondent to rescind the agreement and sue for damages. The appellant would have done well to supply another bull or to refund the respondent's money because the animal supplied was not the animal bargained for and this amounted to a failure of consideration. The proceeding was therefore justified.

Lastly, I think there is merit in the challenge on the damages. The purchase price was undisputed and I say nothing in that connection. It is noted, however, that the evidence on the prospective harvests and their value was either speculative or hearsay. The respondent ought to have adduced concrete evidence of his past harvests and sales; instead he called a field assistant to say that he had seen the receipts. The receipts themselves should have been tendered in evidence, so the story of the field assistant was inadmissible in the absence of any suggestion that the receipts were no longer in existence. I therefore think it was improper to award full damages on the prospective harvests in the absence of reliable and legal evidence. I would, on my part, award the respondent 20,000/= inclusive of the 5,000/= for inconvenience as consolation.

The appeal thus succeeds in part and the respondent will be paid in all 35,000/= and costs at the trial. I award no costs in this appeal.

JOSIAH BALTHAZAR BAISI AND 138 OTHERS
v.
ATTORNEY GENERAL AND OTHERS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mackanja, J.)

MISCELLANEOUS CIVIL CAUSE No. 39 OF 1997

Judicial Review – Practice and Procedure – Application for leave to apply for prohibition and mandamus – Whether affidavit supporting the application for leave must fully and frankly disclose all material particulars

Prerogative Orders – Locus Standi – Application for leave to apply for prohibition and mandamus – Locus standi where the objective of

application is to defend the applicants' interest in land to be acquired for road expansition – Whether all applicants have to establish their titles to the parcels of land they claim

Prohibition and Mandamus – Locus Standi – Meaning of locus standi – Whether and when locus standi can be raised as an issue in proceedings for prerogative remedies

Prerogative Orders – Prohibition and mandamus – Purpose and essence thereof – Whether prerogative orders can be granted in cases where civil remedies in the nature of civil process are available

Civil Practice and Procedure – Security for Costs – Resident applicants ordered to deposit security for costs – Whether proper

The applicants applied for leave to apply for the prerogative orders of prohibition and mandamus. Their application was supported by the affidavit of the 1st applicant, Josiah Balthazar Baisi, sworn on his own behalf and on behalf of his co-applicants. They contended that they were lawful owners of the parcels of land along the Morogoro Highway that the second and/or third respondents wanted to acquire for purposes of road expansion. The respondents raised a four-point preliminary objection against the application: firstly, that the affidavit in support of the application did not give a full and frank disclosure of the facts; secondly, that there were applicants who did not own property within the highway corridor and road reserve and as such had no *locus standi*; thirdly, that the application was not a case that could be determined by way of judicial review; and fourthly, sought in the alternative, that the applicants provide security to cushion the respondents against escalating construction costs pending determination of the application.

Held:

(i) Apart from the applicants' obligation to make a full and frank disclosure of all material facts on which they rely in their application, uberrima fides is also required before leave is granted;

(ii) It is a matter of high constitutional principle that if there is good ground for supposing that a government department or public authority is transgressing the law, or is about to transgress it, in a way that offends or injures thousands of subjects, then any one of those offended or injured can draw it to the attention of the courts of law and seek to have the law enforced, and the courts in their discretion can grant whatever remedy is appropriate;

(iii) Today, *locus standi* is not viewed in its original narrow meaning; it has been expanded to include "sufficient interest" so that any one with sufficient interest may seek a remedy on behalf of others who are also injured;

(iv) *Locus standi* can be raised as an issue during the preliminary stage in the application for leave; at that early stage the court may find, in simple cases, that an applicant for judicial review has no right of being heard; in cases that involve complex issues, the question of sufficiency of interest has to be considered together with the legal and factual context of the application;

(v) If the application for prerogative orders is made, the question of locus standi will then be determined regarding those who passed the test at the threshold stage, those who can establish that, indeed, they had a grievance;

(vi) Quantum of compensation cannot be proved in an application for judicial review; the applicants' right to compensation is inchoate, they are yet to prove it and this cannot be done in an application like this one;

(vi) Orders for security for costs are aimed at non-resident plaintiffs in terms of Order XXV of the Civil Procedure Code 1966, which is not the case here.

Application dismissed

Cases referred to:

(1) *O'Relly and Others v. Mackman and Others* [1983] 2 A.C. 237

(2) *Mecaina Establishment v. Commissioner of Income Tax and Six Others* HC-DSM-Misc. Civil Case No. 156 of 1993 (unreported)

(3) *R. v. Kensington Income Tax Commissioners, ex parte Princes Edmond* [1917] 1 K.B. 486

(4) *R. v. Inland Revenue Commissioners, ex parte National Federation of Self Employed and Small Businesses Ltd* [1922] A.C. 617

(5) *R.. v. Greater London Council, ex parte Blackburn* [1976] 1 W.L.R. 550

Professor G. Mgongo Fimbo, for the Applicants
Mr. Werema and *Mr Chidowu*, for the Respondents

RULING

(Delivered 8 October 1997)

Mackanja, J.: Josiah Balthazar Baisi and 137 others have lodged a chamber application in which they pray for leave to apply for the prerogative orders of prohibition and mandamus. The application is supported by the affidavit of the said Josiah Balthazar Baisi, to whom I will henceforth refer alternately by name as the first applicant.

The affidavit supporting the application contains sixteen paragraphs. The first two are devoted to lay the foundation for the communality of interest which has galvanized the applicants to act in unison. Indeed it also appears that it is that common interest, if it exists at all, they seek to protect. It is in that behalf that Josiah Balthazar Baisi has been authorized by his co-applicants to swear the affidavit supporting the application. He swears in paragraph two of that affidavit that he is the chairman of the COMMITTEE AGAINST PROPERTY DEPRIVATION WITHOUT FULL AND FAIR COMPENSATION THROUGH DANISH "AID" TO TANZANIA. It seems, as he swears, that the first applicant is conversant with the facts to which he deponed by reason of the leadership position he enjoys in that Committee.

Paragraphs 3,4,5,6 and 7 of the first applicant's affidavit contain testimony relating to his own interest in the suit land, He swear that he has owned his part of the suit land since 1950 and it is a deemed right

of occupancy known as plot No. 8 Block G, Kimara Dar es Salaam. His parcel of land, which lies between 0 and 6.22 mile is surveyed and is within a distance of seventy five (75) feet from the centre of the Morogoro highway. Documents relating to the survey of that parcel of land are annexure 1A to IB to the applicant's affidavit. Point "0" referred to in paragraph 5 is the Askari Statue or monument in the city of Dar es Salaam. It is sworn further that in the course of his apparently undisturbed possession the applicant developed the land by erecting both commercial and residential premises, and that he executed those works without warning or objection from all or any of the respondents.

Paragraphs 9 and 10 specifically relate to matters of a general nature concerning interest in the suit land that the other applicants allege they enjoy severally. For instance, it is sworn in paragraph 8 that the majority of the parcels of land that are occupied by the other applicants lie between 6.22 and 23.12 miles from the Askari Statue and within a distance of between seventy – five (75) feet and four hundred (400) feet from the centre of the Morogoro highway. According to paragraphs 9 and 10 of the affidavit the bulk of the land occupied by the other applicants is also held under deemed rights of occupancy, and that the rest of those lands are held under rights of occupancy granted under the Land Ordinance Cap. 113. In common with the first applicant's own land, it is sworn that the other parcels of land have been developed without let or hindrance from anyone, with residential and commercial buildings and farms.

The peaceful possession of the suit parcels of land changed into uncertainty when sometime in 1991 the second respondent and /or the third respondent marked with an "x" all buildings then standing on the suit land, denoting Government intention to demolish them. It seems that it was not desired to effect that intention immediately. For it was on Friday, the 11th day of July, 1997 that the Deputy Minister of Works announced the Government's resolve to effect that intention when he made a statement in the National Assembly which, according to paragraph 18 of the affidavit, contained the following directives, that is to say:

(1) That Government intends to undertake extensive expansion of the Morogoro Road between Ubungo and Kimara/Temboni.

(2) That the Ministry of works required the applicants to demolish, at their own cost, their houses, buildings and other structures before 1st September 1997.

(3) That the Ministry of Works would it self carry out the demolition after 1st September, 1997.

(4) That no compensation would be paid to the applicants and

(5) That the applicants would bear the cost of such demolition by the Ministry.

It is sworn is paragraph 13 of the supporting affidavit that on diverse dates as reported in the print media, annexures marked IIA, IIB, IIC, IID, IIE, IIF, IIG and IIH, that the Deputy Minister of Works and on behalf of the second and third respondents, repeatedly stated that the applicants would not be paid compensation upon the demolition of their buildings and other structures. What is more, as sworn is paragraph 15, the respondents have arrogantly ignored the applicants' protests. Copy of the letter of protests is annexture III to the affidavit. The applicants are now advised by their advocates that the actions threatened by the second and the third respondents are illegal to the extent that they contravene provisions of the Highways Ordinance, Cap. 167, the Land Acquisition Act, 1967, and the Constitution of the United Republic of Tanzania 1977. It is in that connection that professor G. Mgongo – Fimbo the applicants' learned counsel, has taken out a chamber summons on their behalf that spells out the relief they seek.

The respondents have opposed the application first, by notice of preliminary objection, secondly, by counter affidavit. There are four points of preliminary objection. First, that the affidavit in support of

the application does not give a full and frank disclosure on the following facts:

(a) Names of applicants who hold title deeds or describe the properties of each in a sufficient extent as to enable the respondents to prepare their defence:

(b) The circumstances leading each of the applicants to the occupation of the land within the highway corridor and reserve in view of the fact that occupiers thereof were adequately compensated in the 1970's;

(c) Whether or not the applicants had been issued with building permits for development of permanent structures thereon;

(d) The whole of Dar es Salaam within which the disputed area is located has been declared a development area and, as such, deemed rights of occupancy have been extinguished.

The first preliminary objection concludes that the affidavit in support of the application unfairly prejudices the respondents in making their defence and to that extent, it should be struck out.

Secondly, it is averred by the respondents that there are applicants who do not own any property within the highway corridor and road reserve, and consequently, that they have no standing to bring the application and that their inclusion is an abuse of the court process. Thirdly, that this is an unfit case to be determined by way of judicial review. That the respondents have noticed that some of the certificates of occupancy issued to some of the applicants are not genuine.

Fourthly, in the alternative and without prejudice to the first three preliminary points of objection, the respondents pray that the applicants be ordered to provide security to cushion the respondents against increased construction costs that will arise out of the delay in commencing

the works due to the applicants' objections because on a balance of convenience the respondents are likely to be more adversely affected than the applicants. And if I may say now, all that is contained in the counter affidavit that was sworn by Humprey G. Urio who, for the time being, is the Director of Roads in the Ministry of works, is an elaboration of the preliminary objections put in evidential form. So I will consider the counter affidavit in tandem with the preliminary objections.

The preliminary objections raise very fundamental points of law. A decision on them will entail all that this court is required to do at this preliminary stage of the proceedings. Necessarily, therefore, such a decision will consider the practice and procedure that govern an application such as this one. In order to be constant I will consider the objections seriatim.

Mr. Werema, learned Senior State Attorney, who appears for the respondents and Professor G. Mgongo Fimbo who advocate for the applicants, agreed that the practice and procedure we apply in applications such as this one are identical to that obtaining in England. Because of the identical nature of these procedures Mr. Werema has invited me to consider English case law when deciding this applieation. Of course, I would have done so even without such an invitation. It is Mr. Werema's submission that according to that procedure the affidavit supporting the application for leave to file an application for prerogative orders must make a full and frank disclosure of all material particulars in dispute. Failure to do so, he argues, will be sufficient ground for dismissal of the application. He has cited one English decision in support of his submissions: *O'Relly and Others v. Mackman and Others (1)* It is his contention that the affidavit of Josiah Balthazar Baisi, the first applicant, does not meet that test because when the Dar es Salaam – Morogoro highway was developed in 1972 all owners of land who were affected were compensated. It was therefore incumbent upon the applicants to show how they re-occupied an area in respect of which compensation was paid. This failure, according to Mr. Werema, indicates that the affidavit supporting the application does not contain a full and frank disclosure of material facts.

Mr. Werema has also pointed out that in a planned area like Dar es Salaam, the Town and Country Planning Ordinance, Cap 373, requires anyone to obtain a building permit before he puts up a building. He contends that there is nowhere in the affidavit supporting the application where it is disclosed that the applicants lawfully constructed their house and other structures which are the subject of this application.

There is also the question of the deemed rights of occupancy. Mr. Werema contends that the applicants have failed to make their case in that regard because the affidavit of the first applicant does not disclose how the purported deemed rights of occupancy were acquired legally. Indeed, it is learned Senior State Attorney's submission that the list of applicants includes names of people who are not within the road corridor. Their names, he says, are listed in paragraph 6 of their counter affidavit.

According to the learned Senior State Attorney, the inclusion of such names should lead to a finding that the disclosure is not sufficiently frank as the affidavit includes names of people who are not covered at all.

It would appear from his submissions that Professor Fimbo does not view a frank disclosure of material facts as a basic consideration which has been contravened by his client. According to him section 17A of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Cap 360, has not done away with the preliminary character of an application such as this one. He submits that although the Attorney General must now be made a party to these proceedings, all that is necessary at this stage is for the applicants to establish arguable or triable issues. He derives support for this proposition from the decision of this Court in *Mecaiana Establishment v. Commissioner of Income Tax and Six Others (2).*

He has therefore invited me to allow this application because it has at least three arguable issues, namely:

(1) Whether the applicants own interest in the suit parcels of land;

(2) Whether the applicants have property in the houses, buildings and

other structures within a distance of 400 feet from the centre of Morogoro Road, and

(3) Whether the applicants or any of them are entitled to compensation or otherwise for the houses, buildings and other structures due to be appropriated for the purpose of the Highways Ordinance, cap 167.

According to Professor Fimbo evidence that there are triable issues includes the fact that the respondents concede in paragraph 14 of their counter affidavit that the Government has threatened to demolish the applicants' houses, buildings and other structures without first paying them full and adequate compensation.

So before me there are two competing propositions. The one is as submitted by Mr. Werema and the other is as submitted by Professor Fimbo. I have given careful consideration to those propositions which I think are sound. They are worth considering although in saying so I do not intend to say that those propositions alone, singly or in combination, would be sufficient ground upon which leave would or would not be granted. On the other hand, if taken at face value Mr. Werema's contention is rather pre-emptive of the application for the prerogative orders. What he has urged me to accept are matters the legitimate forum of which would be in an application for the prerogative orders. As I do not intend to prejudice the case one way or the other, I am satisfied that for the purposes of the present application the applicants have made a sufficiently full and frank disclosure.

Apart from the applicants obligation to make a full and frank disclosure of all material facts on which they rely, I accept Mr. Werema's submission that *uberrima fides,* that is, utmost good faith, is required. It is, in fact, a mandatory requirement. This position of the law as applicable in England was made clear as long ago as in the case of *R. v. Kansington Income Tax Commissioners, ex parts Princes Edmond (3)*. But, as pointed out by the learned authors of *Judicial Review of Administrative Action* by S.A. De Smith, 2nd Edition,

which is the only edition I could lay hands on from our Library, at page 439:

> ...*Uberrima Fides* is required and leave will not be granted if there has been a deliberates misrepresentation or concealment of material facts in the applicant's affidavits....

I have perused the applicants' affidavit with due care. I am satisfied that affidavit does not show that there is deliberate misrepresentation or concealment of facts. All that such a situation exists are contentious matters. There is for instance the claim that some of the applicants were compensated in 1972 or that yet others have no property within the disputed lands. To me these are matters that require proof by concrete evidence. I find no evidence in the counter affidavit that proves these allegations. I am satisfied, therefore, and I find as a fact that the first applicant's affidavit meets the requirement of *Uberrima fides*. It is in this vein that I uphold Prof. Fimbo's submission on this point.

If not considered carefully a decision on the various paragraphs of the first point of objection will pre-empt an application for the prerogative orders if such an application will be filed. Matters that are raised in paragraphs (b), (c) and (d) in the first objection will have their legitimate place in that other application. By and large therefore, the first objection would fail.

The second preliminary objection relates to the *locus standi* of the applicants. Mr. Werema has argued in this connection that the affidavit of Josiah Balthazar Baisi does not disclose that all the numerous applicants have a right to appear and to be heard in these proceedings, namely that they have no *locus standi.* If I understand Mr. Werema well, which I do, he is of the view that the applicants had to establish their title to the parcels of land they claim before leave is granted them to file an application for the prerogative orders. Without doing so they have no *locus standi.* Professor Fimbo has traced the law relating to

how the Morogoro Road became a highway and how his clients as owners or reputed owners or people being in actual possession of land are entitled to compensation before such land is appropriated by the Government. So, to him, his clients have *locus standi.*

I think it is important to make a distinction between *locus standi* as regards claims of an individual nature for a private law remedy and claims the purpose of which is to get a relief or remedy for the public good which is based on public law. The present application falls under the second category where an individual or several individuals who had suffered damage may be allowed to file an application for leave for an application for judicial review for the benefit of a segment of society who have suffered a similar injury. In this connection the decision in the England case of *Reg. v. Inland Revenue Commissioners, ex parte National Federation of Self Employed and Small Business Ltd (4)* at p. 641 is instructive. In that case Lord Diplock, quoting Lord Denning in *Reg. v. Greater London Council ex parte Blackburn (5)* at p. 559, endorsed the following principle which I propose to emulate in these proceedings:

> I regard as a matter of high constitutional principle that if there is good ground for supposing that a government department or public authority is transgressing the law, or is about to transgress it, in a way which offends or injures thousands of Her Majesty's subjects, then any one of those offended or injured can draw it to the attention of the courts of law and seek to have the law enforced, and the courts *in their discretion* can grant whatever remedy is appropriate (Italics supplied by Lord Dip lock).

So, even if all the applicants had not joined the first applicant, he alone or with several others would have been entitled to apply for leave to apply a remedy which would cover even those who did not come to court for redress.

To day *locus standi* is not viewed in its original narrow meaning. It has been expanded to include "sufficient interest," so that anyone

with sufficient interest may seek a remedy on behalf of others who are also injured. The expression "sufficient interest" was given the widest possible meaning in the *R. v. Inland Revenue Commissioners ex parte National Federation of Self Employed and Small Business Ltd (4)* when Lord Wilberforce said, at page 630:

> Before proceeding to consideration of these matters something more needs to be said about the threshold requirement of sufficient interest. The courts in exercising the power to grant prerogative writs or, since 1938, prerogative orders, have always received the right to be satisfied that the applicant had some genuine *locus standi* to appear before it. This they expressed in different ways. Sometimes it was said, usually in relation to certiorari, that the applicant must be a person aggrieved or having a particular grievance... usually in relation to mandamus, that he must have a specific legal right..., sometimes that he must have a sufficient interest.... By 1977 when R.S.C. Order 53 was introduced, the courts, guided by Lord Parker, C.J., in cases where mandamus was sought, were moving away from the Lewisham Union test of specific legal right to one of sufficient interest....

Lord Diplock shared the same views with Lord Wilberforce as can be seen from page 636 to 642. Lord Scarman said this, at page 653:

> *The interest*
> The sufficiency of the interest is, as I understand all your Lordships agree, is a mixed question of law and fact.
> .... The one legal principle, which is implicit in the case law and accurately reflected in the rules of court, is that in determining the sufficiency of an applicant's interest it is necessary to consider the matter to which the application relates. It is wrong in law, as I understand the cases, for the court to attempt an assessment of the sufficiency of the applicant's interest without regard to the matter of his complaint. If he fails to show, when he applied for leave, a *prima facie* case, or reasonable

> grounds for believing that there has been failure of public duty, the court would be in error if it granted leave. The curb represented by the need for an applicant to show, when he seeks leave to apply, that he has such a case is an essential protection against abuse of legal process. It enables the court to prevent abuse by busybodies, cranks, and other mischief–makers....

Hence, whether or not sufficiency of interest has been established is a matter that is within the discretion of the Court. The natural question that flows from these considerations is, therefore, whether the applicants or any of them have established sufficient interest. I am satisfied that they have done so. Firstly, there is the first applicant whose claim is sufficiently detailed in his affidavit. Secondly, there are those Mr. Werema has admitted are entitled to compensation. All these have a right to be heard in pursuit of their rights. It appears that there may be some confusion that hovers around the issue of *locus standi*.

It seems that this issue once decided, then whoever has been seen to have the right to be heard during the application for leave will necessarily have that right in the application for the prerogative orders. The position is not so for all cases. *Locus standi* can be raised as an issue during the preliminary stage in the application for leave. At that early stage the court may find, in simple cases, that an applicant for judicial review has no right of being heard, he has no standing, as it were. These are the kind of people Lord Denning called busybodies, cranks and mischief-makers. These are the kind of people who have no interest at all, or they have no sufficient interest to support their claim. It will, in these circumstances, be correct at the threshold, to refuse leave to apply. In cases that involve complex issues, the question of sufficiency of interest has to he considered together with the legal and factual context of the application. If the application for the pregative order is made, the question of *locus standi* will then be determined regarding those who passed the test at the threshold stage, those who can establish that indeed they had a grievance. So, although public–

spirited land owners may succeed in an application for leave on behalf of a larger group they may not of necessity succeed at the stage of the application for those orders if they cannot establish their right of standing. In view of the foregoing observations I am satisfied that the applicants have established sufficient interest to be able to apply for leave. The second objection would accordingly fail.

As to the third preliminary objection, that this is an unfit case to be determined by way of judicial review, one may say right from the outset that the answer resides in the purpose for which prohibition and mandamus is all about. Before I go to that stage I will revisit submissions by learned counsel. Mr. Werema has submitted that the application considered in the light of the first applicant's affidavit, concerns a matter that may not be decided by way of judicial review. He refers to those applicants who have certificates of occupancy and to those who will be compensated and that the latter group are already made aware of the Government decision in their favour. I understand him to mean that although such people may have grievances, they can get a remedy in private law in the nature of a civil process other than by way of a public law remedy through judicial review indeed, he went on to say that that appears to be the position because none of the applicants opposed the road expansion project. That they claim compensation which may be paid even after the works have been executed. Professor Fimbo did address emphasising the point that his clients are entitled to a remedy because their property in the suit land will be appropriated by the Government. So that the Government should be prevailed upon by way of an order of prohibition until the compensation is paid and an order of mandamus to compel the Government to pay the compensation..

Now, what really is the purpose and essence of the prerogative order of *mandamus*? There is no doubt that the order of *mandamus* may be issued to any person or body commanding him or them to carry out some public duty. The public duty envisaged in these proceedings is the statutory requirements that have to be met before

private land is acquired for purposes of public roads construction or for expansion of such roads. Professor Fimbo has made the point that the parcel of land on which it is intended to expand the Morogoro highway is owned by his clients in terms of the definition of the word "owner" in section 2 of the Highways Ordinance, Cap, 167, which includes a "reputed owner." The applicants, he argued, fall under this category. In addition the Town and Country Planning Ordinance defines the word "owner" to include "any other person in actual possession of land." His clients are covered by this definition as well, he argued. To me these defitions per se do not bestow uncontroversial rights on the applicants. They have to establish, in view of Mr. Werema's contention, and in view of the counter affidavit, that they are not trespassers after the Government is said to have paid compensation to owners of the same land when it was appropriated for construction of the same highway in 1972. They are required to establish their title to that land. Of course this will not be done in proceedings for judicial review. Indeed the applicants must show that they have at least a *prima facie* case for the quantum of their claim for compensation before the Government is compelled to effect such payment. Quantum of the compensation cannot be proved in an application for judicial review. I would therefore agree with Mr. Werema that the issue of payment of compensation in the peculiar circumstances of this case cannot be justifiable in a proceeding for judicial review. Once, as I have held, the Government has no statutory duty to pay compensation to anyone who has not established his title to land, so also the Government cannot be compelled, as is prayed for in the statement, to initiate the process of compulsory acquisition of the applicant's lands under the Land Acquisition Act, 1967. Similarly, the applicants have not shown in their affidavit and in the Statement that there exist circumstances which make justified the issuance of an order of *mandamus* to allocate alternative plots to all the applicants when they have not shown, by probative evidence, that the land earmarked for the road expansion in law belongs to them. They have to establish their interest before they can seek a public law remedy.

The above consideration have made my task easier as regards the remedy that is sought by way of the order of prohibition. According to the chamber summons and to the Statement, the purpose of that order is to restrain the Government and its agents from carrying out expansion of the Morogoro Road and from demolishing the applicants' houses, buildings and other structures before fair and adequate compensation for the same is paid in full. As I have pointed out above the applicants' right to compensation is inchoate. They have yet to prove it and this cannot be done in an application such as this one. The third objection would therefore succeed.

Finally, Mr. Werema made an alternative prayer, that if the application for leave is allowed, an order for security be made against the applicants so that they may cushion the Government against spiralling construction costs that may arise from the applicants' obstruction. Professor Fimbo considers that such a prayer is strange because orders for security for costs are aimed at non-resident plaintiff's in terms of order XXV of the Civil Procedure Code. I agree, and that said the prayer for deposit for security fails.

Upon the foregoing observations and considerations the application for leave to apply for the orders of prohibition and mandamus fails. It is accordingly dismissed. There will be no order for costs.

PRAVINCHANDRA GIRDHARLAL CHAVDA
v.
VIDYADHAR G. CHAVDA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Bubeshi, J.)

CIVIL CASE No. 136 OF 1994

Advocates – Professional Ethics – Advocate acting as an arbitrator and subsequently acting as counsel for one of the parties in court in the same dispute – The Rules of Professional Conduct and Etiquette of the Tanganyika Law Society

In the course of hearing the main case an objection was raised against Mr N E Mkono, Advocate, appearing as counsel for the defendant, on the grounds that he had acted as one of two arbitrators in arbitration between the same parties and involving issues now under litigation. Mr Mkono argued that he had not acted in arbitration but mediation, to which the Arbitration Ordinance does not apply; that there was no legal provision to prevent an arbitrator subsequently acting as a lawyer; and that the Rules of Professional Conduct and Etiquette of the Tanganyika Law Society contain no provision barring an arbitrator from acting as a lawyer for a party after conclusion of the arbitration proceedings.

Held:

(i) It is held as a fact that Mr Mkono had acted as an arbitrator appointed as such by one of the parties and he actually acted as one of the arbitrators to the dispute between the parties now under litigation;

(ii) The rules of ethics of the Tanzanian Bar are silent on the question whether a person who had acted as an arbitrator can subsequently act as legal counsel for one of the parties; this is a glaring omission in the rules and needs to be corrected;

(iii) Since Mr Mkono acted in arbitration proceedings between the two warring brothers, it would be unethical for the same Mr Mkono to appear subsequently as advocate for one of the parties in the same dispute before the court.

Objection upheld

Case referred to:

(1) *Jayantilal Narbheram Gandesha v. Killingi Coffee Estates Ltd and Another* [1968] H.C.D., n.399

Mr. Majithia, for the Plaintiff
Mr. Mkono and *Dr. Kapinga*, for the Defendant

RULING

(Delivered 13 October 1997)

Bubeshi, J.: In the course of hearing into matters, namely Civil Case No. 130 of 1993 and Civil Case 136 of 1994, Mr. Majithia, Counsel to P.G. Chavda and Mrs. Indira P. Chavda, has raised objection to Mr. N. Mkono, Advocate, appearing as counsel for V.G. Chavda, who is plaintiff and defendant respectively in the two cases named above.

Mr. Majithia's objection is grounded on two points. First, that Mr. Mkono was appointed one of the two arbitrators in an arbitration between the parties involving issues which are now under litigation. Secondly, that if he was so appointed as an arbitrator, can he appear to act as counsel to one of the parties?

Mr. Majithia, to substantiate his submission, has referred this Court to a document, Annexure W.S.1. This is an agreement between Pravin Chandra Girdhat Chavda *and* Vidyadhar Girdhat Chavda "to refer all existing differences to two Arbitrators in connection with certain matters ...." The document is drawn by Mkono & Company, and it is dated

12 March 1993. It is the contention of Mr. Majithia that Mr. Mkono was appointed an arbitrator and was given sensitive and confidential information and documents. He submits that Annexure W.S.1 appointing Mr. Mkono as arbitrator speaks for itself.

On the second issue whether such an arbitrator can act as legal counsel for one of the parties in subsequent litigation. Mr. Majithia's firm view is that he cannot and has referred this court to the English practice by barristers. He referred the court to a document titled:

> "A Guide to Conduct and Etiquette at the Bar of England and Wales" by W.W. Bouxton, - collectively referred to as *Annexure "S.W.2."*

Mr. Majithia did not, however, point out specifically what relevant paragraph the Court should address its mind. However an extract at page 31 under title *other cases*, the learned author has this to say:

> A barrister is justified in refusing to accept a brief or retainer if he would thereby be embarrassed. Embarrassment may arise where counsel finds that he is in possession of confidential information as a result of having previously advised another person in regard to a matter which is placed before him ....

Mr. Majithia contends that the situation as observed by the learned author ought to apply to the case at hand. Further Mr. Majithia has submitted that Mr. Mkono had promised to act for either parties and their families if appointed Arbitrator. And he equated the situation at hand with the prevailing ADR system where the mediator cannot sit as trial judge/magistrate in the event mediation fails and matters go for trial.

Mr. Mkono for the defendant, V.G. Chavda, has disagreed. He has denied that he was appointed arbitrator since he had been acting as counsel to V.G. Chavda even before the mediation exercise and was acting as agent for V.G. Chavda. He argues that the arrangement was

not arbitration but mediation, and that the provisions of the Arbitration Ordinance, Cap. 15, did not apply.

On whether an arbitrator cannot subsequently act as a lawyer for a party in a person's arbitration, Mr. Mkono submits that there is no legal provision to prevent such a conduct. Mr. Mkono dismisses the authority cited by Mr. Majithia as being irrelevant and of no binding authority to the lawyers in Tanzania. That the "Rules of Professional Conduct and Etiquette of the Tanganyika Law Society" contain no provision which would bar an arbitrator to act as a lawyer for a party after conclusion of the arbitration proceedings. He urges the court not to be persuaded by the passage at page 31 of Boulton's book as it is irrelevant in that in this case there was no arbitration.

On the issue of comparison with ADR system. Mr. Mkono submitted that counsel Majithia's reference to ADR is irrelevant to the facts at hand since Mr. Mkono is not sitting as a judge and that the law has not provided for such bars. He called the contentions by Mr. Majithia as mala fides and baseless. That Mr. Majithia has not referred the complaint to the Tanganyika Law Society. Again Mr. Mkono has submitted that both complainants, P.G. Chavda and his wife Mrs. Indira P. Chavda, had not in their earlier affidavits, protested over this. That such protest are being made when suits are ripe for hearing and V.G. Chavda, a declared prohibited immigrant, cannot attend court in Tanzania, the same goes to their counsel Mr. Majithia. That now that Mr. Mkono has drawn up the Written Statement of Defence Mr. Majithia is blocking Mr. Mkono to represent V.G. Chavda.

On the alleged promise not to act against P.G. Chavda or his family if the arbitration remained unsolved Mr. Mkono has denied even making such an undertaking and that the alleged promise is not set out in the pleadings. Mr. Mkono calls the promise as mere concoction and fabrication.

Mr. Mkono submitted that the allegations by Mr. Majithia would not be prejudiced on account of his representing his client, one V.G. Chavda, as he would not have any, information in addition to the information already in his client's possession.

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Mr. Tou

A The issue before this court is basically this: whether Mr. Mkono & Co. advocates has previously been appointed as one of the arbitrators in a dispute between P.G. Chavda and V.D. Chavda. And if so whether he should be barred from representing V.D. Chavda in the new cases
B filed in this court.

Mr. Mkono has contended that he appeared for one of the parties not as an arbitrator but as an agent for V.D. Chavda in the mediation process between the parties. The crucial document in this regard is the
C Agreement of 12/3/93 entered into between the parties. The agreement is to refer all existing differences to two arbitrators in connection with certain matters connected to the proceeds of the Debt – Conversion Programme as well as in relation to the affairs of Builders (V.M.Chavda)
D Ltd, City Properties Ltd, and 8 other companies in which the parties hereto are Shareholders and/or Directors." Again para 3 of the preamble to the agreement states in part that:

E

> ... the parties hereto have irrevocably agreed to refer the said disputes and differences to Arbitration in manner hereinafter expressed.

F Again paragraph 1 and 2 thereto named Mr. Girish T. Chande and Mr. Nimrod E. Mkono as arbitrators nominated by Pravin and Vidu respectively, the Agreement of 12 March 1993 therefore refers to Mr. Mkono in no uncertain term as an arbitrator, although the letter of 10th
G March 1993 appointed him to negotiate with the plaintiff or his agent. Also of relevance here is the Directions issued by the Arbitrator's on 20th April 1993 and both Mr. Mkono and Mr. G.T. Chande signed as arbitrators.

H It is evident that throughout the negotiation between the two parties Mr. Mkono was referred as one of the two arbitrators in the arbitration. The fact that certain provisions of the Arbitration Ordinance were not
I incorporated is in my view of no consequence here. There is all the evidence to connect Mr. Mkono as one of the arbitrators, and who during the arbitration between the parties, undertook to deliver their

award by 30th August, 1993. If the negotiations between parties was not an arbitration then why call it an award. A

Having studied the matter carefully and taking into account the various documents referred to herein. I am inclined to conclude that Mr. Mkono acted as one of the arbitrators to the dispute between the two parties. B
I am not persuaded by Mr. Mkono's argument that this was a mediation exercise. Both Mr. Mkono and Girish T. Chande signed as arbitrators and I cannot see how Mr. Mkono can call this mediation.

Having ruled that Mr. Mkono acted as an arbitrator who issued an C
award, the next question I have to answer is whether he can subsequently act as legal counsel for a party in pervious arbitration.

The rules of ethics guiding members of the Tanzanian bar are silent D
on this aspect. Mr. Majithia has referred this court to the English practice. The extract from W.W. Boulton on "A Guide to Conduct and Etiquette at the Bar" at page 31 talks of cases where a barrister who has in an arbitration acted for the arbitrator either in advising on points E
of law arising during the arbitration or on the form of the award ought not to appear for one of the parties to the arbitration in any proceeding relating to the arbitration or the award. What we have here is where the arbitrator himself is now engaged to act as counsel. The two F
situations are not on all fours. However, I am persuaded by the rule. If the prohibition can affect counsel who has merely acted for the arbitrator during the arbitration I think there is all the justification to debar counsel who has acted as an arbitrator to appear for one of the parties in G
subsequent litigation. It is very unfortunate that the Rules of Professional Conduct and Etiquette of the Tanganyika Law Society have this glaring omission. One hopes that the authorities concerned will, in the not too distant future look into the matter as the Tanzanian bar becomes faced H
with a diversity of such new matters. The case of *Jayantilal Narbheram Gandesha v. Killingu Coffee Estates Ltd. & Another (1)* is also relevant here. In that case a plaintiff's advocate who has acted for I
both parties during negotiation of a contract was called by defendant as a witness. The plaintiff objected that to allow this would amount to

The applicant in that form is one Zahran Mohamed Abdallah and the vehicle's chassis number is the same as that of the vehicle bought by Zahran at Sharjah as mentioned in the receipt given to him (supra) The vehicle was ultimately registered as No. 15903 according to the evidence allegedly seized with the police. The police district chief of investigations thus resisted restitution of the vehicle before the trial of the main case as was being sought here insisting it would form a good exhibit in the case against Zahran and his colleagues.

The applicant was advocated in the court below by Mr. Mbwezeleni, learned advocate, who argued from the bar that the policeman's averments in resisting the application were speculative and should not be acted upon, more so since the affidavit containing them was not sworn but merely affirmed by the deponent who, further, did not distinguish between what matters he deponed on his own knowledge and which was based on information received from other sources which also ought to have been disclosed but were not. Mr. Mbwezeleni, learned advocate, thus urged the court not to act on the defective affidavit.

In his ruling, the learned trial magistrate rejected the averments by the police officer saying:

> this statement is irrelevant as it tries to prejudice this court on the trial in criminal case No. 62/97 and *this argument is* forthwithly (sic) rejected as *it is subject to proof in the pending trial and not in this application.* (My own emphasis.)

The application was therefore granted and the learned magistrate ordered immediate release to the applicant of the vehicle concerned in another vein ordering the police to rely for the trial and produce any documents at their disposal concerning the vehicle,

This Outcome aggrieved the prosecution and the prosecutor of the day intimated their intention to appeal against the ruling. At the same time he applied for stay of execution pending the outcome of the appeal

to be filed. This application (for stay of execution) was rejected. Strangely, no appeal was filed for the next ten days. Instead, the present application was filed in the High Court, also for stay of execution (restitution) pending determination of the principal case, Cr. No.62/1997 of the lower court. This application was formally registered on 6/10/97 although I was seized of the same on 29/9/1997 when I issued a temporary order to suspend restoration of the vehicle which, however, was not served on those concerned.

Here also Mr. Mbwezeleni, learned advocate (now for the original applicant turned respondent) strongly resisted the affidavits filed by the police on those same grounds as they resisted the others in the court below. Mr. Mbwezeleni also bitterly complained against non-compliance of the lower court's order to restore the vehicle. He asked this court to condemn the contempt on court orders and that we should not bless the same.

Mr. Toufiq, learned State Attorney also strongly condemned the apparent contempt by the police who refused to comply with the lower court's order for restitution of the vehicle. He, however, prayed that the vehicle should not be released all the same but that it should be retained until the main case is tried to its logical conclusion.

It is important to emphasize and point out here that this is not an appeal against the ruling of the lower court in Misc. Criminal Application No.7/1997. Rather, it is an application on its own merits albeit originating or arising from the orders of the lower court in the same. It is important to keep this fact in mind.

I wish first to condemn in no uncertain terms the flagrant contempt shown by the police in disobeying the orders of the lower court to have the vehicle released although there had been no superior orders served on them until I announced my own order of suspension (also not communicated by the registry which I did on 8/10/1997 when we met here for the hearing of this application). This chain of inefficiency by the law enforcement organs is hard to explain and it is not something to be taken lightly. It makes a mockery of the court process and if it is

committed by the court's own registry, nobody will see the reason why court orders should be obeyed. But that must be so even if the orders themselves are erratic in form or erroneous in origin, court orders must be obeyed and complied with unless and until they are superseded by others of competent jurisdiction. Unless this is so nobody will feel the urge to obey court orders which are otherwise important in themselves, Those of us at the bench, judges and magistrates inclusive, should not be contented in simply making empty orders which are never carried into effect for whatever reason. May be I should take this opportunity to call upon and invite my brothers at the bench, judges and magistrates alike, that we should now gang up and thoroughly chase our orders to ensure that each is executed and obeyed to the letter and those defaulting should be made to suffer the blunt of the law, strictly, and without distraction. Contempt of court orders should be brought to an end.

Now the application itself, the one before me. It is true that the affidavit supporting the chamber summons is defective for want of form in the verification. The deponent says he is the Regional Crimes Officer for Urban West Region (of Zanzibar). I take judicial notice of the fact in his capacity, he is not the one who prosecutes cases in the courts. It is also unlikely that he investigated this case personally by himself. I believe it is others doing this and it is those others who give their regular and periodical reports to the Regional Crimes Officer giving developments at each stage. That being the case, the RCO should tell us in his affidavit which information he knows of his own knowledge and which of it he knows from other and which sources without necessarily disclosing the exact identification of those sources. It would have been sufficient, for example, to point out which and how much of it is from the prosecutor without necessarily mentioning their names which might probably prejudice their investigation. In the affidavit, however, we have a blanket cover statement that "the contents of para 1 to 8 all inclusive are true to the best of my knowledge." In paragraph 7 of the affidavit, however we are informed for example that "The

prosecution insisted that the said motor vehicle ... belonged to the said Zahran and should not be restored." The deponent is here talking of what transpired in court. He does not say any where how he came by that information. To that extent the affidavit is therefore, defective in the verification for failure to disclose source of information. However, it is true that the law is now state to the effect that:

> "A court should not act on an affidavit which did not distinguish between matters stated on information and belief and matters to which the deponent swears from his own knowledge." – see *Kassamali v. Kyrtas Bros (1); Assanand & Sons (U) Ltd. v. EA Records (2); Gaspair Ltd. v. Gandy (3)*; to cite only a few of the authorities. To the extent that it was based on the affidavit therefore, the application is untenable and it would stand to collapse.

The application is misconceived also for one more reason. The application seeks to stay an order which, in my understanding, finally determined as to ownership of the vehicle. As I understand the ruling, what the learned Regional Magistrate had decided is to the effect that the vehicle in fact belongs to Farid the applicant (in the court below) and not Zahran. As such, the ruling is in fact an order, and a final order for that matter, one which finally disposes the motor vehicle to Farid. The order is therefore appealable in that it finally determines the rights of the parties as to ownership of the demised motor vehicle. Indeed the magistrate rightly explained the parties' right to appeal immediately he pronounced his ruling in court. It follows therefore that the police or the prosecution generally, who are aggrieved with the order of the lower court, could and should have appealed as they had earlier intimated their intention to do so immediately upon pronouncement of the order of the court. As earlier pointed out, however, the prosecution have lodged this application instead of filing the appeal as they had earlier intimated. They have not established any reason, leave alone a good reason, showing cause why they have not appealed.

The application is incompetent and, as such an application, it is hereby rejected as untenable. But, I am quick to add, we do not end up simply there. There is more to it than that.

It was by design that I had at the beginning given a detailed background of the incidents that have led to the present application which I have just dismissed for incompetence. With the detailed background, however, I was laying ground the course in which I have decided to dispose of this matter. I am of the considered opinion that the learned Regional Magistrate exercised his jurisdiction (u/s 321 (a) Cap.1) with illegality or material irregularity and in excess of his powers to warrant interference of his decision. It should be noted that the subject matter in these applications is the motor - vehicle with registration No.ZNZ 15903 which was impounded by the police in connection with the on-going investigations and which they intend to produce as a potential exhibit at the trial against Zahran and his colleague. The vehicle has Zahran Mohammed Abdalla as the registered owner thereof according to the evidence which the police contend they are seized with.

They also claim they have evidence to prove that the vehicle was bought of monies out of theft proceeds. Such evidence can only be produced at and during the trial of those charged as offenders in the principal case. The police officer who deposed the affidavit on behalf of the prosecution could not but state these facts where they are prematurely being challenged to part with the vehicle which vehicle they believe is a potential exhibit in the impending trial of those they suspect of theft the proceeds of which the vehicle is believed to have been bought with. Ownership of such a vehicle is therefore itself a matter of contention and in the circumstances of this case, such contention can only be resolved and finally disposed of when determining Zahran's alleged criminal connection with the said vehicle or the monies with which it was purchased. It is therefore strange and incomprehensible that the learned Resident Magistrate had entertained Farid's application for restitution of such a vehicle before the trial of

the principal case. It would have been a different thing were the averments to allege that the vehicle had in fact been in Farid's possession even prior to the material incidents giving rise to the alleged theft. But that is not so.

It is the more surprising to find the learned Regional Magistrate remark in his ruling that reference of Zahran's suspected criminal connection with the impounded vehicle was irrelevant in proceedings where they (the police) are being challenged to justify their grounds for impounding the vehicle and they are wanted to do this prematurely before the trial of the suspects commences. This is an irregularity on the face of the record which in my view amounts to wrongful exercise of ones powers in a manner which suffers from material irregularity for refusing to consider what ought to have been considered. Hence the grant of the application without considering the relevancy of the statement by the police that they were seized with evidence with which to prove theft of money was used in purchasing the vehicle was wrongful exercise of the court's jurisdiction, i.e. the refusal to consider a relevant fact. Of course this was not the proper forum to consider and finally determine Zahran's suspected criminal connection for it was not yet his trial.

So the whole thing was on error in the way the application itself was handled. It was wrong *ab initio* that the application was admitted and allowed to proceed (as a separate matter) in the manner as it was. It is like placing the cart before the horse and expect her to push it. She can not. She can only pull the cart and not to push it. Likewise, determination that the vehicle is or is not connected with Zahran's suspected crimes and that he is in fact not the owner thereof but Farid cannot come before the trial of the criminal charge at which and only then could the prosecution properly tender and adduce whatever evidence they rely for their contention that the vehicle was in fact purchased from theft proceeds. It was therefore grossly wrong that Farid's claims were entertained that much prematurely which in my view equally and for that reason and to the same extent prejudices the

possible outcome of the impending trial. The question is not whether Farid is or is not an interested party. It is the manner in which those interests, if any, have been investigated into and handled hitherto. If it is true he really has any interests at all, the same is collateral to the issues being investigated in connection with Zahran's trial vis-a-vis ownership and source of the vehicle.

The magistrate also saddled the respondent police chief with the burden of proof. He says in his ruling:

> So it is the duty of the respondent to establish before the court that the applicant doesn't appear to be entitled to the disputed property.

Further to that, the magistrate also finds error with the respondent for his failure to comment on the aspect of there having been filed two affidavits by Farid and Zahran respectively to support the chamber application and he asks if it is collusion between the two brothers. He says:

> Furthermore, this court had before it two affidavits supporting the ... application..... Why should this happen, is there any collusion between the applicant and the 1st accused to mislead this Court? *The respondent has not touched this aspect in his counter affidavits but has only talked of unnecessary assumptions which are subject to proof before this Court* .... (My own emphasis.)

With great respect to the learned Regional Magistrate, this is shifting the burden of proof to a wrong party and, therefore, a serious misdirection of the law. "The burden of proof in a suit or proceeding lies on the person who would fail if no evidence at all were given on either side" - s. 102 Evidence Decree (Cap.5) and, further.

The burden of proof to any particular fact lies on the person who wishes the Court to believe in its existence - s.103 Cap 5 (supra).

In ordinary parlances it is said that he who alleges a fact has the

duty to prove it. In this matter it is the applicant who, by his chamber application, moved the court to order that – "That the true owner of (the motor vehicle) No.ZNZ 15903 be restored to him with immediate effect" (sic). The prosecution hitherto believe the vehicle belongs to Zahran and they believe it was purchased with monies proceeded from a certain theft which they contend they can prove in court come time to do so. It is he, Farid the applicant in the court below who prematurely moves the court to believe him he is owner of the vehicle and determined the issue of its ownership that much early before the said trial. It is he, Farid who has the duty to convince the court to determine in his favour. It is not for the respondent for the purposes of these applications to establish before the court that the applicant does not appear to be owner and entitled to the disputed vehicle. If no evidence at all is given (as indeed it should not at this stage lest it should prejudice Zahran's trial one way to the other), it is the applicant to that court who would loose as it means that the vehicle would have to remain with the police to retain it for production at the impending trial. It is therefore for the applicant in the court below, the current respondent, to prove at this stage and for the purposes of these applications that the vehicle does not belong to Zahran but Farid the applicant. It is only at Zahran's trial when and where the burden would lie on the prosecution to prove, beyond reasonable doubt that the vehicle belongs to Zahran indeed as they contend and that it was bought of monies proceeded from theft. These burden should not be shifted over to the wrong party at either stage and the court should be careful to get these distinctions and never mix them up to the detriment of either of those concerned. Here is a matter started by the applicant (restitution proceedings) moving the court to determine in his favour. The burden of proof lies on him to establish his ground to convince the court so to do. For the trial magistrate to say otherwise is saddling the burden of proof over to a wrong party contrary to the clear provisions of the law. The proceedings were to that extent and for this other reason irregular for wrongful exercise of the court's jurisdiction.

In the upshot and for these material irregularities highlighted here, I exercise the revisional jurisdiction conferred on this court under section 340(1)(b) of the Criminal Procedure Decree. The proceedings in the lower court's Misc. Criminal Application No. 7/1997 is hereby declared a nullity for material irregularities if not ultra vires for wrongful exercise of one's jurisdiction. The proceedings are therefore quashed and the order of restitution emanating from same is also and hereby set aside.

However, in consideration of facts hitherto coming to light in the course of handling these applications, and under sections 321 read together with section 322(8) of the Decree (Cap 14, prudence militates to make fresh orders intended to rescue the vehicle from likely but irreparable damage and or wastage that can naturally be occasioned out of disuse during the appendence of the prolonged investigations and the impending trial against Zahran and his colleagues. It is therefore ordered, in lieu of the lower court's order, that the vehicle be released to Farid but on condition that he first deposits in courts cash Dhs. 6557/= (say six thousand five hundred and fifty seven dhinars) (or its current equivalent value in Tanzanian shillings or US dollars) being the purchase price thereof, plus import duty and registration fees paid therefore in Zanzibar (to be proved by production to the court of all relevant documents as there may be necessary therefore). This commission – free deposit would be paid back to who ever would be finally adjudged to be entitled to the motor vehicle at the end of the trial against Zahran, including a final appeal therefore, if there should be any. Only if this order is complied with in full should the vehicle be released to Farid. Otherwise the police would retain the vehicle until finally disposed of at the end of Zahran's trial. It is so ordered.

Finally, the question to ask now is whether the trial magistrate has not by his decision in that application disqualified and divested himself of jurisdiction to continue with the trial against Zahran for reasonable apprehension of possible bias by his prejudgment of material issue. I am mindful of the fact that at the hearing of this application before me, counsel for the prosecution (Mr. Toufiq, Senior State Attorney from

the chambers of the Attorney General) had occasion to remark from the bar that they lodged their application (for stay of execution of the restitution order) here in the High Court and not in the RM's court because of apprehension of (a biased) outcome taking into account the trial magistrate's earlier refusal to stay the restitution order pending results of an appeal they were proposing to file. In my considered opinion regard to the findings made and conclusions expressed by the magistrate, a fair minded observer could conclude, and rightly so in my view, that the magistrate has formed opinions (on ownership of the vehicle) which might affect his conclusions in the matters remaining to be determined in the trial. I therefore think that necessity does not authorize him to continue with the pending trial of Zahran and his colleagues. Accordingly proceedings are returned with an order that the case, Criminal Case No.62/1997 of the lower court be continued by another magistrate with competent jurisdiction. It is so ordered: *Australian Industries Ltd. v. Spedley Securities Ltd. (4)* followed.

REPUBLIC *v.* SAIMON BERNARD AND THREE OTHERS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Nsekela, J.)

CRIMINAL REVISION No. 5 OF 1997

(From the Resident Magistrate's Court of Dar es Salaam at Kisutu, Chilonji, PRM, in Criminal Case No. 934 of 1995)

Criminal Practice and Procedure – Statements of witnesses made to the Police

– Whether the court is bound to supply such statements to the accused upon application – Sections 9(3) and 10(3) of the Criminal Procedure Act 1985

An application by advocates for the accused to be supplied with statements of witnesses and the accused at the Police Station was resisted by the prosecution. The trial court ruled that the statements be made available to the accused persons. The Director of Public Prosecutions moved the High Court for revision of the ruling. The High Court considered the ruling of the trial court magistrate that all statements of witnesses should be made available to the accused persons.

Held:

(i) A magistrate is mandatorily enjoined to furnish to an accused person the following statements:

(a) statements that have been recorded from information received under either s.9(2) or s.10(3) of the Criminal Procedure Act 1985 provided that the information was recorded in compliance with the procedure prescribed in s.10(3), that the information resulted in proceedings being instituted in a magistrate's court, and that the source of such information be named as a witness; and

(b) statements by the person against whom or in respect of whom the accused is alleged to have committed an offence.

(ii) An accused person is entitled to know and to have a clear picture as to what charges he is facing and the nature of the evidence that will be led against him; it is therefore imperative for such statements to be made available to such an accused person.

Order accordingly

Case referred to:
(1)*Dallison v. Cattery* [1965] 1 Q.B. 369

Mr. Luena, for the Republic
Mr. Mwakasege, for the second accused

RULING

(Delivered 29 October 1997)

Nsekela, J.: This matter has originated from Kisutu Resident Magistrate's Court, Criminal Case No. 934/95. On 4.7.96 a preliminary enquiry was conducted and hearing of the case was scheduled for 12.8.96 only to be adjourned to 16.6.96. On this date, that is, 16.5.96. Mr. Mwakasege, learned advocate for the 2nd accused made an application before the trial magistrate, Chilonji, Principal Resident Magistrate, that his client be supplied with statements of witness and accused persons made at the Police Station during investigation. This application was purportedly made under section 9 (3) of the Criminal Procedure Act (CPA). Mr. Jundu, learned advocate for the 1st accused made a similar application. The public prosecutor on his part vigorously resisted the application in the following words:

> Your Honour, under this section the statement that can be supplied is that of the person who gave information that led to the arrest of the accused person. We are ready to supply that statement but not the statement of all the accused persons. The statements of other witnesses can only be supplied to the defence at the hearing to facilitate cross-examination. There is danger to supply statements for all witnesses which can enable the defence to interfere with the witnesses and the witness can disappear.

In his Ruling, Chillonji, PRM, had this to say:

> My understanding of this section which understanding I have subjected myself to the higher courts for direction in a number of cases whenever such application was made and I allowed the application and the Republic appealed against that decision is that the defence is entitled to get such statement....

Aggrieved by this Ruling, the Director of Public Prosecutions requested

for revision of this Ruling under section 372 of the CPA. This section reads as follows:

> 372. The High Court may call for and examine the record of any criminal proceedings before any subordinate court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings of any such subordinate court.

What the Republic is questioning is the correctness of the order of the trial magistrate to the effect that apparently all statements of witnesses should be made available to accused persons. Mr. Luena, learned State Attorney appearing for the Republic has argued that there are certain conditions which must be complied with before statements are given to an accused person. The first condition is that the maker of the statement should have been named as a witness, secondly the statement to be supplied should have been made under sub-section 3 of section 10 of the CPA and lastly, the statement must have been made by a person against whom or in respect of whom the accused is alleged to have committed on offence. It was the learned State Attorney's contention that the prosecution is not duty bound to supply to an accused person all statements. He complained that the order of the trial magistrate is general in nature without any specificity as to which statements fall within the ambit of section 9 (3) of the CPA. On his part, Mr. Mwakasege learned advocate for the 2nd accused countered by submitting that section 9 (3) of the CPA admits of no ambiguity. The statements that are required to be supplied to an accused person are those in the memorandum of facts and recorded in terms of subsection 3 of section 10 of the CPA. He added that an accused person is entitled to such statements to enable him to prepare for his defence in advance. In view of these submissions by learned advocates, I now turn to our examination of section 9 of the CPA. It reads as follows:

> 9 (1) Information relating to the commission of an offence may be given orally or in writing to a police officer or to any person in authority in the locality concerned.
>
> (2) Any information under subsection (1) shall be recorded in the manner provided in subsection (3) of section 10.
>
> (3) Where in pursuance of any information given under this section proceedings are instituted in a Magistrate's Court the magistrate shall, if the person giving the information has been named as a witness, cause a copy of the information and of any statement made under sub-section (3) of section 10 by the person against whom or in respect of whom the accused is alleged to have committed an offence to be furnished to the accused forthwith.

Pausing here for a moment subsection (1) of section 9 provides for the reception of information relating to the commission of an offence from any informant as it were. It may be given orally or in writing not necessarily to a police officer but including any other person in authority in the area concerned. This information is in my view for the purpose of alerting whoever is involved in the detection of crime to set in motion the appropriate machinery. The second stage that follows under subsection(2) of section 9 is to have such information recorded but following a procedure which is laid down in sub-section (3) of section 10, which I reproduce hereunder:

> 10 (3). Any police officer making an investigation may, subject to the other provisions of this Part, examine orally any person supposed to be acquainted with the facts and circumstances of the case and shall reduce into writing any statement made by the person so examined. The whole of the statement including any question in clarification asked by the police officer and the answer to it, shall be recorded in full in Kiswahili or in English or in any other language in which the person is examined, and the

record shall be shown or read over to him or if he does not understand the language in which it is written it shall be interpreted to him in a language he understands and he shall be at liberty to explain or add to his statement. He shall then sign that statement immediately below the last line of the record of that statement and may call upon any person in attendance to sign as a witness to his signature. The police officer recording the statement shall append below each statement recorded by him the following certificate:

"I ... hereby certify that I have faithfully and accurately recorded the statement of the above named...."

Section 10(3) quoted above requires a police officer making an investigation to follow the described procedure for the recording of information either under section 9 or 10 of the Criminal Procedure Act. These prescribed procedures in a nutshell include:

(i) that the oral information must be reduced in writing by the police officer concerned;
(ii) that the information so recorded by the police officer must be read over to the informant;
(iii) that such recorded information must be signed by the informant;
(iv) that there must be a Certificate by the police officer concerned in the prescribed formant.

It is my considered view that statements which are the subject-matter of sections 9 (3) and 10 (3) of the CPA are statements which would lead or rather enable the police to institute proceedings in a magistrate's court. I do not think that all statements and information received and recorded by the police in terms of sections 9 (3) and 10 (3) need be acted upon. These sections do not say so. It is quite conceivable that the police may make a decision not to institute any proceedings in the meantime or completely from such statements. In my opinion such statements do not

fall under the ambit of section 9 (3) and 10 (3) of the CPA. A magistrate is mandatorily enjoined to furnish to an accused person statements:

(a) which have been recorded from information received either under section 9 (3) or 10 (3) of the CPA; and
(b) the recorded information pursuant to sections must comply with the prescribed procedures in section 10 (3); and
(c) the recorded information pursuant to sections 9 (3) and 10 (3) should result in proceedings being instituted in a magistrate's court; and
(d) the source of this information must be named as a witness.

This is the first category of statements which the magistrate has to furnish to an accused person. The second category of statements mentioned in section 9 (3) are statements made under subsection (3) of section 10. These are statements by the person against whom or in respect of whom the accused is alleged to have committed an offence. In my view the second category refers to the victims of the crime whereas the first part refers to informants who are named as witnesses. The common factor in both instances is that there should be proceedings instituted in a magistrate's court.

There is thus a statutory duty cast upon magistrates to ensure that the provisions of section 9 (3) are fully complied with to the extent explained above. The rationale for this requirement is, I think, fairly obvious. An accused person is entitled to know and have a clear picture as to what charges he is facing and the nature of the evidence that will be led against him. This will enable him to prepare his defence and hopefully be able to utilize such statements to test the very foundations of the prosecution case. It is therefore imperative for such statements to be made available to such an accused person. It is not a favour to him but his statutory right within the prescribed limits. I end with a quotation from Denning M.R. (as he then was) in the case of *Dallison v. Cattery (1)*. It is not particularly relevant to the issue at hand, but may be of assistance generally. This is what he said:

The duty of prosecuting counsel or solicitor, as I have always understood it, is this: if he knows of a credible witness who can speak to material facts which tend to show to the prisoner to be innocent, he must either call that witness himself or make his statement available to the defence. It would he highly reprehensible to conceal from the court the evidence which such witness can give. If the prosecuting counsel or solicitor knows, not of a credible witness, but a witness whom he does not accept as credible, he should tell the defence about him so that they can call him if they wish.

Section 373 (1) of the CPA empowers this court acting in revision (a) in the case of a conviction, to exercise any of the powers conferred on it as a Court of Appeal by section 366, 368 and 369 of the CPA and enhance the sentence, and (b) in the case of any other order other than an order of acquittal to alter or reverse such order. This Ruling falls under section 373 (1) (b). The Ruling of the trial magistrate is altered to the extent indicted herein. It is pertinent here to quote section 373 of the CPA. It reads as under:

376. When a case is revised by a High Court, it shall certify its decision or order to the court by which the sentence or order so revised was recorded or passed, and the court to which the decision or order is so certified shall thereupon make such orders as are conformable to the decision certified, and, if necessary, the record shall be amended in accordance therewith.

My understanding of this section is that the main order the one of this court which I have just delivered and the subordinate trial court is required to make such orders as are conformable to this Ruling of the Court. It is accordingly ordered.

MARANDO SULEIMAN MARANDO

v.

SERIKALI YA MAPINDUZI ZANZIBAR ("SMZ")

HIGH COURT OF ZANZIBAR
AT VUGA
(Kannonyele, J.)

CRIMINAL APPEAL No. 10 OF 1997

(From the decision of the Regional Magistrate's Court at Vuga, in Criminal Case No. 57 of 1997)

Criminal Practice and Procedure – Burden of proof – Accused raises a defence – Whether the accused is under a duty to prove his defence

Criminal Practice and Procedure – Exhibits in criminal proceedings – Exhibit taken from the accused being different from the exhibit tendered in evidence against that accused person – Duty to explain the difference is on the prosecution

The appellant was charged with and convicted of unlawful possession of bhang contrary to ss. 17(1) and 32(4) of the Pharmaceuticals and Dangerous Drugs Act 1986 (No. 6 of 1986), as amended by Act No. 6 of 1991. He was sentenced to twenty years' imprisonment. During the trial the 1st prosecution witness, a laboratory analyst, conceded without explanation that the exhibit that had been collected from the appellant and taken to him by the Police was in the form of a cigarette while the one he tendered in evidence in court was not in that form. The trial court magistrate proceeded to convict the appellant on the grounds that he failed completely to challenge any of the prosecution witnesses. He appealed against conviction.

Held:

(i) It was either a misdirection or a non-direction for the trial court magistrate to say in his judgment that the accused person completely failed to challenge any of the prosecution witnesses;

(ii) It was the duty of the prosecution to account for the difference in the form of the exhibit between its collection from the appellant and its tendering in court without leaving any doubt in proving the charge against the appellant; the failure to account for the difference *protanto* was fatal to the prosecution case;

(iii) The accused, who needed not prove his defence, had discharged his duty in this case by merely raising a reasonable defence and it remained for the prosecution to disprove that defence beyond reasonable doubt.

Appeal allowed

Cases referred to:
(1) *Lockhart Smith v. Republic* [1965] E.A. 212
(2) *Fanuel Kiula v. Republic* [1967] H.C.D., n.369
(3) *Shalelia Kassim v. Republic* [1968] H.C.D., n.366
(4) *Mwita and Others v. Republic* [1971] H.C.D., n. 54
(5) *Moshi d/o Rajabu v. Republic* [1967] H.C.D., n. 384

JUDGMENT

(Dated 14 November 1997)

Kannonyele, J.: Marando Suleiman Marando was charged with and convicted of unlawful possession of bhang contrary to section 17(1) and 32(4) of the Pharmaceuticals and Dangerous Drugs Act, No. 6 of 1986, as amended by Act No. 6 of 1991. He was sentenced to the minimum (20) twenty years imprisonment allegedly as provided under the law. He is now appealing against the conviction.

PW2 and 3, both policemen at Mwera Police Station, stated that they were on routine patrol at around 5.20 pm, riding their bicycles. They found the appellant close to the house of one Maria, PW5. The prosecution witnesses alleged the appellant was smoking a cigarette but that when he saw them approach, he was told by Maria to stop smoking but he bragged that he would continue smoking undaunted. The police halted him and they suspected the smell of his cigarette to be bhang. According to PW2, his colleague (PW3) struggled with the appellant to seize the cigarette from him. Apparently they succeeded, the police helping one another. Appellant was arrested and taken to the police station ostensibly for questioning and ultimately prosecution.

According to PW3, however, they found the appellant standing and they halted him. Then "a neighbour came with a stick, she is called Maria who gave the accused a lighter to light the cigarette, we got a smell from the burning cigarette, the accused was standing about five steps. He lit and we got a smell as if there was some burning grasses. Maria told the accused, '*Askari hao wanakuja.*' She knew that we were policemen. Yes I knew the accused even the incidence. The accused replied saying '*askari gani hao, wacha mimi niseme.*' It is then PW3 jumped on the appellant to arrest him. They fell down when and as he resisted apprehension. They (the Police) finally made it."

The appellant and his cigarette were handed to PW4 at the Police station. The latter sealed the exhibit and took it to the government chemist where he handed it over to PW1, a "laboratory analyst' with unspecified qualifications after three year's training in Zanzibar followed by short courses at Muhimbili and Mlingano (Tanga) on Mainland Tanzania. Given his evidence PW1 appraised the trial Court that he received the exhibit from the police being "in the form of a cigarette." However, what he produced in Court was "not in the form of the cigarette." He gave no account to explain why the difference and the court made no effort to find out this. PW1 said he analysed the exhibit and, according to the report which he compiled and endorsed himself (vide Exh. E. 1), he found the stuff to be bhang. Exhibit E.1 bears the stamp of the Government Chemist which PW1 stated is the official seal thereof.

Maria, PW5, appraised the trial court that she was summoned home from her neighbour only to find the policemen and the appellant at her house. The appellant asked for a match box which she brought

to him. No sooner, she saw them at arms grappling one another. She would not know why, for the appellant had not even used the match box she had brought to him. The police left with the accused leaving behind an amazed PW5.

In his defence, the appellant informed the trial Regional Magistrate that he had just stopped to buy cigarettes at the house of PW5. Her children sold him the cigarette. Just as he wanted to leave the shop, however, the two policemen came along who said they wanted him at the police station. He went with them and when they searched his person they got nothing. He was surprised when in the next morning he was charged with unlawful possession of bhang. Appellant further appraised the trial court and I quote:

> I wanted the Chemist to bring her certificate. The PW1 failed to tell me the instruments he used ....

He finally denied that the stuff brought as an exhibit at the trial was his.

In his judgment, the Resident Magistrate found and held that the police had found the appellant red handed smoking what they suspected but now confirmed by PW1 to be bhang .... Also the accused person failed completely to challenge any of the prosecution witnesses. Hence the conviction, sentence and now the appeal.

In his memorandum of appeal, the appellant generally complains of the manner in which he was arrested and in grounds three and four, he complains about the insecure manner in which the exhibit was handled which does not guarantee it could not and was not tempered with.

In my considered opinion, the appeal has some merit when the same is considered against the evidence on record and the decision that was reached based on that evidence; also taking into account the fact that the appellant has faced these charges and handled the appeal undefended nor with any legal counsel. Behold, if PW conceded explanation that the exhibit taken to him by the police was in "cigarette form" but what he produced in court was not so, it is either misdirection

or non-direction for the learned trial magistrate to say in his judgment that the accused person completely failed to challenge any of the prosecution witnesses. What more challenge did the learned Magistrate expect of the accused person? For here was a challenge as to what the prosecution alleged was a contraband found in the possession of the accused person. Which is which: Was it the cigarette form or the non-cigarette form exhibit which was seized from the appellant? And which of the two did the analyst analyse: If the two are in fact one and the same, then why the difference in form? These questions remain unanswered by the evidence available on record and it was the duty of the prosecution to account for the difference leaving no shadow of doubt in proving the charge against the appellant. The failure to account for the difference protanto was fatal to the prosecution case. On the other hand, the accused who needed not prove his defence, had in this case, discharged his duty of merely raising the defence, and, a reasonable one for that matter, and it remained for the prosecution to disprove that defence beyond reasonable doubt: *Lockhart – Smith v. United Republic (1); Fanuel Kiula v. R. (2); Shalelia Kassim v. R. (3); Mwita & Others v. R. (4);* and *Moshi d/o Rajabu v. R. (5)*, to mention just a few authorities in that respect.

But there is more to that. I earlier pointed out that the appellant had said in his defence that he had demanded for the Chemist's certificate and that PW1 had failed to tell him what instrument he had used in his analysis of the exhibit. And it seems true that he did so indeed when we find PW1 answering in cross-examination that: "We do two types of analysis" and again that: "My report bears my signature." In the evidence however we are not told whether PW1 who said only that he is a laboratory analyst without stating his exact qualifications, whether he is also the "Government Analyst" himself in accordance with section 61(1) and (2) and as that term is defined under section 2 of the Act also taking into account the provisions of section 9 thereof. When all this is considered together with the mishandling which has been complained of by the appellant, it raises doubt in my view as to

the correctness and accuracy of the chemical analysis of whatever was analysed and, therefore, proof of the guilt and the propriety of the conviction for unlawful possession of bhang as was charged of the appellant. Which either a misdirection or non-direction or I now and probably both on the part of the trial magistrate to have said that the accused had completely failed to challenge any of the prosecution witnesses. In the alternative, if not in addition, it was shifting the burden and standard of proof over to a wrong party (the accused) and decree which to that extent is wrong in itself.

This appeal is therefore allowed. The conviction is quashed and the sentence imposed is hereby set aside. The appellant to be forthwith released from custody unless he be further held on other lawful grounds.

It is so ordered.

NATIONAL BANK OF COMMERCE
v.
WALTER T. CZURN

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Ramadhani, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 31 OF 1995

(From the Judgment and Decree of the High Court of Tanzania at Dar es Salaam, Nchalla, J., dated 1 July 1994 in Civil Case No. 60 of 1992)

Land Law – Mortgages –Mortgagee's remedies – Mortgagee's right of sale of mortgaged property – When the right accrues

Land Law – Mortgages – Mortgagee's right to sell mortgaged property – Whether right to sell may be exercised without proof of lawful demand to pay being served on the mortgagor – Section 110 of the Land Registration Ordinance

Banking – Mortgages – Mortgagee's remedies – Right to sell mortgaged property – Right to sell exercisable only when the money is due – When the money on the mortgage may be said to have become due

The respondent obtained credit facilities from the appellant secured by a mortgage over his right of occupancy. While the respondent was out of the country and the debt having become due, the appellant exercised its power/ right to sell the mortgaged property. The appellant had sent a demand notice but it was wrongly addressed and never reached the respondent. Upon learning of his property being sold the respondent returned to the country and filed a caveat with the Registrar of Titles before transfer of the title deed was effected but all the same the transfer was subsequently made. The High Court decided in favour of the respondent. On appeal to the Court of Appeal the appellant argued that it had the right to sell the mortgaged property because the debt had become due and payable.

Held:

(i) Since the appellant bank failed to prove service of the demand notice upon the respondent required by the Mortgage Deed and s. 110 of the Land Registration Ordinance, there was no lawful demand made on the respondent by the appellant;

(ii) There being no lawful demand by the appellant bank, the principal moneys owing and interest thereon secured by the mortgage did not become payable and therefore the bank could not exercise its power of sale under s.19 of the Conveyancing and Law of Property Act 1881;

(iii) The mortgaged property was not legally sold and therefore no title passed

the correctness and accuracy of the chemical analysis of whatever was analysed and, therefore, proof of the guilt and the propriety of the conviction for unlawful possession of bhang as was charged of the appellant. Which either a misdirection or non-direction or I now and probably both on the part of the trial magistrate to have said that the accused had completely failed to challenge any of the prosecution witnesses. In the alternative, if not in addition, it was shifting the burden and standard of proof over to a wrong party (the accused) and decree which to that extent is wrong in itself.

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(ii) There being no lawful demand by the appellant bank, the principal moneys owing and interest thereon secured by the mortgage did not become payable and therefore the bank could not exercise its power of sale under s.19 of the Conveyancing and Law of Property Act 1881;

(iii) The mortgaged property was not legally sold and therefore no title passed

to the purchaser; consequently, the property remained to be that of the respondent.

Appeal dismissed

Ms. Bigeye, for the Appellant
Mr. Chadha, for the Respondent

JUDGMENT OF THE COURT

(Dated 12 December 1997)

Ramadhani, J.A.: The respondent, Walter T. Czurn, was the owner of a right of occupancy over an agricultural land, Unit No. 4 at Shauri Moyo in Magugu, Babati District, Arusha Region, under a certificate of title No. 13522, L.O. No. 17040 which was granted in 1959. Out of a total of 1,550 acres, he cleared and used only 400 on which he cultivated a number of crops for export. The respondent in 1969 obtained overdraft facilities from the Standard Bank without executing any mortgage but by just depositing his title deed. These facilities continued even after 1967 when all banks were nationalized and the National Bank of Commerce (NBC), the appellant Bank, came into being. In 1981 the appellant Bank decided to create a mortgage deed to be secured by the title deed of the respondent. The mortgage deed was signed by the parties on 14/12/81 and sealed by the appellant Bank on 28/12/81.

In 1983 the respondent was diagnosed to have cancer and the experts at the KCMC Hospital advised him to go for treatment abroad (Exh. P1). The respondent proceeded to Germany after he had made a verbal arrangement with Rev. Father Mike Barry (PW 4), to look after the said farm in his absence. The respondent admits that he neither reported his departure to the appellant Bank nor did he know the balance of his debt. The appellant Bank conceded to have received a

letter from the respondent in hospital giving the details of his illness and treatment abroad.

Sometime in 1986, while the respondent was still undergoing treatment, Father Barry wrote him saying that his farm had been sold by the appellant Bank. The respondent wrote the appellant Bank on 12/8/86 (Exh. D1) wanting to know the name and the address of the buyer. The appellant bank replied, vide its letter of 3/12/86 (Exh. P2), signed by Mr. Kobelo (D.1), saying that the farm had been sold for Shs. 600,000/= and that that was done under the powers contained in Clause 11 (a) of the mortgage deed. The letter further disclosed that the property had already been transferred and registered in the purchaser's name. However, the name and the address of the purchaser were not disclosed. In his evidence in court, Mr. Kobelo admitted that at the time he wrote the letter, transfer of the property had not been effected. The property was transferred to the first purchaser, Harish Jiwa Oghad, who was the second defendant in the suit, on 27/6/91 while registration was on 10/3/92 shown in the transfer deed (Exh. P7).

Sometime in 1990, the respondent returned briefly to Tanzania and instructed Mr. Joseph D'Souza (PW2), learned advocate, to file a caveat (Exh. P3) with the Land Registry, Moshi. That was done on 17/6/90 and the respondent went back to Germany. PW2 further said that he complied with the requirement of ss. 51 and 78 of the Land Registration Ordinance, Cap 334, but no communication was made to him even though the property had been transferred twice. The respondent came back to Tanzania sometime in 1992 and 14/8/92 he filed the suit, the subject matter of this appeal, against the appellant Bank, Harish Jiwa Oghad, the first purchaser, and Kilimangu Ltd. the second purchaser. The respondent prayed that the sale of the farm, on both occasions, be found null and void and for a declaration that the respondent is still the lawful owner of the farm and that he is entitled to compensation for special damages suffered and for loss of profit.

Only the appellant Bank filed a written statement of defence and entered appearance, the other two defendants did neither. The appellant Bank brought in Mr. Kobelo (DW1), who at the material time, was the Chief Manager In-charge of Legal and Trustee Services Department. He told the court that he sent a demand notice of payment of mortgage debt to the respondent on 14/6/85 (Exh. D4). However, he admitted that the letter might have gone astray and that it did not reach the respondent as it was wrongly addressed. He also confirmed that at the time of writing Exh. D4 they had already invited tenders for the sale of the farm. DW1 could neither say in which newspapers were the invitations for tenders advertised nor could he say how many tenders were received. In fact, he could not even produce the tender submitted by the first purchaser. All that was produced was a letter of 11/11/85 (Exh. P6) from DW1 to the first purchaser informing him that he has been awarded the tender pursuant to his application of 6/6/85. Then conceded that on 6/6/85 when the first purchaser wrote his application, the time for receiving tenders had elapsed. Time ran out in May, 1985.

Nchalla, J. formulated ten issues and at the end of the day he gave judgment in favour of the respondent. The learned judge was satisfied that the appellant Bank did not send any notice demanding payment of the mortgage debt to the Respondent for the simple reason that the purported notice, Exh. D4, bore a wrong address. Following that determination, the learned judge held that the appellant Bank had no legal right to sell the mortgaged property and, consequently, there was no sale at all. Moreover, the purchase price was found to be grossly inadequate and this, together with other evidence, satisfied the court that the sale of the farm was made secretly and in collusion between the officers of the appellant Bank and the first purchaser. That, too, nullified the sale. So, the court was satisfied that the farm was not validly transferred to the first purchaser for two reasons: one, the appellant Bank wrongly exercised his power of sale of the farm and

two, at the time of the purported transfer, there was already a caveat filed in the Land Registration Office, Moshi, which was disregarded. The court was also satisfied that the respondent, as the caveator, was not served with the statutory notice under s. 78 (6) of the Land Registration Ordinance, Cap 334, before effecting the transfer. As to the claim of loss of anticipated income, the court found that there was none but gave Shs. 50,000, 000/= as general damages.

That decision has aggrieved the appellant Bank and hence this appeal. Before us the appellant bank was represented by Ms. Bigeye, learned counsel, while the respondent was advocated for by Mr. Chadha, learned counsel. Also Bigeye had thirteen grounds of appeal. But for the determination of this appeal, we are of the opinion that three matters are of crucial importance. First, had the right to sell the mortgaged property, so as to satisfy the secured debt, accrued? Second, regardless of the finding on the first issue, was the mortgaged property sold secretly and in collusion between the appellant Bank and the first purchaser and between the latter and the second purchaser? Lastly, what are are the remedies to the parties?

Let us at the outset make it abundantly clear that two matters are not in dispute. First, the respondent was indebted to the appellant Bank. Second, the respondent went for treatment abroad without informing the appellant Bank and without knowing the degree of his indebtedness to the appellant bank.

Had the right to so sell the mortgaged property accrued? Ms. Bigeye maintained that the right had accrued. She said that the loan was on a yearly basis and that the overdraft was to have been paid at the end of 1983 but it was not paid even by 1985. So, the learned advocate argued, the appellant Bank had the right to foreclose and that the failure to repay brought Clause 11 of the Mortgage Deed (Exh. P3) into play. That clause, Ms. Bigeye pointed out, refers to the statutory powers conferred on mortgagees by the Conveyancing and Law of Property Act, 1881 (hereinafter referred to as the 1881 Act). The learned

advocate contended that s.19 of the 1881 Act gives a mortgagee the power to sell a mortgaged property when the mortgage money has become due. She pointed out further that s. 20 of the 1881 Act provides that the power of sale of a mortgaged property is exercisable when one of the stipulated three conditions is met. She also referred us to the *Law of Real Property* by Mergery and Wade, 3rd, ed, at p. 903, on the Comments on S. 20. One of those three conditions, she pointed out, is if a provision contained in the Act or in the mortgage deed is broken. The learned counsel argued that the respondent breached Regulation 6 of the Land Regulations, 1948, when he left the premises, a right of occupancy of land for agricultural purposes, under the care of another person for more than two months without the approval of the President. So, she maintained that that breach gave rise to the right to sell the mortgaged property without notices under Clause 11 or the Mortgage Deed together with ss. 19 and 20 of the 1881 Act.

Ms. Bigeye, in the alternative, it would appear, argued further that in any case a notice in the form of the letter of 14/6/85, Exh. D4, was given. She admitted that the letter was wrongly addressed, but she imputed the fault on the respondent who left the country without giving his proper address. In any event, she argued, since the letter was not returned to sender, then it must have reached the respondent.

Mr. Chadha in his reply said that the overdraft was a continuing affair which had no limit as to the amount to be advanced or as to the time for payment. He contended that a notice of demand had to be given and served by registered post as provided under s.110 of the Land Registration Ordinance (Cap 334). He pointed out that Mr. Kobelo (DW1) conceded that the demand notice might not have reached the respondent. Mr Chadha submitted that since there was no demand notice for the payment of the moneys due, then the right to sell had not accrued and the sale was unlawful.

Let us first see what the parties have agreed in Clause 11 of the Mortgage Deed:

> 11. "(a) At any time after the principal moneys and interest hereby secured have become payable either as a result of a lawful demand by the Bank (or under the provisions of Clause 10 hereof) the Bank shall thereupon immediately be entitled without any previous notice to or concurrence on the part of the mortgagor to exercise all statutory powers conferred on Mortgagees (by the Conveyancing and Law of Property Act, 1881) including the power to appoint a receiver and the power of sale but without the restrictions (imposed by section 20 of the said Act) ....

It is abundantly clear to us that the parties have agreed that all the statutory powers conferred on the mortgagees under s. 19 of the 1881 Act become exercisable without any previous notice only when "the principal moneys and interest hereby secured have become payable." These principal moneys and interests secured become payable if one of two things happen. "Either as a result of a lawful demand or under the provisions of clause 10."

After travelling trough the contents of clause 10, we are satisfied that it is inapplicable here. If only to illustrate that our satisfaction is well grounded, we reproduce the whole of that clause:

> 10. The principal money and interest hereby secured shall become immediately due and payable:
>
> (a) If a demand is made by the Bank for the repayment of the principal moneys and interest hereby secured under the provisions hereof and if the mortgagor shall make default in repaying such sums in full within two days of such demand being made; or
>
> (b) If the mortgager shall make default in the performance or observance of any of the covenants or obligation herein contained or implied (other than for payment of money); or

(c) If a distress or execution either by virtue of any court order, decree or process or by appointment of receiver is levied upon any part of the mortgagor property or against any of the chattels or other property of the mortgagor situate on or about or belonging to the mortgaged property and the debt for which levy is made or appointed is not paid off within sevendays; or

(d) If a receiving order is made or any affective bankruptcy petition is filed against any or the mortgagers; or

(e) If the title of any part of the mortgaged property shall for any reason be terminated.

The appellant Bank has not alleged that a condition of the mortgage, other than payment of moneys due, has been breached under sub-clause (b) or any of the matters mentioned in sub clauses (c), (d) and (e) has taken place. So, possibly the only stipulation in clause 10 which might be relevant here is sub-clause (a) which talks of a demand for payment having been made by the appellant Bank. This brings us to the first stipulation of clause 11; a lawful demand. Was there a lawful demand by the appellant bank?

Mr. Kobelo (DW1) Said that they had written a letter to the respondent, Exh. 5.2 but then admitted that the address on Exh. D2 was different from the address on Exh. P2 and added "Due to the discrepancy in the address, the notice, exhibit 02, may not have reached the plaintiff." Indeed, there is no proof that the said notice reached the plaintiff. If that is not enough, and to put the nail into the coffin, the parties have agreed in Clause 14 of the mortgage as follows:

14. Any demand or notice required or authorized by this Mortgage to be served by the Bank on the Mortgagor shall be addressed to the Mortgagor at the mortgaged property or at the place of business of the

Mortgagor in Tanzania last known to the bank or at the postal address last known to the Bank and the same shall be deemed to have been served when it would in ordinary course have reached its destination and in proving such service it shall be sufficient to prove that the letter containing the notice was properly addressed to the Mortgagor and duly posted.

The appellant Bank has failed to prove service as required by the Mortgage Deed. Of course there is also s. 110 of the Land Registration Ordinance which demands that the notice should have been sent by registered post. There is nothing left for us except to hold that there was no such lawful demand which sparks Clause 10 into operation.

The appellant Bank has also relied heavily on section 19 of the 1881 Act. We must first state, as the learned trial judge did, that under the previsions of section 2 (1) of the Land (Law of Property and Conveyancing) Ordinance, (Cap 114) read together with section 2 of the Judicature and Application of Laws Ordinance (Cap 453), the 1881 Act applies in Tanzania with respect to mortgages. Section 19 of that Act provides:

15. (1) A mortgagee, where the mortgage is made by deed, shall by virtue of this Act, have the following powers, to the like extent as if they had been in terms conferred by the mortgage deed, but not further (namely):

(i) A power, when the mortgage money has become due, to sell, or to concur with any other person in selling, the mortgaged property, or any other part thereof, either subject to prior charges, or not, and either together or in lots, by public auction or by private contract, subject to such conditions respecting title, or evidence of title, or other matter, as he (the mortgagee) thinks fit, with power to vary any contract for sale, and to buy in at an auction, or to rescind any contract for sale, and to re-sell, without being answerable for any loss occasioned thereby, ...

But even under this section the power to sell the mortgage property is

exercisable only when the mortgaged money has become due. The issue is when the mortgaged money can be said to have become due.

To determine that the provisions of s. 20 have been resorted to. That section stipulates three conditions. If any one of the three is met, then a mortgagee can exercise the statutory powers of sale. As already explained above, scholarly arguments have been advanced by both parties and the learned trial judge went to a considerable extent to discuss these provisions.

With due respect to the learned judge, it is our considered opinion that that section is not applicable. The parties in clause 11 of the mortgage Deed have expressly provided that:

> At any time after the principal moneys and interest hereby secured have become payable as a result of a lawful demand by the Bank (or under the provisions of Clause 10 hereof) the Bank shall thereupon immediately be entitled without any previous notice to or concurrence on the part of the Mortgagor to exercise all statutory powers conferred on Mortgagees (by the Conveyancing and the Law of Property Act, 1881) including the power to appoint a Receiver and the power of sale but without the restrictions (imposed by Section 20 of the said Act) ....

So, the three restrictions imposed by s. 20 of the 1881 Act have been categorically excluded by the parties. All that is necessary under the Mortgage Deed is for the principal moneys and the interest to become payable as explained above and the statutory powers of sale are exercisable.

We should add here that s. 19 of the 1881 Act, which sets out those statutory powers, is loud and clear in sub-section (3) that:

> This section applies only if and as far as a contrary intention is not expressed in the mortgage deed, and shall have effect subject to the terms of the mortgage deed and to the provisions therein contained.

The Mortgage Deed (Exh. P4) has expressed two vital contrary intentions which are material to this dispute. First, the statutory powers of sale under s. 19 of the 1881 Act become exercisable only when the principal moneys and interest become payable as a result of the satisfaction of one of the two stipulated conditions. If that is fulfilled, then the second contrary intention is that the restrictions in s. 20 of the 1881 Act do not apply.

The situation then is that: there was no lawful demand by the appellant Bank and so, the principal moneys and the interest secured by the mortgage Deed (Exh. P4) did not become payable and therefore the appellant Bank could not exercise the statutory powers under s. 19 of the 1881 Act. It follows then, that the sale of the mortgaged property to the first purchaser was unlawful.

Was the sale between the appellant Bank and the first purchaser conducted in secrecy and in collusion? In other words, can it be said that the first purchaser was a bona fide purchaser for value?

Ms. Bigeye contended strongly that the sale was not done secretly and in collusion between the appellant Bank and the first purchaser. The learned advocate argued that there was tender by the first purchaser, a letter of 19/4/85, Exh. D3, offering to buy the farm for Shs. 425,000/=. She contended further that that tender is mentioned in Exh. D5, a letter of 3/7/86 from the Regional Principal Assessor to the appellant Bank. Mr. Chadha replied that DW1 admitted that Exh. D3, which is taken to be the tender by the first purchaser, was submitted in connection with another farm, according to DW1 himself. So, Mr. Chadha submitted, there was no tender by the first purchaser.

This matter of whether or not the same was conducted secretly and in collusion, was the second issue formulated by the trial judge and he was very elaborate in his discussion of that issue. We quote him in extenso:

> "With regard to the 2nd issue I also find that the same is in the affirmative

for the following reasons as stated by the plaintiff, and as contained in Mr. Chadha's Written submissions. Those reasons are these: DW 1 could not state specifically in which newspaper the invitation for tender was published. No such Newspaper was produced in court to support that fact. Further, there was no receipt tender to support payment of publication charges to the publisher of the Newspaper in respect of invitation for tender to purchase the plaintiff's farm. Also the number of people and their names who submitted their tenders was not ascertained. There was only one Singh whose letter of tender was tendered as Exh. D3, but DW1 denied that the said tender was in respect of the plaintiff's farm. So, only the 2nd defendant remains but whose letter of tender in respect of the plaintiff's farm was not produced in this case. The said tender was simply referred to in a letter from the 1st defendant bank dated 11/11/85 (Exh. P6) indicating that the 2nd defendant had submitted his tender dated 6/6/85 long after the closing date had expired for submitting tender. Under the circumstances the letter Exh. P6 was also an eye-wash to cover up what was in fact a conspiracy between the 1st defendant and 2nd defendant to effect the sale of the plaintiff's farm secretly. Although the law does not prohibit the mortgagee to sale a mortgaged property to a single purchaser and without publication, yet once the 1st defendant offered for publication of the sale by tender, he was expected by law and in equity to carry out the sale in that mode and honestly. Then there is notice or purported notice (Exh D4) which was issued long after the closing date for submitting tenders had expired. Then there is the 1st defendant's letter (Exh. P2) dated 3/12/86 in which DW1 lied that the plaintiff's farm had been sold and transferred to the buyer, when in fact that was not true. Again the 2nd defendant acted in collusion with the 1st defendant and the Land Registry at Moshi (with Mr. Mwakilema the Assistant Registrar of Titles) and effected transfer of title to the plaintiff's farm to the 2nd defendant (see Exh. P 7) when there was a subsisting caveat having been entered against such transfer (see Exh. P3). According to PW2 the 2nd defendant was quite aware of the said caveat a copy of which he was in possession when he went to PW2 to seek his legal advice about the legal position of the farm in question at that material time. And after securing the transfer of

the title to the farm into his name, the 2nd defendant quickly sold the farm away within just four months for 6m/= which was tenfold the price at which he had purchased that farm...."

We agree with the learned judge in the way he handled the matter and in his conclusion. However, we want to point out a few things. One, at the time of the purported sale of the suit premises, there were only the Daily new and its sister, The Sunday News, as English papers and on the part of Kiswahili newspapers there were *Uhuru* and *Mfanyakazi*. Surely a person in the position of Mr. Kobelo, DW1, in his capacity at that time as the Chief Manager In charge of Legal and Trustee Services Department, would not have failed to conduct a research to find out in what issues of these papers were the invitations for tenders advertised. That he did not do so, invites only one conclusion, and that is that, there was no such advertisement asking for tenders. But once we arrive at that conclusion then it is contradictory to say, as the learned judge said quoting DW1, that at the time the first purchaser wrote his tender the time for submitting tenders had expired.

Either it is accepted that the time for submitting tenders had expired, in which case it is also accepted that tenders were invited, or it is taken as established that there were no tenders. Likewise, DW1 is recorded to have said that at the time Exh. D4 was written, tenders for the sale of the farm had already been invited. That statement has been taken to prop up the finding that the sale was conducted secretly and in collusion. But we cannot have our cake and eat it at the same time. So, the finding is that tenders were not invited. The third thing is that the record above that Mr. Mwakilema, who was the Assistant Registrar of Titles, Moshi, was summoned on three occasions to give evidence but did not appear and no reason was given for the failure. He was called as a defence witness. This invites us to make an adverse inference that if he had come he would have given evidence not favourable to the defence. He would have made it clear that there was collusion between

the appellant Bank and the first purchaser and that was why the caveat was ignored. The fourth thing, the price paid by the first purchaser was indeed very small. This is clearly manifested by the fact that the first purchaser soon afterwards resold the property at six million shillings to the second purchaser. In fact the learned judge himself made that finding later on in his judgment.

The second purchaser, too, was not a *bona fide* purchaser for value. He was warned by the respondent himself against buying the farm and yet he went ahead and bought it. This, too, was one for the findings of the learned judge.

So, we agree with the learned judge that the farm was not legally sold and, therefore, no title passed to either of the two purchasers and that the property remains to be that of the respondent.

We may as well point out here, as did the learned judge, that it was not mandatory that the sale of the farm should have been public. It could have been private but then the appellant should have been courageous to own what he did instead of concocting lies. As we have amply demonstrated, the story of the appellant is cock and bull. The evidence shows that some of the officers of the appellant Bank and some of those of the Land Office in Moshi were hand in glove with the first and the second purchasers in effecting these transactions which, to put it mildly, bordered fraudulent practices.

Finally, we do not think that the respondent is to be compensated anything for loss of profits. It is clear from the evidence of the respondent himself and that of Rev. Barry (PW4) that there was nothing of commercial value on the farm when the respondent left for Europe. There is also no evidence as to when the respondent would have returned so as to resuscitate the farm. It is evident that he came back because of the information he received that his farm had been sold and even then he returned to Europe shortly afterwards. At most there could be general damages which we assess to be four million shillings to be charged the normal court rate of interest from the time of judgment of the High court.

REPUBLIC *v.* TITUS PETRO

HIGH COURT OF TANZANIA
AT MWANZA
(Lugakingira, J.)

CRIMINAL REVISION No. 7 OF 1997

Criminal Law – Obtaining credit by false pretence – Money obtained for use in a proposed business partnership which then fails to progress – Whether that amounts to obtaining credit by false pretences – Section 305(1) of the Penal Code

Criminal Practice and Procedure – Charges – Charge not disclosing any offence – What the court should do – Section 129 of the Criminal Procedure Act 1985

Criminal Practice and Procedure – Adduction of facts after plea of guilty – Prosecution ordered to adduce facts in the absence of the accused – Whether proper – Section 226(1) of the Criminal Procedure Act 1985

Criminal Practice and Procedure – Discharge of accused person – Accused person reaching a compromise with the complainant – Whether the accused is thereby discharged

The accused ran a charcoal business. He persuaded one Tulenya Tungi to be a partner in the business and, to that end, Tungi contributed some money which was received by the accused. But then the business did not go well and the accused went out of contact. Tungi reported to the Police who then arrested the accused and charged him with obtaining credit by false pretences c/s 305(1) of the Penal Code. The accused admitted receiving money from Tungi and the trial court took this to be a plea of guilty. A date was set for adducing facts and the accused was released on bail. Before the date came the accused met Tungi and refunded him the money with Police knowledge and a report to the court. It was

understood that the charge would be withdrawn, and the accused never went back to court. The public prosecutor sought to withdraw the charge but the trial court magistrate rejected the request and ordered the prosecutor to adduce the facts, and then convicted the accused and sentenced him to 12 months' imprisonment. The magistrate then ordered the surety to produce the accused, which he failed and was ordered to pay the bail bond. He paid and then complained to the High Court, which then revised the proceedings.

Held:

(i) The charge was wrong and was wrongly admitted as it did not disclose any offence committed; the trial court should have refused to admit it;

(ii) The money obtained by the accused was received by him for purposes of a business partnership which then failed; this gave the complainant the right to sue in contract and did not amount to the offence of obtaining credit by false pretences;

(iii) Where, in a proper charge, an accused person pleads guilty, the prosecution can be called upon to adduce facts only in the presence of the accused who is then required to admit them; the law does not allow adduction of facts in the absence of the accused and a plea of "guilty" cannot be implied but must be express;

(iv) The accused person had no right to discharge himself from the case on the basis of his compromise with the complainant; he could only be discharged by an order of the court;

(v) As the case had not been withdrawn from the court, the surety had no basis for complaint;

(vi) As in this case there was no legal charge, the whole proceeding was a travesty of justice.

Proceedings quashed, sentence set aside and surety's bond to be refunded

Cases referred to.

(1)*Fisher v. Raven* [1964] A.C. 210

(2)*R. v. Pryce* (1949) 34 Cr. App. R.21

REVISIONAL ORDER

(Dated 9 January 1998)

Lugakingira, J.: This proceeding was admitted to revision following a complaint by the accused's surety.

The accused, Titus Petro, was before the District Court of Mwanza charged with obtaining credit by false pretences c/s 305 (1) of the Penal Code. The charge alleged that he obtained "a credit amounting to Shs. 220,000/= from one Bulenya Tungi which was the share of the said person due to their joint charcoal business." Since the nature of the charge is central in the entire proceeding, I propose to consider that first.

The accused and Bulenya Tungi are in-laws, the latter being married to the former's sister. The accused ran a charcoal business and sometime between September and November 1996 he persuaded Tungi to be a partner in the business and to that end Tungi contributed some money. The actual amount is unimportant for the purpose of this revision. It seems that the business did not go well and the accused became largely out of contact. That alarmed Tungi who reported to the police that the accused had swindled him. The accused was arrested and charged as aforesaid.

It is clear from these facts, and even from the content of the charge sheet, that any problems arising between the accused and Tungi could not be the subject of a criminal charge but possibly a civil proceeding. This was a failed partnership which gave the aggrieved party the right to sue in contract. The problem, admittedly, did not lie with Tungi alone who reported the matter to the police, but also with the police who framed the criminal charge and the Principal Resident Magistrate who admitted that charge. The offence under s. 305(1) arises where a person in incurring any debt or liability obtains credit by false pretences. To "obtain credit" is to obtain money or goods with a view to repaying that money or paying for those goods at some future date: see, for example,

Fisher v. Raven (1) and *R. v. Pryce (2)*. In the instant case, however, the accused did not incur any debt or liability when he obtained money from Tungi; it was not money loaned or advanced to him for repayment in future, but money invested by Tungi in their joint business. He did not therefore obtain any credit from Tungi. The charge should therefore have been rejected by the Principal Resident Magistrate as disclosing no offence. Section 129 of the Criminal Procedure Act, 1985 states:

> Where the magistrate is of the opinion that the complaint or formal charge made or presented under section 128 does not disclose any offence, the magistrate shall make an order refusing to admit such complaint or formal charge and shall record his reason for such order.

Rather unfortunately, this provision is invariably observed in its violation. Magistrates admit charges without so much as glancing at them and this was a case in point. Had the learned Principal Resident Magistrate bothered to read the charge, he could easily have seen that it did not disclose an offence under s. 305(1). The whole of this proceeding was thus a nullity.

The foregoing suffices to take care even of the surety's problem but I will go further in view of other interesting features in the case.

On 9/1/97 the accused was released on bail bond of 100,000/= with one surety in the like sum. In February a preliminary hearing was held at which the prosecutor set out the facts of the transaction between the accused and Tungi and added that upon the accused's arrest, he admitted receiving 85,000/= only from Tungi. The accused accepted all the facts and to the mind of the Trial Magistrate this amounted to a plea of guilty to the charge. Dates were therefore set for adduction of the facts. Meanwhile, the accused and Tungi came to an understanding and the accused refunded to the latter the sum of 85,000/= and reported this to the Trial Court on 20/2/97. The transaction was apparently known to the police and it was apparently understood that it would result in the withdrawal of the charge. After making the refund and reporting the same

to the Trial Court, the accused therefore went his ways and ceased attending court mentions. On 26/2/97 the prosecutor appeared and informed the court that although the accused was absent, he had instructions from the OCS to withdraw the charge under s.98(a) of the Criminal Procedure Act. The Trial Magistrate rejected the withdrawal and stated, *inter alia*, "I am of the view that the court cannot act as a joking centre, but must act as fountain of peace and rehabilitate wrong doers so as to become good citizens in future."

He therefore ordered the prosecutor to adduce the facts, and the prosecutor having done so, he went ahead and convicted the accused in these terms:

> So long as the suspect was informed in court to attend before this court and he decided to escape without any notice, I am of the view that his absence means conscious guilty to the charge. I therefore convict him in his absence.

He imposed a sentence of twelve months' imprisonment. Next, he turned to the surety and ordered his appearance to show cause why the bond should not be forfeited. The surety appeared and informed the court that the accused had told him that the case was withdrawn. He was given time to produce the accused but failed to do so and was ordered to pay 100,000/=, which he paid and complained to the High Court.

The surety's complaint as such is, of course, meaningless because the case had not been withdrawn and the accused had no right, as it were, to discharge himself without an order of the court. What I consider interesting is how the Trial Magistrate went about convicting the accused. Where in a proper charge the accused pleads guilty, the prosecutor can be called upon to adduce the facts only in the presence of the accused and thereafter the accused would be required to admit every such of them as would constitute the offence charged. Section 226(1) of the Criminal Procedure Act, which the Trial Magistrate cites elsewhere, does not authorise the adduction of facts in the absence of the accused,

but the hearing of evidence, and there is no such thing in law as an implied plea of guilty, or what the Trial Magistrate terms "conscious guilty." The procedure adopted was therefore unknown to the law and the manner the conviction was reached was unlawful in the extreme. And I am saying this in the context of a legal charge. As we have seen, there was no such charge in this case, and in view of these other gave irregularities, the whole proceeding was indeed a travesty of justice.

I quash this proceeding in its entirety, set aside the sentence imposed on the accused and order the refund of the surety's bond.

SURAFEL BEYENE AND ANOTHER
v.
REPUBLIC OF ROMANIA AND ANOTHER

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Chipeta, J.)

CIVIL CASE No. 88 OF 1994

International Law – State and diplomatic immunity – Party pleading diplomatic immunity had previously instituted proceedings before tribunals on the same subject matter – Whether such party is precluded from pleading immunity before the High Court of Tanzania

International Law – State and diplomatic immunity – Plea of diplomatic immunity – Suit filed when the party pleading diplomatic immunity was not a diplomatic agent in Tanzania and was no longer an employee of the Ministry of External Affairs of the sending country – Whether diplomatic immunity available to him

International Law – State and diplomatic immunity – Restrictive theory of state and diplomatic immunity – Subject matter of the suit arising out of a purely commercial transaction – Whether a party to a commercial transaction is amenable to the jurisdiction of the courts of the receiving country

A dispute arose out a lease between the plaintiffs and the defendants, the defendants being the Republic of Romania and its agent working in the Embassy of the Republic of Romania in Tanzania. Upon breach of the terms of the lease by the plaintiffs the defendants ejected them out of the suit premises, which were within the premises Charge d'Affaires of the Republic of Romania, and initiated proceedings in tribunals in Tanzania in two applications over the same subject matter. When the plaintiffs filed this suit, the first defendant sent a *note verbale* to the Tanzanian Ministry of Foreign Affairs protesting against the institution of the suit and claiming state and diplomatic immunity. The Ministry wrote to the court stating that state and diplomatic immunity was available to the defendants in this case. At the time of filing the suit the 2nd defendant was no longer an agent of the 1st defendant. After hearing submissions by the advocate for the plaintiffs and the Hon. Attorney General, who was called as *amicus curiae,* the High Court considered whether or not the plea of state and diplomatic immunity was available to the defendants.

Held:

(i) The High Court, constituted by the Constitution, is different from and superior to, the tribunals in the other two matters, and the suit before this court is an independent suit; so, any acts done by the defendants in other proceedings before other tribunals are irrelevant for the purposes of this suit and no inference ought to be drawn from any other proceeding for purposes of this suit and, therefore, the proceedings in the other two matters do not preclude the defendants from raising the plea of immunity in the High Court;

(ii) The mere absence of the 2nd defendant from Tanzania did not terminate his diplomatic immunity in this case because he performed the acts complained

of in this suit in the exercise of his functions as a member of the 1st defendant's mission and on behalf of his state; the immunity could only cease if the Republic of Romania had waived it and such waiver must be specific but in the instant case there was no such waiver;

(iii) Where the government of the receiving state takes no stance or chooses to be silent in the matter, municipal courts should be free to exercise their judicial discretion on the basis of authorities and the facts or circumstances of each case; but where the government of the receiving state has taken a definite stand, that is an indication of whether such receiving state adheres to the absolute or restrictive theory of state and diplomatic immunity, and in such a case, the courts would do well to defer to such a pronouncement because the government could have more facts than the courts as to the delicacy of the matter and the competing claims;

(iv) From the tone of the two letters of the Ministry to this court, Tanzania, which is a common law oriented country, is still adhering to the absolute theory of state and diplomatic immunity;

(v) State and diplomatic immunity are available to the two defendants in this case.

Suit dismissed accordingly

Cases referred to:
(1) *The Charkieh* (1873) L.R. 4 A & E 59
(2) *The Cristina* [1938] A.C. 485
(3) *Victory Transport v. Comisaria General* 336 Fed. Rep. (2a) 354
(4) *Trendtex Trading Corporation v. Central Bank of Nigeria* [1977] Q.B. 529

Mr. *Mbuya,* for the plaintiffs
Hon. the Attorney General, *amicus curiae*

RULING

(Delivered 9 January 1998)

Chipeta, J.: The plaintiffs in this suit, namely, Surafel Beyene, said to be an Ethiopian national, and Aduliu Zanzibar Limited, have filed this suit against the Republic of Romania and Marin Ghetu, claiming damages arising from a tenancy agreement in respect of the property of the Republic of Romania situate on Plot No. 11, Ocean Road, in Dar es Salaam.

The defendants have pleaded State and Diplomatic Immunity in the suit. The plaintiffs, through their learned advocate, Mr. E.H. Mbuya, have resisted the plea, and Mr. Mbuya has made submissions to the effect that on the facts and circumstances of the case, the plea of State and diplomatic immunity is not available to the defendants. The defendants filed no submissions but filed a copy of a *Note Verbale* written by the first defendant to the Ministry of Foreign Affairs and International Co-operation of Tanzania (hereinafter referred to as the Ministry). The copy of the *Note Verbale* was received by the Court in this suit.

After receiving Mr. Mbuya's submissions, this court (Kyando, J.) was of the view that the Attorney General be heard in the matter as an *amicus curiae.* The Honourable the Attorney General has filed written submissions on the matter as invited by this court to do.

Before I proceed to deal with those submissions and arrive at a decision of this court, I think it is necessary to give a factual background of the matter, albeit briefly. From the contents of the plaint and what Mr. Mbuya told the court, it has come to light that on 10th June, 1989, the first defendant concluded and signed a lease agreement with the second plaintiff whose Managing Director was the first plaintiff. By that lease agreement, the first defendant demised a part of the property on Plot No. 11, Ocean Road, described as Plot No. 5, for a period of four years and eleven months at a monthly rent of U.S. $ 1,400.00. As per the terms of that lease agreement, the first plaintiff went into

occupation of the demised premises and used it as his residence as Managing Director of the second plaintiff.

It was an express term of the lease agreement that failure by the plaintiffs to pay rent 14 days next after the rent was due, the defendants were empowered at any time thereafter to re-enter into and upon the demised premises whereupon the term of the lease would cease and determine. Apparently the plaintiffs breached that term of the lease agreement, and so, the second defendant, who was by then the Charge D'Affaires of the first defendant, and acting on the instructions of the first defendant, evicted the plaintiffs from the demised premises and, it is alleged in the plaint, removed the plaintiffs' properties worth U.S. $100,000. The eviction was apparently done in the absence of the plaintiffs. The plaintiffs took offence of that action by the defendants and so reported the matter to Police, but because of the first defendant's diplomatic or state immunity, no criminal proceedings were instituted against the defendants.

Mr. Mbuya further informed the court that in 1992, the first defendant filed Civil Application No. 489 of 1992 in Dar es Salaam Regional Housing Tribunal seeking, among other remedies, the eviction of the first plaintiff from the demised premises. In those proceedings, the first plaintiff counter claimed special and general damages for forcible eviction and loss of his furniture and personal effects. That application, however, was withdrawn at the instance of the first defendant.

It is also said that after the present suit was filed, the first defendant filed Application No. 182 of 1995 in Dar es Salaam Regional Housing Tribunal seeking the same remedies as those sought in the application which had been withdrawn.

At the time this suit was filed, the second defendant was no longer the Charge D'Affaires of the Republic of Romania in Tanzania and had in fact left Tanzania.

It is also relevant to note that the suit premises are within the premises of the Charge D' Affaires of the Republic of Romania in Tanzania.

On learning of the existence of the suit, the first defendant sent a *note verbale* to the Ministry, as pointed out above, protesting against the institution of this suit against the two defendants and claimed state and diplomatic immunity in respect of this suit. The first defendant accordingly requested the Ministry to inform this court to abstain from dealing with this matter on that ground. In response to the *note verbale*, the Ministry wrote two letters to this court, Ref. No. FAC/D.30/67 of 12th April, 1996 and FAC/D.30/67of 15th April, 1996, in which the Ministry informed the court that the defendants were not amendable to the jurisdiction of this court by reason of State and diplomatic immunity and that this court should accordingly desist from further dealing with the case.

From the very outset, I would like to express my sincere gratitude to Mr. E.H. Mbuya, learned counsel for the plaintiffs, and the Honourable the Attorney General for their lucid and powerful submissions which have been of great assistance to the court in this matter.

Mr. Mbuya objected to the plea of State and diplomatic immunity of the defendants on three main grounds. In the first place, he submitted that the defendants' actions in initiating proceedings in courts or tribunals of this country in the two applications over the same subject matter meant that the defendants are now precluded from raising the plea of State and diplomatic immunity in this case in terms of Article 32 (3) of the Vienna Convention of Diplomatic Relations 1961 (hereinafter referred to a s the Convention).

Secondly, Mr. Mbuya submitted that as far as the second defendant was concerned, the plea of diplomatic immunity was not available to him because at the time this suit was filed, the second defendant was no longer a diplomatic agent in Tanzania as he had left Tanzania, and was no longer an employee of the Ministry of External Affairs of the Republic of Romania.

Thirdly, Mr. Mbuya submitted that the plea of State and diplomatic immunity was not available to the two defendants because the cause of

action and subject matter of the suit arose out of, and related to, a landlord and Tenant relationship, which was a purely commercial transaction, and so, under the theory or doctrine of restrictive diplomatic immunity, the defendants are amenable to the jurisdiction of this court under international law.

With regard to Mr. Mbuya's first ground of objection, the Honourable the Attorney General submitted that as this suit is different from the applications referred to, and that as this court constituted by the Constitution of this country, is different from those other tribunals, no inference should be drawn from the acts of the defendants in the other courts or tribunals; and that Article 32(3) of the Convention cannot be invoked by the plaintiffs because these instant proceedings were not initiated by the defendants but were initiated by the plaintiffs themselves.

With regard to the second point that the plea of diplomatic immunity is not available to the second defendant because he had ceased to be diplomatic agent in Tanzania and had left the country, the Honourable the Attorney General submitted that in view of the *note verbale* of the first defendant, the two letters ~~of the Ministry to this court~~, and Article 39 (1) and (2) of the convention, and further, that as the second defendant had at all material times been a diplomatic agent of the first defendant, the plea of diplomatic immunity is available to the second defendant in the absence of a waiver from the first defendant.

Turning to the third ground, the Honourable the Attorney General submitted, in effect, that in view of the fact that there was no evidence, let alone a suggestion, that Tanzania, which is a common law orientated country, has ever adopted the restrictive diplomatic theory, and in view of the two letters of the Ministry to this court, it was clear that Tanzania still adheres to the doctrine of absolute diplomatic immunity.

On the basis of those submissions, it was the opinion of the Honourable the Attorney General that this suit be dismissed with costs to the defendants.

Before I deal with the specifics, let me briefly discuss principles of

international law, as far as they can be identified, on the questions raised in this case, particularly with regard to the absolute and restrictive theories or doctrines of diplomatic immunity.

Form the authories made available to me, there are, indeed, two schools of thought on the question of state and diplomatic immunity from civil suits, namely, the school of thought that advocates for the absolute theory of state and diplomatic immunity, and that which advocates for the restrictive state and diplomatic immunity in such cases.

The doctrine of absolute state and diplomatic immunity theory is, I think, to be found in case of The *Charkieh (1)* in which Sir Robert Phillimore said:

> The object of international law ... is not to work injustice, not to prevent the enforcement of a just demand, but to substitute negotiations between Governments, though they be dilatory and the issue distant and uncertain, for the ordinary courts of justice in cases where such use would lessen the dignity or embarrass the functions of representatives of a foreign state.

Lord Atkin stated the absolute theory of state and diplomatic immunity in the case of The *Cristina (2)* at page 490, in the following terms:

> ... (municipal courts) will not implead a foreign sovereign, that is, they will not by their process make him against his will a party to legal proceedings whether the proceedings involves process against his person or seek to recover from him specific property or damage.

The restrictive theory of state and diplomatic immunity seeks to differentiate between acts of the sovereign or head of State done in a public capacity (*acta jure imperii*) and those acts done by the sovereign or Head of state or his Department or other Authority for commercial, financial, or professional purposes (*acta jure gesticais*). The restrictive theory grants immunity in the former and withholds it in the case of the

latter. The restrictive immunity theory of state and diplomatic immunity as well as the purpose thereof were expressed in the case of *Victory Transport v. Comisaria General (3)* the United States Court of Appeals said:

> The purpose of the restrictive theory of sovereign immunity is to try to accommodate the interest of individuals doing business with foreign governments in having their legal rights determined by the courts with the interest of foreign governments in being free to perform certain political acts without undergoing the embarrassment or hindrance of defending the propriety of such acts before foreign courts.

Lord Denning, M.R. stated the restrictive diplomatic immunity theory in the case of *Trendtex Trading Corporation v. Central Bank of Nigeria (4)*, in the following terms at page 558.

> If a government department goes into the market places of the world and buys boots or cement – as a commercial transaction – that government department should be subject to all the rules of the market place. The seller is not concerned with the purpose to which the purchaser intends to put the goods.

It appears, then, that the absolute diplomatic immunity theory emphasizes safeguarding international comity or promotion of harmonious diplomatic relations between the sending and receiving states, sometimes to the detriment or disadvantage of interests of individuals, while the restrictive diplomatic immunity theory puts to the fore interests of individuals in commercial transactions as far a possible.

It is also clear from the authorities that in applying the restrictive diplomatic immunity theory, the vexing question for the courts has often been drawing the demarcation line between public acts and commercial acts. It is likewise evident that each case has largely been decided on the basis of its own peculiar facts and circumstances and, in some cases,

the decisions have been influenced by the stand taken by the government of the receiving state.

Having made the foregoing observations, I now proceed to deal with the points raised in the submissions and come to my own findings and conclusions thereon. I propose to deal with them in the order in which they were dealt with by Mr. Mbuya and the Honourable the Attorney General.

With regard to the first point, I think that it should be realized that this court, constituted by the Constitution, is different from, and superior to, the tribunals in the their two matters, and the suit before this court is an independent suit. So, any acts done by the defendants in other proceedings before other tribunals are, in my view, irrelevant for purposes of this suit. That being the position, no inference ought to be drawn from any other proceeding for purposes of this suit.

As for Article 32 (3) of the convention, it must be borne in mind that in this case, it was the plaintiffs who initiated these proceedings and not the defendants. Article 32(30 of the convention provides as follows:

> 32. 3. *The initiation of proceedings by a diplomatic agent or by a person enjoying immunity from jurisdiction* under article 37 shall preclude him from invoking immunity from jurisdiction in respect of any counter-claim directly connected with principal claim. (Emphasis supplied).

In the instant case, therefore, the plaintiffs cannot call in aid the provisions of article 32(3) of the Convention because the defendants did not initiate these proceedings.

For the above reasons, the first ground of objection by the plaintiffs must accordingly fail.

The second ground relates to the second defendant alone. It was argued on behalf of the plaintiffs that because the second defendant was no longer a diplomatic agent of the Republic of Romania in Tanzania

and is no longer in this country, and because, it was alleged, the second defendant is no longer an employee of the Ministry of External Affairs of the Republic of Romania, the plea of diplomatic immunity is not available to him.

From the contents of paragraph 5 of the plaint and the first defendant's *note verbale* to the Ministry, it is quite clear that at all material times as far as this suit is concerned, the second defendant was a diplomatic agent of the Republic of Romania accredited to Tanzania and, therefore, prima facie, enjoyed diplomatic immunity from civil, Criminal, and administrative jurisdiction in Tanzania by virtue of Articles 31 and 32 of the convention, which have the force of law in Tanzania by virtue of Act No. 5 of 1986 of Tanzania . It is equally clear from the plaint in so far as the transactions that gave rise to this suit are concerned, that the second defendant, at all material times, was acting on the instructions of his principal, that is, the first defendant, and not in his private capacity.

That being the position, the answer to this question, it seems to me, lies in Article 39(2) of the convention which reads:

> 2. When the functions of a person enjoying privileges and immunities have come to an end, such privileges and immunities shall normally cease at the moment when he leaves the country or on expiry of a reasonable period in which to do so, but shall subsist until that time, even in case of armed conflict. *However, with respect to acts performed by such a person in the exercise of his functions as a member of the mission, immunity shall continue to subsist.* (Emphasis supplied).

Ipso facto, the mere absence of the second defendant from Tanzania did not terminate his diplomatic immunity in this case because he performed the acts complained of in this suit in the exercise of his functions as a member of the first defendant's mission and on behalf of his State. That immunity could only cease if the Republic of Romania had waived it, and such waiver must be specified. (See Charles Lewis on *State and Diplomatic Immunity,* 1980, at page 107).

In the instant case, there has been no such waiver. On the contrary, in the *note verbale* referred to above, the Republic of Romania has categorically stated that it has not and will not waive the second defendant's diplomatic immunity in this case.

On these grounds, the second ground of objection also fails.

Finally, I turn to the third ground of objection. It has been submitted on behalf of the plaintiffs that since this was a purely commercial transaction, on the basis of the restrictive theory of State and diplomatic immunity, that plea is not available to the defendants.

In certain jurisdictions, such as the United States where courts jealously guard the principles of judicial independence and the rule of law, courts pay great hid to the stance taken by the Government of the receiving state. As observed by Charles Lewis in his book *State and Diplomatic Immunity,* 1980, at page 16:

> It appears in fact that the United States courts hardly exercise their own discretion since (the "Tate Letter") ...., but merely accept the view of the State Department (although the United States statute transfers the responsibility to the courts.)

This statement is inferentially confirmed by the *Victory Transport's* case (supra) in which the United States Court of Appeals observed:

> We do not think that the restrictive theory adopted by the State Department requires sacrificing the interests of private litigants to the international comity in other than these limited categories. Should diplomacy require enlargement of these categories, the state Department can file a suggestion of immunity with the court. Should diplomacy require contraction of these categories, the state department can issue a new or clarifying policy pronouncement.

I take the view that where the Government of the receiving State

takes no stance in the matter or has chosen to be silent in the matter, municipal courts should be free to exercise their judicial discretion on the basis of the authorities and the facts and circumstances of each case. But where the Government of the receiving State has taken a definite stand, that is an indication of whether such receiving state adheres to the absolute or restrictive theory of state and diplomatic immunity, and in such a case, the courts would do well to refer to such a pronouncement because the government could have more facts than the courts as to the delicacy of the matter and the competing claims.

In the instant case, the Ministry has stated in no uncertain terms that State and diplomatic immunity is available to the defendants in this case. With regard to the absolute and restrictive theory of State and diplomatic immunity, I tend to agree with the submissions of the Honourable the Attorney General that from the tone of the two letters of the ministry, to this court, Tanzania, which is a common law oriented country, is still adhering to the absolute theory of State and diplomatic immunity which, it would appear, is the cornerstone of the Convention.

Apart from the stance of the Ministry on this matter, I have taken into account the facts and circumstances of this case. Paragraph 6 of the plaint reads in part as follows:

> 6. That the property on Plot No. 11, Ocean Road, Dar es Salaam which is owned by the Republic of Romania is partly used as Chancery for the said Republic as well as residence of its Charge d'Affaires....

In other words, this suit touches upon part of the premises of the defendants' Mission in Tanzania, Article 22 of the Convention, which has the force of law in Tanzania by the provisions of the Diplomatic and Consular Immunities and Privileges Act, 1986, provides as follows:

> Article 22.
>
> 1. The premises of the mission shall be inviolable. The agents of the receiving state must not enter them except with the consent of the head of the mission.
>
> 2. The receiving state is under a special duty to take all appropriate steps to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity.

For these reasons, I am of the considered view that the third ground of objection must also fail.

In the upshot, I hereby uphold the defendants' plea and hold that State and diplomatic immunity are available to the two defendants in this case. This suit is accordingly dismissed.

It was urged by the Honourable the Attorney General that I should award costs to the defendants. With respect, I have not felt comfortable about making such an order in view of the fact that the defendants did not, as such, enter an appearance in this court. I accordingly order that each shall bear its/his own costs.

CHACHA MAKOLI CHACHA v. REPUBLIC

HIGH COURT OF TANZANIA
AT MWANZA
(Lugakingira, J.)

CRIMINAL APPEAL No. 42 OF 1996

(From the decision of the District Court of Tarime, at Tarime, D.D. Malamsha, Esq., DM, in Criminal Case No. 55 of 1996)

Criminal Law – Doctrine of Recent Possession – Link between commission of offence and possession by appellant interrupted by intervening possession – Whether doctrine of recent possession can apply

Criminal Practice and Procedure – Sentencing – Imposition of consecutive sentences – Trial court magistrate imposing consecutive sentences of 30 years' imprisonment and 12 strokes of corporal punishment making it 60 years and 24 strokes – Whether practically significant and justifiable

The appellant was convicted on two counts of armed robbery and sentenced, on each count, to 30 years' imprisonment and 12 strokes of corporal punishment, the sentences to run consecutively. He was the second accused at the trial, the first accused, his brother-in-law, was similarly convicted and sentenced, while the third accused was acquitted. Evidence at the trial suggested no more than that the appellant was a receiver of a stolen watch (one of the robbed items) but the trial court magistrate convicted him on the basis of the doctrine of recent possession.

Held:

(i) The doctrine of recent possession could not apply in this case as the link between the commission of the offence and the possession by the appellant was interrupted by intervening possessions; for the doctrine to arise there must be an unbroken link between the offence and the possession, the time factor notwithstanding.

(ii) The appellant was no more than a receiver and to found a conviction for receiving the prosecution had to adduce evidence showing that he received the watch knowing or having reason to believe that it was stolen property;

(iii) The trial court magistrate should not have imposed consecutive sentences of 30 years and 12 strokes of corporal punishment coming to a total of 60 years and 24 strokes; it is a long established practice that in such and similar circumstances the sentences should be ordered to run concurrently and in the instant case there is no justification for departing from that practice.

Appeal allowed

JUDGMENT

(Dated 26 January 1998)

Lugakingira, J.: The appellant, Chacha Makoli Chacha, was before the District Court of Tarime convicted on two counts of armed robbery and sentenced on each count to 30 years' imprisonment with 12 strokes, the sentences running consecutively. He was the second accused at the trial; the first accused, his brother-in-law, was similarly convicted and sentenced while the third accused was acquitted.

The two robberies took place between 7.30 p.m. and 8 p.m. on the Musoma–Tarime highway at Gamasara village in Tarime district. The first victim, PW1 John Matiko Gimunta, was on 13/12/95 driving in the Tarime direction when he suddenly came upon a road block consisting of stones laid across the road. He braked and stopped and in that instant a crowd of over ten bandits, one of whom had a gun, swarmed around his car. They relieved him of cash in Tanzanian and Kenyan currencies and a big brief case containing various articles and documents, including three traveller's cheques worth 180,000/= and a "casio" watch. He claimed to have identified the first accused among the bandits.

When the operation was in progress, the second victim, PW9 Chacha Kenani, driving a Landrover in the same direction, arrived at the scene and stopped. He immediately realised that all was not well, jumped out of the vehicle and fled as a gun shot rang out. He had in his vehicle 60 jerrycans of cotton seed oil and two cartons of "Sportsman" cigarettes. When he returned to the vehicle later he found 15 jerrycans and the two cartons gone.

The following day, at Tarime, the first accused sold three traveller's cheque to PW3 Chacha Mahende for 80,000/=. He paid 50,000/= and promised to pay the balance later. On 15/12/95 PW3 took the cheques to the bank to exchange them for cash but the bank authorities required him to produce a receipt for them. He had none and felt stuck. He then remembered that PW1, who happened to be his friend, dealt in import business and felt sure he had found a customer. He took

them to him but when PW1 looked at them he realised they were his for they bore his signature. He related to PW3 what had befallen him two days before and PW3 told him that he had bought the cheques from the first accused. On 15/1/96 they both proceeded to Musoma where the first accused was known to reside and with the assistance of Policeman they arrested him at his residence. The house was searched and the search unearthed, among other things, a compact cassette bearing PW1's name. In the questioning that ensued the first accused stated that his wife, the appellant's sister, PW4 Zeituni John, was at Kenyana in Serengeti district, which is also the appellant's home, attending her mother's funeral. On 16/1/96 the search party proceeded to Kenyana along with the first accused. It seems they did not find Zeituni there but to their astonishment they found her mother very much alive; and as luck would have it, they also found the appellant and his other sister, PW5 Matinde Kitangita. The appellant was sporting a "Casio" watch. Upon examination the watch was found bearing the name and address of PW1. The appellant told them that he was given the watch by Matinde and the latter agreed, adding that it was given to her by the first accused. Their house was then searched and the search brought forth PW1's bank statement, hotel bills and other documents, all in a paper bag containing Matinde's clothes. Other articles like a "Radio" watch were recovered elsewhere at the direction of the first accused.

At the trial the appellant repeated that Matinde gave him the watch which she again confirmed as prosecution witness. She stated that it was given to her by the first accused as a present on 6/1/96. She apparently made no reference to the documents found her paper bag but in answer to a question posed by the first accused she said: "You had not given me any property apart from the watch," and in re-examination she said: "He only gave me the watch which I never knew it was a stolen property." The prosecution were certainly not anxious to have an accomplice for their witness. Be it as it may, the evidence suggested no more than that the appellant was a receiver. The Trial

Magistrate does not seem to have appreciated this and convicted the appellant as one with the robbers. It seems he did so with the doctrine of recent possession in mind because I note that he inserted parenthetically the phrase "doctrine of recent possession" in that part of the appellant's evidence where he was being cross-examined by the prosecutor.

I think, with respect, the doctrine of recent possession could not come into play in this case as the link between the offence and the possession by the appellant was interrupted by intervening possessions. He came to possess the watch after it had passed through the hands of the first accused and those of PW5. For the doctrine to arise there must be an unbroken link between the offence and the possession, the time factor notwithstanding. In my view the appellant was no more than a receiver, and to found a conviction for receiving the prosecution had to adduce evidence showing that he received the watch knowing or having reason to believe that it was stolen property. This evidence was not available and I think the appellant was an innocent receiver for there was nothing unusual in the first accused giving a present to his sister-in-law. In my judgement, therefore, the prosecution did not establish beyond reasonable doubt as against the appellant either the offences charged or the alternative offence of receiving. Even Mr. Kabonde who appeared for the Republic declined to support the appellant's conviction.

I allow the appeal, quash the convictions and sentences and order the appellant's release from custody.

In conclusion I wish to say that the mode of sentencing had no practical significance apart from being unjustifiable. The Trial Magistrate imposed consecutive sentences of 30 years and 12 strokes, which came to 60 years and 24 strokes. A sentence of 30 years is in itself sufficiently atrocious and, given the state of our prisons, is incapable of being served. It is therefore a bad joke, even though founded in law, to speak in terms of 60 years. Moreover, there was hardly any interval between the robberies in this case. It is a long established practice that in such and

similar circumstances the sentences should be ordered to run concurrently. I find no justification for the departure from that rule in the instant case. In revision, I set aside the order of the trial court and direct that the custodial sentences imposed on the first accused, John Chacha Marwa, shall run concurrently. The strokes remain cumulative.

CATHOLIC DIOCESE OF MOSHI
v.
ATTORNEY GENERAL AND THE COMMISSIONER FOR CUSTOMS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mapigano, J.)

~~MISCELLANEOUS CIVIL CAUSE No.~~ 3 OF 1997~~—~~

Natural Justice – The right to be heard – Goods ordered from abroad by applicant knowing that the Minister has granted tax and import duty exemption on them – Minister changes his mind and revokes the exemptions – Whether the applicant was entitled to a hearing before revocations

Estoppel Representation relating to an event promised for the future – Whether giving rise to estoppel

Administrative Law – Exemption orders – Orders exempting customs duty and sales tax – Whether the orders have legislative effect – Sections 3(1) and 26 of the Interpretation of Laws and General Clauses Act 1972

Administrative Law – Exemption orders – Publication in the Gazette – Whether customs duty and sales tax exemption orders must be published in the Gazette to be valid – Section 7(1) of the Customs Tariff Act 1976 and s.28(1) of the Sales Tax Act 1976

The applicant succeeded to obtain from the Minister of Finance a waiver of sales tax and import duty on a consignment of used clothes to be imported from abroad. The applicant then proceeded to order the goods and to appoint agents to clear them from the port. But before the exemption orders were published in the Gazette the applicant was told that the Minister had revoked the exemptions. The applicant applied for certiorari and mandamus.

Held:

(i) As the applicant had already spent money on the transportation of the goods, it stood to be prejudiced by the revocation of the remissions and fairness demanded that it be given an opportunity to be heard before revoking the remissions;

(ii) In order to give rise to "estoppel", a representation must relate to an existing fact or a past event; as the Minister's representation in this case was essentially a promise *de futuro*, it did not create an estoppel;

(iii) The remission orders made by the Minister under s.7(1) of the Customs Tariff Act 1976 and s.28(1) of the Sales Tax Act 1976 are administrative acts and have no legislative effect;

(iv) The requirement to publish the remission orders in the Gazette is directory only and failure to comply with the directive does not affect the validity of the orders.

Minister's revocation quashed

Cases referred to:
(1) *Alderson v. Maddison* L.R.S. Ex. D 293
(2) *Jones v. Robson* [1901] 1 Q.B. 697

Mr. Ismail and *Dr Twaib*, for the Applicants
Mr. Mwidunda, for the Respondents

RULING

(Delivered 28 January 1998)

Mapigano, J.: The applicants have come to this court to fault the decision of the Minister for Finance revoking the remissions of import duty and sales tax he had granted in respect of certain goods. They are seeking an order of certiorari to quash it and an order of mandamus compelling the Minister and his subordinates to act with fairness and according to law.

It is not in dispute that sometime in 1994 the Moshi District council passed a resolution to solicit contributions in money and in kind from the general public and various institutions toward the rehabitation of the Mandaka – Kilema road. Pursuant to that resolution such contribution were sought from the Catholic Diocese of Moshi. The Diocese positively responded, and promised to do so from the proceeds derived from the sale of used clothes to be imported by it from abroad. It suggested that remissions of the sales tax and import duty payable on the goods be procured from the Government. Whereupon one Mr. James Mbatia, a Member of Parliament, approached the Government and succeeded to obtain such waiver. In July, 1996 the Minister for Finance proceeded to prepare and sign orders to that effect, and the applicants then appointed agents to clear the goods from the port of Dar es Salaam and transport the same to Moshi. But before the publication of the orders in the Gazette the applicants were notified by the second respondent that the Minister had reneged on the remissions and that the Diocese was bound to pay the whole duty and sales tax on the goods which had arrived at Dar es Salaam. Not only that, the second respondent later advertised an auction for sale of the goods.

From the submissions made by Mr. Ismail, learned advocate, and Mr. Mwidunda, learned state attorney, on behalf of the applicants and the respondents, respectively, there are five points of law which pose for determination in this case. The first related to the political status of Mr. James Mbatia; the second is the assertion that the Diocese was denied natural justice; the third is about the applicability of the doctrine

of estoppel; the fourth concerns the legal validity of the unpublished remission orders; and the fifth, which is urged in the alternative, is whether GN's 175 and 176 of 1973 can be resorted to.

I will start with the last point. The question is whether the remissions should have been granted under those two GNs in any event. Mr. Ismail points out that the Diocese being a religious institution was entitled to be exempted from payment of import duty and sales tax by virtues of those GNs. Accordingly, he argues, if the Minister no longer wished to grant the remissions in terms proposed by the Diocese, he should have directed the Diocese to comply with the condition set out in the two GNs, namely, not to sell or otherwise dispose of the goods in return for any material consideration. This seems to me to be a sensible propostion. Mr. Mwidunda says however that if the Diocese was beneficiary under those GNs, then it should not have sought the remissions. The simple and obvious answer to that is that remissions under those GNs would not have achieved the designed end. It would not have benefited the road rehabilitation project. The Diocese's idea was to sell the goods and put the amount realized into the project. But as just pointed out, the conditions attached to the exemption given by the GNs is that the goods should not be sold or otherwise disposed of in return for any material consideration.

I turn to the first question, which is whether the Minister's failure to keep his word was induced by an irrelevant and improper consideration, i.e. the fact that Mr. James Mbatia was a member of an opposition political party. I must agree with Mr. Mwidunda that it is sheer speculation that the Minister's decision was induced by the political status of Mr. Mbatia. For one thing, we have been told that Mr. Mbatia was in the forefront in the seeking of the exemptions, and I cannot bring myself to believe that the Minister was not aware that Mr. Mbatia was a member of an opposition political party before he made the decision to give the exemptions. So my reply is in negative.

The second question is whether the withdrawal of the remissions constituted a breach of the rules of natural justice It is said that the applicants were not afforded any opportunity of making representation before the Minister took the decision to revoke the remissions, and it

is pointed out that the Minister did not state any reason for doing so. On his part, Mr. Mwidunda submits that there was no occasion to bring the rules of natural justice into play. And he makes the allegation that official investigations carried out revealed gross misuses of exemptions which had been granted to religious bodies.

I regret to say that Mwindunda's assertion is untenable. There is no evidence to support it. Even if it is true that such investigations took place and that the Diocese was implicated in the alleged misuses, fairness demanded that it be given the opportunity of being heard about the matter, considering that it stood to be prejudiced by the revocation of the remissions, for it had already spent money on the transportation of the goods.

The next question is whether the doctrine of estoppel operated against the Minister's denial of the validity of the unpublished remission orders, and Mr. Mwidunda is right in saying that estoppel is a rule of evidence by which a party litigant is precluded, as against the other party, from contradicting in that litigation the truth of any representation previously made by him to such other party with the object and result of inducing him to alter his position to his detriment.

Mr. Ismail contends that it was in reliance of the Minister's representation that the Diocese committed itself to make the contributions, and proceeded to import the goods and to pay the freight thereon. If I understood him correctly, the representation consists in the Minister's promise that he would have had the remission orders published in the Gazette. On the other hand, Mr. Mwidunda Maintains that the doctrine of estoppel cannot be operated in this case.

Mr. Mwidunda is right. Indeed Mr. Ismail's contention reminds one of the caution given by one learned text writer that perhaps no other technical legal term is more loosely used than the term "estoppel." As I understand the law, in order to give rise to an estoppel a representation must relate to an existing fact or past event. A mere statement of intention or a promise to do something in future does not create an estoppel. As was stated in the old case of *Alderson v. Madison (1),* and I quote:

> There is a class of false representation which have no legal effect. Those are cases in which a person excites expectations which he does not fulfill, as for instance; where a person leads another to believe that he intends to make him his heir, and then leaves his property away from him. Though such conduct may inflict greater loss on the sufferer than almost any breach of contract, and may involve greater moral guilt than many common frauds, it involves no legal consequences. Unless the person making the representation not only excites the expectation that it will be fulfilled, but legally binds himself to fulfill it, in which case be must, as it seems to me, contract to fulfill it.

I need hardly say that the Minister's representation was essentially a promise *de futuro* and that there is no suggestion here, let alone evidence, that the Minister contracted to fulfill it. I regret to say, therefore, that estoppel cannot be operated.

I finally come to the question whether the non-publication of the remission orders in the Gazette affects the legal validity of the same. This, in my view, is the all important question in this case. There is also the subsidiary question whether, if the orders had been published, they would have had legislative effect.

Mr. Ismail would have me answer both the principal and subsidiary questions in the negative, and he relies on the provisions of section 26 of the Interpretation of Laws and General Clauses Act of 1972. By that provision any subsidiary legislation must be published in the Gazette, unless it is otherwise expressly provided in the parent Act, or relates to the appointment of any person in any office; or relates to any matter not having legislative effect. And it is to be observed that the definition given to the term "subsidiary legislation" by section 3 (1) of the Act includes any order or notice made under any Act or other lawful authority. Mr Ismail has expressed the view that even if gazetted such remission orders do not have any legislative effect.

Mr. Mwidunda holds the opposite view. He contends that had the orders been published they would have had a legislative effect. More importantly, he points out that the orders could only have been made by the minister under the power conferred upon him by section 7 (1) of the Customs Tariff Act, 1976 (Act No. 12 of 1976) and section 28

(1) of the Sales Tax Act, 1976 (Act No. 13 of 1976). He contends that under those provisions such remissions must be given by publication in the Gazette, and that such publication is a prerequisite of validity of the remissions. Accordingly, he submits that there was no remission of duty given to the Diocese in the contemplation of law, and that therefore this application is wholly misconceived.

On the question whether such remission orders have legislative effect when gazetted, it is important to bear in mind the point made by Professor Wade in his work on *Administrative Law* that there is an infinite series or gradations between what is plainly legislation and what is plainly administration. My considered and firm opinion is that remission orders made by the Minister under the two statutory provisions are administrative acts and have no legislative effect whatever.

On the Principal question whether publication is an absolute precondition of the remissions having legal validity, I go by the view expressed by Professor Wade, who cites the decision in *Jones v. Robson (2)*, that the requirement that such orders be given publicity in the Gazette is no more than directory, and a failure to comply with the directive will not affect the validity of the orders. As the eminent professor reminds us in the same book, the whole objective behind such publication is to bring the purport of the order concerned to the notice of the public or of persons likely to be affected by it, thereby making the legal maxim "ignorance of the law does not excuse" more rational, in view of the growing stream of delegated legislation. It is, however, food for reflection whether out Gazette is really the ideal or efficient medium for such publicity in Tanzania.

I have in the result come to the conclusion that the Minister's decision to revoke the remissions was improperly taken and that it should be quashed and that though the remissions were not gazetted, they are nevertheless legally valid and should thus be honoured by the second respondent. *It so ordered.*

MOBRAMA GOLD CORPORATION LTD

v.

MINISTER FOR ENERGY AND MINERALS, AND THE ATTORNEY GENERAL, AND EAST AFRICAN GOLDMINES LTD AS INTERVENOR

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mapigano, J.)

MISCELLANEOUS CIVIL CAUSE No. 42 OF 1995

Civil Practice and Procedure – Extension of time to file document – Application for extension of time to file document made after the document is already filed out of time – Whether application for extension of time proper and competent

Civil Practice and Procedure – Extension of time – Extension sought in order to cover a delay that is not excessive and not causing injustice or prejudice to the other party – Principles to be considered by court in determining applications for extension of time

Administrative Law – Application for prerogative orders – Intervention by a party against whom no remedy is sought – Party not cited as respondent but the orders sought will affect its proprietary interests – Whether may intervene and oppose application for the orders

By an agreement made with the Government in terms of s.15 of the Mining Act 1979 the applicant was given exclusive rights to undertake gold operations in a certain area in Tarime District. Pursuant to the agreement the applicant was issued with a prospecting licence which contained a stipulation that two portions of land described as "small scale blocks" and marked "TR1" and "TR2" were excluded from the licence area. Then, a prospecting licence (PL 388/96) over the said small scale blocks was issued to six persons. This arrangement aggrieved

the applicant who then applied for leave to apply for prerogative orders. Leave was granted and a schedule was set for filing the substantive application and for the respondents to file counter affidavits. The respondents' counter affidavit was filed 5 days out of time and an application for extension of time to file the same was filed subsequently. In the meantime another company called Afrika Mashariki Gold Mines Ltd (formerly East African Gold Mines Ltd) filed another application as "Intervenor," seeking to be joined in the proceedings so as to defend its interests in the subject matter of the case. The applicant objected to the respondents' application for extension of time to accommodate the counter affidavit filed out of time and opposed the intervenor's application.

Held:

(i) There is no absurdity or abuse of the court's process in the mere seeking of enlargement of time to lodge a document after the document has already been lodged out time and such conduct does not render the application for extension of time incompetent or contemptuous of the court: *Shanti v. Hindocha and Others* (1) applied;

(ii) It is generally inappropriate to deny a party an extension of time where such denial will stifle his case; as the respondents' delay does not constitute a case of procedural abuse or contemptuous default and because the applicant will not suffer any prejudice, an extension should be granted;

(iii) Any person who can show to the court that he is affected by proceedings for prerogative orders has *locus standi* and may show cause against the summons; as a grant of the orders sought by the applicant is bound to prejudice the proprietary interests that the intervenor claims to be having, it is just and proper that the intervenor be afforded the opportunity to be heard and present its case and effectively protect its interests.

Extension of time granted

Application to intervene granted

Cases referred to:

(1) *Shanti v. Hindocha and Others* [1973] E.A. 207

(2) *Castellow v. Somerset County Council* [1993] 1 All E.R. 952

(3) *R. v. Inspectorate of Pollution and Another, ex parte Greenpeace* [1994] 4 All E.R. 329

(4) *Gregory and Another v. London Borough of Camden* [1966] 2 All E.R. 196

Capt. Kameja and *Mrs. Maajar*, for the Applicant

Mr. Mallaba, for the Respondents

Dr. Kapinga, for the Intervenor

RULING

(Delivered 18 February 1998)

Mapigano, J.: By the Agreement entered into on 5/8/94 the Government and Mobrama in terms of section 15 of the Mining Act, 1979, Mobrama obtained the sole and exclusive right of undertaking gold operations on and beneath a certain area situate in the Tarime District for the period specified therein. Mobrama was then issued with a prospecting licence which contained a stipulation to the effect that two parcels of land within the contract area described as "small scale blocks" and marked : TR1 and "TR2", respectively, were to be excluded from the licence. Next the Minister for water, Energy and Minerals, the first respondent, issued a prospecting licence (PL 388/96) to six persons over the small scale blocks. Mobrama was aggrieved. It contends that the exclusion of the said blocks was an attempt on the part of the Minister to amend to Agreement unilaterally; and that the grant of the prospecting licence to the third parties was *ultra vires, mala fide*, and a violation of its rights under the Agreement.

On 15/9/95 Mobrama initiated legal proceeding. It took out a chamber summons seeking leave to apply for prerogative orders. Mr. John Nugent swore an affidavit in support, stating *inter alia* that the introduction of the two blocks has induced other to intrude on the contract area, and that these intrusions have impeded Mobrama's prospecting activities.

On 2/4/97 Mobrama was granted leave to apply for the relief and it was ordered that the substantive application be filed by 18/4/97, and that the respondents should file a counter affidavit by 9/5/97, if they wished to do so. The application was filed within the time prescribed but the respondent failed to comply with the order of the Court.

The record shows that the counter affidavit sworn by Mr. Salula, Senior State Attorney, was instead filed on 14/5/1997; and that on the next day the respondents brought a chamber application seeking an extension of time within which to file the deposition, and there is an affidavit also sworn by Mr. Salula in support of the application.

In the meantime another chamber summons was taken out by M/s East African Gold Mines Ltd., now called Afrika Mashariki Gold Mines Ltd, which describes itself as intervenor, by which this court is being asked to issue an order to join it as a party to the proceedings, or to grant it leave to file affidavit evidence and be heard in regard to the substantive matter. This application is supported by an affidavit sworn by Mr. Joseph Muniko Chacha.

Mobrama strongly opposes both applications and on its behalf Captain Kameja, learned advocate, has raised what he terms a preliminary objection with regard to the application for extension of time. Captain Kameja submits that the application is misconceived, incompetent, bad in law and/or judicially improper, and urges that it be rejected. I will deal with this point first.

Captain Kameja contends that it is wrong for a party to proceedings in court who has been ordered to take a certain step within a specified period to take that step out of such specified period and thereafter apply for extension of time to do what he has already done behind time without leave of the court. He described such conduct as absurd, contemptuous of the Court's authority and abusive of the process of the Court. Mr. Salula who appears for the respondents disagrees.

Mr. Salula has drawn on the decision of the Court of Appeal for East Africa case of *Shanti v. Hindocha and Others (1),* to support his opinion. This is what that court stated on the point:

> An extension of time may be granted even where the record has been lodged out of time and before the application (for extension.....) We think that when the time for lodging a document is extended, the document is duly lodged if lodged within the time so extended, whether the actual lodging is before or after the order of extension. To hold otherwise would serve no purpose and would merely result in further costs being incurred.

But Captain Kameja submits that that case is distinguishable from the present case in a material and decisive respect, namely, that the failure of the defendant to lodge the record or document in time in that case was entirely due to the inability of the High Court registry to supply copies of the documents necessary to complete the record.

I am unable to agree with Captain Kameja. It is true the Court was in that case dealing with a delay for which the party could not be blamed. There can be no doubt however that the words in the above quoted passage are of wider application, and I need not add that the decision is binding on this court. In the circumstances I must hold that there is no absurdity or abuse of Court's process in the mere seeking of an enlargement of time to lodge a document after the document has been lodged out of time, and that such conduct does not per se render the application for extension of time incompetent, or constitute a contempt of Court. Accordingly, the preliminary objection is overruled.

In the event I have now to consider the application on merits. I have read and followed the depositions filed by the parties as well as the submissions made by the two learned Counsel. In my opinion it is futile to disagree with captain Kameja that the respondent' failure to comply with the order of the Court is inexcusable. It is perfectly fair to say that the delay is wholly attributable to slackness. I so hold.

But buttressed by authorities Mr. Salula contends that the excusability or otherwise of the failure is not the only matter which should be considered, and that the court must also consider (a) whether or not the delay in filing the deposition is excessive; (b) whether or not the

delay has occasioned prejudice to Mobrama; and (c) whether an order for payment of compensation by way of costs would be an adequate remedy to the prejudice or not. Mr. Salula submits that the delay in filing the deposition cannot in the circumstances of this case be termed excessive or inordinate, and that Mobrama has not demonstrated that it has suffered any material prejudice as a result of the delay. I am in respectful agreement.

The decision in the English case of *Castellow v. Somerset County Council (2),* to which my attention has been called by Mr. Salula, serves to remind us that in general an application for extension of time is a matter which involves a consideration of two interacting principles, neither of which is absolute, namely, and I quote from that judgment:

> The first is that the rules of Court and the associated rules of practice, devised in the public interest to promote the expeditions dispatch of litigation, must be observed. The prescribed time-limits are not targets to be aimed at or expressions of pious hope but requirements to be met. This principle is reflected in a series of rules giving the Court a discretion to dismiss on failure to comply with a time limit. It is also reflected in the Court's inherent jurisdiction to dismiss for want of prosecution. The second principle is that a plaintiff should not in the ordinary way be denied an adjudication of his claim on its merits because of procedural default, unless the default causes prejudice to his opponent for which an award of costs cannot compensate. This principle is reflected in the general discretion to extend time conferred by the rules, a discretion to be exercised in accordance with the requirements of justice. It is also reflected in the liberal approach generally adopted in relation to amendment of pleadings. Neither of these principles is absolute. If the first principle were rigidly enforced, procedural default would lead to the dismissal of actions without any consideration of whether the plaintiff's default has caused prejudice to the defendant. But the Court's practice has been to treat the existence of such prejudice as a crucial, and often decisive, matter. If the second principle were followed without exception, a well-to-do plaintiff willing and able to meet orders for costs made against him could flout the rules with impunity, confident that he would suffer no penalty unless or until the defendant could demonstrate prejudice.

The Court went on to state that save in special cases, e.g. cases involving procedural abuse or questionable tactics, and cases of contemptuous and intended default, it can rarely by appropriate to deny a party an extension where the denial will stifle his case.

That opinion commends itself to me and I adopt it. It seems tome to be beyond rational argument that the respondents' delay does not warrant overriding the second principle. Certainly it is not a case of procedural abuse or a contemptuous default. And Mr. Salula is right in saying that Mobrama has not demonstrated that it has suffered, or will suffer, any prejudice. In the circumstances I have to allow the application and grant the extension to the respondents. I so do.

I turn to the intervenor's to the respondents. It is not in dispute that any person who can make it appear to the Court that he is affected by proceeding for a prerogative order has *locus standi* and may show cause against the summons. The intervener says that it is precisely such a person.

According to Mr. Mwita's supporting affidavit, the claims of the small scale blocks were pegged by the six persons back in 1991, in terms of section 74(1) of the Mining Act, following an invitation from the Commissioner of Mineral Resources. The same were then registered under section 74(3) of that Act, whereby the six persons procured exclusive prospecting rights in the disputed area. In June, 1996, they were granted a prospecting Licence, PL. No. 388/96, which was subsequently assigned to the Intervenor, who then procured a Mining Licence, ML No. 18/96. On the presumption of and reliance upon the validity of the Claims, the in Intervener has expended a substantial amount of money in exploration and feasibility studies. It is repeatedly and emphatically asserted that if leave is granted the Intervenor will

endeavour to show, inter alia, (a) that the claims were subsisting and valid when Mobrama executed the section 15 Agreement; (b) that the claims could have been easily ascertained by a search of the Mining Registers at Tarime, Mwanza and Dodoma, and (c) that the area in dispute was neither part of the subject-matter of that Agreement nor part of the area granted to Mobrama under PL No. 217/94.

In substance Mobrama's submission is of the following nature: The issue of PL No. 388/96 was mala fide and void. Since the thrust of the Intervenor's argument is that it would be directly affected by the determination of the substantive application, one would have expected it to expressly seek reliefs from the efforts of such determination. But it has not done so. Reference is made to the decision in *R. v. Inspectorate of Pollution & Another ex parte Greenpeace (3),* where it was held that when the court is dealing with an application for judicial review it has to take into account, in the exercise of its discretion, the remedy which the applicant seeks to achieve and the nature of the relief sought.

Mobrama also contends that the intervenor has not suffered any legal wrong of any actual loss of anything. The decision of Pauli, J. in *Gregory and Another v. London Borough of Camden (4)* at 203, is cited as an authority for the requirement that before one can come to a Court of Law one must suffer a legal wrong as well as an actual loss of money or amenity or something else.

Finally, Mobrama makes the argument that the Intervenor will not be prejudiced by its not being made a party to the proceedings; that all what the Intervenor seeks to present before the Court can be effectively ventilated by the Attorney General; and that the Intervenor's application is not only frivolous and vexatious but an abuse of the Court's process as well, for it virtually seeks to usurp or supplement the role of the Attorney General as an advocate of the first respondent.

In reply it is submitted on behalf of the intervenor that the first question the Court has to determine when considering the issue of *locus standi* is whether the applicant has sufficient interest in the

proceedings, and not whether he seeks to have orders made in its favour. In that relation my attention is drawn to the fact that in its substantive cause Mobrama seeks to have the decisions to issue PL No. 388/96 to the six claim holders and to approve the subsequent transfer of the PL to the Intervenor quashed.

It is also submitted on behalf of the Intervenor that Gregory's case is distinguishable, and that at any rate the rule as to legal standing has since been modified, and I am referred to four authorities. It is further submitted that the Intervenor has *locus standi*; regard being had to the fact that its licence is at state, and irrespective of whether the test is one of "special interest' or "sufficient interest" of "aggrieved person."

What I know is that the rule or concept of *locus standi* as restated in the Gregory's case is one which is now considered too restrictive. The modern approach has been to substitute the notion of sufficient interest for that of private interest. It is true that the intervenor has not expressly asked for any remedy. But I am disposed to think that it would have been premature for it to do so.

A part from that, there should not be any genuine doubt as to what the Intervenor ultimately wants. It wants Mobrama denied the orders sought in the substantive application. Its claim of right over the area in dispute is based on the Claims of the six person. If those claims are valid, then the grant of the orders in favour of Mobrama is bound to have a prejudicial effect on its proprietary interests. Whether those claims are legally valid; whether they actually existed at the time of the issue of the Mobrama's PL, and whether the issue of PL No. 388/96 was mala fide, are, in my opinion, matters which should be fully gone into and finally determined upon the hearing of he substantive application. I am perfectly satisfied that it is just and proper that the intervenor be afforded the opportunity of being heard and of presenting its case the way it deems effective, in order to protect its interests.

I think it would be risky and naive for it to entrust that task to the Attorney General. Accordingly, the application is granted. The Intervenor is allowed to file depositions, and it is to be fully heard in the proceedings.

KITERIA MENEZES AND 33 OTHERS
v.
AREA ENGINEERING WORK LTD & THE ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Chipeta, J.)

CIVIL CASE No. 297 OF 1997

Civil Practice and Procedure – Representative suits – Application for leave to file a representative suit – Whether leave to file a representative suit may be sought after the representative suit has been filed – Order I Rule 8 of the Civil Procedure Code 1966

Civil Practice and Procedure – Representative suit – Application for leave to file a representative suit – Whether application for such leave may be filed as an interlocutory application

Some 34 persons filed a suit in court and it was registered as Civil Case No. 297 of 1997. Twenty days later the 1st Plaintiff in that case brought this application seeking leave to represent the 33 others in that suit. The defendants objected to the course taken by the applicant as unprocedural.

Held:

(i) A pre-condition to filing a representative suit is that an application for leave to file such a suit has first to be made under Order I rule 8 before filing the suit;

(ii) As Civil Case No. 297 of 1997, which purports to be a representative suit, was filed before seeking leave to file the same it was prematurely filed contrary to law and is not properly before the court;

(iii) An application to file a representative suit must be filed as a substantive application and not an interlocutory application because it is not dependent on any existing proceeding; this application was improperly filed as an interlocutory application to Civil Case No. 297 of 1997 and is not properly before the court.

Both suit and application struck out

Case referred to:
(1) *Sonko v. Haruna* [1971] E.A. 443
(2) *Captain Bendera and Others v. My Computer and Others*, HC – DSM – Civil Case No. 117 of 1992 (unreported)

Prof. Fimbo, for the Applicants / Plaintiffs
Mr. Maira, Mr Kilindu, and *Mr Mugare*, for the 1st Defendant
Mr. Salula, Senior State Attorney, for the 2nd Defendant

RULING

(Delivered 27 February 1998)

Chipeta, J.: This is a ruling on preliminary points of law raised by Mr. Maira, Mr. Kilindu, and Mr. Mugare, learned counsels for the defendants/respondents.

The background of the matter is that on 21st October, 1997, Kiteria Menezes and 33 others filed civil case no. 297/1997 seeking, *inter alia*, an order to nullify the sale of a building then situated on plot no. 16, Old Kisutu/UWT Street, to the plaintiff. On 10th November, 1997, Kiteria Menezes filed a chamber application in that same case seeking, *inter alia*, leave to:

> "represent 33 people who have similar interest in this suit."

On 18th December, 1997, the defendants, namely, Afra Engineering Works Ltd, and the Attorney General, filed a counter affidavit opposing the chamber application. On the same day they filed notice of

preliminary objections on three points, namely, that the application has been brought under wrong provisions of the law, that the application was incompetent for want of *locus standi* in that Kiteria Menezes had not obtained leave to institute the proceedings under representative procedure, and that the application was bad in law as it was founded in a suit which is *res judicata*.

During the hearing of these proceedings, I permitted learned counsels of both sides to address the court in respect of both the civil case and the application, Mr. Maira submitted that Kiteria Menezes has no *locus standi* as she had not sought and been granted leave of the court to file a representative suit under Order I, Rule 8 of the Civil Procedure Code, an omission which, he submitted, was fatal to the proceedings. In his submissions, the accepted practice and procedure was for a party to file a miscellaneous application for leave to file such a suit, something which had not been done in this matter and so, in law, there is no application but only a civil suit, Mr. Maira accordingly prayed that all the proceedings be struck out as being incompetent. For this submission, learned counsel relied on the case of *Sonko v. Harung (1)*.

Second, Mr. Maira submitted that the suit was *res judicata* in that it offends section 9 of the Civil Procedure Code because the issues in this case between the parties were decided in the Kisutu Court Miscellaneous Application No. 263 of 1997. Thirdly, Mr. Maira submitted that the suit disclosed no cause of action because the plaintiffs did not state whose tenants they were.

For those reasons, Mr. Maira submitted that both the suit and the application were not properly before the court and so should be struck out.

Mr. Kilindu added that in the application, the plaintiffs/applicants referred to "the suit," disclosing that they had already filed the suit.

Mr. Salula, learned Senior State Attorney for the Attorney General, subscribed to the submissions made by Mr. Maira and Mr. Kilindu.

Professor Fimbo, learned counsel for the applicants/plaintiffs,

submitted that this was an application for leave to file a representative suit, and that the application, on which the suit was dependant, could stand alone. And so, he submitted, it could not be said that there was no application because there was no suit as both the suit and the application were filed on the same day. While conceding that an application for leave to file representative suit should precede the filing of such suit, in his submission, there was nothing fatal to the application.

As to the practice and procedure of this court, Professor Fimbo submitted that there was nothing expressly ruling out a situation where a representative suit is filed prior to the grant of permission and the requisite permission is sought subsequently. He relied for this submission on a ruling of this Court (late Mkude, J.) in the case of *Captain Bendera and Others v. My Computer and Others (2)*.

On the submission of no cause of action, Professor Fimbo submitted that pleadings could be amended. In the altenative, he submitted that the plaint did disclose a cause of action.

On the question of *res judicata*, learned Professor submitted that the issues in the Kisutu RM's Court matter were different from those in the present suit, and so, he submitted, there was no question of *res judicata* in the present suit.

The crucial question in these proceedings, it is clear to me, is as to whether Civil Case No. 297 of 1997, and the application filed in that case are properly before this court. Since Civil Case No. 297 of 1997 purports to be a representative suit, then the provisions of Order 1, Rule 8 of the Civil Procedure Code had to be compiled with. In other words, the plaintiffs, as a precondition to filing that case, had to file an application for leave to file such a representative suit. The Plaintiffs did not do so before filing Civil case. No. 297 of 1997. In my view, that was a fundamental error. I do not subscribe to the view expressed in Bendera's case (supra) that one can file a representative suit and then apply for leave later.

That would be putting the cart before the horse. The absurdity of such a situation is not far to seek: what if the court should refuse to

grant leave? The law, in my view, is that a party desirous of filing a representative suit must, as a precondition, seek and obtain leave before filing such suit. That, in my view, is the plain, ordinary, natural, and reasonable meaning of Order I, Rule 8 of the Civil Procedure Code.

To conclude, therefore, it is abundantly clear that Civil Case No. 297 of 1997 was prematurely filed, and filed contrary to law, and so the same is not properly before this court.

I now turn to the application for leave. As was correctly pointed out by Mr. Maira, the correct practice is that in applications such as the one canvassed here a miscellaneous application or cause must be filed as a substantive application. It cannot be filed as an interlocutory application because it is not dependent on any existing proceeding. That is exactly what the plaintiffs/applicants did. The application was filed as an interlocutory application to Civil Case No. 297 of 1997. That is clear not only from the contents of the chamber application but also from the fact that it bears the number of Civil Case No. 297 of 1997. That was a serious error calculated to circumvent the provisions of the law.

It appears to me that this application was filed as an afterthought after the plaintiffs had realized that Civil Case No. 297 of 1997 had been filed contrary to law. Incidentally, the application and Civil Case No. 297 of 1997 were not filed on the same day. The application papers were filed almost three weeks later.

For these reasons, I hold that both Civil Case No. 297 of 1997 and the accompanying application for leave to file a representative suit are not properly before this court. Both are accordingly struck out with costs to the defendants/respondents.

ABDALLAH MOHAMED MSAKANDEO AND OTHERS

v.

CITY COMMISSION OF DAR ES SALAAM AND TWO OTHERS

HIGH COURT OF TANZANIA AT DAR ES SALAAM
(Mackanja, J.)

MISCELLANEOUS CIVIL CAUSE No. 95 OF 1997

Civil Practice and Procedure – Government Proceedings – Suits against the Government – Application for leave to file a representative suit against the Government – Whether application requires a 90 days' prior notice like a suit – Section 6(2) of the Government Proceedings Act 1967

Civil Practice and Procedure – Representative suit – Application for leave to file a representative suit – Whether applicant may seek leave without first establishing existence of numerous persons interested and willing to join in the suit – Order I rule 8 of the Civil Procedure Code 1966

The applicants sought leave to institute a representative suit to challenge the legality of the dissolution of the City Council of Dar es Salaam by the 2nd respondent and its replacement by the 1st respondent. The application raised preliminary issues whether the application was subject to and had to comply with s. 6(2) of the Government Proceedings Act 1967 requiring a 90 days' notice prior to its institution, and whether in applying for leave to file a representative suit the applicant had to comply with the provisions of that Act.

Held:

(i) An application for leave to file a representative suit to sue the Government is not a suit against the Government and s. 6(2) of the Government Proceedings Act 1967 requiring 90 days' notice is inapplicable;

(ii) The provisions of Order I rule 8 of the Civil Procedure Code 1966 require

an applicant for leave to file a representative suit to establish that numerous persons are similarly interested in the intended suit, and they are willing to join in it; those provisions do not admit of a situation where the applicant merely intends to "invite" others who may have an interest in the case.

Application dismissed

Mr. Mwengela/Mr Jundu, for the Applicants
Mr. Nchimbi, for the 1st Respondent
Mr. Mallaba/Mr Ngwembe, for the 2nd and 3rd Respondents

RULING

(Delivered 12 March 1998)

Mackanja, J.: One Abdallah Mohamed Msakandeo and two others have taken out a chamber summons by which they have lodged an application for leave to institute a representative suit challenging three matters, to wit, the dissolution of the City Council of Dar es Salaam, the establishment of the City Commission of Dar es Salaam and the extention of the life of the said commission.

The applicant swears that he and others have been aggrieved by the act of the second respondent in establishing the first respondent, a course of action he believes is illegal. It is on that account that he would wish to lodge a representative suit on behalf of himself, two other people he has included in the application, "... together with any other interested party resident in Dar es Salaam."

The respondents have opposed the application. They have led affidavit evidence in that behalf. Mr. Mallaba, learned Senior State Attorney, swearing on behalf of the second and third respondents, states that the application is incompetent on a number of reasons. Firstly, and since the application is for leave to sue, among others, the Government, the Government Proceedings Act, 1967, requires that the applicants had to have served notice of their intention to do so 90

days before these proceedings were instituted. Secondly, and as it appear to be, even if the applicants intend to file an application for leave to file representative application for prerogative orders, the application is premature because no leave to do so has been obtained. Thirdly that those it is intended to be represented who include "any other interested party" cannot be ascertained with sufficient particularity.

The first respondent has its own remonstration against the application. In the affidavit evidence that was sworn by Vincent K. Damian Lyimo, it is contended that the application is incompetent because:

1. the applicants have not indicated that they have suffered a special injury or any injury at all in respect of the acts complained of;

2. the right which the applicant allege to have been infringed is more of a public right than an individual right, in which case they have no right to sue;

3. the applicants have failed to produce evidence that they have obtained the consent of those they seek to represent and that they have the same interest;

4. the acts complained of are not inconsistent with the democratic rights of a large part of the population of Dar es Salaam.

So the issue, really, is whether this application is maintainable at law. It is also now opportune to record that Mr. Mwengela, learned advocate, acts for the applicants; Mr. Nchimbi represents the first respondent and the 2nd and 3rd respondents are defended by the Attorney General. Indeed, this application was argued by way of written submissions. I have discovered, however, that some portions of these written arguments' are presented as if a case for a representative suit was already in place. I will therefore be cautions when dealing with them.

Whether or not this application is maintainable at law depends on a number of factors. One, that it must not be pre-mature. This brings us to the issues that were raised by Mr. Mallaba, learned Senior State Attorney, in his affidavit. No one will question the truth that a suit against the Government is governed by the Government Proceedings Act, 1967 as amended. Section 6 (2) makes it plain that:

> No suit against the Government shall be instituted and heard unless the claimant previously submits to the Government, Department or officer concerned a notice of not less than ninety days of his intention to sue the government, specifying the basis of his claim against the Government, and he shall send a copy of his claim to the Attorney General.

Does an application for leave to file a representative suit fall under the above provision? I find the answer in the following observations. In order to be, covered by section 6 (2) the application must meet the qualifications of a suit. The learned authors of *Black's Law Dictionary*, Abridged Sixth Edition, define the word suit to be a generic term at pages 1001 – 1002:

> .... Referring to any proceeding by one person or persons against another or others in a court of law in which the plaintiff pursues, in such court, the remedy which the law affords him for the redress of any injury or the enforcement of a right whether at law or in equity.....

A suit, therefore, is commenced when a person institutes proceedings for the recovery of remedy or for the enforcement of a right or an interest. There is no doubt that an application such as the instant one does not have, as its primary objective, the recovery of any compensation, damages or any remedy whatever. It is an application the success of which is a condition precedent for the institution of an action in which reliefs or damages will be asked for. In my judgment

an applicant like the one in these proceedings is not required to serve the 90 days notice on the Attorney General. He will be required to do so if his application succeeds. And the reason for this is quite simple, for should he fail to secure the necessary leave he will not be able to file a representative suit. The first objection that was raised by the second and the third respondents would therefore fail

The contention by the first respondent, however that it has not been established that the applicants do possess the same interest with the absent persons they want to sue on their behalf has a lot of force. It is obvious from the affidavit evidence supporting the application that those people have yet to be known. That it is so has been made much clearer by Mr. Mwengela's written submissions. He states at page one thus:

> The purpose of this application is to invite residents of Dar es Salaam who have similar interests to come forward and join the applicant in his claims.....

This statement is repeated at page two of those written arguments.

Now the scope and application of Order I rule 8 implies that there must exist numerous people with a communality of interest before anyone can file an application for leave to sue on their behalf. This view is derived from the wording of those provisions:

> 8. Where there are numerous persons having the same interest in one suit, one or more of such persons may, with the permission of the court, sue or be sued, or may defend, in such suit, on behalf of or for the benefit of all persons so interested....

In my considered opinion the provisions of Order I rule 8 do not admit of a situation, like here, where the applicant intends to invite others who may have an interest similar to his. Should they be too few as not to qualify as being numerous, then the leave to file a representative suit

will have been given for naught. In these circumstances the application would fail because it does not meet the test regarding the existence of numerous persons with the same interest. Let me now add that the applicants were required to establish further that those numerous persons were indeed willing to join the suit because in the event the suit failed the defendant should then proceed to recover his costs from them. Necessarily, therefore those numerous persons must not only be identifiable, each one of them should append his signature against his name and the list of such persons should be an annexure to the application. Failure to do so will offend the clear provisions of Order I rule 8 of the Civil Procedure Code.

Accordingly as Mr. Lyimo has sworn, order I rule 8 requires proof that indeed the applicant and those he intends to represent have suffered some injury in respect of the acts complained of as well; all of what is contained in Mr. Msakandeo's affidavit is that he has been aggrieved by the acts complained of. He does not go further to establish any injury he has thereby suffered. In these circumstances the second ground of objection of the second and third respondent would succeed.

Mr. Mallaba's affidavit has also raised the issue that the complaint that has been raised is one which, if founded, would attract the enforcement of a public right. In that case the applicant would seek a public law remedy by way of a prerogative order. I am persuaded that a prerogative order does not reside in a suit.

Upon the foregoing considerations the application fails and it is accordingly dismissed with costs.

MASSAWE AND COMPANY

v.

JASHBAI P. PATEL & 18 OTHERS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mackanja, J.)

CIVIL CASE No. 39 OF 1995

Civil Practice and Procedure – Joinder and Misjoinder of parties – Directors joined as co-defendants in a suit against their company – Whether the directors are proper or necessary parties – Order I rule 10(2) of the Civil Procedure Code 1966

Civil Practice and Procedure – Pleadings – Verification of pleadings – Written statement of defence signed by advocate only and without express authorization by the defendants – Whether the verification is valid

Civil Practice and Procedure – Pleadings – Verification of pleadings – Purpose of verification – Requirements governing verification of pleadings – Order VI rules 14 and 15 of the Civil Procedure Code 1966

Four of the 19 defendants in this case took a chamber summons under Order I rule 10(2) of the Civil Procedure Code 1966 ("the **CPC**"), applying for an order that their names be struck out from the list of defendants as they were wrongly joined. The four applicants were members of the Board of Directors of a company that was also joined as 14th defendant. In their joint written statement of defence ("the WSD"), belatedly filed some 10 months after the application was filed, the four applicants included that same prayer for an order to have their names struck out. The said WSD was not signed by those applicants/defendants; only their advocate signed it. The plaintiff raised a preliminary objection that the pleadings by the four applicants/defendants were invalid as they did not conform with the requirements of Order VI rule 14 of the CPC. The application

was then heard by way of written submissions. The applicants argued that, on the basis of Order I rule 10(2) of the CPC, they were wrongly joined in the suit and their names should be struck out. The respondent contended that the applicants' submissions were not relevant to the preliminary objections raised which is what they were directed to write and file submissions about; instead, the applicants' submissions related to their application made under Order I rule 10(2) of the CPC and should be regarded as incompetent, irrelevant and misconceived.

Held:

(i) The objection against the written submissions is untenable. So long as the preliminary objections are in the pleadings, one of two approaches could have been adopted: one is by chamber summons and the other would have been by advancing legal arguments with supportive evidence, and both or either of the approaches is correct;

(ii) A director will not be liable for negligence unless he is guilty of culpable negligence in the business sense, hence the propositions that (1) in the performance of his duties a director need not exhibit a greater degree of skill than may reasonably be expected of a person of his knowledge and experience, (2) a director is not bound to give continuous attention to the affairs of the company, and (3) if the articles of association permit other officials, a director will be justified in trusting the other officials to perform such duties honestly;

(iii) Directors are merely agents of a company and their role and function in the management of a company is not a matter of law but one that has to be determined on the facts in each case;

(iv) It is today beyond dispute that a plaintiff or a defendant must be either a necessary or a proper party, and this is what Order I rule 10(2) of the CPC is all about;

(v) Whether or not the applicants are likely to be found liable is a triable issue that renders the applicants necessary parties without whose presence the court may not be able to finally determine this suit without leaving room for a multiplicity of subsequent suits, and their claim of misjoinder has not been made;

(vi) As the law stands, an advocate or a recognized agent of a party must be a donee of express authority to sign pleadings, and where the authority to sign is given to the advocate, only the advocate will sign on behalf of the party;

(vii) From the unambiguous language of Order VI rule 14 of the CPC, the authority in question is not a matter of private arrangement; it must be recorded by the court;

(viii) There is some laxity in the requirements that govern verification of pleadings because it may be done by any one of those who are mentioned in Order VI rule 15 of the CPC and what is necessary is that if any other person does that work, he should satisfy the court, by affidavit or otherwise, that he is acquainted with the facts of the case;

(ix) The irregularities in the pleadings in this case are incurably fatal, the written statement of defence is a nullity and, therefore, of no effect.

Orders accordingly

Cases referred to:

(1) *Re: Brazilian Rubber Plantations and Estates Ltd* [1911] 1 Ch. 425
(2) *Dovey v. Cary* [1901] A.C. 477
(3) *Re: City Equitable Fire Insurance Co Ltd* [1925] Ch. 407
(4) *Hackbery v. Elliot* [1997] 1 All E.R. 189
(5) *Ferguson v. Wilson* [1866] 2 Ch. App. No. 77

Dr. Wilbert Kapinga and *Mrs. Ringo,* for the Applicants
Mrs. A. S. Maajar, for the Respondent

RULING

(Delivered 13 March 1998)

Mackanja, J.: The applicants are being sued for a number of relief's by the respondent. They are among nineteen defendants. They feature as the 15th, 16th and 18th defendants. In this application they appear as the first, the second and third applicant, respectively. It is common ground that the applicants are members of the Board of Directors of N.M. Garage & Engineering Services Limited, the fourteenth defendant. On 21st March, 1995, the applicants through M/S Mkono & Company, Advocates, took out a chamber summons by which they instituted an application praying that their names be struck out for misjoinder. It would appear, however, that the applicants were directed to file their written statements of defence before that application was determined. The applicants were given seven days within which to do so. The joint written statement of defence was not filed as directed. It was presented for filing on 18th January, 1996. In paragraph 1 the applicants aver that they will, at the trial, raise two preliminary objections as follows:

1. That the defendants have been wrongly joined as parties and should, therefore, have their names struck out for misjoinder;
2. That the plaint is improperly verified; as such it contravenes the provisions of the Civil Procedure Code.

I decided to determine the application first as in doing so the preliminary objections will also be decided.

Learned counsel were directed to argue the application by way of written submissions. This they did within the time frame which was set down by the court.

Dr Wilbert Kapinga of M/S Mkono & Company, Advocates, appears for the applicants and Mrs. M.S. Maajar, of M/S Maajar, Rwechungura & Kameja, Advocates, represents the respondent.

The application is brought under Order I rule 10(2) of the Civil

Procedure Code. Dr. Kapinga contends that upon perusal of the plaint it is apparent that the only reason the applicants have been joined as defendants in the suit is solely because as directors of the 14th defendant are responsible for the day to day management of the affairs of the said company. The applicants deny that association since as the affidavit evidence shows, the management of the 14th defendant is in the hands of the management team that is headed by the General Manager. It is argued that the role of the Directors is to decide on matters of policy and to review or to approve decisions of the company's management. And that at any rate the 14th defendant admits unequivocally accepting goods of the first defendant for storage in its (the 14th defendant's) warehouse in the course of ordinary business, and upon decisions of the company's management. It is in that circumstance that Dr. Kapinga contends that the applicants were wrongly joined in the suit, hence the prayer that they be struck out of the proceedings. Dr. Kapinga has backed his submissions by English decisions to which I will refer in the course of this ruling when considering points of law that have arisen.

On her part Mrs. Maajar contends that the applicant's submissions do not relate to the matters on which learned counsel were directed to file written arguments. It is her contention that contrary to those directions the applicant's submissions do not relate to the preliminary objections raised by the parties in their pleadings. That instead the submissions relate to an application made under Order I rule 10(2) and section 95 of the Civil Procedure Code for striking out the four defendants. Thus it is the respondent's prayer that the applicant's submissions be regarded as incompetent, irrelevant and misconceived for two reasons. First she denies that there was no order of the court for the parties to submit written arguments on the application. According to learned counsel for the respondent/plaintiff, the order for written arguments was directed at preliminary objections that are raised in the pleadings.

Well, let me say right away that this objection is untenable. It is quite obvious from the affidavit evidence supporting the application

that the purpose of that application is just to provide a means of putting forward arguments supported by evidence regarding what the applicants consider to be objectionable. So long as the preliminary objections are in the pleadings one of two approaches could have been adopted. One, is by chamber application and the other would have been by advancing legal arguments with supportive evidence.

Both, or either of the approaches are, in my view correct. Upon those considerations I am not persuaded by Mrs. Maajar that the applicant's submissions are incompetent, irrelevant and misconceived.

The second ground upon which it is argued that the applicant's submissions should be ignored traces its origin from the order of the senior Deputy Registrar that required the applicants to have filed their written statement of defence within a time frame that was fixed by the court, namely, by 28th March 1995. The applicants did not do so; instead they filed an application for review in which it was contended that the Senior Deputy Registrar did not act *intra vires* when he made that order. That application was withdrawn on 18th January, 1996. The application for review was not followed by arguing the application for misjoinder. It is now argued by Mrs. Maajar that their failure to do so and their immediate filing of their written defence amounted to their having abandoned that application.

I have examined the record and I think there is no room for drawing inferences such as Mrs. Maajar has done, because the relief that is in the chamber summons is the one that is raised as preliminary objection in the written statement of defence. So the issue, really, is whether as Mrs. Maajar has pointed out, the question of misjoinder can be raised as preliminary issue. Before this question, however, is the corollary that flows from it, namely, whether there is misjoinder as alleged.

Learned counsel for the applicants alleges that the misjoider stems from the strict division of functions between the directors and the management of the company. Especially, it is argued that at common law the directors' duty of care and skill are such that they do not call for very high standards. According to case law learned counsel has cited directors are required only to exercise ordinary care and skill, and that if possessed of special knowledge of experience they must use it in the affairs of the company: *Re: Brazilian Rubber Plantations and Estates Ltd. (1)*. It is learned counsel's further submission that although directors will be liable for negligence in carrying out their duties they will nevertheless escape liability if damage results to the company from their reliance on the officers whom they believed to be reliable and competent: *Dovey v. Cary (2)*.

I am now urged that in applying the test in this latter decision, I would be minded to accept their prayer. Let me say that it is doubtful if really the latter decision renders any assistance to the applicants. It does not operate automatically to exenonerate directors from liabilities. They will be liable if they did not exercise ordinary care and skill, if damage occurs as a result of that negligence liability will visit the company with damages in favour of third parties who will suffer injury.

The case law on this subject and with which I associate myself is as expounded in the English decision of *Re: City Equitable Fire Insurance Co. Ltd (3)*, in which Romer, J. States inter alia, that a director will not be liable for negligence unless he be guilty of "…. Gross or culpable negligence in a business sense." Hence the following propositions:

1. That a director need not exhibit in the performance of his duties a greater degree of skill than may reasonably be expected from a person of his knowledge and experience;

2. That a director is not bound to give continuous attention to the affairs of the company;

3. That a director, if the articles of association permit, will be justified in trusting other officials to perform such duties honestly.

Learned counsel has also cited *Hackbery v. Elliot (4)*, where it was held that it is not generally the duty of a director to exercise control

over the daily running of the business, nor to supervise the activities of other directors or officials of the company unless the transaction presents circumstances apt to arouse his suspecion. All these are sound propositions of law. Necessarily, however, they can not operate in a vacuum, they must be applied on the facts of each case. And by and large, their application will depend on the evidence in each particular case.

There is yet another argument. This time the Directors role is considered in their position as agents of the company. It is contended that since directors are agents, their civil liability will also be that of the principal: *Ferguson v. Wilson (5)*. This implies then, that if the principal is sued the agent is neither a proper nor a necessary party in those proceedings.

In my view the contention by learned counsel for the applicants are untenable. Mrs. Maajar's submissions in this connection are quite persuasive. She draws support from the same case learned counsel for the applicant cited, namely: *Ferguson v. Wilson (5)* in which Cairns, L.J. held thus:

> what is the position of directors of a public company? They are merely agents of a company. The company itself can not set in its own person, for it has no person, it can only act through directors and as the case is, as regards those directors, namely the ordinary case of principal and agent. Whenever an agent is liable those directors would be liable.

That being the position of directors their role and functions in the management of a company is not a matter of law; it is one that has to be determined on the facts in each case. Indeed there is a triable issue in the pleadings whether or not the applicants as directors of the 14th defendant are liable as alleged in paragraphs 12 and 13 of the plaint. For if it be established by evidence that the applicants acted in the manner as averred in paragraphs 12 and 13 of the plaint, they will be liable to the extent as put forth by the learned authors of *Palmers Company Law,* at page 1972, that:

> ... a director who, whilst not committing a tort himself, has authorized, directed or procured the commission of a tort by his company may be personally liable to the victim of the tort even though he was not aware that the acts so authorized were tortious or did not care whether the acts were tortious or not.

Today it is beyond dispute that a plaintiff or a defendant must be either a necessary or a proper party. This is what Order I rule 10(2) of the Civil Procedure Code is all about. A "necessary party" is one who ought to be joined as a party and whose presence is necessary in order to dispose of the suit completely and effectively. I can not imagine that the present suit can be determined in such a a way that will exclude a question whether or not the applicants are liable either in negligence or in some other form of tortious act. Whether or not they are likely to be found liable is, as I have said, a triable issue. It is that issue that makes the applicants necessary parties without whose presence it will be unlikely that the court will be able to finally determine this suit without leaving room for a multiplicity of subsequent suits. I would in the circumstances, hold that the contention that there is misjoinder of parties in respect of the applicants has not been made out.

Now, all parties who have preliminary objections were required to argue their cases. Save for the present applicants no other defendant has come up with an argument. This implies that the preliminary matters which were raised by them have been abandoned. They would be struck out. This leaves me with the plaintiff's objections.

It is the plaintiff's case that the pleadings of the four applicants do not conform with the requirements of Order VI rule 14 of the Civil Procedure Code. It is argued by Mrs. Maajar that in terms of those provisions every pleading "shall be signed by the party and his advocate."

In the instant case the joint written statement of defence was not signed by the defendants, only the advocate signed it. It is the plaintiff's further contention that omission to have the pleadings signed by the

applicants without express authority from them that they be signed by a third party, including learned counsel who drew them, has rendered them invalid. Learned counsel for the applicants, although opportunity was offered him to file a reply, did not do so and hence there is no reaction to this latter application. And that since the applicants' learned counsel has not proved to the court that he is so acquainted with the case as to qualify him to verify the pleadings, his doing so is another fatal defect. Here again the applicants did not offer a response.

The requirement that pleadings must be signed is contained in Order VI rule 14 of the Civil Procedure Code. It provides:

> 14 Every pleading shall be signed by the party and his advocate (if any): provided that where a party pleading is, by reason of absence or for good cause, unable to sign the pleading it may be signed by any person duly authorized by him to sign the same or to sue or defend on his behalf.

The plain meaning of the provisions is that the pleadings must be signed by the party. In the case of legal persons the same have to be signed by a principal officer of that corporate personality who is authorized to do so. Hence it is only when the party is unable to sign that his authorized agent can do so. According to the learned author of the *Law of Pleadings in India* by Mogha, 14th Edition, at pages 52, 53,

> .... The court should be satisfied, by affidavit or otherwise, that there is a sufficient reason for dispensing with the signature of the party, and that the person who proposes to sign the pleading on his behalf is an authorized person. A formal application should generally be made in such cases and formal order should be recorded by the court, but no notice of any such application is necessary to be served on the other party....

The author of the above work notes that although such a formal application is not mentioned in Order V, Rule 14, such an application becomes necessary in order to explain the reason for the party not signing himself and to obtain a finding from the court that the reason is sufficient. The author goes on to note at page 53 that the authorization to a person other than a party to sign the pleadings:

> ... can also be stated in the pleading in a separate para or in a note at the end. It is not necessary that a person authorized should be authorized specifically to sign the pleading. A general authority to sue or defend on behalf of the party is sufficient....

So, as the law stands an advocate, or a recognized agent of a party, must be a donee of express authority to sign pleadings. In fact, a pleading may be signed by the agent together with the party's advocate. On the other hand, where the authority to sign is given to the advocate, only the advocate will sign on behalf of the party. From the clear and unambigous language of Order VI Rule 14 the authority in question is not a matter of private arrangements. It must be recorded by the court.

We now come to verification. It is said that the purpose of the verification of pleadings is to fix responsibility for the statement made. It must therefore be made by the party or by one of the parties pleading or by some other person proved to the satisfaction of the court to be acquainted with the facts of the case, Order VI Rule 15. Clearly there is a distinction between the requirement that the pleading must be signed by the party or his authorized agent, where circumstances allow, and in making verification. There is some laxity in the requirements that govern the making of verification because it may be made by any one of the people who are mentioned in rule 15. All that is necessary as noted at page 55 of Mogha's *Law of Pleadings* (supra) is that:

> ... if any other person does that work, he should satisfy the court, by affidavit or otherwise, that he is acquainted with the facts of the case.

Affidavits will not be required if the one making the verification is a recognized agent of the party. In all other cases affidavit evidence will be required to prove acquaintance with the facts. No format application, however, is required. And so:

> ... no one should be allowed (except the party) to verify a pleading unless he is able to verify the main allegations on person knowledge, for otherwise he cannot strictly be said to be acquainted with the facts.

Now what is the position as regards the signature and the verification of the pleadings that were made by the 15th, 16th and 17th and 18th defendants? These are the 1st, 2nd, 3rd and 4th applicants respectively. They have been signed by the said applicant's advocate.

Nowhere in those pleadings is it shown that the learned advocate was authorized to sign the pleadings because there was reasonable cause for the absence of the applicants, in fact, no formal application was made to prove that indeed the learned advocates was the authorized agent of the applicants. The same irregularity afflicts the verification of those pleadings. *Ipso facto* the irregularities in the pleadings are incurably fatal.

Upon the foregoing reasons I hold as follows: the objection by the plaintiff that the applicant's submissions should be rejected because they are irrelevant, incomplete and misconceived is dismissed: the preliminary objection to the impleadment of the applicants is dismissed: the plaintiff's preliminary objection that the joint written statement of the 15th, 16th, 17th and 18th defendants is bad in law is upheld and it is now declared that that written statement of defence is nullity and, therefore, of no effect. Costs shall follow the event.

JOHN MGAYA AND FOUR OTHERS

v.

EDMUND MJENGWA AND SIX OTHERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Ramadhani, Lubuva and Samatta, JJ.A.)

CRIMINAL APPEAL No. 5 OF 1997

(From the Ruling of the High Court of Tanzania at Mbeya, Mwipopo, J., dated 7 January 1997, in Criminal Appeal No.127 of 1996)

Criminal Practice and Procedure – Appeals – Appeal against a ruling – Petition of Appeal accompanied by a copy of the ruling and not a copy of the order – Whether appeal is competent

Statute – Interpretation of Statute – Order – Whether meaning of the word "order" includes a ruling – Section 362(1) of the Criminal Procedure Act 1985

An appeal to the High Court against a ruling of the Resident Magistrate's Court was attacked as being incompetent because the petition of appeal was accompanied by a copy of the ruling, and not a copy of the order extracted from the ruling. The Court of Appeal considered whether the appeal to the High Court, its petition of appeal having been accompanied by a ruling and not an order, was competent or not.

Held:

(i) The word "order" in s.362(1) of the Criminal Procedure Act 1985 also includes ruling, and it must be so construed;

(ii) As far as criminal appeals against rulings are concerned, the established

practice in the High Court is for the aggrieved party or his advocate to annex to the petition of appeal the ruling appealed against, not to annex a copy of an order extracted from the ruling;

(iii) The High Court, Mwipopo, J., was right in holding that Criminal Appeal No. 127 of 1996 was competent in law and ought to be heard and determined on its merits.

Appeal dismissed

Cases referred to:

(1) *Fortunatus Lwanyantika Masha v. Dr. William Shija,* Court of Appeal, Civil Appeal No. 43/1996 (unreported)
(2) *Harnam Singh Bhogal t/a Harnam Singh & Co v. Jadva Karsam* (1953) 20 EACA 17
(3) *Edward Marealle v. Marealle Clan and Akilei Marealle,* Court of Appeal, Misc. Civil Application No. 189/1991 (unreported)
(4) *Mayes v. Mayes,* [1971] 1 W.L.R. 679

Mr. Mwale, for the Appellants
Mr. Rweyongeza, for the Respondents

JUDGMENT OF THE COURT

(Dated 16 March 1998)

Samatta, J.A.: This is an appeal from a ruling of the High Court (Mwipopo, J.) dismissing a preliminary objection raised in Criminal Appeal No. 127 of 1996 that the appeal was incompetent in law. In that appeal, the present respondents were appellants, while the present appellants were respondents.

We can state fairly briefly, but we hope adequately, the background to the appeal before us. On June 28, 1996, the appellants filed an application before the Resident Magistrate's Court at Mbeya under section 99(1) and (3) of the Criminal Procedure Act, 1985, purportedly

seeking that Court's leave to "commence private prosecution proceedings" against the respondents. The two subsections read as follows:

> 99. – (1) Any magistrate inquiring into or trying any case may permit the prosecution to be conducted by any person, but no person other than a public prosecutor or other officer generally or specially authorized by the President in this behalf shall be entitled to conduct the prosecution without such permission.
> 2. .....
> 3. Any person conducting the prosecution may do so personally or by an advocate."

The application was vehemently opposed by the respondents on the ground, among others, that it was misconceived in law in that it was not preceded by institution of criminal proceedings against them by making, under section 128 of the Act, a complaint before a magistrate. The learned magistrate who heard the application held that the application was competent and he granted the appellants the leave sought. The respondents were aggrieved by that decision; they appealed against it to the High Court. On the date fixed for the hearing of the appeal the appellants raised a point in limine. They contended that the appeal was incompetent in law on two grounds: first, because the appellant omitted to serve the respondents with a copy of the proceedings of the case; and, secondly, no appeal lies against an interlocutory order granting leave to an applicant to mount a private prosecution. The learned Judge found no merits in both grounds. On the first ground, he held that the duty to serve the respondents with a copy of the proceedings lay on the Court, not on the appellants. With regard to the second point, he was of the opinion that the Resident Magistrate's Court's decision was appellable at that stage.

Accordingly, the learned Judge held that the appeal was competent and proceeded to order that it be heard and determined on merits. It is

this decision which is impugned in the instant appeal. The Petition of Appeal contained the following three grounds of appeal:

1. THAT THE LEARNED APPELLATE JUDGE erred in law in holding that the Ruling granting permission to the appellants was appellable.

2. THAT IN THE ALTERNATIVE AND WITHOUT PREJUDICE TO THE FIRST GROUND, the learned Appellate judge erred in law in holding that Criminal Appeal No. 129/96 which is pending before it was properly before the court and that the said appeal should proceed to hearing and determination on its merits, when the said criminal appeal was not accompanied by the relevant order sought to be appealed against.

3. THAT IN THE ALTERNATIVE AND WITHOUT PREJUDICE to the foregoing, the Learned Appellate Judge erred in law and in fact in attempting to determine Mbeya High Court Criminal Appeal No. 127 of 1996 in the preliminary objections raised by the appellants/original applicants which objections did not touch on the merits of the said criminal appeal

At the commencement of the hearing of the appeal, however, Mr. Mwale, counsel for the appellants, abandoned the first and third grounds, thus leaving only the second ground of appeal to be argued.

Mr. Mwale submitted that when a criminal appeal is lodged against a ruling before the High Court the appellant must extract the order of the Court from the ruling and annex it to the petition of appeal. According to the learned advocate, it is not sufficient in law for the appellant to annex the subordinate court's ruling to the petition of appeal. The sheet anchor of Mr. Mwale's submission is section 362 (1) of the Criminal Procedure Act, 1985 (hereinafter referred to as "the Act"), which reads:

> "632. – (1) Every appeal shall be made in the form of a petition in writing presented by the appellant or his advocate, and every such petition shall (unless the High Court otherwise directs) be accompanied by a copy of the Judgment or **order** appealed against" (the underscoring is supplied).

According to Mr. Mwale, the word "order" in this provision does not include a ruling. Taking his argument further, the learned advocate contended that in Criminal Appeal No. 127 of 1996, lodged before the High Court, it was mandatory for the respondents to annex to their petition of appeal a copy of the order extracted from Mwipopo, J.'s ruling. The learned advocate further submitted that the application of section 362 (1) of the Act is similar to the application of Rule 89 (1) (h) of the Tanzania Court of Appeal Rules, 1979 (the Rules). He reminded us that in many cases – including *Fortunatus Lwanyantika Masha v. Dr. William Shija (1)*, this Court has held, while construing the above named Rule, that failure to extract a decree or order is fatal to the appeal. Citing *Harnam Singh Bhogal, Trading as Harnam Singh & Co. v. Jadva Karsam (2)*, the learned advocate submitted that a party who wished to exercise his right of appeal must strictly comply with the provisions of the relevant legislation. In that case, at p. 18, the court of Appeal for Eastern Africa said:

> "It is well settled law that a right to appeal can only be founded on a statute and that any party who seeks to avail himself of the right must strictly comply with the conditions prescribed by the statute."

Mr. Rweyongeza, counsel for the respondents, countered Mr. Mwale's submissions by contending that it was sufficient in law for a copy of the learned Judge's ruling to accompany the Petition of Appeal, Relying on a passage in the ruling of Mapigano, Ag. J.A. (as he then was), in *Edward Marealle v. Marealle Clan and Akilei Marealle (3)*, a matter which partly concerned the true interpretation of Rule 46 (3) of the Rules, the learned advocate invited us to hold that the word "order" in section 362 (1) of the Act includes a ruling. Mrs. Makuru, Senior State Attorney, who appeared before us as amicus curiae, and to whom we are grateful for her assistance, referred to us the definition of the word "rule" in Osborn's Concise Law Dictionar at p. 285, and to Edward Marealle's case supra, and submitted that the words "order" and "ruling' are used

interchangeably. The learned Senior State Attorney invited us to hold that Rule 89 (1)(h) of the Rules, relied upon by Mr. Mwale in his attractive submission, is not relevant to the point for determination in the instant appeal as, according to her, that Rule exclusively deals with civil appeals.

The submissions of counsel summarized above clearly indicate that the pivotal point in this appeal is whether Mwipopo, J., was right in holding, as he did, that Criminal Appeal No. 127 of 1996 is competent in law and ought to be heard and determined on its merits. Having listened carefully to the competing contentions so forcibly presented by counsel, we are of the opinion that Mr. Mwale's arguments have no merits. While we appreciate that in *Edward Marealle's* case supra Mapigano, Ag. J.A. was dealing with competence or otherwise of an application in a civil matter, we respectfully agree with the learned Acting Justice of Appeal that, to use his own words:

> "..... in many legal contexts the words "order" and "ruling" carry the same meaning and are mutually interchangeable."

We do not have the slightest doubt that the word "order" in section 362 (1) of the Act also includes ruling and must be so construed. There is nothing in the subsection, in our opinion, which militates against holding that view. We can see no warrant for the opinion that in omitting to specifically use the word "ruling" in the subsection Parliament wanted to introduce the cumbersome practice of extracting orders from rulings into the criminal jurisdiction of the High Court. The learned author of *Black's Law Dictionary,* 6th ed., defines, at section 756, the word "order" as including "Direction of a court or judge made or entered in writing, and not included in a judgment, which determines some point or directs some step in the proceedings'. Applying that definition to the present case, we entertain no doubt that Mwipopo, J.'s ruling, which is the subject matter of the instant appeal, is for the purposes of section 362 (1) of the Act, an order, in so far as it determined the issue of competence or otherwise of Criminal Appeal No. 127 of 1996 and directed that the appeal be

heard on its merits. We agree with Mr. Rweyongeza and Mrs. Makuru that the cases decided by this Court relied upon by Mr. Mwale in his argument are of no relevance in construing section 362 (1) of the Act. Those cases specifically concerned the process of appealing to this court in civil matters.

The novel point raised by Mr. Mwale in this appeal may, we think, be examined from another angle. As far as criminal appeals against rulings are concerned, the established practice in the High Court is for the aggrieved party or his advocate to annex to the petition of appeal the ruling appealed against, not to annex a copy of an order extracted from the ruling. No practice of extracting orders in criminal matters is known in the court. Any settled practice of a court is part of the law of the land, albeit of adjectival rather than substantive law: See *Mayes v. Mayes (4)* at 681. We know of no statutory provision or rule of common law which renders the established practice of the High Court referred to above illegal. The law recognizes, as common sense does, that unnecessary technicalities in the administration of criminal justice may occasion injustice. We are happy to be able to come to the conclusion that the wording of section 362 (1) of the Act does not compel us to fault the decision of Mwipopo, J. impugned in this appeal.

While admiring the ingenuity of Mr. Mwale's submissions, we are unable, for the reasons we have given, to give countenance to them. We accordingly dismiss the appeal.

N.I.N. MUNUO NG'UNI
v.
JUDGE-in-CHARGE and the ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT ARUSHA
(Mapigano, Mchome and Rutakangwa, JJ.)

MISCELLANEOUS CIVIL CAUSE No. 3 OF 1993

Natural Justice – The right to be heard – Initiating procedure and the right to be heard – Advocate suspended from practice pending reference to the High Court – Whether the advocate was entitled to a hearing before being suspended – Section 22(2)(b) of the Advocates Ordinance and art.13(6)(b) of the Constitution of the United Republic

Basic Rights – Forced Labour – Prohibition of forced labour – Statutory legal aid scheme imposing a requirement upon advocate to provide legal services – Whether the scheme amounts to forced labour – Section 3 of the Legal Aid (Criminal Proceedings) Act 1969 (No. 21 of 1969) and art. 25(2) of the Constitution of the United Republic

Basic Rights – The right to a just return for one's work – Statute prescribing TShs 500/- as the maximum fee payable to an advocate for acting in a proceeding or representing an accused person – Whether a denial of the basic right to a just return for one's work – Section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969 (No.21 of 1969), and art. 23(2) of the Constitution of the United Republic

Constitution – Separation of Powers and Functions – Legislative powers and processes – Whether the executive has any role or duty to influence or initiate legislation – Article 59(3) of the Constitution of the United Republic and s.5 of the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984, Act No. 16 of 1984

Statute – Applicability of statutory provision – Provision of an Act of Parliament requiring the High Court not to declare unconstitutional a statutory provision that offends the Constitution – Applicability thereof – Section 13(2)(a) of the Basic Rights and Duties Enforcement Act 1994, Act No. 33 of 1994

Bill of Rights – Breach of Bill of Rights – Damages for breach of constitutional right – Whether damages may be awarded for contravention of the Bill of Rights – Article 30(3) of the Constitution of the United Republic

Damages – Special Damages – Special damages not specifically pleaded but evidence and arguments heard on them – Whether the court may award such damages

The petitioner, a practicing advocate based in Arusha, was assigned six briefs under s.3 of the Legal Aid (Criminal Proceedings) Act 1969, Act No. 21 of 1969, requiring him to proceed to Babati to defend some accused persons facing murder charges. He refused to accept the assigned briefs. The 1st respondent immediately suspended him from practicing as advocate, acting under s.22(1) and (2) of the Advocates Ordinance. The petitioner then brought this petition before the High Court, alleging breach of his basic rights by the 1st respondent, and praying for a declaration that Act No. 21 of 1969 was *ultra vires* the Constitution, a declaration that his suspension from practice was null and void, and for damages.

Held:

(i) Although in a preliminary or initiating procedure for disciplinary action there would often be no requirement to accord the right to be heard, this is not an absolute rule: citing *Ress v. Crane* (4);

(ii) Where a person's livelihood is at issue and an adverse consequence would reflect upon one's reputation or status because of suspension, such person may be entitled to a hearing before being suspended notwithstanding that the suspension is merely an act of initiating disciplinary proceedings;

(iii) In suspending the petitioner under s.22(2)(b) of the Advocates Ordinance the 1st respondent was initiating disciplinary proceedings but in the circumstances of this case, where suspension would take away his means of

earning a livelihood and impute on his character, the petitioner was entitled to a hearing before being suspended;

(iv) The right to livelihood, or to work, is a constitutional right which in some jurisdictions is actually equated with the right to life; it cannot be suspended without a hearing;

(v) The assignment of the legal aid briefs, which the petitioner refused to accept and was suspended as a consequence, was not made by the 1st respondent; in suspending the petitioner, therefore, the 1st respondent did not act as a judge in his own cause;

(vi) The "*nemo judex re sua*" principle does not extend to every decision making; in this case even if it be accepted that the judge was so actively involved in the whole matter, the circumstances of the case did not require the judge to observe the *nemo judex re sua* principle;

(vii) In a constitutional petition like this one, the petitioner bears the burden of proof; however, in Tanzania it is settled that once it is shown that a basic right has been or is about to be infringed, the onus shifts to the opposite party to show, on a balance of probabilities, that the infringement was, or is, authorized in all essential respects: citing *Attorney General v. Lesinoi Ndeanai* (13);

(viii) There is nothing basically wrong with s.3 of the Legal Aid (Criminal Proceedings) Act 1969, Act No 21 of 1969, although it may be possible that it does not provide for adequate safeguards against arbitrary decisions; it is not intended by that provision that the assignment of legal aid briefs to advocates be arbitrary and if the assignment is done so arbitrarily, the fault is not in the law but in the person making the assignment;

(ix) The remunerations prescribed for advocates under s.4 of Act No. 21 of 1969, which provides for a maximum of Shs 500/= in respect of each proceeding handled or each accused person defended, are incredibly inadequate;

(x) An advocate is to be remunerated for his services, and that means an advocate is to receive a just and favourable remuneration, according to the quantity and quality of the work he or she has done; section 4(2) of Act No.21 of 1969 denies an advocate such remuneration and, therefore, infringes upon his or her basic right which is guaranteed under article 23(2) of the Constitution of the United Republic;

(xi) It is a legitimate province and duty of the executive, and thus the Attorney General, the 2nd respondent, to influence legislation and propose repeals and amendments;

(xii) The purpose and objective of s.5(2) of the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984, Act No. 16 of 1984, was to afford the Government sufficient time to repeal and / or amend statutory provisions which were *ultra vires* the Constitution, and a number of repeals and amendments have been made since the Act was passed but nothing has been done to make Act No. 21 of 1969 conform with the basic right provisions of the Constitution; as such there was neglect of duty by the 2nd respondent;

(xiii) Section 13(2)(a) of the Basic Rights and Duties Enforcement Act 1994, Act No. 33 of 1994, that requires this Court to allow an offending statutory provision, which the Court is satisfied is a nullity, to continue operating is an absurdity and impossible for the Court to apply with any sense of judicial candour; in the circumstances the Court has to invoke the principle of harmonization and the principle that fundamental rights provisions should be construed so as to make them meaningful and effective;

(xiv) Section 4(2) of Act No. 21 of 1969, not the whole Act, is unconstitutional and nullified to the extent that it provides for unjust remuneration to advocates rendering services under that Act;

(xv) The order suspending the petitioner from practice as an advocate is declared a nullity;

(xvi) As article 30(3) of the Constitution permits a party whose rights are contravened to institute proceedings for relief in the High Court and the construction of "relief", like that of "remedy", includes damages; accordingly, the petitioner was right to ask for damages in his petition and this Court can award damages;

(xvii) The omission to specifically plead special damages in the petition is not fatal in the circumstances of this case and the Court can award them;

Orders accordingly.

Cases referred to:

(1) *Furnell v. Whangarei High Schools Board,* [1973] A.C. 660
(2) *Birss v. Secretary for Justice,* [1984] 1 N.Z.L.R. 513
(3) *Dixon v. Commonwealth,* (1981) 55 F.L.R. 34
(4) *Ress v. Crane,* [1994] 2 W.L.R. 476
(5) *Attorney General v. W K Butambala,* [1993] T.L.R. 46
(6) *Mtikila v. Attorney General,* [1995] T.L.R. 31
(7) *Attorney General v. Momodou Jobe,* [1984] A.C. 689
(8) *Attorney General v. Whiteman,* [1991] 2 W.L.R. 1200
(9) *Agbakoba v. Director, State Security Services & Another,* [1994] 6 N.W.L.R. 475
(10) *Boodrat v. Attorney General and Another* [1996] 1 CHRLD
(11) *Kukutia Ole Pumbun v. Attorney General* [1993] 2 L.R.C. 317; [1993] T.L.R. 159
(12) *Rattigan and Others v. Chief Immigration Officer and Others* [1994] 1 L.R.C. 343
(13) *Attorney General v. Lesinoi Ndeanai and Others* [1980] T.L.R. 239
(14) *Salem v. Chief Immigration Officer and Another* [1994] 1 L.R.C. 343
(15) *Beneby v. Commissioner of Police* [1996] 1 CHRLD 28
(16) *Mills v. Commissioner Police and Another* [1996] 1 CHRLD 37
(17) *Concord Press of Nigeria Ltd v. Attorney General and Others* [1996] 1 CHRLD 47
(18) *National Consultative Council v. Attorney General* [1996] 1 CHRLD 91
(19) *Simpson and Another v. Attorney General* [1994] 3 N.Z.L.R. 667; [1994] 3 L.R.C. 202

(20) *Jaundoo v. Attorney General* [1971] A.C. 972
(21) *Rev Longwe and Others v. Attorney General and Another,* Malawi High Court, Misc. Civ. App. No. 11/93 (unreported)
(22) *Payet v. Attorney General* [1996] 2 CHRLD 99

Mr. Songoro, Senior State Attorney, for the Respondents

JUDGMENT OF THE COURT
(Delivered 17 March 1998)

Mapigano, J.: The petitioner, N.I.N. Munuo Ng'uni, who likes to call himself Lord Ng'uni, Supreme Defender of the Faith and Elect of God, is an advocate of the High Court of Tanganyika (Tanzania Mainland) of a fairly long standing. He is based in Arusha. On or about November, 9 1993, he was assigned six briefs in terms of section 3 of the Legal Aid (Criminal proceedings) Act, 1969 (Act No. 21 of 1969) as amended by Act No. 19 of 1992, and instructed to proceed to Babati where the High Court was due to hold a session. The petitioner was required to defend the accused persons who were facing murder charges.

Under the said section 3 an accused person is entitled to free legal aid in the preparation and conduct of his defence, where it appears to the certifying authority that it is desirable in the interests of justice and that his means are insufficient to enable him to engage such services. The expression "certifying authority" is defined under section 2 as the Chief Justice or the Principal Judge or the Judge in charge of the district registry where the proceeding is conducted in relation to a proceeding before the High Court; and in case of proceeding before a district court or a court of resident magistrate, the Chief Justice.

The petitioner refused to take those briefs and he did so point blank. By a letter dated November 16, 1993, exhibit P3, the District Registrar at Arusha communicated to the petitioner the instruction of the Judge in charge, the first respondent in this case, that he should take the briefs and the warning that if he did not do so an immediate disciplinary

action would be taken against him. It is alleged by the respondents, vide Para 3 of their amended pleading, that the petitioner refused to receive the letter and that he did so arrogantly. The petitioner has denied the truth of that allegation and we leave the matter for later.

It was not an idle warning. When the petitioner remained defiant, the judge carried it out. By a letter dated November 18, 1993, exhibit P1, the judge suspended him from practicing as an advocate pending a reference to the High Court. The judge stated that he had done so in the exercise of the power conferred upon him by section 22(1) and (2) (b) of the Advocates Ordinance, Cap. 341.

In the scheme of that Ordinance, the Chief Justice, the High Court and the Advocates Committee as therein defined, have co-ordinate power to discipline advocates who behave improperly or commit offences. In relation to the High Court that power is given under section 22(1) and (2) (a). A judge of the High Court is given power under para (b) of that subsection to suspend an advocate from legal practice, temporarily, pending a reference to, or disallowance of such suspension by the High Court. In digression we may observe that section 22 has been branded by Mr. Mohamed Ismail, a prominent member of the Bar, as "draconian" in a recent publication of the Law Society. But as just indicated, we are spared the task of adjudicating upon its constitutional validity in this case.

It is not surprising that the petitioner was aggrieved and extremely bitter. He came to this court to ventilate his grievance and to seek redress. In his amended petition he asks the Court to issue several orders, including one for damages, under Article 30(3) and (4) of the Constitution of the United Republic.

We have identified and drawn up six issues on the pleadings, and we have deemed it fit to start dealing with the third, which is a factual one, namely whether it was the judge in charge who assigned the briefs to the petitioner. It would be a material consideration that the assignment was made by the judge, given the provision of section 3 of Act 21/69 by which such exercise is the function of the Registrar, Deputy Registrar or

District Registrar and not of a judge in charge. It is submitted, and conceded by Mr. Songoro, learned Senior State Attorney, on behalf of the respondents, that it would be an arrogation of power on the part of the judge if the assignment was made by him, whereby the assignment would be flawed.

The petitioner who bears the burden of proof is entirely relying upon the instructions and warning of the judge which are quoted by the District Registrar in exhibits P1 and P3. The instruction in exhibit P3 is in these terms:

> ... " I direct that he (petitioner) takes the briefs assigned to him and that refusal by him to take them will result in immediate disciplinary action against him under Cap. 341 of the laws."

In exhibit P1 the judge stated thus:

> ".... I have suspended him (the petitioner) from practicing as an advocate, pending a reference to the High Court, for his refusal to comply with my direction to him to take dock – briefs for the Criminal Sessions at Babati."

The petitioner would have us find that these directions are a clear and conclusive proof of the judge having made the assignment.

On the other hand, Mr. Songoro submits that there is nothing in those directions which establishes the petitioner's assertion. He makes the substantial point that when those directions were issued the assignment had already been made. He points out, we think correctly, that the words "refusal to comply with my direction to him to take dock –briefs" in exhibit P1 have reference to the judge's direction in exhibit P3, i.e. to take the briefs earlier refused to take.

We have considered the matter carefully and we are at one with Mr. Songoro. When those instructions were issued by the judge the assignment had already been made and the petitioner had refused to take the briefs. That seems to us indisputable. We have come to the conclusion that on

balance exhibits P1 and P.3 do not furnish sufficient probative evidence that the assignment was actually made by the judge. The documents leave the matter in the realm of conjecture. We accordingly answer in the negative.

We will next turn to the fourth issue, which is divided into five sub-issues. The first sub-issue is whether the petitioner refused to receive exhibit P3. As already mentioned, this is an allegation made by the respondents in the pleading but denied by the petitioner. It is also a factual issue and it has, therefore, to be resolved upon the evidence given.

It is susceptible to a very easy and straight forward answer. For reasons unknown to us the respondents, to whom the anus of proof is cast, have opted not to give evidence. In the circumstances, as properly conceded by Mr. Songoro, we are compelled to find that the allegation has not been proved. We thus answer this sub-issue also in the negative.

The second sub-issue is whether the first respondent caused the suspension of the petitioner from legal practice to circulate all over Tanzania Mainland. The relevant and short facts which appear to us to be material are these. Exh. P1 which bears the signature of the District Registrar of the day was copied to the Chief Justice, the Principal Judge, the Principal State Attorney, Arusha, the Secretary of the Tanganyika Law Society, the chairman of the Northern Lawyers Group, the Registrars of the Court of Appeal and High Court, the District Registrars of all zones in Tanzania, the Principal Resident Magistrate, Arusha, and the Senior Resident Magistrate in charge, Moshi. The last two were requested by the District Registrar to pass on the information to the magistrates under their jurisdictions. The petitioner contends that the District Registrar did so on the instruction or at the instance of the first respondent, and that it was improper for the respondent to do so.

The suspension was also given publicity in the print media. In its issue of January 13, 1994, the Majira newspaper ran a short article at page 5 about the suspension. The author of the article was one Abu Nasir who mentioned the first respondent as the source. The petitioner

does not know the said Nasir. Nor does he know how the first respondent came to impart the information to that man. The petitioner nevertheless claims that it was the first respondent who passed on the information to him. The essence of his complaint is that it was wrong or improper for the first respondent "to go out of his way and bring the attention of the general public to the suspension."

We regret to say that this complaint has no merits for two reasons. First, like Mr. Songoro has submitted in his short address, there is hardly any firm evidence that the judge issued such instruction to the District Registrar and later had Abu Nasir informed about the matter. Secondly, we are satisfied, upon reflection, that the complaint is, in the last analysis, a non – issue. It seems to us that there was nothing wrong or improper to have the suspension published in the manner it was done. We know of no law, and none has been cited to us by the petitioner, which requires that such event be kept out of the media. What we know is that Article 18(1) of our constitution gives every person the right to seek, receive and impart information and ideas through any media.

We now come to the third and fourth sub-issues and we are getting to what we consider to be the heart of this case. The petition has preferred to combine and argue these sub-issues together and we will follow suit. The question is whether a judge, exercising his power under section 22 (2) (b) of the Advocates Ordinance, is under duty to give a hearing to the advocate before he makes a suspension order and, if the answer be "yes", whether the petitioner was denied that right.

The petitioner's submission is of the following nature. The right to a hearing is basic. It is a matter of natural justice and it is guaranteed by the Constitution under Article 13(6) (b) as well as by the Universal Declaration of Human Rights and the African Charter on Human and Peoples Rights which Tanzania has ratified. He was denied that right. He should have been served with a show – cause notice, but he was not. Thereafter the judge should have given him a fair and adequate opportunity of making oral representations, but the judge did not do so. Exhibits P1 and P3 did not amount to a show – cause notice, let alone a

hearing. So the judge suspended him from practicing his profession in violation of the constitutional provision. The suspension was in consequence a nullity.

Mr. Songoro disagrees. He submits that the petitioner was accorded a hearing before he was suspended, and that is evidenced by exhibit P3. If we understand him correctly, he submits, in the alternative, that in making the suspension order the judge was not determining the rights or obligations of the petitioner, but was just initiating a disciplinary proceeding. The task of adjudicating upon an advocate's rights and obligations and, if his misconduct is established, determining the appropriate penalty, is in different hands, namely, the High Court sitting in reference under section 22 (2) (a), before which he has a right to a hearing in accordance with the requirements of natural justice. When discharging his function under section 22(2) (b), a judge exercised summary power and he is enjoined to suspend the advocate, and suspension is not envisaged to be a penalty.

Learned counsel also expresses the view that three categories of suspension are discernible in section 22(2) (b), namely (a) temporary suspension; (b) suspension pending reference to the High Court; and (c) suspension pending disallowance of such suspension by the High Court. We may say at once that he is mistaken. At any rate, we have been unable to see the point or relevance of such classification.

We cannot accept the argument that a judge exercising his power under that provision is enjoined to suspend the advocate. Section 22 (2) (b) is phrased thus:

> "Any judge of the High Court shall have power to suspend any advocate in like manner (i.e. from practicing), temporarily, pending a reference to, or disallowance of such suspension by the High Court."

To us it is clear from the wording of that provision that a judge is vested with discretion and, beyond question, he has, when exercising that discretion, to bring to his task a temperate and judicious mind. Nor do we

accept the argument that such suspension is not a penalty. More likely than not suspension would take away his means of earning a livelihood, and would also be an imputation on his character.

We consider it perfectly fair to say that the petitioner was not given a hearing at all by the judge. We do not agree that exhibit P3 constitutes a show – cause notice. It was just a notice to the petitioner to comply with the instruction of the judge and of the unpleasant consequences that would follow if he disobeyed. We entirely agree that in suspending the petitioner the judge was initiating a disciplinary proceeding. But in the circumstances of this case that counts for little.

In our considered view the petitioner was entitled to a hearing. We think that where a person's livelihood is at issue or stake, and an adverse consequence would reflect upon his reputation or status, he is entitled to an opportunity to be heard. It is scarcely necessary to stress that the right to livelihood (or to work) is a constitutional right, which in some jurisdictions is actually equated with the right to life. The right to a hearing is, we understand, not an inflexible rule in terms of procedure. Though it requires fairness, it does not require the application of fixed or technical procedural rules. So the hearing need not be oral.

We are aware that over the years there have been two contending views as to whether a public officer proposing to suspend a subordinate from office, normally a purely administrative decision, is obliged to give him a hearing. These views have been stated by sir William Wade and Dr. Christopher Forsyth in their book ADMINISTRATIVE LAW, 7th Ed., at pages 560-561. The learned authors write:

> "One is that the employer need summary power to suspend without hearing or other formality as a holding operation, pending inquiries into suspicions or allegations. The other is that suspension is merely expulsion pro tante. Each is penal, and each deprives the member concerned of the enjoyment of his rights of membership or office."

The majority of the Judicial Committee of the Privy Council preferred the

first view in the case of *Furnell v. Whangarei High Schools Board (1)*. It was there held that a school teacher in New Zealand need not be given a hearing before being suspended without pay even when it was recognized that such suspension might involve hardship and a temporary slur on the teacher. The reason stated by the Privy Council was that the teacher had accepted this possibility in terms of his employment and that the disciplinary procedure as a whole was fair. It is a decision which has been described as controversial, and we think rightly so. For one thing, it is not easy to reconcile it with the current trend and tempo of human rights. In actual fact, as we will see shortly later herein, the Privy Council had a change of heart 21 years later.

In the meantime a number of decisions were delivered by eminent judges in common law jurisdictions favouring the other view, and we refer to two of them. The first is *Birss v. Secretary for Justices (2)*, in which the Court of Appeal of New Zealand rejected the distinction between suspension and expulsion, and held that natural justice is required equally in each case. The second is *Dixon v. Commonwealth (3)*, an Australian case, in which the decision was similar.

Then came *Ress v. Crane (4)*. This is the case in which the Privy Council made a departure from the opinion they had stated in the *Furnell's Case*. It is undoubtedly more parallel with the present case. A summary of the decision appears in ADMINISTRATIVE LAW, Appendix 2 at page 1016, and we think the account yearns reproducing here in extensor:

> "The Privy Council upheld the quashing by the Court of Appeal of Trinidad and Tobago of the suspension of a High Court judge by the Chief Justice and of the decision of the Judicial and Legal Services Commission to represent to the President that the question of the judge's removal from office ought to be investigated. The suspension was unlawful for neglect of the procedure required by the Constitution; the decision of the commission violated the principles of natural justice since the judge was not previously notified or heard or given an opportunity to answer the complaints against him. He was also entitled to damages.
>
> Under the Constitution of Trinidad and Tobago the removal or suspension of a judge is a three – stage process: The Commission first represents to the President as above; the President must then appoint a judicial tribunal; and if the tribunal so recommends, the President must refer the case to the Judicial Committee of the Privy Council. At the second and third stages the judge will have notice of the complaints and the opportunity to answer them. But at the first stage also, Privy Council held, the Commission had a duty to act fairly and had failed to do so. Relevant factors were the seriousness of the allegations and the suspicion and damage to reputation which a fair hearing might have obviated. The Privy Council (through the mouth of Lord Slynn) recognized that although, according to the authorities, preliminary or initiating proceedings would often not require a hearing, this was not an absolute rule. Nor was the need for a hearing by the commission due to the special position of a judge: The same would apply, mutatis mutandis, to other persons in comparable situation."

In our judgment we think that this is a good decision we may only add that the severity of the sanction that the disciplinary authority can impose at the end of the day should be one of the factors to weigh with a public officer when he is considering the question whether he would give his subordinate such hearing.

We repeat what we have more or less said already: The matter was governed by the *audi alteram partem* rule, ad the judge was under an implied duty to observe that rule. We are satisfied that there has been a violation of the petitioner's right. Our answer to the two sub-issues is thus in the affirmative.

The last sub-issue is whether in making the impugned order the first respondent was a judge in his own cause. The petitioner underscores the point that the judge usurped the function of the District Registrar when he purported to assign the briefs to him, and that when he refused to give in, the judge proceeded to take action against him, thereby becoming

prosecutor, witness and judge in a matter he was personally interested.

We have already held that there is no trace of evidence to support the allegation that the judge made the assignment of the briefs. The petitioner however submits, in the alternative, that the judge was so briskly and officiously involved in the matter that even if the assignment was actually made by the District Registrar, he could properly be considered to have been a judge in his own cause. He makes the argument that his refusal to take the briefs should, if necessary or needful, have been the subject of reference to the Tanganyika Law Society or to another judge or to the Registrar of the Court of Appeal. He concluded by asking us to operate the *nemo judex in re sua* principle and declare the suspension a nullity.

On his counter – submission Mr. Songoro contends that the judge did not decide any matter; that the suspension order "did not contain any verdict or finding or penalty;" and that the order was just meant to initiate disciplinary proceeding before the High Court, where the petitioner's final fate would have been determined.

We have rejected the proposition that a suspension is not a penalty. We respectfully agree with J.R. Lucas who says in his book titled ON JUSTICE that the *nemo judex in re sua* principle does not extend to every decision – making. Its traditional locus is in legal adjudication where one party's rights are set against the other's and one can prevail only at the expense of the other. We also take his view that an employer, deciding whether to dismiss or suspend an employee, ought in justice to consider what justification or excuse or mitigation the employee can bring forward in his defence, but he is not debarred from deciding the case on the ground of having an interest in the success of the business, just like a judge who decides whether to commit a recalcitrant party for contempt of court. We are therefore unable to agree, even granting that the judge was actively involved in the matter, that the making of the order was an occasion which obliged the judge to comply with the *nemo judex re sua* principle. The only error, a grave one, is that he denied the petitioner a hearing.

We turn to the first issue; Whether sections 3 and 4 (2) of Act 21/69 are ultra vires Articles 23(2) and 25(2) of the Constitution; Article 14(3) of

the Universal Declaration of Human Rights; and Article 7(1)(c) of the African Charter on Human and Peoples Rights. It seems to us that the petitioner actually intends to invoke Article 23(1) of the Universal Declaration, of which our Constitution's Article 23 (a) is a replica, and Article 15 of the African Charter, it is perceivable from the pleadings and the submissions we have been addressed that this issue comprises two sub-issues relating, respectively, to the assignment of the briefs under section 3 and the fee prescribed under section 4, as well as the constitutional validity of the two sections.

As regards section 3, the petitioner urges the point that the legal services rendered thereunder are compulsory in nature, a thing forbidden under Article 25 (2) of the Constitution. It is declared under that provision that there shall be no forced labour in the United Republic.

Accordingly, the petitioner invites us to hold that the section offends the Constitution and to declare so, even when his pleading is silent on such prayer.

Responding, Mr. Songoro submits that such services fall squarely within the ambit of Article 25 (3) (d) (i), thereby conceding, if implicitly, that the services are envisaged to be compulsory. By that provision, labour or service which forms part of normal social service or other civic obligations for the well – being of the society, are not deemed to be forced or compulsory labour. In his rejoinder the petitioner meets that argument with the sub mission that the makers of the Constitution had in mind the kind of services enumerated under section 121 of the Employment Ordinance, Cap. 366, that is, things like communal farming and construction of primary schools, for which members of a community are sometimes mobilized.

As regards section 4, the petitioner vigorously contends that the fee payable to an advocate under subsection (2) is so inadequate as to constitute an infringement of the right to a just and favourable remuneration given to every person under Article 23 (2). He therefore calls upon us to declare that subsection unconstitutional, which is not in complete harmony with the prayer he makes at the end of his pleading.

He draws our attention to what the Court of Appeal remarked in the post – script to its judgment in the case of the *Attorney General v. W.K Butambala (5)*, to which we will recur later.

Mr. Songoro purports to draw a distinction between the remuneration referred to in section 4 and the remuneration envisaged in Article 23(2), to wit, that one is statutory in nature and the other contractual. He goes on to submit that, *vis a vis* an advocate, legal aid is also free. Butambala's case is also sauce for the goose: Mr. Songoro cited another observation made by that court in the same judgment at page 10. He than calls our attention to section 5 of the Act, which provides for reimbursement of incidental expenses incurred by the advocate in relation to such proceedings, but we need hardly say that that section is totally irrelevant.

We proceed to consider those issues. But before we do so we desire to state how we have approached the matters and the whole case generally. We feel permitted to call in aid comparative case law from foreign courts and international Bills of Rights. That is precisely the path those eminent jurists who attended the judicial colloquium at Bangalore in India in 1988 have exhorted us to tread, in the famous statement they issued known as the Bangalore Principles. These Principles have been confirmed, endorsed and re-affirmed in subsequent colloquia at Harare (1989), Banjúl (1990), Abuja (1991), attended by some justices of our Court of Appeal. As correctly observed in the Bangalore Principles, there is at the present time plenty of judicial decisions and an impressive corpus of international and national jurisprudence in the commonwealth concerning the interpretation and application of human rights and freedoms, which is of practical value to judges and lawyers generally.

It seems that there is presently a consensus among common law judges on the following canons of interpretation, among others. The first principle is that a Constitution should receive a broad and purposive construction: See, for instance, *Mtikila v. A.G (6)* decision of the High Court of Tanzania at Dodoma, *A.G v. Momodou Jobe (7)* at 700, and *A.G v. Whiteman (8)* at 1204. The second is that a Constitution is to be given a construction which infuses fundamental rights provisions with life: See,

for instance, the Nigerian Case at *Agbakoba v. Director State Security Services & Another (9)*; and the decision of the Court of Appeal of Trinidad and Tobage in *Boodrat v. A.G (10)*. The third principle is that restrictions to fundamental rights are to be strictly construed: See, for instance *Pumbun v. A.G (11)* at 323, a decision of the Court or Appeal of Tanzania; and *Rattigan and Others v. Chief Immigration Officer and Others (12)*, a decision of the Supreme Court of Zimbabwe. As indicated, we have had recourse to those principles in this case.

Mr. Songoro has truly said that in a constitutional petition, like the present one, the petitioner bears the burden of proof. It however needs to be qualified. It is now settled in Tanzania that once it is shown that a basic right has been infringed or is about to be infringed, then the onus shifts to the opposite party to show that the infringement was authorized in all essential respects; See the judgment of the Court of Appeal in *A.G v. Lesinoi Ndeinai and Others, (13)* at 239. The standard of proof is the civil standard. The burden is discharged by proof upon the balance of probabilities.

We hold that there is nothing basically wrong with section 3 of the Act, though it may be imprudent to dismiss outright the argument that it does not provide for adequate safeguards against arbitrary decisions. We are satisfied that it is not within the intendment of that provision that the assignment of such briefs to an advocate be arbitrary. The section is couched in the following terms:

> Where is any proceedings (as defined under section 2) it appears to the certifying authority that it is desirable, in the interests of justice, that an accused should have legal aid in the preparation and conduct of his defence or appeal, as the case may be and that his means are insufficient to enable him to obtain such aid, the certifying authority may certify that the accused ought to have such legal aid and upon such certificate being issued the Registrar (as defined under section 2) shall, where it is practicable so do, assign to the accused an advocate for the purpose or the preparation ad conduct of his case or appeal, as the case may be.

We consider it significant that the Registrar can only assign an advocate "where it is practicable so to do" We cannot doubt that these words are not otiose or a mere padding. We think they imply that some consultation be had with the advocate or his direct representative so that the Registrar may satisfy himself, inter alia, on whether the services to be rendered by the advocate will not lay too heavy a burden upon him or adversely affect his practice and livelihood. The Oxford Advanced Learner's Dictionary and the Encyclopedia Word Dictionary (1971) attach the following meaning to the word "practicable" that which is capable of being put into practice, done or effected, especially with the available means or with reason or prudence."

So, if the Registrar purports to exact services from an advocate, and to do so without examining his circumstances, the fault is not in the law but in the man. We so hold, and it is just as well that in his pleading the petitioner has not asked us to do anything to section 3.

We turn to section 4. The maximum fee payable under that section is Sh. 500/= in respect of each proceeding, or in respect of each accused person where the certifying authority directs that accused persons jointly tried should be separately represented. And it would appear that a fee which is in excess of shs. 300/= is reserved for complex and long cases.

In the post script in Butambala's Case, to which we are referred, the Court of Appeal observed, obiter, that the fee "may be grossly inadequate and out of date" and that "something positive must be done, unless the public philosophy is that the services advocates render under the law are intended to be akin to the classical dock briefs of some jurisdictions." That was said back in June, 1991. In the trial judgment of Mr. Justice Mwalusanya, now retired, the judge had described the fees as "outrageously paltry."

It is true that at page 10 of the judgment of the Court of Appeal in that case the Court happened to state that the effect of that decision was that section 4 was still "good law and in the books." But that statement has to be read contextually. There should be no doubt that the Court said so after it had voided the trial decision in which Mwalusanya, J. had

held that the section should be modified so that it comes into conformity with the provisions of the Bill of Rights. The Court of Appeal voided the trial decision on the ground that Mwalusanya, J., had virtually assumed the roles of both complainant and judge, just like the petitioner in this case is saying about the first respondent. The court did not, therefore, consider, let alone determine, the constitutional validity of the section.

In truth it must be stated that the remunerations prescribed under the section are incredibly inadequate. This is echoed in the report of the Legal Task Force in which the fees are described as "very low indeed." It is strongly recommended in that report that the fees be raised. What one can say is that a sum of shs. 500/= was probably a handsome remuneration in 1969. But circumstances have since changed, and judicial notice has to be taken of the fall of the shilling in value. That amount cannot now buy even a pair of plastic slippers.

The distinction urged by Mr. Songoro between the section 4 remunerations and the remuneration contemplated in Article 23(2) sounds odd to us. We have to confess that in relation to fair remuneration, the distinction between contractual and statutory remunerations actually escapes us.

We have considered the argument that legal aid is free to both the accused person and the advocate. It is impossible, as a matter of construction, to hold so. Section 3 does not say so; and section 4 says in clear language that an advocate is to be remunerated for his services, and we feel bound to say that that means he is to receive a just and favourable remuneration, according to the quantity and quality of the work he has done.

We are satisfied that section 4(2) denies him such remuneration and, therefore, infringes his basic right, much as we may take the view that the object of the Act is laudable, and even though we are cognizant of the financial constraints Tanzania is experiencing.

It is not the respondents' pleading or contention that Article 30(2), the claw – back provision, is applicable to the section. Silence at a judicial proceeding sometime counts for something. Here the effect of

silence is magnified by the rule that the onus is cast on the respondents to satisfy the court that section 4 is saved by that sub-Article.

Such being the case with the two sections, we now have to consider a collateral issue. The averment is made in para 16 of the petition that "the second respondent was negligent in not making sure that Act. 21/69 was amended in time," and we consider that the word negligent is not meant to bear its technical sense. It is the subject – matter of the second issue.

The petitioner points out that the Constitution (Consequential, Transitional and Temporary Provisions) Act, 1984, No. 10/84, gave the Government a three – year's grace period within which to repeal or to amend all the laws which were in conflict with the provisions of the Constitution. He then makes the argument that the failure on the part of the second respondent to ask parliament to effect such amendments to Act 21/69 to-date constitutes negligence. Mr. Songoro counters and claims that there is nothing in Act 16/84 which imposed such duty on the second respondent. He also submits, citing Article 98 of the Constitution, that the power to legislate is vested in Parliament, though he concedes that it is the Executive which normally moves Parliament to do so.

It is beyond question that Parliament has the power and duty to legislate, but the question which needs to be answered is whether the Attorney General has a role to play in the legislative process. The answer must be an unequivocal "yes." We do understand, and we think it is common knowledge, that it is a legitimate province and duty of the Executive, and thus the Attorney General, to influence legislation and propose repeals and amendments of the law to Parliament. That is what Article 59(3) strongly indicates. However, that is not to say that demanding or agitating for legal reform is the exclusive preserve of the Executive. Any citizen, let alone a legal practitioner, is not prevented from doing so.

We are amazed to hear Mr. Songoro citing Article 98. That Article provides for the procedure for the exercise of legislative power by Parliament. It is totally irrelevant to the matter at hand.

From his standpoint Mr. Songoro should rather have relied on Articles 63 (3) (a) and 64 (1). Act 16/84, supra, provides, under section 5(20, as follows:

> Notwithstanding the amendment of the Constitution and, in particular, the justiciability of the provisions relating to basic rights, freedoms and duties, no existing law or any provision in any existing law may, until after three years from the date of the commencement of the Act, be construed by any court in the United Republic as being unconstitutional or otherwise inconsistent with any provision of the Constitution.

The objective was to afford the Government sufficient time to carry out the exercise of repealing and amending the laws or those provisions of the laws which were ultra vires the constitutional provisions.

It is also relevant to observe that Article 15 of the African Charter on Human and Peoples Rights, which came into force on October 21, 1986, and which Tanzania has ratified, is in *pari materia* with our Article 23 (2). By Article 1 of the Charter, Tanzania has undertaken to adopt legislative or other measures to give effect to it. We are fully aware that there are other International instruments, ratified by Tanzania, which comprise similar Articles.

In actual fact a number of repeals and amendments of the law have been made since the commencement of Act 16/84. But nothing has been done to the impugned provisions in order to bring Act 21/69 into conformity with the basic rights provision of the Constitution. There being no evidence that the Attorney General has taken any steps in that direction, the reasonable inference is that he has been remiss in his duty and a charge of neglect, not negligence, has thus to stick.

We come to the fifth issue: Whether the petitioner's reputation has been injured by the wrongful acts and omissions of the respondents. In relation to the first respondent, we take it to have reference to his failure to give the petitioner a hearing and to his decision to suspend the petitioner from legal practice; and in relation to the second respondent we

understand it to have reference to his failure to have section 4 (2) of Act 21/69 amended appropriately.

The petitioner's evidence shows that he is married with children. He had been an advocate for 16 years. He headed or led an impressive number of NGOs. He was the president of the Pragmatic Democratic Alliance, a political party; founding chancellor of the private University of Tanzania and the Lord Ng'uni Academy; Chairman of the founding committee of Union of All Bantu Peoples of Africa; founding chairman of Chamajali East Africa; President of the Association of East African Citizens for the Renewal and Sustenance of the East African Community, a pressure group; Chairman – General of the world wide organization whose object is to watch over the activities of the United Nations Organization; member of the Community Leaders of the World; and Supreme Defender of Bantuism in the World, a spiritual organization, and it is in connection with this body that he has taken for himself the title "Elect of God"

He says that the suspension has done a severe injury to his reputation. He has lost clients, good will, friends and followers. It has also denied him financial muscle to registrer some of the NGOs. Not only that. It has lowered him in the estimation of his family.

We have come to the conclusion that this complaint has substance. It is certainly an infliction of great harm on the reputation of an advocate to call him indisciplined, as it was done in the Majira article. Lest we are misunderstood, we make it absolutely clear that we are not departing from our finding that upon the evidence it cannot be held that the first respondent was behind the publicity given to the suspension order. It seems to us that the suspension was bound to be known by members of the public, including the petitioner's family, even if it had not been published in the Majira. Mr. Songoro contends that there is no corrobative evidence that the petitioner has suffered such injuries, probably forgeting that a court is entitled to believe the word of a complainant and to apply common sense.

We now come to sixth and last issue, which concerns the reliefs which

are sought in the petition. There are three substantive reliefs. The first is a declaration that Act 21/69 is ultra vires the Constitution, which does not correspond with the petitioner's submission; the second is a declaration that the suspension is mull and void; and the third is an award of damages.

We have held that section 4 (2) of Act 21/69 offends the provision of Article 23 (2) of the Constitution. This leads us to consider the provision of section 13 (2) (e) of the Basic Rights and Duties Enforcement Act, 1994, Act 33/94. Read together with Article 30(5) of the Constitution, that provision requires us, if we deem it fit and the interests of society so demand, to refrain from declaring section 4(2) unconstitutional, but, instead, to allow Parliament to set it right. It should be observed that Mr. Songoro does not urge us to do so. Subsection (5) of Article 30 just mentioned was inserted in the Bill of Rights after the enactment of Act 33/94, and it would appear that the idea was to legitimatize section 13(2) (a).

Section 13(2) (a) is an extremely strange and curious provision, to put it mildly. It is certainly pregnant with problems some of which are fundamental. Commenting on the provision, Dr. Wambali of the University of Dar es Salaam, and an active member of the Bar pointed out some of the problems in a paper he proffered at a judicial conference in Arusha in June, 1996, and we are appreciative and grateful for his exertion. The first problem he pointed out is that the real substance (and probably purport) of the provision is to transfer the court's power to determine the appropriate remedy to the whims of the Executive through the instrumentality of Parliament. The second is that it creates the anomaly of allowing an offending provision, which it is satisfied is a nullity, to continue operating. The third is that it undermines or detracts from the basic structure of the Constitution, and provides for peculiar relationship between the legislature, the executive and the judiciary. The fourth is that it is potentially embarrassing and a recipe for crises. We share these serious misgivings, and we may add that that provision goes against the spirit of the Universal Declaration of Human Rights and some of the international Bills of Rights to which Tanzania has subscribed, such as

the International Covenant on Civil and Political Rights.

It is perfectly arguable, we think, that in proposing the legislation of that provision the Executive must have been viewing the basic rights provisions and the Judiciary which is charged with the task of enforcing them, with jaundiced eyes.

We consider that provision as an absurdity. It is impossible for the Court to apply it with any sense of judicial candour. We have therefore, to invoke the principle of harmonization, like the leaned judge did in the *Mtikila's* case. We also have to invoke the principle that fundamental rights provisions should be construed so as to make them meaningful and effective, like it was done by the supreme Court of Zimbabwe in *Salem v. Chief Immigration Officer and Another (14)*.

With that we must proceed to declare that section 4 (2), and not the whole Act, is unconstitutional, and to nullify the same to the extent that it provides for unjust and unfavourable remunerations to the advocates who render services under the Act.

Secondly, the petitioner, as we have seen, is asking for a declaration that the order for his suspension from practice is null and void. On the basis of our findings on the third and fourth sub-issues of the fourth issue, we have to grant this prayer, and accordingly, we declare the suspension a nullity.

Monetary compensation is sought for loss of income and injury to reputation, and the petitioner wants the quantum assessed at one hundred million shillings. He suggests that damages are awardable in a constitutional petition. He also says, in effect, that it is inconvenient for him to address this claim through another procedure. Mr. Songoro has not contested these suggestions.

Article 30(3) of our Constitution, to which the petitioner cites in support, provides as follows:

> Where any person alleges that any provision of this part of this Chapter (The Bill of Rights) or any law involving a basic right or duty has been, is being or is likely to be contravened in relation to him in any part of the United Republic, he may, without prejudice to any other action or remedy lawfully available to him in respect of the same matter, institute proceedings for relief in the High Court.

Act 33/94 contains a similar provision.

We are satisfied that that provision is wide enough and admits of the construction attached to it by the petitioner. In legal parlance "relief" or "remedy" includes damages. What's more, it has been held in other common law jurisdictions with similar provisions that damages are available to a person for breach of his constitutional rights, for instance in *Beneby v. Commissioner of Police (15)*, Supreme Court of Bahama; *Mills v. Commissioner of Police and Another (16)*, High Court of Tridad and Tobago; *Concord Press of Nigeria Ltd v. A.G. and Others (17)*, High Court, Nigeria, at Lagos; *National Consultative Council v. A.G. (18)* High Court of Malawi; and *Simpson and Another v. A.G. (19)*.

In *Simpson's* case the Court of Appeal of New Zealand held, *inter alia,* that the ordinary range of remedies are available for enforcement and protection of the rights and freedoms, as the rights and freedoms are affirmed by the Bill of Rights as part of the fabric of that Country's law; and that it does not matter that there is a lack of express remedies provision in the constitution, because, where necessary, the court will develop appropriate remedies to ensure the enforcement of those rights and freedoms. The Court went on to observe that it is appropriate to read a remedy of monetary compensation into the Bill of Rights as this will often be the only effective remedy in non-criminal cases which do not involve the exclusion of evidence; and that a mere declaration that the complainant's rights have been infringed would be worthless.

We consider it also pertinent to point out that the Universal Declaration of Human Rights, Vide Articles 8, and the International Covenant on Civil and Political Rights, vide Article 2 (3), provide that everyone has the right to a grant of effective remedy by the competent national tribunals for violating the fundamental rights granted him by the constitution or by law.

There is one further matter to be decided, As stated, the petitioner's claim includes one for loss of income, which is a specie of special damages. Now, as rule, which applies to all kinds of legal actions, such damages must be expressly pleaded, which the petitioner has not done. In digression again, we may observe that his pleading as a whole is somewhat a perfunctory piece of work and inelegant.

The omission to plead the damages specifically is, however, not fatal. The rule has been judicially evolved, and we consider it a sensible one, that a court should take a liberal approach to rules of practice and procedure where basic rights and freedoms are invoked, so as to give to the complainant a full measure of his rights: See *Jaundoo v. A.G. (20)*, at 983; and *Rev. Longwe and Others v. A.G. and Another (21)*, of the Malawi High Court (unreported). The rationale is that since the court is a guardian of the Constitution, it is duty bound to ensure that the rights guaranteed by the Constitution are effectively enforced, and that to decline to examine the merits of a petition on the basis of a procedural technicality would be an a abrogation of that duty. We wholly subscribe to that view.

Upon the petitioner's evidence that his monthly income from practice was shs. 300,000/= on the average, which we consider modest and acceptable, and considering that his suspension has run for 50 months, we award him a sum of fifteen million shillings (15,000,000/=) in special damages. As regards general damages for injury to reputation, we consider a sum of five million shillings as a fair and just compensation. Interest on the principal amount shall run at the court rate, i.e. 10% per annum from the date of the decree. He is also granted the costs. Since in principle the state is directly liable for any contravention of a constitutional right by its servants, it is to bear the burden of meeting the decree: See *Payet v. A.G. (22)*. We so Order.

ISMAIL RAMADHANI MWEMBAYU *v.* REPUBLIC

HIGH COURT OF TANZANIA AT DAR ES SALAAM
(Kalegeya, J.)

CRIMINAL REVISION No. 7 OF 1998

(From the decision of the Resident Magistrate's Court of Dar es Salaam at Kisutu, in Criminal Case No.53 of 1998)

Criminal Practice and Procedure – Sentencing – Age of the accused being a determinant in sentencing – Two different documents produced by the prosecution regarding age of the accused – Whether court may proceed to sentence without ascertaining age of the accused

Criminal Practice and Procedure – Defective charge and misjoinder of accused persons – Whether convictions may be sustained

The applicant was one of ten accused persons in a badly drafted charge and one in which the accused were misjoined. They were convicted and sentenced to 9 months' imprisonment. The complaint then raised in revision was against the sentence meted out to the applicant, allegedly because he was just 14 years old. On perusal of the record, two more convicts were found to be below the age of 16 years. In sentencing the accused the trial court relied on the charge sheet although there was another document which contradicted the age of the accused persons shown in the charge sheet. On revision:

Held:

(i) Where the prosecution produces two different documents regarding the age of an accused person and the documents contradict each other, and where the age is a determining factor in sentencing or any other order, the court is duty bound to analyse the said documents and decide which one is authentic;

(ii) Where an accused person seems to be a child or young person under

section 16 of the Children and Young Persons Ordinance, Cap 13, it is mandatory to determine the age of the accused before sentencing and in order to ascertain the age the court may call in any evidence, including medical evidence;

(iii) The trial court should not have imposed sentences of imprisonment on the three accused persons below 16 years of age;

(iv) Although there are no magic words in the framing of a charge, the charge here was unclear and confusing, with an incurable misjoinder of accused persons, not of a kind where, under section 134 of the Criminal Procedure Act 1985, two or more accused persons can be joined in one charge.

Convictions quashed and sentences set aside.

Mr. Mdemu and *Ms. Rutalu* for the Republic

REVISIONAL ORDER

(Delivered 23 March 1998)

Kalegeya, J.: Following a complaint lodged with the Hon. Judge In-charge regarding a sentence meted out by Kisutu Resident Magistrates Court to one of the convicts, Ismail Ramadhani (Mwembayu), in Criminal Case No. 53/98, the present Criminal Revision Case, No. 7 of 1998 was opened. The said convict was one of the ten accused persons charged in an unhappily drafted charge whose offence section was as under,

> Unlawful departure outside the United Republic of Tanzania c/s 22(1) and (2) and 36 of the Immigration Supp. No. 26 of 1972.

They had left Tanzania without presenting themselves to an Immigration Officer to complete and sign the prescribed form of declaration on departure. In fact they are stowaways. They were arrested and repatriated from South Africa. They all pleaded guilty and were sentenced to 9 months imprisonment each. The complaint to the Judge

Incharge was attacking the sentence meted out to Ismail Ramadhani (Mwembayu) who appeared as the 7th accused in the charge that faced them in the lower court allegedly because he was just 14 year old.

Upon perusal of the record however, when the file was asigned to me, I noted that not only Ismail appeared to be below 16 years of age but also Severin Augustino (Nakusema) and Abdallah Omar Bakari who appeared as 6th and 2nd accuseds respectively. An inspection note in this respect observed,

> Whether custodial sentences meted out to convicts born in 1984, 1983 and 1982 was proper under the law.

As the issue involved a question of law, only the Director of Public Prosecutions appeared to assit in considering the matter.

Unreservedly, Mr. Mdemu assisted by Ms. Rutalu, State Attorneys, who appeared on behalf of the Director of Public Procecutions, did not support the sentence and branded it as excessive and illegal. He said that such young persons should not be imprisoned and that a probationary order would have sufficed. Sections 18 and 22(2) of the Children and Young Persons Ordinance, Cap. 13, were cited in support thereof. I am on all fours with the learned State Attorney on this issue. The Children and Young Persons Ordinance, Cap. 13, defines a "young person" as a person who is twelve years of age or upwards and under the age of sixteen years. Section 22 prohibits imprisonment of young persons convicted unless none of the other sentences provided under the law is suitable. The relevant section reads,

> 22(1) ...
>
> (2) No young person shall be sentenced to imprisonment unless the court considers that no one of the other methods in which the case may be legally dealt with by the provisions of this or any other ordinance is suitable.

The record shows that Ismail Ramadhani was born on 12-3-1984;

Severine Augustino (Nakusema) on 14-10-1982 and Abdallah Omari Bakari on 9/12/83. This is in accordance with the particulars contained in the relevant "Emergency Travel Documents" tendered in court by the prosecution. These Immigration Forms C.T. 9(a) were issued by the Tanzania High Commission in Pretoria. As per these forms, therefore, the said convicts are young persons within the meaning of "young persons" prescribed under Cap. 13 as they are all above 12 years but below 16 years.

I should however hastily add that the lower court may have been misled by the prosecution's indication of different ages in the charge sheet. The charge sheet portrays Ismail Ramadhani as aged 18 years, Severine Augustino 20 years and Abdallah Omari Bakari as 18 years old. I don't wish to call people names or engage in conjenctures for this disparity but it should clearly be stated that where the prosecution produces two different documents in respect of an age of an accused, which documents contradict each other, and in a situation where the age is determinant on sentencing or any other order, the court is duty bound to analyse the said documents and decide which one is authentic. The accused person's age must be determined before sentencing. In fact this is mandatory where an accused seems to be a child or young person.

In order to ascertain the age the court may interview the accuseds, may seek clarification from the prosecution and may call in any relevant evidence including medical evidence. In the case at hand the lower court did not make any such analysis. It possibly looked at the charge sheet and proceeded to pass sentence though also, in their mitigation, the accuseds pleaded, among others, young age. However, looking at the two documents - "the Emergency Travel documents - Form C.T. 9 (A)" and the charge sheet, in the absence of any other evidence or explanation, the former is more authentic. In conclusion therefore I hold that the court should not have passed sentences of imprisonment on the said (three) accuseds.

At the same time this is not the only anomaly which lies with this case — there are more serious ones. First, in paragraph one of this order I intentionally observed that the charge was unhappily worded. The offence section reads,

> Unlawful departure **outside** the United Republic of Tanzania **c/s** 22 (1) and (2) and 36 of Immigration Regulation **Suppl. No. 26 of 1972**.' (emphasis mine)

Although there is no magic words in the framing of a charge the above is unclear and confusing. A proper wording should have been along the following,

> Unlawful departure from the United Republic of Tanzania contrary to Regulations 22 (1), (2) and 36 of the Immigration Regulations, 1972 (GN 92/72) made under s. 28 of the Immigration Act, No. 8 of 1972.

This would ring a bell of sense to an accused but not the former. Secondly, there is an incurable misjoinder of the accuseds. This kind of situation is not the one envisaged and provided for under Section 134 of the Criminal Procedure Act, No. 9 of 1985, where two or more accuseds can be joined in one charge let alone, once again, the wording which leaves a lot to be desired. The interesting particulars of the offence are as follows:

> The 10 accused persons are jointly and together charged that on unknown date and place of departure, did depart outside the United Republic of Tanzania to South Africa, they did so without reporting to Immigration officers at the place of departure so as to fill departure forms (TIF 10 and 11). They remained outside the coutnry till 14/1/98 when they were repatriated back to Tanzania by Air via Dar es Salaam International Airport.

Apart from the vivid wanting wording and phraseology it is clear that each accused commited the offence on his own and separately as clearly put by the prosecution when giving facts, among others, the prosecutor stated,

> All accuseds are Tanzanians - stowaways - Departed from Tanzania to South Africa at different time without following immigration procedures
> ....

In such situation the accuseds cannot have committed the offence jointly and together. The above defects cannot sustain the convictions. The convictions are accordingly quashed and set aside.

That said my mind has greatly been exercised as to what I should do next. In normal circumstances I would have ordered a retrial.

However I have refrained from so acting due to the following reasons: First, so far they have served one third (two months and 5 days todate) of the period they would have stayed in Prison that is 6 months out of 9 treading on the normal procedure of one third remission on sentences of imprisonment. A substantial part of the term has already been covered.

Secondly, under Regulation 36 of the Immigration Regulations (GN 92/72) the court had discretion of imposing a fine not exceeding fifteen thousand shillings instead of imprisonment. In the circumstances imprisonment for 2 months and 5 days cannot be said to be a lenient punishment considering the penalities prescribed.

Thirdly, even those, under the law, who were not supposed to be imprisonned (Ismail, Severine and Abdallah) have been made to suffer imprisonment for 2 months. Ordering a retrial, whose duration is not known, will be incompatible with doing justice to the trio. This is so because if it is a retrial, notwithstanding the illegality of the sentence which was passed, it will have to cover all the co-accuseds.

I believe that the difficulties they went through before repatriation and the imprisonment for over 60 days is enough a punishment to the accused persons and a lesson to them that they have nothing to reap from stowawaying but miseries.

Their convictions having been quashed and sentences set aside, the ten accuseds persons, Salum Omary Magoma, Abdallah Omary Bakari, Ali Manzi, Malik K. Batenga, Ramadhan Athuman, Severin Augustino, Ismail Ramadhani Mwembayu, Gerald Robert, Masoud Ally Chinunga and Mante Ado Mnembuka are to be set at liberty forthwith unless otherwise lawfuly held.

NASIBU SUNGURA *v.* PETER MACHUMU

HIGH COURT OF TANZANIA
AT MWANZA
(Mrema, J.)

CIVIL APPEAL No. 24 OF 1997

(From the District Court of Mwanza at Mwanza, S.A.N. Wambura, Senior Resident Magistrate, in Civil Case No. 64 of 1996)

Civil Practice and Procedure – Appearance – Non-appearance by the Plaintiff – Suit dismissed for non-appearance of the plaintiff – Application to set aside the order of dismissal – Whether the Court should consider the merit of the suit dismissed

Civil Practice and Procedure – Counter claim – Counter claim for damages granted ex-parte without proof – Whether proper in law

The appellant sued the respondent in the Mwanza District Court for an alleged breach of contract. In his defence, the respondent raised a counter claim against the appellant in the sum of Shs. 10,000,000/=. On the appointed day for hearing the appellant did not appear and the suit was dismissed for non-appearance. At the same time the trial court magistrate entered judgment for the respondent, on the counter claim and granted the sum prayed for. The plaintiff then filed this application to set aside the ex-parte order or judgment. He lost, hence, this appeal to the High Court.

Held:

(i) In an application to set aside the order dismissing the suit for non-appearance, the important question is not whether the case for the applicant is soundly maintainable and meritorious, but whether the reasons furnished are sufficient to justify the applicant's non-appearance on the date the suit was dismissed;

(ii) The approach of the trial court magistrate to grant the entire sum claimed as general damages is bad in law; although the appellant was at fault and led to an *ex-parte* judgment being passed against him, it is also the appellant's legal entitlement to be told and to know the circumstances justifying the award of Shs. 10,000,000/= as general damages to the respondent;

(iii) In the circumstances, it was absolutely necessary for the trial court magistrate to direct the respondent to prove his counter claim by adducing evidence *ex-parte*.

Appeal allowed

JUDGMENT

(Dated 26 March 1998)

Mrema, J.: The appellant, Nasibu Sungura, was the plaintiff in the District Court of Mwanza. He had sued the Defendant Peter Machumu for alleged breach of contract, whereby the appellant plaintiff had executed his contractual obligation to repair the respondent's motor-vehicle with registration No. TZ. 82889 and the respondent defendant failed to pay for the services rendered to the said motor vehicle amounting to Shs. 2,375,750/=. This latter claim, according to the appellant's prayer clause in his plaint, also covers costs of spare parts, repair charges and other costs as averred in paragraph 8 of the plaint. The respondent-defendant had, by way of written Statement of Defence, resisted the claim, save for admission of Shs. 270,000/= allegedly agreed between the parties prior to the carrying out of repairs on the respondent's motor vehicle; and the admitted amount is in accordance with the parties written agreement dated 24/12/93. It is also contended in the respondent's written statement of Defence that the motor vehicle needed minor repairs as per the written agreement annex "A."

In the alternative the respondent-defendant asserted in paragraph 4 of the W.S.D. to the effect that the appellant-plaintiff had converted the aforesaid motor vehicle for his own commercial purpose (TAXI BUBU)

without registering it officially as a taxi, and was using it for that purpose after he finished the repair works on it, hence, the respondent's refusal to pay for the contractual repair charges of Shs. 270,000/=. In the result, the respondent raised a counter-claim against the appellant in the sum of Shs. 10,000,000/= as general damages, attributing the same to the appellant's conduct upon converting the respondent's motor vehicle to the appellant's use for commercial purposes for two consecutive years, 1994 and 1995, and for eight months in the year 1996. He also prayed for interest of the decretal sum at commercial rate and costs of the suit based on the counter – claim.

As the respondent was schooling during the institution of the suit he successfully obtained leave from the trial court to issue a certificate of power of attorney conferring powers to her mother HOBA MJAYA to appear on behalf and act for the respondent throughout the proceedings of this suit. Indeed, Hoba has been appearing as such also in this appellate court.

This appeal has stemmed from the Ruling of Mrs. Wambura, learned Principal Resident Magistrate, who dismissed the appellant's application for setting aside *ex-parte* judgment and restoring the suit to hearing in full by both sides. It is common ground that on 26/2/97 the appellant's suit was dismissed for his non-appearance. Also the fact is that on 18/2/97 both the parties were present when the suit was adjourned to 26/2/97 and it is apparent that they were notified by the court of that hearing date. But as it turned out, it was only the respondent-defendant who was present. Due to the absence of the appellant-plaintiff for no apparent good reason, Mr. Mzuna, learned Resident Magistrate, dismissed the suit for non-appearance of the appellant-plaintiff. It was at about 11.30 a.m. when the suit was dismissed, but at the same time the learned trial Resident Magistrate entered Judgment for the respondent-defendant on the counter claim as prayed.

The appellant plaintiff then put up an application with a view to setting aside that *ex-parte* Order and judgment. As I have indicated above that application was thrown overboard for the reason that there was no

tenable or sufficient ground to satisfy the trial court to up-set the order.

The appellant applicant had deponed in his affidavit to the effect that he was present when the matter was adjourned (i.e. on 18/2/97). And that due to an oversight, the appellant took it to his mind that the matter was fixed for hearing on 28/2/97. For that reason he came to court on 28/2/97 when he learnt from the court registry that the matter was schedule for 26/2/97 and that the suit was dismissed for his absence. He therefore prayed for the setting aside of the judgment, bearing in mind the fact that the said error was purely human.

Mrs. Wambura was not satisfied with the reasons given by the applicant (appellant) for his not appearing in court on that day and she reasoned thus:

> The reason for this application at present is forgetfulness which the applicant alleged is a human nature. Can this then be said to be a reasonable cause? It could be so to the applicant who has not told us if he has that sickness or not to be human to him. I would find it very unusual for the plaintiff to forget the hearing date of his case then turn it human and reasonable.

The question now is whether, on the basis of that decision, the appellant's grounds of appeal are maintainable in the circumstances. What are the appellant's grounds of appeal? They are self explanatory, and are as follows:

> (1) That it was unjust to the parties for the trial magistrate to rule that no reasonable cause has been adduced, and that while that is prevailing, the appellant has not been heard on his matters which are tenable in the circumstances of the suit;
>
> (2) That, had the trial Magistrate observed in the record that the court had already overruled on 18/2/97 that the appellant really had repaired the motor vehicle of respondent she could observe that it was too early to refuse the appellant of not being heard by dismissing the application and then discharging the said car to the respondent.
>
> (3) That without prejudice to the above stated, the said ruling was too short and unexplanatory.

In an application for an order to set the order of dismissal aside, such as the present one, the important question is not whether the case for the applicant is soundly maintainable, hence meritorious, but what matters is whether the reasons furnished are sufficient cause for his non-appearance on the date the suit was fixed for hearing. In the instant matter the trial court was not satisfied with the reasons given by the present appellant.

I have examined the grounds of appeal but I find none that explains sufficiently, indeed there is not even explanation at all, as to why the appellant failed to appear in court on 26/2/97 as he had been so directed by the court on the previous date when both the parties appeared before the same court. If the respondent (defendant) who was present with the appellant on 18/2/97 when the suit was adjourned to 26/2/97 took notice of the date (26/2/97) as announced to them by the Magistrate, it cannot be possibly true that the date announced to them was 28/2/97 as claimed by the appellant.

The matter even turned worse at the hearing of this appeal on 19/3/98. The appellant apparently unveiled his true demeanour as to his conduct. Before me he has alleged that he did not attend court on 26/2/97 because he was confused as the result of his child falling sick on that day. This new defence was never averred in the appellant's affidavit in support of his application at the trial court. This, again, is the appellant's afterthought with a view to soliciting the court by all means to make an order setting aside the *ex-parte* judgment on the counter claim against him, as well as the dismissal order that dismissed his suit. If the appellant is capable of lying to the High Court openly it was not impossible for him, too, to lie to the district court on the reason for his non-appearance. On the premise the appellant has not come to this court with clean hands and therefore his appeal must fail, which I accordingly dismiss with costs.

But this is only with regard to the trial court's order dismissing the appellant's suit.

Although the appellant's grounds of appeal are silent on the judgment in respect of the counter claim suit, it is my bound duty, however, to ensure that justice prevails under the four corners of the law. The respondent's counter claim contained a prayer clause for general damages amounting to shs. 10,000,000/= plus interest on commercial rates. The learned trial Resident Magistrate did not, with respect, take cognizance of the fact that the claim of shs. 10,000,000/= was too colossal a sum of money to just be granted simplistically without requiring the claimant to establish the claim by way of evidence. There is nothing on record to show the criterion or standard upon which the trial magistrate relied to award wholesale the amount prayed for in the counter-claim. I find, with respect, the approach exercised by the trial magistrate to grant the entire sum of shs. 10,000,000/= as general damages to be bad in law for, although the appellant faulted himself leading to an *ex parte* judgment passed against him, it is also the appellant's legal entitlement to be told, or know the circumstances justifying the award of shs. 10,000,000/= to the respondent plus interest on commercial rate against that principal decretal amount. If reasons were given in support of the award it would be easier and practicable on the part of the appellant to challenge the decretal sum in a higher court the grounds relied upon to arrive at that sum. In the circumstances, therefore, it was absolutely necessary on the part of the trial magistrate to direct the respondent to prove his counter-claim by adducing evidence *ex-parte*.

What should be done now at this stage? It is common ground that the claim of shs. 10,000,000/= as general damages is a very huge sum of money in relation to the financial positions of the parties to the suit. If the asserter thinks that he is entitled to the claim then let him prove it to the legal standard required, and if the adversary party is refuting the claim, then it is his constitutional right to canvas against what is being asserted to his detriment. Thus, for interest of justice, I quash the ex-parte judgment on the counter claim only and direct the trial court to hear both

parties on that claim only, bearing in mind that a counter claim is as good as a plaint. Perhaps it will be during the hearing of he defendant's counter claim, that the appellant – plaintiff may seize opportunity to revisit the respondent's written statement of defence and see which items under his claim the defendant categorically admitted and upon such admissions he may ask for judgment. For example paragraph 2 of the written statement of defence states as follows:

> 02. That the contents of para 3 of the plaint are admitted to the extent of Tshs. 270,000/= as per written repairing agreement between plaintiff and defendant dated 24.12.93.

With that said, I leave it to the appellant-plaintiff to discover where are his rights, or which are his rights. Otherwise his appeal to this court stands dismissed with costs.

NATIONAL BANK OF COMMERCE

v.

SADRUDIN MEGHJI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Ramadhani and Lubuva, JJ.A.)

(From the decision of the High Court of Tanzania at Dar es Salaam, Kyando,J., dated 6 February 1996, in Civil Case No. 224 of 1994)

Court of Appeal – Revisional Powers – Decision of trial court falls under the provisions of s.5(2)(a)(i) of the Appellate Jurisdiction Act 1979 – Whether powers of revision and not an appeal may be invoked to challenge the decision

Civil Practice and Procedure – Change of Advocates – Whether change of advocates in handling case constitutes sufficient cause amounting to special circumstances under s.3(4) of the Appellate Jurisdiction Act 1979 as amended by Act No. 17 of 1993

Civil Practice and Procedure – Appeal – Right to appeal – Decision made under order XV rule 1 of the Civil Procedure Code 1966 – Whether the decision is appellable

Civil Practice and Procedure – Limitation of time – Application for revision filed 14 months after decision – Whether or not the application is time barred

By Notice of Motion, the applicant requested the Court to grant an order of "revision of the High Court decision and remit the case to the High Court for trial on merits." One ground for the revision was that the High Court erred in entertaining the suit which was time-barred. In the counter affidavit opposing the application was a preliminary objection seeking to strike out the application on the grounds that it was misconceived, incompetent, and an abuse of the court process, and that it was time-barred.

Held:

(i) In the matter before the Court no appeal was instituted and the revisional powers of the Court cannot be invoked for purposes of and incidental to the determination of an appeal that was not before the Court; the application, therefore, was filed under an inapplicable provision of the law;

(ii) Counsel's inadvertence, inaction or lapse that goes to the root of the matter is a serious matter amounting to negligence; such a mistake by counsel that affects the client's right of appeal is fundamental and cannot be regarded as exceptional circumstances warranting the court's exercise of its revisional powers;

(iii) Under s.5(2)(a)(i) of the Appellate Jurisdiction Act 1979 appeals lie to the Court of Appeal with leave of the High Court; therefore, the claim that the appeal process was blocked by law is untenable;

(iv) Under the provisions of s.3 of, and paragraph 21 of the First Schedule to, the Law of Limitation Act 1971, the application should have been filed within two months [60 days] from the date of delivery of the decision sought to be revised.

Application struck out

Cases referred to:

(1) *Halais Pro-Chemie Industries Ltd v. Wella A.G.*, [1996] T.L.R. 269

(2) *Moses Mwakibete v. The Editor of* ***Uhuru*** *and Two Others*, Court of Appeal, Civil Application No. 8 of 1994 (unreported)

(3) *Transport Equipment Ltd v. Devram P Valambhia*, [1995] T.L.R. 161

(4) *Kighoma Alli Malima v. Abbas Yusuf Mwingamno*, CA – Civil Application No. 5 of 1987 (unreported)

(5) *Institute of Finance Management v. Simon Manyaki*, CA – Civil Application No. 15 of 1987 (unreported)

Mr. Maira, for the Applicant

Mr. Kesaria, for the Respondent

RULING OF THE COURT

(Dated 1 April 1998)

Lubuva, J.A.: By notice of motion filed by the National Bank of Commerce, the applicant in this application, the Court is requested for an order of "revision of the High Court decision and remit the case to the High Court for trial on merits." Among others, the ground advanced for the revision was that the High Court erred in entertaining the suit which was time-barred. The application is supported by an affidavit deposed to by Mr. T.C. Kapinga, counsel to the applicant's bank in the Legal and Trustee Services Department. In reply, a counter affidavit deposed to by

D. Kesaria, learned counsel for Sadrudin Meghji, the respondent, was filed. Then, a notice of preliminary objection was filed under rule 100 of the Court's Rules, 1979. The preliminary objection sought to have the application struck out on the following reasons:

1. The application is misconceived and or incompetent.
2. The application is an abuse of the process of the Court.
3. The application is time-barred.

When the application was called on for hearing, Mr. D. Kesaria raised the preliminary objection. In the light of the affidavits filed and the submissions by the learned counsel for both parties on the preliminary objection, the following are the undisputed facts which gave rise to this matter. The judgment in favour of the respondent in this application in High Court Civil Case No. 244 of 1994 was delivered on 6.2.1996. In terms of the provisions of Order XV Rule 1 of the Civil Procedure Code, the judgment was entered following the filing of a memorandum of agreed issues by the applicant and the respondent before the learned trial judge. It is apparent that since the time when the judgment was delivered, apart from the filing of Application No. 43 of 1996, for stay of execution of the decision dated 6.2.1996, no attempt was made to file an appeal to this Court. On 9.4.1997, this application was filed, fourteen (14) months after the judgment, the subject of this application, was delivered (6.2.1996). This is the application in which a preliminary objection has been raised by Mr. D. Kesaria, learned counsel.

The central issue in this matter is the competence of the application. Mr. Kesaria, learned counsel for the respondent was of the settled view that it is incompetent and misconceived. In his submission, he stated that as the decision of the High Court (Kyando, J.) dated 6.2.1996 falls under the provisions of section 5(2)(a)(i) of the Appellate Jurisdiction Act, 1979, an appeal lies to this Court with the leave of the High Court. However, in this case, Mr. Kesaria went on in his submission, the right of appeal was not exercised; instead, this application for revision has been

filed. This, he urged, is an improper use of the revisional powers of the Court. The reason, he said, was that under the Appellate Jurisdiction Act, 1979, the powers of revision were not meant to be used as an alternative to the appellate jurisdiction of the court. Furthermore, Mr. Kesaria stated, from 6.2.1996 when the decision was delivered, the applicant did not take any steps in instituting the appeal or applying for extension of time in which to seek leave to appeal. In these circumstances, Mr. Kesaria concluded, as the right of appeal was not pursued for no sufficient reason, it was an abuse of the court process for the applicant to resort to revisional powers. In the alternative, Mr. Kesaria prayed for the application to be struck out because it was hopelessly time barred. In support of his submissions, Mr. Kesaria referred us to the decisions of this Court in: *Halais Pro-Chemie Industries Ltd. v. Wella Ag. (1)*, *Moses Mwakibete v. The Editor of Uhuru and Two Others (2)*, and *Transport Equipment Limited v. Devram P. Valambhia (3)*.

Mr. Maira, learned counsel for the respondent, strongly opposed the preliminary objection. He advanced the following reasons: First, that there was no right of appeal against the judgment of 6.2.1996. He took the view that as the judgment, the subject of this application was delivered pursuant to Order XV Rule 1 of the Civil Procedure Code, 1977, it was a consent judgment. In that situation, he maintained, the decision was not open to appeal. For that reason, Mr. Maira insisted, in August 1996 when he took over the conduct of the case and became aware of the error in the judgment, he pursued the matter promptly by way of revision and not by way of appeal. Furthermore, the change of advocates handling the case which accounted for the time lost in pursuing the matter promptly after the judgment, Mr. Maira stressed, was sufficient reason amounting to exceptional circumstances warranting the Court's exercise of its powers of revision. Relying on the decision of this Court in *Halais Pro-Chemie Industries Ltd. (1)* Mr. Maira urged that the mater before us fits on all fours with proposition (ii) in that case in which it was stated that under exceptional circumstances, the revisional jurisdiction of the Court can be invoked as an alternative to the appellate jurisdiction. On the other

hand, Mr. Maira invited the Court to deal with the matter on revision *suo motu* in case the Court comes to the view that it was not properly moved to exercise its revisional jurisdiction. This is in order to do justice in the case, Mr. Maira pointed out.

We have closely and anxiously given consideration to these submissions. We will first deal with the issue of the competence of the application. On this, we have no hesitation in stating that we are in agreement with Mr. D. Kesaria, learned counsel, that the Court has not been properly moved in this application. It is to be observed that the matter has been filed in this Court by a notice of motion under Section 4(2) of the Appellate Jurisdiction Act, 1979. Sub-sections 2 and 3 of Section 4 of the Act, as amended by Act No. 17 of 1993, vest the Court with powers of revision for purposes of and incidental to the hearing and determination of any appeal. That is, the revisional jurisdiction is exercised in the course of hearing an appeal in regard to an aspect in the appeal in which no appeal has been preferred. In the matter before the Court, no appeal was instituted and so, the revisional powers cannot be invoked for purposes of and incidental to the determination of an appeal which was not before the Court. It follows therefore that the application has been filed by notice of motion under an inapplicable section of the law. Consequently, as the Court was not properly moved the application is, likewise, incompetent.

On the other hand, granted that the Court was appropriately moved under sub-section (3) of Section 4 of the Act, what are the circumstances that would warrant the exercise of the Court's powers of revision? Mr. Maira strongly contended that the change of advocates in the handling of the case is sufficient reason amounting to special circumstances to justify the exercise of the revisonal powers for the Court. In support of this proposition, he referred the Court to its decision in the case of *Halais Pro-Chemie Industries Ltd. v. Wella A.G. (1)*. Dealing with circumstances under sub-section (3) of Section 4 of the Act, the Court stated inter alia:

(i) ... ...

(ii) Except under exceptional circumstances, a party to proceedings in the high Court cannot invoke the revisional jurisdiction of the Court as an alternative to the appellate jurisdiction of the Court.

With great respect to Mr. Maira, we do not think that a change of counsel in the conduct of the respondent's case constitutes such special circumstances as to warrant the court to invoke its powers of revision as an alternative to the appellate jurisdiction. This is so because, in the first place, and as conceded by Mr. Maira, no steps were taken soon after the delivery of the decision which is sought to be revised for instituting an appeal due to the inadvertence, laxity and or lapse on the part of the respondent's counsel who had the conduct of the case until sometime in August 1997 when he, Mr. Maira, took over the conduct of the case: It was not until then that Mr. Maira became aware o the error in the decision, the subject of this application. It is common knowledge and elementary too that counsel's inadvertence, inaction or lapse which goes to the very root of the matter is a serous mater amounting to negligence on the part of counsel. This, in our view, would not constitute sufficient reason to warrant the exercise of the revisional powers of the Court. In somewhat similar situation involving laxity and lapse on the part of counsel, in the case of *Kighoma Alli Malima v. Abas Yusuf Mwingamno (4)* the Court stated:

> Sufficient reason has been considered in a number of cases. Sometimes a slight lapse by an advocate might be overlooked, but not a lapse of a fundamental nature like the non-supply of any supporting evidence for an application for enlargement of time.

In another case, *Institute of Finance Management v. Simon Manyaki (5)* the Court again stated as follows:

> The point to stress here is that counsel's mistake may amount to sufficient

reason only where the mistake involves a minor or slight lapse, but not where it involves a lapse of a fundamental nature.

In this case it beats our imagination that Mr. Maira urges us to accept that counsel's failure to initiate the institution of an appeal for a period of 14 months since the delivery of the judgment on 6.2.1996 was a slight lapse. In our considered view, such a mistake by counsel which affects the client's right of appeal is fundamental.

It cannot by any stretch of the imagination be regarded as an exceptional circumstance envisaged in *Halais Pro-Chemie* case warranting the court's exercise of its revisional powers.

There is yet another feature of the mater. Mr. Maira had valiantly urged that as the decision of 6.2.1996 was made under Order XV Rule I of the Civil Procedure Code, 1966, it was a consent judgment in which case, he stressed, it was not appeallable. That is, the appeal process was blocked by law in which case, in his view, the matter could only be brought up to this Court by way of revision. With this perception of the law, Mr. Maira charged, counsel for the applicant deemed it unnecessary to take any steps towards the institution of an appeal. Consequently, Mr. Maira stated, the matter has now been lodged in the Court seeking revision. We find this submission attractive but, with respect, are unable to accept it. This is for the obvious reason that if, as urged by Mr. Maira, the decision for which revision is sought was a consent judgment, the matter would fall under section 5(2)(a)(i) of the Appellate Jurisdiction Act, 1979. In part it provides:

> 5(2) notwithstanding the provisions of subsection (1) –
> (a) except with the leave of the High Court, no appeal shall lie against –
> (i) any decree or order made by the consent of the parties.

It is common knowledge that under this section appeals lie to the court with leave of the High Court. With a little diligence on the part of counsel, this would have been obvious. As it happened in this case, no appeal

was instituted and not even an attempt was made to apply for extension of time in which to appeal. Therefore, the ground raised that the appeal process was blocked by law is to our minds, untenable. If anything at all, it is a further reflection on counsel's negligence. We reject this ground.

Finally, we will deal with the question of limitation. Granted that the application for revision was properly founded in law, still we think, it would be rendered incompetent. We agree with Mr. Kesaria that the application is time barred. Under the provisions of section 3 and paragraph 21 of the First Schedule to the Law of Limitation Act, 1971, the application should have been filed within two months (60 days) from the date of its delivery on 6.2.1996. The application before us was lodged on 9.4.1997, a period of about 14 months since the delivery of the decision. This, in our considered opinion is very much out of time. This ground alone, we think would be sufficient to dispose of this application.

Before concluding this matter, we wish to observe that Mr. Maira's alternative plea from the bar that the Court may wish to deal with the matter on revision *suo motu* is equally unfounded. The matter is already before the Court by a notice of motion filed by Mr. Maira. It has therefore to be dealt with in the manner the Court was moved and not otherwise. This, the Court has endeavoured to do in this application.

For the foregoing reasons, the preliminary objection raised by Mr. Kesaria is sustained. Consequently, the application, being misconceived and incompetent, is struck out with costs.

GEORGIA CELESTINE MTIKILA
v.
1. REGISTERED TRUSTEES OF DAR ES SALAAM NURSERY SCHOOL
2. INTERNATIONAL SCHOOL OF TANGANYIKA LTD.

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Kisanga, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 42 OF 1996

(From the judgment of the High Court of Tanzania at Dar es Salaam, Mkwawa, J., dated 27 August 1993, in Civil Case No. 64 of 1990)

Civil Practice and Procedure – Appearance – Appearance by persons holding powers of attorney – Whether a person resident in Tanzania may appear by such attorney

Civil Practice and Procedure – Pleadings – Signing of pleadings – Written Statement of Defence not properly signed – Consequences thereof

Civil Practice and Procedure – Appeals – Record of Appeal – Document not placed before the trial court but included in the record of appeal – Effect thereof

Civil Practice and Procedure – Award of interest – Rate of interest that the court may award – Whether the interest rate applicable is the rate prevailing at the time of judgment

Civil Practice and Procedure – Relief – Relief not pleaded at the trial – Whether appellate court can consider relief not pleaded at the trial

Labour Law – Unlawful termination – Employee unlawfully terminated from employment – Whether employee is entitled to leave or payment in lieu of leave during the period under unlawful termination

The appellant was employed by the first respondent as Secretary-cum-Treasurer. She was terminated from employment after a three months' notice, on the grounds that due to financial difficulties the first respondent would cease to exist with the expiration of that notice. Meanwhile, the first and second respondents concluded an arrangement by which the second respondent took over the assets, liabilities and operations of the first respondent. The appellant was invited to apply for an alternative position with the second respondent but declined. She filed a suit in the High Court against both respondents for unlawful termination of employment. The High Court found the respondents liable and awarded damages to the appellant but, not satisfied with some aspects of the judgment, she appealed. At the hearing of the appeal, she sought leave to grant a power of attorney to her husband to conduct the appeal on her behalf but was refused.

Held:

(i) Appearance before the Court of Appeal by persons holding powers of attorney is regulated by the provisions of rule 28(2) of the Court of Appeal Rules 1979 and the appellant is not covered by the provisions because she is resident in Tanzania;

(ii) Upon finding that the Statement of Defence of the first respondent was not properly signed, it was open to the trial court judge, in terms of order VIII rule 14(2)(b) of the Civil Procedure Code 1966, to order *ex-parte* proof against the first respondent, which would have given the appellant opportunity to adduce evidence to prove her claim;

(iii) The document containing the so-called technical advice from the highest financial and commercial authority in the country cannot have been properly filed pursuant to rule 89(1)(k) of the Court of Appeal Rules 1979; that provision allows only the filing of copies of documents the originals of which form part of the original court case file;

(iv) The High Court cannot be faulted for awarding a rate of interest which was prevailing at the time of the judgment and which, in fact, the appellant prayed for in her plaint;

(v) This Court cannot consider relief that ought to have been sought in the trial court below but was not;

(vi) The finding was made that the termination of the appellant's employment was unlawful and that the appellant was still in the employment of the first respondent means that the appellant was entitled to her annual leave for the whole period that her employment remained in unlawful termination.

Appeal allowed to limited extent

Case referred to:

(1) Rajabu Salehe Mwamba v. T A Massawe, CAT – Civil Application No. 42 of 1997 (unreported)

Mr. Saidi El-Maamry and *Mr Mohammed Ismail,* for the Respondents

JUDGMENT OF THE COURT

(Dated 3 April 1998)

Kisanga, J.A.: The appellant, Mrs. Ceorgia Celestine Mtikila, was under a written contract employed by the first respondent, the Registered Trustees of the Dar es Salaam Nursery School as secretary cum Treasurer. At some stage during the currency of that contract the same was terminated by the first respondent upon giving a three months' notice as stipulated under the contract. The ground for the termination was that due to financial difficulties the first respondent would cease to exist after the expiration of the notice. Meantime the first respondent and the second respondent, the International School of Tanganyika Limited, concluded an arrangement whereby the second respondent took over the assets and liabilities and the operations of the first respondent, leaving only the legal formalities to be concluded in order to bring about its total extinction. The appellant was invited to apply for an alternative position with the second respondent but she declined to do so. Whereupon she was offered terminal benefits upon the termination of her employment but again she declined the offer.

She therefore filed a suit in the High Court against both respondents

for unlawful termination of her employment and claimed for damages, any other reliefs as the court may deem fit and costs of the suit. The High Court (Mkwawa, J.) found the appellant's employment to have been unlawfully terminated by the first respondent to the knowledge of the second respondent. He therefore held both respondents liable: The first respondent was held liable in contract for the breach of the contract of employment, and the second respondent was held liable in tort for aiding and abetting the breach, as it were. The court then proceeded to award damages arising from the breach, ordered the second respondent to "re-engage" the appellant and awarded the appellant the costs of the suit. The appellant was dissatisfied with some aspects of that judgment, hence this appeal.

In her memorandum of appeal she raises six grounds of appeal which are reproduced hereunder for ease of reference.

"1. Defective Written Statement of Defence
The learned trial judge erred in law in holding that the written statement of Defence of the 1st Respondent was properly signed.

2. Amount of damages payable to the Appellant

2.1 The learned trial Judge erred in law by holding that the plaintiff's (Appellant's) salary at the time of termination was shs. 7,000/= per month as against shs. 9,744/= per month approved by the 1st Respondent.

2.2 The learned trial Judge was wrong in not allowing leave entitlements to the Appellant for the whole period that she was deemed to have been in employment i.e. from 1984 to the date of judgment (12-8-1993).

2.3 The learned trial judge erred in law in refusing to adopt the method of calculating the Appellant's entitlements as proposed

by the Appellant; that is by pegging her entitlements to the American dollar.

2.4 The learned trial judge was wrong in law by holding that the Appellant would be adequately redressed by awarding interest as 30% per annum with effect from the date of termination of her employment after he had admitted that there has been a depreciation of money due to the evaluation of Tanzanian Shilling and of its diminished purchasing power.

2.5 The learned trial judge erred in law and in fact in holding that by pegging the Appellant's entitlements to the US# the out come would culminate in awarding preposterous amounts that would have the effect of displaying deplorable lack of judicial propriety and dignity as by not awarding the Appellant on the basis of the proposed formular would likewise have the effect of displaying a deplorable lack of judicial propriety and dignity.

It is proposed to ask the court for orders

(a) that this appeal be allowed with costs.

(b) That the decision and orders of the trial court in so far as they relate to matters stated above be set aside.

(c) That the Appellate Court award the Appellant leave entitlements with effect from 1984 to 1993.

(d) That the Appellate Court award the Appellant her arrears of remuneration and costs by adopting the formular proposed by the Appellant annexed herewith as Annexure 'A' as supported by a Technical Advice from the Bank of Tanzania – Annexure "B"

When the appeal came on for hearing the appellant sought leave to grant a power of attorney to her husband to conduct her appeal. The application was resisted and having heard arguments on both sides we disallowed the application, reserving our reasons to be embodied in the final judgment: we now proceed to give those reasons. The appellant submitted that she could not conduct the appeal in person because she could not express herself. She went on to say that she suffers from emotions which would make it impossible for her to conduct the appeal with the necessary degree of calmness and composure. In support of her application she cited two cases but only one of these was relevant. It was the case *Rajabu Salehe Mwamba v. T.A. Massawe (1)* in which Ramadhani, J.A., upon an application for a stay of execution, observed or stated that the applicant in the case had been represented by his mother to whom he had given a power of attorney. It is not apparent from the Ruling, however, under what circumstances the applicant had given a power of attorney to his mother.

Appearance before the Court of Appeal by persons having a power of attorney is regulated by rule 28(2) of the Court of Appeal Rules which says:

"28 (1)....
(2) A person not resident in the United Republic may appear by lawfully authorized attorney."

It is plain that the appellant is not covered by this provision because she is resident in the United Republic. The case of *Rajabu Salehe Mwamba (1)* cited above does not assist the appellant either. For, as stated earlier, it is not apparent in the Ruling under what circumstances the applicant in that case had given the power of attorney to his mother, that is, it is not known whether or not he was resident in the United Republic. The appellant seemed to take the view that the applicant was in fact resident in the United Republic, but even if this were to be accepted, there is yet one further problem. Since under rule 28 (20, above cited, a power of

attorney may be exercised only on behalf of a person not resident in the country, no reasons have been adduced, and none are apparent, why the leaned single Judge in *Rajabu Salehe Mwamba's case (1)* departed from the procedure prescribed by the said rule which was supposed to guide him. In other words the learned single Judge dealing with the matter may well have departed from the provisions of rule 28(2) for sufficient reasons which have not been set out in the Ruling on the application for a stay of execution. So that in the absence of any such sufficient reasons which may have justified the single Judge in *Rajabu Salehe Mwamba (1)* to depart from rule 28(2), the said case cannot be of any much assistance in the present case. Alternatively, it may well be that the provisions of rule 28(2) were not brought to the attention of the learned single judge with the matter, in which case his decision to allow the applicant's mother to exercise a power of attorney given by her son would obviously be per *in curiam* and it ought to be disregarded.

The appellant's assertion that she is unable to conduct the appeal because she cannot express herself is completely without substance because she did express herself well and clearly when addressing us on this matter. It may well be that she is emotional, as she claims, but this does not amount to inability to express herself. Rather it is a matter which would require the Court to exercise more patience and perhaps closer guidance and firmness over the conduct of the proceedings. Thus, in our view, neither this assertion by the appellant nor the case she has cited could justify our departure from the provisions of rule 28(2), and it is for that reason that we refused her giving a power of attorney to her husband to conduct the appeal. The appellant, having stated that she could not hire the services of an advocate, opted to proceed with the appeal through written submissions. Mr. S. El-Maamry and Mr. M. Ismail, learned advocates appearing for the respondents also conducted the appeal through written submissions.

We now turn to the appellant's memorandum of appeal and start with the first ground which criticizes the trial judge for finding that the written statement of defence of the first respondent was properly signed

by Dr. Hendrikus Van Loon (DW.2) in his capacity as trustee of the first respondent, the Dar es Salaam Nursery School. Upon our review of the evidence on the record, we entirely agree with the appellant's submission. There was only the assertion by Dr. Van Loon that he was duly elected trustee of the first respondent although he could not remember the date of that election.

However, his name is not reflected in the records of the Administrator – General, who keeps the list of trustees in the country, for the period in question or any other. Nor was any evidence adduced of the meeting or resolution by which he was elected trustee. In those circumstances the learned judge, with respect, erred in finding as he did that there was sufficient evidence to prove that Dr. Van Loon was a Trustee of the first respondent, for the evidence fell far short of that.

The immediate question falling for consideration is, what are the consequences of the finding that the written statement of defence of the first respondent was not properly signed. The appellant submits that such finding meant that the first respondent had in law failed to file a defence and so this entitled the appellant to have judgment entered in her favour. So that according to the appellant the learned judge wrongly proceeded to try the case in relation to the first respondent.

One of the issues framed at the trial was whether the written statement of defence of the first respondent was properly signed. The right thing to do was for the judge to try that issue first. If he found, as we have now done, that the said statement was not properly signed, it would not have been open to him to proceed to trial, as he did, in relation to the first respondent. In other words the learned judge erred in proceeding to try the suit in relation to the first respondent by requiring both sides to lead evidence in support of their respective cases. However, we are satisfied that this error was harmless, and it did not occasion any miscarriage of justice. Because upon finding that the statement of defence of the first respondent was not properly signed, it would then be open to the judge in terms of order 8 rule 14 (2) (b) of the Civil Procedure Code to order *ex-parte* proof which would give the appellant the

opportunity to adduce evidence to prove her claim. The appellant was afforded the same opportunity here when the judge proceeded to try the suit in the course of which the appellant adduced evidence in support of her case which was, indeed, decided largely in her favour. That is to say the appellant was accorded the same opportunity of proving her case as she would have been had the case proceeded on the basis of *ex-parte* proof. To that extent, therefore, the error involved was really immaterial and can safely be ignored.

The complaint in ground two of the memorandum of appeal is that the trial judge wrongly took the appellant's salary to be shs. 7,000/= p.m. instead of shs. 9,744/= p.m as the basis for assessing the damages awarded to the appellant. We find merit in this complaint. According to the record the appellant's salary was discussed at a management committee meeting of the first respondent held on 27.01.84. The issue was whether or not the appellant's salary should be increased by 60%, and one Mr. Chandrasekarn confirmed that the matter had long been settled by the sub-committee which had directed that the appellant's salary be adjusted accordingly. Such adjustment would bring the appellant's salary to shs. 9,744/= per month and the learned trial judge should have taken that as the basis for computing the damages payable to the appellant.

Equally with merit is ground three of the memorandum of appeal raising the issue of leave pay. For the respondents it was submitted in effect that the appellant was not entitled to any such pay because after the termination of her employment by the first respondent she was no longer working and therefore the question of her going on leave or payment in lieu thereof no longer arose.

On close examination, however, we find this submission to be untenable. The trial judge found that the termination of the appellant's employment was unlawful, and that the appellant was still in the employment of the first respondent. Once that finding was made, that meant that the appellant was entitled to her annual leave for the whole period her employment remained unlawfully terminated, but the appellant

could not have gone on leave during that period because that was the time she was continuously challenging and fighting against the unlawful termination of that employment.

It was further argued that the appellant was not entitled to leave pay because she was or was deemed to be on paid leave. With due respect this cannot be true because the appellant was not sent on leave but was unlawfully pushed out of her job and prevented from rendering her services to the employer.

It was further contended that even if the appellant was entitled to leave pay, she could only be paid for two years' leave because leave payment for a longer duration would be contra to the labour laws which prohibit leave accumulation for more than two years. This argument is misguided because it overlooks the fact that during the period in question the whole issue of the appellant's employment and leave entitlement was in dispute, and the appellant cannot have accumulated any leave during such period. The appellant's leave entitlement was determined only on the date the court found that her employment was unlawfully terminated and that she was still in the first respondent's employment. It is therefore obvious that before that date she could not be said to have accumulated any leave, the entitlement of which was yet to be determined. In other words before the date of the judgment of the High Court on which the appellant's leave entitlement was sanctioned, the appellant could not be said to have breached any labour law or regulation which prohibits leave accumulation.

We therefore find merit in this ground of complaint. The learned trial judge, in awarding damages to the appellant, should have allowed for leave pay for the whole period that her employment remained unlawfully terminated.

Ground four criticizes the trial judge for not pegging the appellant's award or entitlements to the US Dollar. In this respect the appellant put forward two sets of formula to be applied in computing the award. The first formula was put in the proceedings at the trial, but the second one was introduced only in this appeal where it was filed alongside the

memorandum of appeal. This second formula and the accompanying account that purports to explain it is contained in a document which emanates from the Bank of Tanzania and which is entitled "Technical Advice; Fair Calculation for (sic) the Amount due to the Appellant." As stated earlier, the appellant has urged us to apply this formula in computing the award to her. A preliminary objection was raised against the inclusion of this document in the record of appeal and, in line with our general direction in the conduct of this appeal, we required both sides to submit written submissions on the matter, which they did. The gravamen of the respondents' objection is that the information contained in the document in question was not placed before the trial court, and the author of it was not called as a witness. As such therefore, the argument went on, the said document cannot form part of the record of appeal and consequently it should be ignored.

In response thereto the appellant merely refers to this document as containing technical advice from the highest financial and commercial authority in the country, and stresses the need for this court to apply such advice in order to do justice to her. In conclusion she says that this document, which she filed pursuant to rule 89 (1) (k) of the Court of Appeal Rules, contained the necessary information for the determination of the appeal.

We find little difficulty in disposing of this argument. The document containing the so-called technical advice from the highest financial and commercial authority in the country cannot properly have been filed pursuant to rule 89 (10 (k) of the Rules as the appellant claims. The relevant part of that rule says:

> "89 (1) For the purpose of an appeal from the High Court in its original jurisdiction, the record of appeal shall, subject to the provisions of sub-rule (3), contain copies of the following documents:
>
> (k) Such other documents, if any, as may be necessary for the proper determination of the appeal, including any interlocutory proceedings which may be directly relevant.

This means that on appeal the appellant is required to file copies of documents received at the trial and /or forming part of the original court case file as enumerated in (a) to (j), plus copies of such other documents, also received at the trial and or forming part of the original court case file, as may be necessary for the proper determination of the appeal. The provision allows only the filing of copies of documents the originals of which form part of the original court case file. The appellant concedes, and rightly so, that the document containing the so called technical advice was never received, nor formed part of the evidence, at the trial. It was never before the trial judge for his consideration, and therefore it does not form part of the case file or record of the trial court. As such, therefore, it does not fall within the provisions or rule 89(1) (k), and we accordingly ignore it.

Having discounted the so-called technical advice, we now turn to consider whether or not there was justification in criticizing the trial judge for refusing to apply the first formula which was before him for consideration and which, as already noted, sought to peg the appellant's entitlements to the US Dollar. Counsel for the respondents submitted that the trial judge rightly refused to apply the formula because the appellant's contract of employment provided for payment simply in Tanzanian shillings and not the equivalent in US Dollars. There is much force in this submission. We think that to peg the appellant's salary to the Dollar would amount to altering materially a major term of the contract which alteration could not in our view be effected unilaterally by the appellant acting alone. The parties are bound by the original terms of their contract whereby the appellant's salary is expressed simply in Tanzanian Shillings.

Furthermore, the application of the formula in question involves using two exchange rates, i.e. that which obtained at the time of the termination of the contract and that obtaining at the time of computing the award. No cogent evidence was led as to what the rate of interest was on the respective dates. Without cogent evidence on the matter, then even if the formula in question is accepted, the computation would be of little

or no value. For instance, the appellant in her plaint shows that at the time of termination of the contract the exchange rate was shs. 17.73 to the Dollar. Yet in this court she is urging us, through the so called technical advice, to compute her award using the exchange rate of shs. 15,292 which again according to her was obtaining at the time of the termination. Thus in the light of this latter any computation based on the exchange rate of shs. 17.73 to the Dollar would be mere speculation, and the trial judge rightly refused to engage in what would have amounted to a speculative exercise.

Ground five complains of the award of 30% interest on the principal sum as being insufficient to compensate the appellant for the loss arising from the diminished purchasing power of the shilling. That rate, the appellant says, was the rate obtaining at the time the High Court made the award, and she urges us now to raise it to 40% being the rate of interest obtaining currently.

The appellant is obviously asking the Court to proceed on a wrong principle. We cannot fault the High Court for awarding a rate of interest which, according to the appellant herself, the appellant had prayed for in her plaint. Even assuming the current interest rate to be 40%, as claimed by the appellant, it is apparent that the High Court could not have awarded it because that rate did not exist then; and we, sitting on appeal, cannot award such rate because we cannot say that the High Court erred in not awarding it. Awarding the 30% interest the trial judge took into account the depreciation of our shilling and its diminished purchasing power. We can find nothing in what the appellant says which would show that the learned judge acted on a wrong principle in so doing, and therefore we can find no reason to interfere.

Ground six is a repetition or an amplification of ground four in as much as it decries the refusal by the trial judge to peg the appellant's award to the Dollar. Our treatment of ground four is sufficient to cover this ground as well, and we desire to say no more on it.

That was sufficient to dispose of the appeal but we are constrained to say something about some of the appellant's prayers. In her written

submissions the appellant is asking this court to exercise its inherent and revisional jurisdiction to declare that:

(1) The purported take over of the first respondent's school by the second respondent and the dissolution of the Trust under which the said school was incorporated are null and void.

(2) The second respondent return to the first respondent the running of the latter's School and all properties and assets whether movable or immovable, rights, privileges and any other proprietary interests of the latter which the former had unlawfully taken.

(3) The first respondent reinstate the appellant to her employment.

(4) The costs for the restoration of the smooth running of the first respondent's school by its own administration plus all the damages be born by the second respondent."

Counsel for the respondents submitted that these reliefs were not pleaded at the trial, and this is amply supported by the record. It therefore follows that this court cannot consider reliefs which ought to have been sought in the court below but were not.

Perhaps a further word or two need be said about prayer (3) above for the re-instatement of the appellant by the first respondent. Although there was no specific prayer for it in the plaint, the trial judge pursuant to the general prayer of "any other order as the court may deem fit" did order that the second respondent, not the first respondent, re-engage the appellant. It seems that neither party was agreeable. However, although there are clear indications that the second respondent is completely opposed to the order and has reiterated its willingness to pay statutory compensation instead of re-engaging the appellant, the second respondent has not formally appealed against that order. But the appellant has not appealed against it either. Her memorandum of

appeal is completely silent on the issue, and the appellant raises the matter only in her written submissions where she seeks for an order of reinstatement by the first respondent. No leave was sought under rule 106 of the Court Rules to argue this point as an additional ground. It seems plain therefore that we cannot consider whether or not to grant relief merely on the basis of what is contained in the submissions but is not rooted in the memorandum of appeal. Yet we could not deal with the matter in revision as urged by the appellant. For, the circumstances of the case do not satisfy the conditions precedent for invoking the revision powers of this Court conferred by the Appellate Jurisdiction Act, 1979, as amended by Act No. 17 of 1991. It is in these circumstances that we found ourselves unable to deal with the issue of the appellant's re-instatement. Although, as stated before, both parties are clearly dissatisfied with the current position as ordered by the High Court, neither party has appealed against it.

With these remarks we allow the appeal to the limited extent as indicated, that is, the reckoning of the appellant's salary at Shs. 9,744/= p.m. and her entitlement to leave pay for the purposes of assessing the compensation payable to her. As is fairly discernible from the judgment of the High Court, the relevant period for the purpose of computing the award is from the date of the termination of the appellant's employment to the date of judgment of the High Court at the interest rate of 30% p.a, and thereafter on the decretal amount at court rate till payment in full. The respondents are to be credited with any monies which they may have paid to the appellant pursuant to the judgment of the High Court in this suit, and the appellant is to have her costs of this appeal.

HALFANI SUDI v. ABIEZA CHICHILI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Ramadhani, Lubuva and Samatta, JJ.A.)

CIVIL REFERENCE No. 11 OF 1996

(From the decision of a single judge of the Court of Appeal, Mnzavas, J.A. dated 22 August 1996 in Civil Application No.65 of 1996)

Civil Practice and Procedure – Appeals – Essential steps to institute an appeal – Appeal not instituted one year after obtaining copy of record of trial court proceedings – Whether essential step not taken

Civil Practice and Procedure – Court record – Presumption that court record represents what happened – Whether court record can be impeached

A single judge of the Court of Appeal struck out a notice of appeal filed by the applicant because of failure to take en essential step to institute the appeal. The applicant's advocate collected copies of the record of proceedings on 1 August 1995 and by 22 August 1996 no appeal had been instituted, while r.82 of the Court of Appeal Rules 1979 requires an appeal to be lodged within 60 days of getting the record. In the reference before the Court of Appeal the advocate for the Appellant sought to impeach the court record.

Held:

(i) A court record is a serious document; it should not be lightly impeached;

(ii) There is always a presumption that a court record accurately represents what happened.

Reference dismissed

Cases referred to:

(1) *Shabir F. A. Jessa v. Rajkumar Deogra,* CAT – Civil Reference No. 12 of 1994 (unreported)

(2) *Paulo Osinya v. R,* [1959] E.A. 353

RULING OF THE COURT

(Delivered 9 April 1998)

Ramadhani, J.A.: The applicant filed a notice of appeal on 23rd December, 1994 but it was struck out by MNZAVAS, J.A. on 22nd August, 1996, upon the application of the respondent under Rule 82 on the ground that an essential step had not been taken. The learned single judge found that copies of the record of appeal were paid for and collected by the applicant on 1st August, 1995, but the appeal had not been instituted within the prescribed sixty days.

The applicant before us was represented by Mr. Semgalawe, learned advocate, who represented him before the single judge and in the High Court. Mr. Semgalawe filed his own affidavit and made further submissions in Court. The learned advocate made three denunciations: First, that he did not receive any letter from the Registrar of the High Court informing him that copies of the record were ready for collection, second that he did not pay for the record and lastly that he did not collect the record. Therefore, he argued that the applicant is not late to institute his appeal. In short Mr. Semgalawe is challenging the correctness of the court records. He further pointed out that under the Judicature and Application of Laws Ordinance the fees payable for typing a page is Shs. 50/= and wondered whether the typing of proceedings of a case from the Primary Court, District Court and the High Court will only cost Shs. 2,450/= as shown on the receipt. He argued that probably the fees paid were only for typing the judgment of the high Court.

On behalf of the respondent was Mr. Mbezi, learned counsel. His bone of contention was that the onus of proof is on the applicant who alleges that the court records are not correct and that that had not been carried out. The learned advocate also pointed out that the High Court judgement was only three pages and so, it could not cost Shs. 2,450/=.

In any case, he argued that that amount of money at the rate of Shs. 50/- per page paid for the typing of 49 pages and that that is a pretty thick record.

We perused through the file and we noticed that there are two receipts of Shs. 2,450/= each one No.00412047 of 1/8/95 issued to Mr. Semgalawe and another No.00412075 of 3/8/95 issued to Abieza Chichili. We asked Mr. Mbezi why the respondent wanted, a copy of the judgment.

He said that he did not know as he took up this brief just for the application before MNZAVAS, J.A. Be that as it may, what is abundantly clear from the records is that Mr. Semgalawe was issued with the copies of the record of proceedings against receipt No.00412047 of 1/8/95 and, therefore, according to Rule 83, the appeal was required to be instituted within sixty days from 1/8/95 but that was not done.

Of course, we are pretty much aware of what Mr. Semgalawe kept on saying that he had asked the learned single judge for an inquiry to be conducted but that request was barren of results. Then he came up with an interesting possible explanation of what might have happened. He suspected that somebody, with instructions from the respondent, colluded with some court staff and fabricated the letter saying that the records were ready for collection, paid the fees pretending that it was Mr. Semgalawe doing so, drafted the certificate declaring how much time was used to prepare the records and sent it to the Registrar for his signature. All this was done with the aim of preparing suitable scenario for making this application for striking out the notice of appeal. That is possible but in order for us to impeach court records, we need something more than mere theories of possibilities. Mr. Sengalawe, himself, admitted that it were the applicant who had the burden of proof.

We entirely agree with our learned brother, MNZAVAS, J.A. and the authorities he relied on which are loud and clear that "A court record is a serious document. It should not be lightly impeached": *Shabir F.A. Jessa v. Rajkumar Deogra, (1)*, and that "There is always the presumption that a court record accurately represents what happened": *Paulo Osinya v. R. (2)*. In this matter, we are of the opinion that the evidence placed before us has not rebutted this presumption.

We do not want to open up a Pandora's box whereby any appellant will come up with a claim that he had not received a letter from the Registrar saying that the records were ready for collection and that he did not pay for the records. Therefore the reference is dismissed with costs.

RASHID ABDULLAH RASHID EL-SINAN

v.

MUSSA HAJI KOMBO and ALI MOHAMED MUSSA

HIGH COURT OF ZANZIBAR
AT VUGA
(Dahoma, J.)

MISCELLANEOUS CIVIL APPLICATION No. 36 OF 1998

Civil Practice and Procedure – Applications – Application made under wrong provisions of law – Application incompetent

A chamber application under certificate of utmost urgency was filed in the High Court under the provisions of order XXIV rule 22 and s.129 of the Civil Procedure Decree, and rules 9(1) and 44 of the Court of Appeal Rules 1979, praying for stay of execution pending determination of appeal by the Court of Appeal. It was argued by advocate for the respondents that the application was incompetent, having been made under wrong provisions of the law.

Held:

(i) The High Court does not have power to order stay of execution under rule 9(2)(b) and rule 44 of the Court of Appeal Rules 19799;

(ii) Order XXIV rule 22(1) of the Civil Procedure Decree is inapplicable in this case because that rule deals with the court to which a decree has been sent for execution;

(iii) The application has been made under wrong provisions of law and is therefore incompetent.

Application dismissed

Mr. Patel, for the Applicant
Dr. Lamwai, for the Respondent

RULING

(Delivered 25 May 1998)

Dahoma, J.: Mr. Patel, on behalf of Rashid Abdalla Rashid El-Sinan, brought proceeding before this court for orders that respondents, their agents and servants, be prohibited from:

1. Entering into repossessing of the upper floor of House No. 36A at Shangani, Zanzibar, which has been rented by the applicant from the respondents;
2. Interfering and tempering with the business run by the applicant and his agents and servants; and
3. Molesting and annoying the applicant's relatives and his agents and servants.

The court refused the application.

Now, Mr. Patel filed chamber application under Certificate of Utmost Urgency under Order XXIV rule 22(1) and section 129 of the Civil Procedure Decree, Cap. 8, rule 9 (1) and 44 of the Court of Appeal Rules 1979, for the following orders:

1. That the ruling given by the Honorable Court on 17/4/98 in H.C.M.A. No. 6 of

98 be stayed from execution pending the determination of the appeal against the said ruling by the Court of Appeal, and

2. Such other order (s) as are just and conducive to the speedy conclusion of all related outstanding matters.

At the same time Mr. Nassor for the respondents applied by execution for the ejectment of Bi. Asha Said Mohamed from House No. 36A at Shangani, Zanzibar.

At the commencement of the hearing of application for stay of execution, Mr. Patel, for the applicants, contended that he has made an application under rule 9 sub rule 2 (b) and rule 44 of the Court of Appeal Rules 1979 for stay of execution by this court.

The application has been made without, unreasonable delay. In the event of his application being dismissed, he prayed for Bi. Asha Said Mohammed to be allowed to stay in the house for two months to enable her to find alternative accommodation and finally he prayed the execution should be stayed pending the ruling of this application.

In reply Dr. Lamwai for respondents objected both the applications. First application for execution pending appeals. Secondly application for stay of execution pending the ruling of the High Court for main reasons the High Court does not have power to order stay of execution under rule 9 sub rule 2 (b) and rule 44 of the Court of Appeal Rules 1979. The application is incompetent and Order XXIV Rule 22(1) of the Civil Procedure Decree is inapplicable in this case. Rule 22(1) deals with the court to which a decree has been sent for execution. The application has been made under wrong provisions or law.

I do not think I should indulge much in this application because the arguments by Dr. Lamwai are very strong. In view of that this application for stay of execution is not properly before the court because the application has been made under wrong previsous of law and it should be dismissed.

Turning to the application for the ejectment of Bi. Asha Said

Mohammed from House No. 36A at Shangani, Zanzibar, Bi. Asha Said, knowing it very well that she is not a lawful tenant, still continued to occupy the premises in contravention of tenancy agreement and she cannot seek redress under the shield of Oman International Club which has ceased to exist.

For the above reasons the application for the ejectment of Bi. Asha Said Mohammed from House No. 36A at Shangani, Zanzibar, is granted as prayed. The application for stay of execution is dismissed.

I direct Kumekucha Auction Mart to execute the order for the ejectment of Bi. Asha Said Mohammed from the House No. 36A at Shangani, Zanzibar.

SELE BALEKELE v. REPUBLIC

HIGH COURT OF TANZANIA
AT TABORA
(Mchome, J.)

CRIMINAL APPEAL No. 59 OF 1997

(From the District Court of Kahama District at Kahama, I.O. Hozza, SDM, in Criminal Case No. 22 of 1996)

Criminal Law – Theft – Defences – Defence of Bona Fide claim of right – Whether the defence is available to a wife charged with stealing husband's property

The appellant was convicted, by the district court, of stealing her husband's 29 head of cattle and 5 goats. On appeal, her defence of bona fide claim of right was challenged by the State Attorney, who argued that the said defence was not available to the appellant wife.

Held:

(i) The defence of bona fide claim of right is available to any offence against property;

(ii) The appellant wife, a joint owner of the husband's property, has the right to pledge her husband's credit and to use his property;

(iii) That the wife may have squandered the property does not remove her claim of right over that property.

Appeal allowed

Mr. Mtaki, for the Appellant
Mr. Mwampoma, State Attorney, for the Respondent

JUDGMENT

(Dated 5 May 1998)

Mchome, J.: Sele Balekele, a fifty years old peasant housewife from Nghama Village, Kahama District, was charged with stealing her husband's 29 head of cattle and 5 goats, total valued at shs. 2,080,000/ =. She pleaded not guilty to the cattle theft charge contrary to section 268 (1) (3) of the Penal Code.

She was, however, found guilty, convicted and sentenced to five years' imprisonment by the Kahama District Court (I.O.K. Hozza), (SDM). She now appeals against both conviction and sentence.

It is undisputed that the appellant is married to the complainant, one Lusangija Jisinza. The complainant in 1996 was attacked with pangas by bandits and very seriously injured. He was hospitalised for several months. When he was discharged he went to live with his brother for another long period which is unspecified in the evidence on record.

When he left for hospital it is alleged by the prosecution that the complainant left the appellant with 51 head of cattle and several goats. But when he came back he saw 29 head of cattle and 5 goats missing.

The appellant had sold them and spent the money. The complainant reported her to the police who arrested her and laid this charge at her door.

In her defence the appellant denied to have been left all that cattle. She says she was left with only 8 head of cattle and her husband took the rest to some other place for pastures. She says she was allowed to sell the 8 head of cattle in order to get money to buy food. Her witness says the appellant's husband left with all the cattle and left the appellant nothing.

In his submission the learned counsel for the appellant submits that the appellant being the complainant's wife had a title to the livestock she is alleged to have stolen and so cannot be held liable for theft. She cannot steal her own property. He also argues that she has the defence of a *bona fide* claim of right under section 9 of the Penal Code.

Mr. Mwampoma, learned State Attorney, submits that had the appellant sold only 5 or so cattle this would have been a credible number for buying food, but 29 head deliberately and without her husbands consent, is theft. The defence is full of contradictions, he goes on arguing. Mr. Mtaki replied to the second limb of Mr. Mwampoma's argument by saying that the appellant ought not to have been convicted on the weakness of her defence but only on the strength of the prosecution case.

I do not agree with the learned State Attorney that the defence of bona fide claim of right is inapplicable to this case. It is applicable to any offence against property. As a lawful wife the appellant has the right to pledge her husband's credit and the right to use his property, including livestock. She is a joint owner of that property. Merely that she may have squandered it does not remove her claim of right over that property. If she had taken more than her fair share of their matrimonial property that is perhaps a matter for the civil court. It was unjust to condemn her as a cattle thief. Therefore I allow this appeal, quash the conviction and set aside the sentence passed against the appellant. She is to be released from prison immediately unless held further in connection with other lawful matters.

ISSA ABDULLAH v. MWANANYASINI MUSTAFA and SIX OTHERS

HIGH COURT OF ZANZIBAR
AT VUGA
(Kannonyele, J.)

CIVIL APPEAL No. 47 OF 1997

(From the Regional Magistrate's Court of Zanzibar at Vuga,
in Civil Case No. 27 of 1996)

Land Law – Joint ownership of land – Brother inviting fellow brother to jointly develop property belonging to the former – Whether joint ownership is thereby established

Land Law – Joint ownership of landed property – Owner of property invites a brother to jointly develop the property – Whether the children of the invited brother have any right in the property

The appellant was owner of a piece of land and invited his brother, the father of the respondents, so that they could jointly develop the property as their joint residence. The two brothers developed the property jointly and were assisted by the children of the invited brother. After the death of the invitee his children demanded as of right a share in the joint property. The Regional Court at Vuga gave them that right. On appeal:

Held:

(i) The invited brother, Mustafa, qualified for joint ownership because he was invited by the plaintiff but the children of the invited brother cannot lay claim to the joint property;

(ii) Even if it be true that the children of the invited brother made their investments into the property, they did so at their own risk;

(iii) When development is made on another person's land, the development thus made will vest in the owner of that land or title holder thereof, and the one who makes the development may lose it unless the development is done with leave or consent of the owner or title holder;

(iv) The defendants can only lay claim, if any, to the property as heirs to the joint owner, their late father, Mustafa.

Orders accordingly

JUDGMENT

(Dated 11 May 1998)

Kannonyele, J.: The plaintiff, the appellant at this juncture, had a plot at Begamoja in the municipality of Zanzibar way back in 1964. He invited his brother, the late Mustafa, that they should jointly develop the plot for their joint residence. The late Mustafa is the father of the defendants, now the respondents on appeal. Together with his invitee, they built a house on the plaintiffs plot on mutual understanding that they would both live there. They first built a mud house on the plot. Later they transformed it into a concrete brick house. Each the plaintiff and the defendants' father built a room of the erstwhile joint property. Lately, the plaintiff moved from the joint property to live elsewhere leaving the defendants' father behind.

On the other hand, it is in the first defendant's evidence that (uninvited) her brother added value to the joint property by constructing one more room in the house. He then moved to live there with his father Mustafa. However, the defendant's brother is in record as having since moved away from the demised property to live elsewhere.

Also (uninvited) the 1st defendant in her own capacity similarly constructed an additional cement block room to complete one since started by her father before he died. The room acknowledged to have been by the plaintiff is still there unoccupied by anyone. These facts hitherto are not substantially contested by the parties.

What is in dispute is when the plaintiff/appellant claims that the house was joint property between him and his late brother Mustafa, the defendants father. The defendants say the plaintiff is entitled only to that room he constructed of the joint property, no more. The trial Regional Court found and held for the defendants. The plaintiff is aggrieved by the decision. Hence the appeal.

In fairness to the defendant/respondents, they are at best mere uninvited guests to the property, which in reality is jointly owned by the plaintiff and his late brother Mustafa. And even then, Mustafa qualified as part owner of the property by virtue of the holder or possessor of the land himself, as the case may be. But for this free invitation to the scene by the plaintiff himself, even Mustafa would not have qualified for joint ownership of the property. If therefore the defendants are entitled to anything in the property, it is only by inheritance of their late father's share of the property which, however is subject to proof and they have not yet sought to establish so, legally. In so far as the property is concerned, therefore, it still remains joint property between the plaintiff, appellant, on the one hand and the deceased's estate on the other. Hence it is only the deceased's legally appointed administrator or duly approved heirs of the estate can lay their claims of their rightful share of the joint property. No one else can legally do this and expect to succeed against the plaintiff/appellant.

It is important to emphasize that even this late Mustafa's share of the property is on the basis of the fact that he was freely invited to come to the scene. As such he is recognised and accepted by the plaintiff who, according to established and or facts or on the balance of probabilities recording to the evidence, he is the one who has possession or licence to develop the plot. But for his having been so invited as such, even the late Mustafa could not properly lay his claims to the property.

The same is not true of the defendants. Except for their share as heirs to the late Mustafa - if they are entitled indeed (for they have not yet legally established the same), they are otherwise trespassers or uninvited guest to the property. For even if it be true that they made their own investments into the property - say by constructing their respective rooms as alleged and not disputed in evidence, the fact is that they did this at their own risk. *"Quicquid plantatur solo, solo cedit"* is an old principle

in law which to say that whatever is planted to the soil belongs to the soil. In other words, this means that when development is made on another man's land, the development thus made will vest on the owner of that land or title holder thereof and the one who makes the development may loose it unless he was doing this with leave or consent of the owner or title holder.

> "The mere fact that a man builds an expensive house on a piece of land does not entitle him to that land. If permission is required to build upon the land, that permission must be obtained before building is started. If permission to build is necessary, and a man builds without having obtained it, he may lose his house because it is built upon another man's land." *Ogola Ngela v. Olum Oludae* (1959) C.O.R 4 James & Fimbo: *Customary Land Law of Tanzania* (1973).

And, therefore,

> "He cannot be allowed by the courts to benefit from his illegal acts": *Ringita Nyoraro v. Omari* (1965) P.C.C.A. 38/1 965 James & Fimbo *op. cit.* p.621.

In the instant case, it is only the late Mustafa's position, which can be recognised and accepted as vesting title to him over the property jointly together with the plaintiff/ appellant. This is because Mustafa was invited to the land by the holder himself. His investment to the land was therefore legally recoverable. Conversely, the defendants are only heirs to the late Mustafa, if indeed they are and this they have to establish by known legal procedure which, however, they have not yet done. Otherwise, they remain uninvited guests to the property if not trespassers *per se*

I am fortified in this view by the evidence of DW2 (Ilyasa Vuai Mcha) who said he did not know the nature of agreement or understanding between the plaintiff/appellant and the late Mustafa except that the latter had informed him (DW2) that he (deceased) had built two rooms, one for himself and the other for his (unspecified) brother who, in the circumstances, is most likely to have been the plaintiff/appellant. Since he does not know the nature of understanding which the deceased and

the appellant had made between themselves, then that is the more reason why he cannot be heard to challenge the evidence of the appellant that he is owner of the plot who had only invited the deceased to come to the scene.

But Haji Vuai (Mdaiwa No. 3 *sic*) was more pertinent when the informed the trial court that his late brother (apparently Mustafa, the defendant's father) had told him that the house was joint property between him, deceased, and his brother, one Issa, most certainly the plaintiff in this case. It is only further development of the property which was shouldered by the deceased aided by his children. I hold that these children were only aiding their father and were not thereby laying title to the property in their own right.

There was also DW5 (Iddi Mbarak Ameir) who stated that he heard the plaintiff had offered a plot so that the deceased could develop it after which Issa (supra) should be availed with a room. He also stated that before Mustafa's death, Issa lived there in the demised property. All this gives more weight to the plaintiffs claims on the balance of probabilities.

The memorandum of appeal is to the effect that the trial magistrate had misdirected himself and that he erred in fact and in law by saying that the plaintiff/appellant was entitled to a room only and by refusing to accept that he was the sole surviving owner of the erstwhile joint property between him and the deceased Mustafa, the defendant's father. I respectfully concur with him.

On these premises therefore, I am satisfied that this appeal is based on a just ground of complaint. The Regional Court's decision was erroneous, with due respect to the learned trial magistrate. The appellant is entitled to redress here on appeal. The appeal is therefore allowed. Judgement and order of the Regional Court are therefore hereby set aside. There is instead substituted therefore a declaration to the effect that the plaintiff/appellant is the sole surviving owner of the joint property formerly owned by him jointly together with his late brother Mustafa, the father of the defendants, as the same is not dispute potent. The late Mustafa's share of the property now devolves to his estate and, under the appropriate law of succession/inheritance as may be applicable, to

proven heirs thereof. Now that there are already misunderstandings between the plaintiff/appellant and (the potential heirs of Mustafa) the defendants, the plaintiff/appellant is entitled and is free to sell his share of the property as he has already intimated. In the alternative, the defendants are free to compensate him for same to see him off and leave the property to them.

Appellant to have his costs in this court and in the court below.

NATIONAL HOUSING CORPORATION

v.

1. ARUSHA MUNICIPAL COUNCIL, 2. ROBERT MAMIRO, and 3. TRANS AUTO EXPRESS LIMITED

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Nyalali, C.J., Ramadhani and Mfalila, JJ.A.)

CIVIL APPEAL No. 18 OF 1996

(From the decision of the High Court of Tanzania at Arusha, Munuo, J., dated 22 March 1995 in Civil Case No. 19 of 1993)

Local Government – Property rate levied by local government authorities – Power of local government authorities to seize and sell immovable property in enforcement of payment of property rate – Whether that power can be exercised without recourse to proceedings – Urban Authorities (Rating) Act 1983

Local Government – Property rates – Recovery of unpaid rates – Unlawful seizure and sale of immovable property by auction to a bona fide purchaser – Whether the purchaser gets title to the property – Urban Authorities (Rating) Act 1983

the appellant had made between themselves, then that is the more reason why he cannot be heard to challenge the evidence of the appellant that he is owner of the plot who had only invited the deceased to come to the scene.

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proven heirs thereof. Now that there are already misunderstandings between the plaintiff/appellant and (the potential heirs of Mustafa) the defendants, the plaintiff/appellant is entitled and is free to sell his share of the property as he has already intimated. In the alternative, the defendants are free to compensate him for same to see him off and leave the property to them.

Appellant to have his costs in this court and in the court below.

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Statute – Interpretation of Statutes – Sale of property to recover unpaid rates – Statute providing that "proceedings will be taken for the sale of the premises" – Meaning of "proceedings" – Urban Authorities (Rating) Act 1983

Statutory Interpretation – Recovery of unpaid rates – Powers of an urban authority to recover unpaid rates – Extent of those powers – Sections 26, 29, 43 and 44 of the Urban Authorities (Rating) Act 1983

Statutory Interpretation – Recovery of unpaid rates – Power of Sale to recover unpaid rates – Power of Sale of premises under s. 29 of the Urban Authorities (Rating) Act 1983 – Purpose of such sale

In order to be paid a balance of property tax due from the appellant the first respondent, using the second respondent, who is an auctioneer, seized some immovable property of the appellant and sold them by auction to the third respondent, a bona fide purchaser. Such seizure and sale were effected without first having recourse to a court of law. The appellant filed a suit in the High Court alleging unlawful sale of the immovable property and sought, *inter alia,* the nullification of the sale and restoration of ownership of the property. The High Court found that the out of court seizure and sale of the immovable property was lawful and decided in favour of the respondents. On appeal, the Court of Appeal considered the legality of the out of court seizure and sale by interpreting the relevant provisions of the Urban Authorities (Rating) Act 1983 (hereinafter referred to as **"the Act."**)

Held:

(i) The course taken by the first respondent, that of having the premises on plots No.7 and No.8 seized and sold by the second respondent, is not within the scope of ss. 26, 43, and 44 of the Act because these sections do not apply to immovable property;

(ii) It is apparent that s.29, like ss. 26, 43 and 44 of the Act, concerns the recovery of unpaid rates levied on property under the Act and not any other kind of property tax;

(iii) On a proper construction or interpretation of the provisions of s.29 of the Act, it seems clear that they provide for a course of action directed at the sale

of premises for the purposes of recovering the amount of rates due for payment in respect of such premises;

(iv) The course of action for the sale of premises concerned has to be the end result of proceedings;

(v) The proceedings envisaged under s.29(1) of the Act for the recovery of unpaid rates are legal proceedings and the basis or cause of action for such legal proceedings are the circumstances within the scope of subsections (1) and (2) of the said s.29;

(vi) The course taken by the first respondent, that of acting out of court and instructing the second respondent to seize and sell the premises in question, fell outside the provisions of s.29 of the Act and was, therefore, unlawful;

(vii) Since the first respondent was not entitled to have premises sold, the sale was unlawful, regardless of the manner in which the public auction was conducted;

(viii) Since the second respondent purported to sell to the third respondent the premises in question on behalf of the first respondent, and since the first respondent was not entitled to sell the same, there was no title which could in law pass to the third respondent.

Appeal allowed

Cases referred to:
(1) *Hood v. Cathcart,* [1894] 3 Ch. D. 376
(2) *Law Society v. Elder,* [1956] 2 All E.R. 65
(3) *Croston v. Vaughan,* [1937] 4 All E.R. 249
(4) *Attorney General v. Lohay Akonay and Joseph Lohay,* [1994] 2 L.R.C. 399; [1995] T.L.R. 80

Mr. De Souza, for the Appellant
Mr. Mwale, for the First and Third Respondents
Mr. F. Mushi, for the Second Respondent

JUDGMENT OF THE COURT

(Dated 11 May 1998)

Nyalali, C.J.: This is an appeal by the National Housing Corporation, hereinafter called the Appellant, against the judgement and decree of the High Court at Arusha in a suit instituted by the Appellant jointly against the Arusha Municipal Council, one Robert Mamiro and Trans Auto Express Ltd, hereinafter referred to as the First Respondent, the Second Respondent and Third Respondent respectively. That suit was in respect of an alleged unlawful sale of the Appellant's immovable property and sought, *inter alia*, the nullification of the sale, the restoration of ownership of the property and damages for loss of business reputation. Third Respondent counter claimed for loss of income occasioned by the Appellant's caveat which prevented the transfer of the immovable property to the Third Respondent, who claims to be a bona fide purchaser. The High Court dismissed both the suit and the counterclaim. The Appellant was dissatisfied with the High Court decision, hence this appeal. Mr. D'Souza, learned advocate, represented the Appellant in this appeal, whereas Mr. F. Mushi, learned advocate, represented the Second Respondent and Mr. Mwale, learned advocate, represented the First and Third Respondents.

From the proceedings both in this Court and the High Court there is no dispute between the parties that the Appellant, a parastatal body, owns many immovable properties in the Municipality of Arusha and that, at the material time, the Appellant was in arrears of payment of a substantial sum of money to the First Respondent, being the balance of property tax. It is also undisputed that in 1992, the First Respondent engaged the Second Respondent, who is an auctioneer and court broker, to assist in recovering the arrears of property tax. Towards that end, the Second Respondent travelled to the headquarters of the Appellant in Dar es Salaam and got some shs.5,000,000/= part payment made on that occasion. Furthermore, there is no dispute that thereafter in

December 1992, the First Respondent instructed the Second Respondent to seize and sell by public auction the immovable property of the Appellant situated on plots 7 and 8, Block 'E' Goliondoi, in Arusha Municipality, in order to recover tax in respect of various properties of the appellant. Similarly no dispute exists between the parties that on the 8th January 1993, the Second Respondent sold the property concerned at an auction conducted at plots 7 and 8 mentioned earlier. The highest bidder was one Zam Zam whose bid stood at sh.55 million. The property was however not sold to him but was sold to the Third Respondent for shs.50 million. Appellant was not satisfied with the actions taken by the First and Second Respondents and consequently instituted this suit in the High Court and filed a caveat to block the transfer of the property to the Third Respondent.

With regard to matters which are in dispute between the parties, it is the Appellant's contention that the First Respondent was not entitled in law to sell the Appellant's immovable property and that the sale conducted by the Second Respondent was unlawful not only because there was no legal authority for such sale, but also because of irregularities in the conduct of the public auction.

The case for the First Respondent on the other hand is to the effect that since the Appellant had failed to pay the arrears of property tax in spite of appropriate demands for payment being made, the First Respondent, being an Urban Authority, was entitled to take the action it took within the scope of the Urban Authorities (Rating) Act, 1983(Act No 2 of 1983). The Case for the Second Respondent is essentially that there was legal authority to seize and sell the property in question and that the sale by public auction was in accordance with the law. It is part of the Second Respondent's case that the property was not sold to the highest bidder but to the next ranking bidder in accordance with previously announced terms of the public auction. Under those terms, the highest bidder had to deposit on the spot cash amounting to 25% of the bid, in default of which the property was to be sold to the next ranking bidder upon a similar cash deposit.

The Third Respondents's case is brief and rests essentially on the basis that he was a bona fide purchaser for value of the property sold to him at the public auction, after the highest bidder had failed to make the cash deposit as required by the terms of the auction. It is thus the contention of the Third Respondent that he acquired a good title to the property in question.

The most important issue in this case upon which all other issues depend is whether the First Respondent was entitled to have the immovable property in question seized and sold. The learned trial judge, Munuo, J., considered this issue at length and in so doing accepted the submissions made by Mr. Mwale, learned advocate, to the effect that an urban authority intending to recover unpaid property tax has a number of options under the Urban Authorities (Rating) Act 1983. Those options are under sections 26, 29, 43 and 44 of the Act. The trial judge stated, *inter alia*:

> According to Mr. D'Souza the 1st defendant ought to have sued for the recovery of the property tax in dispute under section 43 and 44 of the Urban Authorities (Rates) Act No 2 of 1983 and not proceed arbitrarily under section 29 of the said Act.
>
> While I agree with the interpretation of 'proceedings' reflected above by the various cases and dictionary, I think the situation under the Urban Authorities (Rating) Act No.2 of 1983, is distinguishable basically because the 1st defendant has options to recover property tax under the provisions of sections 26, 29 or 43 and 44 of the said Act. The Act gives the 1st defendant the flexible options of recovering property taxes under section 26 or 29 or by summary proceedings and 1st defendant opted to invoke the provisions of section 29 of the Act which did not necessitate the summary action stipulated under sections 43 and 44 of the Act
>
> The provisions of sections 29 and 26 have not been declared unconstitutional so the 1st defendant rightly invoked section 29 to recover the due property tax from the plaintiff....

Mr. D'Souza, learned advocate for the Appellant has strenuously challenged the conclusion of the learned trial judge. He has submitted before us that none of the sections cited by the judge do authorize out of court seizure and sale of immovable property for purposes of recovery of unpaid property tax. It is part of Mr. D'Souza's submission to the effect that the course of action authorized by law is provided under sections 43 or 44 both of which involve using the Court.

We propose to closely examine the provisions of sections 26, 29, 43 and 44 of the Act. In so doing, we shall deal with section 29 last, since it is the section which the learned trial judge found to have been correctly acted upon by the First Respondent in having the premises on plot Nos. 7 and 8 seized and sold by the Second Respondent. We begin with section 26 which states:

> (1) If any person fails to pay any rates due to be paid by him, the rating authority may cause a demand in writing to be made upon such person, requiring him to pay the amount due within fourteen days of the date of such demand.
>
> (2) If, after such demand, such person fails to pay such sum, it shall be lawful for the Director of the rating authority, upon a resolution of the rating authority in that behalf, to issue a warrant to the court broker requiring him to distrain upon the personal goods and chattels of such person to the value of such sum, whether or not such goods and chattels be found upon the hereditament in respect of which the rates are due.
>
> Provided that such warrant shall not be issued unless the notice referred to in sub section (1) was served personally upon such person, or was left at his normal place of work or residence or at his registered office.
>
> (3) Notwithstanding anything contained in sub-section (2), the rating

authority may, at its discretion, recover the sum due from any person by civil action without further notice or demand.

It is apparent under the provisions of section 26, particularly the parts we have underlined, that there are two courses of action provided under the section for recovery of unpaid property tax which must however be rates levied under the Act. The first course takes place out of court and involves the Director of the rating authority issuing a distress warrant to a court broker after a written demand notice has been made and on the basis of a resolution of the rating authority. However, it is clear that only property in the nature of movable property may be attached by the court broker. The second course of action is stated under sub-section (3) and involves filing a civil suit in Court.

That being the position, it is clear that the action taken by the Arusha Municipal Council does not lie within the scope of the provisions of section 26. Let us see if it lies within the provisions of section 43 of the Act. That section states:

(1) If after the time fixed for the payment of any rate, any person fails to pay any rate due by him, it shall be competent for the local authority to cause a printed or written demand to be made upon such person to pay the amount stated in such demand within fourteen days after service thereof. Where any person who shall have had such demand delivered to him personally or left at his ordinary place of residence or place of business or office shall make default, it shall be competent for the local authority to apply to a competent magistrate having jurisdiction within the local authority for a summary warrant in the form contained in the Third Schedule to this Act to recover such rates from the person liable to pay the same, which warrant such magistrate shall grant on production of a list of the names and addresses of the persons so in default, and the amount due by them, with a certificate by the Director or Township Executive Officer as the case may be, that they have been severally required to make payment

of the said rates by notice as aforesaid, and do not exceed the rates fixed by or under this Act; and every such warrant shall contain every authority and be executed in all respects as though it were both a warrant of attachment and a warrant of sale issued out of the Court of such magistrate.

(2) Anything in the Magistrate Courts Act, 1963 to the contrary notwithstanding, a District Magistrate shall be deemed to have jurisdiction to issue warrants under this section.

The Third Schedule referred to under section 43 is a Summary Warrant of Attachment and Sale commanding a Court Broker to attach and hold movable property of the debtor and authorizing the sale by public auction of such property after due notice and proclamation of sale unless the debtor pays the unpaid rate together with consequential interest and costs. It is apparent that the proceedings or course of action prescribed under section 43 read together with the Third Schedule of the Act do not apply to immovable property. It follows therefore that the course of action taken by the First Respondent lies outside the scope of section 43. What about the provisions of section 44 which states:

(1) Notwithstanding the provisions of the last preceding section, the local authority may at its discretion, after the time fixed for the payment of any such rates as aforesaid, recover from the person in default (without further notice or demand) the amount of the rates due by such person, irrespective of the amount thereof, by action in the court of a Magistrate of the first class having jurisdiction within the area of the local authority, whether the person liable for the same shall be resident within the jurisdiction of such court or not. In case it shall not be possible to effect service of summons within court as aforesaid, then such service shall be effected in such manner as the said court shall direct.

(2) Anything in the Magistrates Courts Act, 1963 to the contrary

The Third Respondents's case is brief and rests essentially on the basis that he was a bona fide purchaser for value of the property sold to him at the public auction, after the highest bidder had failed to make the cash deposit as required by the terms of the auction. It is thus the contention of the Third Respondent that he acquired a good title to the property in question.

The most important issue in this case upon which all other issues depend is whether the First Respondent was entitled to have the immovable property in question seized and sold. The learned trial judge, Munuo, J., considered this issue at length and in so doing accepted the submissions made by Mr. Mwale, learned advocate, to the effect that an urban authority intending to recover unpaid property tax has a number of options under the Urban Authorities (Rating) Act 1983. Those options are under sections 26, 29, 43 and 44 of the Act. The trial judge stated, *inter alia*:

> According to Mr. D'Souza the 1st defendant ought to have sued for the recovery of the property tax in dispute under section 43 and 44 of the Urban Authorities (Rates) Act No 2 of 1983 and not proceed arbitrarily under section 29 of the said Act.
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> While I agree with the interpretation of 'proceedings' reflected above by the various cases and dictionary, I think the situation under the Urban Authorities (Rating) Act No.2 of 1983, is distinguishable basically because the 1st defendant has options to recover property tax under the provisions of sections 26, 29 or 43 and 44 of the said Act. The Act gives the 1st defendant the flexible options of recovering property taxes under section 26 or 29 or by summary proceedings and 1st defendant opted to invoke the provisions of section 29 of the Act which did not necessitate the summary action stipulated under sections 43 and 44 of the Act
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> The provisions of sections 29 and 26 have not been declared unconstitutional so the 1st defendant rightly invoked section 29 to recover the due property tax from the plaintiff....

Mr. D'Souza, learned advocate for the Appellant has strenuously challenged the conclusion of the learned trial judge. He has submitted before us that none of the sections cited by the judge do authorize out of court seizure and sale of immovable property for purposes of recovery of unpaid property tax. It is part of Mr. D'Souza's submission to the effect that the course of action authorized by law is provided under sections 43 or 44 both of which involve using the Court.

We propose to closely examine the provisions of sections 26, 29, 43 and 44 of the Act. In so doing, we shall deal with section 29 last, since it is the section which the learned trial judge found to have been correctly acted upon by the First Respondent in having the premises on plot Nos. 7 and 8 seized and sold by the Second Respondent. We begin with section 26 which states:

> (1) If any person fails to pay any rates due to be paid by him, the rating authority may cause a demand in writing to be made upon such person, requiring him to pay the amount due within fourteen days of the date of such demand.
>
> (2) If, after such demand, such person fails to pay such sum, it shall be lawful for the Director of the rating authority, upon a resolution of the rating authority in that behalf, to issue a warrant to the court broker requiring him to distrain upon the personal goods and chattels of such person to the value of such sum, whether or not such goods and chattels be found upon the hereditament in respect of which the rates are due.
>
> Provided that such warrant shall not be issued unless the notice referred to in sub section (1) was served personally upon such person, or was left at his normal place of work or residence or at his registered office.
>
> (3) Notwithstanding anything contained in sub-section (2), the rating

notwithstanding, a District Magistrate shall be deemed to have jurisdiction to hear and determine claims for the recovery of rates under this section.

The meaning of these provisions is obvious, and it is to the effect that a local authority which gives a printed or written demand pursuant to the provisions of sub-section (1) of section 43 is not precluded from taking normal legal action in court to recover the unpaid rate. It is apparent that the course of action prescribed under section 44 is an action in a magistrate's court of competent jurisdiction for recovery of the amount of the rates due by such person. That action can be taken by a local authority instead of acting under section 43. Section 44 however does not say anything about action for the sale of the premises in respect of which the rates are due. This means that the course of action taken by the First Respondent in having the premises on plots Nos. 7 and 8 seized and sold by the Second Respondent is not within the scope of section 44. Let us now turn to the provisions of section 29 which reads as follows:

(1) If the amount of a general or special rate or any installment thereof payable in respect of any premises is not paid within sixty days from the date when it was due, the Council shall cause to be fixed on a conspicuous part of the premises a notice in the form prescribed by the Minister to the effect that if the amount of the rate payable in respect of the premises is not paid within twenty one days, proceedings will be taken for the sale of the premises for the purposes of defraying such amount.

(2) Where any person claiming to be the owner of any assessed premises has given notice to the Council of his name and postal address no notice as aforesaid shall be affixed on such premises until a demand in writing for payment of the rate due thereon has been sent by registered letter by the Council to such person, and default has been made for one month after the date of posting of the registered letter.

It is apparent that section 29, like sections 26, 43 and 44 concern the recovery of unpaid rates levied on property under the Act and not any other kind of property tax. For purposes of section 29, the rate may be general, which is defined under section 18(2) as being, 'rate made and levied over the whole area within the jurisdiction of the Council for the general purposes of the Council', or special, which is defined under section 18(2) as being, "a rate made and levied over a specified area within the jurisdiction of the Council for the purpose of a specified project approved by the Council for that area."

On a proper construction or interpretation of the provisions of section 29, it seems clear that they provide for a course of action directed at the sale of premises for the purposes of recovering the amount of rates due for payment in respect of such premises. The circumstances which make this course of action available are:

(i) a period of sixty days must expire after the rates have become due for payment in respect of such property;

(ii) a notice by the Council in a form prescribed by the Minister has been fixed on a conspicuous place of the premises for a period of twenty one days to the effect that the premises will be sold to recover the rates due in respect of the premises if the rates are not paid within such period of twenty one days;

(iii) a failure to pay the due rates within the period of twenty one days stated in such notice.

It is also apparent from the provisions of sub-section (2) that where the person claiming ownership of assessed premises has notified the Council of his or her name and postal address, the Council is prohibited from affixing the demand notice on the premises until after such person has failed to pay the due rate for a month after a demand letter was sent

to such person by registered post. Furthermore it is apparent that the course of action for the sale of the premises concerned has to be the end result of proceedings. The important question here is what does the expression proceedings in section 29 mean?

Mr. D'Souza, learned advocate for the Appellant, cited a number of English cases both in the High Court and before us. These cases included the case of *Hood v. Cathcart (1)* 376, *Law Society v. Elder (2)* and *Croston v. Vaughan (3)* Unfortunately all these cases involve statutes which do not concern actions by local authorities for the purposes of recovering unpaid rates. He also cited in the High Court the Concise Oxford English Dictionary 4 Edition as to the ordinary meaning of the word in question. That dictionary meaning is "legal steps, steps taken in legal action, as shall institute legal steps (go to law).

It seems to us that the meaning given in the Concise Oxford English Dictionary is consistent with the meaning given in BLACK's LAW DICTIONARY, 6th Edition concerning the word, proceeding. It is stated therein that:

> In a general sense the form and manner of conducting juridical business before a court or judicial officer Regular and orderly progress in form of law, including all possible steps in an action from its commencement to the execution of judgment. Term also refers to administrative proceedings before agencies, tribunals bureaus, or the like.

There is a further consistency with the meaning of the expression 'Legal Proceedings' stated in BLACK's LAW DICTIONARY as 'Term includes all proceedings authorized or sanctioned by law, and brought or instituted in a court of law or legal tribunal, for the acquiring of a right or the enforcement of a remedy.'

We are of the considered opinion that in the light of what is stated both in the Concise Oxford English Dictionary and BLACK's LAW DICTIONARY, the proceedings envisaged under section 29(1) for the recovery of unpaid rates, are legal proceedings and that the basis or cause of action for such legal proceedings are the circumstances

within the scope of sub-sections (1) and (2) of section 29 which we have already explained.

The question which arises is in which forum are the proceedings for the sale of premises to be instituted. We think that in view of the scheme of the Constitution of the United Republic of Tanzania as explained in the case of *Attorney General v. Lohay Akonaay and Joseph Lohay (4)* decided by this Court the forum must be the Court of law, since there is no express provision creating a different forum under the Urban Authorities (Rating) Act, 1983. It follows therefore that the course of action taken by the First Respondent in acting out of court by instructing the Second Respondent to seize and sell the premises in question fell outside the provisions of section 29 and was therefore unlawful. The answer to the first issue before us must therefore be that the First Respondent was not entitled to have the premises seized arid sold by the Second Respondent.

For purposes of clarity we need to emphasize here that had the First Respondent, that is, the Arusha Municipal Council, followed the procedure we have explained earlier, involving the fixing of a prescribed notice on a conspicuous place on the premises concerning the rates due on such premises, it would have been entitled to have the premises sold as a consequence of proceedings instituted in a court of competent jurisdiction.

The second issue for consideration and decision is a simple one, and it is whether the sale of the premises conducted by Second Respondent was lawful. Obviously since the First Respondent was not entitled to have the premises sold, it must follow that the sale was unlawful, regardless of the manner in which the public auction was conducted.

The third issue in this case is whether the Third Respondent acquired any title to the premises purportedly sold to him as a bona fide purchaser for value. The answer here is obvious. Since the Second Respondent purported to sell to the Third Respondent the premises in question on behalf of the First Respondent, and since the First Respondent was not entitled to sell those premises, there was no title which could in law pass to the Third Respondent.

The final issue in this case is a consequential one, and this concerns the reliefs to which the parties are entitled. Obviously the judgment and decree of the High Court have to be reversed. But is the Appellant entitled to all the reliefs sought in the High Court? In the plaint filed in the High Court, the Appellant sought judgment as follows:

(i) as against all defendants, an order declaring the auction held on 8.1.93 illegal;

(ii) as against 1st defendant and 2nd defendant jointly and severally, an order for damages for loss of business reputation in the sum of shs.50, 000, 000/=;

(iii) as against all defendants, a declaration that the property held under Title 055019/32 is still plaintiff's property;

(iv) as against 2nd defendant the sum of shs.1,269,942/20 plus interest thereon at the commercial rate of 31% per annum from 23.10.92 to date of judgment;

(v) interest on the decretal amount at court rate from date of judgment to payment in full;

(vi) any other or further relief as the Court deems fit.

We have found no problem with the reliefs sought under item (i) (iii), (v) and (vi) and this Court will grant them. There are however problems concerning the reliefs sought under items (ii) and (iv)

Let us start with the relief under item (ii) According to the evidence adduced at the trial, the Plaintiff, who is the present Appellant, claimed to have suffered loss of business reputation as a result of the action taken by the First and Second Respondents in unlawfully seizing and selling Plaintiff's premises by public auction. We fail to see the basis of

this claim. Undoubtedly, the First and Second Respondents took a wrong course of action, but the truth remains that the Appellant was in substantial arrears of payment of property tax to the First Respondent. IL is our considered opinion that since the First Respondent was entitled to take legal action against the Appellant, there is no justification for the Appellant to complain about loss of business reputation, if there was any.

As to the relief sought under item (iv) it is apparent from the evidence adduced at the trial and the pleadings, specifically paragraph 9 of the Plaint and the evidence of Robert Makao (PW1) and the Second Respondent (D.W.2) that the sum of shs 1,269,942/20 was paid by the Appellant to the Second Respondent as Court brokers charges when the latter visited the he of the Appellant in Dar es Salaam on a debt collection errand in October 1992. This was well before the seizure and purported sale of the premises concerned. Since the payment of these charges are not related to the subsequent unlawful seizure and sale, we fail to find a basis for the Appellant's claim for refund of the payments.

In the final analysis therefore, this appeal is allowed by setting aside the judgment and decree of the trial High Court with costs in this Court and substituting instead judgment for the Plaintiff/Appellant as prayed under items (i), (iii) and (v) with costs in the High Court as prayed under item (vi). We order accordingly.